# REPORTS OF CASES

DETERMINED IN THE

# SUPREME COURT

OF THE

## STATE OF WASHINGTON,

CONTAINING

DECISIONS OF THE STATE SUPREME COURT RENDERED DURING THE YEAR 1890, AND OF THE TERRITORIAL SUPREME COURT RENDERED DURING THE YEAR 1889.

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EUGENE G. KREIDER,
REPORTER.

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## VOLUME I.

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## JUDGES OF THE SUPREME COURT OF THE STATE OF WASHINGTON.

HON. THOMAS J. ANDERS, . . . . CHIEF JUSTICE.
HON. ELMON SCOTT, . . . . . JUDGE.
HON. RALPH O. DUNBAR, . . . . . JUDGE.
HON. THEODORE L. STILES, . . . . JUDGE.
HON. JOHN P. HOYT, . . . . . JUDGE.

## JUSTICES OF THE TERRITORIAL SUPREME COURT
DURING THE YEAR 1889.

HON. THOMAS BURKE, . . . . . *Chief Justice.*
HON. CORNELIUS H. HANFORD,* . . . . *Chief Justice.*
HON. LUCIUS B. NASH, . . . . . *Associate Justice.*
HON. WILLIAM G. LANGFORD, . . . . . *Associate Justice.*
HON. FRANK ALLYN, . . . . . *Associate Justice.*
HON. WILLIAM H. CALKINS,† . . . . . *Associate Justice.*

* Succeeded Hon. THOMAS BURKE (resigned), on March 28, 1889.

† Succeeded Hon. LUCIUS B. NASH (resigned), on April 28, 1889.

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# REPORTS OF CASES

DECIDED IN

# THE SUPREME COURT

OF THE

# STATE OF WASHINGTON,

AT THE

# JANUARY TERM, 1890.

| | |
|---|---|
| 1 | 1 |
| 1 | 6 |
| 1 | 17 |
| 1 | 1 |
| 6 | 260 |
| 23* | 801 |
| 33* | 588 |
| 1 | 1 |
| 12 | 2 |
| 1 | 1 |
| 26 | 327 |

[No. 594. Decided January 15, 1890.]

## J. L. AND E. R. LILIENTHAL v. B. F. WRIGHT.

APPEAL — FINAL ORDER — VACATING JUDGMENT.

An order of the district court vacating a judgment on the pleadings rendered during the term in plaintiff's favor, and permitting defendant to file an amended answer, is not a final order from which an appeal may be taken to the supreme court.

*Appeal from District Court, Pierce County.*

Appellants brought an action to recover certain moneys advanced by them to appellee on a contract for the sale of hops, appellee having failed to perform. Appellee's answer failed to deny all the material allegations of the complaint, but, by way of new matter, alleged performance of the contract, and, by way of counter-claim, asked for the balance of the money which would have been due on compliance with the terms of the contract. On the 28th day of February, 1888, appellants moved for judgment on the pleadings, on the ground that the new matter pleaded was available as a defense under the general denial, and the counter-claim was bad, as it was not sufficient in itself as a pleading. On

the 2d day of March, 1888, the court granted the motion, and a judgment was entered on the journal in favor of appellants, as prayed for in the complaint. On said last mentioned day, appellee applied to the court for leave to file an amended answer, and on the same day filed the necessary affidavit of merits, which application was not considered until March 16, 1888, at which time the court granted leave to the appellee to file an amended answer, and also ordered that the judgment in favor of appellant, entered as aforesaid, be vacated and set aside. It is from this order, made and entered at the same term of court as the judgment aforesaid, that appellant has taken his appeal.

*Judson, Sharpstein & Sullivan,* for appellants.

Against the motion to dismiss the appeal, counsel cited Code Wash. T. § 446; Hayne on New Trial and Appeal, §§ 196, 199; *Stearns v. Marvin,* 3 Cal. 376; *Natoma Water Co. v. Carlin,* 14 Cal. 545; *Natoma Water Co. v. Parker,* 16 Cal. 84; *Livermore v. Campbell,* 52 Cal. 76; *James v. Center,* 53 Cal. 31; *Riddle v. Baker,* 13 Cal. 295, 301.

*Bramson & Parker,* and *Doolittle, Fritchard & Lehmen,* for appellee.

The district court has, at common law, full and complete power and authority, without the aid of any statute, to vacate, set aside or modify any judgment during the term at which the same is entered.

*Goddard v. Ordway,* 11 Otto, 745; *Doss v. Tyack,* 14 How. 297; *Bassett v. U. S.,* 9 Wall. 41; *Ex parte Lange,* 18 Wall. 163; *Day v. Wilbur,* 2 Caines, 258; *Brown v. Edgerton,* 16 N. W. 474; *Kelley v. High,* 1 S. E. Rep. 563; *Owen v. Going,* · P c. Rep. 229.

The ruling of the district court on a motion to vacate a judgment is not a final judgment. *Hancock v. Stewart,* 1 Wash. T. 523; *Jennings v. Bartels,* 2 Wash. T. 306; *Conway v. United States,* 2 Wash. T. 336; *Fisk v. Henarie,* 13

Pac. Rep. 760; *Kearney v. Snodgrass*, 7 Pac. Rep. 311; *Artman v. West Paint, etc., Co.*, 20 N. W. Rep. 873; *McCul'och v. Dodge*, 8 Kan. 476; *Kermeyer v. Kansas, etc., R. R. Co.*, 18 Kan. 215; *Rutherford v. Fisher*, 4 Dall. 22; *Young v. Grundy*, 6 Cranch, 51; *Clark v. Shelton*, Hemp. 207; *McCullum v. Eager*, 2 How. 61; *Lee v. Kelley*, 15 Pet. 213: *Buffington v. Harvey*, 5 Otto, 99; *Thomas v. Woo'ridge*, 23 Wall. 283; *Railroad Co. v. Swasey*, 23 Wall. 505; *Butterfield v. Usher*, 1 Otto, 246; *Bolton v. McKinley*, 22 Ill. 203; Freeman on Judgments, § 90.

"The action of the court in granting a motion to set aside a judgment is discretionary, and not to be reviewed in any appellate court." Freeman on Judgments (3d ed.), § 90; *Bolton v. McKinley*, 22 Ill. 203.

The opinion of the court was delivered by

ANDERS, C. J. — During the progress of the trial of this cause in the court below, judgment was rendered upon the pleadings in favor of appellants. Subsequently, and at the same term of the district court, the judgment was set aside and defendant permitted to file an amended answer.

From the order of the court below vacating said judgment, the plaintiffs appeal to this court.

Appellee moves to dismiss the appeal mainly on the ground that the order appealed from was not final and hence not appealable.

We are all agreed that the decided weight of authority is in favor of the claim of appellee herein. We think the law applicable to this case is clearly and satisfactorily stated in the case of *Brown v. Edgerton*, 14 Neb. 453 (16 N. W. Rep. 474), cited in the brief of appellee.

The order complained of was in no sense final, and is therefore not reviewable by this court.

The appeal is dismissed with costs.

HOYT, SCOTT and STILES, JJ., concur.

DUNBAR, J., not sitting.

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[No. 18. Decided January 22, 1890.]

IRA COGSWELL, W. E. WILSON AND THOMAS FORREST v. CHARLES H. HOGAN, JOHN NORTHOVER AND F. J. JOHNSON.

APPEAL — TIME — WAIVER.

The limitation as to time of appeal from the district to the supreme court cannot be waived by parties to a suit; and no such waiver, express or implied, will give the supreme court jurisdiction of a cause that is not appealed within the time prescribed by statute.

*Error to District Court, Pierce County.*

On the 21st day of March, 1888, final judgment was entered in favor of defendants in error, and it was not until the 3d day of June, 1889, that notice of appeal was served and filed in this cause, by plaintiffs in error.

*F. Campbell* and *John V. Evans* for plaintiffs in error.
*Parsons & Cadwell,* for defendants in error.

No appeal having been taken in the time allowed by law, consent of parties, or willingness of judge to hear, can not give the supreme court jurisdiction. *Stark v. Jenkins,* 1 Wash. T. 421; *Blinn v. Crosby,* 2 Wash. T. 109; Code Wash. T., §§ 458-461; Acts 1883, p. 59.

The opinion of the court was delivered by

HOYT, J. — The notice of appeal in this cause was not filed or served until long after the expiration of the time provided by statute in which an appeal can be taken. And the question presented by the motion to dismiss is as to whether or not an appeal thus taken can avail the parties thereto.

That the notice of appeal is the essential step in bringing a case to this court is not questioned, but it is claimed by counsel for plaintiff in error, that the limitation as to time of appeal can be waived by the parties, and that there has been such waiver in this case. It is not necessary for

us to decide as to said alleged waiver, as, in our opinion, it could not, if expressly made, give this court jurisdiction of a cause that was not brought here within the time prescribed by statute.

We agree with the conclusions of the supreme court of the territory as expressed by Justice GREENE in the case of *Stark v. Jenkins*, 1 Wash. T. 421, that the limitation of the time of appeal "is in the interest of the commonwealth, that there be an end of litigation, and is mandatory on the courts."

At the expiration of the time limited the cause of action is an adjudicated matter, and no consent of parties nor willingness of courts can recall a controversy thus wisely, by limitation of law, passed into the realm of ended suits. That such is the universal construction of such statutes is abundantly proved by the authorities. See *Fairchild v. Daten*, 38 Cal. 286; *Yturbide v. U. S.*, 22 How. 290. If this limitation was one that could be waived by the parties at all, then it could be waived at any time, and, if the parties should desire, this court would have to review causes in which final judgments had been rendered five, twenty-five, or one hundred years, and, as the legislature of course never intended this result, we must hold that it intended that there could be no extension of the limited time.

The motion filed in this cause is broader than it should be, but, in the view we have taken, this is immaterial.

The motion to dismiss the appeal must be granted, and it is so ordered.

ANDERS, C. J., and SCOTT, DUNBAR and STILES, JJ., concur.

[No. 565. Decided January 15, 1890.

CORAL H. DANFORTH v. J. WILSON PAXTON.

*Appeal from District Court, Pierce County.*

Appellant brought suit against appellee to secure cancellation of the record of a deed, wrongfully procured from the custody of a person holding same in escrow, and praying that the appellee be compelled to again place the deed in escrow. Appellee filed a demurrer, which was overruled, and a decree, prepared by appellee, was entered in favor of appellant. Thereafter, during the same term, appellant moved that the decree in his favor be set aside and vacated. This motion was denied, the court, however, modifying the language of the decree, of its own motion, and over the protest and objections of appellant. From the order denying said motion to vacate the decree, appellant brings this appeal.

*Lewis Cass Branson* and *W. H. Pritchard*, for appellant.
*John Arthur*, for appellee.

ANDERS, C. J. — For the reasons stated in the opinion of this court in the case of *Lilienthal v. Wright, ante*, p. 1, the appeal herein is dismissed.

SCOTT, STILES and HOYT, JJ., concur.
DUNBAR, J., not sitting.

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[No. 615. Decided January 22, 1890.]

SAMUEL J. BURNS v. JAMES J. CONNER.

JUDGMENT — REVIVAL — LIMITATIONS.

The proceeding prescribed by Code Wash. T., ch. 29, to revive the lien of a judgment, is not the commencement of an action; nor do the provisions of § 27 of the code, limiting to six years the time within which an action may be commenced upon a judgment or decree, apply to judgments rendered by the courts of this state.

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*Error to District Court, Skagit County.*

The facts are stated in the opinion.

*W. R. Andrews* (*Orange Jacobs*, of counsel), for plaintiff in error.

The section under which the proceeding is brought is practically a legislative adoption of the common-law writ of *scire facias*, the only material difference being, that at common law the execution could not be issued after the lapse of a year and a day. The proceeding is a continuance of the original action in order to revive the judgment, and is not a new action. 8 Bac. Abr. 589; 5 Wait's Act. and Def. 641 and 643; *Brown v. Hailey*, 2 Fla. 159; *Blackwell v. State*, 3 Ark. 320; *Hanley v. Adams*, 15 Ark. 232; *Watts v. Everett*, 47 Iowa, 271; *Tyler's Ex'rs v. Winslow*, 15 Ohio St. 364; Angell on Limitations, § 82 and notes; Freeman on Judgments, §§ 442–4; 2 Bouv. L. Dict. 499. The limitation does not apply to domestic judgments. *Murch v. Moore, supra; Tyler's Ex'rs v. Winslow, supra; Strong v. Barnhardt*, 5 Or. 499.

*G. M. Haller* and *Thomas Burke*, for defendant in error.

It is not material in this case whether § 27, Code Wash. T., includes domestic judgments; for if it does not, § 33 applies and bars the action after two years.

A reasonable construction would be to place domestic judgments, and those protected by § 1, art. IV, of the Federal Constitution, upon the same footing as to limitations. *Mason v. Cron'se*, 20 Cal. 217.

Every legal proceeding for the enforcement or protection of a private right is a civil action, under the code; and, at common law, the writ of *scire facias* was considered an action. Code Wash. T., § 21; *Humiston v. Smith*, 21 Cal. 130; *Cameron v. Young*, 6 How. Pr. 372; *Alden v.*

*Clark*, 11 How. Pr. 209; *Thurston v. King*, 1 Abb. Pr. 127; 2 Bouv. Dict., p. 499, and cases cited.

The statute applies to bar this motion whenever it has run against a new action upon the judgment. *Simpson v. Laselle*, 4 McLean, 352: *Lilly v. West*, 1 S. E. Rep. 834; 58 Vt. 564.

The opinion of the court was delivered by

ANDERS, C. J. — Plaintiff in error recovered judgment against the defendant in the court below, on the 4th day of December, 1878, for the sum of $611.42, together with interest and costs. No part of the judgment having been paid, in March, 1888, the plaintiff filed his motion in the court below, in pursuance of the provisions of chapter 29 of the Code of Washington, to revive said judgment and to continue the lien of the same, and for leave to issue execution.

To this motion the defendant interposed a demurrer, on the ground that the same did not state facts sufficient to constitute a cause of action, and because it appeared upon the face thereof that no judgment in said cause had been entered within six years before filing the motion.

From the judgment of the district court sustaining the demurrer the plaintiff appeals to this court, and assigns the decision of the court below as error.

We are of the opinion that the proceeding prescribed by statute to revive the lien of a judgment is not the commencement of an action, but only a mode by which to secure the fruits of an action already had and determined between the parties, and that § 27 of the code is not applicable thereto. 5 Wait's Actions and Defences, 641-643; *Murch v. Moore*, 2 Or. 189; *Tyler's Ex'rs v. Winslow*, 15 Ohio St. 364.

We are also of the opinion that § 27 of the code limiting to six years the time within which an action may be commenced upon a judgment or decree of any court of

the United States, or of any state or territory within the United States, when viewed in connection with chapter 29, does not apply to judgments rendered by the courts of this state or of the late territory.

The district court erred in sustaining the demurrer to plaintiff's motion. The judgment is therefore reversed, and the cause remanded to the court below with directions to overrule the demurrer.

HOYT, SCOTT, DUNBAR and STILES, JJ., concur.

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[No. 539. Decided January 22, 1890.]

## J. GARDNER KENYON v. WATSON C. SQUIRE.

REMOVAL OF CAUSES — FEDERAL QUESTION.

The question whether a patent from the United States conveys part of the sea-shore below ordinary high-water mark in front of the land conveyed by the patent, is a "federal question," authorizing the removal of the cause from the state to the United States court.

*Appeal from District Court, King County.*

*J. B. Howe*, for appellant.

*Struve, Haines & McMicken*, for appellee.

The opinion of the court was delivered by

STILES, J.—This was an application to transfer the cause to the United States circuit court for the district of Washington, for the alleged reason that it was a cause pending at the time when the Territory of Washington became the State of Washington, and whereof the circuit court of the United States might have had jurisdiction under the laws of the United States, at the time of the commencement of the action, had the circuit court then been in existence. Such a cause is required to be transferred, upon request, by § 23 of the enabling act.

Ordinarily, the time for a party plaintiff to elect whether he will commence his action in a state court, or in a federal court, is at the time of its commencement; and the time for a defendant to demand a removal of the action from the state to the federal court, is at the time of his appearance in the action. In such cases the complaint in the one case, determines whether or not the federal court has jurisdiction; and in the other case the proceedings at the time of the application for removal are the basis for the allowance or denial of the application.

Judging strictly in accordance with the rule stated, we doubt whether this cause would have been removed to the federal court on the application of the defendant below, had Washington been a state when the action was commenced, upon the proceedings as they appear in the record to have existed at the time when the application would have had to be made. Nor do we think that the complaint presented a state of facts which would have warranted the circuit court in taking jurisdiction, had the action been commenced in that court. But we have deemed it proper, under the circumstances, that we should go farther than courts would ordinarily be required to go, to determine the question of removal, since the enabling act seems to place parties in the position, with regard to choosing their forum, which they would have had, had the circuit court been in existence at the date of the commencement of the action, or of the appearance of the defendant therein. Therefore we have looked into the record in this case and find that one of the matters in dispute at the hearing, and one upon which much stress was laid, by one of the parties at least, was whether a patent of the United States, which conveyed land bordering upon an arm of the sea and which purported to convey a portion of the sea-shore below ordinary high-water mark, in front of the land included in the patent, actually conveyed to the patentee any title to the shore below high water-mark.

In our judgment the existence of this element in the controversy would have been sufficient to raise what is denominated a "federal question," and would have given the circuit court jurisdiction had the plaintiff shown it in his complaint, or had the defendant shown it in the proceedings to remove. It was not an element necessary to be shown by the plaintiff at the time he commenced his action, to establish a cause of action, nor was it necessary to be shown by the defendant to meet the allegations of the plaintiff, or to assert his own right. But it could have been shown by either party, and, being shown, the circuit court would have had jurisdiction.

The files, records and proceedings in the cause will be transferred to the United States circuit court for the district of Washington.

ANDERS, C. J., and SCOTT and HOYT, JJ., concur.

DUNBAR, J., not sitting.

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[No. 466. Decided January 22, 1890.]

J. GARDNER KENYON v. ROBERT KNIPE, *et al.*

*Appeal from District Court, King County.*

*J. B. Howe*, for appellant.

*C. H. Hanford*, and *Struve, Haines & McMicken*, for appellees.

STILES, J. — For the reasons assigned in the case of *Kenyon v. Squire, ante*, p. 9, the files, records and proceedings in this cause will be transferred to the United States circuit court for the district of Washington.

ANDERS, C. J., and SCOTT and HOYT, JJ., concur.

DUNBAR, J., not sitting.

[No. 540. Decided January 22, 1890.]

## J. GARDNER KENYON v. WATSON C. SQUIRE AND J. R. WILLIAMSON.

*Appeal from District Court, King County.*

*J. B. Howe*, for appellant.
*Struve, Haines & McMicken*, for appellees.

STILES, J.—For the reasons assigned in the case of *Kenyon v. Squire, ante*, p. 9, the files, records and proceedings in this cause will be transferred to the United States circuit court for the district of Washington.

ANDERS, C. J., and SCOTT and HOYT, JJ., concur.
DUNBAR, J., not sitting.

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[No. 592. Decided January 23, 1890.]

## THE TACOMA LUMBER AND MANUFACTURING COMPANY v. THE CITY OF TACOMA.

CONTRIBUTORY NEGLIGENCE — INSTRUCTIONS.

In an action for damages for the destruction of logs by fire, negligently set by defendant in opening a street, the fact that plaintiff had cut the logs, upon lands adjoining the street, in the month of February, and had left them upon the ground where cut, lying in the midst of thick brush and weeds, which extended to the limits of said street, until their destruction in August, does not constitute contributory negligence on the part of plaintiff.

Under such circumstances, an instruction by the court that it was a question for the jury to decide whether the negligence of plaintiff contributed to the loss, is erroneous.

*Error to District Court, Pierce County.*

The southern end of Pacific avenue, in the city of Tacoma, for a distance of about one-fourth of a mile, had

been opened as a narrow road through standing timber. The land adjoining was the property of the Tacoma Land Company, who gave appellant the privilege of cutting the timber thereon, and taking the logs. The trees had been cut by appellant about the month of February, 1887, and allowed to remain where they fell all summer. About the month of August, 1887, the city of Tacoma ordered said narrow road in Pacific avenue to be opened to a width of twenty-four feet, and cleared from stumps, logs and brush. In doing this fire escaped to the adjoining lands, and destroyed a part of appellant's logs.

On the trial of the cause the court, among other instructions, gave the following: "If you shall find that plaintiffs permitted their logs to remain an unreasonable time laying upon the ground surrounded by brush, grass and combustible material, and that his doing so amounts to negligence on the part of plaintiff, and that this directly contributed to the injuries sustained by plaintiff, then your verdict should be for defendant."

The appellant assigned as errors the giving of the instruction above, and the insufficiency of the evidence to justify the verdict in favor of defendant.

*Judson v. Sharpstein & Sullivan*, for plaintiff in error.

The doctrine of contributory negligence has no application to the facts proved in this case. *Kellogg v. Chicago, etc., Ry. Co.*, 26 Wis. 231, *et seq.; Weymire v. Wolfe*, 3 N. W. Rep. 541; *Wright v. Brown*, 4 Ind. 95 (58 Am. Dec. 622); *Austin v. New Jersey, etc., Co.*, 43 N. Y. 75; *Davis v. Mann*, 10 Mees. & W. 545; *Williams v. N. P. R. R. Co.*, 14 N. W. Rep. 97; *Cooper v. Central Railroad*, 44 Iowa, 134–8; *Spencer v. Illinois, etc., R. R. Co.*, 29 Iowa, 55; *McKean v. B. C. R. & N. Ry. Co.*, 7 N. W. Rep. 505; *Richmond, etc., Co., v. Anderson's Adm'rs*, 31 Gratt. 812; *Kerwhacker v. Cleveland, etc., Co.*, 3 Ohio St. 172–184; *Beems v. Chicago, etc., R. R. Co.*, 12 N. W. Rep.

222; *Toledo, etc., Ry. Co. v. Bray*, 57 Ill. 514; *Illinois, etc. R. R. Co. v. Wren*, 43 Ill. 77; *O'Brien v. McGlinchy*, 68 Me. 552; *Missouri Pacific Ry. Co. v. Weisen*, 65 Tex. 443; Shearm. & Red. Neg. (2d ed.) § 25; Whart. Neg. §§ 323, 324, 328, 335; 2 Thomp. Neg. pp. 1154, 1157.

*Thomas Carroll* and *W. H. Snell*, for defendant in error.

Owners of property contiguous to a street or railroad are equally chargeable with the company for want of care. *Stone v. Gardner*, 71 Am. Dec. 268; *Ohio, etc., R. R. Co. v. Shanefelt*, 47 Ill. 497 (S. C. 95 Am. Dec. 504); *Collins v. New York, etc., R. R. Co.*, 5 Hun, 499; *Murphy v. Chicago, etc., R. R. Co.*, 45 Wis. 222 (S. C. 32 Am. Rep. 721); *Fero v. Buffalo, etc., R. R. Co.*, 22 N. Y. 214.

Appellee had a right to build fires to open up the street. It was impossible to clear the land in any other way, and an action will not lie for doing a lawful act in a careful manner. *Fahn v. Richart*, 8 Wis. 255 (S. C. 76 Am. Dec. 237); *Radcliff v. Brooklyn*, 4 N. Y. 195; *Clark v. Foot*, 8 Johns. 421; *Stewart v. Hawley*, 22 Barb. 622.

The opinion of the court was delivered by

HOYT, J.—Plaintiff in error sued the defendant in error to recover the sum of seven hundred dollars as damages for burning of saw logs alleged to have been caused by the negligence of defendant in kindling fires, in the opening of Pacific avenue, a street in the city of Tacoma.

Issues were joined, trial had, and verdict and judgment for defendant.

The court instructed the jury upon the subject of contributory negligence by plaintiff, and the only question presented by the record and argued here is as to the propriety of such instructions.

The only evidence upon that subject was to the effect that plaintiff had cut the logs in question upon lands adjoining said street in the month of February, and had left

them on the ground where cut until they were destroyed in August following; that the logs were in the midst of thick brush and weeds, which extended to the limits of the street in question.

Did this testimony *tend* to show such negligence on the part of the plaintiff as could be held to have contributed to the destruction of said logs by the fire set by the defendant in the opening of said street?

If it did, the action of the court below was correct, as it is the province of the jury to pass upon the sufficiency of the evidence; but if it did not, then the action of such court was wrong, as it is error to submit to a jury an issue in regard to which no evidence has been introduced.

We are of the opinion that the latter proposition is true, and that the testimony did not, in the least degree, show such negligence on the part of the plaintiff, as, under the law, could be held to have contributed to the loss.

In fact, it seems to us that the plaintiff was guilty of no negligence whatever, as we think he had a perfect right to cut the logs and leave them upon the premises as he did, and was entitled, at any and all times, to have them protected from the wrongful, or negligent, acts of any and all persons.

In this view of the undisputed evidence in the case, it follows that there was no question of the negligence of the plaintiff having contributed to the loss for the jury to decide, and that the giving of the instruction complained of was error, for which the judgment must be reversed, and the cause remanded for a new trial; and it is so ordered.

ANDERS, C. J., and DUNBAR, SCOTT, and STILES, JJ., concur.

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[No. 593. Decided January 23, 1890.]

## GEORGE LEWIS GOWER v. LILLIAN NORTON GOWER.

JUDGMENT — VACATING — APPEALABLE ORDER.

Under § 109, Code Wash. T., an order of the district court vacating a judgment within five months subsequent to the adjournment of the term when rendered, is not subject to review in the supreme court, and therefore not appealable.

*Appeal from District Court, Pierce County.*

Action by appellee in the district court, holding terms at Tacoma, to recover certain real estate. On the 20th day May, 1888, the case came on regularly for trial before the judge at his chambers. No proof to sustain the allegations of the complaint was offered, and the court made its findings and decree in favor of appellant. On the 6th day of October, 1888, appellee filed a petition and motion to set aside the findings and decree and to reopen the case, filing affidavits therewith. The judge, after hearing on the petition, made an order on November 3, 1888, granting the prayer of the petition. To reverse the decision of the court in granting said petition, this appeal has been taken.

*C. H. Hanford*, for appellant.

The order vacating the judgment, being the conclusion of a special proceeding, is a final decision, and is reviewable in this court. Code Wash. T., §§ 445, 446; *Dryden v. Wyllis*, 51 Iowa, 534.

*Campbell & Powell, Carroll & Coiner*, and *Mitchell, Ashton & Chapman*, for appellee.

The action of the court in granting a motion to set aside a judgment is discretionary, and not to be reviewed in any appellate court. Code Wash. T., §§ 109, 436; *Whitesides v. Logan*, 17 Pac. Rep. 34; *Bolton v. McKinley*, 22 Ill. 203; *Breden v. Gilliland* 67 Pa. St. 36; *Kelty v. High*, 1 S. E. Rep. 561; *Francis v. Cox*, 33 Cal. 323.

The order of the district court allowing a trial of this cause upon its merits is not a final decision within the meaning of the organic act, authorizing appeal to the supreme court. Rev. Stat. U. S. § 1869; *McCormick v. Walla Walla, etc., R. R. Co.*, 1 Wash. T. 512; *N. P. R. R. Co. v. Wells, Fargo & Co.*, 2 Wash. T. 303.

The opinion of the court was delivered by

ANDERS, C. J. — The court below rendered an affirmative decree in this cause in favor of appellant, the defendant therein.

After the term of the district court at which said decree was entered, but within five months subsequent to its adjournment, the plaintiff (appellee herein) applied to the court, in the usual manner, to vacate said decree, which was accordingly done. From this order of the district court defendant appeals.

Appellee moves to dismiss the appeal for the reason that the order appealed from was not a final judgment or decision, and, therefore, not reviewable in this court.

In the case of *Lilienthal v. Wright*, recently decided by this court, *ante*, p. 1, we held that an order of the district court vacating a judgment at the same term at which it was rendered, was not subject to review in this court. And as we are of the opinion that § 109 of the code extends the time during which the court or judge may grant relief from the effects of judgments, for the period of five months after the adjournment of the term when rendered, the motion must be governed by that opinion and decided accordingly.

It follows, therefore, that the motion must be sustained and the appeal dismissed; and it is so ordered.

STILES, HOYT, DUNBAR and SCOTT, JJ., concur.

[No. 595. Decided January 24, 1890.]

HENRY MAHNCKE, CHARLES MUEHLENBRUCH, E. G. BACON, ISAAC EDWARDS AND A. MCMILLAN v. THE CITY OF TACOMA AND L. E. SAMPSON, *as Treasurer*.

APPEAL — REFUSING TEMPORARY INJUNCTION — VOLUNTARY DISMISSAL.

An order refusing a temporary injunction is not a final decision under the organic act (Rev. Stat. U. S. § 1869), and no appeal can be taken therefrom.

A judgment summarily dismissing a suit, when the complaint states a cause of action, is appealable; but when the order dismissing the action is made at appellant's request, it is a voluntary dismissal and no appeal can be taken therefrom.

*Appeal from District Court, Pierce County.*

The facts sufficiently appear in the opinion.

*Town & Likens*, for appellants.

If the order denies the motion for injunction and dismisses the bill or action, it is appealable. High on Injunctions, § 1795 (2d ed.); *Oberskotler v. Leubbering*, 4 Mo. App. 481; *Lieus v. Mabee*, 25 Ill. 247; *Shaw v. Hill*, 67 Ill. 455; *Weaver v. Poyer*, 70 Ill. 567; *Prout v. Lomer*, 79 Ill. 331.

*Thomas Carroll*, for appellees.

The granting or refusing to grant a temporary injunction or restraining order is a matter resting in the sound discretion of the court, and will not be interfered with, and from which an appeal will not lie. *People v. Schoomaker*, 50 N. Y. 500; *Paul v. Munger*, 47 N. Y. 469; *Pleasants v. Vevay*, 42 Ind. 391; High on Injunctions (2d ed.), §§ 1696 to 1708, and notes.

Section 446 of the Code Wash. T., in so far as it allows appeals from an order granting or refusing a temporary injunction, is contrary to the organic act (§ 1869, Rev. Stat. U. S.) *McCormick v. Walla Walla, etc., R. R.*

*Co.*, 1 Wash T. 512; *N. P. R. R. Co. v. Wells, Fargo & Co.*, 2 Wash. T. 303.

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The opinion of the court was delivered by

SCOTT, J. — The appeal in this case is from an order refusing appellants a temporary injunction, and also dismissing the action. Appellees moved to dismiss on the ground that no appeal lies from such an order.

Under the organic act no appeal could have been taken from an order refusing a temporary injunction, as the same is not a final decision. And had the order stopped with refusing the injunction the appeal would not lie. This goes further, however, and purports to summarily dismiss the suit. The complaint states a cause of action, and, from the bare record, this part of the order is unaccountable, and manifestly erroneous. Were the record unaided in any way, the case would have to be reversed on that ground; but counsel for appellants advisedly states to the court in his argument here, that the order dismissing the action was made at appellants' request.

This being admitted by appellants, we think they are bound by it in this court, and that we would not be justified in viewing the case in any other light; and, as it was a voluntary dismissal, no appeal could be taken therefrom.

The motion to dismiss is therefore granted with costs.

ANDERS, C. J., and DUNBAR, HOYT and STILES, JJ., concur.

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[No. 21. Decided January 24, 1890.]

## J. WILSON PAXTON v. ARTHUR DANIELL.

PROCESS — SERVICE BY PUBLICATION — JURISDICTION OVER NON-RESIDENTS.

A judgment rendered against a non-resident defendant, no property of the defendant having been brought under the control of the court, without personal service upon him, or his voluntary appearance, is void.

A special appearance by a non-resident defendant, for the purpose of making a motion to set aside the judgment and default entered against him, does not waive any jurisdictional rights.

*Appeal from District Court, Pierce County.*

Action by appellee on promissory note against Joseph E. Shaw, and appellant herein as guarantor. December 18, 1888, appellee filed with the clerk of the district court his affidavit that appellant had departed from Washington Territory, and could not be found therein. Summons was duly issued and published, and thereafter a default was entered against appellant, and judgment thereon was filed upon the 9th day of March, 1889. On the 12th day of March, 1889, appellant made, through his attorneys, a special appearance, and moved the court to set aside the judgment against him, for the reason that he had never been served with process, and that said default and judgment were rendered against him contrary to law. Said motion was conditionally allowed by the court, the condition being that defendant Paxton answer upon the merits of said case within ten days, to which defendant excepted, and now brings this appeal.

*Carroll, Coiner & Davis*, for appellant.

Jurisdiction of the person of the defendant can only be obtained in a civil action by service of process on his person within the district where the suit is instituted, and process from the tribunals of one state cannot run into another state and summon a party to respond to proceedings against him in such tribunals. There can be no jurisdiction in a court of a territory to render a personal judgment against any one upon service made outside its limits. *Chaffee v. Hayward*, 20 How. U. S. 208; *Toland v. Sprague*, 12 Pet. U. S. 200; *Pennoyer v. Neff*, 95 U. S. 714; *Harkness v. Hyde*, 98 U. S. 476.

*R. F. Hensill*, for appellee.

The courts of a state will give effect to the service made as directed by its statutes. The service by publication, as in the present instance, is valid. *Hart v. Sansom*, 110 U. S. 555; *Kennedy v. New York Life Ins. Co.*, 101 N. Y. 487; *McCauley v. Fulton*, 44 Cal. 360; *Eitel v. Foster*, 39 Cal. 441; *Barbaries v. Gregory*, 64 Cal. 231; *Emeric v. Alvarado*, 64 Cal. 530; *Mutual Life Ins. Co. v. Pinner*, 10 Atl. Rep. 184; *Palmer v. McCormick*, 30 Fed. Rep. 15.

The opinion of the court was delivered by

DUNBAR, J. — In this case the essential question to be considered, and the one on which the case hinges, is the validity of a judgment rendered against a non-resident defendant, by the publication of a summons where no property of the defendant is brought under the control of the court.

It is not shown by the record in this case that any attachment had been served upon the property of the defendant or had been issued in the case. In fact, it is admitted by the argument that no property has been brought under the control of the court.

Statutes providing the mode for acquiring jurisdiction of a defendant by publication of a summons, being in derogation of the common law, must be strictly followed in any case in order to give the court jurisdiction over the person of the defendant. And we are of the opinion that the law is well settled that such statutes are not effective excepting where the action is for the purpose of affecting the *status* of the defendant; and that the tribunals of a state have no authority to adjudicate upon the obligations of non-residents where they have no property within its limits; and that a judgment rendered against non-residents, without personal service of process upon them, or their voluntary appearance, where the suit is merely *in personam*, is

void. *Pennoyer v. Neff*, 95 U. S. 714; *Harkness v. Hyde* 98 U. S. 476; 3 Estee Pl. 9.

The case at bar seems to us, as far as the record discloses, to fall within this rule. We do not think that the appearance made by the defendant in the court below was such an appearance as would waive any jurisdictional rights, and that it must be held to be a special appearance for the purpose of making a motion that he was entitled under the law to make. It therefore follows that the judgment of the court below must be reversed, and this cause is remanded to the court below for action in accordance with this decision.

ANDERS, C. J., and STILES, SCOTT and HOYT, JJ., concur.

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[No. 597. Decided January 28, 1890.]

## C. C. TRIPP v. DAVID MAGNUS.

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APPEAL — FINAL ORDER — SUSTAINING DEMURRER.

No appeal can be taken from an order of the district court sustaining a demurrer to a complaint, as such order is not a final decision within contemplation of § 1869, Rev. Stat. U. S., of the organic act of Washington Territory.

*Error to District Court, Pierce County.*

Action by C. C. Tripp against David Magnus upon an open account of goods sold; demurrer by defendant alleging that the complaint did not state facts sufficient to constitute a cause of action. Plaintiff appealed "from the order, decision and judgment" of the district court sustaining said demurrer.

*Mitchell, Ashton & Chapman*, for plaintiff in error.

*Judson, Sharpstein & Sullivan*, for defendant in error.

An order overruling or sustaining a demurrer is not a final order, and no appeal can therefore be taken from it.

*Moulton v. Ellmaker*, 30 Cal. 527; *Hibberd v. Smith*, 39 Cal. 145; *Ashley v. Olmstead*, 54 Cal. 616.

The opinion of the court was delivered by

DUNBAR, J. — In this case, the motion of the defendant in error to dismiss this appeal, as shown by his brief, is based on but two grounds: (1) Because no notice of the appeal from the judgment rendered in said cause had ever been given in open court, or filed and served on defendant in error or his counsel; and (2) because no assignment of errors has been filed or served upon defendant in error or his counsel within the time required by rule five of this court. And the question whether or not the judgment or order appealed from was not such a final decision as, under the organic act, could be appealed from, was not directly raised in the motion.

But from the arguments in the briefs and the oral arguments of the counsel on both sides, it appears that this was the main question at issue; and, from such arguments and from what the court can gather from the transcript, this is the main question before this court; and thus considering it, this court, especially in view of the uniform decisions of this court during its territorial existence, will hold that this case does not fall within the provisions of § 1869 of the Revised Statutes of the United States; and that the order of the court in sustaining the demurrer is not such a final decision as is contemplated by the statute, and from which an appeal can be taken to this court.

The motion to dismiss this appeal is sustained, with costs of this court.

ANDERS, C. J., and HOYT, SCOTT and STILES, JJ., concur.

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[No. 589. Decided January 28, 1890.]

## THOMAS CLINE, HENRY CLINE AND MOSES CLINE v. JOHN MITCHELL.

APPEAL — PARTIES — PRACTICE.

On an appeal from a justice of the peace to the district court, the sureties on the appeal bond, by signing the bond, submit to the jurisdiction of the court, and are concluded by its judgment, under the provisions of § 1867, Code Wash. T.

In such case, the sureties, being proper parties to the judgment in the district court, should be made parties to the writ of error in the supreme court, or, if they do not desire to become plaintiffs in error, notice should be served upon them in accordance with § 454, Code Wash. T., and proof thereof filed with the clerk of the supreme court.

*Error to District Court, King County.*

The facts are stated in the opinion.

*P. P. Carroll*, for plaintiffs in error.

*Ronald & Piles*, for defendant in error.

All parties to the judgment should have joined in the so-called writ of error. § 454, Code Wash. T.; *Owing v. Kincannon*, 7 Pet. 402: *Simpson v. Greeley*, 20 Wall. 152; *Wilson v. Ins. Co.*, 12 Pet. 140; *Williams v. Bank of U. S.*, 11 Wheat. 414; *Todd v. Daniels*, 16 Pet. 521; *Mussina v. Cavogos*, 20 How. 280; *Sheldon v. Clifton*, 23 How. 481; *Smyth v. Strader*, 12 How. 327; *Masterson v. Herndon*, 10 Wall. 417: *Feibleman v. Packard*, 108 U. S. 14; *Basket v. Hassell*, 107 U. S. 602; *O'Dowd v. Russell*, 14 Wall. 404.

The sureties being properly parties to this judgment, are, therefore, necessarily parties to this pretended writ of error. § 1867, Code Wash. T.; *Moore v. Kepner*, 7 Neb. 291; *Lininger v. Raymond*, 2 N. W. Rep. 359; *Fitzgerald v. Wellington*, 15 Pac. Rep. 582; *Graeler v. De Wolf*, 13 N. E. Rep. 111; *The Belgenland*, 108 U. S. 153.

The opinion of the court was delivered by

ANDERS, C. J. — On the 20th day of April, 1887, defendant in error sued plaintiffs in error, in a justice court in Kitsap county, for the recovery of $299 and costs.

A change of venue was had to another justice, and on May 3d, 1887, judgment was rendered in favor of defendant in error for $295 and costs, from which judgment plaintiffs in error appealed to the district court holding terms at Seattle.

On taking said appeal, plaintiffs in error filed an appeal bond, with sureties, as required by law. The district court, on the trial of the cause, rendered judgment against the defendants therein and their sureties, in pursuance of the provisions of § 1867 of the Code of Washington. From this judgment plaintiffs in error sued out a writ of error, and ask to have said judgment reversed for the reasons: First, that the district court was without jurisdiction to try the cause; second, that the judgment against the sureties is null and void, and the statute authorizing the same is unconstitutional; and, third, that the complaint does not state facts sufficient to constitute a cause of action, and that it was error to render judgment thereon.

Defendant in error moves to dismiss the writ of error for the reason, among others, that all the parties to the judgment in the district court have not joined in, nor been made parties to, this writ of error.

We are all agreed that the judgment of the court below was properly rendered against the sureties on the appeal bond, and that the claim of counsel for plaintiffs in error, that the sureties were not brought into court by proper notice or otherwise, is untenable. By signing the bond they submitted to the jurisdiction of the court, and are concluded. The law then in force was a part of their contract as sureties, and they must abide by it in all its requirements. The sureties being proper to the judgment

appealed from they should be parties here, or, if they did not desire to become plaintiffs in error, notice should have been served upon them by plaintiffs in error, and proof thereof filed with the clerk of this court in accordance with the provisions of § 454 of the code, and it therefore follows that the writ of error should be dismissed.

HOYT, DUNBAR, SCOTT and STILES, JJ., concur.

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[No. 596.—Decided January 28, 1890.]

## MARY J. McMILLAN v. OTHELIA MAU AND HERMAN J. SADDLER.

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HOMESTEAD — JUDGMENT LIEN — NOTICE OF APPEAL.

Notice of appeal given in open court within the time allowed by law, but at a term of court subsequent to the term when judgment was rendered, is sufficient, though appellees were not present, nor had notice been served on them to appear.

Under the laws relating to the selection of homesteads (Code Wash. T., § 1460; Acts 1885-6, p. 170), the obtaining of a general judgment lien does not cut off the subsequent selection of a homestead, at any time before sale to satisfy the judgment.

*Appeal from District Court, Pierce County.*

The facts are fully stated in the opinion.

*Judson, Sharpstein & Sullivan,* for appellant.

Where the deceased was at the time of his death residing with his family on the premises, the probate court had no discretion but to set aside the homestead. Code Wash. T., §§ 1460-1; Acts 1883, p. 44; Acts 1885-6, p. 170-1; *In re Estate of James Ballentine,* 45 Cal. 696; *In re Estate of Bridget Davis,* 69 Cal. 458; *In re Estate of H. S. Burton,* 63 Cal. 36; *In re Estate of W. H. Moore,* 57 Cal. 437.

Upon an application to set aside a homestead, the probate court has no jurisdiction to determine the title, or whether

or not any liens exist; the only question the court can determine is as to the value of the property sought to be set aside as a homestead. *In re Estate of James*, 23 Cal. 415; *Rich v. Tubbs*, 41 Cal. 34; *In re Estate of Tompkins*, 12 Cal. 114.

The homestead is to be set apart in pursuance of the statute in force at the time when the order is made, and the interest therein which the widow will take is to be determined by the same statute. *Sulzberger v. Sulzberger*, 35 Cal. 385.

Not only is the judgment debtor entitled to a homestead after judgment, but he may select it even after levy and before sale. Code Wash. T., § 342; *Close v. Sinclair*, 38 Ohio St. 530; *Tomlinson v. Swinney*, 22 Ark. 400; *Nevada Bank of San Francisco v. Treadway*, 17 Fed. Rep. 887; *Hawthorne v. Smith*, 3 Nev. 182.

The homestead law should be liberally construed in favor of the debtor; it is not in derogation of the common law, while the law allowing creditors to sell a debtor's land is. 3 Black Com. 418; *Riggs v. Sterling*, 60 Mich. 643 (27 N. W. Rep. 705).

*G. M. Haller*, *C. D. Young* and *Andrew Woods*, for appellees.

As to service of notice of intention to appeal, counsel cited Code Wash. T., §§ 746, 72, 2140; *Melville v. Chehalis County*, 13 Pac. Rep. 904; *Parker v. D'Acres*, 13 Pac. Rep. 903.

Had James McMillan any right of homestead in this property, as against the attaching creditors? His only claim rests upon § 342 of the code, but the land is only "exempt from attachment, which is occupied by him as a homestead." It must, therefore, be occupied in fact as a home at the time of the attachment or it is not exempt. It is conceded that if at the time of the attachment it was not so occupied, the attachment lien became impressed upon

the property and held it for the satisfaction of the judgment afterwards recovered. (Code, § 174.) Nothing that the defendant could do would divest the lien or destroy or impair the security. 1 Wade, Attachment, § 211; Waples, Attachment, p. 166; Thomp. Homestead Ex. §§ 317, 318, 648-650, 654; Freeman, Executions, § 249; *Tuttle v. Howe*, 14 Minn. 147; McCauley's Estate, 50 Cal. 544; *Kelly v. Dill*, 23 Minn. 435; *Hannah v. Felt*, 15 Iowa, 141; *Ryan v. Wessels*, 15 Iowa, 145; *Bullene v. Hiatt*, 12 Kan. 98; *Brooks v. Chatham*, 57 Tex. 31; *Baird v. Trice*, 51 Tex. 559; 44 Tex. 286 and 598; 46 Tex. 478; 14 Iowa, 438; 14 Ind. 523; 16 Ind. 457; 18 Ind. 580; 20 Ind. 510; 23 Ind. 208; 27 Ill. 393.

The opinion of the court was delivered by

Scott, J. — Appellees move to dismiss the appeal herein for various reasons. The only one that seems to need consideration is as to whether the notice of an appeal was sufficient.

It appears that the notice was given in open court within the time allowed by law, but at a subsequent term of the court. It does not appear that appellees were present, and they contend that notice should have been served upon them to appear, as the appeal notice was not given at the term of court when judgment was rendered. We do not think the point well taken, and hold that the notice was sufficient under the law. The motion is therefore denied.

This case comes here upon an agreed statement of facts.

Appellant is the widow of James McMillan, who at the time of his death owned certain lands in Pierce county. He left several minor children. While his estate was being administered upon in the probate court, appellant petitioned said court to set aside a homestead under § 1460 of the code, as subsequently amended in the laws of 1885-6, at page 170.

It appears that appellees obtained a judgment against

James McMillan and filed a transcript thereof in the auditor's office, and that the same became a lien, generally, upon his real estate under § 321 of the code; that after said lien attached said James McMillan, with his family, moved upon the land which appellant petitioned the probate court to set aside as such homestead; that the family has since continued to reside thereon; and that no claim of a homestead had been made prior to the filing of said petition.

Appellees filed objections to the allowance of such homestead, setting up their judgment lien, and maintaining that as the lien was obtained before McMillan moved upon the land, or took any step to claim the same as a homestead, that the lien takes precedence of appellant's claim. The probate court sustained this view, and refused to set the same aside. An appeal was taken to the district court, where the decision of the probate court was sustained, and an appeal was then taken to this court.

We think that under the laws relating to the selection of homesteads, the action of the probate and district courts was erroneous; that the obtaining of a general judgment lien does not cut off the subsequent selection of a homestead at any time before sale.

Therefore the judgment is reversed, and the cause remanded for further proceedings in accordance with this opinion.

ANDERS, C. J., and HOYT, STILES and DUNBAR, JJ., concur.

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[No. 577. Decided January 29, 1890.]

## W. P. SAYWARD v. JOHN E. CARLSON.

PERSONAL INJURIES — CONTRIBUTORY NEGLIGENCE — FELLOW-SERVANT — VARIANCE — WAIVER OF OBJECTIONS TO JURISDICTION — PRACTICE.

Where judgment by default has been entered against a non-resident defendant, on service by publication and attachment of his

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property, defendant's objections to the jurisdiction of the court, taken before entry of the default, are waived by his motion to open the default, which was not upon a special appearance, and by the subsequent filing of his answer.

In an action by a servant for injuries received through the negligence of his master, where the complaint alleges that the defendant left his work to go to the water-closet, and was injured while on the way there, and the proof shows that he was on his way to his work in the morning, but had not yet commenced to work, there is no material variance.

The evidence showed that plaintiff was employed in defendant's sawmill, and had been assigned to begin work at 8 o'clock, on an upper floor; that he arrived early, and went into the engine room across the open space from the mill to talk with the fireman, whence he afterwards went across the yard and alongside the mill, to the water-closet, being injured on the way by a timber thrown from a window of the mill. If he had gone directly to the room in which he was to work, and thence by the usual way to the closet, he would not have been injured. There was no rule prohibiting the men from going into the mill by the route adopted by plaintiff, nor requiring them to reach the second story by the front stairs. *Held*, that plaintiff was not guilty of contributory negligence.

Where the gist of the complaint is that the master has injured the servant, and the proof shows that plaintiff's injury was caused by the negligence of a fellow-servant, defendant may move for nonsuit, without having pleaded any other defense than the general denial.

A person employed as head carpenter in a saw-mill, to make repairs around the building and on vessels used in connection with the mill business, is the fellow-servant of a sawyer employed in the same mill.

*Error to District Court, King County.*

The facts are fully stated in the opinion.

*J. R. Lewis*, *B. F. Dennison*, and *W. Lair Hill*, for plaintiff in error.

The court had no jurisdiction of the defendant on the case made; defendant's appearance to the action afterward did not waive his right to question the jurisdiction in this court. *Harkness v. Hyde*, 98 U. S. 478-9; *Yesler v. Oglesbee*, 1 Wash. T. 605; *Bentz v. Eubanks*, 4 Pac. Rep. 271;

*Pennoyer v. Neff*, 95 U. S. 714; *Wald v. Wilson*, 2 Wash. T. 376.

The motion for nonsuit should have been granted. Carlson, Beaton, Hall and Boyd were fellow-servants. Cooley on Torts, p. 532–5, and notes; Whart. Neg. 229; Shearm. & Red. Neg. 100; 2 Thomp. Neg. 1026, 1028, 1034; *Buckley v. Gould, etc., Co.*, 14 Fed. Rep. 841; *Foster v. Minn., etc., Ry. Co.*, 14 Minn. 277; *L. V. Coal Co. v. Jones*, 86 Pa. St. 432 (2 Am. State Rep. 631); *Wright v. N. Y. C. R. R. Co.*, 25 N. Y. 564; *Kelley v. Belcher M. Co.* 3 Sawyer, 564–5; *Quincy Mining Co. v. Kitts*, 3 N. W. Rep. 240; *Brown v. Winona, etc., Ry. Co.*, 38 Am. Rep. 285-8; *Blake v. Maine, etc., Co.*, 70 Me. 60; *McAndrews v. Burns*, 39 N. J. 117; *Dillon v. U. P. R. R. Co.*, 3 Dill C. C. 332; *Holden v. Fitchburg R. R.*, 129 Mass. 268; *Albro v. Agawam Canal Co.*, 6 Cush. 75; *Armour v. Haker*, 111 U. S. 313; *Randell v. B. & O. R. R. Co.*, 109 U. S. 478; *Umbank v. Lake Shore R. R. Co.*, 83 Ind. 191; *Willis v. O. R. & N. Co.*, 11 Or. 157; 2 Am. and Eng. Cy. Law, 30, and note.

The English common law is the rule in this territory, so made by statute, Code Wash. T., § 1, and the English rule as declared in *Priestly v. Fowler*, 3 Mees. & W. 1, remains to-day the common-law rule in that country. Whart. Neg. § 230; Big. Torts, 688; 14 Fed. Rep. 841, note, citing L. R. 1 H. L. App. 326.

No actionable negligence was proved. Negligence must be affirmatively proved. Deering on Neg. 405, and cases; *Brown v. C. & B. St. Ry. Co.*, 49 Mich. 153; *Allen v. Willard*, 57 Pa. St. 374; *Lansing v. Stone*, 14 Abb. Pr. 199.

At the time of the accident, the plaintiff was not in the line of his duty. He was voluntarily and needlessly in a place of special danger. He was there for his own amusement and at his own risk. *Severy v. Nickerson*, 120 Mass. 306; *Wright v. Rawson*, 52 Iowa, 329; *Brown v. Byroads*,

47 Ind. 435; 92 Pa. St. 281; 28 Mich. 457; 111 Ill. 203; 45 Iowa, 546.

The plaintiff's voluntary act in going to the furnace room rendered the accident possible. His want of care and circumspection, in leaving the furnace room and taking the course he did, was the proximate cause of the injury. The defense may well rest on the sole ground of *contributory negligence.* 111 Pa. St. 9.

*N. Soderberg* (*J. L. Murphey*, of counsel), for defendant in error.

Defendant (being a non-resident) moved to open the default entered against him without limitation or reservation, and thus submitted himself to the jurisdiction of the court. No default can be opened by special appearance. If a party so far appears as to call into action the powers of the court for any purpose, except to decide on its own jurisdiction, it is a general appearance. *Clark v. Blackwell*, 7 Greene (Iowa), 722; *Whiting v. Bodd*, 5 Mo. 443.

There is no common service where one servant is employed in a separate and disconnected branch of the business from that in which the other is engaged. Deering, Neg. § 204; 39 N. J. L. 117; 78 Pa. St. 25.

The rule exempting the master from liability for negligence of his servants causing injury to other servants, only applies where there is a common business, so that the injured servant has an opportunity to exercise preventive care over his fellow-servants' negligence. And it does not apply so as to relieve a master from liability where a servant injured by the gross negligence of a co-servant. Deering, Neg. § 202; *Louisville R. R. Co. v. Robinson*, 4 Bush (Ky.), 507; *Chicago, etc., Co. v. Ross*, 112 U. S. 377; *Rolling Mill Co. v. Johnson*, 114 Ill. 57; *N. P. R. R. Co. v. Herbert*, 116 U. S. 642.

The opinion of the court was delivered by

STILES, J.—On the 29th day of March, 1885, the defendant in the court below was the proprietor of the Port Madison Mill, at Port Madison, Kitsap county. At the mill he carried on the business of manufacturing lumber, rough and dressed, and thence by means of schooners which he owned, he shipped the lumber to various ports of the Pacific ocean for market.

The mill premises consisted of an enclosed yard containing one or two acres, with gates for the entrance and exit of employés, as the business required. Inside of the yard, and occupying one side of it, was the mill proper, which was a two-story structure sixty or seventy feet in width and some three hundred feet long. In the second story were the saws and principal mill apparatus, the engines and planing machinery being on the floor below. The boiler house and carpenter shop were across an open area from the mill, distant fifty or sixty feet, but within the yard. Adjacent to the mill was a wharf, upon which lumber from the mill was run, and thence loaded into the vessels as they required cargoes.

At the date named, defendant, who himself resided at Victoria, B. C., had one Meigs employed at the Port Madison Mills as his general superintendent and manager. Meigs' authority was very full, so that some of the men who had worked in the mill for years supposed him to be the proprietor. But all hands were paid their wages by defendant's checks, signed by Meigs, "Agent."

Under Meigs, and next in authority, was one Bucklin, who was general foreman over all the work there carried on, and from whom the men in the mill, engine room, boiler room and log chute, and on the wharf, took their general orders; each gang of men, however, as a rule, having a subforeman, who was a laborer himself, and directed the work of those with him. At the date named there were about

seventy-five men employed in and about the mill premises, in connection with the business of the defendant there carried on. Some had regular employment, in certain positions, as the engineer, the fireman, the head carpenter, the head sawyer, and perhaps some of the men in other places; while others had no regular employment, but were shifted from one place to another as occasion required their services. The plaintiff below, Carlson, was one of the last named class, and had been employed in the mill since December 8, 1883. During that time he had been tallyman on the wharf, trimmer, scantling sawyer, gang sawyer, hook tender, and tallyman in the mill. On Saturday, March 27th, he had been acting as tallyman in the mill, and at the close of work on that day was assigned by Bucklin to the scantling saw for the next Monday.

One Beaton was the head carpenter of the establishment, whose duty it was to attend to such carpentering as needed to be done about the premises, either alone or with such assistance as he required. Beaton had been for some time engaged in repairing the schooner Vidette, one of the defendant's vessels, which lay at or near the mill, and had occasion to use some ship's knees in connection therewith. There were ship's-knee timbers lying in the water at the mill, and on Saturday the log hauler for the mill drew up some of the timbers into the mill preparatory to being dressed by Beaton at the carpenter shop. The sawing of these timbers required peculiar handling, and Beaton, Bucklin, and some others, did the work at the mill-saw on Saturday after the regular work was over, leaving the sawed knees lying on the floor to be removed by Beaton. At that time the mill was running on three-quarter time, work commencing at eight o'clock in the morning. Carlson's time to begin work was, therefore, eight o'clock; but Beaton was working on full time, commencing at seven o'clock.

Between seven and eight o'clock on Monday morning,

Beaton and two other men, who were in general employ similar to Carlson's, but who at that time were detailed to assist the former, went into the mill to remove the ship's knees sawed the previous Saturday to the carpenter shop.

There were a number of the knees, which were triangular timbers, weighing one or two hundred pounds each. There were means by which the knees could have been taken from the mill to the carpenter shop without any danger of injury to any person; but this would have involved carrying each one part of the length of the mill to the front end, down a stairway, and thence back the length of the mill to the shop.

A much nearer way was to take them to a window of a small room built out at the side of the mill, at the rear, and throw them to the ground, some 15 feet. The latter plan was adopted. Beaton recognized the fact that some person might be passing under the window, and might be injured by a falling knee; therefore, he directed the men who were about to throw out the first knee to call out warning to any one thus passing. His men looked out and called the warning and then dropped the knee. The plaintiff, Carlson, at that moment was passing under the projecting room where he could not see the window, nor the men see him, and he did not hear the warning; so, as he emerged from the overhanging room, he was struck by the falling knee and severely injured. This action was brought against the proprietor of the mill, Sayward, to recover damages for the injury, on the ground that it was the negligence of the defendant's servant, in throwing the knee from the window, that caused it.

The material allegations of the complaint here involved were as follows:

"That at all the times hereinafter mentioned plaintiff was employed by defendant as a workman in said saw-mill in the capacity of tallyman.

"That on the 29th day of March, A. D. 1885, the plain-

tiff, then being in the employ of defendant in the capacity of tallyman as aforesaid in said same saw-mill, having a necessity to go to the water-closet situate under saw-mill, left his work and went toward said water-closet by the way usually traveled by himself and other workmen employed by defendant in said saw-mill.

"That in going from his work to said water-closet by the way aforesaid, the plaintiff was compelled to pass directly under the fire-room of said saw-mill, and, while passing under said window, certain workmen employed by the defendant as carpenters, and there engaged in repairing the bark 'Vidette' near said mill, by the order and direction of the superintendent having charge and control of said carpenters for and in behalf of defendant, without giving any notice or warning whatever to this plaintiff, threw out of said window a ship's knee, weighing 400 pounds or more, and the same fell a distance of 16 feet, striking this plaintiff, who was then passing under said window as aforesaid, upon the head, arm and shoulder, severely bruising and wounding him, and rendering him senseless, and plaintiff remained in a state of insensibility for the space of ten hours, and was confined to his bed by reason of said injury for a period of one day.

"That said accident happened, and said injuries were received, wholly on account of the carelessness and negligence of the said superintendent having charge and control, for and in behalf of the defendant, of the carpenters employed by the defendant as aforesaid, and through no fault or negligence on part of plaintiff."

The defendant being a non-resident, plaintiff endeavored to obtain jurisdiction of his person and property by attaching the latter and making service of the summons by publication.

Numerous motions were made in the court below by the defendant's counsel, appearing specially therefor, for the purpose of preventing the court from assuming jurisdiction upon the attempted service made, and the denial of these motions is here assigned as error.

But whatever weight these motions may have had at the time, we are satisfied that a subsequent motion to open

a default which had been entered, which was not upon a limited or special appearance, as well as the subsequent answer, waived all objections to the jurisdiction, and brought the defendant fully before the court.

The answer of the defendant was a general denial.

The cause was tried upon the issues thus made, and there was a verdict and judgment for the plaintiff.

Upon the plaintiff resting his case, the defendant moved for a nonsuit and for a dismissal of the action upon the following grounds, viz.:

1. That the complaint did not state facts sufficient to constitute a cause of action.

2. That plaintiff had failed on the proofs to make out the cause of action stated in the complaint.

3. That, on the proofs, plaintiff's injuries were caused by his own negligence.

4. That, on the proofs, plaintiff's injuries were caused by a fellow-servant of plaintiff.

The court denied the motion, and error is assigned here upon the denial. Upon these errors we are of the opinion:

1. That the complaint was sufficient.

2. The second ground of the motion was based upon the testimony which showed that plaintiff was injured while on his way to his work in the morning, and before he had commenced work for the defendant for the day, instead of under the circumstances alleged in the third and fourth paragraphs of his complaint, quoted above. But we do not look upon the facts proven and those pleaded as materially varying. The defendant could not have been surprised, and an amendment of the complaint to accord with the facts would have been allowed of course.

3. The third ground for nonsuit was taken in view of certain facts which we have not yet stated in full. Plaintiff, as above set forth, was on Saturday assigned to go to work on the next Monday morning at eight o'clock, at the scantling saw in the second story, and near the front end

of the mill. The scantling saw was not far from the principal entrance to the second story, which was reached by broad steps from the ground, placed there for the accommodation of the mill men. Plaintiff's most natural and easy mode of reaching the place of his labor was up the steps and thence a few feet to his machine. But at some time between seven and eight o'clock plaintiff entered one of the mill-yard gates and went to the furnace room, across the open space from the mill, to have a social chat with the fireman, intending to go thence by another route to his work in time to begin at the hour.

At the rear, and on the ground floor of the mill, there were water-closets, built for the accommodation of the men, which were approached from the upper floor by a stairway at that end of the building. The most direct way to reach these closets from the furnace room was across the yard and under the mill; but for those at work on the upper floor the proper way was along the mill to the stair at the rear. At the house where plaintiff lived there was accommodation of the same kind which he could have used before going to the mill. But after remaining a short while in the furnace room, plaintiff decided to go to the mill closets and thence to his work, up the back stairs. He went across the yard, not in a direct line or path, but in such a course that he brought himself alongside the mill, so that in passing thence toward the back end and the closets, he walked under the projecting room where Beaton and the others were with the knees, coming out again from beneath the room at the precise moment when the first knee dropped and struck him. Had he visited the closet at his own house, or not gone to the furnace room, or walked in the most direct line across the yard to the mill closets, or taken his proper station in the mill and thence gone to the closet by the back stair, he would not have gotten under the overhanging room, and the injury would not have occurred.

In addition to this, it appeared that during the hours when the mill was running there were slab cars running back and forth through the yard in such a way as to make it dangerous for persons to be there; and that at all such times there was, at many places about the mill, more or less danger, so that persons employed there had to be constantly on the look-out.

Upon these facts the defendant urged that plaintiff had himself so contributed to his injury that he could not in any event recover; and it was contended, that as the nature of his employment did not at that time, or at any time, demand his presence at the furnace room, or in the yard, or anywhere except where his work for the moment was (to wit: that morning at the scantling machine, at eight o'clock), he was to be treated as a stranger who was trespassing without leave, and that he could not be excused by the plea of a necessity to visit the closets. But it was proven that no rule of the establishment prohibited the men from going into the mill by the route adopted by plaintiff, or required them to reach the second story by the front stair, and that many of them did, daily, go to and fro about the yard as he did. He reached the vicinity of the mill a few minutes early, the gates were open, and he did what, under the usual condition of things at that hour, he might have done without actual risk. Therefore, we cannot agree that his acts amounted to contributory negligence. Besides which, the testimony on that point fully warranted a submission of it to the jury, and we find no error in the motion for a nonsuit, on that ground.

4. Were Beaton and Carlson fellow-servants?

Plaintiff maintains that the defendant was not entitled to avail himself of that objection to a recovery unless he pleaded it in his answer, and that a general denial did not raise that issue. It may be, but we do not so decide, that the claim is correct when the objection is taken as a defense. But the gist of the complaint is, that the *master* has

injured the servant; therefore, when the plaintiff's proofs show that it is not the master, but some other person — a fellow-servant — who committed the wrong, there can be no affirmative judgment, and a motion for a nonsuit is the proper method of moving the court to a negative judgment.

The most earnest and learned efforts of counsel in this cause were directed to the enlightenment of the court upon the proper rules of decision for the determination of this question. It was agreed that if Beaton and Carlson were fellow-servants, there could be no recovery; but there was a radical difference as to the standard by which their relations were to be judged and declared. Plaintiff in error maintained that § 1 of the code of 1881, which makes the common law of England the rule of decision in all the courts of Washington Territory, was decisive as to the first step of the inquiry; namely, where the court should look for the proper rules. We agree to this. But we do not subscribe to the next proposition, that resort can be had only to the decisions of English courts, or to those of American courts which have followed them, to ascertain what the common law of England is or was, unless the English decisions commend themselves to reason, or have been so long and generally followed that to depart from them would tend to unsettle what has, by "immemorial and universal usage," been understood to be settled. The common law grew with society, not ahead of it. As society became more complex, and new demands were made upon the law by reason of new circumstances, the courts originally, in England, out of the storehouse of reason and good sense, declared the "common law." But since courts have had an existence in America they have never hesitated to take upon themselves the responsibility of saying what *is* the common law, notwithstanding current English decisions, especially upon questions involving new conditions. Therefore, we have the "common law" as declared by the highest courts

of this, that and the other state, and by the courts of the United States, sometimes varying in each. And we understand, by § 1 of the code, that where there are no governing provisions of the written laws, the courts of the late territory, and of this state, are, in all matters coming before them, to endeavor to administer justice according to the promptings of reason and common sense, which are the cardinal principles of the common law; but not that the decisions of the English courts are to be taken blindly and without inquiry as to their reasoning or application to the circumstances. We have been led to these remarks because of the fact that this question of injuries by servants of the same master negligently inflicted upon each other, has given rise to extensive discussion and wide divergence of decision in both English and American courts.

Up to a certain point, undoubtedly the common-law rule was and is, that the master is not liable if one of his servants negligently injure another. It was indirectly stated so to be in *Priestley v. Fowler*, 3 Mees. & W. 1, in 1837; but was first distinctly announced in *Murray v. South Carolina R. R. Co.*, 1 McMul. 385, in 1841, and was re-announced in Massachusetts in 1842, in *Farwell v. Boston & Worcester R. R. Co.*, 4 Metc. 49.

The first positive announcement of the rule in England was in *Hutchinson v. York, etc., Ry. Co.* 5 Exch. 343. The theory of the South Carolina case was, that each of the servants in his separate department represented the principal, and that they were engaged in a joint understaking.

In Massachusetts the ground of the decision was, that by refusing a resort to the common employer the safety of each employé would be more effectually secured, by reason of the greater skill and care with which they would conduct their several operations. *Hutchinson v. York, etc., Ry. Co.*, seems to have rested upon the conclusion of the court that the principle of holding the master liable would "carry us to an alarming extent."

The English cases down to this time, except as they have been restricted by statute, have been kept well up to the general rule, in which they have rather followed, than been followed by, many American cases, notably those decided in Massachusetts. See *Holden v. Fitchburg R. R. Co.*, 129 Mass. 268. But almost contemporaneously with the assertion of the general rule of the exemption of the master, other American courts refused adherence to it as a universal rule. The rise and progress of great railroad corporations, operating over long lines of road, with hundreds of employés, from president down, caused a closer inspection of the real relations of the men, who, although they were employed and paid by the same master, were often so widely separated in their spheres of duty that reason seemed to call for some substantial modification of the decisions as to what the rule really was, when applied to cases where there was so large a delegation of the authority of the master to the negligent servant, that the master could be said to be present and acting only in the person of the servant.

The courts of last resort of many of the states, and the supreme court of the United States, have given their adherence to this view, and according to their decision the "common law" of such cases is, that the rule of exemption to the master only applies when the negligent servant and the servant injured are in a "common employment."

The leading authority upon this subject, for this case at least, is the supreme court of the United States, which in *Chicago, etc., Ry. Co. v. Ross*, 112 U. S. 377 (5 Sup. Ct. Rep. 184), said: "There is in our judgment, a clear distinction to be made in their relation to their common principal, between servants of a corporation exercising no supervision over others engaged with them in the same employment, and agents of the corporation clothed with the control and management of a distinct department, in which their duty is entirely that of direction and superintendence;" and held a railroad conductor, who neglected to inform his engineer

of an order to wait at a station ahead for a train going in the opposite direction, whereby a collision occurred, not to be the fellow-servant of the engineer.

Other courts have applied the principle to far more complicated cases, and have not hesitated to give the employés of natural persons the benefit of the new "common law," the announcement of which was at first based upon that peculiarity of corporations which compels them to act by agents only; doubtless the United States supreme court would do the same in a proper case.

Yielding our adherence to the doctrine that to exempt the master and make the two servants fellow-servants, they must be engaged in the same common employment, in the same department of service, and act under the same immediate direction, we look vainly for any agreement among the courts as to what "common employments" are. The diversity of employments and myriad circumstances under which men act and are injured, make it impossible to define them. Some general definitions there are, and with them each case must be compared as it arises, and the rules extended so as to make a reasonable application.

We find in *Crispin v. Babbitt*, 81 N. Y. 516, what seems to us the most correct, brief statement of some of the points to be regarded in cases of this kind, which has come to our notice. The court said, p. 520: "The liability of the master does not depend upon the grade or rank of the employé whose negligence causes the injury. A superintendent of a factory, although having power to employ men, or represent the master in other respects, is, in the management of the machinery, a fellow servant of the other operatives. On the same principle, however low the grade or rank of the employé, the master is liable for injuries caused by him to another servant, if they result from the omission of some duty of the master, which he has confided to such inferior employé. . . . *Flike v. R. R. Co.*, 53 N. Y. 549. . . . The liability of the master is thus made to depend

upon the character of the act in the performance of which the injury arises, without regard to the rank of the employé performing it. If it is one pertaining to the duty the master owes to his servants, he is responsible to them for the manner of its performance. The converse of the proposition naturally follows. If the act is one which pertains only to the duty of an operative, the employé performing it is a mere servant, and the master, although liable to strangers, is not liable to a fellow-servant for its improper performance. Wood, Master and Servant, § 438."

These are flexible rules, in which the doctrine that the delegated duties and powers of the master make a servant, at times, the very master himself as to other servants, is the central feature; and they seem to us eminently just to both master and servant. They would fully sustain the decision in *Brodeur v. Valley Falls Co.* (Rhode Island), 17 Atl. Rep. 54, cited by plaintiff in error.

There a machine repairer in a cotton mill, while crossing a yard adjoining the mill, was killed by an empty barrel thrown from the fourth story by a negligent mill operative, and it was held that they were fellow-servants.

Under these rules, Bucklin, the foreman of the Port Madison mill, when on Saturday he assisted Beaton to saw the ship's knees, was the fellow-servant of Beaton, although ordinarily he might not have been so in any matter wherein was involved the matter of providing safe and sound machinery for the sawing of the knees, that being a duty due from Sayward, the performance of which was confided to Meigs and Bucklin. But had Bucklin there carelessly handled a knee so that Beaton had suffered injury therefrom, there would have been no wrong imputable to Sayward. And so, when we come to apply this law to Carlson and Beaton at the time of the former's injury, if Carlson was a servant at all, we are clearly led to hold that he was a fellow-servant with Beaton.

We are urged to the consideration that Beaton was a

ship carpenter, employed by Sayward to repair ships, and therefore in a different department of labor from that of defendant.

The complaint denominated him "superintendent having charge and control of carpenters" engaged in repairing the bark Vidette. But looking at the testimony offered to sustain that allegation, we do not find it sustained, but on the contrary, it clearly appeared from that testimony, as well as from that produced by the other side, that Beaton was simply the mill carpenter, employed to make repairs wherever needed about the establishment. Sometimes he had men working with him whose work he did superintend, but in the execution of the work he were only a fellow-servant with them.

At this unfortunate time his work was in making some repairs to the Vidette, his master's vessel, by which part of his business there carried on was prosecuted.

The repairs to the vessel were entirely consistent with Beaton's general occupation. He was still a "mill-hand" just as much as the fireman or the engineer. In fact, were we to seek a nice distinction, we might justly say, that the sawing of ship's knees was clearly within the line of the mill's work; that it made no difference that they were sawed for the Vidette; that, in sawing them, Beaton, for the time, became a mill sawyer; that, in removing the knee on Monday, he was merely a lumber shover; and that he did not become a carpenter until he got out of the mill and began carpenter's work.

But our decision is on broader grounds.

Here was a department of a business carried on by the aid of seventy-five or a hundred men, at a particular place, where no man had to go off the premises to perform his work.

The employés, from highest to lowest, must necessarily have soon become personally acquainted with each other;

and they knew there were dangers to be looked out for, and it is always among dangers the unexpected that happens.

The two recent cases in the Michigan supreme court, *Quincy Mining Co. v. Kitts*, 42 Mich. 34 (3 N. W. Rep. 240), and *Sell v. Lumber Co.*, 70 Mich. 479 (38 N. W. Rep. 451), are cases in which the facts are of the same general character as those at bar, and the conclusions were, in substance, identical with our own in this case. The defendant's motion for nonsuit and dismissal should have been granted by the court below.

For the error in not sustaining the motion, the judgment entered must be reversed.

Judgment reversed, with directions to the successor of the court which tried the cause to grant the nonsuit and dismiss the action.

ANDERS, C. J., and HOYT and SCOTT, JJ., concur.

DUNBAR, J., not sitting.

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[No. 1. Decided January 29, 1890.]

## LYMAN B. ANDREWS v. KING COUNTY AND WILLIAM COCHRANE, *as Sheriff of said County.*

UNEQUAL TAXATION — INJUNCTION — PLEADING FRAUD.

Where a complaint alleges a state of facts, which, if proved to be true, would establish fraud as a conclusion of law, it is a sufficient allegation of fraud, without the specific declaration that such acts were fraudulent.

Where an assessor uniformly assessed mortgages, unaccompanied by other evidence of indebtedness, at their par value, and lands and other property at from one-fourth to one-fifth of their cash value, his action was in violation of the organic act (§ 1924, Rev. Stat. U. S.) providing that all taxes shall be uniform, and that the assessment shall be according to the value of the property.

While equity will not interfere to set aside the judgments of assessors or boards of equalization in relation to values, injunction is the proper remedy where officers fraudulently, capriciously or tyrannically refuse to exercise their judgment by adopting a rule or system of valuation designed to operate unequally.

*Appeal from District Court, King County.*

Injunction by appellant to restrain the sheriff of King county from levying upon his household goods and other property to satisfy appellant's delinquent tax, with penalty and costs. The assessor of King county had assessed appellant's mortgage on lands in King county at its full face value of $30,000, while the lands securing it were assessed at only $2,000; and the complaint alleged that the assessor uniformly assessed demands secured by mortgage upon real estate at their par value, and uniformly assessed lands, improvements and personal property at from one-tenth to one-fourth their actual cash value; that the board of equalization of said county uniformly refused to place any less value or appraisement upon demands secured by mortgages upon lands than their par value; and they at the same time refused to place any greater value upon lands situated in said county than one-fourth their cash value, and they uniformly refused to place any greater valuation upon improvements upon real estate and upon personal property (excepting demands secured by mortgages upon real estate) than from one-fifth to one-fourth of its cash value. The tax assessed against appellant for his mortgage of $30,000 amounted to $465, of which sum he paid $31, the amount due upon a valuation of $2,000, and refused to pay more. His taxes became delinquent in the sum of $434, and the sheriff of King county threatened to levy upon the household goods, furniture, and other property of plaintiff sufficient to satisfy the same, with penalty, interests, and costs. Appellant brought suit for injunction, praying that defendant be perpetually restrained and enjoined from collecting said so-called delinquent tax, or any part thereof, and for a temporary restraining order. The defendants interposed a general demurrer on the grounds: First, that the court has no jurisdiction of the subject-matter of the action; second, that the complaint does not state facts sufficient to constitute a cause of action.

The demurrer was sustained, the plaintiff elected to stand upon his complaint, and judgment was entered, dismissing the bill at plaintiff's costs. The appeal is from that judgment.

*W. R. Andrews*, for appellant.

Counsel cited in argument, Code Wash. T., § 2832; Rev. St. U. S., § 1924; *Exchange Bank of Columbus v. Hines*, 3 Ohio St. 15; *Cummings v. National Bank*, 101 U. S. 157; *Pelton v. National Bank*, 101 U. S. 145–6; *State Railroad Tax Cases*, 92 U. S. 607; Cooley, Taxation (2d ed.) 218; *Woodman v. Auditor General*, 52 Mich. 29; *Merrill v. Humphrey*, 24 Mich. 173; *State v. Central, etc., R. R. Co.*, 7 Nev. 105; *Weeks v. Milwaukee*, 10 Wis. 186.

*Stratton & Fenton* and *J. T. Ronald*, for appellees.

Injunctions to restrain the collection of taxes will seldom be granted, and when allowed the complainant must bring himself under some well-recognized head of equity jurisdiction. *State Railroad Tax Cases*, 92 U. S. 575; *Van Wagener v. Board of Supervisors*, 39 N. W. Rep. 105; Cooley on Taxation (2d ed.), 760–875.

The regular action of a board of supervisors in matters of taxation is not subject to any review in the courts. *Bixler v. Sacramento County*, 50 Cal. 698.

A court of equity has no power to make or equalize assessments. *Ketcham v. Railroad Co.*, 4 Dill. 41; *Kansas, etc., R. R. Co. v. Ellis*, 19 Kan. 584; *Gibb v. County Commissioners of Hampden*, 19 Pick. 298; Cooley on Taxation (2d ed.), 748–50, notes 4 and 1; *Johnson v. Roberts*, 102 Ill. 655.

The theory of plaintiff would indicate that he may experiment with the board of equalization by making an application for relief, and if the particular relief be not granted, he may try his claim in another tribunal without appeal, or review, or certiorari. Under § 2877 of the code

the power to hear and determine all matters concerning assessments is conferred upon the board of equalization, and it is apparent, from the context, that this power is exclusive in the first instance. *People v. Lothrup*, 3 Col. 450; *People v. Big Muddy Iron Co.*, 98 Ill. 16; *Republic Ins. Co. v. Pollack*, 75 Ill. 294; *Spencer v. People*, 68 Ill. 510; *Union Trust Co. v. Webber*, 96 Ill. 352; *Ottawa Glass Co. v. McCaleb*, 81 Ill. 556; *Wagoner v. Loomis*, 37 Ohio St. 571; *People v. Goldtree*, 44 Cal. 323; *Matt v. Eager*, 46 N. Y. 100; *Smith v. Supervisors*, 30 Iowa, 531.

The opinion of the court was delivered by

DUNBAR, J. — In the investigation of this case there are three leading propositions to be considered, viz.:

*First:* In order to put in issue the question of fraud, is it necessary to allege in terms that defendants were guilty of fraud?

*Second:* Conceding the allegations in the complaint to be true, are the facts there stated sufficient to establish a *prima facie* case of fraud?

*Third:* Had plaintiff any other remedy than the one invoked?

So far as the first proposition is concerned, we are clearly of the opinion that if the complaint allege a state of facts, which, if proved to be true, would establish fraud as a conclusion of law, that it is a sufficient allegation of fraud; and that the declaration of the pleader that such acts were fraudulent, is in no wise essential or necessary to put the question of fraud in issue.

In the other two propositions, which we will consider in some degree together, grave questions are presented. Questions, the importance of which demand of the court painstaking investigation; and the rightful determination of which is not so important in view of the amount of money involved in the particular case, as it is in view of the effect which such determination will have, both on the

rights of the individual citizen, and upon the state in the determination of its laws.

The principal contention of the plaintiff, and the one to which the court will address itself especially (the determination of which will be conclusive in this case) is, that the assessor uniformly and persistently, intending to injure and oppress all persons holding mortgages, of which there was a large class in King county, and especially this plaintiff; and intending to relieve persons owning lands and other property in King county, outside of mortgages, of their just burden in maintaining the public revenue, assessed mortgages, which were unaccompanied by any other evidence of their indebtedness, at their par value, without any regard to the valuation placed by him upon the lands mortgaged to secure the payments of said demands; while he, at the same time, refused to assess lands in said King county at more than one-fourth their cash value; and refused to assess other property at more than from one-fifth to one-fourth of its cash value; and alleges the fact to be that he assessed plaintiff's mortgage at $30,000.00, while he assessed the identical land pledged to the payment of the said demand of $30,000.00 at only $2,000.00, notwithstanding plaintiff's said mortgage was not accompanied by any other evidence of indebtedness, and that the plaintiff's remedy upon his said demand will be entirely exhausted by a foreclosure of said mortgage and a sale of the lands, tenements and hereditaments pledged to him therein. And that the action of the assessor in such alleged discrimination was endorsed and confirmed by the board of county commissioners of said King county, while sitting as a board of equalization; which said action of the assessor and board of equalization, plaintiff claims was in violation of § 1924 of the revised statutes of the United States, which declares, "that all taxes shall be equal and uniform, and no distinctions shall be made in the assessments between different kinds of property; but

the assessment shall be according to the value of the property."

No doubt the essential idea of the statute is, that each person shall pay a tax in proportion to the value of his property. And the fact that plaintiff's property is admitted to be assessed at its par value will not deprive him of the constitutional guaranty, if by the undervaluation of other property he is compelled to bear more than his just proportion of the burden of taxation.

If A. is the owner of property of the value of one thousand dollars, which is assessed at one thousand dollars, and B. is the owner of property worth one thousand dollars, which is assessed at five hundred dollars, the practical result to A. is the same as though B.'s property had been assessed at its value of one thousand dollars, and his property at an overvaluation, or at two thousand dollars. In either case the resulting injury is the same; he has been subjected to double the burden that B. has, while actually possessing the same amount of property. The just principle of taxation is equally violated in both cases; and the constitutional mandate that "all taxes shall be equal and uniform, and that the assessment shall be according to the value of the property," is equally ignored. And when such an abuse of official discretion affects a large class of individuals, it will be subject to the law's revision. In view of the inconvenience to the public which will arise from any derangement in the system of the collection of taxes, the law will not regard accidental omissions or minor mistakes. Nor will courts of equity interfere to correct errors in judgment as to valuation, because, as has been well said by Judge Cooley, "value is matter of opinion, and when the law has provided officers upon whom the duty is imposed to make the valuation, it is the opinion of those officers to which the interests of the parties are referred." But according to the same learned author, "it is possible, however, that there may be circumstances under

which the action of the officers will not be conclusive." Cooley, Taxation, 218. And one of those circumstances is where the officer refuses to exercise his judgment, and by an arbitrary and capricious exercise of official authority, seeks fraudulently to defeat the law, instead of enforcing it. In such a case the tax-payer will not be left completely at the mercy of the assessor.

In this case, if the averments of the complaint are true, and the assessor uniformly taxed mortgages at their par value, and land and other property at from one-fourth to one-fifth of its cash value, and, in accordance with such uniform rule of assessment adopted by him, assessed the plaintiff's mortgage, which was unaccompanied by any other evidence of indebtedness, at $30,000, and the identical land mortgaged for the payment of the said $30,000, at only $2,000, the conclusion is inevitable that the honest judgment of the officer was not exercised; and that a rule or system of valuation was adopted by the assessor, and confirmed by the board of equalization, which was designed to discriminate unfairly against one class of tax-payers, and which was in plain contravention of the constitutional law which provides that "all taxes shall be uniform, and that the assessment shall be according to the value of the property." The principles involved in this case were passed upon by the supreme court of the United States in the case of *Cummings v. National Bank*, 101 U. S. 153, which is a leading case, and must be regarded as settling the law there enunciated. In that case the Merchants' National Bank of Toledo filed its bill in equity to enjoin the treasurer from collecting a tax wrongfully assessed against its stockholders, alleging that in the valuation of said shares they were estimated at a much larger sum in proportion to their real value than other property in the same city, county and state. It is true that this decision was rendered under a statute of the State of Ohio providing for such a manner of as-

sessment as was complained of, and providing expressly for an injunction against the collection of a tax illegally assessed. But as expressive of the opinion of the court, in rendering its decision, it says: "Independently of this statute, however, we are of the opinion that when a rule or system of valuation is adopted by those whose duty it is to make the assessment, which is designed to operate unequally and to violate a fundamental principle of the constitution; and when this rule is applied not solely to one individual, but to a large class of individuals or corporations, that equity may properly interfere to restrain the operation of this unconstitutional exercise of power." The case at bar is a stronger one than the case which called forth that opinion; for in that case no actual fraud or capriciousness on the part of the officers, or intent to unjustly discriminate, was claimed, the assessment being made under the provisions of a statute the constitutionality of which was in question. And Mr. Chief Justice WAITE, in rendering a dissenting opinion, inferentially affirms the position taken by us when he says: "The valuation as finally fixed by the proper officers or equalizing board, under the law, is, in my opinion, conclusive when there has been no fraud, as it seems to me this case comes within the operation of this principle."

In the *State Railroad Tax Cases*, 92 U. S. 575, cited by both plaintiff and defendant, and largely relied upon by defendant in the argument of this case, and, as stated by counsel for defendant, the case on which the court below decided this case adversely to plaintiff's interest, we can see no enunciation of the law which is not in harmony with the view taken by plaintiff in this case. There the contention of the plaintiff was, that the statute of Illinois, and the rule adopted by the board of equalization under the statute, was not in conformity with the principles of uniform taxation. The great point in this case, as stated by the attorney general, was the alleged unconstitutionality of the act cre-

ating the board of equalization, and it was not contended that the action of the board was not in accordance with the statute. Hence, there was eliminated from this case any question of fraud by the officers in refusing to exercise their discretion; and the rule prescribed by the board in this case was for the very purpose of ascertaining the fair cash value of the capital stock and franchise of the railroad companies. If there was an error it was simply an error of judgment; in fact, it can be readily gathered from the opinion of the court, that it did not think there had been even an error of judgment, either by the board of equalization or the legislature. Justice MILLER, in rendering the opinion of the court, says: "The statute of Illinois, and the rule adopted by the board of equalization, under the power conferred by the clause we have just recited, may not be the wisest mode of doing complete justice in this difficult matter; but we confess we had, on the whole, seen no scheme which is better adapted to effect the purpose, so far as railroad corporations are concerned, of taxing at once all their property, and of making the tax just and equal in its relation to other taxable property."

This court cannot say as much for the rule adopted by the assessor of King county. On the other hand, it would be hard to conceive of a rule less liable to make the taxation of mortgages just and equal in its relation to other taxable property. The court in the case above cited further says, before an injunction will be granted to restrain the collection of taxes, that "there must be an allegation of fraud, that it creates a cloud upon the title, that there is an apprehension of a multiplicity of suits, or some cause presenting a case of equity jurisdiction;" plainly inferring that if one of these stated cases *did* exist, that the case would be brought within one of the recognized rules of equity jurisdiction. It also states the doctrine that no injunction can be granted until it is shown that all the taxes conceded to be due, and which the court can see

ought to be paid, have been paid. The complaint in this case shows that such an amount of taxes has been paid and tendered by plaintiff. In 10 Wis. 242, in *Weeks v. City of Milwaukee*, in a case nearly parallel with this, and under the constitutional provision that "the rate of taxes shall be uniform," the court decided that where the taxes on the land of one citizen had been illegally increased by reason of the illegal exemptions of other lands from taxation, an injunction will be granted to restrain the sale of such lands for the payment of such illegal taxes. In that case the complaint showed that the Newhall House, and the land on which it stood, had been purposely exempted from taxation, and, as plaintiff alleged, unjustly increasing his proportion of tax. It is true that this exemption only went to city taxes; but the decision was based on the broad principle of uniform taxation, and of the rights of individuals under that constitutional principle. The supreme court reversed the order of the lower court in refusing the injunction, and Justice PAINE in rendering the opinion of the court says: "I have no doubt this exemption originated in motives of generosity and public spirit. And perhaps the same motives should induce the taxpayers of the city to submit to the slight increase of the tax thereby imposed on each, without questioning its strict legality. But they can not be compelled to. No man is obliged to be more generous than the law requires, but each may stand strictly upon his legal rights." That the property in the above cited case was *wholly* exempted from taxation, and the property in the case at bar only partially exempted, makes no difference in principle; it is only a difference in degree. Substantially the same announcement of the law governing such cases was made in the case of the *State v. Central Pacific Railroad Co.*, 7 Nev. 99. It was urged by defendant that the taxation in other counties in the state might be rendered ununiform by any interference with the value of plaintiff's property as fixed

by the assessor. This would be a subject for the attention of a board of equalization, which the state has a right to provide for by legislative enactment, and which could make inter-county laws or regulations to secure uniformity of assessment between the counties. But no such officers exist in this state; and a failure of the state to provide for such a tribunal will not militate against the rights of the individual which are guaranteed to him by the laws of the state and the constitution or organic act.

We think the uniform ruling of the higher courts has been that, while equity will not interfere to correct mere mistakes or inadvertencies, or to contravene or set aside the judgments of assessors or boards of equalization in relation to values, it will interfere when the officers fraudulently, capriciously or tyrannically refuse to exercise their judgment by adopting a rule or system of valuation designed to operate unequally, and to violate a fundamental principle of the constitution.

We believe that the provisions of the statute in relation to the manner of making assessments, as set forth in § 2832 of the code, are mandatory and must be observed by the assessor. Applying the law, as we believe it to be, to the facts in this case, as shown by the complaint, which is the only statement of facts in the case, we are of the opinion that plaintiff was entitled to the remedy prayed for; and that defendant's demurrer should have been overruled and the case tried upon the allegations of the complaint.

The judgment of the court below is reversed, and the case remanded for further proceedings in accordance herewith.

STILES and HOYT, JJ., concur.

ANDERS, C. J., and SCOTT, J., concur in the result.

[No. 590. Decided January 29, 1890.]

## J. J. KNOFF v. THE PUGET SOUND CO-OPERATIVE COLONY.

JUSTICE OF PEACE — JURISDICTION — APPEAL — AMENDMENT OF RETURN.

On an objection raised by a corporation, in an action against it before a justice of the peace, that its principal place of business is in another county than the one where the action is brought, the defendant in the absence of any offer to amend the return of service, or make other showing to aid the jurisdiction of the justice, may have the action dismissed without prejudice, under the provisions of § 1780, Code Wash. T.

Under the provisions of said § 1780 the defendant may take advantage, on appeal, of any error in overruling its objections, even after a trial upon the merits.

On an appeal from a justice of the peace to the district court the constable's return cannot be amended for the purpose of aiding the transcript from the lower court, and showing jurisdiction in the justice.

*Error to District Court, King County.*

The facts are fully stated in the opinion.

*Richard Osborn* and *Reed & Clark* for plaintiff in error.

Upon motion the return of an officer will always be permitted to be amended. Crocker on Sheriffs, § 43; Murfree on Sheriffs, §§ 878, 880; *Wilcox v. Moudy*, 89 Ind. 232; Code Wash. T., § 109.

Even after judgment will amendment be allowed. *Perry v. Lyman*, 22 Barbour, 137; *Toledo, etc., R. R. Co. v. Butler*, 53 Ill. 323; *McClure v. Wells, adm'x*, 46 Mo. 311; *Board, etc., v. Beckwith*, 10 Kan. 453; 12 W. Va. 750; *Richards v. Ladd*, 6 Sawy. C. C. 40; *Snyder v. Sullivan*, 59 How. Pr. 404; *Allison v. Thomas*, 1 Am. Rep. 89; *Shelmeyer v. Goff*, 112 Ill. 29; *Rogers v. Holman*, 13 Ill. 294.

Under the law and facts disclosed by the record, the justice had jurisdiction over the defendant. §§ 49, 1710, 1714, 63 and 758, Code Wash. T.

But even if there was a defect in the service, or there was a failure to show all jurisdictional facts on the face of the record, the offered amendment to the return of the constable, and the affidavit in support thereof, supplied the defect. *O'Brien v. Caslin*, 20 Neb. 247; *Hefflin v. McMinn*, 20 Am. Dec. 58; *Hunt v. Farmers' Ins. Co.*, 67 Iowa, 742.

But had the notice and return of service thereof been insufficient, the defendant in error, by pleading to the merits, waived any irregularity or insufficiency, and he cannot thereafter object to the manner in which he was brought in. *Austin v. Burroughs*, 28 N. W. Rep. 865; *Baker v. Knickerbocker Life Ins. Co.*, 24 Wis. 630; *Stephenson Ins. Co. v. Dunn*, 45 Ill. 211; *Smith v. Elder*, 3 Johns. 115; *Wheeler v. Sampson*, 14 Johns. 481; *Flanders v. Ætna Ins Co.*, 4 Mass. 158; Wells on Jurisdiction, § 45.

Defects in summons, or want of one, are unimportant when defendant appears and submits to jurisdiction. *Baldwin v. Murphy*, 82 Ill. 485; 77 N. C. 72. Applying for continuance is a waiver of such defects. *Thayer v. Dove*, 8 Blackf. 567. Appeal cures defect in service. *Curtis v. Jackson*, 23 Minn. 539.

Appearance and pleadings to the merits is a waiver of objection that the suit was brought in the wrong county. *Kane v. U. P. R. R. Co.*, 5 Neb. 105; *Cleveland, etc., R. R. Co. v. Mara*, 26 Ohio, 185; *Adams Express Co. v. Hill*, 43 Ind. 157; *Brown v. Waber*, 6 Cush. 560; *Brown v. Sutherland*, 44 Ala. 278; *Damp v. Dean*, 29 Wis. 419.

*W. S. Bush*, for defendant in error.

Section 1780 of the code provides that if a suit be brought in the wrong county it may be dismissed with costs if objected to. If the justice refuses to dismiss, the defendant by objecting saves his right to appear and have the judgment reversed for want of jurisdiction.

Motion for leave to amend the constable's return should have been made before the justice. *Lyman v. Milton*, 44 Cal. 634; *Kent v. West*, 50 Cal. 186; *Wedel v. Green*, 38 N. W. Rep. 639.

The issue before the justice shall be tried in the district court without other or new pleadings, unless otherwise directed by the court. Code Wash. T., § 1864; *Satterlee v. Bliss*, 36 Cal. 521; *Doerfler v. Schmidt*, 64 Cal. 265; *Reynolds v. Reynolds*, 67 Cal. 187.

The justice's court, being a court of limited statutory jurisdiction, the record of the court must show jurisdiction. The court cannot presume that the business office of the defendant was in King county, or that the president of the defendant corporation resided there. *United States v. Ross*, 92 U. S. 284–5; *Settlemeir v. Sullivan*, 97 U. S. 447; *Turner v. Bank of North America*, 4 Dall. 8; *Continental Ins. Co. v. Rhoads*, 119 U. S. 237–8.

With respect to courts of special and limited authority, there is no presumption of law in favor of their jurisdiction; that must affirmatively appear by sufficient evidence or proper averment in the record, or their judgments will be deemed void on their face. *Galpin v. Page*, 18 Wall. 366; *Winter v. Fitzpatrick*, 35 Cal. 273.

No jurisdiction over corporations, whose residence is in other counties, is given justices of the peace. §§ 1702 and 1706, Code Wash. T.

The principal place of business of a corporation is its residence. *Jenkins v. California Stage Co.*, 22 Cal. 538; *Cohn v. Central, etc., R. R. Co.*, 71 Cal. 489; *Miner v. Village of Fredonia*, 27 N. Y. 160; *Holgate v. Oregon, etc., R. R. Co.*, 17 Pac. Rep. 859.

The opinion of the court was delivered by

HOYT, J. — Plaintiff filed with a justice of the peace for Seattle precinct, King county, a complaint as follows:

"The plaintiff complains and alleges:

"1. That the defendant now is and was, at all times herein mentioned, a corporation organized and existing under the laws of Washington Territory.

"2. That on the 30th day of September, 1887, an account was stated between the plaintiff and the defendant, and, upon such a statement, a balance of $224.95 was found due to the plaintiff from the defendant.

"3. That the defendant agreed to pay the plaintiff the said balance of $224.95.

"4. That the defendant has not paid the said sum of money, or any part thereof, except the sum of $50, paid October 3, 1887;" concluding with a prayer for judgment; and thereupon said justice issued a notice and delivered the same to an officer, who made a return of service thereof, which return, together with the notice, were substantially as follows:

"To Puget Sound Co-operative Colony: You are hereby notified to be and appear at my office in Seattle, King county, Washington Territory, on the 16th day of November, 1887, at the hour of 1 o'clock P. M., to answer to foregoing complaint, or judgment will be taken against you as confessed, and the prayer of the complaint granted."

"I hereby certify that I received the within complaint and notice this 8th day of November, A. D. 1887, and on the same day I served the same in Seattle, King county, Washington Territory, by delivering into the hands of George Venable Smith, president of the Puget Sound Co-operative Colony, a copy certified by me to be a true and correct copy of the original complaint and notice."

On the return day of said notice the defendant appeared, specially, and objected to the proceedings, and moved the court to dismiss the suit for the reason that said notice and the return thereof, gave the court no jurisdiction of the defendant, and for the further reason that the action had been brought in the wrong county; and, in support of the latter point, filed a certified copy of its articles of incorporation, and the affidavit of its president, showing that

its principal place of business was not in King county, but was in the county of Clallam.

The justice denied the motion and proceeded to trial, and rendered judgment against the defendant, which, thereupon, prosecuted its appeal to the district court, and there renewed the motion which had been denied by the justice.

The court granted said motion, and reversed the judgment of the lower court and dismissed the suit, to which action plaintiff excepted and assigned error thereon, and here seeks a reversal thereof.

We do not decide as to the sufficiency of the notice and return thereof, above set forth, to sustain the judgment if there had been no appearance by the corporation, for, even if it was, still the objection of the defendant, and its showing that its principal place of business was in Clallam county, established *prima facie* the fact that the suit had been brought in the wrong county, and, in the absence of any offer to amend the return of service, or make other showing to aid the jurisdiction of the justice, he should have found that the case was within the provisions of the third subdivision of § 1780 of the code, and should have granted defendant's motion to dismiss.

Plaintiff, however, claims that even if the above position is true, yet as the defendant, after the denial of its motion, answered the complaint and prosecuted its appeal from a judgment on the merits, it waived said motion, and could not thereafter take advantage thereof.

As to the effect of an answer on the merits, upon the right to assign error upon rulings prior to such answer in an ordinary case, it is not now necessary to decide, as the plain intent of said § 1780 is to allow the defendant to take advantage, on appeal, of any error in overruling its objection, even after a trial upon the merits. Under the provisions of said section the judgment of the justice, even after objection well taken, is not void, but only voidable, and if

the defendant could have no relief on appeal it would be without remedy.

The action of the justice, upon the papers before him, was erroneous, and it became the duty of the district court to reverse the judgment.

When the cause came on in the appellate court, plaintiff, evidently seeing the force of the defendant's position upon the record as it stood, suggested, by affidavit of the constable who made service of the process, that all of the facts connected with such service did not appear from the return thereof, and therefore moved that said constable be allowed to file an amended return. This motion was denied, and such denial is also assigned as error. We think this ruling was correct, as the transcript from the lower court could not be thus aided.

It is true that courts are liberal in allowing amendments necessary to sustain judgments rendered therein; but this liberal rule does not apply to amendments in one court to proceedings had in another, and nearly or quite all of the large number of cases which the diligence of counsel for plaintiff has produced will be found to refer to the amendments of proceedings in the same court.

But if this was not so and the rule was as contended for by plaintiff, the result in this case would be the same, for the reason that the allowance of such amendments is in the sound discretion of the court, and there is nothing in this record to satisfy us that such discretion has been abused.

It follows that the district court committed no error, and that the judgment therein rendered must be affirmed, with costs.

ANDERS, C. J., and STILES, SCOTT and DUNBAR, JJ., concur.

[No. 8. Decided January 30, 1890.]

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THE COUNTY OF KING v. GEORGE D. HILL, JOHN LEARY, JOSEPH F. MCNAUGHT, GEORGE W. HARRIS, E. P. FERRY, SUTCLIFFE BAXTER AND G. C. PHINNEY.

APPEAL — STATEMENT OF FACTS — NOTICE OF SETTLEMENT — REQUISITES OF CERTIFICATE — PRACTICE.

On appeal, the written opinion of the trial judge, not purporting to be a finding of facts, will, on motion, be stricken from the transcript.

Under the appeal act of 1883, allowing six months in which to serve notice of appeal, and thirty days in which to give notice of a settlement of the statement of facts, it is immaterial which of the notices precedes the other.

Where judges are allowed by statute to exchange courts on request, a judge, who has tried a cause in another district than his own, may certify and settle the statement of facts, after returning to his own district.

A certificate by the trial judge, that the statement "contains all the material facts in the cause relating to the execution of the bond in suit (except the original bond itself), and the ruling and decision on the question of the execution thereof, and the dismissal of said cause," is not a sufficient compliance with the provisions of the appeal act of 1883, requiring that the statement shall contain "the material facts in the cause."

The fact that appellees were present with a copy of the proposed statement, when the facts were settled, and offered no amendments, does not estop them from moving to strike out the statement of facts on account of the insufficiency of the judge's certificate.

Although the statement of facts has been stricken out, a motion to affirm the judgment should be denied, and the appeal heard upon its merits, where there are several assignments of error.

*Error to District Court, King County.*

Action by the County of King against George D. Hill, as treasurer of said county, and his sureties, on his official bond, to recover an alleged deficit in public funds. Judgment for defendant, and plaintiff appeals. In this court defendants move to affirm the judgment of the district court upon the ground that the evidence in the case has not been certified to this court, and no statement of all the

material facts in the cause has been certified to by the judge before whom the action was tried, nor by the judge of the court in which the judgment was rendered.

*Ronald & Piles*, and *W. S. Bush*, for plaintiff in error.

The statement that the opinion of the court, including the decision, "is not, under the provisions of our statute, or any system, proper matter to be made of record," is incorrect. Code Wash. T., §§ 256, 246, 460, and 466; Baylies on New Trials and Appeals, pp. 129–130.

The statute of 1883 requires the statement of facts to be settled before the judge who tried the cause; and notice for the settlement of the same must be given within thirty days after the rendition of the judgment. The appellant is given six months to give notice of appeal. The act, construed as a whole, gives the appellant the right to perfect his statement of the material facts by giving notice, and a right to appeal at any time within six months. It does not require that the appeal shall be taken before he perfects the statement of facts. The same rule of law applies as if the case had been tried before the judge of the Third judicial district. The act must have a reasonable construction. *British Bark Latona v. McAllep*, 3 Wash. T. 342.

The judges having exchanged for the trial of this cause, on account of the disqualification of Judge HANFORD, Judge CALKINS was clothed, under the act of 1883, with power to settle the statement of facts. His jurisdiction to settle outside the district where the trial took place, and where he was acting judicially, is conceded in *Hollon Parker, petitioner*, 131 U. S. 225; and see *Marsh v. Wade*, 3 Wash. T. 477; *Howe v. Jones*, 23 N. W. Rep. 378; *Seattle, etc., R. R. Co. v. Ah Kow*, 2 Wash. T. 39.

Sections 2137–2138 of the code, so far as they prohibit a judge from settling a statement of facts in chambers, outside the district where he tried the cause, are modified

and amended by the act of November 23, 1883. See *People v. Durick*, 20 Cal. 94; *Ex parte Taylor*, 13 How. (U. S.) 13.

The motion to affirm the judgment of the court below is based on the presumption that the court will strike from the record the "statement of facts," and that the case can not be heard on the merits at all. Such motions were denied in *Swift v. Stine*, 3 Wash. T. 519–520.

*Struve, Haines & McMicken*, and *C. H. Hanford*, for defendants in error.

The opinion of the judge of the district court should be struck out of the record. It is not, under the provisions of our statute, or any system, proper matter to be made of record. *England v. Gebhardt*, 112 U. S. 502; *Louisiana, etc. Ins. Co. v. Tweed*, 7 Wall, 44; *Dillon v. Spokane County*, 3 Wash. T. 498.

No statement of facts, which the parties have not agreed to, can be lawfully used in this court, unless it has been prepared and certified in the manner prescribed by statute. *Zenkner v. N. P. R. R. Co.*, 3 Wash. T. 60; *U. S. v. "Lone Fisherman,"* 3 Wash. T. 316; *Kenyon v. Knipe*, 3 Wash. T. 243; *Caton v. Switzler*, 3 Wash. T. 242.

The statute requires, in explicit terms, that the statement shall contain all the facts in the case, or at least all the material facts, and that it shall be so certified. The statute also requires that the statement shall be certified, not by the judge of some court other than the one in which the judgment was rendered, and at some place outside of the district over which the court in which the judgment was rendered has jurisdiction, but by "the judge of the court below," that is, the inferior court from which the cause is removed to the supreme court. Laws of Wash. T. 1883, p. 59, §§ 3 and 4.

We especially maintain that, in certifying a statement of facts, judicial power must be exercised. Such powers

can only be lawfully exercised by one who is clothed with judicial authority, and who at the time acts within the boundaries of the district over which he as judge has jurisdiction, and in a case pending in the court over which he as judge at the time presides. Code Wash. T., §§ 2137–8; *Cain v. Libby*, 21 N. W. Rep. 739.

This court having become vested with jurisdiction of the cause, by an appeal having been taken, it must pass upon the merits of the cause and render a final judgment; the judgment should be affirmed for the reason that in the condition of the record that has been brought here, no other disposition of the cause can possibly be made. The evidence has not been preserved or transmitted to this court; if any error to the prejudice of the plaintiff in error taints the findings, decision or judgment of the court, it will not be discoverable by this court. *Suydam v. Williamson*, 20 How. 427; Powell on Appellate Proceedings, pp. 125–129, §§ 17–21; *Prentice v. Stearns*, 113 U. S. 435; *Bonnifield v. Price*, U. S. Sup. Ct. (L. C. P. ed.) vol. 26, p. 1022.

The opinion of the court was delivered by

STILES, J. — This was a motion to strike from the transcript the written opinion of the judge who tried the cause in the court below, and the statement of facts, and to affirm the judgment. The suit was brought upon the bond of defendants in error, Hill and others, executed to the county of King, of which Hill was treasurer. The issues, when made up, were referred to a referee under chap. 18 of the code. The referee heard the cause and reported his findings of fact and conclusions of law, with the testimony taken by him. The judge of the Third district court was disqualified, and the judge of the Fourth district sat to hear the cause, at Seattle, upon the report of the referee. The report of the referee recommended a judgment against the defendants for a certain sum, which the plaintiff deemed too small and did not cover a period within which it was

claimed a liability upon the bond had accrued. Plaintiff, therefore, moved to correct the report in these particulars, and for an enlarged judgment accordingly. Defendants, on the other hand, moved to entirely set aside the findings of fact and conclusions of law of the referee, and for a judgment of dismissal.

The hearing of these motions seems to have involved a hearing of the whole case, and the judge rendered an elaborate opinion in writing giving his reasons for his action, which was filed with the other papers in the case. There were three cases brought by the same plaintiff against the same defendants, and all were heard together; therefore, the opinion includes all three. We think the motion to strike the opinion from the transcript is well taken, as it does not purport to be a finding of facts, or anything but the views of the judge on various points and authorities cited, and is not properly a part of the transcript. The court overruled the exceptions of the plaintiff to the referee's report and denied its motion; and, on the other hand, sustained the exceptions of the defendant, set aside the findings and conclusions of the referee, and rendered judgment of dismissal, with costs.

The order and judgment was as follows: "It is ordered by the court that the findings and conclusions of said referee be and the same are set aside; and it is the decision of the court that there is not sufficient evidence to support the allegations of the plaintiff's complaint in this action, and that the defendant's allegations are true, and the judgment should be rendered in favor of the defendants for their costs and disbursements herein. Judgment that plaintiff take nothing by the action and that defendants have judgment for costs;" and there were no findings of fact or conclusions of law except as they may be found in the order. The plaintiff intending to appeal to this court sought to have a statement of facts settled, under the appeal act of 1883; but the judge who tried the cause had

returned to his own district, and was then at Ellensburgh, Kittitas county. Notice of the settlement of a proposed statement before him at that place, was given to defendants; and a copy of the proposed statement was delivered with the notice. No notice of appeal had at that time been given. At the hearing at Ellensburgh the defendants were present, and objected to the statement, calling attention to the fact that there was testimony of witnesses which was not included in the statement, which consisted only of the testimony of witnesses, and a copy of the bond sued on; the testimony related only to the execution and delivery of the bond. But defendants did not offer themselves to furnish any matter for the statement. The judge certified the statement as proposed as follows: "That the same" (the statement) "contains all the material facts in the above entitled cause relating to the execution of the bond in suit (except the original bond itself), and the ruling and decision on the question of the execution thereof, and the dismissal of said cause as aforesaid." The certificate further requested the clerk to send the original bond to the clerk of this court.

It is alleged that no statement of facts could be settled until after notice of appeal; that only the judge of the Third district court could certify to any statement; that the judge could not certify out of the district, and that the statement is not a statement of all the facts, or all the material facts, and is not so certified by the judge, and therefore it is moved that the statement be struck out. We cannot sustain either of the first three objections. The statute allows six months for notice of an appeal, and only thirty days in which to give notice of a settlement of the statement. In our judgment it is immaterial which of the notices precedes the other.

When judges are allowed by statute to exchange courts, we must hold that the mere return of the judge, who tries a cause in another district by request, cannot cut off the right

of parties under other provisions of the statutes to have the facts of the trial stated; and from this it follows that in this case the judge of the Fourth district could settle and certify the statement at Ellensburgh. The case of *Hollon Parker, petitioner*, 131 U. S. 221 (9 Sup. Ct. Rep. 708), is applicable to the last point.

But we think the fourth of defendant's objections to the statement is without answer, and must prevail. The statute of 1883, § 4, p. 59, makes a liberal provision in this regard. All that it exacts is, that the statement shall contain "the material facts in the cause," by which means large masses of testimony can be eliminated and the record greatly diminished. But "the material facts" must be there and the judge must certify that they are there. The certificate here does not at all fulfill the requirement, although a word or two would have sufficed. The reason for the failure was, that both the judge and parties were conscious that many other matters were material in the cause beside the execution of the bonds; we gather this from the briefs and arguments of counsel on this motion. Plaintiff urges that as defendants had a copy of the statement proposed, and were present, and proposed no amendments, they are estopped; but we think not, under our practice. The intention of the statute is, that a fair statement shall be presented by either party, or both, to the judge, and his decision controls.

There remains the motion to affirm the judgment. This we shall deny upon the authority of *Swift v. Stine*, 3 Wash. T. 518 (19 Pac. Rep. 63). The appeal is from the judgment upon several assignments of error, and should be heard upon its merits.

The opinion of the judge and the statement will be stricken from the transcript; the motion to affirm the judgment is denied.

ANDERS, C. J., and SCOTT and DUNBAR, JJ., concur.

HOYT, J., not sitting.

[No. 606. Decided February 3, 1890.]

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## W. R. HAWKS v. H. L. VOTAW AND L. F. COOK.

JUDGMENT — AMENDMENT — PRACTICE.

On an application by defendant to the district court for an order citing the plaintiff to show cause why the judgment against defendant should not be satisfied and discharged of record, an order made by the court that the judgment be modified and reformed by striking out and disallowing the attorney's fee included therein was erroneous for the reason that it was not within the scope of the original order to show cause, and a bare exception to such final order was, under the circumstances, sufficient.

Where a judgment, erroneous but not void, has been entered against a party, he should either appeal, or apply to the court in the manner and within the time prescribed by law to have it set aside. After the expiration of the time prescribed, the district judge has no power to vacate or modify the judgment.

*Appeal from District Court, Pierce County.*

The facts sufficiently appear in the opinion.

*Parsons & Cadwell*, for appellant.

This proceeding is in no way warranted by law, or by the statutes of Washington Territory. The only way the judgment could be corrected, as insisted by the appellee, is by a petition filed as in other cases. Code Wash. T., §§ 436–9; Freeman on Judgments, §§ 69–75; *Lewiston v. Swan*, 33 Cal. 480.

*Town & Likens*, for appellees.

The $40 as attorney's fee having been improperly and inadvertently included in the judgment, a motion to strike it out, followed by a distinct order striking it out, is the proper mode of procedure. Freeman on Judgments, § 70; *Clark v. Hall*, 7 Paige Ch. 382; *Gardner v. Dering*, 2 Edw. Ch. 131; *Matheson's Adm'r v. Grant's Adm'r*, 2 How. (U. S.) 263.

The opinion of the court was delivered by

SCOTT, J. — In April, 1887, plaintiff brought suit upon a promissory note against the defendants, Votaw as maker, and Cook as guarantor. Cook appeared in the action, and filed a written consent that judgment might be taken against him for the amount found due, and judgment was rendered against him thereon, March 2, 1887, for the amount of the principal, interest and costs, and an attorney's fee of $40. The note provided for a reasonable attorney's fee. Defendant Votaw resisted the suit, and judgment was rendered against him June 30, 1887, at the trial, for the amount found due, including an attorney's fee of $50. No appeal was taken by either of the defendants. Executions were issued at different times, and various amounts were collected. August 28, 1888, after more than a year had elapsed since the expiration of the term at which the last judgment was rendered in said action, defendant Cook filed an affidavit setting up substantially the foregoing facts, and claiming that the $40 attorney's fee, included in the judgment, was unauthorized, and also that a sufficient amount had been collected upon the several executions to satisfy the judgment. Whereupon he applied to the district judge for an order citing the plaintiff to appear and show cause why said judgment should not be satisfied and discharged of record. The order was granted, and a hearing was had thereon before the judge at chambers. The plaintiff objected to the proceeding, alleging that it was unauthorized by law; that the judge had no jurisdiction, etc.; and claimed that a sufficient sum had not been collected to satisfy the judgment. Apparently the judge did not find that enough had been collected to pay it, but made an order that the judgment against Cook be modified and reformed by striking out and disallowing the $40 attorney's fee. The plaintiff excepted to the order, and appealed therefrom to this court. Ap-

pellee insists that there was no objection to the order; that the bare exception thereto was not sufficient.

The final order made in the proceeding was not within the scope of the original order to show cause, which was only directed to the satisfaction of the judgment. This order was objected to, but the objection was not allowed to prevail. The entry of a different order from that contemplated could not deprive the objection made of its force, especially as it does not appear that there was any opportunity to object specially to the final order before it was granted. Ordinarily, where an opportunity is given, the objection must be made and grounds stated upon which to base an exception. Under the circumstances of this proceeding, however, it is held that the point was sufficiently raised by the objection that was made and the exception taken.

Without passing upon the power of a judge to order a judgment satisfied of record in such a proceeding, we think the final order was clearly unauthorized. The original judgment may have been erroneous in some respects, but it was not void, and the injured party, if he desired its correction, should have appealed therefrom, or have applied to the court, in the manner and within the time prescribed by law, to have it set aside. The time therefor in this case had expired, and the district judge had no power to vacate or change it; consequently the order modifying the judgment is hereby reversed and set aside.

Anders, C. J., and Dunbar and Stiles, JJ., concur.

Hoyt, J., not sitting, being disqualified.

[No. 13. Decided February 5, 1890.]

## INA BROTTON v. CHARLES LANGERT AND J. H. WILT.

COMMUNITY PROPERTY — NOT LIABLE FOR PERSONAL JUDGMENT AGAINST HUSBAND.

Under the laws of this state (Code Wash. T., ch. 183), community real estate is exempt from execution on a judgment rendered against the husband, who, as constable, wrongfully sold mortgaged personal property, under execution. (STILES, J., dissents.)

*Appeal from District Court, Pierce County.*

The appellee, Charles Langert, obtained a judgment against appellant's husband, M. Brotton, for $1,000, because the latter, as constable, had sold on execution personal property in which the appellee had a special property, as mortgagee. Appellant sought to prevent a judgment lien being extended over community real estate, and to obtain a writ of injunction to prevent appellee from selling the community property of appellant, under and by virtue of the judgment obtained by Charles Langert against appellant's husband. Appellee Langert demurred to the petition, and also moved the court to dismiss the action. The court sustained the demurrer and dismissed the action, and plaintiff appealed.

*E. W. Tuylor*, for appellant.

As a general rule, only such property as the owner or debtor himself might sell, can be taken on execution against him. Its operation is always limited by the extent of the debtor's power of alienation. *Thomas v. Baum*, 14 N. J. Eq. 40; *Combs v. Jordon*, 22 Am. Dec. 248; *French v. Mehan*, 56 Pa. St. 286; *Gentry v. Wagstaff*, 3 Dev. (N. C.) 270; *Knox v. Hunt*, 18 Mo. 243; *Patton v. Rankin*, 68 Ind. 245; 7 Am. & Eng. Ency. Law, § 5, p. 127; Bac. Abr., Dower, G.

The same law that created the community of interest in Washington Territory, also placed restriction on the forced

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sale of the real property thereto belonging. Code Wash. T., §§ 2407, 2410.

The grant of right of forced sale in the case of community property is limited to family expenses, education of the children, and debts contracted for the benefit of the community; that is, community debts. Section 2410, after limiting the husband's power to dispose of community real estate, says: "*Provided, however*, That the community real estate shall be subject to the lien of mechanics and others for labor and materials in erecting structures and improvements thereon, as provided by law in other cases, to liens of judgments recovered for community debts, and to sales on execution issued thereon." This proviso is a limitation on the power of a creditor to compel the involuntary sale of community real estate, and expressly says that such property is subject to sale only for the causes therein mentioned. The effect of that proviso is, that a judgment shall not be a lien, nor shall an execution issue against the same unless clearly within the cases therein provided; and if the power of sale could be found in the common law, then the common-law rule, that an estate held by entirety could not be taken under execution, would be as strong a barrier to such sale as is said proviso.

The community interest is blended in one, and is held as a unity by the husband and wife. *Holyoke v. Jackson*, 3 Wash. T. 239; Rorer on Judicial Sales, 644.

A tort committed by a husband cannot become a community debt.

Referring to § 2410 of the Code of Washington, it will be seen that the judgment must be obtained upon a debt of a certain class — lien on the property, family expenses, community claim, or debts. The consideration of the judgment, the cause of the action, must be a community debt. Do the acts complained of entitle the defendant, Langert, to maintain a suit against Ina Brotton, the appellant? Could this judgment be enforced against her separate es-

tate? She is nowise responsible for the tort. But, say the respondents, the cause of action was merged in judgment; the judgment is a debt, and being subsequent to the creating of the community, can be enforced against this species of property.

The merger of the claim in a judgment does not change the nature of the claim *in toto;* the contention over which the parties were engaged is merged into the judgment, and nothing more. Freeman on Judgments (2d ed.), § 244; Field's Lawyer's Briefs, vol. 3, p. 215, § 225. In this case, if the cause of action is looked into, it will be seen that it is based on a tort and not on a debt. *Evans v. Sprague*, 2 Md. 457; *Wyman v. Mitchell*, 1 Cow. 316; *Clark v. Bowling*, 3 N. Y. 216.

There is no way for a creditor to get a judgment lien conclusively operative upon community real estate, except as a result of an action or proceeding to which both husband and wife were parties, and in which the community character of the debt is admitted or in issue. *Andrews v. Andrews*, 3 Wash. T. 290; *Smith v. Sherwin*, 11 Or. 269; *Rogers v. Newberry*, 105 Mass. 553.

The restraint placed upon the power of the husband to alienate community real estate *nolens volens*, is an absolutely positive and direct inhibition, and cannot be defeated by an indirect and circuitous contrivance. When anything is prohibited directly, it is prohibited also indirectly. Coke's Littleton, p. 223; 2 Inst., p. 248; Broom's Legal Maxims (17th ed.), p. 489; *Kendall v. United States*, 12 Pet. (U. S.) 605; 2 Fish. Dig. 2119. Unless the wife join in the act of alienation, or unless the foundation of the right to enforce an alienation be within the class named in §§ 2405, 2407 and 2410 of the code, the courts will not, by the mere fiction of merger, contravene the positive letter of the law, and make meaningless a plain statute of the state, unsettle the law and override well-considered cases settling the status of real property. *Holyoke v. Jackson*,

3 Wash. T. 235; *Hoover v. Chambers*, 3 Wash. T. 27; *Lee v. De Deiabler*, 12 Cal. 330.

*Judson, Sharpstein & Sullivan*, for appellees.

We do not concede appellant's proposition that only such property as the legislature says can be sold on execution may be seized. The legislature of Washington Territory, at its first session, enacted that "all property, real and personal, of the judgment debtor not exempt by law, shall be liable to execution;" Acts 1854, p. 177, § 251; and this has continued to be the law until the present time. Code, § 333.

The only real estate exempt from execution is a homestead to a "householder, being the head of a family," equal to $1,000 in value.

Counsel contends that as to community real estate the legislature has made a special exemption. He refers to § 2410 of the code, which reads as follows: "The husband has the management and control of the community real property, but he shall not sell, convey or encumber the community real estate, unless the wife join with him in executing the deed or other instrument of conveyance by which the real estate is sold, conveyed or encumbered, and such deed or other conveyance must be acknowledged by him and his wife: *Provided, however*, That all such community real estate shall be subject to the liens of mechanics and others for labor and material furnished in erecting structures and improvements thereon as provided by law in other cases, to liens of judgments recovered for community debts, and to sale on execution issued thereon."

The language of section 2410, preceding the proviso, is so sweeping and positive that it might be construed to mean that as a husband could not directly convey or encumber real estate without the joinder of his wife, this could not be done indirectly by permitting him to contract

debts or liabilities, which, being reduced to judgment, would become liens and encumbrances on the community real estate. To prevent any such construction the proviso was inserted. "The proviso is generally intended to restrain the enacting clause and to except something which would otherwise have been within it, or in some measure to modify the enacting clause." *Waymon v. Southard,* 10 Wheat.

The language of the proviso under discussion is, "Provided, however," that is to say, that the first part of the section shall not affect the liability of the community real estate for debts or liabilities contracted during the existence of the community.

Counsel's *piece de resistance* is his argument likening the community real estate to the common-law estate by entireties. But a husband could convey and encumber his life estate in the property held by entireties, and the same interest could be sold on execution for a judgment obtained against him alone. *Barber v. Harris,* 15 Wend. 615; *French v. Mehan,* 56 Pa. St. 286; *Stoebler v. Kneer,* 5 Watts, 181; *Brownson v. Hull,* 16 Vt. 309; *Bennett v. Child,* 19 Wis. 365.

The very reason the husband's interest in the estate by entireties could be sold, was because he had the control and management of the estate; precisely the power given the husband over the community realty.

The opinion of the court was delivered by

DUNBAR, J. — The appellant by her complaint filed in the district court of Pierce county, sought to prevent a judgment lien being extended over community real estate, and to obtain a writ of injunction to prevent the appellee from selling the community property of appellant, under and by virtue of a judgment obtained by the appellee, Charles Langert, in a suit against appellant's husband as constable, he, as said constable, having sold personal prop-

erty in which appellee had a special property, in execution against a person other than appellee. The appellant obtained a temporary restraining order. On the hearing of the case appellee demurred to the petition, and assigned as grounds of demurrer that it did not state facts sufficient to constitute a cause of action. The demurrer was sustained and the case dismissed; from which orders and decrees the appellant appealed to this court. In this case it is conceded that the property in question is community property, and that the judgment obtained against M. Brotton was a personal judgment for a tort. Hence, the primary question involved is, whether or not community real estate is exempt from execution on a judgment rendered against an individual member of the community when the debt for which the judgment was obtained was not incurred for the benefit of the community.

The community, composed of husband and wife, is purely a statutory creation; and to the statute alone must we look for its powers, its liabilities and its exemptions. Nor are we much enlightened by quotations from the common law in relation to the property rights and liabilities of husband and wife; for, while we ordinarily look to the rules and maxims of the common law to aid us in the construction and analysis of statutes, it was plainly the intention of the legislature, in the session of 1879, in the passage of the chapter denominated "Property rights of married persons," Code Wash. T., chap. 183, to depart from the common law and breathe into legal existence a distinct and original creation, partaking, somewhat, of the nature of a partnership and of a corporation, but differing in some essentials from both; and this creature is termed a "community." The statute alone determines who the members of the community shall be, the manner in which it shall acquire property, and defines and limits not only the powers of the members of the community over said property, but protects it from acquisition by others, excepting in the

manner specified. It also lays down its own rule of construction in the language of the act itself: "The rule of common law that statutes in derogation thereof are to be strictly construed, has no application to this chapter. This chapter establishes the law of this territory respecting the subject to which it relates; and its provisions and all proceedings under it shall be liberally construed with a view to effect its object." Then the pertinent and vital question becomes, What was the object sought to be effected? Section 2396 provides, "That every married person shall hereafter have the same right and liberty to acquire, hold, enjoy and dispose of every species of property and to sue and to be sued as if he or she were unmarried," and § 2398 abolishes "all laws imposing civil disabilities upon a wife which are not imposed upon a husband," and succeeding sections define what separate property is, and provide how it may be acquired and in what manner disposed of. So far the evident object of the law is, to place husband and wife on an equal footing in relation to property matters. Section 2409 is as follows: "Property not acquired or owned, as prescribed in §§ 2400 and 2408, acquired after marriage by either husband or wife, or both, is community property. The husband shall have the management and control of community personal property, with a like power of disposition as he has of his separate personal property, except that he shall not devise by will more than one-half thereof." This section discriminates in favor of one spouse only so far as is actually necessary for the transaction of ordinary business. Section 2407 provides that the expenses of the family and the education of the children are chargeable upon the property of both husband and wife, or either of them, and in relation thereto they may be sued jointly or separately. Section 2410 reads as follows: "The husband has the management and control of the community real property, but he shall not sell, convey or encumber the community real estate, unless the

wife join with him in executing the deed or other instrument of conveyance by which the real estate is sold, conveyed or encumbered, and such deed or other instrument of conveyance must be acknowledged by him and his wife: *Provided, however*, That all such community real estate shall be subject to the liens of mechanics, and others, for labor and material furnished in erecting structures and improvements thereon, as provided by law in other cases, to liens of judgments recovered for community debts, and to sales on execution issued thereon." Construing all the provisions of the chapter together, we cannot escape the conclusion that the object of the law was to protect (so far as is consistent with the transaction of ordinary business, as we before observed) one spouse from the misdeeds, improvidence or mismanagement of the other concerning property which is the product of their joint labors. It is in the nature of an exemption, and, as has been well said, "exemption laws are upheld upon principles of justice and humanity." The statute provides the ways in which this property can be alienated: First, the voluntary alienation by the husband and wife joining in the deed; second, by making it responsive to certain demands, constituted liens by the statute; and there is no other way contemplated. In fact, the very object of the law is to prevent its alienation in any other way. It expressly provides that the husband shall not sell, convey or encumber it, and he will not be allowed to do, by indirection or fraud, that which he is directly prohibited from doing. The practical result to the non-contracting spouse would be the same whether the law allowed the other spouse to directly convey the property, or allowed the title to pass through the medium of a sale on an execution flowing from a judgment to which he, or she, was not a party. It is the results the law regards; the modes are not important.

If the theory of the appellee is correct, that a personal judgment against the husband will become a lien on the

community real estate, then certainly there is no meaning in the proviso to § 2410, for the liens there specified would attach without the proviso. If a judgment which is *not* obtained for a community debt becomes a lien upon community real property without any special proviso, why make a special proviso for a judgment which *is* obtained for a community debt? It is very evident that the intention of the statute was, that community real estate should not be subject to liens on any judgments excepting those mentioned in the proviso and for the causes mentioned in § 2407; and these exceptions are founded on reason and right, because the labor and material furnished by mechanics in erecting structures on the land enhance the value of the community realty, thereby benefiting the community and becoming practically a community debt; and the reason for charging the expenses of the family or the education of the children to the community are too obvious for discussion. It was held by the supreme court of Oregon in the case of *Smith v. Sherwin*, 11 Or. 269, that the wife could not be held liable in an ordinary action for goods sold and delivered when such goods were sold upon the order of the husband, although the same were devoted to family use, under a statute which provides: "That contracts may be made by a wife and liabilities incurred by or against her to the same extent and in the same manner as if she were unmarried;" and which further provides that the property of both husband and wife shall be chargeable with family expenses; being substantially the same as §§ 2396 and 2407 of the code. This decision was based on the ground that the complaint did not affirmatively show that the goods sold were for the benefit of the family. In the case of *Andrews v. Andrews*, 3 Wash. T. 286, the court says: "So long as there is only a judgment lien confessed or suffered by the husband alone, the community interest in real estate is not affected, unless in fact the debt upon which the judgment was given was a community debt.

The force and qualification of the lien of a judgment to which the husband only is a party, as affecting real estate, is given in § 2410 of the code, by way of proviso to the restriction on the power of the husband to alienate or encumber such property. In the statute itself, the wife and all the world had notice of the limitation of such a lien in regard to such property. Indeed, the judgment not being determinative of any issue as to the character of the property which is to be included in its lien, the husband himself would be at liberty to contest the extension of the lien over community real estate." But we are met by arguments, in the brief of counsel for appellee, asserting that this construction of the statutes will lead to unsettling business relations, and many supposable cases of hardship to creditors are earnestly dwelt upon; but this is a branch of the subject entirely within the jurisdiction of the legislature. Once it is conceded that this is a rightful subject for legislation, which will scarcely be denied, there is no limit to legistative authority, and it is not the province of a court to speculate or theorize upon the practicability or impracticability of the laws, or the good or bad effects which may result from such laws. These are subjects for legislative consideration, and not for judicial determination. We think the judgment obtained against Brotton was not a judgment for a community debt, that the petition did state facts sufficient to constitute a cause of action, and that the sale should have been restrained.

It follows that the judgment will be reversed, and the cause remanded to the court below, with instructions to proceed in accordance herewith.

ANDERS, C. J., and HOYT and SCOTT, JJ., concur.

STILES, J. (*dissenting*). — I dissent. It was contended in this case that the "community debts" mentioned as chargeable upon community real property in the act of 1881 (Code, § 2410) do not include a judgment against a

husband who was a constable, and who, while acting as such officer, took property in execution upon which there was a chattel mortgage, and sold the property so that it became scattered and lost to the mortgagees, the judgment being for damages for that wrong. The act in question nowhere undertakes to say what a community debt is; nor does it use any language by which it can be said that a community debt is to be anything different under this act from what it was under the previous community property statutes of 1869, 1871, 1873 and 1879. "Debts" are spoken of in all these acts as liabilities to pay, without any regard to the technical difference between "debts" and "torts." In numerous instances in each of them there are negative provisions like these: "The earnings of the wife are not liable for the debts of the husband;" "the separate property of the husband (or wife) is not liable for the debts of the wife (or husband) contracted before marriage;" and in §§ 2400 and 2408 of the act in question the separate property of husband and wife is not subject to the "debts or contracts" of the other. Would it be contended that because these terms "debts" and "contracts" are used, and no reference is made to "torts," therefore, the separate property of the husband and wife would be liable for the torts of the other? In § 25 of the act of 1879, the term "debts" was used as synonymous with "judgment or decree," no matter for what cause of action rendered. And so here, while there may possibly be some purely personal wrongs by a married person that should be first compensated out of the separate property of the wrong-doer, where, as in the case at bar, the constable was pursuing his usual avocation for the benefit of the community and not maliciously, but through a mistaken idea of his duty, he incurred a liability to recompense the mortgagee, I see no reason whatever for holding this not to be a liability or debt for which the community real estate is, by the statute, answerable.

The fact that the result of the liability has not been to the pecuniary advantage of the community, certainly can make no difference in a court of justice, where advantages are not material. A good or a bad bargain cannot make the difference between right and wrong, and the community of husband and wife has not yet become so helpless a thing that we need presume in its favor as though it were a minor or an imbecile. Under all former community property acts this judgment could have been made out of community property without any statute provision on the subject. Section 19 of the act of 1871, which was the least liberal of all these acts, had this provision: "When real estate, common property, shall be sold for indebtedness of the wife or the husband only, no more shall be sold than shall be necessary to satisfy the indebtedness and cover costs," etc. Yet under that act the husband could not sell community property without the wife's joinder. By the act of 1879 no real property, either separate or community, could be sold, encumbered or in any way disposed of without the joinder of the husband and wife in the instrument; but I have never heard or read a suggestion that under that act a separate debt of either husband or wife could not be collected out of the separate real property of either without the consent or deed of the other. Obviously, it was considered by the framers of that act that the matter of the voluntary alienation of lands had nothing to do with the rights of creditors, and while they hampered the husband and wife to an excessive degree, as between themselves, they placed no restrictions against the collection of just debts. Yet if we were to hold in this case, that because the husband cannot sell, convey or voluntarily encumber without the wife's joinder, no liability incurred by him, as this one was, can be charged against community property, then we should be bound to hold, in any case arising under the act of 1879, that without the wife's consent, by deed, the husband's debt incurred before marriage

could not be collected out of his real property acquired before marriage; for the language of the two acts is precisely alike.

The only ground urged for the decision of the majority seems to be under the claim that the wife has a veto upon voluntary conveyances and encumbrances of community real estate for her protection against her husband; and that the husband must not be allowed to do that by fraud or indirection which he cannot do directly. The same argument would apply to the incurrence of *every* debt under the act of 1879, and to the collection of ante-nuptial debts as well. But there is no question of fraud in this case, and there is now no propriety in using that argument. Here the question is simply whether the wife shall, while she is fully protected in the possession of her separate property, and of her earnings, take her share of the risk that her husband will conduct the business of the community without loss; nay, it is not that only, but whether the husband himself shall be allowed to hide behind the ample skirts of his wife, in case of his "torts," to the ruin of the victim of his ill-advised action. So far as the proviso at the end of § 2410 is concerned, I fail to see what importance it has there. It is merely declaratory of what would be the law without it, and adds no force to this section of the act. It is a literal copy of a section in the act of 1879, and had all the force in that act which it has in this. It has been argued, however, that since this proviso says that liens for labor and materials and judgments for community debts are chargeable upon community real estate, it is to be taken as an instance of "*expressio unius alterum excludit*," and therefore no other obligation is to be recognized. But let it be remembered that the maxim quoted is a common-law maxim, and the argument is one for strictness of construction; whereas it is one of the requirements of the act in question that the common-law rules of construction are not to prevail here,

and that all its provisions are to be construed liberally; but liberality can certainly not be predicted of a ruling that shields property from levy for a debt of the owner. A community debt, within the meaning of the act of 1881, ought to be any liability incurred by either husband or wife during their marriage, and which is not a separate debt by its express terms, or by reason of its being patently for the exclusive benefit of the separate property of the party contracting it. This has been substantially the construction put upon the term ever since the community property laws have existed here, by the business men of the state as well as the legal fraternity. To depart from it now will, in my judgment, greatly disturb the safety of business interests, and unsettle titles to an alarming extent; and to hold with the appellant is not logically necessary under the terms of the statute.

I cannot believe that it was the intention of the legislature of 1881 to withdraw all this community real estate from liability for accommodation endorsements, guarantees, and especially official bonds, as well as the hundred engagements that married men enter into every day, but which have no relevancy to their community interests, and cannot be said to benefit them. It is said that these obligations can be made good by securing the signature of the wife; but I deny it. If the signature of a husband to the bond of a county treasurer does not make the obligation collectible out of his community real property, because the debt is not one for the benefit of the community, it is idle to say that adding the signature of the wife will change the character of the debt and make it so collectible. And so on. The combinations and confusions are endless, if this doctrine is once announced.

The judgment should be affirmed.

[No. 608. Decided February 5, 1890.]

ROBERT WILKINS, *Administrator of the estate of Oliver Seeley, deceased*, v. ROBERT WILKINS.

DECEDENT'S ESTATE — ALLOWANCE OF CLAIMS — CLAIM HELD BY ADMINISTRATOR.

Under § 1472, Code Wash. T., when a claim against a decedent's estate is rejected by the judge of the probate court, no appeal lies from the order of the probate court rejecting the claim. The holder's remedy is exclusively by suit, in the proper court, against the executor or administrator.

Where a claim held by the administrator himself is disallowed by by the probate judge, the administrator's only remedy is to resign his trust, and bring suit as any other creditor of the estate.

*Error to District Court, Chehalis County.*

On the 20th day of March, 1888, Robert Wilkins was appointed, by the probate court of Chehalis county, administrator of the estate of Oliver Seeley, deceased, and on the 5th day of April, 1888, he presented to himself as administrator of said estate, a claim of his own of $400 against said Seeley, and as such administrator allowed the claim against said estate, and presented the same to the judge of the probate court for allowance. At the May term of said court the claim was disallowed by the judge of probate, and an appeal was taken to the district court. The judge of probate appointed George J. Moody, prosecuting attorney of said county, to represent said estate on said appeal. A motion to dismiss said appeal was filed in the district court on September 13, 1888, and, after argument, was by the court denied, to which ruling of the court in denying said motion the defendant excepted, and appealed to this court.

*George J. Moody*, Prosecuting Attorney, for plaintiff in error.

*Irwin & Lewis* and *J. W. Robinson*, for defendant in error.

The opinion of the court was delivered by

HOYT, J. —The only question presented by the record in this cause is, as to the effect of § 1472 of the code upon the right of appeal from the probate court, as provided in certain other sections of said code. The said section is as follows: "When a claim is rejected by either the executor, administrator or the judge of probate court, the holder must bring suit in the proper court against the executor or administrator within three months after its rejection, otherwise the claim shall be forever barred." And we think the provision therein, that the rejected claim must be sued upon within three months, is exclusive, and that from the order of the probate court in such cases no appeal lies. To hold otherwise would be to make this section of no practical benefit to either party, and, besides, would tend to contradict the ordinary meaning of some of its language. The evident intention of all the provisions relating to the allowance of claims against estates of deceased persons is, that the proceedings in the probate court thereon should be largely *ex parte*, and that a claim will be allowed only when it appears that there is little or no controversy in regard thereto, and that as to all cases that are to be strongly contested the more formal method of a suit in the proper court is to be resorted to. Does the fact that the claim rejected was that of the administrator himself change the rule? It is urged that it does for the reason that as the administrator could not bring suit against the estate he would be without remedy unless he can prosecute his appeal from an adverse decision of the probate court. We, however, see no greater impropriety in allowing him to bring suit against the estate of which he is the administrator, than to allow him to wage a contested appeal in which he is the party in interest on one side and the estate he represents on the other. The legislature could not have intended that he should occupy either of these positions.

And we must hold, that if the probate judge and an administrator can not agree as to the amount in his favor to be allowed against the estate he represents, and he desires to further contest the matter, he must resign his trust and thus qualify himself to bring suit as any other creditor.

The district court obtained no jurisdiction by the proceedings on appeal, and should have granted the motion to dismiss, and its action in refusing to do so was error, for which the judgment below must be reversed, and the cause remanded for further proceedings in accordance with this opinion.

ANDERS, C. J., and DUNBAR, SCOTT and STILES, JJ., concur.

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[No. 607. Decided February 7, 1890.]

CHARLES HAAS, WILLIAM HAAS, KOLMAN HAAS AND LEOPOLD KLAU, *Copartners*, v. D. J. GADDIS, S. H. BECKWITH, G. S. RODERICK AND S. R. FORD, *Executors*.

APPEAL — STATEMENT OF FACTS — ATTORNEYS — PRACTICE — SHERIFF'S FEES — CONSTRUCTION OF STATUTES — DUTY OF SHERIFF.

Where it appears from there cord that an attorney appears generally for all the defendants in an action, his stipulation that a notice of appeal might be given and a statement of facts settled at another time and place than named in the notice therefor, is binding on all the defendants, although the record also shows some of them were represented specially by other attorneys.

The court will not presume, merely from the fact that one of the defendants is represented specially by a firm, one of whose members has the same surname as the attorney signing the stipulation, that the latter is a member of said firm.

Under the appeal act of 1883, it is not essential that the statement of facts should be attached to the transcript, the statute only requiring it to be sent up therewith; and where the certificate of the trial judge describes the statement of facts as having the same number and title as the papers in the transcript, and the statement and transcript were filed together in the supreme court, the statement is sufficiently identified with the transcript to be considered in connection therewith.

Section 1 of the appeal act of 1883, requiring the transcript to be filed in the supreme court within the time required by law, is governed by § 460 of the code as to time of filing; but where a transcript has been filed less than fifteen days before the first day of the next term of the supreme court, appellees can take advantage of such failure only in the manner provided by § 461 of the code.

Where the trial judge certifies that the statement contains all the material facts in the case, the omission of an instruction not claimed to be material by appellee, and which neither party has attempted to bring up, is no ground for dismissing the appeal.

Section 2772 of the code, providing that no sheriff shall be liable for damages for refusing to serve any civil process unless his legal fees are first tendered him, must be construed in connection with § 2099, providing that no officer shall be required to perform any official act unless his fees are paid when he demands the same, as they are upon the same subject-matter; and in an action against a sheriff for damages for failure to levy an execution, it is no defense for him to allege that his fees were not tendered, where he has made no demand for them in advance of service. (ANDERS, C. J., dissents.)

Where partnership property was attached in an action against one of the partners, and subsequently, but prior to judgment against the individual partner, creditors of the partnership attached the same property and obtained judgment in an action against the partnership, the sheriff's refusal to proceed under execution in favor of the judgment creditors of the partnership, and his sale of the property upon the judgment obtained against the individual partner, will not render him liable for damages.

*Appeal from District Court, Chehalis County.*

The facts are fully stated in the opinion.

*George J. Moody*, for appellants.

The taking by said sheriff of the entire property of J. D. Mace & Company upon the writ of attachment or execution in case of *I. R. Dawson v. J. D. Mace*, was unlawful. *Gibson v. Stevens*, 7 N. H. 352; *Wilson v. Conine*, 2 Johns. 280; *Paige v. Carpenter*, 10 N. H. 77; *Dow v. Sawyer*, 12 N. H. 271, and 14 N. H. 9; *Morrison v. Blodgett*, 8 N. H. 238. Especially if he afterward sell the whole property, as in this case. 1 Gall. 370; 15 Mass. 82.

Such attachment was illegal and void against subsequent

attachment by the firm creditors, and might have been dissolved and the property surrendered to the creditors of the firm. *New Orleans v. Gauthreaux*, 32 La. Ann. 1126.

The levy of the writ of attachment or execution in the case of *I. R. Dawson v. J. D. Mace*, upon the whole property of the firm of J. D. Mace & Company instead of the interest of J. D. Mace therein, and a subsequent sale thereof, constitutes the sheriff making such attachment or levy and sale a trespasser *ab initio* as to the remaining partners and the creditors of the firm. *Spaulding v. Black*, 22 Kan. 55; *Atkins v. Sexton*, 77 N. Y. 195; *Daniel v. Owens*, 70 Ala. 297; *Snell v. Growe*, 3 Utah, 26; *Newman v. Bean*, 1 Fost. 93; 26 Am. Jur. 23.

*Bignold & Robinson* and *Evans & Irwin*, for appellees.

Counsel cited Code Wash. T., § 2772; *Columbia, etc., R. R. Co. v. Hawthorne*, 3 Wash. T. 353; *Clime v. Dawkins*, 6 How. 674; *Kelly v. Gage*, 6 Pet. 622; *Indianapolis, etc., R. R. Co. v. Horst*, 93 U. S. 291.

The opinion of the court was delivered by

SCOTT, J. — The defendants, Beckwith and Roderick, appellees, move to strike the notice of appeal, and the statement of facts, and to dismiss the case for the following reasons: That no notice of appeal was given, and no notice to said appellees to appear at the time the statement of facts was settled; that the statement of facts is not connected with the transcript, or sufficiently identified to be considered in the case; that the transcript was not filed within the time prescribed by law; and that the instructions given by the court to the jury are not all here.

The transcript shows that notice was served June 12th, 1888, on appellees by appellants, that they would give notice of an appeal August 18th, 1888, at an hour therein specified, before the judge at chambers, who tried the cause below, and would also apply at the same time to

have a statement of facts settled; that said notice was given within the time prescribed by law after the rendition of judgment, and was otherwise sufficient. That appellants duly appeared at the time and place specified, but were unable to give notice of an appeal or to apply for a settlement of a statement of facts, by reason of the absence of the judge before whom the cause was tried. That at said time a stipulation was entered into between appellants' attorney and Elwood Evans, one of the attorneys for the defense, providing that a notice of appeal might be given and a statement of facts settled in said action on the 17th day of September, 1888, at the Montesano term of the district court, then and there to be held, at which time the notice of appeal was given and statement of facts settled. Attorneys Bignold and Robinson were present but refused to take any part in the settlement of the statement. Appellees Beckwith and Roderick claim they were not parties to said stipulation and are not bound by it; that they were represented in this case only by the firm of Bignold & Robinson, and that Elwood Evans who signed said stipulation was an attorney for certain other of the defendants only. It further appears by the transcript that the action was commenced in June, 1887, and in July, 1887, Bignold & Robinson first appeared therein as attorneys for the defendants Gaddis, Beckwith and Roderick, and that they subsequently withdrew for the defendant Gaddis; that August 13th, 1887, Mason Irwin appeared as attorney for defendant Ford; and on May 16th, 1888, at the time of the trial, Elwood Evans appeared as an attorney in the action apparently for all of the defendants, the journal entry relating thereto reciting that the defendants appeared by their attorneys Elwood Evans, Mason Irwin and Bignold & Robinson; all of said attorneys subsequently admitted service generally for the defendants, of a notice of a motion for a new trial, and in the order of the court denying the motion Elwood Evans is again spoken of as an attorney for

the defendants, without specifying any particular ones. His only other act in the case was the signing of the stipulation aforesaid on August 18th, 1888. Prior thereto, the firm of Irwin & Evans appear as attorneys in the action by a written admission of service of the notice to settle the statement heretofore mentioned, especially limiting their appearance, however, for the defendant Ford; and Bignold & Robinson admit service thereof, specially for the defendants Beckwith and Roderick, who move to dismiss this appeal, claiming that Elwood Evans who signed the stipulation was a member of the firm of Irwin & Evans, who only represented the defendant Ford, and that he had no authority to bind Beckwith and Roderick. If it appeared in the record that Elwood Evans was the Evans named in the firm of Irwin & Evans, the fact that the firm admitted service specially for the defendant Ford may have operated as a notice to the appellants that he was only authorized, and that he only intended to act for said defendant Ford, but it does not so appear. It does appear, however, by an affidavit of service in the record, that Mason Irwin is one of said firm, and he does not act individually in the case after the appearance of the firm name; Elwood Evans does, by signing the stipulation. From these facts the court will not presume that Elwood Evans was a member of said firm, or that he only represented the defendant Ford, when his every act indicates that he appeared for all of the defendants, and at no time does it appear that any objection was made thereto by the defendants Beckwith and Roderick until now. As to the point urged that the statement is not connected with the transcript and is no part of the case: It appears to have been filed in said cause in the court below and bears the same number (97) that the papers contained in the transcript were numbered below. The certificate of the trial judge mentions it as the statement in case No. 97, *Haas Bros. v. D. J. Gaddis et al.*, and it appears to have been filed in this court at the same

time the transcript was filed. From these facts the court finds it is properly here and a part of the case; it is not essential that the statement should be attached to the transcript, the statute only requiring it to be sent up therewith. Act of 1883, p. 59, § 3.

As to the further point that the transcript was not filed within the time prescribed by law: It appears that it was filed December 27th, 1888, less than fifteen days before the first day of the next term of the supreme court thereafter; this appears to be contrary to the provisions of § 460 of the code, taken in connection with § 1 of the appeal act of 1883, requiring the transcript to be filed in this court within the time required by law, as § 460 is the only place where the time of filing is specified. The supreme court, in the case of *Turner v. Saxon*, 3 Wash. T. 473, where the question of notice only was involved, which is excepted in the act of 1883 from the operation of any other law, held that § 460 does not apply to cases appealed under the 1883 act. We are of the opinion that it does apply as to the time of filing the cause, but appellees not having taken advantage of such failure, in the manner provided by § 461 of the code, or before the transcript was filed, their objections will not be allowed to prevail.

As to the last point made, that the instructions are not all here, it appears that three instructions were given at the trial, and only two are contained in the record. There was no request or attempt by any of the parties to have the other one brought up. The instructions here are contained in the statement which is duly certified by the judge to contain all the material facts in the cause. It is not claimed by the appellees that the instruction omitted is material, nor do they ask to have it brought here, and as all the parties to the action and the judge who tried the cause seem to have regarded it as unimportant for a fair

consideration of the cause in this court, it is held by us to be unnecessary.

The motion to dismiss is therefore overruled.

ANDERS, C. J., and STILES, J., concur.

HOYT and DUNBAR, JJ., not sitting on the hearing of the motion.

OPINION ON THE MERITS.

SCOTT, J.—This was an action brought by appellants against the sheriff of Chehalis county and his bondsmen, for failure to proceed under certain executions issued upon judgments in favor of plaintiffs against J. D. Mace and Harvey C. Minkler, who were partners doing business under the firm name of J. D. Mace & Co.

It appears that on the 30th day of September, 1884, I. R. Dawson commenced suit against said J. D. Mace individually, and therein on said date attached certain property belonging to said firm. Subsequently the plaintiffs herein commenced suit against the firm and obtained the judgments upon which said executions were issued. It appears that writs of attachment were first issued in said actions and were levied upon the same property seized in the suit begun by Dawson, but were subsequent thereto, and also by the sheriff's return it appears that such levies for plaintiffs were made subject to the seizure for Dawson. Judgment was rendered in the suit brought by Dawson against J. D. Mace, and execution issued therein and levied upon the property previously attached, but before a sale the plaintiffs obtained judgments in their actions and had executions issued to the sheriff. The sheriff sold the goods under the prior execution, and Dawson received the proceeds thereof, whereupon plaintiffs brought this action upon his official bond, claiming said goods should have been sold under their writs for their benefit.

As one of his defences thereto, the sheriff alleged that he demanded an indemnifying bond of plaintiffs, which they

refused to give, and also that the plaintiffs were bound to tender him his fees for serving their writs, although he made no demand therefor, and as they did not do so he claimed the action could not be maintained against him. See code, § 2772.

The court in effect instructed the jury that it was incumbent on plaintiffs to tender the sheriff his fees in the first instance regardless of a demand, and § 2772 would seem to bear no other interpretation; but we hold it should be construed in connection with § 2099 of the code upon the same subject-matter. We see no reason why § 2099 should not have equal force with the section first cited; either statute literally interpreted conflicts with the other, and as some violence must be done to the language of one of them, we must give force to that construction which accords with good sense and justice. Therefore, we hold that the instruction was erroneous and that it was not necessary to tender the sheriff his fees without any demand from him therefor.

But are plaintiffs in a position to take advantage of this error; were they injured thereby? Dawson had a prior levy upon the property. It is true his attachment and execution were only against one member of the firm, and the sheriff seized and sold the firm's goods thereunder. In such a case the sheriff would ordinarily be justified in selling only the interest of the defendant partner therein, not the entire property. But there is nothing to show that the partner who was not a defendant in the Dawson suit objected in any way to the sheriff's action, and for aught that appears, both members of the firm may have consented that the partnership property be taken by the sheriff to satisfy the individual debt. In such a case, in the absence of any fraud, the property might have become divested of its partnership character by virtue of the levy. It was incumbent on plaintiffs, if they desired to assert a superior claim to the firm's property over Dawson, to have taken

some steps to have their rights as against him adjudicated. They could not impose upon the sheriff the burden of deciding upon the legality of their respective claims. They did not apply to the court in any manner to have the Dawson levy set aside or to have their debt first paid out of the partnership property, and we must hold that their case against the sheriff and his bondsmen, after giving the most liberal intendments to their pleadings and the testimony, was insufficient to support a verdict, had they obtained one, and, consequently, that they were not prejudiced by the erroneous instruction.

The judgment of the court below is therefore affirmed.

DUNBAR, J., concurs.

STILES, J. — I concur in the affirmance for the reason that, in my judgment, the plaintiffs had adequate means at their disposal to have the question of the title of the property and the correctness of the sheriff's action determined in proceedings for that purpose. With such means at hand they could not force upon the sheriff the dilemma of deciding the question of title, and then take advantage of his error by an action for damages.

ANDERS, C. J. — I concur in the result, but I do not think the court below erred in instructing the jury that the sheriff would not be liable unless his fees were tendered him. The instruction was in the exact language of the statute, and therefore, in my opinion, not erroneous.

HOYT, J., not sitting.

[No. 12. Decided Febuary 13, 1890.]

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TERRITORY OF WASHINGTON, *on the relation of Georye O. Kelly*, v. J. P. STEWART, A. J. MILLER, A. C. CAMPBELL, A. G. MATTHEWS AND W. C. GIBBS.

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8 669
23* 405
34* 927
36* 483
38* 970

CONSTITUTIONAL LAW — DELEGATING LEGISLATIVE FUNCTIONS TO COURTS.

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23* 405
37* 306

A statute authorizing the creation of a municipal corporation by a judicial court, upon petition of a majority of the inhabitants of the territory to be incorporated, is unconstitutional, as delegating legislative functions to the court. (DUNBAR, J., dissents.)

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*Appeal from District Court, Pierce County.*

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The facts are fully stated in the opinion.

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*F. Campbell*, Prosecuting Attorney, *C. H. Hanford* and *Thomas Carroll*, for appellant.

Section 1889, Rev. St. U. S., together with chap. 168, pp. 101–24, U. S. Statutes at Large, of Congress, second session, conferring upon the legislature the right to create municipal corporations, does not contemplate or permit the legislature to delegate such rights to courts or judges. *City of Galesburg v. Hawkinson*, 75 Ill. 153; *People v. Carpenter*, 24 N. Y. 89; *People v. Nevada*, 6 Cal. 143.

In states where the right is recognized the courts have universally held that such statutes do not imply any such power against private consent; the power is strictly construed, and farming lands cannot be included against the owner's consent. Lewis' Appeal, 56 Pa. St. 163; Borough of Blooming Valley, 56 Pa. St. 66; *People ex rel. Shumway v. Bennett*, 29 Mich. 451 (18 Am. Rep. 115–6).

The order incorporating the "Town of Puyallup," is void. The power to make such an order is not judicial and not vested in said judge by law. *People v. Bennett, supra; People v. Nevada, supra.*

*B. F. Jacobs*, and *Town & Likens*, for appellees.

What is a legislative function? A predetermination of

what the law shall be for the regulation of all future cases falling under its provisions. *Bates v. Kimball*, 2 Chip. D. (Vt.) 77; Cooley, Const. Lim. (5th ed.), 109, 110; *Newland v. Marsh*, 19 Ill. 383.

What is a judicial function or power? "To adjudicate upon and protect the rights and interests of the citizens, and to that end to construe and apply the law, is the peculiar province of the judicial department." *Cincinnati, etc., R. Co. v. Commissioners of Clinton County*, 1 Ohio St. 77. Examine, also, *King v. Dedham Bank*, 15 Mass. 447; *Gordon v. Ingraham*, 1 Grant Cas. 152; *Beebe v. State*, 6 Ind. 501; *Taylor v. Place*, 4 R. I. 324.

A statute may be conditional and its taking effect may be made to depend upon some subsequent event. *Burlington v. Leebrick*, 43 Iowa, 252; *Baltimore v. Clunet*, 23 Md. 449; *State v. Kirkley*, 29 Md. 85; *Walton v. Greenwood*, 90 Me. 356.

Act of territorial legislature approved February 2, 1888, does not delegate legislative authority to the courts, as the legislature by that act prescribes the liabilities, duties, powers and privileges of said corporations, and the statute, and not the court, determines the extent and nature of the powers of the corporation. *Mayor, etc., v. Shelton*, 1 Head (Tenn.), 24; *Kayser v. Trustees of Bremen*, 16 Mo. 88; *Burlington v. Leebrick*, 43 Iowa, 252.

Said act is not unconstitutional because of certain powers and duties conferred upon the courts in relation to the mode of organizing said towns, as these duties are judicial in their nature, and the legislature, and not the court, prescribes the powers, duties and liabilities of which the corporation is possessed. *Kayser v. Trustees of Bremen*, 16 Mo. 88; *Mayor, etc., v. Shelton*, 1 Head, 24; *Burlington v. Leebrick*, 43 Iowa, 252; *Bank of Chenango v. Brown*, 26 N. Y. 467; *People v. Solomon*, 51 Ill. 37; *Burgess v. Pue*, 2 Gill, 11; *Hammond v. Haines*, 25 Md. 541; *Commonwealth v. Montrose*, 52 Pa. St. 391.

The opinion of the court was delivered by

ANDERS, C. J.—This action was brought in the district court of the Second judicial district of Washington Territory, holding terms at Tacoma, in and for Pierce county, to enquire and determine by what warrant or authority the appellees claim to exercise the powers of a board of trustees of the town of Puyallup, in that county, and to oust them from office as such board of trustees and to dissolve said municipal corporation. The complaint states:

"First, that the above named defendants, at a place called Puyallup, in Pierce county, Washington Territory, do now unlawfully act as a municipal corporation under the name and style of the town of Puyallup, without being legally incorporated, and as a board of trustees of said alleged municipal corporation; second, that said defendants act as such corporation and exercise the powers of such board of trustees under color of authority conferred by an order made by the judge of this court, at chambers, in the city of Tacoma, Washington Territory, on the 31st day of July, A.D. 1888, and entered upon record in this court; third, that a certified copy of the record of said order and of the proceedings in the matter relating to the alleged incorporation of said town of Puyallup, marked exhibit A, is hereto annexed for reference and made a part of this complaint, and a correct plat showing the boundaries of said alleged incorporated town of Puyallup, as defined in said order, and the location of the relator's farm hereinafter mentioned, marked exhibit B, is hereto annexed for reference and made a part of this complaint; fourth, that said order is void and of no effect, for the same was made by the judge aforesaid, upon the *ex parte* application of John Beverly, Esq., without a hearing being granted to the relator or to any of the inhabitants or owners of property within the boundaries of said alleged town of Puyallup, and without any notice being given of said application, and no opportunity was at any time given to the relator, or any other person whomsoever, to remonstrate against or oppose the incorporation of said town, or to question the validity or sufficiency of the petition upon which said order was made, or to make complaint as to the boundaries of said alleged

town; and no legal or good evidence was produced before the judge upon which to base the findings of fact recited in said order, and power to make said order is not judicial and not vested in said judge by law; fifth, that the relator is the owner of real property situated within the boundaries of said alleged town, as defined by said order, and he and many others, owners of property situated within said alleged town, have not consented to the incorporation of said town, and are unwilling to have said town incorporated with boundaries including their said property, for that said property is partly improved and cultivated farming land and no part thereof is platted into town lots and streets, and they are unwilling to consent to the laying out of and extending streets across their said land, or to taxation of said land by such alleged municipal corporation."

To this complaint defendants demurred for the alleged reason that the same did not state facts sufficient to constitute a cause of action. The district court sustained the demurrer, and caused judgment for costs to be entered against the plaintiff. From this judgment plaintiff appeals to this court, and we are called upon to determine the question of the legal existence of the town of Puyallup, which also involves the validity of the act of the legislature approved February 2, 1888, entitled "An act for the incorporation of towns and villages," the first section of which, so far as is material to this case, is as follows: "Where a majority of the taxable inhabitants of any town or village within this territory, present a petition to the judge of the district court having jurisdiction of real actions in such county, setting forth the metes and bounds of such town or village, together with the adjacent bounds in all not exceeding in area one square mile, which they desire to include therein, and praying that they may be incorporated, and police established for their local government, and the judge of the district court shall be satisfied that a majority of the taxable inhabitants of such town or village, as shown by the last assessment roll of said county, shall have signed such petition, such judge of

the district court shall cause such petition to be entered in full on the records of such court, together with the names of the petitioners, and shall thereupon make and record an order declaring such town or village duly incorporated, designating in such order the metes and bounds thereof and the names of such town or village, and thenceforward the inhabitants within such metes and bounds are a body politic and corporate." The proceedings for incorporating the town were inaugurated by the presentation to the judge of the district court, by one John Beverly, of a petition signed by sixty-three persons, therein representing themselves to be a majority of the taxable inhabitants of the town of Puyallup, praying that they might be incorporated under the name of the town of Puyallup, and police established for their local government, and that trustees be appointed for the government of said town. The petition also specified and defined the metes and bounds of the proposed territory to be incorporated, and alleged the area thereof to be not exceeding in all one square mile. On the 31st day of July, 1888, the judge of the district court, at chambers, in the city of Tacoma, in Pierce county, in response to the prayer of the petition, made and entered of record an order declaring the town of Puyallup to be duly incorporated under and by virtue of the laws of Washington Territory, and in said order appointed defendants as a board of trustees of the town, in accordance with § 2 of the incorporation act.

It is admitted by the demurrer, and was conceded by counsel on the argument of this case, that the relator is the owner of real property situated within the boundaries of the territory described in the petition and defined by order of the court, that he did not consent to the incorporation of the town, that he was unwilling to have it incorporated with boundaries including his property, that his said real estate is partly improved and cultivated farming land, not platted into town lots and streets, and that he is unwilling

to consent to the laying out of and extending streets across the same, that he is unwilling to submit to taxation of his land by said municipal corporation, that no notice of the presentation of the petition was given, and that the relator had no opportunity to be heard or to remonstrate against or oppose the incorporation of the town, or to question the validity of the order of the judge, or to make complaint as to the boundaries of the proposed municipal corporation.

The proceedings are assailed by appellant as not being in accordance with the law relating thereto. He objects that the petition is defective in not stating that the signers thereof were a majority of the taxable inhabitants of the town, according to the last assessment roll of the county, and that the order of the judge was made upon the certificate of the county assessor, who is not empowered by any law to so certify; that there was no evidence before the judge or court to warrant the order, and that the order was made without jurisdiction of the subject-matter by the court. As the law requires that the petition to be presented to the judge shall be signed by a majority of the taxable inhabitants of the town or village to be incorporated, and that the judge shall be satisfied (in some way not specified by law) that a majority of the taxable inhabitants of the town or village, as shown by the last assessment roll of the county, shall have signed the petition, it is quite doubtful whether an omission to state in the petition that the petitioners are a majority of the taxable inhabitants, as shown by the last assessment roll of the county, is not a matter substantially affecting the subsequent proceedings. But, however this may be, we are not disposed to hold the incorporation invalid on that account, but will assume that the law was substantially complied with.

We now come to the consideration of the validity of the law itself. The object of the act of the legislature was the incorporation of towns and villages, as expressed in the title, and as the meaning of the expression "towns and

villages" is not defined by the law, we must presume that the words were intended to be used in their ordinary acceptation, as meaning an aggregation of houses and inhabitants more or less compact. The word town was originally from the Anglo-Saxon word "tun," an inclosure, and meant a collection of houses inclosed by a wall. Anderson's Law Dictionary, title, "Town." "The fundamental idea of a municipal corporation proper, both in England and in this country, is to invest compact or dense populations with the power of local self-government. Indeed, the necessity for such corporations springs from the existence of centers or agglomerations of population, having, by reason of density and numbers, local or peculiar interests and wants, not common to adjoining sparsely settled or agricultural regions. It is necessary to draw the line which defines the limits of the place and people to be incorporated. This is with us a legislative function." 1 Dill. Mun. Corp. (3d ed.), § 183. In England this power was formerly given by royal grant or charter, presumably at the request of the municipalities themselves, but in this country municipal corporations are purely the creatures of statutes: "They possess no powers or faculties not conferred upon them, either expressly or by fair implication, by the law which creates them, or by other statutes applicable to them." 1 Dill. Mun. Corp. (3d ed.) § 21.

It being conceded that the power to create municipal corporations is vested exclusively in the legislature, the question arises, Can this power be delegated, and, if so, to whom, or to what agencies? Counsel on both sides agree that the legislature may delegate its functions in some measure; but they disagree as to the law-making power to carry the principle to the extent attempted in the act in question. On the one side it is contended that the act approved February 2d, 1888, does not, in fact, delegate legislative authority to the courts; that the statute and not the court determines the extent and nature of the powers of

the corporation; that a statute may be valid though its taking effect may depend on some subsequent event, and that the powers and duties of the courts in relation to the mode of organizing towns are judicial in their nature; that the legislature and not the court prescribes the powers, duties and liabilities of the corporation; and, on the other, it is urged that the law of congress conferring upon the territorial legislature the right to create municipal corporations does not permit the legislature to delegate such right to the courts or judges; that the law is mandatory upon the court, is against public policy, and authorizes the taking of property without due process of law and without notice or opportunity to be heard; and that the including farming land in incorporated towns is unreasonable and unjust. The incorporation of towns by general statutory law is a departure from original methods, and is of comparatively modern date. And it would naturally be expected that the procedure for their organization by this means would not be uniform throughout the different states of the Union. It would be practically impossible for the legislature, by a general law, to fix and define the boundaries of every municipal corporation that might be organized under it; and that question is therefore determined in some other way designated by the general law of the particular jurisdiction. But the authority to incorporate, with us, as in England, has been restricted to cases in which compact communities already exist who desire to assume a corporate character, and have "police established for their local government." 1 Dill. Mun. Corp. (3d ed.), § 183. But unless specially restrained by constitutional provisions, the legislature may delegate the power to determine the territorial limits of the municipal corporation, and thereby settle what property and persons will be subject to municipal control, to appropriate local bodies or boards of officers. 1 Dill. Mun. Corp., *supra; People v. Bennett*, 29 Mich. 451 (S. C. 18 Am. Rep. 110). It would hardly seem probable that the

legislature, while professing to pass a law for the incorporation of "towns and villages," really intended to include therein rural districts or farming lands not platted or laid out in lots or blocks, especially against the will of the owner of such property, and yet the statute, by its terms, covers and includes just such cases; and we do not feel at liberty to construe it otherwise. We entirely agree with the learned judge who decided the case of *People v. Bennett, supra*, when he says that "There are few if any acts of state bearing upon individuals more important than those which determine their liability to be included in particular municipalities; and the cases are rare in which they have not been allowed an opportunity of being heard in every step of the proceedings." And where the individual has not expressly assented or impliedly done so by settling and remaining in a dense community needing corporate powers and privileges, it seems too plain for argument that he should, at least, be accorded a hearing before being compelled to subject himself or his property to the dominion of a municipality with whose interests he has nothing in common. This view of the law is adopted in the case of *People v. Bennett*, above cited. In the case of *Borough of Blooming Valley*, 56 Pa. St. 66, it was held that farming land might be included in the limits of a municipal corporation by consent of the owner, but not otherwise. And in *Borough of Little Meadows*, 28 Pa. St. 256, it was held that the community proposing to be incorporated was too sparse to be called a village within the meaning of the law. On the contrary, it has been held in New Hampshire, with equally good reason, that the selectmen of a town in defining the boundaries of a village could not exclude any part of it, but must include the whole within the village limits. *Osgood v. Clark*, 6 Fost. (N. H.) 307. Appellees contend, as before intimated, that a statute may be conditional, and its taking effect made to depend upon some subsequent event;

and to a certain extent the principle is recognized by the courts. As an illustration, the legislature may enact a general statute for the formation of private corporations, and its taking effect as to any particular corporation may depend upon the assent of the parties interested; they may withhold their assent at pleasure, but cannot be forced to become incorporators. If they accept the terms and provisions of the law they are presumed to be benefited thereby, but if they reject they cannot be injured. While a statute may be conditional and only take effect upon the happening of a future event, we hold that the place where it is to operate, its "*situs*," must be fixed definitely by the legislature itself or delegated to some body or agency capable of exercising legislative functions, and not left to the will or caprice of localities to determine whether it shall be applicable to their particular community or not. Local option laws have been sustained by some courts, but the place where they were to take effect has always been defined by law and not left conditional upon the discretion of the people of any and every locality in the state.

To sustain the position of appellees, counsel cite the case of *Burlington v. Leebrick*, 43 Iowa, 252. The question there was as to the power of the city of Burlington to enlarge its limits by extending its boundaries over contiguous territory, and the court held that the law authorizing a petition for the purpose by the city council, to be presented to and acted upon by the circuit judge, and issues to be found and tried as in other proceedings, was not invalid as an unwarranted delegation of legislative power, basing the opinion on the ground that the determination of the issues by the court was a judicial act, a mere ascertaining of the condition upon which the law might take effect. But, in delivering the opinion, the court used the following language: "Nor is it proper to designate the thing to be accomplished by this statute as the creation of a corporation. A corporation is an artificial being, clothed with certain

powers. In the present case such a corporation exists, known as the city of Burlington. When the act sought in this petition is accomplished, no new corporation will have been created." From this language we might infer that, had the question before the court been that of the formation of a municipal corporation, the decision might have been different. In the case of *Kayser v. Trustees of Bremen*, 16 Mo. 88, the incorporation of a town by the county court, in pursuance of a general statute, was upheld on the ground that the court acted judicially, and had no discretion, and no authority to vest any power in the corporation. And in the case of *Mayor, etc., v. Shelton*, 1 Head, 24, a law substantially like the one under consideration in this case was held valid and constitutional, for the reason that no legislative power was delegated to or exercised by the court. This last decision, however, was under a constitution which provided that "the legislature shall have power to grant such charters of incorporation as they may deem expedient for the public good." We do not feel bound by the decisions in these cases. If the court, in either of the cases, acted judicially in the matter before it, then certainly it should have had a right or "discretion" to exercise its judgment; if its action was not judicial, then surely it must have been a delegated legislative power which it exercised. Counsel for appellees also cite the case of *Blanchard v. Bissell*, 11 Ohio St. 96. The controversy in that case was as to the validity of the statute in relation to the annexation of territory to cities, and it was claimed by Bissell, in a proceeding to enjoin the collection of certain taxes levied upon his property by the city council, that the order of the county commissioners for the annexation of the district embracing his property was void because it included his property with that of others, without his consent and against his remonstrance. The court sustained the law on the ground that the county commissioners were properly clothed with power to do the

acts objected to. Each party was entitled to a hearing under that statute and the commissioners were empowered to order the annexation or not as they might deem reasonable and proper. We agree with that decision, and if our statute were like the one upon which it was based, it would be stripped of its most objectionable features. In the late case of *People ex rel. Rhodes v. Fleming*, 10 Col. 553 (16 Pac. Rep. 298), the supreme court of Colorado held that a law which provides that when the inhabitants of any part of the county, not embraced within the limits of any city or incorporated town, desire to be organized into a city or incorporated town they may apply by petition to the county court, and providing also for the manner of procedure in the organization of such contemplated town or city, was not in conflict with the constitution. The decision in that case seems to have been based upon the broad ground that the legislature, if not expressly prohibited by the constitution, may delegate the power to form municipal corporations to unorganized private individuals; in other words, to the people themselves. We cannot consent to follow the reasoning of that case or to concur in the conclusion reached by the learned court. We think the better doctrine is that laid down by Judge Cooley in his work on Constitutional Limitations (4th ed.), 145–6, which is as follows: "The prevailing doctrine in the courts appears to be, that, except in those cases where, by the constitution, the people have expressly reserved to themselves a power of decision, the function of legislation cannot be exercised by them even to the extent of accepting or rejecting a law which has been framed for their consideration." But we would not be understood as holding that the legislature could not delegate the power to put the machinery of municipal corporations in motion to courts which are not purely legal tribunals. The courts of quarter sessions of Pennsylvania, and the county courts of Oregon and perhaps of other states, are vested with administrative and, in a measure, representa-

tive powers; and they are properly intrusted with the functions attempted by our late territorial legislature, by the law in question, to be imposed upon the district judge.

We hold that a judicial court cannot exercise legislative functions and that the legislature cannot impose such power upon it. *People v. Bennett, supra; People v. Nevada*, 6 Cal. 143; *City of Galesburg v. Hawkinson*, 75 Ill. 152; *People v. Carpenter*, 24 N. Y. 86. Owing to the importance of this case we have given it all the consideration in our power under the circumstances, and we have been greatly aided in our labors by the learning and diligence of counsel on both sides. And we are constrained to hold that the statute under which the town of Puyallup was organized is invalid and cannot be sustained. The cause will therefore be remanded to the court below, with directions to overrule the demurrer and to proceed in accordance with this opinion. And it is so ordered.

STILES, HOYT and SCOTT, JJ., concur.

DUNBAR, J. — I concur in the result, because I do not think the petition was sufficient; but I cannot concur in the opinion that the act of the legislature was unconstitutional.

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[No. 23. Decided February 13, 1890.]

R. A. McNAIR, *Marshal and Tax Collector of the City of Olympia, v.* N. OSTRANDER and ELIZABETH OSTRANDER.

MUNICIPAL CORPORATIONS — ASSESSMENTS FOR STREET IMPROVEMENTS — CONSTRUCTION OF CHARTER.

The act incorporating the city of Olympia gives the city power in § 8, "to construct and repair sidewalks, and to curb, pave, grade, gravel and gutter any street, and to levy and collect a special tax or assessment on the lots and parcels of land fronting on such street, sufficient to pay the expense of construction of said sidewalks, and graveling or paving said streets," and further provides

that "unless the owners of more than one-half the property subject to assessment for such improvement petition the council to make the same, such improvement shall not be made until two-thirds of all the members of the council, by vote, authorize the making of the same;" and § 96 provides for an assessment of lots and an apportionment of the whole cost of "planking" or "graveling," *pro rata;* § 93 provides that whenever the city council deems it expedient to "establish or order the grade of any street or alley of the city, or to make any improvement thereof, as authorized by §§ 5, 6, 7, 8, 9 and 10 of this act," it shall cause a survey, diagram and estimate of the cost thereof to be made and filed "for the inspection of the persons interested therein;" § 94 provides that under certain circumstances the council is authorized to proceed and "make the improvement;" and other sections speak of the "cost of improvements," and require the council to provide, by ordinance, for its payment as apportioned. *Held*, that all the sections of the charter upon the subject of street improvements must be construed together, and that authority is thereby conferred upon the city of Olympia to levy special assessments to pay for grading streets, as well as for graveling and paving them.

*Appeal from District Court, Thurston County.*

The facts are stated fully in the opinion.

*Charles H. Ayer*, City Attorney, for appellant.

"The meaning of a law is ascertained from its words. Where these are obscure, regard is to be had to its (1) context, (2) subject-matter, (3) effect and consequences, (4) reason and spirit." Robinson's Elementary Law (1st ed.), p. 2; Blackstone, Com. (Cooley's 3d ed.), vol. 1, p. 59.

The meaning intended to be conveyed by the words used in §§ 7, 8, 96, *et seq.*, of the charter of the city of Olympia being obscure, it will be necessary to apply the lights thus provided. Under the head of context we have the rule that effect and force must be given to each part of the statute if possible. 14 B. Mon. 266; *Cannon v. Vaughn*, 12 Tex. 399; *San Francisco v. Hagen*, 5 Cal. 169.

The power to pave and gravel at the expense of the property owners carries with it the power to grade at their expense, that being necessary or incidental to graveling or

paving. 2 Dill. Mun. Corp. (3d ed.), p. 794, and cases cited; *McNamara v. Estes*, 22 Iowa, 246.

*J. W. Robinson*, for appellees.

The powers of the city must be measured by its charter, and having been given authority to levy a special tax or assessment for certain improvements, naming them, and making such assessments a lien against the abutting property therefor, it is a limitation on the city's power and prohibits the levying of special taxes or assessments on abutting property for any other improvement not therein named. Charter of Olympia, chap. 2, and chap. 8, p. 20; Dill. Mun. Corp. (3d ed.), §§ 50, 391, 763-5, 769, 770, 782 and 606; Cooley, Const. Lim. (5th ed.), §§ 192, 194, 195 and 203; Desty, Taxation, vol. 2, p. 1241; *Navigation Co. v. Portland*, 2 Or. 81; *Trustees v. Osborn*, 9 Ind. 459; *Fairfield v. Ratcliff*, 20 Iowa, 396; *Douglass v. Placerville*, 18 Cal. 643; *Taylor v. Donner*, 31 Cal. 480; *Buckwell v. Story*, 36 Cal. 67; *Wilson v. Chilcott*, 21 Pac. Rep. 901; *Wright v. Chicago*, 20 Ill. 252; *Jeffries v. Lawrence*, 42 Iowa, 489; *In re* M. E. Church, 66 N. Y. 395; *Vance v. City of Little Rock*, 30 Ark. 435; *Allen v. City of Galveston*, 51 Tex. 302.

The power to make improvements does not carry with it the power to levy special assessments upon the property benefited to pay for the improvements. Assessments exercise different powers from that of taxes; it cannot be exercised as an independent power, but only as incidental. *Wright v. Chicago*, 20 Ill. 252; *City of Fairfield v. Ratcliff*, 20 Iowa, 396; *Annapolis v. Maryland*, 32 Md. 471; *Taylor v. Palmer*, 31 Cal. 240.

The opinion of the court was delivered by

STILES, J.—The appellant was tax collector of the city of Olympia, in the county of Thurston, and this action was brought to restrain him from selling a block of land fronting on Adams street for the amount of a special tax levied

upon the block by the city authorities for the expense of grading the street. The complaint alleged certain acts of the common council, preceding and leading up to the levy and threatened sales, against the regularity of which no complaint was made. The ground of the action was, that under the act of the legislature approved November 28, 1883, incorporating the city of Olympia, no authority was given to the municipal corporation to levy special taxes for grading streets upon abutting property. A demurrer was interposed by the collector, but it was overruled by the court below, and upon his declining to plead further, judgment finally restraining him was entered. By this appeal we are asked to review the judgment and say whether or not the contested power exists.

It would naturally be expected that a legislative act which purported to confer upon a municipal corporation, created by its own terms, any power to levy special taxes for the improvement of streets would clearly cover the matter of grading, which must be the beginning of all street improvement. But in the act before us the genius of legislation seems to have been invoked to aid confusion and uncertainty rather than order and precision. Section 7 provides generally that the city "shall have power to provide for clearing, opening, grading, graveling, improving and repairing streets," etc., which clearly goes no further than that the city may, out of its own treasury, procured from general taxation, do those things at the pleasure of its mayor and council. Section 8 gives the city power "to construct and repair sidewalks, and to curb, pave, grade, gravel and gutter any street, . . . and to levy and collect a special tax or assessment on the lots and parcels of land fronting on such street, . . . sufficient to pay the expense of construction of *said sidewalks* and *graveling* or *paving* said streets," etc. Further along, after providing for assessment districts, the section reads: "But unless the owners of more than one-half the

property subject to assessment for such improvement petition the council to make the same, *such improvement* shall not be made until two-thirds of all the members of the council by vote authorize the making of the same."

Appellee maintains (and it was apparently so held by the district court) that the provision here made for the levy of special taxes must be taken to apply strictly to the particular kinds of improvement named in that connection, viz., "construction of sidewalks, and graveling or paving streets," to the exclusion of repairing sidewalks, and curbing, grading and guttering streets. This view is claimed to be further strengthened by reference to § 96, providing for the details of special assessments, where it is enacted that in all cases when the council shall order the "improvement of any street or alley *by the construction of sidewalks or graveling said streets*," etc., there shall be certain proceedings designated and leading to the levy of a special assessment therefor. On the other hand, § 93, which is the first of the sections providing specifically for the manner of levying these special taxes (chapter 8), enacts that whenever the city council deems it expedient "to establish or order the grade of any street or alley of the city, or to *make any improvement thereof*, as authorized by §§ 5, 6, 7, 8, 9 and 10 of this act," it shall cause a survey, diagram and estimate of the cost thereof to be made, and filed with the city clerk "for the inspection of the persons interested therein;" and by § 94, if two-thirds in number of the persons owning property on the street, and representing one-half of the property thereof, do not remonstrate within ten days, the council is authorized to proceed and "make the improvement." Section 96 provides for an assessment of lots and an apportionment of the whole cost of "*planking*" or "*graveling*," *pro rata*, although no previous mention has been made in the entire act of any "planking" whatever. Section 99, however, returns to the general term and speaks merely of the "cost of improvements," and

requires the council to provide, by ordinance, for its payment as apportioned; so, also, do §§ 106, 107, 108 and 109. It is the duty of this court to give to the statute that force which its provisions on the subject of street improvements will fairly sustain, although in all its expressions it may not be entirely clear.

Counsel for the appellee has presented us with numerous authorities to the effect that the power to levy special assessments must be plainly and explicitly given, or it cannot be exercised; and to them we yield ready assent. But here the *power* to levy is most explicitly given; and the question to be answered is, whether the language used in §§ 8 and 96 is to be construed by itself, or with reference to that of other sections of the act upon the same subject. In § 8 the provision with regard to sidewalks is, first, to "construct and repair," and secondly, "construction." These terms are synonymous. *Gurnee v. Chicago*, 40 Ill. 165; *People v. Brooklyn*, 21 Barb. 484. With regard to streets and alleys the power is to "curb, pave, grade, gravel and gutter;" while the special assessment mentioned is for "graveling or paving." The last clause of the section, which seems to qualify all that precedes it, gives to owners of abutting property the right to petition for such "improvement," and requires a two-thirds vote of the council to order it, in the absence of such petition. There would seem to be no propriety in this rule as to anything but the construction of sidewalks and the graveling of streets, if the appellee's construction of the section were the correct one. Again, do the terms "graveling" and "paving" fairly include the other things, "curb," "grade" and "gutter"? We think they do; and this view is sustained by authority. Dillon on Municipal Corporations (3d ed.), § 797, says: "The power to pave streets includes the power to furnish and do all that is necessary, usual or fit for paving;" and on this ground it has been held that the expense of grading a street preparatory to

paving, is incident to paving, and the expense properly included in the assessment. *Williams v. Detroit*, 2 Mich. 560. In Illinois the power to *pave* is held to include the power to grade streets. *Burnham v. Chicago*, 24 Ill. 496. The power to *pave* was held to include the power to *curb* with stones. *Schenley v. Commonwealth*, 36 Pa. St. 29. And so, also, the power to macadamize was held to include trimming and guttering. *McNamara v. Estes*, 22 Iowa, 246. The definition of the term "pavement" was thus stated in *Burnham v. Chicago:* "A pavement is not limited to uniformly arranged masses of solid material, as blocks of wood, brick or stone, but it may be as well formed of pebbles, or gravel, or other hard substance, which will make a compact, even, hard way or floor." In criticism of this definition it may be said that paving is the generic term, under which "graveling" is the specific; and that while the generic includes the specific, as the greater the less, the reverse does not follow; but the use of exact terms in this act is so entirely disregarded that we must have recourse to a telescopic rather than a microscopic view of it, and we therefore hold that to the average reader of all the sections upon the subject of street improvements, it must appear that the intention of the legislature was to permit the city of Olympia to "improve" its streets, in any of the particulars named in § 8, with money derived from special taxes on abutting property. The system provided for making special assessments in chapter 8 starts out in § 93 with permission to the city council, whenever it deems it expedient, to "make *any improvement*" of a street, of the kind authorized by § 8 and other sections enumerated, to proceed in a certain way, which, according to the contention of the appellee, would lead to a special assessment for "graveling," but would leave the city itself to pay for the grading which must precede the graveling; which we do not consider to be a reasonable interpretation of the act.

The judgment of the court below will be reversed, with instructions to the successor of that court to overrule the demurrer, and proceed with the case in accordance with this opinion. Costs to the appellant.

ANDERS, C. J., and HOYT, SCOTT and DUNBAR, JJ., concur.

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[No. 26. Decided February 13, 1890.]

## J. A. SILSBY v. CLAYTON ALDRIDGE, R. B. HOY AND JAMES BREWER.

REPLEVIN — CHATTEL MORTGAGE — VARIANCE.

In an action of replevin, where personal property had been mortgaged to plaintiffs by third parties, and afterwards, but prior to the maturity of the debt, delivered by the mortgagors to defendant, it is a failure of proof, and not a mere variance curable by amendment, to prove the existence of the mortgage in support of the allegation of plaintiff's ownership.

*Error to District Court, Thurston County.*

Action of replevin by Aldridge and others against Silsby to recover two oxen and their yoke, mortgaged to plaintiffs by third persons, and afterwards delivered by mortgagors to defendant, though the debt was not yet due, and the mortgage contained the usual provision against removal and disposition by the mortgagors.

*Charles H. Ayer*, for plaintiff in error.

The mortgagee is not in a position to maintain replevin. His remedy is by foreclosure, which is an equitable action, admirably fitted for trying the rights of all parties who claim an interest in the subject-matter. Code Wash. T., §§ 1986, 1989, 1995 and 1998; *Byrd v. Forbes*, 3 Wash. T. 318; *Marsh v. Wade*, 20 Pac. Rep. 578.

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23* 836
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7 244
23* 836
34* 932

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d15 31
d16 46

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*Root & Mitchell*, and *B. F. Dennison*, for defendants in error.

Whether defendants in error were owners of the property, or owners of a special property therein as mortgagees, is immaterial. Code Wash. T., §§ 1810, 105, 106, 108 and 113.

A right to immediate possession will sustain suit in replevin. Wells on Replevin, §§ 32, 95-7, 102, 107; *Lazard v. Wheeler*, 22 Cal. 140.

The moment mortgagor gave defendant an order for the mortgaged property the mortgagees became, by express terms of the mortgage, entitled to immediate possession of said property. The title immediately vested in mortgagees, subject only to the right of mortgagor to have same sold, and absolute against all others. Wells on Replevin, §§ 222*a*, 223; Boone on Mortgages, §§ 256, 258; *Hackett v. Manlove*, 14 Cal. 85; *Heyland v. Badger*, 35 Cal. 404; *Wright v. Ross*, 36 Cal. 414.

Under our statutes alleging ownership, but proving special property, is not a material variation. The defendant was not misled. Code Wash. T., §§ 105-107; *Chambers v. Hoover*, 3 Wash. T. 107.

The opinion of the court was delivered by

STILES, J. — Plaintiffs in the court below alleged that they were the owners of two oxen and their yoke, which property the defendant had taken into his possession unlawfully and without plaintiffs' consent, and they demanded the return of the property. Defendant denied the ownership of the property by plaintiffs, and the unlawfulness of the taking, and alleged title in himself. At the trial, plaintiffs, to sustain their allegation of ownership produced, and, over the objection of the defendant, were allowed to put in evidence a chattel mortgage executed by certain third parties to the plaintiffs, covering the

oxen in question and other property. The testimony on the part of the plaintiffs showed that the mortgage debt was not yet due, and that the mortgage had not been foreclosed. It did not appear that the mortgaged property had ever been in the possession of the plaintiffs, but it had remained in the possession of the mortgagors until a short time previous to the commencement of the action, when, upon the written request of one of the mortgagors, it had been delivered by the other mortgagor to the defendant. The mortgage contained the usual provisions against removal and disposition by the mortgagors. A motion for a nonsuit was made by the defendant and denied by the court, and there was a verdict for the plaintiffs. There were other matters complained of by the plaintiff in error, but they grew out of the value accorded to the chattel mortgage, and need not be touched upon.

In our judgment, the chattel mortgage, under the statutes of Washington, did not convey to the holders any title to the property in question. Chapter 141 of the code provides ample means for the creditor when his security is threatened, and the common-law right of possession seems to be completely abrogated in that regard. Therefore, proof of the existence of the mortgage did not tend to support the allegation of ownership, and the motion for a nonsuit should have been granted.

We are urged to hold that under § 108 of the code there was an immaterial variance which could have been cured by amendment; but it was not a mere variance but a failure of proof; indeed, had the facts been pleaded, instead of the mere conclusion of ownership, under our view of the chattel mortgage act, plaintiffs would have no cause of action. While the mortgage was not foreclos d the mortgagors could have recovered the possession, or if the possession of the defendant endangered the security of the plaintiffs, they could, under the statutes, have the property taken into possession and held for disposal according to the provisions

of § 1989, *et seq.* *Byrd v. Forbes*, 3 Wash. T. 318 (13 Pac. Rep. 715); *Marsh v. Wade*, 20 Pac. Rep. 578.

The judgment is reversed, with directions to the successor of the court below to sustain the defendant's motion for a nonsuit, and dismiss the action.

ANDERS, C. J., and HOYT, SCOTT and DUNBAR, JJ., concur.

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23* 805
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[No. 555. Decided February 20, 1890.]

## J. WILSON PAXTON v. CORAL H. DANFORTH'S *Administrator.*

EQUITY JURISDICTION — VIOLATION OF ESCROW.

Where the complaint shows that plaintiff and defendant both filed upon the same government land, and by way of compromise each agreed to relinquish a portion of the claim to the other, and that plaintiff executed a deed to defendant for twenty acres of the portion relinquished to plaintiff, and placed the same in escrow to be delivered after final proof under his homestead entry, but that prior thereto defendant wrongfully obtained possession of said deed and placed it of record, a court of equity has power to order the return of the deed to escrow, on the ground that plaintiff has a special interest, beyond any mere pecuniary value attached to the instrument, in having said deed held in escrow, in view of the fact that the land laws of the United States prohibit the conveyance of public lands before final proofs.

*Appeal from District Court, Pierce County.*

The facts are fully stated in the opinion.

*John Arthur*, for appellant.

Plaintiff had, at the time of filing his complaint, no title upon which a cloud could be cast. *Farnham v. Campbell*, 34 N. Y. 480; *Bockes v. Lansing*, 74 N. Y. 441–2; *Heywood v. City of Buffalo*, 14 N. Y. 537, 540, 542; *Orton v. Smith*, 18 How. 265; *Phelps v. Harris*, 101 U. S. 374–5.

"There must exist some circumstances establishing the necessity of a resort to equity, to prevent an injury which

might be irreparable, and which equity alone is competent to avert." A court of equity will not interfere to prevent apprehended action in another tribunal. *Town of Venice v. Woodruff*, 62 N. Y. 467.

"If the instrument claimed to constitute the cloud is void upon its face, a court of equity will not interfere to remove it, because such an instrument can work no mischief; and the same is true, although the invalidity does not appear upon the face of the instrument, if it necessarily appears in some one of the links of title which the claimant would have to establish in order to give the instrument force and effect." *Fonda v. Sage*, 48 N. Y. 179, 184–5; *Piersoll v. Elliott*, 6 Pet. 98–9.

The respondent executed the deed mentioned in the complaint in violation of law, and is, consequently, not in a position to invoke the aid of a court of equity to enable him to evade his obligations to the appellant. Rev. St. U. S., §§ 2288, 2292.

If the execution of the deed was not in violation of a law of the United States, plaintiff can not be annoyed and delayed in the perfecting of his title to said lands by the recording thereof in the county auditor's office; if it was in such violation, a court of equity will not shield him from the consequences. *Creath's Adm'r v. Sims*, 5 How. 204.

The court erred in assuming any jurisdiction over the subject-matter of this action; the legal and equitable title to the land being still in the United States. *McDougal v. Ostrander & Hayden*, 14 Copp's Land Owner, 123, and cases there cited; *Lewis v. Lewis*, 43 Am. Dec. 541; *State v. Bachelder*, 80 Am. Dec. 418.

*Lewis Cass Branson*, and *Doolittle & Pritchard*, for appellee.

The respondent's interest in the land is an equitable estate and is sufficient to entitle him to relief as prayed for.

*Lamb v. Davenport*, 18 Wall. 307; *Remington Paper Co. v. O'Dougherty*, 81 N. Y. 474.

The respondent was entitled to relief without regard to the nature of his interest in the land interest. Regarding the so-called deed as an article of chattel property, it was one having but little pecuniary value, and yet its possession and use by the appellant in the way he had done, and which he threatened to do, was a wrong which could not be compensated in damages; and, under the circumstances, regarding the deed as a mere paper scroll, it had a special value to the respondent over and above any pecuniary estimate, and hence, equity should decree a specific delivery. 3 Pom. Eq. Jur., § 1402, and authorities there cited. It is an elementary proposition that delivery is an essential requisite of a deed, and that the placing of the instrument in escrow is not a delivery, and such instrument while in escrow is not a deed but a mere contract or paper scroll; hence, the respondent did no more than make a contract to convey a portion of his homestead claim, and such a contract does not constitute an alienation and does not affect his *status* as a homesteader under the laws of the United States. *Aldrich v. Anderson*, 10 Copp's Land Owner, 358 (S. C. 2 Dec. Dept. Int. Pub. Lands); *Dawson v. Merrille*, 2 Neb. 119; *Matthiesen & Ward v. Williams*, 10 Copp's Land Owner, 356 (S. C. 3 Dec. Dept. Int. Pub. Lands, p. 282).

By the wrongful acts of the appellant, in taking the paper scroll out of the custody where it was placed by the parties and causing it to be recorded in the record of deeds, he has made it assume the form and appearance of an actual conveyance, and the wrongful record made by the appellant *prima facie* evidence of an alienation, such as would defeat the respondent's claim. Upon well recognized grounds of equity jurisprudence the instrument ought to be restored to the custody whence it was taken, or delivered to the respondent. The case is analogous in all its principles to an action for the delivery of a title deed.

3 Pom. Eq. Jur., p. 443, and note 1, and authorities cited; also, 3 Pom. Eq. Jur., § 1377.

The opinion of the court was delivered by

SCOTT, J. — The defendant appeals from the judgment of the district court overruling his demurrer to the complaint, and in granting relief to the plaintiff. It appears from the complaint that in February, 1884, plaintiff, Danforth, and defendant were each seeking to obtain title from the United States to the same parcel of land, plaintiff having a pre-emption filing and the defendant a homestead filing thereon; that in March, 1884, said parties agreed to a compromise whereby plaintiff relinquished his claim to a part of said lands and defendant relinquished his claim to the remaining portion, whereupon each party filed a homestead claim upon the land released by the other. It was further agreed between the parties, in making said compromise, that as soon as the plaintiff should make final proof and entry of the lands embraced in his homestead claim he should convey to the defendant, by deed of warranty, twenty acres thereof. In pursuance of said agreement a deed was signed by the plaintiff, duly acknowledged before a proper officer and placed in escrow in the Tacoma National Bank, there to be held until final proof should be made as aforesaid, when it was to be delivered to the defendant; that soon thereafter the defendant, in violation of the terms of said compromise, conspired with one Daniels to defeat plaintiff's claim to said lands relinquished by defendant, and to prevent the plaintiff from making his final proof; that he induced said Daniels to enter upon and claim said lands and to undertake to obtain title thereto from the United States under its land laws, and to further said designs the defendant wrongfully procured the possession of said deed from the bank and caused the same to be recorded in the county auditor's office of Pierce county before the plaintiff had made his final proof.

Whereupon the plaintiff commenced this suit in equity, and as a part of the relief prayed for he asked the court to decree that the defendant be required to return the deed to said bank, there to be held in escrow. The grounds of the demurrer were that the complaint does not state a cause of action, and that the court had no jurisdiction of the subject-matter. The demurrer was overruled, and the court ordered the deed returned to the bank to be held in escrow.

It appears to us that this is a case wherein a court of equity has jurisdiction and should grant relief. The plaintiff had a special and peculiar interest in said instrument in having the same held in escrow, by reason of the uses to which it could be put and the damage it might do him in causing the loss of his claim, if it should be allowed to remain extant with the appearance of being a deliberate violation, by the plaintiff, of the land laws of the United States, in attempting or agreeing to convey a part of said lands before making final proof. This interest of the plaintiff was beyond any mere pecuniary value that could be attached to the instrument. Legal damages would be too uncertain to constitute an adequate compensation, and in no way would an action at law afford an adequate remedy. See 3 Pomeroy's Equity Jurisprudence, § 1402, and authorities there cited.

It follows therefore that the judgment of the court below should be, and the same is hereby, affirmed.

Anders, C. J., and Stiles, J., concur.

Hoyt and Dunbar, JJ., not sitting.

[No. 14. Decided February 21, 1890.]

# CHARLES NELSON, JOHN EGAN AND OSCAR JOHNSON v. THE TERRITORY OF WASHINGTON.

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APPEAL — PARTIES.

Where judgment has been rendered against three defendants in the district court, and two of them sue out a writ of error, and, in lieu of serving notice thereof on the third defendant, as required by the code, file their affidavit that the defendant not joining in the writ is not within the Territory of Washington, and that diligent endeavor has been made to serve him with a copy of said notice, the appeal will be dismissed.

*Error to District Court, King County.*

*Metcalfe, Turner & Burleigh*, for plaintiffs in error.

*J. A. Stratton*, Prosecuting Attorney, and *W. D. Fenton*, and *P. P. Carroll*, for the Territory.

On motion to dismiss, counsel cited *Parker v. Denny*, 2 Wash. T. 361; Code Wash. T., § 454.

The opinion of the court was delivered by

HOYT, J.—The judgment in this case was against three defendants, only two of whom have joined in the appeal to this court. And, as the appellee urges the non-joinder of the third defendant as a reason for the dismissal of the appeal, the case is brought directly within the authority of *Cline v. Mitchell*, *ante*, p. 24, and the motion to dismiss the appeal must be granted unless a certain affidavit filed by the two defendants in the court below and brought here with the transcript, has the effect of taking the case out of the rule established in the case above cited. Said affidavit is as follows, to wit: "John Egan and Oscar Johnson, each being duly sworn, each for himself deposes and says, that he is one of the plaintiffs in error named in the annexed notice of writ of error; that he is acquainted with Charles Nelson, the defendant in the action entitled in said notice;

that said Nelson is not at this time, as affiant is informed and verily believes, within the Territory of Washington; that affiant has made repeated inquiries, and has otherwise endeavored with diligence to ascertain the whereabouts of said Nelson, and has been unable to ascertain his whereabouts, and for that reason has been unable to serve said Nelson with a copy of said notice;" and we do not think it sufficient for the purpose for which it was made.

The object of the statute requiring all of the parties to a judgment to join in an appeal therefrom, is to have the entire case presented to the appellate court at one time, and not to allow each of the several parties to prosecute a separate appeal, and thus, perhaps, require the appellate court to hear the same cause several times. And if this is the reason of the statute the logical sequence is, that, in case all the parties to a judgment do not join in the appeal, then there must be such service upon or notice to the other parties as will estop them from afterwards claiming their right of appeal. Could the defendant who did not join in this appeal be thus estopped by the filing of the affidavit in question? We think it clear that he could not, as said affidavit does not show that he ever had any knowledge of, or opportunity to join in this appeal, or that there ever was any service upon him of the notice, either actual of constructive. But it may be urged that this construction of the law will place it in the power of one of several parties to a judgment to deprive co-parties of their right of appeal. We think, however, that it is always within the power of the court which has once acquired jurisdiction of the person of a party to an action to provide for the constructive service upon such party of any and all papers that it may be necessary to serve upon him in the progress of the cause in which such jurisdiction was obtained, upon proper showing being made that actual service cannot be had. The remedy of a part of the parties to a judgment who desire to appeal would be to make diligent efforts to

serve the proper notice upon the other parties, and in the event of their being unable to make such service as the statute requires, to make a showing to the court having jurisdiction of what they have done, and obtain an order for such substituted service as the court may think proper.

The appeal must be dismissed.

ANDERS, C. J., and SCOTT, STILES and DUNBAR, JJ., concur.

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1 Wash. 127
5 Pac. 663
23* N. W. 924
32* Am. St. 768
1 Wash. St. 127
33 Am. St. 532

[No. 34. Decided February 24, 1890.]

## A. E. KING v. THE ILWACO RAILWAY AND NAVIGATION COMPANY.

PLEADING — CORPORATE NAME — DEFECTS CURED BY JUDGMENT — ANSWER.

A complaint alleged that the plaintiff company was duly incorporated as "The Ilwaco Steam Navigation Company," and afterwards, by order of, and pursuant to, a vote of its stockholders, at a meeting called for that purpose, the name was changed to the "Ilwaco Railway and Navigation Company;" and there was no allegation that supplemental articles were filed, as required by Code Wash. T., § 2422. After answer and reply were filed, judgment was entered on the pleadings in favor of plaintiff. *Held*, all reasonable intendments will be taken in favor of the pleadings to support a judgment, and it will be inferred that such articles were filed.

Where the attempt to change the corporate name was futile, either because there was no law authorizing it, or because the law was not complied with, and enough appears in the complaint to identify the company under one of two names, the defect will not be held fatal after judgment.

Where the answer to a complaint fails to deny any material allegation thereof, and the affirmative matter pleaded in answer totally fails to constitute any defense, no issue is raised, and there no error in rendering judgment for plaintiff on the pleadings.

*Appeal from District Court, Pacific County.*

The facts are fully stated in the opinion.

*Ira Jones*, and *B. F. Dennison*, for plaintiff in error.

The plaintiff did not demur to the new matter stated in the answer, but filed a reply denying the same. The motion for judgment on the pleadings, therefore, came too late. A judgment on the pleadings, while such an issue of fact is pending, is erroneous. The statute does not authorize a plaintiff to demur, or to make such motion, after filing a reply denying the new matter in the answer. Code, §§ 86–8; 15 Iowa, 438; *Van Valen v. Lapham*, 13 How. Pr. 240.

The office of a demurrer, and of a motion for judgment on the pleadings, is to admit the facts for the purpose of testing their sufficiency; neither can be interposed while the plaintiff is denying the facts.

The complaint shows that the "Ilwaco Steam Navigation Company" is the owner of the alleged subscription paper, — not the "Ilwaco Railway and Navigation Company."

A corporation cannot sue or be sued otherwise than in its corporate name.

A corporation can only change its name by complying with § 2422 of the code, namely, by filing "supplemental articles." This is not alleged.

The complaint shows on its face that the so-called corporation plaintiff is not, and was not at any time, incorporated as or in the name of "The Ilwaco Railway and Navigation Company."

*Fulton Bros.*, for defendant in error, cited *Blair v. Buttolph*, 33 N. W. Rep. 349; 2 Pars. Cont. 769.

The opinion of the court was delivered by

Scott, J. — The question presented in this case is on the construction of the pleadings. The complaint (omitting the formal parts) is as follows:

"The above named plaintiff, complaining of the above named defendant, for its cause of action, alleges: That the plaintiff is, and during all the time therein alleged was, a corporation duly formed, incorporated, organized and existing under and by virtue of the laws of the Territory of Washington, for the purpose, among other things, of building, equipping, operating and maintaining a railroad from the town of Ilwaco, in Pacific county, Washington Territory, to a point on Shoalwater Bay, in said county. 2. That said corporation was, prior to the 6th day of August, 1888, incorporated as, and known as, and named 'The Ilwaco Steam Navigation Company, and on the 6th day of August, 1888, by order of and pursuant to a vote of its stockholders, at a meeting called for that purpose, said name was changed to the 'Ilwaco Railway and Navigation Company,' and it has ever since been known and gone by that name, and that is its present name. 3. That heretofore, in the year 1887, the defendant, being a resident of and property owner in said county, with other persons entered into with one I. W. Case, and signed a certain subscription paper or agreement in words and figures as follows, to wit: 'This agreement witnesseth: That in consideration of I. W. Case or his assigns constructing and equipping a narrow-gauge railroad from Ilwaco, Washington Territory, through Ocean Park, to a point on Shoalwater Bay, in said territory, by the first day of June, 1889, each of the undersigned agrees to pay to the said I. W. Case or his assigns the amount set opposite his name, by him subscribed, and agrees to pay the same on the day, within said period, that the first steam engine with passenger coach attached passes over said road from Ilwaco to Shoalwater Bay.' 'Name of subscriber.' 'Amount subscribed.' That among others the said defendant subscribed his name to said agreement, and set opposite his name, so subscribed, the sum of $150, and delivered said contract to said Case, and thereby agreed to pay said Case or his assigns the said sum of money on the conditions in said agreement set forth and contained. 4. That thereafter, on the 17th day of July, 1888, the plaintiff proposed to said Case to construct said road for said subscription, and B. A. Seaborg and L. A. Loomis, being trustees for said plaintiff, said Case assigned said subscription and said agreement and all his

rights thereunder, to them; and thereafter, on the 21st day of July, 1888, said Seaborg and Loomis assigned and set over and transferred to plaintiff said subscription and agreement, together with all their rights thereunder, to plaintiff. That at that time there was no railroad between said points, and on the faith of said contract and subscription, and relying thereon, and for the purpose of accepting the same, complying with the terms thereof, and earning said sum of $150, and all other sums subscribed thereto, plaintiff did, prior to said first day of June, 1889, construct and equip a narrow-gauge railroad from Ilwaco, Washington Territory, through Ocean Park, to a point on Shoalwater Bay, in said county and territory, and expended large sums of money in so doing, and plaintiff did so construct and equip said road, and run a passenger train, that is to say, a steam engine with a passenger coach attached thereto, over said road from Ilwaco aforesaid, to a point on Shoalwater Bay aforesaid, prior to the first day of June, 1889, to wit: On the — day of May, 1889. 5. That though often demanded, defendant has paid no part of said sum of $150, but the whole thereof is now due and owing, and unpaid, from defendant to plaintiff; and plaintiff demands judgment against the defendant for said sum, with its costs and disbursements of this action."

The defendant's answer (omitting the formal parts) is as follows:

"Now comes the above named defendant, E. A. King, and for answer to the plaintiff's complaint, alleges: That before and at the time defendant signed the agreement, mentioned in the complaint, one I. W. Case, by his agent, L. A. Loomis, falsely and fraudulently represented to the defendant that he intended to build, construct and equip a narrow-gauge railway from Illwaco to Shoalwater Bay, passing through Ocean Park from one end to the other, and through Clark's addition thereto, on a straight line, and that the terminus was located on the land of Charles Sengren, and that said line and terminus was definitely and permanently located, as aforesaid, on said line and land, and then and there plaintiff requested the defendant to subscribe said written contract, mentioned in the complaint; and the said I. W. Case well knew, before and at the time defendant signed said contract, that said line and terminus

was not so located or definitely located; and that said false and fraudulent representations were made with intent to cheat and defraud the defendant; that defendant relied upon said false and fraudulent representations and signed said contract, and agreed, on the face of the same, to pay said sum of $150, and not otherwise. Whereof defendant asks judgment for his costs and disbursements against the plaintiff."

The plaintiff replied denying the allegations of the answer, and afterwards filed his motion for judgment on the pleadings for the amount asked in the complaint. The court granted the motion and the defendant appealed. He alleges that the complaint does not show a cause of action in the plaintiff named; that there was no such corporation as "The Ilwaco Railway and Navigation Company;" and that otherwise the defendant was entitled to a trial upon the merits.

It is conceded by appellant that a private corporation may by its own act, under code, § 2422, change its corporate name by filing supplemental articles. The claim is made, however, that the plaintiff did not comply with the law in attempting to change its name; that the complaint shows that the change was sought to be made simply by a vote of the stockholders; that such action was illegal, and consequently that the complaint fails to show a cause of action in the plaintiff. We do not deem it necessary to decide whether, under the law, a private corporation can change its name at will, by its own act. As this point is conceded by appellant we adopt his view for the purposes of this case, but we do not agree with the view he takes of the complaint. After judgment a different and more liberal rule obtains in the construction of a pleading from that recognized before judgment. All reasonable intendments will be taken in favor of the pleading to support a judgment. And we think that from the complaint, viewed in the light of this liberal rule, a fair inference may be drawn that a change of name was made

in the manner conceded by appellant to be authorized by law, viz., by filing supplemental articles, and that the same was so done on August 6, 1888, by order of and pursuant to a vote of its stockholders previously had. Upon the other hand, if the attempt to change the corporate name was futile, either because there was no law authorizing it, or because the law was not complied with, if it does authorize it, it follows that the plaintiff's name was, at the time the action was prosecuted, "The Ilwaco Steam Navigation Company," and not "The Ilwaco Railway and Navigation Company," appearing as plaintiff in the entitling of the case. However this may be, enough appears in the complaint to identify the plaintiff. It was the same corporation under one name or the other. If the plaintiff's name in the entitling of the action was wrong, this was an irregularity which should have been taken advantage of in the court below. There is enough in the complaint to identify the plaintiff under one of two names. We do not think if the plaintiff did undertake to prosecute the suit under an illegal name in the entitling of the cause, that it is such a defect as will be fatal to the case against the objection urged here that the complaint fails to show a cause of action in the plaintiff, especially when viewed in the liberal light it is entitled to be viewed in after judgment.

As to the further allegation that the court erred in rendering judgment for the plaintiff on the pleadings, we think the action of the court was proper, as the answer did not raise any issue. No material allegation of the complaint was controverted by it. The affirmative matter pleaded totally failed to constitute any defense. There is no allegation in the answer, nor does it anywhere appear that the road was not constructed and terminated in accordance with the statements therein set forth as made by the agent, and within the time prescribed. The answer simply alleges that it was not located, or definitely located, as rep-

resented by said agent, at the time the defendant signed the subscription. It appears to us that this question as to the time of locating was an immaterial matter, if the road was subsequently constructed and terminus located according to the representations alleged to have been made. The defendant makes no claim that this was not done. In no way does he attempt to show or claim that he was injured by the fact that the line of road and the terminus at Shoalwater Bay were not located, or definitely located, at the time he subscribed the amount specified. And whatever defense the matters set up might have constituted, had these other matters been pleaded, they had no effect and raised no issue in the present case. The judgment of the lower court is therefore affirmed.

ANDERS, C. J., and DUNBAR, HOYT and STILES, JJ., concur.

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[No. 633. Decided February 24, 1890.]

## BELLINGHAM BAY AND BRITISH COLUMBIA RAILROAD COMPANY v. H. B. STRAND.

JUSTICE OF THE PEACE — PLEADING — FORCIBLE ENTRY AND DETAINER — EVIDENCE.

In an action for forcible entry and detainer, an answer alleging that defendant had been in the quiet possession of the premises for more than one year preceding the filing of the complaint, but which fails to allege that defendant's estate in the premises had not ended, is insufficient under the provisions of § 1836, Code Wash. T.

The failure of plaintiff to reply to the defendant's allegation of quiet possession for more than one year, in an action before a justice of the peace, cannot be regarded as an admission of its truth, as, under § 1757, Code Wash. T., all new matters in the answer constituting a defense, except set-off, are presumed to be denied.

In such an action, no question of title being involved, there was no error in excluding evidence that defendant had paid taxes on the premises in controversy for two years last past, no other proof of possession or right of possession being offered by defendant.

It was assigned as error that the court erred in excluding evidence "that during the two years last past, defendant had been in the actual, open and notorious possession of large portions of the said tract of several hundred acres of land which originally included the said land in controversy." *Held*, that such evidence was irrelevant to the issue in an action of forcible entry and detainer.

Where plaintiff proved his quiet and lawful possession for a long time prior to and up to the time of the alleged forcible entry, and defendant offered no evidence of its right of possession, and none in contravention of plaintiff's proof, while its answer admitted it was in possession of the premises at the commencement of the action, the evidence will sustain a verdict in favor of plaintiff.

*Error to District Court, Whatcom County.*

The facts are fully stated in the opinion.

*C. W. Dorr*, for plaintiff in error.

Defendant's answer to the complaint contained new affirmative matter constituting a defense, to wit: The allegation that it had been in the quiet possession of the premises in controversy for more than one year immediately preceding the filing of the original complaint; and to this there was no reply whatever by the plaintiff, and the allegation must therefore be taken as true, because it is material, and stands uncontroverted. Code of 1881, § 103; *Scofield v. State National Bank*, 9 Neb. 316; *Ballanger v. Lautier*, 15 Kan. 608; *Board of Education v. Shaw*, 15 Kan. 33; Code of 1881, § 86; *Puget Sound Iron Co. v. Worthington*, 2 Wash. T. 483.

The evidence offered by the defendant on the trial should have been admitted. "Whether there be any evidence or not is a question for the judge; whether it is sufficient evidence is a question for the jury." Green. Ev. (14th ed.) § 49, and cases there cited; Thompson on Trials, § 318, and cases there cited; *Farewell v. Tyler*, 5 Iowa, 540; *Rush v. French*, 1 Ariz. 99.

In determining the question of adverse possession, the payment of taxes, by the person asserting title by such possession, is a fact which may, with other circumstances,

be considered by the jury. *Draper v. Shoot*, 25 Mo. 197; *Turner v. Hall*, 60 Mo. 271; *Gaines v. Saunders*, 87 Mo. 557; *Daniel v. Gualala Mill Co.*, 19 Pac. Rep. 519; *Thiers v. Holmes*, 9 S. W. Rep. 191; *Booth v. Small*, 25 Iowa, 181.

*H. A. Fairchild*, for defendant in error.

The opinion of the court was delivered by

DUNBAR, J.—This is an action for forcible entry and detainer brought in the justice's court of Whatcom precinct, Whatcom county, Washington Territory, under the provisions of chapter 123 of the Code of Washington, by H. B. Strand, plaintiff, against the Bellingham Bay and British Columbia Railroad Company, a corporation, defendant, to recover possession of a certain lot or parcel of land upon which defendant was alleged to have unlawfully entered on the 28th day of January, 1889, and since then to have remained in the possession thereof up to the time of the commencement of this suit. Plaintiff alleges that he was, on the said 28th day of January, and for a long time prior thereto had been, in the quiet, lawful and peaceable possession of, and entitled to the possession of, said described tract of land. There was a general denial on the part of the defendant of all the allegations of the complaint, excepting that defendant was in possession of said premises, which was admitted by the answer, and averred to be lawful. The defendant further answered that it had been in the quiet possession of said premises for more than one year immediately preceding the filing of the complaint in this action. On the 9th day of March, 1889, there was a trial by jury in the justice's court, and a verdict of not guilty was returned, and judgment entered thereon in favor of defendant. Plaintiff appealed to the district court of Washington Territory, holding terms at Whatcom, where said cause came on for trial at the March term of said court; and upon the trial of said cause by a jury, a verdict was

rendered for plaintiff and judgment entered thereon. From said judgment defendant appealed to this court.

It is contended by the defendant, plaintiff in error, that the affirmative declaration of defendant, that it had been in the quiet possession of the premises for more than one year immediately preceding the filing of the complaint, is not only a material allegation in the answer, but if sustained is a complete defense to the action of forcible entry and detainer; and that, as it stands uncontroverted by any reply of plaintiff, it is an absolute bar to judgment for plaintiff in this suit. Even had this allegation not been controverted, it did not go far enough to constitute a bar under the statute. The language of the statute is: "One year's quiet possession of the premises immediately preceding the filing of the complaint, by the party complained of, or those under whom he holds, may be pleaded by any defendant in bar of the plaintiff's demand of possession, unless the estate therein be ended." Code of Washington, § 1836. The last clause in the statute is very important. The defendant may have had a leasehold interest in the premises, and under such lease have been in the quiet and rightful possession of them for the time alleged in the answer; and yet, if his lease had expired within the year, the alleged quiet possession would manifestly not be a defense to the action. To bring itself within the protection of the statute the defendant, in addition to the allegation of quiet possession, should also have alleged that its estate in said premises had not ended. But we cannot agree with the defendant that the allegation on which it relies is not controverted; § 86 of the code, cited by defendant, is not applicable to pleadings in a justice's court. The only provision made by the law for a reply in a justice's court is in subdivision 3 of § 1757 of the code; that is when the answer sets up a set-off by way of defense; all other new matters in the answer constituting a defense are presumed to be denied.

Defendant complains that the court erred in sustaining

plaintiff's objection to its offer to prove that it had, for two years last past, paid taxes upon said premises. Whatever may be the effect, if any, of the payment of taxes as tending to prove right of possession when coupled with the proof of other circumstances, we are not called upon to decide; for the statement of facts shows that no other proof of possession, or right of possession, to the particular premises in controversy, was offered by the defendant. No question of ownership or title is involved here; it is simply a question of possession forcibly detained. A. may own land and lease it to B., and in the absence of any stipulation to the contrary, A. must pay the taxes on said property; and in an action of forcible entry and detainer brought by either one against the other the proof of such payment of taxes by A., unsupported by any other circumstances, could not possibly affect B.'s right to the possession of the premises. Hence, there was no error in sustaining the objection to the introduction of this testimony.

The fourth assignment is, "that the court erred in refusing to allow defendant to prove that during the two years last past it had been in the actual, open and notorious possession of large portions of the said tract of several hundred acres of land which originally included the said land in controversy;" and the fifth assignment is, "that the court erred in refusing to allow defendant to prove that before the said tract was originally surveyed, platted and laid off into lots, blocks, streets and alleys, defendant's grantors were in the actual, notorious and open possession of a large portion of the said entire tract of several hundred acres, which possession had been continued by defendant up to the time of the commencement of this suit." We must confess that we are unable to conceive what possible relevancy such testimony could have to the questions in issue in this case. If the proof offered had been admitted to be true it could in no wise have enlightened the jury on the vital question as to who was entitled to the possession of

the particular piece of land described in the complaint at the time of the commencement of this action. It will be observed that defendant nowhere offered to prove that either it or its grantors at the time of the alleged forcible entry, or at any time prior thereto, was in possession or entitled to the possession of the particular land described in the complaint, or any portion thereof; and that there is nothing to indicate that the "large portions" spoken of were even contiguous to the land in question. There was no error in excluding such testimony.

But there is another feature in this case which in our judgment is fatal to appellant's interests. Plaintiff alleges the quiet, lawful and peaceable possession of the property in controversy at the time of the alleged forcible entry and detainer. The defendant denies this possession in plaintiff and alleges that it was in possession. The statement of facts, however, shows that while the plaintiff introduced testimony tending to show his quiet and lawful possession for a long time prior to and up to the time of the alleged forcible entry and detainer, which, in view of the subsequent proceeding, must be presumed to have been *prima facie* proof of quiet possession, the defendant offered no proof whatever of the right of possession to said premises and no testimony in contravention of plaintiff's proof, while at the same time it admitted that it was in possession of said premises at the commencement of the action. We cannot, therefore, escape the conclusion that defendant forcibly took possession of said premises and that it unlawfully holds the same by force. We think the evidence sustains the verdict and that there was no error committed by the court.

The judgment of the court below is affirmed, with costs for appellee.

ANDERS, C. J., and SCOTT, J., concur.

STILES and HOYT, JJ., concur in the result.

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[No. 602. Decided February 24, 1890.]

EZRA MEEKER v. AGUSTUS GARDELLA, ALEXANDER S. FARQUHARSON, CHRISTENA WAGNER AND ALLEN J. MILLER, *Administratrix and Administrator of the estate of* WILLIAM WAGNER, *deceased.*

USE AND OCCUPATION — MEASURE OF DAMAGES — EVIDENCE — EXCEPTION TO INSTRUCTIONS — UNCERTAIN VERDICT — SUMMONING TALESMAN.

Where the court orders the United States marshal to summon a talesman from the bystanders to fill an exhausted panel, the sheriff being present, and, so far as the record shows, not disqualified, and the defendant objects but does not interpose any challenge to the juror, and it does not appear that the juror was in any way unfit to try the case, there is no error prejudicial to the defendant.

In an action for damages for the detention of premises on which there was a hop yard, it is error to permit the introduction of evidence to show the custom of farmers of selling hops while growing, and to show the highest market value of hops before they were gathered or ripe.

Where plaintiff has obtained judgment in an action of ejectment, and defendant appeals, filing bond therefor, in a subsequent action by plaintiff against defendant to recover damages for use and occupation pending the appeal, plaintiff is not bound to sue on the appeal bond.

In an action for use and occupation the true measure of damages where defendant holds under color of title adversely to plaintiff, is the fair rental value of the premises, together with interest thereon to the time of the trial, and it is error to permit evidence of the highest market value of the produce of a farm during the year, for the purpose of proving damages.

Where instructions consisted of a series of separate propositions, and defendant's exception to the charge was "to the giving of which and to the giving of each part thereof," not otherwise pointing the specific parts to which exception was taken, the exception is insufficient, as the court can not say that no part of the charge was sound.

In an action for use and occupation a verdict assessing "damages at $3,050, and legal interest," is bad for uncertainty, and will not sustain a judgment unless the words "and legal interest" be treated as surplusage.

*Appeal from District Court, Pierce County.*

The facts are sufficiently stated in the opinion.

*Roger S. Greene*, for appellant.

Under Code Wash. T., §§ 468, 762, the facts stated in the complaint did not constitute a good cause of action. For the time covered by any stay bond plaintiffs were by statute limited to their remedy upon that bond. The penalty, terms and conditions of that bond are essential facts to constitute a cause of action for withholding possession during the appeal for which it was given.

Express statute makes it the course of the court for the sheriff to select the talesmen. Code Wash. T. § 206.

Evidence of any highest market value was inadmissible unless prefaced by issue of willfulness and evidence of willfulness. No evidence of market value was so prefaced, and the true measure of damages was actual value of crops and pasturage, unharvested and ungrazed, at the place and fit times for harvesting and depasturage; or, to put it differently, the actual values then and there of the pasturage when grazed, and of the harvested crops, less the reasonable expenses of harvesting, curing and baling. *Stockbridge Iron Co. v. Cone Iron Works*, 102 Mass. 80; *Ege v. Kille*, 84 Pa. St. 333; *E. E. Bolles Wooden Ware Co. v. United States*, 16 Otto, 432; Code Wash. T., § 541. Evidence of any market value prior to the time of harvesting, or taking away the crops or pasturage, was inadmissible, no matter what the custom of farmers as to selling crops before ripe may have been. For no damage mentioned in the complaint accrued, until the crops, etc., were taken and appropriated; and no evidence of custom was admissible, unless in aid of the admissibility of such prior market value. A special damage, by reason of the withholding possession during that part of the year prior to harvest, making it impracticable for plaintiffs to dispose of the crops for prices that might

otherwise have been realized, should have been averred in the complaint to prepare the way for proof of the custom, and of the prior market value. The district judge erred in giving the jury as a measure of damages, "the highest market price during the year for any or all the produce or use of the farm, allowing nothing to the defendant for any expense or labor on the same." *Moore v. Crose*, 43 Ind. 30–34; *Stilwell v. Barnett*, 60 Ill. 219; *Tripp v. Grouner*, 60 Ill. 474; *Stockbridge Iron Co. v. Cone Iron Works*, 102 Mass. 80.

Though there are cases in our reports deciding that specification by assignment of error is necessary, there is no case to the effect that it is necessary to specify exclusively in an exception the particular instruction complained of. *The British Bark Latona v. McAllep*, 3 Wash. T. 332*b*, 342; *Swift v. Stine*, 3 Wash. T. 518–520.

*Judson, Sharpstein & Sullivan*, for appellees.

Appellant contends, that for the time covered by the stay bond plaintiffs in the court below were by statute limited to their remedy upon that bond. We answer, that there could be no liability upon the bond until the damages sustained had been fixed by the judgment of some court of competent jurisdiction. In an action to so establish the damages sustained, the bond would be wholly immaterial.

Calling talesmen is no exclusive right of the sheriff. In contemplation of law, the court calls the talesmen. The sheriff only acts under the direction of the court. Code Wash. T., § 206.

When appellant accepted the juror without objection he waived all objection to the manner in which he was called. *Territory v. Hart*, 7 Mont. 42 (14 Pac. Rep. 768, 774); *State v. Elliott*, 45 Iowa, 486; *Erwin v. State*, 29 Ohio St. 190; *Lum v. State*, 11 Tex. App. 483.

Evidence of the market value of hops before harvesting was properly admissible, it being shown that it was the

custom of farmers to sell their hops before they are ripe. It being admitted by appellant that if Meeker's conduct was willful, that then he was liable for the highest market price obtainable for the hops, and his willfulness being shown, it follows that plaintiffs had the right to show the value of this crop from the time it had an established market value up to and including the time of its removal from the premises. Defendant is not charged with taking and carrying away this crop, but he is charged with unlawfully withholding these premises from plaintiffs. For doing this, without right, the highest market value of the crops raised has been fixed by the decisions of numerous courts as the measure of damages. *Ellis v. Ware*, 33 Ind. 191 (5 Am. Rep. 189); *Willie v. Carter*, 11 Am. Dec. 562, and note; *Stewart v. Phillips*, 39 Iowa, 18; *Silsbury v. McCoon*, 3 Comst. 379; *Patchin v. Kelley*, 14 Pac. Rep. 347; *Dewey v. Osborn*, 4 Cow. 388; *Gaines v. City of New Orleans*, 17 Fed. Rep. 30.

This court will not review the action of the court below in giving and refusing to give certain instructions because the exceptions to the ruling of the court were general. *Woods v. Berry*, 14 Pac. Rep. 759; *Cadwell v. Murphy*, 11 N. Y. 416; *Walsh v. Kelley*, 40 N. Y. 556; *Ayrault v. Pacific Bank*, 47 N. Y. 576; *Beaser v. Taylor*, 93 U. S. 46; *Yates v. Bachley*, 33 Wis. 185; *Hopkins Manufacturing Co. v. Aurora, etc., Co.*, 48 Mich. 148.

The opinion of the court was delivered by

ANDERS, C. J. — On the 24th day of March, 1885, a judgment was rendered in the district court of the Second judicial district of Washington Territory, holding terms at Tacoma, against appellant, who was defendant, and in favor of appellees, who were plaintiffs, for the recovery of the possession of certain lands in Pierce county, described in the complaint in this action. Appellant, however, did not relinquish the premises to appellees, but appealed the cause

to the supreme court of the territory, which court, on the 4th day of February, 1886, affirmed the judgment of the court below. Soon after the last mentioned date, appellant surrendered the premises in dispute to appellees. The present action was brought to recover damages for the wrongful withholding, and for use and occupation of the land and premises, during the pendency of the appeal of the former cause to the supreme court, and for the conversion, by appellant, of certain hop poles claimed by appellees. On the land in controversy, there was a cultivated hop yard of about twenty-five acres, a fruit-bearing orchard, and about twenty-five acres of meadow land, besides considerable pasture. Appellant, while in possession from March, 1885, to March, 1886, gathered the hops and fruit, and cut the hay grown on the land, and disposed of the same for his own benefit, and also had the use of the pasture. The principal controversy, during the trial in the lower court, was as to the measure of plaintiff's damages. But before entering into the discussion of that question, we will advert to some other matters which arose in the course of the trial.

It appears from the transcript that in getting a jury to try the cause, the regular panel became exhausted, and while the sheriff of the county was present in the court room, the judge ordered the United States marshal to summon a talesman from the bystanders, which he accordingly did. To this proceeding the defendant objected, and he now assigns the action of the court, in that behalf, as error. For the court to thus order a venire or summons to be served by some other person, when the duly elected and qualified sheriff was present, and, so far as the record shows, not disqualified, was to depart from the usual and regular course of practice; but, as it does not appear that appellant interposed any challenge to the juror so summoned, or that the juror was in any way unfit to try the case, we think that, if the court erred, it was error without prejudice to

the defendant. *State v. Elliott*, 45 Iowa, 486; *Territory v. Hart*, 7 Mont. 42 (14 Pac. Rep. 768, 774).

Appellant also claims that the court erred in permitting evidence to go to the jury as to the custom of farmers of selling hops while growing and before maturity, and that the court wrongfully allowed plaintiff to show the highest market value of hops before they were gathered or ripe, as well as afterwards. And, under the pleadings, we are of the opinion that such testimony should not have been permitted by the court. It related to a matter of special damage not set up in the pleadings; and, besides, it does not appear that appellees would or could have sold the hops before maturity if they had been in possession of the farm and hop yard themselves.

Counsel for appellant further contends that the court erred in overruling the demurrer to the amended complaint. He bases his objection to the complaint on the ground that the action should have been brought on the appeal bond of appellant, filed in the action of ejectment. The position of counsel is not tenable. The bond was given to the appellees, not to provide them any exclusive remedy against appellant for damages, but to indemnify them against payment of costs, and secure to them their damages for being kept out of possession of their property and the satisfaction of the judgment appealed from, in case of its affirmance. Appellees were not bound to sue on the bond, but were at liberty to bring their action for use and occupation directly against the defendant Meeker alone.

In proving damages in the court below, plaintiffs were permitted to show the highest market value of the produce of the farm during the year 1885. They claimed that the measure of their damages was the highest market price of the crops taken by defendant, without any diminution on account of expense of gathering and fitting them for market or for use. On the other hand, the defendant insisted that the market price of the various crops at maturity and

ungathered, with interest thereon, was the correct measure of damages, and all he ought to pay. We do not think that, in the case as presented on the argument, either rule contended for by the respective counsel is the correct measure of damages. As before stated, the action is for use and occupation. The defendant was not a mere naked trespasser; he was holding under color of right adversely to plaintiffs. And, in that case, the true measure of damages is the fair rental value of the premises, together with interest thereon to the time of the trial. Sedgwick and Wait on the Trial of Title to Land, §§ 665, 666, and cases cited; *Vandevoort v. Gould*, 36 N. Y. 639. And the value of the crops raised and harvested by the defendant was immaterial, except so far as it might assist in determining the fair rental value of the premises; and this, no doubt, was the real object of counsel in introducing the testimony above mentioned. Where the action is for use and occupation, the crops raised and harvested by the defendant, while in exclusive possession, belong to him, and not to the owner of the land. *Page v. Fowler*, 39 Cal. 412; *Stockwell v. Phelps*, 34 N. Y. 363; Field on Damages, 593.

Appellant concedes the highest market value of the crops to be the measure of damages if the detention of the lands was willful, which he claims, however, was not the case. The complaint in this action states that the defendant wrongfully continued to hold the exclusive possession of said premises, notwithstanding the judgment and decree of said district court, from the date of the rendition of said judgment to the month of March, 1886, when he yielded possession to plaintiffs. On the trial in the district court appellees introduced in evidence the pleadings, findings of fact and conclusions of law and judgment of the district court in the original action, as well as the opinion and judgment of the supreme court in the case. The district court in that action found that the defendant held the premises in controversy by color of title adverse to plain-

tiffs, and allowed him the value of improvements he had placed on the land as a set-off against the damages for detention, but canceled the lease under which he claimed, for the reason that "the defendant did not, at the time of the making of the lease or at the time of the making of the so-called extension of the same, so fully disclose the facts relating to said premises, to the said Mary I. Walker" (plaintiff's grantor) "as to enable her to contract intelligently and prudently in reference thereto, nor had she been informed by anybody of the facts necessary to give her an intelligent and correct idea of the character and value of the land described in the so-called lease and extension; her agent, the defendant, was fully informed in regard to these matters, but she had but little or no knowledge in reference thereto, having been absent and away from said premises for a long period of time." The court gave judgment for the possession of the premises in favor of plaintiffs, as before stated, but awarded no damages for the detention, beyond the value of the improvements. Appellees claim that this documentary evidence shows that the appellant not only wrongfully, but willfully, detained the land from them, up to the time of the judgment in the former action; and that he continued to hold in the same manner, during the time for which damages are now sought. But we think there was no evidence of willfulness in the case, and that the value of the several crops and of the pasturage, less the value of the labor bestowed thereon, is the amount of the damages, upon the theory of the case apparently adopted by counsel. That sum, in the absence of injury to the premises, is all appellees lost by being out of possession, and they should receive no more than a just compensation for the damages suffered.

The defendant requested the court below to instruct the jury as follows:

"*First:* Plaintiffs are entitled to recover fair compensation for whatever actual damages they have suffered by reason of the acts proved in evidence, and complained of in

their complaint. *Second:* They are not entitled to recover anything in excess of such fair compensation. *Third:* You will decide all the issues in this case according to the weight of evidence. *Fourth:* The plaintiffs are not entitled to recover any sum whatever, unless the fair preponderance of the evidence shows that a sum as large as that is a just and fair compensation to them for the damage actually suffered by them and complained of in the complaint. *Fifth:* The amount of your verdict for the plaintiffs will be based upon the evidence, and will consist of the aggregate of the following items: 1. The value of the hay crop at the date proper to harvest it, and as it stood in the field unharvested, together with interest upon that value from that date to the day of your verdict. 2. The value of the fruit crop at the date proper to gather it, and as it hung on the trees ungathered, together with interest thereon from that date to the day of your verdict. 3. The value of the hop crop at the date proper to pick it, and as it hung on the vines unpicked, together with interest on that value from that date to the day of your verdict. 4. The value of the pasturage for each month of the pasturing season, together with interest on each month's value from the close of the month to the date of your verdict. 5. The value of the hop poles of the plaintiff, removed by the defendant, at the time and place of removal, together with interest thereon from such time to the day of your verdict. 6. There is no evidence in this case that defendant willfully, wantonly, or maliciously, has withholden from Mary I. Walker, or from plaintiffs, or any of them, possession of the lands described in the complaint. 7. There is no evidence before you that Mr. Ezra Meeker acted otherwise than in actual good faith, under color of title, and in an honest belief that he was in the right in holding possession of the premises described in the complaint pending the appeal to the supreme court. 8. In the absence of willfulness or malice or actual bad faith on Mr. Meeker's part in using and occupying the premises, pending the appeal to the supreme court, the plaintiffs have no right to claim or recover in this action, on account of the crops taken, a sum as damages which shall include more than the actual value of the crops at the time when taken, together with interest from that time after deducting all that part of such value which is due to the labor and expense of getting and harvesting the crops."

The court refused to give any of these instructions, and failed to give the same or the substance thereof in any other form or language. They were as favorable to the plaintiffs, under the circumstances of the case, as the law would warrant, and should have been given, especially the last instruction asked. *Smith v. Chicago, etc., R. R. Co.*, 38 Iowa, 518; *Chamberlain v. Collinson*, 45 Iowa, 429; *McLean County Coal Co. v. Long*, 81 Ill. 359; *Weymouth v. Chicago & Northwestern R. R. Co.*, 17 Wis. 550; *Forsyth v. Wells*, 41 Pa. St. 291; *Maye v. Yappen*, 23 Cal. 306; *Ege v. Kille*, 84 Pa. St. 333; *Stockbridge Iron Co. v. Cone Iron Works*, 102 Mass. 80.

The court of its own motion instructed the jury upon the law of the case. The defendant's exception to the charge is "to the giving of which and to the giving of each part thereof." He did not point out the specific parts of the same to which exception was taken, otherwise than as stated above. The instruction, as given, consisted of a series of separate propositions. And as we cannot say that no part of the charge was sound, the exception thereto is insufficient. *Beaver v. Taylor*, 93 U. S. 46; Code of Washington, § 221, subdivision 6; *Ayrault v. Pacific Bank*, 47 N. Y. 570.

The jury returned the following verdict: "We, the jury in the above entitled cause, find for the plaintiffs, and assess the damages at $3,050 and legal interest." The verdict was bad for uncertainty, and would not sustain a judgment for any sum whatever, except by treating the words "and legal interest" as surplusage. It was the exclusive province of the jury to fix the exact amount of damages by their verdict; and it was error to include in the judgment $600 more than was found by the jury.

For the errors above indicated, the judgment of the court below must be reversed, and the cause remanded for a new trial in accordance with this opinion; and it is so ordered.

DUNBAR, SCOTT and STILES, JJ., concur.

HOYT, J., not sitting.

[No. 27. Decided February 27, 1890.]

## JOHN F. SHEEHAN v. H. E. LEVY.

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CHATTEL MORTGAGE — ILLEGAL SEIZURE — DAMAGES — PRACTICE.

Where a debtor mortgaged his stock of goods to a creditor, and gave him possession with authority to sell as expeditiously as possible, without sacrifice, and apply the proceeds to the payment of the debt; and the sheriff, with knowledge of this arrangement, seized the goods under attachments of other creditors of the mortgagor, and sold and scattered the goods so that they were lost to plaintiff: *Held*, that in the absence of any allegation of special damage, the mortgagee was entitled to recover of the sheriff the amount of his debt, and interest thereon, not exceeding the value of the goods at the time of the taking.

In an action against a sheriff for wrongfully seizing and selling goods mortgaged to secure an indebtedness, it is not necessary to plead their value at the time of taking, where no elements of special damage are alleged; but, in order to support a judgment in such case for the amount of the debt, there must be evidence as to the value of the goods seized.

Where, under a chattel mortgage, possession of the mortgaged goods is delivered to the mortgagee with power to sell them at private sale, the mortgagee is, in the absence of fraud, entitled to the undisturbed possession of the goods for disposal according to the terms of the contract, subject to a strict accounting for the proceeds, although the chattel mortgage may not be in the statutory form.

An item of special damage, which, though recoverable, was not alleged in the complaint, cannot be included in the judgment.

It is within the discretion of the court to grant or refuse a motion to strike appellant's brief, for the reason that it does not contain the pleadings and an abstract of the case, as required by the rules of the supreme court, as such matter is required purely for the convenient reference and information of the court.

*Appeal from District Court, Jefferson County.*

The facts are fully stated in the opinion.

*Smith & Hastings*, and *C. H. Gest*, for appellant.

The general rule as to the measure of damages in an action for conversion is the value of the property at the time of its conversion, with interest. *Jefferson v. Hale*, 31

Ark. 286; *Skinner v. Pinney*, 19 Fla. 42; *Coffey v. National Bank*, 46 Mo. 140; *McCormick v. Railroad Co.*, 49 N. Y. 303; *Shepard v. Pratt*, 16 Kan. 209.

The measure of damages in trespass against sheriff for goods wrongfully obtained is the value of said goods at time of wrongful taking. 12 Cal. 457; *Nightingale v. Scannell*, 18 Cal. 315; *Crowell v. Gilmore*, 18 Cal. 372; 20 Cal. 56; *Story v. Robinson*, 32 Cal. 206; *Empire Gold Mining Co. v. Bonanza Gold Mining Co.*, 67 Cal. 406.

*Thomas Burke*, and *T. N. Haller*, for appellee.

The mortgagee in possession of mortgaged property has the right of possession against the whole world, and can not be deprived of that possession until the debt for which the mortgage is executed has been satisfied. *Howe v. Keller*, 27 Conn. 538; *Marsh v. Wade*, 20 Pac. Rep. 578.

If the value of the goods taken by the defendant sheriff had not been stated anywhere in the complaint, the evidentiary stipulation or the findings of the judge, the defendant would still be liable to the mortgagee for the amount of the mortgage debt, with interest. *Norris v. McCanna*, 29 Fed. Rep. 757; *Fox v. Cronan*, 47 N. J. L. 493 (S. C. 4 Atl. Rep. 314); *Williams v. Raper*, 34 N. W. Rep. 890; *Wood v. Franks*, 56 Cal. 217; *Cretin v. Levy*, 37 La. Ann. 182; *Whitaker v. Sumner*, 9 Pick. 308.

Even if the value of the goods were nowhere stated in the case, then the burden of proof of less damage than the amount of the mortgage debt, or of no damage, from the defendant's negligence or breach of duty, rests on the defendant, and in the absence of such proof the judgment of the court below should be sustained. *Smith v. Tooke*, 20 Tex. 751; Sedgwick, Dam. (7th ed.), 449; *Bank of Rome v. Curtis*, 1 Hill, 275; *Purdee v. Robertson*, 6 Hill, 550; *Ransom v. Halcott*, 18 Barb. 56; *Humphrey v. Hathorn*, 24 Barb. 278.

The opinion of the court was delivered by

STILES, J. — The appellee brought suit against the appellant, the sheriff of Jefferson county, to recover damages for the unlawful taking of certain personal property from his possession, under the following circumstances: On the 5th day of November, 1887, one Rostein was the owner of certain goods, the stock in trade of a store kept by him, and on that day, being indebted to appellee in the sum of $1,118, he executed and delivered to appellee an instrument reciting the indebtedness, and authorizing appellee to take possession of the goods and sell them as expeditiously as possible, without sacrifice, and to apply the proceeds, after deducting the expenses of making sale, to the payment of the debt. As soon as the debt was paid the instrument was to be void. The property was forthwith delivered to the appellee, who commenced to dispose of it in accordance with the terms of the instrument. The sheriff had knowledge of this arrangement, but on the 7th day of November he seized the goods and took them from the possession of the appellee under certain attachments issued at the suit of other creditors of Rostein. Subsequently he sold the goods, and they were scattered and lost to the appellee. This action followed, and resulted in a judgment for appellee for the amount of his debt, interest and certain expenses. The sheriff appeals.

Appellee moved to dismiss the appeal, for the reason that the appellant's brief was not served twenty days before the term, inadvertently failing to note that the legislature had changed the first sitting of this court from January 6th to January 13th. A second motion was made to strike appellant's brief, for the reason that it did not contain the pleadings and abstract of the case, as required by rule 8. Appellant argued that the rules of the territorial supreme court were not in force as rules of this court, apparently not being aware that, at our first session, November

18th, 1889, we adopted those rules as the rules of this court. But, inasmuch as the matter omitted was required purely for the convenient reference and information of the court, the motion is directed entirely to its discretion, and we do not deem it best to follow the course suggested. We desire to remark in this connection, however, that appellant's argument that because the transcript in this case is not voluminous, and the evidence is contained in a commendably terse agreed statement of facts, there is no substantial reason for printing the pleadings and statement in the brief, is not a good one, even in the absence of a rule.

The complaint alleged: "That for a long time prior to the 5th day of November, 1887, one L. Rostein was indebted to this plaintiff in the sum of $1,118, and was the owner of a stock of goods, wares and merchandise, situated in the city of Port Townsend, Washington Territory, of the value of $2,000 and upwards;" and there was no other allegation of the value of the goods. Appellant maintains that for the failure to allege the value at the time of the taking, November 7th, it must be held that the complaint was insufficient; but it seems that the nature of the action was misconstrued by counsel for appellant, who assume to treat it as an action for the value of the goods, whereas it is clearly one upon the tort of the officer. In the latter case, although the value of the goods at the time of their taking limits the amount of the mortgagee's recovery, where no elements of special damage are pleaded, it is not necessary to plead the value. The damages are here alleged to have been $2,000, and we think that sufficient. The defendant denied the damage and the amount thereof; and that was the material issue. This was not a statutory chattel mortgage, such as is contemplated by chapter 141 of the code, although the mortgagee caused it to be recorded. Here the possession was forthwith delivered to the mortgagee, and the instrument contained a provision that the mortgagee might sell the goods at private sale.

Although the appellant assails this method of taking security, we can see no objection to it, even under our statute. In the absence of fraud, the parties can make such agreement as they see fit. No fraud is alleged in this case, and the mortgagee was clearly entitled to the undisturbed possession of the goods, for disposal according to the terms of the contract, subject to a strict accounting for the proceeds by the mortgagee. *Marsh v. Wade*, 20 Pac. Rep. 578; *Reynolds v. Thomas*, 28 Kan. 810; *Denny v. Van Dusen*, 27 Kan. 437; Jones on Chattel Mortgages, 775*a*. We are not here called upon to decide whether or not the interest of the mortgagor could be reached by creditors of the mortgagor until after the mortgage debt was paid; the officer took the goods and treated them as though the appellee had no right whatever to the goods or their proceeds, although, as the evidence shows, he had full knowledge of the mortgage and the possession of the appellee. He afterwards sold and scattered them beyond recall; and he now claims that the sum which he derived from their sale is, at most, the measure of appellee's damage. Neither chapter 141, nor the attachment law of 1886, in our judgment, bears any such construction. Chapter 141 contemplates that the possession of the mortgaged property by the mortgagor gives the officer acting at the instance of other creditors, the right to take the property from his possession and sell it subject to the lien of the mortgage, to any purchaser, and this includes the right to deliver the possession to the purchaser. But in doing this, he cannot sell so as to render it impossible for the mortgagee to follow the property into the hands of the purchaser. Certainly the mortgagee in possession is in no worse position than the mortgagee who leaves the mortgaged property in the hands of the mortgagor. We hold that in this case, in the absence of any allegation of special damage, the appellee was entitled to recover the amount of his debt and interest

thereon, not exceeding the value of the goods at the time of their taking.

Certain cases were cited by appellee to the point that he was entitled to his debt and interest without regard to the value of the goods, but they do not maintain the position assumed. In *Norris v. McCanna*, 29 Fed. Rep. 757, the court said: "No question was raised but that the value of the goods exceeded plaintiff's debt," from which we presume that there had been a finding as to the value. In *Wood v. Franks*, 56 Cal. 217, the controlling statute (Civil Code, § 2969) provided thus: "Before the property is so taken (by a sheriff taking mortgaged personal property), the officer must pay or tender to the mortgagee the amount of the mortgage debt and interest," etc., and the court held that an officer who took mortgaged property without such tender assumed the payment of the debt. But we have no such statute.

Appellee also maintains that if he is not entitled to his debt and interest, without regard to the value of the mortgaged property, the burden is upon the officer to show the property taken to be of less value than the amount of the debt and interest; and cites *Smith v. Tooke*, 20 Tex. 751; *Pardee v. Robertson*, 6 Hill, 550, and other cases in support. But an examination of those cases shows that they were actions against officers for their failure to make return of executions wherein the *gravamen* of the controversy was the failure of duty on the part of the officer, which is not in any sense parallel to the case at bar; and we can not agree to the proposition. In all cases where damage results from neglect of official duty on the part of an officer, there are many presumptions justly indulged against him; but here the defendant is not sued as an officer at all, much less upon any alleged neglect; nor should we know him as an officer, but for his answer, wherein he endeavors to excuse his act because he was an officer, acting under lawful process.

Thus far the better of this appeal is with the appellee, and we should have been content to affirm with a slight modification, were it not that the cause comes to us weighted with another objection which we deem so vital as to necessitate a reversal and new trial. The parties desiring a trial by the court without a jury or the actual presence of witnesses, agreed upon and filed a statement of facts and submitted the case upon it. From the statement the court found the facts, and both statement and findings are in the record; and one of appellant's assignments of error is, that neither in the statement nor in the findings is there any reference whatever to the value of the goods seized by the officer. It is a fact that there is no evidence, and therefore no finding of this value, which, under our view of the case, as hereinbefore stated, was necessary to support the judgment. Under chapter 17 of the code the findings of the court stand as a verdict, and must be equally supported by testimony. Had this case been tried by a jury upon the agreed statement, and a charge that the appellee was entitled to a verdict for his debt and interest, not exceeding the value of the goods, their verdict for any amount would have been set aside, since they would have had no basis at all for their findings.

The judgment also included $46 expenses found to have been incurred by the appellee for the rent of the building in which the goods were kept by him. This should not have been so included, as it was an item of special damage, which, although recoverable, was not alleged in the complaint.

The judgment is reversed, and a new trial ordered, with costs to the appellant, not including the expense for his defective brief.

ANDERS, C. J., and HOYT, SCOTT, and DUNBAR, JJ., concur.

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[No. 2. Decided February 28, 1890.]

## AH LIM v. THE TERRITORY OF WASHINGTON.

CONSTITUTIONAL LAW — OPIUM SMOKING.

Code Wash. T., § 2073, as amended by acts 1883, p. 30, providing that "any person or persons who shall smoke or inhale opium, . . . shall be deemed guilty of a misdemeanor," is not unconstitutional on the ground that it involves a deprivation of liberty and property without due process of law. (SCOTT and STILES, JJ., dissent.)

*Appeal from District Court, King County.*

The facts are stated in the opinion.

*Humes & Andrews*, for appellant.

The smoking and inhaling of opium is a vice, and the validity of all laws having for their object the restraint of such vice, must be construed by the same rules of construction as laws having for their objects the restraint and regulation of other vices.

It cannot be made a legal wrong for one to become intoxicated in the privacy of his room. Tiedeman on Limitation of Police Powers, § 68. The right of every man to do what he will with his own, not interfering with the reciprocal rights of others, is accepted among the fundamentals of our law. Cooley, Const. Lim. § 385; Tiedeman, Police Powers, § 68.

The inalienable right to "liberty and pursuit of happiness" is violated when a man is prohibited from doing what does not involve a trespass on others. Tiedeman, Police Powers, p. 152. That the vice of smoking opium is grossly immoral is no argument in favor of the validity of this statute. The police power of the state cannot be brought into operation for the purpose of exacting obedience to the rules of morality, and banishing vice and sin from the world. The municipal law has only to do with trespasses. It can not be called into play in order to save

one from the evil consequences of his own vices; for a violation of a right by the action of another must exist or be threatened in order to justify interference by law. Tiedeman, Police Powers, pp. 150, 151, 302; 1 Blackstone, pp. 123–4.

The territorial legislature had only such power as the organic act gave it. That power extended to "all rightful subjects of legislation." "That which the words 'rightful subjects of legislation' stood for in the minds of the people at the time they were speaking them, is the meaning that belongs to them in this statute and is the meaning we must regard. To find it out we have recourse to the most solemn and authoritative utterances current among the people, namely: Their written constitutions, statutes and adjudications." *Maynard v. Valentine*, 2 Wash. T. 14.

No state in the Union at the time of the passage of the organic act had upon its statute books a statute making a self-regarding act or vice a crime, such as drunkenness and the like, unless such drunkenness or other vice was thrust upon the attention of the public. No such power was given by the constitutions of any of the states to their respective legislatures, but they guaranteed to all the "right to life, liberty and the pursuit of happiness."

*Stratton & Fenton* and *J. T. Ronald*, for The Territory.

No special constitutional limitation or inhibition is pointed out with which the law in question is in conflict, and counsel seem to rest their case upon the broad ground that the "right to liberty and the pursuit of happiness" is violated by the prohibition of any act which does not involve direct and immediate injury to another; a reference to some of the subjects of penal legislation, the validity of which has never been questioned, or, if questioned, has been sustained by the court, may serve to test the soundness, or at least universality of counsel's "fundamental principle."

See *Commonwealth v. Kneeland*, 20 Pick. 206; *People v.*

*Ruggles*, 5 Am. Dec. 225; *State v. Baltimore, etc., R. R. Co.*, 15 W. Va. 362 (S. C. 36 Am. Rep. 803, 814.)

"The question whether a statute is a valid exercise of the legislative power is to be determined solely by reference to constitutional restraints; it may not be declared void because deemed to be opposed to natural justice and equity." *Bertholf v. O'Reilly*, 74 N. Y. 509. See *Davis v. State*, 3 Lea (Tenn.), 378; *People v. West*, 106 N. Y. 297; *Thorpe v. R. & B. R. R. Co.*, 27 Vt. 140; *Commonwealth v. Alger*, 7 Cush. 84.

The opinion of the court was delivered by

DUNBAR, J. — The defendant was indicted at the August term of the district court for King county, for the crime of smoking opium, as follows, to wit (omitting the formal part of the indictment): "The said Ah Lim, on the 27th day of September, A. D. 1889, in the county of King, in the district aforesaid, then and there being, did then and there willfully and unlawfully smoke opium, by then and there burning said opium and inhaling the fumes thereof through an instrument commonly known as an opium pipe, contrary to the form of the statute," etc.

To this indictment the defendant interposed a demurrer specifying several grounds, but the one relied upon by the defendant, and the one to be considered here, is, that the statute upon which the indictment is based is unconstitutional as being in violation of the inalienable right to life, liberty and pursuit of happiness; and that it involves a deprivation of liberty and property, through a limitation upon the means and ways of enjoyment, without due process of law.

The duty of passing upon the constitutionality of a law should be approached by the court with the utmost caution, and demands the most solemn, thoughtful and painstaking consideration. And in view of the consequences to society from the annulling of laws made by the represen-

tatives of the people, and presumed to have been enacted in response to the express desire of the people, it becomes the gravest question with which courts have to deal; and we believe it has been the uniform conviction of the courts that they ought not, and cannot in justice to a co-ordinate department of the state government, declare a law to be void without a strong and earnest conviction, divested of all reasonable doubt, of its validity.

The following quotation from an opinion rendered by Chief Justice MARSHALL in the case of *Fletcher v. Peck*, 6 Cranch, 87, commends itself to our approbation as resting upon sound principles of propriety and right. Said the judge: "The question whether a law be void for its repugnancy to the constitution, is, at all times, a question of much delicacy, which ought seldom, if ever, to be decided in the affirmative in a doubtful case. The court, when impelled by duty to render such a judgment, would be unworthy of its station could it be unmindful of the solemn obligations which that station imposes. But it is not on slight implication and vague conjecture that the legislature is to be pronounced to have transcended its powers, and its acts to be considered as void."

The organic act extends the power of the territorial legislature to all rightful subjects of legislation, and when once we concede the rightfulness of the subject, the extent and character of the legislation on that subject cannot be called in question by the courts; it has a right to take a comprehensive view in determining the necessity of the law, and the character of the purpose to be accomplished by it. This is the especial function of the legislature, and, in the investigation of legislative power, courts have nothing to do with questions of policy or expediency, for as a learned author says: "The constitution has created the legislative and the judicial departments; the one to make law, the other to construe and administer it. It may be mischievous in its effects, burdensome upon the people,

conflict with our conceptions of natural right, abstract justice, or pure morality, and of doubtful propriety in numerous respects, and yet we would not be justified to hold that it was not within the scope of legislative authority for such reason; and, as has been well said by Mr. Cooley in his work on Constitutional Limitations: 'It must be evident to any one that the power to declare a legislative enactment void, is one which the judge, conscious of the fallibility of human judgment, will shrink from exercising, in any case where he can conscientiously and with due regard to duty and official oath, decline the responsibility.' The legislative and judicial are co-ordinate departments of the government, of equal dignity; each alike is supreme in the exercise of its proper functions, and cannot directly or indirectly, while acting within the limits of its authority, be subjected to the control or supervision of the other, without an unwarrantable assumption by that other of power which, by the constitution, is not conferred upon it."

Of course we do not pretend to argue that it is a responsibility which can at all times be obviated or avoided; but we insist that it must always be done with great caution and circumspection. Indeed, so weighty have the courts felt this responsibility, that many courts have adopted a rule that they will not decide a legislative act to be unconstitutional by a majority of a bare quorum of the judges only. Many courts have held that before a law can be pronounced unconstitutional some particular prohibition must be pointed out. In the case of *Bertholf v. O'Reilly*, 74 N. Y. 511, Justice ANDREWS in rendering the opinion of the court says: "The question whether the act under consideration is a valid exercise of legislative power is to be determined solely by reference to constitutional . . . prohibitions. The legislative power has no other limitation. If an act can stand when brought to the test of the constitution, the question of its validity is at an end, and neither the executive nor judicial department of the government

can refuse to recognize or enforce it. The theory that laws may be declared void when deemed to be opposed to natural justice and equity, although they do not violate any constitutional provision, has some support in the *dicta* of learned judges, but has not been approved, so far as we know, by any authoritative adjudication, and is repudiated by numerous authorities. . . . No law can be pronounced invalid for the reason simply that it violates our notions of justice, is oppressive and unfair in its operation, or because, in the opinion of some or all of the citizens of the state, it is not justified by public necessity, or designed to promote the public welfare."

The remedy for unjust or unwise legislation, not obnoxious to constitutional objections, is to be found in a change by the people of their representatives according to the methods provided by the constitution.

Again, in *People v. West*, 106 N. Y. 293 (12 N. E. Rep. 610), the court says: "The power of the legislature to define and declare public offenses is unlimited, except in so far as it is restrained by constitutional provisions and guaranties. A legislative act is presumptively valid, and whoever questions its validity must be able to point to some limitation or restriction, or to some guaranty, in the constitution of the state or the United States, which it violates, before its operation can be stayed or the court be called upon to pronounce it void. . . . The unnecessary multiplication of mere statutory offenses is undoubtedly an evil, and the general interests are best promoted by allowing the largest practicable liberty of individual action; but nevertheless the justice and wisdom of penal legislation, and its extent, within constitutional limits, is a matter resting in the judgment of the legislative branch of the government, with which courts cannot interfere."

Whether or not the main current of decisions flows in the exact direction taken by the court in the New York

cases, we are satisfied that the doctrine is well established, that the power of the legislature cannot be restrained by the courts upon considerations of policy or supposed natural equity. Were this power given to the courts, the law, instead of being administered and decided upon uniform principles, would be decided according to the particular bent or inclination of mind of the ruling judge. What would appeal to one judge as natural equity would not be so received by another, and the different views of what constitutes a natural equity would only be equaled in number by the number of judges on the bench, each judge following his own ideas of abstract right, not limited to any well-defined path of investigation, but controlled and impelled only by his personal ideas of what ought or ought not to be allowed in a particular case; pointed in no definite direction, but drifting aimlessly like mariners at sea under a clouded sky with neither compass nor log.

"Of late years it has been much the fashion," says Judge Bell, in *Commonwealth v. McWilliams*, 11 Pa. St. 61, 70, "to impeach the action of the legislature as unconstitutional when it happens not to accord with the party's notion of abstract right." But, says the court in *Davis v. State*, 3 Lea, 376, "whether a statute is 'contrary to the genius of a free people' is a question for the legislature, not the judge; it cannot be annulled upon supposed natural equity, the inherent rights of freemen, or any general and vague interpretation of a provision of the constitution beyond its plain and obvious import." The judiciary could not set aside a law free from conflict with the constitution because it seemed unjust. It could only interfere by overstepping the limits of its sphere, by appropriating to itself a power beyond its province, and by setting an example which other organs of the government might not be slow to follow. It is its peculiar duty to keep the first lines of the constitution clear; and not to stretch its power in order to correct legislative or executive abuses. Every

branch of the government, the judicial included, does injustice for which there is no remedy, because everything human is imperfect.

The legislative power "may be unwisely exercised or abused, yet it is a power entrusted by the constitution to the legislature, which, while exercised within the scope of the grant, is subject alone to their discretion; with which the judicial tribunals have no right to interfere because, in their judgment, the action of the legislature is contrary to the principles of natural justice." *Williams v. Cammack*, 27 Miss. 209.

In the case at bar no special constitutional limitation or inhibition is pointed out with which the law in question is in conflict, but it is contended by the defense that the right of liberty and pursuit of happiness is violated by the prohibition of any act which does not involve direct and immediate injury to another.

Counsel for appellant says in his brief that the parent may be compelled to send the child to school so many months in the year; the state may prescribe his studies and may tax the people to the verge of bankruptcy to mould the infant's mind to its liking; but this right, he urges, is on the ground that the child is the ward of the state, and that such jurisdiction ceases when it becomes of age. It is difficult to see how the question of inalienable rights can be affected by age, when the law prescribes the age at which the ward arrives at his majority, and the time at which the inalienable rights attach. Doubtless the true theory on which compulsory education is sustained is, that the state has an interest in the intellectual condition of each of its citizens, recognizing the fact that society is but an aggregation of individuals, and that the moral or intellectual plane of society is elevated or degraded in proportion to the plane occupied by its individual members, and that the education is not compelled for the benefit of the

child during its minority, or for its exclusive benefit after its majority.

The state has an undisputed right to, and does provide gymnasium attachments to its schools, and prescribes calisthenic exercises for the muscular development of school children. The object to be obtained is not for the exclusive benefit of the child. The state has an interest in the health of its citizens, and has a right to see to it that its citizens are self-supporting. It is burdened with taxation to build and maintain jails and penitentiaries for the safe keeping of its criminals, and to protect its law-abiding subjects from their ravages. It is taxed to maintain insane asylums for the safe-keeping and care of those who become insane through vicious habits or otherwise. It is compelled to maintain hospitals for its sick, and poorhouses for the indigent and helpless, and surely it ought to have no small interest in, and no small control over, the moral, mental and physical condition of its citizens.

If the state concludes that a given habit is detrimental to either the moral, mental or physical well-being of one of its citizens to such an extent that it is liable to become a burthen upon society, it has an undoubted right to restrain the citizen from the commission of that act; and fair and equitable consideration of the rights of other citizens make it not only its right, but its duty, to restrain him. If a man willfully cuts off his hand or maims himself in such a way that he is liable to become a public charge, no one will doubt the right of the state to punish him; and if he smokes opium, thereby destroying his intellect and shattering his nerves, it is difficult to see why a limitation of power should be imposed upon the state in such a case. But it is urged by the defense that a moderate use of opium, or that the moderate use of an opium pipe, is not deleterious, and consequently cannot be prohibited. We answer that this is a question of fact which can only be inquired into by the legislature. Smoking opium is a

recognized evil in this country. It is a matter of general information that it is an insidious and dangerous vice, a loathsome, disgusting and degrading habit that is becoming dangerously common with the youth of the country, and that its usual concomitants are imbecility, pauperism and crime. It has been regarded as a proper subject of legislation in every western state, and it is admitted by counsel for the defense in the argument of this case that the statute in relation to the suppression of joints kept for the purpose of smoking opium was constitutional and right.

Granted that this is a proper subject for legislative enactment and control, no limit can be placed on the legislative discretion. It is for the legislature to place on foot the inquiry as to just in what degree the use is injurious; to collate all the information and to make all the needful and necessary calculations. These are questions of fact with which the court cannot deal. The constitutionality of laws is not thus to be determined. Some criticism has been made on the fact that the statute did not declare in its title the purpose for which it was enacted. This is not necessary for the validity of a penal statute, and does not affect the constitutionality of its provisions. *People v. West*, 106 N. Y. 297 (12 N. E. Rep. 610).

It is common to indulge in a great deal of loose talk about natural rights and liberties, as if these were terms of well-defined and unchangeable meaning. There is no such thing as an absolute or unqualified right or liberty guaranteed to any member of society. Natural rights and liberties of a subject are relative expressions and have relative or changeable meanings. What would be a right of liberty in one state of society would be an undue license in another. The natural rights of the subject or his rightful exercise of liberty in the pursuit of happiness, depends largely upon the amount of protection which he receives from the government. Governments in their earlier existence afforded but little pro-

tection to their subjects, consequently the subject had a right to pursue his happiness without much regard to the rights of the government. The reciprocal relations were not large—he yielded up but little and received but little. If he was strong enough to buffet successfully with the world, all well and good; if not, he must live on the charity of individuals or die neglected on the highway. But now all civilized governments make provisions for their unfortunates; and progress in this direction has been wonderful even since noted sages like Blackstone lectured upon the inalienable rights of man. Not only is the protection of individual property becoming more secure, but the vicious are restrained and controlled, and the indigent and unfortunate are maintained at the expense of the government, in comfort and decency, and the natural liberties and rights of the subject must yield up something to each one of these burthens which advancing civilization is imposing upon the state. It is not an encroachment upon the time-honored rights of the individual, but it is simply an adjustment of the relative rights and responsibilities incident to the changing condition of society.

Our conclusion is, that the law in question involves no inalienable right. It may be radical, injudicious and wrong; but, as we have before indicated, these are questions solely for legislative investigation and discretion, and as has been said by Judge Story, "Judges should regard it as their duty to interpret laws and not to wander off into speculations upon their policy."

The judgment of the court below is affirmed.

ANDERS, C. J., and HOYT, J., concur.

SCOTT, J. (*dissenting*). — I cannot agree with the decision rendered in this case. That part of the act upon which the indictment is founded, is, in my opinion, void. It is as follows: "Any person or persons who shall smoke or inhale opium . . . shall be deemed guilty

of a misdemeanor," etc. Session laws of 1883, p. 30. It is amendatory of § 2073 of chapter 149 of the code, 1881.

The chapter is entitled "Smoking and inhaling opium," and apparently was mainly intended to prohibit the keeping of resorts for the smoking of opium, and to this extent was a legitimate exercise of police powers. The purpose for which the amendment was adopted is not declared, either in the entitling or in the body of the act, and cannot easily be arrived at. The acts prohibited therein have no reference to the keeping of a resort.

The only other legislation we have found upon the subject is contained in an act approved November 6th, 1877, which amends § 13 of an act approved November 12th, 1875, entitled "An act defining nuisances and securing remedies." The chapter in the code does not refer in any way to this act. All these laws were passed by our various legislatures while we were under a territorial form of government.

The offense charged in this case cannot be held to be a nuisance, for it relates purely to the private action or conduct of the individual, and must not be confounded with those acts which directly affect the public. It is thought that the act in question is *sui generis*, that there is none other of a similar nature in force in this country, or one that has ever been sustained by the courts since we became an independent nation, although there may be an occasional instance somewhat closely allied to it.

Legislation, however, has ordinarily been confined to those cases where the act of the person directly and clearly affected the public in some manner. But here a single inhalation of opium, even by a person in the seclusion of his own house, away from the sight and without the knowledge of any other person, constitutes a criminal offense under this statute. And this regardless of the actual effect of the particular act upon the individual, whether beneficial or injurious.

It is urged that there could be no conviction in such a case for the want of proof. But the difficulty or impossibility of conviction could not affect the criminality of the act. Also the evidence might sometimes be furnished by the admission, or confession of the guilty party, if in no other way. It is admitted that this law can only be sustained upon some one or more of the following grounds, viz.: That smoking or inhaling opium injures the health of the individual, and in this way weakens the state. That it tends to the increase of pauperism. That it destroys the moral sentiment and leads to the commission of crime. In other words, that it has an injurious effect upon the individual, and, consequently, results indirectly in an injury to the community. And it is claimed that we must presume that the legislature had some one or more of these objects in view in enacting the law, although there is nothing upon the face of the act to indicate the legislative intention. This is going to a very great and dangerous extent to sustain legislation, in this most important branch of our social structure.

In the case of the *People v. West*, 106 N. Y. 293 (12 N. E. Rep. 610), in rendering its opinion, the court said: "It is not necessary to the validity of a penal statute that the legislature should declare on the face of the statute the policy or purpose for which it was enacted." The statement was apparently not necessary in the decision of that case, and it is a noticeable fact, in this connection, that, in all the cases cited, the purposes of the acts were declared either in the entitling or in the body thereof, and were placed upon some one of the grounds mentioned, as affecting the health or safety of the public. The act in question, in *People v. West*, was entitled "An act to prevent deception in the sale of dairy products, and to preserve the public health."

In the case of *Bertholf v. O'Reilly*, 74 N. Y. 509, which involved the validity of an act making the owner of real

estate whereon he permitted intoxicating liquors to be sold, liable for damages in injuries resulting to individuals drinking it, the act declared its purpose to be "the suppression of intemperance, pauperism and crime."

In the Slaughter House Cases, 16 Wall. 36, involving an act granting to a corporation the exclusive right to maintain slaughter houses within the limits of a certain prescribed district, and prohibiting all other persons from building, keeping or having such houses therein, the act was entitled "An act to protect the public health."

There may be no good reason for requiring the purpose of the law to be stated upon its face in those cases wherein the injurious effect of the act prohibited thereby is demonstrated by the act itself, like the cutting off of the hand. But there is a substantial difference between such a case and those cases wherein the result of the act, as to its being harmful, is doubtful or not apparent, and perhaps occasionally having an opposite effect in the same or different individuals. In such cases, at least, the object or purpose should be expressed.

In all the cases above cited, the prohibited act directly affected and concerned the public, not simply through any primary effect upon the particular person, and therefore they do not apply with much force to the present case. Section 1924 of the organic act would seem to require that the object of the law should have been more fully expressed in the title, although it may be doubtful as to whether it is within the reason there given. The object must have been to serve some public purpose in one of the ways mentioned, if it is valid, not merely to prevent the smoking of opium. That was only the means by which the final end or object was to be attained. See *Harland v. Territory*, 3 Wash. T. 131, 145 (13 Pac. Rep. 453).

There is no good reason why the legislature should not fairly declare the object or purpose of all such laws, limiting the personal conduct of the citizen, at least, where the

direct or primary effect is upon himself only, and there are many good reasons why it should be required.

Unless the legislature has, as it is claimed it does have, the absolute uncontrolled right to determine that the effect of any personal act it chooses to prohibit is injurious to the particular citizen, and this is untenable, then the authority cited, stating that it is not necessary to declare the purpose of the act upon its face (*People v. West*), is not applicable here, as an entirely different case is presented. Limiting the *scope* of the act to cases where injury results would not merely be declaring its purpose, but would be so *framing* the act as to keep within the legislative province. For clearly where there is no resulting injury there is no right to restrain, if laws restraining the personal conduct can be sustained at all where the act forbidden does not affect the public, except through injury to the particular individual, and thereby possibly injuring the community in some one of the ways specified. Certainly, any idea of carrying such laws to a great extent would be calculated for an advanced public sentiment.

However, if the act in question declared that no man should willfully injure himself by smoking or inhaling opium, thereby limiting its scope to such cases where injury resulted, there would be strong, and I think valid, reasons for sustaining it upon some one or more of the grounds mentioned. Every act of the individual which has a direct tendency to render him unfit to perform the duties he owes to society, is a rightful subject of legislation. The principle is a just and legal one. A man has no right to do that which will render himself an imbecile, or a pauper. Society has an interest in the promotion and preservation of the bodily, mental and moral health of each individual citizen. And laws tending to such results should be upheld in all reasonable ways. But because it is true that personal acts are rightful subjects of legislation to the extent where they clearly interfere with the

reciprocal rights of others, and their control is generally recognized as being within the police powers of the state, or because they may be a rightful subject of legislation to that *further* extent where they merely result in injury to the individual and thus less directly to the state, which, however, has not as yet been very generally, if at all, recognized heretofore in this nation; it cannot be that every self-regarding act of the person which the legislature may choose to prohibit upon the ground that it is injurious to the individual, and thereby to the state, must be allowed to stand unquestioned through the courts, or that the courts have no duty to perform in the premises as to determining whether the legislature has exceeded the limit of its legitimate powers under the constitution, unless a particular specific constitutional provision can be shown which has been violated.

It is the one great principle of our form of government, expressed throughout that soul-inspiring document, our national constitution, that the individual right of self-control is not to be limited, only to that extent which is necessary to promote the general welfare. And these are not only questions of natural right but of constitutional right as well. It is none the less a constitutional guaranty because general in its nature, or implied in the bill of rights, or because each particular act wherein the will of the citizen should not be interfered with is not pointedly and specifically guaranteed. Such particularity would be impossible. When one becomes a member of society he necessarily parts with some rights or privileges which, as an individual, not affected by his relations to others, he might retain.

A body politic is a social compact by which the whole people covenants with each citizen, and each citizen with the whole people, that all shall be governed by certain laws for the common good. This does not confer power upon the whole people to control rights which are purely and

exclusively private, but it does authorize the establishing of laws requiring each citizen to so conduct himself and so use his own property as not unnecessarily to injure another. This is the very essence of government. See *Munn v. State of Illinois*, 4 Otto, 113.

It is contended here that the legislature, being the sole and absolute judge of the effect upon the individual, of the act forbidden, has decided every act of smoking or inhaling opium to be injurious to the person so doing, no matter how long or how short the duration, or how great or how small the quantity, or under what conditions or circumstances the same might have been used, and that there is no right of appeal to the courts in this particular. Such a construction of the law makes the legislature the sole judge of the constitutionality of its own acts of this character.

There must be a right of review or control, to some extent, in the courts. Each citizen is entitled to the protection of all the branches of the government. A declaration by the legislature as to what the law shall be, is not necessarily a conclusion reached by the state. The legislature is not the state, although a very important or essential part of it. The power to protect the rights of the citizen from the wrongful effect of such legislation is peculiarly adapted to, and within the province of, the judicial branch of the government, and can be exercised in one of two ways. Either the scope of such legislation should be limited to those instances where injury results as a matter of fact, and resorting to a trial in court to prove that fact in each individual instance, or if this would render an enforcement of the law impracticable, and a few must suffer for the public good by being prevented from regulating their own personal conduct in some matters beneficial or not harmful to them, in order that another class may be prevented from like actions which to such persons would be harmful, then by recognizing a discretionary power in the legislature to prohibit such acts entirely, and at the

same time recognizing the duty of the courts to correct abuses thereof when the act prohibited should have no real relation or tendency to produce any of the results sought to be avoided.

To declare any private act or omission of the citizen to be a crime, which does not result in any injury to the person and could not possibly affect society, under any other possible view except the last one, would be an unwarranted infringement of individual rights, and therefore unconstitutional. Individual desires are too sacred to be ruthlessly violated where only acts are involved which purely appertain to the person, and which do not clearly result in an injury to society, unless, possibly, thus rendered necessary in order to prevent others from like actions which to them are injurious.

A great principle is involved in this character of legislation. Suppose the legislature had forbidden the use of opium in any manner. If the unqualified right to prohibit its use in one way exists, this carries with it the right to prohibit its use entirely. Substitute any other substance, whether commonly used as medicine, food or drink, and still such a statute must be upheld if the courts have no right of review. It is no answer to say that the legislature would do nothing unreasonable. No man knows as to this. The question is, has it the arbitrary power and right? Neither is it a sufficient answer to say that a man may appeal to a subsequent legislature for redress. That where such laws are wrongfully passed, the remedy must be sought in this way; and that until another legislature is convened, the citizen must tamely submit to and obey the restrictions and commands of every conceivable law relating to his personal conduct that through some possible legislative caprice or inadvertence might find its way upon the statute books, before the question could be again submitted to another legislature and its constitutionality again

be tried by it, as that is virtually what the question would be. If it tended to promote the public welfare in any of the ways specified it would be constitutional, and if it did not do so it would then be unconstitutional and void. And under such a view the legislature must decide this.

Because the right to a trial in the courts as to the fact of injury, resulting from the act in the particular case, would complicate matters and that it would be difficult to convict, affords no reason for taking away or denying the right, unless its effect would be to practically nullify the law, and not even in that case unless there is some other safeguard that must be held sufficient under the circumstances, such as limiting the action of the legislature to those matters wherein the injurious effects of the prohibited act would be clearly apparent in the great majority of cases. It is better that there should be difficulties in the way of conviction, rather than that the citizen should be arbitrarily and needlessly deprived of his right to regulate his own personal conduct in matters that purely appertain to himself, or that his constitutional guaranty of life, liberty and the pursuit of happiness should be violated. Laws that are enacted in response to a general public sentiment are easily capable of enforcement. And otherwise, in a representative form of government, where the will of the majority is supposed to control, laws which do not receive the popular support ought not to have been enacted, and, under such circumstances, no great harm results if they should practically fail in their execution, and become dead letters upon the statute books.

Whichever view is taken of the duty of the courts in the premises — whether to hold such laws must be limited to instances where injury results to the particular person or otherwise — the act in question should be held void. It is altogether too sweeping in its terms. I make no question but that the habit of smoking opium may be repulsive and degrading. That its effect would be to shatter the

nerves and destroy the intellect; and that it may tend to the increase of pauperism and crime. But there is a vast difference between the commission of a single act, and a confirmed habit. There is a distinction to be recognized between the use and abuse of any article or substance.

It is also a well-known fact that opium, in its different forms, is frequently administered as a medicine with beneficial results; and while it may not be customary to administer it by way of inhalation, yet the legislature should not arbitrarily prevent its use in such a manner. If this act must be held valid it is hard to conceive of any legislative action affecting the personal conduct, or privileges of the individual citizen, that must not be upheld. We have been cited to no law, which has been sustained, that goes to the extent that this one does. It has no reference to the manufacture or sale of the substance. It is not based upon any pernicious example that the commission of the act might be to others. The prohibited act cannot affect the public in any way except through the primary personal injury to the individual, if it occasions him any injury. It looks like a new and extreme step under our government in the field of legislation, if it really was passed for any of the purposes upon which that character of legislation can be sustained, if at all. An act somewhat similar to it was held void *in re* Ah Jow, 29 Fed. Rep. 181.

In former times laws were sometimes passed limiting individual conduct in ways that are now considered ridiculous. Such as regarding the number of courses permissible at dinner. The length of pikes that might be worn on the shoes, etc. But these were founded on the pique or whims of an exacting and tyranical aristocracy, rather than on reason. Or, as in the case of the Connecticut blue laws, upon views of propriety or religion that do not now obtain with anything like the former degree of strictness.

Judge Cooley, in his admirable work on Constitutional Limitations, star page 385, says: "In former times sump-

tuary laws were sometimes passed, and they were even deemed essential in republics to restrain the luxury so fatal to that species of government. But the ideas which suggested such laws are now exploded utterly, and no one would seriously attempt to justify them in the present age. The right of every man to do what he will with his own, not interfering with the reciprocal right of others, is accepted among the fundamentals of our law. The instances of attempt to interfere with it have not been numerous since the early colonial days.

"A notable instance of an attempt to substitute the legislative judgment for that of the proprietor, regarding the manner in which he should use and employ his property, may be mentioned. In the State of Kentucky, at an early day, an act was passed to compel the owners of wild lands to make certain improvements upon them within a specified time, and it declared them forfeited to the state in case the statute was not complied with. It would be difficult to frame, consistently with the general principles of free government, a plausible argument in support of such a statute. It was not an exercise of the right of eminent domain, for that appropriates property to some specific public use upon making compensation. It was not taxation, for that is simply an apportionment of the burden of supporting the government. It was not a police regulation, for that could not go beyond preventing an improper use of the land with reference to the due exercise of rights and enjoyment of legal privileges by others. It was purely and simply a law to forfeit a man's property if he failed to improve it according to a standard which the legislature had prescribed. To such a power, if possessed by the government, there could be no limit but the legislative discretion; and if defensible, on principle, then a law which should authorize the officer to enter a man's dwelling and seize and confiscate his furniture if it fell below, or his food if it exceeded, an established legal standard, would be equally

so. But in a free country such laws, when mentioned, are condemned instinctively." This statute referred to, was subsequently declared unconstitutional in *Gaines v. Buford*, 1 Dana, 484, as appears in the note in said work.

In *Mugler v. Kansas*, 123 U. S. 623 (8 Sup. Ct. Rep. 273), which was a case arising under the prohibitory liquor laws of that state, the court in its opinion discussed the question, somewhat, as to whether the state could prohibit a man from manufacturing liquor for his own personal use, and concluded it could do so if it affected the rights and interests of the community. As to where the power rested to decide as to this, the court said: "But by whom, or by what authority, is it to be determined whether the manufacture of particular articles of drink, either for general use or for the personal use of the maker, will injuriously affect the public? Power to determine such questions so as to bind all must exist somewhere, else society will be at the mercy of the few, who regarding only their own appetites or passions, may be willing to imperil the peace and security of the many, provided only they are permitted to do as they please. Under our system, that power is lodged with the legislative branch of the government. It belongs to that department to exert what are known as the *police powers of the state*, and to determine, primarily, what measures are appropriate or needful for the protection of the public morals, the public health, or the public safety.

"It does not at all follow that every statute enacted ostensibly for the promotion of these ends is to be accepted as a legitimate exertion of the police powers of the state. There are of necessity, limits beyond which legislation cannot rightfully go. While every possible presumption is to be indulged in, in favor of the validity of a statute, the courts must obey the constitution rather than the law-making department of government, and must, upon their own responsibility, determine whether, in any particular case, these limits have been passed." Here a discretionary

power in the legislature is distinctly recognized, and also a final revisory or restraining power in the courts to correct what may appear to be abuses. The court further said, quoting partly from *Marbury v. Madison*, 1 Cranch, 137: "'To what purpose are powers limited, and to what purpose is that limitation reduced to writing, if those limits may, at any time, be passed by those intended to be restrained. The distinction between a government with limited and unlimited powers is abolished if those limits do not confine the persons on whom they are imposed, and if acts prohibited and acts allowed are of equal obligation.'

"The courts are not bound by mere forms, nor are they to be misled by mere pretenses. They are at liberty — indeed, are under a solemn duty — to look at the substance of things, whenever they enter upon the inquiry whether the legislature has transcended the limits of its authority. If, therefore, a statute purporting to have been enacted to protect the public health, the public morals, or the public safety, has no real or substantial relation to those objects, or is a palpable invasion of rights secured by the fundamental law, it is the duty of the courts to so adjudge, and thereby give effect to the constitution."

From the best investigation I have been able to give this subject, I am forced to the conclusion that the judgment of the court below should have been reversed, and the defendant discharged.

STILES, J., concurs in the dissenting opinion.

[No. 16. Decided February 28, 1890.]

JUSTIN SCAMMON v. ELIZABETH WARD, *Executrix of the last will of William G. Ward, deceased.*

DECEDENT'S ESTATES — PRESENTATION OF CLAIM SECURED BY MORTGAGE.

Failure to present a claim against a decedent's estate, secured by mortgage on his land, within one year after publication of notice to creditors, as provided by Code Wash. T., § 1467, will not bar the mortgagee's rights under the mortgage as to the lands mortgaged, but will only operate to prevent his making any deficiency that remains after exhausting the mortgaged property out of the decedent's other estate.

Where the mortgagee of a decedent's lands applies to the probate court, under Code Wash T., § 1523, to compel the redemption of land from his mortgage lien, or to have the lands sold, under § 1524, and the proceeds applied upon the mortgage debt, he must apply within the year allowed for the presentation of claims against the estate.

*Appeal from District Court, Klickitat County.*

This is a special proceeding brought in the probate court, under §§ 1523 and 1524 of Code Wash. T., by Justin Scammon, to require the executrix of the estate of William G. Ward, deceased, to redeem certain real estate in Klickitat county mortgaged by said Ward during his lifetime, or for an order to sell said premises to satisfy said mortgage. The said Ward died on the 8th day of June, 1887, leaving a will and naming Elizabeth Ward as executrix, but the mortgaged premises were not specifically devised. The will was admitted to probate August 22, 1887, and said executrix qualified and entered on the discharge of her duties upon the 27th day of August, 1887, and published the notice to creditors required by § 1465 of the code on the 1st day of September, 1887. The said Scammon did not present either his note against the testator or the mortgage securing it to said executrix within a year after such notice, but, on the 4th day of October, 1889, a few days

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after his note became due, began this proceeding asking that the mortgaged property be sold to satisfy the mortgage debt, or in case the court should find it to be beneficial to the estate, and not injurious to creditors, that said executrix be ordered to redeem same.

The executrix resisted the application, which was denied by the probate court and appeal taken to the district court, where, upon trial had, it was "decreed that the defendant, as executrix of said estate, do redeem the said mortgaged premises from said mortgage lien within six months from this date, but that she is not liable, nor shall she pay any costs pertaining to this proceeding, all of which must be borne by said plaintiff."

From said decree both parties appeal.

*Bennett & Wilson*, and *H. Dustin*, for plaintiff and appellant.

The mortgagee may rely upon his lien without presenting his claim, but in that event he has to look to the mortgage security alone and has no claim on the general assets of the estate. 5 Am. and Eng. Enc. of Law, 213; 2 Woerner's Am. Law of Adm'n, 860; *Allen v. Moore*, 16 Iowa, 307; *Putnam v. Russell*, 17 Vt. 54 (S. C. 42 Am. Dec. 478); *Grafton Bank v. Doe*, 19 Vt. 463 (S. C. 47 Am. Dec. 697); *Crow v. Day*, 69 Wis. 637 (S. C. 35 N. W. Rep. 45); *Smith v. Crater*, 43 N. J. Eq. 636 (S. C. 12 At. Rep. 530); *McCallam v. Pleasants*, 67 Ind. 542; *Willard v. Van Leeuwen*, 56 Mich. 15 (S. C. 22 N. W. Rep. 185); *Richardson v. Hickman*, 32 Ark. 443.

*Sol. Smith* and *W. B. Presby*, for defendant and appellant.

The mortgage is the incident to the note and not the principal part of the contract, and the real estate being assets in the hands of the executrix of the estate of the mortgagor, is a claim within the meaning of the statute, and

should have been presented to the executrix within the year after the first publication of notice. See §§ 1465, 1467, 1473, 1474 and 1476 of Code Wash.T.; also *Harper v. Calahan*, 46 Cal. 222; *Pitts v. Shiply*, 46 Cal. 154; *Walker v. Byers*, 14 Ark. 247; *Ellis v. Polhemus*, 27 Cal. 350; *Clark v. Davis*, 32 Mich. 154; *O'Doherty v. Toole*, 15 Pac. Rep. 28; *McKey v. Jory*, 9 West Coast Rep. 56.

The opinion of the court was delivered by

SCOTT, J. — Plaintiff instituted this proceeding in the probate court of Klickitat county, under §§ 1523 and 1524 of the code, to require said executrix to redeem certain lands from the lien of a mortgage given to the plaintiff by William G. Ward, who died in June, 1887, leaving a will. In August, 1887, the probate court of said county admitted said will to probate, and appointed defendant executrix thereof. A notice to creditors was duly published under code, § 1465, in September, 1887. The claim secured by the mortgage was not presented to the executrix. The lands covered by it were a part of Ward's estate at the time of his death, but were not devised by him, nor was their redemption provided for in the will. In October, 1889, after the time for presenting claims against the estate had elapsed, Scammon commenced this proceeding. He sought for no relief except as against the land mortgaged. Defendant resisted the application upon two grounds: 1st. That the mortgage debt was barred by reason of its not having been presented within the year, as provided by § 1467 of the code. 2d. That if the claim was not barred the plaintiff could not apply to the probate court after the expiration of said year without having presented his claim within the time prescribed. The probate court sustained the objections, and the plaintiff appealed to the district court, where the objections were overruled and a redemption of the land was ordered. Whereupon the defendant appealed to this court.

As to the first objection raised by the defendant, we think that the plaintiff's rights under his mortgage, as to the lands mortgaged, were not barred by a failure to present his claim secured thereby to the executrix; that the failure to present his claim would only operate to prevent him from making any deficiency that might remain after exhausting the mortgaged property, out of the testator's other estate. Woerner's Am. Law of Adm'n, § 409, and authorities there cited; *Allen v. Moer*, 16 Iowa, 307; *Fisher's Ex'r v. Mossman*, 11 Ohio St. 42; Wiltsie on Mort. Foreclosures, § 63; Wood on Limitations, 390, and cases cited in note 5 (commencing on preceding page); *Willard v. Van Leeuwen*, 56 Mich. 15; *McClure v. Owens*, 32 Ark. 443; *Richardson v. Hickman*, 32 Ark. 407. The only authorities produced by defendant holding a contrary doctrine, that were not subsequently overruled in the same courts where rendered, were from California, and were founded upon the provisions of a statute materially differing from our probate act. Section 1524 of the code, where it allows the mortgagee to file a claim for a balance remaining unpaid after selling the mortgaged land, seems to imply that it is not necessary to present the claim and have it allowed or established before applying to have the lands redeemed. For if the claim should be established in the first instance, subsequent proceedings thereunder in selling the land and applying the proceeds where a sale is ordered, would be conducted by and be within the knowledge of the probate court and the executor or administrator of the estate, and it would be an entirely idle and useless provision to require a filing and authentication of a claim for a deficiency in such a case. By holding that a mortgage debt, as to the land mortgaged, is not barred by a failure to present the claim, the usefulness of this provision in § 1524 becomes apparent, where proceedings are resorted to in the probate court to have the land redeemed, and where a sale is had therein and an amount remains unsatisfied thereafter.

As to the second objection urged, however, we are of the opinion that a mortgagee who wishes to apply to the probate court under § 1523, to compel the redemption of land from his mortgage lien (the alternative being that when the order to redeem is not granted the land must be sold under § 1524, and the proceeds applied upon the mortgage debt), whether he seeks any relief outside the property mortgaged or not, must so apply within the year allowed for the presentation of claims against the estate. It is contrary to the intent of the probate act, and also to public policy to allow these matters to come in afterwards. And where the application is not made within said time the remedy must be sought in a foreclosure suit. Upon this last ground the judgment of the district court is reversed.

ANDERS, C. J., and STILES and HOYT, JJ., concur.

DUNBAR, J., not sitting.

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[No. 611. Decided March 3, 1890.]

## THE TERRITORY OF WASHINGTON v. JOSEPH KLEE AND JOSEPH MILLER.

ESCHEATS — PROBATE JURISDICTION — DEED BY ATTORNEY IN FACT — EVIDENCE OF TITLE.

A deed purporting to be made by the attorney in fact of the grantor is no evidence of the grantee's title, unless it is also shown that the attorney in fact had authority to make the deed, or that the grantee went into possession under the deed.

A decree of one probate court escheating property to the territory for the support of public schools, because the owner died intestate, leaving no kindred or wife, is void, where the probate court of another county has already granted letters of administration of the estate, the decedent having been a non-resident, and having died outside of the territory, leaving property in both counties.

Where the owner of lands dies intestate, leaving no husband or wife, or kindred, the lands escheat to the state, under § 3302, Code Wash. T., and the title vests immediately in the state on the death of the owner, without the aid or the intervention of the probate court.

*Appeal from District Court, Pierce County.*

The facts are fully stated in the opinion.

*Fremont Campbell*, Prosecuting Attorney, and *E. G. Kreider*, for The Territory.

It is admitted by the pleadings and confirmed in the findings of the court, that Charles Gilbert died intestate, and there being no heirs to said estate, the property escheated *instanter* on the death of said Gilbert to the Territory of Washington. 4 Kent Com. 424; *Sands v. Lyndham*, 27 Gratt. 295 (21 Am. Rep. 348); *Montgomery v. Dorian*, 7 N. H. 475; *Puckett v. State*, 1 Sneed, 355; *Rubeck v. Gardner*, 7 Watts (Pa.) 455; *White v. White*, 2 Metc. (Ky.) 85; *Den v. O'Hanlin*, 21 N. J. L. 582; *O'Hanlin v. Den*, 20 N. J. L. 31; *Colgan v. McKeon*, 24 N. J. L. 567; *Farrar v. Dean*, 24 Miss. 16; *Crane v. Reeder*, 21 Mich. 24; *Holliman v. Peebles*, 1 Tex. 673; *Fairfax v. Hunter's Lessee*, 7 Cranch, 603; *McCaughal v. Ryan*, 27 Barb. 376; *Johnston v. Spicer*, 13 N. E. Rep. 753.

The fact that Pierce county and the Territory of Washington assessed said property is not a waiver of the right of the territory to assert title by escheat. *Reed v. State*, 74 Ind. 252.

*Judson, Sharpstein & Sullivan*, for appellees.

It is well settled that the jurisdiction of a court of equity to quiet the title to land was exercised only when the bill showed that the complainant was in possession of the land. *Frost v. Spitley*, 121 U. S. 552; *Gage v. Abbott*, 99 Ill. 366; *Smith v. Wingard*, 13 Pac. Rep. 717.

In any proceeding, whether it be inquest of office, information, ejectment, or action to quiet title, the plaintiff claiming an escheat must allege and prove seisin, intestacy and want of heirs, and failing to prove either one of these allegations becomes nonsuit. *People v. Cutting*, 3 Johns. 1;

*Hammond v. Inloes*, 4 Md. 138; *University v. Harrison*, 90 N. C. 385; *Catham v. State*, 2 Head (Tenn.), 553; *Crawford v. Commonwealth*, 1 Watts (Pa.), 480. The burden of proof is on the party claiming an escheat to prove that the deceased died leaving no heirs. *University v. Harrison*, 90 N. C. 385; *Wiederanders v. State*, 64 Tex. 133; Ramsey's Appeal, 2 Watts (Pa.), 228; *Hughes v. State*, 41 Tex. 10.

A deed of lands is no evidence of title in the grantor where he is not otherwise connected with the title, or shown to have ever had possession. *Smith v. Lawrence*, 12 Mich. 431; *Farmer's, etc., Bank v. Bronson*, 13 Mich. 361; *Wearin v. Munson*, 62 Iowa, 466.

A deed by an attorney in fact must be accompanied with the power. Abb. Trial Ev. 696; *Denn v. Reid*, 10 Pet. (U. S.) 524; *Videau v. Griffin*, 21 Cal. 389; *Hager v. Spect*, 53 Cal. 579.

But one probate court can have jurisdiction of an estate. *Beckett v. Selover*, 7 Cal. 215, 236; *Grande v. Chaves*, 15 Tex. 551; *Holyoke v. Haskins*, 5 Pick. 20; Wells on Jurisdiction of Courts, § 156. The probate court first acquiring jurisdiction not only cannot be divested of it, but it cannot divest itself of jurisdiction and confer it on another probate court. Code Wash. T., § 1341; Estate of Scott, 15 Cal. 220.

The opinion of the court was delivered by

ANDERS, C. J. — This action was brought by appellant in the district court of the Second judicial district of Washington Territory, holding terms at Tacoma, in Pierce county, to quiet the title to certain land in that county described in the complaint, and to set aside a tax deed made by the sheriff of Pierce county to the defendant, Joseph Klee, and also to set aside a quitclaim deed from the defendant Klee to defendant Joseph Miller, for the reason that they are fraudulent and void, and are a cloud upon the title of plain-

tiff. Appellant claims title to the land in controversy by escheat from one Charles Gilbert, who, it is admitted, died intestate on the 30th day of August, 1879, at Astoria, in the state of Oregon. It appears that the land was assessed by Pierce county in the years 1880 and 1881, and that the taxes thereon became delinquent, and that the property was sold by the sheriff in the year 1882 to one Danforth, who received a certificate of sale from the sheriff, which he subsequently transferred to defendant Klee. On the 9th day of July, 1885, the sheriff executed and delivered the tax deed before mentioned to Joseph Klee, who afterwards conveyed the premises by quitclaim deed to defendant Miller. It further appears from the record that the deceased, Charles Gilbert, was also at the time of his death the owner of real estate in King county, Washington Territory, and that on the 27th day of June, 1883, the probate court of that county duly appointed A. P. Freeman administrator of the estate of the deceased, Gilbert, but revoked his letters of administration on the 13th day of June, 1884. On the 10th day of July, 1883, D. B. Hannah filed a petition for his own appointment as administrator of Gilbert's estate in the probate court of Pierce county, and on the 23d day of July, 1883, that court made an order that letters of administration issue to him upon taking the usual oath and filing a bond in a sum specified by the court. The record does not affirmatively show that Hannah ever filed his oath or bond or that letters of administration were ever issued to him, but it appears from the records of the probate court, introduced in evidence, that on the 17th day of September, 1885, his final account was settled and allowed, and that he was discharged from further liability and action in the matter of said estate, the expenses and charges of administration having been fully paid and discharged by Pierce county. The court also on that day made and entered of record a decree of distribution of said estate, in which it is stated and set forth that there were no heirs living, and that de-

cedent left no wife or kindred, and "that the said estate and the whole thereof be and is hereby declared escheated to the Territory of Washington for the support of common schools in Pierce county." Upon this judgment and decree of the probate court, appellant bases its claim of title to the land described in the complaint.

The only law in our statutes, on the subject of escheats, is contained in § 3302, sub. 8 of the code, which is as follows: "If the decedent leaves no husband, wife or kindred, the estate escheats to the territory for the support of common schools in the county in which the decedent resided during his lifetime or where the estate may be situated."

In order, therefore, to recover in this action, appellant must allege and prove that Charles Gilbert was the owner of the land at the time of his death, and that he left no wife or kindred. To prove ownership in Gilbert, plaintiff introduced in evidence a deed to him purporting upon its face to have been made by one Matthews as attorney in fact of Gilbert's grantor; but no power or authority for so doing was shown, and no proof made that Gilbert ever went into possession under the deed. The deed was, therefore, not evidence of title in Gilbert, and unless there is further evidence in the case of Gilbert's title, the court below did not err in finding that he was not the owner of the land in controversy at the time of his death. *Denn v. Reid*, 10 Pet. 524, 530; *Videau v. Griffin*, 21 Cal. 389; *Hager v. Spect*, 52 Cal. 579; *Smith v. Lawrence*, 12 Mich. 431; *Wearin v. Munson*, 62 Iowa, 466 (17 N. W. Rep. 746).

There is no direct allegation in the complaint that Charles Gilbert died leaving no wife or kindred, but the decree of the probate court of Pierce county so stating is therein set forth. And it is alleged that appellant, by virtue of this decree, became the owner of the land now in dispute. Whether this be true or not will depend upon the validity of the decree itself.

Appellees contend that it is not valid or binding upon

them, in any manner whatever, in this action. They claim that the court had no jurisdiction or authority to render it. And they insist that the probate court of King county had exclusive jurisdiction of Gilbert's estate by priority of proceedings therein, and that the probate court of Pierce county wrongfully and unlawfully assumed to act in the matter. We think the objection is a valid one, and must be sustained. Where the estate of the deceased is in more than one county, he having died out of the territory, our statute expressly provides that the probate court of the county in which application is first made for letters of administration shall have exclusive jurisdiction of the settlement of the estate. Code Wash. T., § 1341; *Estate of Scott*, 15 Cal. 220; *Beckett v. Selover*, 7 Cal. 215, 236; *Holyoke v. Haskins*, 5 Pick. 20; Wells on Jurisdiction of Courts, § 156.

This being decisive of the case, we need not stop to consider minor questions raised in the briefs, and discussed by the respective counsel.

Whether appellees have any title to the disputed premises we will not undertake to say. But we will here state that we are of the opinion that if the territory is the owner of the land, the title vested in it immediately on the death of Gilbert, without the aid or intervention of the probate court. See 6 Am. and Eng. Ency. of Law, 856–7, and cases cited; *Com. v. Hite*, 29 Am. Dec. 235, notes. And in that case it can recover possession of the land, like any other owner, by an appropriate action in the proper court.

The judgment of the court below, dismissing plaintiff's complaint, is affirmed.

STILES, DUNBAR and SCOTT, JJ., concur.

HOYT, J., not sitting.

[No. 634. Decided March 5, 1890.]

## Charles W. Taylor v. O. Osborn, Walker Mayfield and James Lewallen.

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APPEAL — STATEMENT OF FACTS — PRACTICE.

Where two days' notice was given appellees of the settlement of a statement of facts, and the statement was settled *ex parte*, it will not be considered by the supreme court on appeal, as the appeal act of 1883 requires that ten days' notice be given.

*Appeal from District Court, Walla Walla County.*

*A. E. Isham*, for appellant.

*D. J. Crowley*, for appellees.

The opinion of the court was delivered by

Scott, J. — This appeal was taken under the act of 1883, and it appears that the statement of facts was settled without the notice to appellees required by section three of said act. Appellees were notified December 3, 1888, that appellant would apply on December 5, 1888, to have the statement of facts settled. The statute requires a ten days' notice. The statement was settled *ex parte*, no one having appeared for appellees. Objection is made in their brief to the consideration of the matters contained in the statement, for want of such notice, which objection we sustain.

There being nothing in the record upon which error can be based, the judgment of the court below is affirmed.

Dunbar, Stiles and Hoyt, JJ., concur.

Anders, C. J., not sitting.

[No. 420. Decided March 7, 1890.]

## HOLLON PARKER v. GEORGE DACRES.

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EJECTMENT — EVIDENCE — ESTOPPEL — CONFIRMATION OF FORECLOSURE SALE — SERVICE OF PROCESS.

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Under § 66 of the civil practice act as amended by laws of 1871, the sheriff was authorized, in ejectment, to serve the subpœna on the defendant to answer the complaint, and his certificate as to the facts of such service was sufficient proof thereof.

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Where there are no errors sufficient to oust the court of jurisdiction, an order confirming a sale under decree of foreclosure concludes inquiry into irregularities attending the sale, such as departure from the terms of the decree, and from the course and practice of the court.

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In an action of ejectment, defendant may, under a general denial, introduce evidence of equitable estoppel, where the complaint does not state the source of plaintiff's title.

*Error to District Court, Walla Walla County.*

Plaintiff claims to recover the property described in the complaint as owner in fee; defendant denies plaintiff's title, and sets up title in himself. Plaintiff put in evidence certain deeds dated respectively October 1, 1874, and April 29, 1876, from one Edward Sheil to himself. Defendant offered evidence to prove that on the 4th day of August, 1874, the property described in plaintiff's complaint was sold at judicial sale under a decree in the case of *Almos H. Reynolds v. Edward Sheil;* that said Sheil was present at said sale, and made no objection to the sale, but stated at the sale that he intended to redeem the property from the sale, and that, in about one week after the sale, said Sheil delivered possession of the premises to defendant, who was the purchaser at said judicial sale; that defendant has ever since held said premises, under and in pursuance of said judicial sale. Defendant also put in evidence a transcript of the record in the case of *Almos H. Reynolds v. Edward Sheil,* and the sheriff's deed for the property sold. Upon

the whole evidence the court instructed the jury to find for defendant.

The civil practice act of Washington Territory, as amended by laws 1871, provides: "Sec. 2. All common-law forms of action are hereby abolished, but the distinctions between actions at law and suits in chancery shall be preserved; and pleadings and proceedings in suits in chancery shall be as prescribed by the laws of the United States and by the rules prescribed by the supreme court of the United States for courts of equity of the United States." "Sec. 66. The writ of subpœna in chancery may also be served by the sheriff or his deputy as well as by the persons authorized by the rules in equity."

*A. E. Isham*, for plaintiff in error.

*B. L. & J. L. Sharpstein*, and *D. J. Crowley*, for defendant in error.

If there was any irregularity in the service of process, or in the manner of its service, the defendant should have taken advantage of such irregularity by some motion or proceeding in the court where the action was pending. Freem. Judg. (3d ed.), § 126; *Peck v. Strauss*, 33 Cal. 678; *Dorente v. Sullivan*, 7 Cal. 279; *Kipp v. Fullerton*, 4 Minn. 473; *Mooney v. Maas*, 22 Iowa, 380.

The order of the district court confirming the sale is, as to parties to this action, conclusive of the regularity of the proceedings concerning such sale. Laws, 1873, § 361, sub. 4; *Voorhees v. Jackson*, 10 Pet. 449; *Koehler v. Ball*, 2 Kan. 160; Herm. Ex. § 261; Rorer, Jud. Sales (1st ed.), §§ 122–7, 132; *Wilcox v. Raben*, 38 N. W. Rep. 844.

The evidence that Sheil, the defendant in the foreclosure suit, was present at the sale and made no objection, and placed the purchaser in possession, was properly admitted in evidence; and neither Sheil, nor any party claiming an interest in the premises under him acquired since the sale, have a right to impeach the same. *Wood v. Colvin*, 2 Hill,

566; *Noe v. Richard*, 5 Yeag. 216; *Bronson's Ex'r v. Chappell*, 12 Wall. 681; *Kirk v. Hamilton*, 102 U. S. 68; *Mather v. Hutchinson*, 25 Wis. 27; *Gould v. Sternberg*, 21 N. E. Rep. 628; *Stone v. Tyree*, 5 S. E. Rep. 878; *Bryan v. Kales*, 20 Pac. Rep. 311; *Fourniquet v. Perkins*, 7 How. U. S. 160; Herm. Est. 336, 349.

The opinion of the court was delivered by

HOYT, J. — This was an action of ejectment. In his complaint plaintiff claimed title in fee without in any way deraigning his title. Defendant for answer denied generally, and further pleaded that he held the premises in question by virtue of a sale thereof under a decree of foreclosure of a certain mortgage made by one Sheil, who at the time of the execution of said mortgage and of the sale thereunder, was the owner in fee.

Upon the trial, plaintiff introduced certain deeds showing a chain of title ending in Sheil, the maker of said mortgage, and also a trust deed made by said Sheil to him soon after the sale in said foreclosure proceedings, and a quitclaim deed from said Sheil made long after, and just before the commencement of this suit. Defendant, to meet the *prima facie* case thus presented, put in evidence the record and proceedings in said foreclosure suit, to show title, and also proved certain acts and statements of said Sheil, done and made at and after the sale under said decree of foreclosure, which in equity would estop said Sheil from afterwards asserting title adverse to said sale.

Plaintiff in his argument here practically concedes that, if said record and proceedings were properly in evidence, they constituted a good defense. He likewise practically concedes, that the acts and declarations of said Sheil, proved as aforesaid, were sufficient, if rightfully in the case, to constitute an *estoppel in pais*, and thus a perfect defense. Plaintiff, however, objected to the introduction of the said record and proceedings on various grounds,

and the main contention here has been upon errors assigned upon exceptions to the ruling of the court below, in admitting the same in evidence against such objections. He also objected to the admission of proof tending to establish said equitable estoppel, and has duly assigned error to the action of the court thereon.

Plaintiff's first objection to said record was that the subpœna to bring in the defendant to answer the complaint was served by the sheriff of the county and not by the United States marshal, or his deputy, or by any person appointed by the court to make such service, and cites § 2 of the civil practice act, as amended by the laws of 1871. We think, however, that the general provisions of said section was controlled by the special provisions of § 66 of the same act as thus amended; and that by virtue of said last-named section the sheriff was authorized to make the service in question. Nor can we agree with the further contention of the plaintiff that even although the sheriff was authorized to make the service, his certificate as to the fact of such service was not proof thereof, as such facts should have been shown by affidavit. We think that under said section the sheriff was not only authorized to make such service, but also that the return thereof could be by certificate as in other cases. The service and proof thereof were sufficient, and the court obtained jurisdiction, and having jurisdiction of the subject-matter and of the parties, most of the further objections urged by plaintiff were clearly mere irregularities, which could only be taken advantage of by appeal. See Freeman on Judgments (3d ed.), § 126; *Peck v. Strauss*, 33 Cal. 678.

Plaintiff further urges that there was such a departure from the terms of the decree, and from the course and practice of the court, in making the sale under said decree, as to make such sale void. But we think there were no such errors as would oust the court of jurisdiction; and this being so, it follows that the order confirming the sale con-

cluded inquiry into the irregularities attending the same, if any there were. See Rorer on Judicial Sales, §§ 113, 115; *Voorhees v. Jackson*, 10 Pet. 449. The record and proceedings were properly admitted in evidence, and the errors assigned thereon are not well taken.

The ground of the plaintiff's objection to the proof of the equitable estoppel was that the defendant could not be permitted to introduce evidence of this kind without having pleaded it in his answer, and cites several cases holding that in an action at law equitable defenses must be set up in the answer. This is perhaps true as a general proposition, and under the circumstances of the cases cited, it was doubtless correctly so ruled.

Had the plaintiff in this action set out fully his chain of title, so that it would have appeared that he claimed under said Sheil, it might have been necessary for defendant, in order that he might show acts of said Sheil, to have set out the same in his answer. But when, as in this case, a defendant is not at all advised as to the source of the plaintiff's title, he can content himself with a general denial, and thereunder introduce any legal evidence that tends to defeat the title of the plaintiff, as shown by his proofs. Any other rule would work great hardship to a defendant, while the enforcement of said rule cannot work hardship to a plaintiff, as he can, if he so desires, so shape his complaint as to compel defendant to fully disclose his defense in his answer. Said rule is not only in accord with our ideas of propriety and justice, but is also abundantly sustained by the authorities. *Kirk v. Hamilton*, 102 U. S. 68, was a case of ejectment like the one at bar, and was brought in a court where the distinction between legal and equitable defenses is more clearly defined than in this state; yet in that case evidence of an equitable estoppel, much like the one proved in this case, was admitted under the plea of not guilty, and the action of said court in thus ruling was sustained by the supreme court of the United States in an exhaustive opin-

ion by Justice HARLAN concurred in by the entire court. See also *Mather v. Hutchinson*, 25 Wis. 27.

The court below properly admitted proof of the equitable estoppel, and the record and proceedings in the foreclosure case were also properly in evidence, and as one constituted a complete legal defense, and the other estopped plaintiff from asserting any title that he might have had, the court had double warrant for directing a verdict for the defendant and entering judgment thereon; and its action in so doing must be affirmed, and it is so ordered.

ANDERS, C. J., and STILES, SCOTT and DUNBAR, JJ., concur.

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[No. 31. Decided March 8, 1890.]

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## THE OREGON RAILWAY AND NAVIGATION COMPANY v. GEORGE DACRES.

RAILROADS — KILLING STOCK — PLEADING — EVIDENCE.

The ruling of a trial court denying a motion for a continuance will not be disturbed on appeal, where it appears that defendant did not use due diligence in endeavoring to secure the attendance or depositions of absent witnesses.

Sections 1 and 8 of act of Nov. 28, 1883 (Laws Wash. T. 1883, p. 51), held constitutional, and the remainder of the act invalid, following *Dacres v. O. R. & N. Co.*, which decision is accepted as the law of this case.

Under the valid sections of the above mentioned act a railroad company is liable for killing live stock, unless its track is fenced, whether it owns or operates the railroad; and it is liable as owner, although it may have previously leased the road to some other company or corporation.

Where it appears from the complaint that defendant's railroad track crossing plaintiff's farm was unfenced, and that plaintiff's bull went upon the track from said farm, without plaintiff's fault, and was killed, a cause of action is stated.

In an action against a railroad company for killing a bull, defendant's original answer, admitting, in effect, that defendant owned

and operated the train that killed the bull, is admissible in evidence, and the admission therein is conclusive of the fact admitted, unless shown to have been made under a mistake.

*Appeal from District Court, Walla Walla County.*

The facts sufficiently appear in the opinion.

*W. W. Cotton*, for appellant.

The act relating to fencing of railroad tracks, approved November 28, 1883, is unconstitutional. If the purpose of a statute is to accomplish a single object only, and some of its provisions are void, the whole must fail unless sufficient remains to effect the object without the aid of the invalid portions. Cooley, Const. Lim. 178–9; *Warren v. Charleston*, 2 Gray, 84; *Fisher v. McGirr*, 1 Gray, 1; 61 Am. Dec. 381; *Com. v. Hitchings*, 5 Gray, 482; *State v. Perry County*, 5 Ohio St. 497; *Jones v. Robbins*, 8 Gray, 329; *Taylor v. Ross County*, 23 Ohio St. 22, 84; *Slauson v. Racine*, 13 Wis. 398; *State v. Dousman*, 28 Wis. 541; *Campau v. Detroit*, 14 Mich. 276; *Com. v. Potts*, 79 Pa. St. 164.

The complaint does not state facts sufficient to constitute a cause of action. It is necessary to aver in the complaint and to prove that the cattle came upon the track at a point where the railroad company was bound to fence and failed to do so. *Morrison v. Railroad Co.*, 32 Barb. 568; *Railroad Co. v. Brevort*, 30 Ind. 324; *Belfontaine R. R. Co. v. Schuman*, 28 Ind. 40; *Toledo R. R. Co. v. Howell*, 38 Ind. 447; *Jeffersonville R. R. Co. v. Lyon*, 32 Ind. 107; *Nance v. St. Louis, etc., Ry. Co.*, 79 Mo. 196; *Asher v. St. Louis, etc., Ry. Co.*, 79 Mo., 432; *Louisville Ry. Co. v. Quade*, 91 Ind. 295; *Louisville Ry. Co. v. Hall*, 93 Ind. 245; *Wabash R. R. Co. v. Tretts*, 96 Ind. 450; *Bremmer v. Green River, etc., R. R. Co.*, 61 Wis. 114 (S. C. 19 Am. and Eng. Ry. Cases, 575).

*B. L. & J. L. Sharpstein*, for appellee.

The decision of the court relating to the constitutionality

of the act of November 28, 1883, on the former appeal (20 Pac. Rep. 601) establishes the rule of law for this court, and neither the parties nor the court can depart therefrom. *Adams County v. Burlington, etc., R. R. Co.*, 2 N. W. Rep. 1054; *Parker v. Pomeroy*, 2 Wis. 112; *Continental Life Ins. Co. v. Houser*, 111 Ind. 266; *Leighton v. Stuart*, 19 Neb. 546; *Pittsburgh, etc., R. R. Co. v. Hixon*, 110 Ind. 225; *Hiatt v. Brooks*, 17 Neb. 33; *Page v. Fowler*, 37 Cal. 100; *Galveston County v. Galveston Gas Co.*, 72 Tex. 509.

No more of the act should be held unconstitutional than is plainly so; the parts not repugnant to the constitution should stand and be given full force and effect. *Tiernan v. Rinker*, 102 U. S. 123; *Bank v. Dudley's Lessee*, 2 Pet. 492; *Robinson v. Bidwell*, 22 Cal. 379; *Fisher v. McGirr*, 1 Gray, 1 (61 Am. Dec. 381); *Keokuk v. Keokuk, etc., Packet Co.*, 45 Iowa, 196; *Knox County v. Davis*, 63 Ill. 405.

Under our statute railroad companies are made liable for cattle killed by them without reference to their negligence. *Nashville, etc., Ry. v. Peacock*, 25 Ala. 229; *Williams v. New Albany, etc., R. R. Co.*, 5 Ind. 111; 1 Redf. Railways (4th ed.) 490; *International, etc., Ry. Co. v. Cocke*, 64 Tex. 151; *McCall v. Chamberlain*, 13 Wis. 637; *Corwin v. New York, etc., R. R. Co.*, 13 N. Y. 42; *Cressey v. Northern R. R. Co.*, 59 N. H. 564 (47 Am. Rep. 227); *Burlington, etc., R. R. Co. v. Webb*, 18 Neb. 215 (53 Am. Rep. 809).

A railroad company cannot lease its road and thus relieve itself of liability. *New York, etc., R. R. Co., v. Winans*, 17 How. 30; *Ohio, etc., R. R. Co. v. Dunbar*, 20 Ill. 624; *Abbott v. Johnstown, etc., R. R. Co.*, 80 N. Y. 27; *Toledo, etc., Ry. Co. v. Rumbold*, 40 Ill. 143.

The opinion of the court was delivered by

ANDERS, C. J.—This action was brought by appellee to recover the value of a bull alleged to have been killed by defendant's train.

The complaint alleges "that at all the times hereinafter mentioned, the defendant was and is a corporation duly incorporated, and engaged in operating a line of railroad in Washington Territory and elsewhere. That on the 3d day of May, 1883, and for a long time prior thereto, the plaintiff was the owner of, and in the possession of a certain farm situated in sections 19 and 20, township 7 north, of range 36 east of the Willamette meridian, in Walla Walla county; and that on said 3d day of May, plaintiff was the owner of a certain short-horned Durham bull of the value of $500, which bull was kept and pastured by plaintiff on said farm. That the track and railroad of the defendant cross over and through the farm of plaintiff aforesaid, and said track and railroad is and was on said 3d day of May, 1888, and for a long time prior thereto, wholly unfenced. That on or about said day plaintiff's said bull strayed and went upon the said defendant's said track, from plaintiff's said farm, without plaintiff's fault, and was then and there killed by defendant's train then passing over said road, to the damage of plaintiff in the sum of $500."

To the complaint a general demurrer was interposed, which was overruled by the court, after which the defendant answered as follows: "The defendant by its answer admits that at the time mentioned in the complaint the defendant was a corporation, and was the owner of the lines of railroad in Washington Territory, and of the immediate road in the complaint mentioned, but denies that it was then or there operating said railroad or any railroad owned by defendant, in Washington Territory or elsewhere. Admits that the plaintiff was the owner of the bull in said complaint described, but denies that he was of the value of $500, or of any greater value than $200. Alleges that plaintiff's bull strayed upon the track of said railroad through the fault of plaintiff. Admits that said bull was struck by a locomotive running on said railroad track and was killed, but denies that said locomotive or train on said

railroad was then or there operated by the defendant or defendant's servants, agents, or employés, or that it had anything whatever to do with said railroad, or any locomotive or train thereon, and denies that by any act whatever of the defendant, its servants, agents or employés, or either or any of them, that said bull was killed, or that plaintiff was damaged by the defendant in the sum of $500, or any other sum." The plaintiff replied, denying each and every allegation of the answer. Judgment, upon the verdict of a jury, was rendered for plaintiff for the sum of $430.45 and costs, from which defendant appeals to this court.

Several errors are assigned by appellant as grounds of reversal of the judgment of the court below. The first to which our attention is directed by the brief and argument of counsel for appellant is, that the court erred in overruling the defendant's motion for a continuance. But it does not appear that the defendant used such diligence in endeavoring to secure the attendance or deposition of absent witnesses as it might or should have done. And as we cannot say that the trial court was guilty of an abuse of its discretion in that regard, its ruling will not be disturbed.

It is next urged that the act of the legislature of the Territory of Washington, approved November 28, 1883, under which this action was brought, is unconstitutional and void. We would be inclined to adopt the view of counsel for appellant as to the invalidity of this statute, were it an open question in this case. But the supreme court of the territory, upon a former appeal of this action, sustained §§ 1 and 8 of the statute upon which this action is founded, but declared the remainder invalid. See *Dacres v. Oregon R. & N. Co.*, 20 Pac. Rep. 601. And we are, therefore, constrained to accept that decision of the court as the law of this case. See *Parker v. Pomeroy*, 2 Wis. 112; *Pittsburg, etc., Ry. Co. v. Hixon*, 110 Ind. 225; *Hiatt v. Brooks*, 17 Neb. 33; *Galveston County v. Galveston Gas Co.*, 72 Texas, 509;

*Willis v. Smith*, 72 Tex. 565; *Applegate v. Dowell*, 17 Or. 299.

It is also contended by appellant that the complaint fails to state a cause of action, and that its demurrer should, therefore, have been sustained. But we can predicate no error upon the ruling of the court upon the demurrer.

We think it fairly appears from the complaint that the railroad track was, at the time of the accident, unfenced, and that the animal killed went upon the track from the plaintiff's field, and at a place unfenced. It is doubtless true that the complaint is not as specific in its allegation as, perhaps, it should have been, but we think it not insufficient on demurrer.

Appellant further insists that the court below erred in instructing the jury that "the only questions for the jury to determine are whether the defendant was operating the railroad trains, at the time plaintiff's bull was killed, which killed the bull, and the value of the bull," and that "there is no evidence that there was a lease, by the defendant, and if there was it would make no difference, for if, at the time the bull was killed, the defendant was operating the road through its lessees, it is as liable as it would be if it operated the road through its employés."

This instruction must be considered in the light of the facts before the court, and of the statute above referred to, the first section of which is as follows: "That all railroad companies owning or operating lines of railway within the Territory of Washington shall be liable to the owners of all live stock for the full value of all such live stock killed or maimed by their passing trains". Section 8 of this act provides that "no railroad company shall be liable for stock killed upon their roads, when the same is fenced by such company with a good lawful fence."

It would seem from this statute, that if a railroad company either owns or operates a railroad, it is liable for live

stock killed, unless its track is fenced as specified in the eighth section. And if this is so, appellant was liable as owner of the road, even although it had proved that it had previously leased it to some other company or corporation. It therefore follows that the instruction was not erroneous and must be sustained. Under the statute, therefore, as previously construed in this case, all that was necessary to entitle plaintiff to recover was to show the value of the animal killed and that the road was unfenced — the ownership of the road and of the bull being admitted in the pleadings. See Redfield on Law of Railways (4th ed.), 490; *Lafferty v. Chicago, etc., Ry. Co.*, 71 Mich. 35.

Exception is urged to the admission in evidence of defendant's original answer in the case, in which it was, in effect, admitted that defendant owned and operated the train which killed the bull in question. But we have no doubt of its admissibility. And the admission therein is so far binding upon the defendant as to be conclusive of the fact admitted, unless shown to have been made under a mistake; and no such showing was attempted by defendant.

And it being thus admitted by the defendant that it was operating the road, the court was justified in saying to the jury that it would make no difference if the road was leased. We do not think that the oral evidence introduced to establish a lease was, under the circumstances, competent for the purpose. Counsel for appellant claims that under the laws of Washington railroad companies may lease their roads. But the only law brought to the attention of the court is that found on pages 62 and 63 of the laws of 1883, and that statute requires such leases to be in writing, and are not valid against any subsequent judgment creditor, unless recorded in the office of the county auditor in the county in which the principal office of the lessee may be. We do not now decide that this statute applies to the

alleged lease of the defendant's road; but if it does, defendant should have complied with its requirements.

Objection is also made to the refusal of the court to give to the jury the instructions asked by appellant. But as the court charged the jury in accordance with the established law of the case, we are of the opinion that appellant was not prejudiced by the refusal. We would not be understood, however, as saying that we would so hold were the case now up for review for the first time.

Finding no substantial error in the record, the judgment of the court below must be affirmed, with costs; and it is so ordered.

HOYT and STILES, JJ., concur.

DUNBAR and SCOTT, JJ., concur in the result.

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[No. 28. Decided March 8, 1890.]

## THE COLUMBIA & PALOUSE RAILROAD COMPANY v. WM. P. FARRINGTON.

RAILROADS — SETTING OUT FIRES — INSTRUCTIONS.

In an action against a railroad company for setting fire to the premises of the plaintiff, an instruction that "If an expert testifies that he operated the locomotive at that time with due care and thought, and it was so constructed that it would not set fire as thus operated, and the jury believe from the evidence that it actually did set fire at that time, the jury are to consider which of these proofs they will believe, the former or the latter," is erroneous, because it in effect instructed the jury that the only question in dispute was the setting out the fire, and that if they believed the fire was set out by the engine, they must find for the plaintiff.

*Appeal from District Court, Whitman County.*

The facts are sufficiently stated in the opinion.

*W. W. Cotton*, for appellant.

There was no particle of evidence in this case of negli-

gence. No one testified as to any negligent construction or management of the engine. There can be no recovery against railroad companies, in the absence of negligence, for fires set out, "though they fire every rod of the country through which they run." *Phil. etc., R. R. Co. v. Schultz*, 93 Pa. St. 341. The first part of the instruction as to presumption is clearly erroneous. *Hall v. Sacramento V. R. R. Co.*, 14 Cal. 387; *Burroughs v. Housatonic R. R. Co.*, 13 Conn. 124; *Pittsburg, etc., R. R. Co. v. Hixon*, 110 Ind. 225 (32 Am. and Eng. R. R. Cas. 374); *Atchison, etc., R. R. Co. v. Stanford*, 12 Kan. 354; *Sheldon v. Hudson R. R. R. Co.*, 14 N. Y. 218; *Ruffner v. Cincinnati, etc., R. R. Co.*, 34 Ohio St. 96; *Penn. R. R. Co. v. Yerger*, 73 Pa. St. 121; *Reading, etc., R. R. Co. v. Latshaw*, 93 Pa. St. 449. The last part of the instruction practically told the jury that if they believed that the fire was set out by the engine they must find for the plaintiff. This instruction clearly lays too much consideration upon the fact of the fire. Woods on Railway Law, p. 1343; *Toledo, etc., R. R. Co. v. Larmon*, 67 Ill. 68. Where fire starts upon the right-of-way of the company and then spreads to adjacent property, it has been held that the complaint should allege negligence in permitting the fire to spread from the right-of-way, and the evidence should prove such fact. *R. R. Co. v. McBrown*, 13 Am. and Eng. R. R. Cas.; *Pittsburgh, etc., R. R. Co. v. Culver*, 60 Ind. 469; *Atchison, etc., R. R. Co. v. Dennis*, 32 Am. and Eng. R. R. Cas. 318.

The opinion of the court was delivered by

DUNBAR, J. — This is an action brought by appellee against appellant for causes shown in the complaint, which was as follows:

"The plaintiff alleges that the defendant was and now is a corporation organized under the laws of Washington Territory, and was and is the owner of a certain railroad, known as the Columbia and Palouse Railroad, together with the tracks, cars and engines thereunto belonging.

That during the two months prior to the commencement of this action plaintiff was the owner of and in the possession of a growing crop of corn and grass and certain trees, situated on the land of the plaintiff and on the line of said railroad, in Whitman county, Washington Territory, between the towns of Farmington and Garfield, in said county. That defendant, by its servants, and not regarding its duty in that respect, so carelessly and negligently ran and managed its said locomotive engines that the same emitted and dropped from themselves large and frequent numbers of sparks and hot cinders in and upon the land adjacent and contiguous to the track of said railroad, thereby setting fire to the dry grain and vegetation growing, and extending the fire to the land belonging to plaintiff, and destroying the crops and fruit trees of the plaintiff on his said land then and there growing, to his damage," etc.

The answer of the defendant denied each and every allegation set forth in plaintiff's amended complaint except the allegation of incorporation and ownership of the road as therein set forth. There was testimony introduced by the plaintiff tending to show that on the said 27th day of August, fire originated on the right-of-way of said railroad company, and was communicated to the premises of plaintiff where said damages were alleged, and that plaintiff's property was destroyed by said fire as alleged; and that said fire was seen to break out on said right-of-way within two or three minutes after the passage of the train.

Witness Randall, called by defendant, testified as follows:

"I was the engineer in charge of the engine going from Colfax to Farmington from which this fire is alleged to have escaped on the 28th day of last August. I have had eleven years' experience as a railroad engineer and am thoroughly acquainted with all the modern improvements and applications used now days and approved by the best equipped railroad operators for the prevention of the escape of fire. That the engine in my charge on said day was equipped with the best known appliances used for the prevention of the escaping of fire, and that it was handled and managed by me on said day and on said trip in a careful and skillful manner, and that I saw no fire escape whatso-

ever. It was impossible for fire to escape on said day from said engine."

At the conclusion of the testimony the court, refusing certain instructions asked for by counsel for the defense, gave to the jury the following instructions, which were unqualified by any other:

"If the defendant owned the road upon which the locomotive ran, and that the locomotive did set fire as alleged, the presumption is that it was the negligence of the owner of the road, and this presumption continues until the contrary appears from the evidence."

"If an expert testifies that he operated the locomotive at that time with due care and thought, and it was so constructed that it would not set fire as thus operated, and the jury believe from the evidence that it actually did set fire at that time, the jury are to consider which of these proofs they will believe, the former or the latter."

These instructions are assigned as error by the defendant; and the defendant claims that viewed in connection with the testimony, the court, in the last instruction, in effect, instructed the jury that the only question in dispute was the setting out the fire, and if they believed that the fire was set out by the engine they must find for the plaintiff.

It seems to us that the instructions might reasonably bear this construction, which would manifestly not be the law. At all events the language employed by the court is so confused and uncertain in its meaning that it is misleading, and it was error for the court so to instruct.

As this is decisive of the case it is not necessary for us to pass upon the question whether or not the court erred in refusing to give the instruction asked for by the defense, or whether or not the court correctly stated the law as to the presumption of negligence in the first paragraph of said charge or instruction.

The judgment of the court below is reversed.

ANDERS, C. J., and HOYT, STILES and SCOTT, JJ., concur.

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[No. 32. Decided March 8, 1890.]

# THE OREGON RAILWAY AND NAVIGATION COMPANY v. JOHN P. SMALLEY.

CONSTITUTIONAL LAW — DUE PROCESS OF LAW — RAILROADS — KILLING STOCK — FENCES.

The act approved November 28th, 1883 (Laws Wash. T., 1883, p. 51), making railroad companies liable for stock killed by them where their tracts are not fenced, regardless of any questions of negligence on the part of the railroad company, or of contributory negligence on the part of the plaintiff, is void, because it imposes a penalty where no duty to fence is imposed, and would be a taking of property without due process of law.

Sections 1 and 8 of the above-mentioned act are interdependent with §§ 2 to 7 of the same act (heretofore declared unconstitutional), and must fall with them; and the case of *Dacres v. O. R. & N. Co.*, holding that §§ 1 and 8 are capable of being executed in accordance with the apparent legislative intent, wholly independent of §§ 2 to 7, is overruled. (SCOTT and DUNBAR, JJ., dissent).

*Appeal from District Court, Walla Walla County.*

The facts sufficiently appear in the opinion.

*W. W. Cotton*, for appellant.

The act relating to fencing of railroad tracks, approved November 28, 1883, is unconstitutional. If the purpose of a statute is to accomplish a single object only, and some of its provisions are void, the whole must fail unless sufficient remains to effect the object without the aid of the invalid portions. Cooley on Const. Lim. 178–9; *Warren et al. v. Mayor, etc.*, 2 Gray, 84; *Fisher v. McGirr et al.*, 1 Gray, 1; *Taylor v. Commissioners, etc.*, 23 Ohio St. 22, 84; *State ex rel. Walsh & Walsh v. Dousman*, 28 Wis. 541–547; *Campau v. City of Detroit*, 14 Mich. 276, 283, 45; *Commonwealth v. Potts*, 79 Pa. St. 164. The act cannot be justified as a police regulation, since it effects no purpose and regulates no evil, in fact, does nothing other than to compel railroad companies to pay for cattle killed

by reason of no neglect or omission of such companies. Such an act is unconstitutional. *Bielenberg v. Montana, etc., Ry. Co.*, 8 Mont. 271; *Cairo R. R. Co. v. Parks*, 32 Ark. 131; *Zeigler v. South, etc., R. R. Co.*, 58 Ala. 595; *Ohio, etc. R. R. Co. v. Lackey*, 78 Ill. 55.

It has been repeatedly held that where cattle come upon a railroad track at a point where the railroad company is not bound to fence, the company is not liable for the injury to them wherever it occurs. *Morrison v. R. R. Co.*, 32 Barb. 568; *Jefferson, etc., R. R. Co. v. Brevoort*, 30 Ind. 324; *Wabash, etc., R. R. Co. v. Tretts*, 96 Ind. 450; *Louisville, etc., R. R. Co. v. Hall*, 93 Ind. 215; *Bremmer v. Green Bay, etc., R. R. Co.*, 61 Wis. 114 (S. C. 19 Am. & Eng. R. R. Cas. 575).

No fencing acts have been construed by any of the courts as making railroad companies absolutely liable, irrespective of the question as to what the acts or defaults of the owner of cattle may have been in allowing them to stray upon the track. Many cases have held that contributory negligence on the part of the owner would prevent a recovery. *Kansas City, etc., R. R. Co. v. McHenry* (Kan.), 6 Am. and Eng. R. R. Cas. 581; *Van Horn v. Burlington, etc., R. R. Co.* (Iowa), 7 Am. & Eng. R. R. Cas. 591; *Richards v. Chicago, etc., R. R. Co.* (Wis.), 13 Am. & Eng. R. R. Cas. 624; *Hines v. S. F. & N. P. R. R. Co.* (Cal.), 20 Am. and Eng. R. R. Cas. 486.

The opinion of the court was delivered by

STILES, J. — This was an action against a railroad company for the value of a colt killed by a train of the company, and for injuries to another colt by the same train.

The complaint alleged facts which, if proven, would have been sufficient to warrant a recovery at common law, and the answer put in issue all its material allegations. At the trial, however, both the plaintiff and the court appear to have regarded it as a case prosecuted under the act of November 28, 1883. Accordingly, the testimony of the

plaintiff was limited to the facts of ownership, the killing and maiming, the want of a fence along the track, and the value and damage. The defendant offered to show that its train was managed without fault, and that the plaintiff's negligence contributed to the accident; but the court rejected the evidence as being irrelevant and immaterial, and this ruling was excepted to.

It did appear, however, that the animals had strayed into a fenced field, not the property of their owner, and that from that field, which extended to the railroad track, they had gone upon the track at the point where they were struck by the train.

The defendant requested a number of instructions to the jury which would have been applicable in the absence of any statute; but the court refused to give them, and did give the following: "Railroad companies owning or operating lines of railway within this territory are liable for the value of all live stock killed or maimed by their passing trains, where their roads are not fenced."

Exceptions were taken to the refusal to give the instructions asked, and to the giving of the instruction noted above. Error is assigned upon all the exceptions.

This case brings this court squarely to a review of the act of 1883, commonly known as the "fence law," and of the case of *Dacres v. Oregon Railway & Navigation Company*, 20 Pac. Rep. 601, decided by the supreme court of Washington Territory, January 29, 1889. The court in that case, and the parties there and here, decided and admitted that §§ 2, 3, 4, 5, 6 and 7 of the act were unconstitutional, because they deny the right of trial by jury; but in response to its own question, "Is the whole act void by reason of the unconstitutionality of the sections named?" the court answered in the negative, and upheld the first and eighth sections as valid and binding law, "being complete in itself and capable of being executed in accordance with the apparent legislative intent,

wholly independent of that which was rejected," as the court said. The ruling was based upon the general principle, as stated by Judge Cooley's *Constitutional Limitations* (5th ed.), 212, thus: "Where, therefore, a part of a statute is unconstitutional, that fact does not authorize courts to declare the remainder void also, unless all the provisions are connected in subject-matter, depending on each other, operating together for the same purpose, or otherwise so connected together in meaning, that it cannot be presumed the legislature would have passed the one without the other. . . . If, when the unconstitutional portion is stricken out, that which remains is complete in itself, and capable of being executed in accordance with the legislative intent, wholly independent of that which was rejected, it must be sustained."

The act in question, as it is left, including its title, is as follows:

"An act to secure to the owners of live stock payment of the full value of all animals killed or maimed by railroad trains. Be it enacted," etc.

"Section 1. That all railroad companies owning or operating lines of railway within the Territory of Washington shall be liable to the owners of all live stock for the full value of all such live stock killed or maimed by their passing trains."

"Sec. 8. No railroad company shall be liable for stock killed upon their roads, when the same is fenced by such company with a good and lawful fence."

Construing the act, the court held that its general object was to enlarge and extend the rights of owners of live stock as against railroad companies, so long as the railways are not properly fenced, and its final construction of the two sections retained was as follows:

"Where an animal, being lawfully upon adjoining land, thence escapes upon a railway track at a place which is not fenced, but which the company may properly and lawfully fence, and the animal is killed by a passing train, the company is liable for the value of the animal, if killed; and if

injured, but not killed, for the amount of damages caused by the injury. . . . It is evident, upon the face of this statute, that the legislature intended to make the neglect or failure of railway companies to fence their railways evidence of negligence. This is made clear by § 8, which exempts companies from liability for the killing of live stock where the railways are properly fenced."

Viewing this act in the light of its title alone, we should be inclined to agree with that court as to the general object sought by the legislature. But that, by its terms, it was a reasonable statute, or one such as has been commended by courts in the cases cited, or that its provisions could be toned down and softened by the construction put upon them, so as to make it a reasonable statute, we are unable to discover, even after a careful study of the decision quoted.

The liability of a railroad company for injuries to live stock is based upon a supposed negligence in the performance of some duty imposed under the general rules of law or a statute; but to fence its track is not the duty of a railroad company under any law of Washington, either written or unwritten, not excepting the act in question. Therefore, without this statute the usual rules as to negligence and the burden of proof would apply in these stock-killing cases; and the plaintiff would be answerable for contributory negligence. By this act, however, without imposing upon a railroad company the duty of fencing at any place where a fence would be reasonable, a conclusive presumption of negligence on its part is enacted, and its absolute liability fixed without regard to the possible contributory negligence of the owner. Nor is any distinction made in cases where no lawful fence could be erected, as at street or highway crossings, or in towns; so that were a case presented where the owners of animals, hitched to a vehicle, with gross negligence drove them along a highway in front of a passing train, and both owner and animals were injured, while the owner could recover nothing for his own

injury, he could have the value of his live stock from the owner or operator of the train.

Liability of this kind is to be imposed upon him who is found at fault, and the injured party not being himself in the wrong; but here is a statute which imposes a penalty for no fault, which is a taking of property without due process of law, which is forbidden by the constitution. Now are we able to see in § 8 anything to relieve § 1 of these objections. Under it railroad companies may fence or not as they please; but if they do fence they may escape every reasonable liability, to the great wrong of owners of stock, through whose herds accidentally strayed upon their tracks, their engineers may wantonly drive locomotives, killing and maiming helpless beasts without fear of consequences.

A late and well-considered case upon this subject, growing out of a statute similar to § 1, is that of *Bielenberg v. Montana Union Ry. Co.*, 8 Mont. 271 (20 Pac. Rep. 314). In many states there are statutes which make it the duty of railroad companies to fence their tracks at reasonable places, and when animals are killed where there ought to have been a fence, but where none had been erected, the absence of the fence is made conclusive presumption of negligence in some cases, and of liability in others; and these statutes have been upheld. But until the duty of fencing is imposed, no such penalty can be attached to an omission to fence.

Again, it will be noted that in Judge Cooley's rule as to holding part of an act constitutional, although another part be held unconstitutional, it is laid down as requisite that the part upheld must be "capable of being executed in accordance with the apparent legislative intent, wholly independent of that which was rejected." And the court, in *Dacres v. Oregon R. & N. Co.*, held § 1 to meet the requirement. But let us examine. It is true it would be a very simple thing for courts to enforce the provisions of §§ 1 and 8 if they had been enacted alone. But leaving out all

question of the right of trial by jury, upon which the court in the former case held §§ 2 to 7 to be unconstitutional, and suppose there were no such possible objection, what is it that the legislature intended and provided that the owner might recover; and when can the action be commenced? By § 4, notice of the killing must be given to the superintendent, local business manager or agent of the railroad company, by the owner; the notice must be in writing and contain the date and place of the killing, with the number and kind of the animals; and by § 3, ten days were allowed the company to appoint an appraiser. Both parties were bound by the appraisement, and no suit could be brought until at least ten days after the notice of the killing given in writing to the defendant, through some one of its responsible agents. Presumably the appraisers chosen would have been more or less experts in valuing stock, and their judgment more satisfactory than the verdict of a jury. Who can say with certainty that the legislature did not intend, in view of the severe rule adopted against the railroad companies as to their liability, that they should, before being put to the cost of a suit, have the time and notice required as substantial rights; and that both parties should have the advantage of expert opinion as to the value directly employed in fixing the amount to be paid, rather than as mere evidence before a jury? These advantages are totally lost with the obnoxious sections out, but we regard them as having been materially within the legislative intent in enacting the law. And further, although § 1 provides that companies shall be liable for "the full value," it seems clear to us that to ascertain for what they are, after all, really liable, § 1 must be read with § 5, where the provision is, that after the appraisement, "the amount of such assessment shall thereupon become due and payable, with interest from date of said assessment, at the rate of one per cent. per month, and such amount, together with interest and costs, including attor-

ney's fees now allowed as costs in the district court, *may be recovered by suit* in any court having jurisdiction thereof." That is, the suit of the owner, instead of being in trespass for the injury to his chattel, would be in assumpsit upon the award of the appraisers; the actual value of the chattel would be immaterial, and need not be pleaded or proved; and the very fact of the killing need be pleaded only as a matter of inducement for the award sued on. Was it the intention of the legislature that, instead of the cause of action provided for in § 5, companies should be compelled to respond to, or owners should be required to plead, some entirely different cause of action; or that both should produce their proofs as to value in a different form from that provided in the act? On the contrary, it seems to us that the clear intention of the legislature was to give to both parties all the privileges above mentioned, as a substantive part of the right in the one and the liability in the other; and that, therefore, § 1 is not "capable of being executed in accordance with the apparent legislative intent, wholly independent of that which was rejected," and must fall with the other unconstitutional sections.

We sustained §§ 1 and 8 in the case of *Oregon Ry. & Nav. Co. v. Dacres*, *ante*, p. 195, decided at this term, but solely upon the ground that the decision of the court in the same case in 1889 constituted the law of the case upon the new trial.

The judgment of the court below is reversed, and a new trial granted.

ANDERS, C. J., and HOYT, J., concur.

SCOTT and DUNBAR, JJ., dissent.

[No. 19. Decided March 8, 1890.]

## CHARLES FREYTAG v. THE NORTHERN PACIFIC RAILROAD COMPANY AND BRITTAIN E. CRAIG.

VENDOR AND VENDEE — SPECIFIC PERFORMANCE — PLEADING — DEMAND FOR DEED.

In an action against the obligor in a title bond, and a railroad company, as defendants, to enforce plaintiff's right to a deed to certain premises, the complaint alleged that the obligor and the railroad company both claimed the same lands; that the obligor executed a bond to plaintiff to convey to him a certain portion of said lands, whenever he obtained title to the same; that, in compromise of a suit by the obligor against the railroad company, the disputed lands were divided between them, and that the railroad company obtained the tract bonded to this plaintiff, with full knowledge of plaintiff's rights under said bond. There were no proper allegations in the complaint showing the facts constituting the right of the obligor to a conveyance from the railroad company, and there were no allegations of fraud on the part of defendants. *Held*, That the complaint did not state facts sufficient to constitute a cause of action.

In such an action, in order to put the railroad company in default, a demand upon it for a conveyance should have been alleged.

*Appeal from District Court, Kittitas County.*

The facts are fully stated in the opinion.

*Parsons, Cadwell & Bausman*, for appellant.

The assignment of a mere expectancy or possibility will be supported as a contract entitling the assignee to a specific performance as soon as the assignor has acquired the power to perform. *Mitchell v. Winslow*, 2 Story, 630; *Woodworth v. Sherman*, 3 Story, 171.

That the vendee may maintain an action where the obligation of the vendor is in the form of a title bond, under the authorities cannot be questioned. 1 Hill, Vend., p. 430, § 5; *Ensign v. Kellogg*, 4 Pick. 1; *Doolittle v. Cook*, 75 Ill. 354; *Sterling v. Klepsattle*, 24 Ind. 94.

Whether a deed is demanded or not is not essential to

the right to maintain an action for a specific performance. *Morris v. Hoyt*, 11 Mich. 17; *Swanson v. Maxwell*, 2 Comst. 316; Pom. Spec. Perf. 435.

*Daniel Gaby*, for Craig, appellee.

*Mitchell, Ashton & Chapman*, for Northern Pacific R. R. Co., appellee.

There is no allegation that either Freytag or the railroad company ever refused to execute a deed upon demand. There must be both demand and refusal, and the complaint should show it. Wat. Spec. Perf., § 97.

The bond fixes no consideration. Such a bond cannot be enforced. *Smith v. Reynolds*, 8 Fed. Rep. 696; Wat. Spec. Perf., p. 121, § 93; 3 Pom. Eq. Jur., § 1405.

The complaint fails to allege the facts showing the character of the consideration. The statements which are made in the complaint in this respect amount only to conclusions of law. *Mayger v. Cruse*, 5 Mont. 485; *Wagonblast v. Whitney*, 12 Or. 83.

The bond merely stipulates for the making of a conveyance in the event of obtaining title, or the payment of $500, in lieu thereof. Equity will not interfere to decree a specific performance of the first alternative, but will leave the injured party to his remedy of damages at law. 1 Pom. Eq. Jur., § 447; *Cathcart v. Robinson*, 5 Pet. 264.

The complaint contains no sufficient allegation to show that there ever existed any contract between Craig and the railroad company which could be the subject of an action for specific performance. If there was no such contract between Craig and the railroad company, the attempted agreement between Craig and Freytag was a mere nullity, and never became of any binding force on either party. If Craig had any agreement with him, it was merely an agreement on his part to convey the estate to Freytag, and not that the railroad company should convey it. Wat. Spec. Perf., § 69.

The opinion of the court was delivered by

STILES, J. — In this case separate general demurrers to the complaint were sustained, and the action was dismissed in the court below. The appeal is on the part of the plaintiff from that disposal of the case, he having declined to amend. The complaint, after the formal part, was as follows:

"*Second:* That on or about the third day of September, 1884, the above named defendant, B. E. Craig, made and entered into a certain contract, in writing, to and with the above named plaintiff, a true copy of which is hereto attached and marked 'Exhibit A,' and made a part hereof; by the terms of which contract the above named defendant, B. E. Craig, for and in consideration of value received by him from the plaintiff, Charles Freytag, did agree and sell and convey, by good and sufficient warranty deed, that certain tract of land bounded and described as follows, to wit: Beginning at a point 1,104 feet due east from the southwest corner of the northwest quarter of section one, in township seventeen north, range eighteen east, thence running due north sixteen rods, thence due east five rods, thence due south sixteen rods, thence due west five rods, to the place of beginning. That it was further provided in said contract that said deed should be made, executed and delivered whenever the said B. E. Craig, defendant herein, shall have obtained title to said tract of land.

"*Third:* That said defendant, B. E. Craig, did, on or about the 23d day of June, 1888, become and was entitled to the title of said land so agreed to be sold by him to the plaintiff herein, and was entitled to have a decree of court establishing in him said title and a conveyance of the title thereof from the defendant, the Northern Pacific Railroad Company.

"*Fourth:* That at that time, to wit: June 23, 1888, there was a suit then pending between the defendant herein, B.E. Craig, as plaintiff, and the defendant, the Northern Pacific Railroad Company, as defendant, in which suit the plaintiff therein sought to obtain a decree of this court requiring the defendant, the Northern Pacific Railroad Company, to make, execute and deliver to him a deed of

conveyance of that certain tract of land described as follows, to wit: The east half of the northwest quarter and the southwest quarter of the northwest quarter of section number one in township seventeen (17) north, range eighteen (18) east, of which the tract herein mentioned, which said plaintiff had heretofore contracted and agreed to sell and convey to this plaintiff, was situated and was a part thereof.

"*Fifth:* That at the time of the contract hereinbefore referred to, and set out in this complaint as 'Exhibit A,' to wit: Sept. 3, 1884, the said plaintiff was in possession of the property hereinafter described, and has at all times since said date been and remained in the sole, actual, peaceable and quiet possession of said property. That he was in possession of said property on the 28th day of June, 1888, and has ever since said time so been in possession of said property.

"*Sixth:* That on the 23d day of June, 1888, the said suit then pending, between the said B. E. Craig and the Northern Pacific Railway Company was settled and compromised by said parties, by the terms of which settlement and compromise, which was in writing, and a true copy is hereto attached and marked 'Exhibit B,' and made a part hereof, the said B. E. Craig was to receive at a nominal figure one-half of all of said tract of land, which he then claimed to own, and the said Northern Pacific Railroad Company were to retain one-half. That selections were to be made by each of said parties alternately, while, by the terms of said contract, there was a nominal sale to the said B. E. Craig of said lands to be selected by him, yet in truth and in fact said settlement and compromise was so made and entered into to prevent further litigation of the rights of said parties.

"*Seventh:* That at the time said settlement and compromise was so made and entered into by and between said parties, the said Northern Pacific Railroad Company had full, complete and actual notice of the rights of this plaintiff, and they made said contract and entered into said agreement with a full knowledge of plaintiff's rights thereunder, and that they now hold the title to said land so agreed to be sold to this plaintiff by said B. E. Craig in trust for this plaintiff.

"*Eighth:* That plaintiff has demanded of the said B. E.

Craig that he make, execute and deliver to him a good and sufficient warranty deed to said property so agreed to be conveyed as aforestated, and that he include the same in his selection when the division of said land should be made by and between said B. E. Craig and the Northern Pacific Railroad Company, in pursuance of the terms of said contract, herein referred to and made a part hereof, as he has the right and power so to do, which he has refused to do and still refuses to do. That in pursuance of said agreement and compromise so made and entered into by and between said B. E. Craig and the Northern Pacific Railroad Company they have each so selected their portion of said land so divided between them, and that portion of land so agreed to be sold and conveyed to this plaintiff is not included in that portion selected by the said B. E. Craig. That it is included in that portion selected by the said Northern Pacific Railroad Company.

"*Ninth:* That the plaintiff has made large improvements on said tract of land (and is now making his home thereon). That the actual value of said improvements is one thousand dollars. That the value of said land is fifteen hundred dollars ($1,500).

"*Tenth:* That plaintiff has been damaged by the refusal of the defendant to make said conveyance as he had agreed to do, in the sum of five hundred dollars.

"Wherefore this plaintiff prays that he may have a decree requiring the said Northern Pacific Railroad Company to make, execute and deliver to him a warranty deed to said property.

"That he may have and recover of and from the defendants the sum of one thousand dollars damages, and for such other and further relief as this court may deem equitable and just."

"EXHIBIT A.—Know all men by these presents: That I, B. E. Craig, of Kittitas county, Washington Territory, am held and jointly bound unto Charles Freytag, of the same county and territory, in the sum of five hundred dollars, lawful money of the United States, to be paid to the said Charles Freytag, his executors, administrators or assigns, for which payment well and truly to be made I bind myself, my heirs, executors and administrators, and each of them, firmly by these presents. Sealed with my seal.

"Dated at Ellensburgh, Kittitas county, W. T., September 3, 1884.

"Now the condition of this obligation is such that if the above bounden B. E. Craig shall make, execute and deliver unto the said Charles Freytag a good and sufficient conveyance in fee simple with the usual covenants of the following described tract of land whenever said B. E. Craig shall himself obtain title to the same, which said tract of land is described as beginning 1,104 feet due east from the southwest corner of the northwest quarter of section one in township seventeen (17) north, range eighteen (18) east, thence running due north sixteen rods, thence due east five rods, thence due south sixteen rods, thence due west five rods to the place of beginning, then this obligation to be void, otherwise to remain in full force and effect."

Without passing upon the character or the validity of the bond which is the basis of this action, we shall, for the purpose of this decision, assume it to be one upon which, on the happening of the event specified, viz.: The acquisition of title by Craig, a specific performance could be required.

The stipulation or settlement referred to in the complaint as "Exhibit B," recited that the Northern Pacific Railroad Company was the owner of 120 acres of land, including the tract in question, and was entitled to the immediate and quiet possession thereof; that Craig was in possession of the 120 acres, and "claims to have some right and claim thereto;" that the suit mentioned in the complaint was pending and that to avoid further litigation the parties had agreed to settle and compromise the matter in controversy. It was then provided that Craig should forthwith dismiss his suit, and quit and surrender the premises to the railroad company, and relinquish to it "any and all claim, title or estate thereto;" and that the railroad company would sell, and Craig would buy and pay for one-half of the land in the manner further set forth.

That portion of the stipulation which provided for the disposition of the 120 acres was as follows:

"Therefore, it is hereby agreed by and between the parties hereto that the said party of the first part shall, within a reasonable time from this date, survey and plat into town lots and blocks all of said land, and cause the same to be platted and filed in the auditor's office of Kittitas county, Washington Territory, said plat to be an addition to the city of Ellensburgh, Washington Territory. That they will sell, and by these presents hereby agree, in consideration of the moneys hereinafter specified and agreed to be paid by the said party of the second part, to sell and convey half of all the lots and blocks as shown by said survey and plat so made and filed, to the said party of the second part, his heirs, executors or assigns, by good and sufficient warranty deed, for the sum of twenty-five dollars for each and every block, and twenty-five dollars for any part or portion of such block, which deed of conveyance will be given upon demand at the land office of the Northern Pacific Railroad Company at Tacoma, Washington Territory, after said land is surveyed and platted and the said amount hereinafter stated is paid to them. That they will divide on demand within reasonable time after said plat is made and filed, said blocks and lots as follows: The said Brittain E. Craig, his heirs, executors or assigns, may have the first selection of three blocks (which selection so made shall embrace the buildings, reservoir and orchard so far as practicable), as shown on said plat so made and filed.

"That the said party of the second part shall have the next selection of three blocks; then the said party of the second part may select one block from the blocks unselected, and the party of the first part one; thus alternately selecting, each one block, until all of said land so platted and recorded is selected. The selection to be made by each party taking the alternate block in the consecutive order of their numbers, and the blocks so selected by said Brittain E. Craig, his heirs, executors and assigns are the same that are to be conveyed as hereinbefore stated."

In so far as plaintiff's claim for damages was concerned, it was not sustained by any allegation of the complaint. The plaintiff was, at the commencement of the action, and ever since the date of his bond had been in the possession

of the premises, and as against either of the defendants, without showing some special damage, his costs would be the limit of his money recovery.

But the main question, and that upon which the attention of both parties was fixed, was whether, under the facts stated, the railroad company, to which, by the method of selection provided in the stipulation for settlement, the tract in question was allotted, was bound to convey it to the plaintiff as the assignee of Craig. It had notice of the plaintiff's bond and possession, and of the claim of Craig to have a deed for the whole tract of 120 acres; under the facts as they appear, was it bound, in making a compromise with Craig, to so shape the platting and selection of blocks that this tract would be covered by the selection of Craig and the conveyance to him?

Allowing the most liberal construction of the complaint and exhibits, and all reasonable intendments in favor of the pleadings, we are constrained to hold the negative. Craig had a suit pending against the railroad company in which he demanded a conveyance of the whole property, but whether he ever had a claim, of any description or degree, which he could have enforced at law or in equity against any portion of the premises until the stipulation of June 23, 1888, was signed, is nowhere asserted or even hinted in this complaint. He may have had the very best claim, under circumstances or writings which would have compelled the railroad company to convey to him the whole tract, or this portion of it; or he may have been a mere trespasser whose claim the court would have to entirely ignore. Under the former supposition no compromise of the parties to the suit would have estopped the plaintiff here from asserting his rights, *pro tanto*, and having his title; but, on the other hand, if the latter were the true state of things, no one would have a right to complain if the railroad company, being under no obligation to Craig, should yet see fit to yield much or little of the con-

troverted subject-matter, in an arrangement whereby it bought its peace. The difficulty with the pleading is, that it does not make the facts known on this the vital point of the whole matter. Leaving out the third paragraph, the allegations of the complaint and the "Exhibit B" make it appear to the indulgent reader as though Craig, being in possession under a claim which was more than doubtful of being maintained, and which he was willing to wholly abandon for the privilege of purchasing half of the blocks in the manner and for the price specified, had made the stipulation admitting the title and right of possession to be in the railroad company and agreeing to surrender his possession and doubtful claim. The facts may be otherwise, and the whole scheme put in operation by the stipulation may have been a mere collusive fraud between the parties to the settlement; but it does not so appear. And after the stipulation was executed, although it was then in Craig's power to select this particular tract, and probably it was his duty to do so under the plaintiff's demand, and he may be liable to the plaintiff beyond the penalty of the bond, in a proper action, for his failure to do so, it does not appear that any obstacle to his doing so was interposed by the railroad company, or that it owed any duty to the plaintiff to compel Craig to include this tract among his selections, for notice to it of the existence of the bond, in the absence of obligation to Craig, imposed no duty upon it in the premises.

Plaintiff, however, relies upon his third paragraph as sufficient to remove these objections. Were this action one brought against Craig alone for damages for his fraudulent refusal to select and obtain title to this tract under the stipulation, perhaps that paragraph, taken with the other matters alleged, might be sufficient, with the addition of allegations showing special damage. But as against the railroad company, which is the real defendant here, and which holds the title, in this form of action, we regard the paragraph as vitally insufficient. Viewing it from the

standpoint of the litigation between Craig and the railroad company, it stands contradicted in its essential part; for according to the stipulation, and the allegations of other portions of the complaint, Craig never "became entitled" to the land or to a decree for a conveyance of it, but had merely an option to buy it or some other land at an agreed price per block; and, on the other hand, viewing it as pure pleading, it is a mere conclusion of law, without a statement of any fact to sustain it. Here was the place and the opportunity, when the demurrers were sustained, for the plaintiff to amend by setting forth the facts which might support the conclusion that Craig became entitled to the land and a conveyance thereof. If such facts existed they should have been pleaded; if they did not exist there was no cause of action.

In other words, and finally, if at any time before the commencement of this action, Craig had an equitable right to enforce the execution of a deed for the 120-acre tract, by the railroad company, and if after assigning a portion of that right to the plaintiff he abandoned the whole of it in a settlement and compromise with the company, the latter having notice of this partial assignment; we hold that the plaintiff, in an action to enforce his assigned *pro tanto* right, must take upon himself, as against the railroad company, the burden of establishing the right of Craig, by proper allegations showing the facts constituting that right, just as though no suit or controversy had ever existed between Craig and the railroad company.

Upon another point the complaint was defective. In order to put the railroad company in default a demand upon it for a conveyance should have been alleged. Waterman on Specific Performance, § 97.

These omissions we consider to amply warrant the action of the court below, and its judgment is therefore affirmed.

ANDERS, C. J., and HOYT, SCOTT, and DUNBAR, JJ., concur.

[No. 7. Decided March 8, 1890.]

## CLINTON GOING v. CHARLES A. COOK.

PAROL CONTRACT — EVIDENCE.

In an action upon a verbal contract for commission on the sale of real estate, where plaintiff testified that the property was placed in his hands by defendant for sixty days for the purpose of sale, and defendant testified that he told plaintiff the property was in the hands of another real-estate agent for either thirty or sixty days, but that if the time had expired he was at liberty to handle it, it was error to exclude evidence that the property was in the hands of the other agent for sale at the time of the conversation between plaintiff and defendant, as such evidence would be relevant as to whether or not a contract was made as alleged. (DUNBAR, J., dissents.)

*Appeal from District Court, Pierce County.*

Action by Charles A. Cook to recover the sum of $150 as commission due him for effecting the sale for Clinton Going of a certain lot in the city of Tacoma. The lot belonged to one Goldsmith, of the city of Portland, who had directed the defendant, Going, to place the lot in the hands of Sawyer & Co., real-estate agents in Tacoma, for sale, which direction had been complied with. The alleged employment of plaintiff is found in the evidence of conversation between plaintiff and defendant, which is fully set forth in the opinion.

*Elwood Evans*, for appellant.

*A. A. Knight*, for appellee.

The opinion of the court was delivered by

ANDERS, C. J. — This action was brought by appellee, against appellant, to recover one hundred and fifty dollars, alleged to be due him as commission, for selling certain real estate in the city of Tacoma, placed in his hands for sale by appellant.

There was no written contract between the parties; but

appellee contends that he and appellant made the contract verbally, on the street, during a casual conversation there had between themselves alone.

In support of this contention, plaintiff testified as follows:

"Along about the 6th day of February I met Mr. Going on Pacific avenue, and I asked him if he had any property to sell, and he said he thought he had, and I told him if he had any I would like to sell it for him, and he said, I have a lot with a building on it on "C" street, lot 12, block 1306; and I asked him what he wanted to realize from the property? The consideration was I could put it on the market at $3,000. I said, you will pay the commissions of course. He wanted to know what the commission was, and I said five per cent., and he said that would be satisfactory; and I took a card out of my pocket and made a note of the matter, and I asked him if there was any incumbrance on the property, and he said there was a mortgage on it of one thousand dollars, and that the parties who purchased it should assume that, and that whatever interest accumulated would be a consideration, and that I should go ahead and make the sale; and I asked him what time he would give me to make the sale, and he said 60 days' time to sell it."

The defendant, Going, testified that "some time in the early part of February, 1888, I crossed the street nearly opposite Chilberg's. I was going to the Tacoma hotel, and Mr. Cook was coming down the street and we shook hands, and, while talking about the future prospects of Tacoma, he said, 'I am going into business.' I had never known before what his business was, and he said he was in the real-estate business. It was night time, and he said, 'If you wish to buy property, or your friends, bring them around;' and he said in the course of the conversation, 'Have you any property to sell?' and I said yes, I had a piece in the hands of Sawyer, and I mentioned this property on C street of Mr. Goldsmith's. He asked me particularly about this property, and I told him it was in the hands of Sawyer and I had given him option dates to sell it in, 30 days or 60 days, and I didn't know whether it was sold or not;

that I was told by Mr. Goldsmith to place that piece of property in Mr. Sawyer's hands. Mr. Cook said he would like to handle that property, and I told him it was then in the hands of Sawyer, and, so far as this property was concerned, if the time had expired, he was at liberty to handle it, and we went on, and I thought nothing more about it until I received a telegram from Portland that he had sold the property on C street, and when I received that telegram from Mr. Cook, I answered that it was sold.

At the trial in the district court the defendant offered to show, as matter of fact, that the property in question was in the hands of Sawyer for sale at the time of the conversation between plaintiff and defendant in regard thereto, but the court refused to permit the evidence to go to the jury, and this refusal is assigned as error.

We think the court should have permitted the defendant to show the fact. It was some evidence as to whether a contract was or was not made between the parties such as alleged by the plaintiff. The defendant's relation to the subject-matter was material to the determination of the question in dispute. The weight to be given to the evidence was a question for the jury.

Appellant also complains of the charge of the court to the jury. But we cannot see wherein he could have been prejudiced thereby.

For the error above indicated the judgment of the court below is reversed, and the cause remanded for a new trial.

HOYT, STILES and SCOTT, JJ., concur.

DUNBAR, J., dissents.

[No. 22. Decided March 8, 1890.]

## M. BROTTON v. CHARLES LANGERT.

EVIDENCE — MEMORANDA — EXCESSIVE VERDICT.

In an action by a mortgagee to recover damages for the conversion of mortgaged personalty, where the mortgagee testifies that he has received certain sums of money from the mortgagor to be applied on the mortgage debt, but is unable to state the amounts, it is error to permit him to read in evidence from a memorandum prepared by his clerk as to the items of payment made by the mortgagor, when he does not know how the clerk made up such memorandum.

Where, in such action, the evidence shows the value of all the property covered by the chattel mortgage was about $1,200; that only a portion of such property was converted by the defendant, and that the value of the goods not taken by him was at least $700, plaintiff can only recover the value of the goods converted, not exceeding in amount the balance unpaid upon the mortgage, and a verdict for $1,000 will be set aside as excessive.

*Error to District Court, Pierce County.*

Action by Charles Langert against M. Brotton, to recover the sum of $1,000 damages for the taking and selling of certain personal property by defendant while acting as constable of Tacoma precinct in Pierce county. On the 25th day of May, 1887, one Westlin was indebted to plaintiff in the sum of $1,200. On that day he made and delivered to plaintiff a promissory note for that amount, payable on demand, and to secure its payment executed a chattel mortgage on certain liquors and furniture used in operating the Exchange Hotel in the city of Tacoma. The mortgage provided that Westlin might retain possession of the property until default was made in payment, and that he might sell the liquors at retail for cash, account for the sales so made at the close of each day, and pay over the proceeds to plaintiff for application on the mortgage debt. On the next day after the execution of the mortgage, and for several days after, suits were commenced against West-

lin by various parties, and on the second day of June, 1887, the defendant Brotton, under executions issued out of the justice's court, took possession of the mortgaged property, closed the hotel and tore up the carpets.

On the 17th day of June the defendant, having advertised the property for sale, sold it in parcels to various purchasers, and the property was removed from the premises. A small portion of the property was left by defendant unsold; and this plaintiff took possession of and sold for $325. He also received some $18 or $20 in addition thereto. Trial was had before a jury, and a verdict rendered for plaintiff for the sum of $1,000 damages.

*E. W. Taylor*, for plaintiff in error.

*Judson, Sharpstein & Sullivan*, for defendant in error.

The opinion of the court was delivered by

HOYT, J.—Plaintiff in this action sought to recover damages for the conversion of certain articles of personal property upon which he had a mortgage. Defendant attempted to justify as an officer by virtue of certain executions against the mortgagor.

Numerous errors are assigned to the rulings of the court below, but in view of the unsatisfactory state of the record, and of a division of opinion as to what is made to appear therefrom, we shall only notice two of said alleged errors, and leave the questions presented by the others to be determined in some other case.. During the progress of the trial plaintiff admitted that he had received certain sums of money from the mortgagor to be applied upon the mortgage debt, and when asked as to the amount of such payments stated that he could not tell.

He was then shown a certain memorandum and asked if by the aid thereof he could get such amount? Upon examination it appeared that such memorandum was not made by himself but by his clerk, and that he, witness, could not

say how said clerk made up the same. Upon this appearing counsel for the defendant objected to the witness using the memorandum in giving his testimony. The court, however, against such objection, allowed the witness to read from such memorandum as to the items of payment made by the mortgagor. Exception was duly taken to such ruling and error assigned thereon.

The amount still due upon the mortgage was material to the plaintiff's case, and as he had testified that certain payments had been made, it became material that he should show the amount of such payments. Therefore the evidence elicited from the witness by the aid of the memorandum was material. Was the memorandum such as the witness was authorized to read from to the jury? If it was not, it was error to allow the witness thus to use it.

It is not claimed that the paper used was such as, in itself, could be introduced in evidence, but it is contended that it comes within the rule which allows certain memoranda to be used by a witness to refresh his memory when testifying. If this memorandum was of that class, it is possible that it was not error to allow witness to read therefrom, though the usual course is to allow the witness to read the memorandum and then to testify to knowledge of the facts as to which he has thus refreshed his memory.

In our opinion, however, the memorandum in question was not shown to be such as could be used by the witness even for the purpose of refreshing his memory. It comes within none of the three classes recognized by the writers on evidence, especially in view of the fact that after reading it the witness did not pretend to say that he then had any personal knowledge of the statements therein contained. See 1 Greenl. Ev., §§ 436, 437.

Plaintiff introduced evidence tending to show that the value of all the property covered by his mortgage was about twelve hundred dollars. But the uncontradicted evidence in the case showed that only a portion of such

property was converted by the defendant, and that the value of those goods not taken by him was at least seven hundred dollars.

Under the pleadings in the case, plaintiff could only recover the value of the goods converted by the defendant, not exceeding in amount the balance unpaid upon his mortgage. See *Sheehan v. Levy, ante*, p. 149, decided at this session of this court.

Hence it follows that the verdict of one thousand dollars was much larger than the evidence warranted, and that defendant's motion for a new trial on that ground should have been granted.

For the errors above stated the judgment must be reversed with costs and a new trial granted.

ANDERS, C. J., and DUNBAR, STILES and SCOTT, JJ., concur.

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[No. 36. Decided March 8, 1890.]

## WESTERN MILL AND LUMBER COMPANY v. DUDLEY BLANCHARD AND GEORGE B. BLANCHARD.

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d39 496

SALE — DELIVERY — EVIDENCE — TIME OF PAYMENT — INTEREST.

Where, in an action for the price of certain logs, the place of delivery of the logs, by the terms of the contract, is in controversy, evidence that the agent making the contract had only a special and limited authority to contract for the purchase of the logs to be delivered at the mill is admissible, as a circumstance to be weighed in connection with the agent's testimony as to what the contract was.

Where, by the terms of a contract, payment was to be made within sixty days from the presentation to defendant at San Francisco of a draft drawn by its agent in this state, and there was no proof that the draft was ever issued, though payment was demanded of the agent several days after the contract was made, a judgment, including interest from a date sixty days after the making of the contract, was unauthorized.

*Appeal from District Court, Jefferson County.*

The facts are sufficiently stated in the opinion.

*Struve, Haines & McMicken,* for appellants.

Persons who contract on a subject-matter concerning which a known usage prevails, by implication incorporate it in their agreement, if nothing is said to the contrary. Parsons on Contracts (7th ed.), pp. 666–7; Wait's Actions and Defenses, vol. 1, p. 128; *Robinson v. United States,* 13 Wall. 363. A person who deals in a particular market must be taken to deal according to the known, general and uniform usage or custom of that market. *Bailey v. Bensley,* 87 Ill. 556; *Lonergan v. Stewart,* 55 Ill. 44. When authority is conferred upon an agent it carries with it the right to act according to the usual customs of the trade or business to which it relates. Wait's Actions and Defenses, vol. 1, p. 229. A person dealing with an agent in a manner contrary to the customs of trade or business in which the transaction occurs is put upon inquiry as to his authority, and chargeable with notice of its limited character. *Taliaferro v. Bank,* 71 Md. 200.

The question of the existence of a local or trade custom which is not of a character so general as to be a matter of common knowledge, and therefore a subject of judicial notice, is solely for the jury. Thompson on Trials, § 1058; *Chicago Packing Co. v. Tilton,* 87 Ill. 547. So also the extent of such custom, *Ibid.* Also whether the parties contracted with reference to it. Thompson on Trials, § 1058; *Burroughs v. Langley,* 10 Md. 248. Evidence of custom is admissible under the general denial. Abbott's Trial Evidence, p. 374. If a special agent exceeds his authority the principal is not bound by his acts. Story on Agency (6th ed.), §§ 126, 131, 132, and cases cited; Mechem on Agency, § 288. A person dealing with an agent, particularly when he is a stranger, must act with prudence and

diligence. Mechem on Agency, §§ 290. Any ratification of an unauthorized contract, in order to be made effectual and obligatory upon the principal, must be shown to have been made with a full knowledge of all the material facts connected with the transaction to which it relates. Mechem on Agency, § 120; *Owings v. Hall*, 9 Peters, 607; *Bell v. Cunningham*, 3 Peters, 69; *Besseau v. O'Brien*, 4 Biss. 395.

The logs were to be paid for in bills of exchange, payable in the city of San Francisco sixty days after presentation thereof for acceptance. There should have been a rebate of interest during the stipulated period of credit. *Hanna v. Mills*, 21 Wend. 90.

*C. H. Hanford*, and *Eben Smith*, for appellee.

The court committed no error in excluding the evidence offered as to the alleged custom, because the alleged custom was not pleaded. Particular local customs cannot be given in evidence upon the trial of a cause unless they are specially pleaded. Lawson on Usages and Customs, p. 112. *Wallace v. Morgan*, 23 Ind. 399; *Dutch, etc., Co. v. Mooney*, 12 Cal. 534. No custom is valid which is contrary to law. The offer made was to prove a custom to have all saw-logs scaled at the mill. This is directly in conflict with a statute of the territory which expressly and in mandatory terms provides that all logs shall be scaled at the place where rafted. Laws 1883, p. 107, §§ 2644 and 2645. It is immaterial whether the agent of the appellant be called a general or a special agent. He had authority to purchase these logs and to do whatever was fairly incident to that purchase. 1 Parsons on Contracts, 44; Story on Agency, pp. 148–9. Persons dealing with an agent have a right to presume that his agency is general, and not limited, and notice of the limited authority must be brought to their knowledge before they are bound to regard it. *Trainer v. Morrison*, 3 Atl. Rep. 185; 1 Parsons

Cont. 31, note; *Hatch v. Taylor*, 10 N. H. 538; *Railroad Co. v. Foster*, 104 Ind. 293; 54 Am. Rep. 319; Morawetz Corp. § 593, and cases cited.

The opinion of the court was delivered by

SCOTT, J. — Appellees, who were plaintiffs below, brought suit to recover the contract price for certain saw-logs sold by them to appellant, which were lost while being towed from the place of purchase to the company's mill. The controversy was as to which party assumed the risk of towage; whether, by the contract made, the logs were delivered at the place where purchased, or whether they were to have been delivered by appellees at the mill aforesaid.

The contract was made upon the part of appellant through one Villey, its special agent for that purpose. Upon the trial of the cause appellant offered testimony to prove that Villey only had a special and limited authority to contract for the purchase of the logs to be delivered at the mill. Appellees objected to this testimony as immaterial. The court sustained the objection. Villey had testified previous to the offer that in making the contract he told appellees that he could not purchase the logs to be scaled at the place where the bargain was made, and that it was contrary to the company's rule to scale logs away from the mill. He also testified that the logs were to be paid for according to the scale at the mill, by the terms of the agreement.

Appellees claimed that by the contract the logs were delivered at the place where the bargain was made, and that appellant assumed the risk of towage, and they contend here that their proof as to the place of delivery was not contradicted by the testimony upon the part of appellant. That appellant's proof of a scaling to be made at the mill by which the amount of the payment was to be determined is not inconsistent with the appellees' claim that the logs were delivered at the place where the bargain was made, and that thereby appellant assumed the risk of towage.

We think, however, that the evidence was fairly contradictory upon this point. The place of scaling, whereon the payment was to be based, seems to have been treated at the trial below as synonymous with the place of delivery, and if Villey's testimony was true, he substantially told appellees that he had no authority to buy the logs to be delivered at any other point than the mill. In this view of the case the proof offered by appellant that Villey as a matter of fact had no such authority was material, in that it was a circumstance to be weighed in connection with Villey's testimony as to what contract he actually did make, and the court should have admitted it.

It is also claimed by appellant that appellees recovered too large a sum. The contract was made December 7th, 1886, as alleged in the complaint. It is admitted that the agreement as to the time, place and manner of payment was that the appellant should pay for the logs at the city of San Francisco, where its principal place of business was located, sixty days after presentation to it there of a draft to be drawn by its agent at Port Hadlock upon it as drawee, and delivered to appellees immediately after delivery of the logs.

There is no proof that the draft was ever issued or demanded, but it appears that payment was demanded at Port Hadlock, December 10th, 1886. The cause was tried in March, 1889. The jury returned a verdict in favor of appellees for $4,230.87, "with legal interest." No time was specified in the verdict from which interest was to be allowed. Appellees claimed interest, in their complaint, from December 7th, 1886. The court rendered judgment upon the verdict for $4,230.87, "with legal interest thereon from and after the 6th day of February, 1887," and further added that the total sum for which judgment was rendered was $5,135.79.

In *Meeker v. Gardella*, *ante*, p. 139, decided at this session of the court, we held that a verdict similar to the one

in this case would not support a judgment for any sum, except by treating the interest clause as surplusage.

The only contention made by appellant here, however, is, that too large a sum was included in the judgment as interest; that by the terms of payment agreed upon no interest should have been charged for sixty days from and after the time necessary for presentation of the draft at San Francisco. In rendering the judgment sixty-one days were allowed from the date of the contract, and less than sixty days from the day payment was demanded at Port Hadlock, as the non-interest bearing time; and as it would necessarily have taken some days to have presented the draft at San Francisco, it is evident that not enough time was allowed, in any event, if there could have been any judgment at all on the verdict for accrued interest, and we are of the opinion that such a judgment was unauthorized.

For these reasons the judgment of the lower court is reversed, and the cause remanded.

ANDERS, C. J., and HOYT and STILES, JJ., concur.

DUNBAR, J., dissents.

REPORTS OF CASES

DECIDED IN

# THE SUPREME COURT

OF THE

STATE OF WASHINGTON,

AT THE

MAY TERM, 1890.

[No. 25. Decided May 19, 1890.]

## FRANK H. WILKIN AND T. T. WILSON v. THE ELLENSBURGH WATER COMPANY.

CONSTRUCTION OF CONTRACT — EXTRA COMPENSATION.

Where a contract for the construction of a ditch provided for the payment of eighteen cents per cubic yard for the removal of earth and gravel between certain points, the fact that plaintiff, in excavating between those points, encountered a large amount of "cement gravel," or hard pan, will not entitle him to recover more than the contract price, on the ground that the removal of cement gravel was not contemplated by the parties to the contract.

*Error to District Court, Kittitas County.*

The facts are fully stated in the opinion.

*Parsons, Cadwell & Bausman,* for plaintiffs in error.

*D. Gaby,* and *Turner, Forster & Turner,* for defendant in error.

The opinion of the court was delivered by

ANDERS, C. J. — At the time of the commencement of this action Frank H. Wilkin and Thomas T. Wilson

(plaintiffs below) were copartners doing business under the firm name of Wilkin & Wilson, and defendant in error was a corporation duly organized under the laws of the then Territory of Washington. On the 14th day of October, 1886, plaintiffs and defendant entered into the following agreement in writing:

"Know all men by these presents, that the Ellensburgh Water Company has this day let unto F. H. Wilkin and T. T. Wilson a contract to construct certain portions of a ditch for said company as follows: Commencing at station forty-three and running to station seventy-seven; again commencing at station ninety-four and running to station ninety-eight; again commencing at station three hundred and ninety-four and running to station four hundred and forty-eight; again commencing at station one hundred and sixty-six and running to station one hundred and eighty-four; again commencing east of the tunnel and constructing one mile between that and the Nanum Creek; again commencing east of McCausland's place and constructing the ditch to its termination. All ditch above the tunnel to be twelve feet wide on the bottom and fifteen feet wide at the top (or thirty inches above grade) and thirty inches deep; and all east of the tunnel to be eight feet wide on the bottom and eleven feet wide at the top and thirty inches deep; all of the ditch to be built according to the regular surveyed grade. All earth or ground excavated to be placed on the lower side of the ditch, not nearer than one foot from edge of ditch, and all fills on lower side of ditch to be two feet higher than the usual bank, and in no instance is the bank on the lower side of the ditch to be cut down lower than thirty inches above the bottom of the ditch. Work to be commenced on that portion of the ditch above the tunnel immediately and be finished by the first day of June, A. D. 1887, . . . and balance on east to be finished by June 1, 1888.

In consideration of the said F. H. Wilkin and T. T. Wilson performing the agreements and constructing said ditch, as above specified, the said Ellensburgh Water Company agree to pay F. H. Wilkin and T. T. Wilson, or their assigns, sixteen cents per cubic yard of earth or gravel necessarily moved in constructing all of that portion of the

ditch west or above the tunnel specified in the agreement, except that portion between *stations one hundred and sixty-six to one hundred and eighty-four inclusive*, which last amount is to be paid for at the rate of eighteen cents per cubic yard necessarily moved. On that portion of the contract west of the tunnel the company are to make measurements and estimates every thirty days (while the work is being done) and make payments in cash for the work as fast as accepted. That portion of the contract east of the tunnel to be paid for in stock of the company at par at the rate of ten cents per cubic yard of earth and sixteen cents for gravel and rock necessarily moved in constructing said portion of the ditch whenever each contract is completed."

It was conceded, upon the argument, that plaintiff constructed the ditch according to the terms of the contract, and that defendant had paid them on account thereof an amount equal to the contract price as specified. But plaintiffs in error contend that in prosecuting the work they encountered a large amount of "cement gravel" or hard pan, between stations one hundred and sixty-six and one hundred and eighty-four, as well as at a place called the Abbott Ranch, and that "cement gravel" was not contemplated by the parties to the contract or the price to be paid for removing it specified in the agreement, and that, therefore, they are entitled to recover what it was reasonably worth to excavate it regardless of the terms of the contract as to price. We will here state that plaintiffs in error, on the argument, waived all claim to recover extra compensation for work done at points other than between stations one hundred and sixty-six and one hundred and eighty-four inclusive. It appears that at the time plaintiffs entered into the contract with defendant they knew, or might have known, that the work between the stations last mentioned would be more difficult to perform than elsewhere. They must be presumed to have known it, for they asked, and defendant agreed to pay, a higher price for that particular portion than for the remainder. They also knew that one Palme-

tier had previously undertaken the work but had abandoned it. We cannot, therefore, say that excavating "cement gravel" was not contemplated by the parties to the contract, or that plaintiffs are entitled to recover compensation for removing it beyond the price specified. On the contrary, we are of the opinion that the contract price must be the measure of plaintiffs' compensation. Plaintiffs may have made a bad bargain, but, if so, it is their misfortune, and they can be afforded no relief in this action. See 1 Redf. Railways, 417; *Delaware & Hudson Canal Co. v. Dubois*, 15 Wend. 87; *Sherman v. Mayor of New York*, 1 Comst. 316.

Several errors are assigned and relied on by the learned counsel for plaintiffs in error as grounds of reversal of the judgment of the court below, but, as we are clearly of the opinion that the judgment was right, the errors, if any, were without prejudice to plaintiffs.

The judgment of the court below is affirmed.

STILES, SCOTT and HOYT, JJ., concur.

DUNBAR, J., not sitting.

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[No. 6. Decided May 19, 1890.]

## GEORGE McGLAUFLIN AND L. B. HANDLEY v. N. F. HOLMAN, ROSAMOND HOLMAN AND PHŒBE B. GREEN.

LANDLORD AND TENANT — DEFECTIVE LEASE — SPECIFIC PERFORMANCE.

Where a tenant, under the terms of a lease which is invalid because not acknowledged, but is otherwise sufficient, enters into possession of premises, makes improvements thereon and pays rent therefor, he is entitled to specific performance of the terms of the defective lease, as against a subsequent vendee of his lessor, who takes with actual knowledge of such tenant's rights.

*Appeal from District Court, Spokane County.*

Action by N. F. Holman, Rosamond Holman and Phœbe B. Green against George McGlauflin and F. B. Handley, to recover possession of certain premises in the city of Spokane Falls. Defendants held possession under a lease for three years from one Henry L. Tilton, given them on the 15th day of May, 1888, properly signed, sealed and witnessed, but not acknowledged. The defendants took possession under the lease, paid rent to the lessor and erected a blacksmith shop thereon. Said Tilton sold the premises to plaintiffs, who had knowledge of defendants' possession under the agreement and instrument executed by Tilton, and plaintiffs received rent from defendants. Verdict and judgment for plaintiffs, and defendants appeal.

*Turner, Forster & Turner*, for appellants.

The opinion of the court was delivered by

Scott, J. — It appears in this case by appellants' answer that on May 15, 1888, one Henry L. Tilton agreed to execute to appellants a lease of certain lands in the city of Spokane Falls for the term of three years from said date; and on said day by a written instrument purported to lease the same to them accordingly. The instrument was invalid by reason of its having no acknowledgment, although it was otherwise sufficient. It further appears by the answer that appellants went into and remained in possession of the premises, made several payments of rent in pursuance of the terms of said purported lease, and for the purpose of engaging in business erected a building thereon at a cost of several hundred dollars. Subsequently said Tilton sold the premises to appellees, who, in July of said year, brought this suit to oust appellants.

Upon the trial of the cause, appellants offered to prove the payment of rent to said Tilton up to the time of said

sale, and subsequently to the appellees, according to the terms of the instrument; also that they were put in possession of the premises thereunder by said Tilton, and were in possession thereof at the time appellees purchased; also the making of said improvements; and further, that appellees had actual knowledge of appellants' rights in the premises, all of which matters were pleaded in said answer. Appellees objected to the introduction of such testimony, whereupon the district judge sustained the objections, and directed the jury to find a verdict for appellees. This was error, for were the facts as pleaded by appellants, and which they thus sought to prove, they were entitled to a specific performance of the terms of the defective agreement, for which they had prayed in their answer. See Taylor, Landlord and Tenant, §§ 32, 33; Fry, Spec. Perf., §§ 584, 585; Pom. Spec. Perf. §§ 124–6; 3 Pom. Eq. Jur., §§ 1297, 1409.

The judgment of the lower court is reversed, and the cause remanded.

ANDERS, C. J., and STILES and HOYT, JJ., concur.

DUNBAR, J., not sitting.

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[No. 29. Decided May 26, 1890.]

## WILLIAM KERRON AND S. F. ALBERTS v. NORTH PACIFIC LUMBERING AND MANUFACTURING COMPANY.

REPLEVIN — PLEADING — EVIDENCE — BILL OF SALE AS MORTGAGE.

In an action for the possession of personal property, where plaintiff claims as owner under a bill of sale from a third party, and the proof shows that he is merely a mortgagee, he cannot recover.

Where the complaint, in an action of replevin, alleges title generally in plaintiff, without setting forth the source of title, and

plaintiff, on the trial, introduces in evidence a bill of sale from a third party to plaintiff, the defendant, under a plea of general denial, may introduce evidence tending to show that such bill of sale was given as security for a debt, and was, in fact, only a mortgage.

*Appeal from District Court, Wahkiakum County.*

Action by North Pacific Lumbering and Manufacturing Company against William Kerron and S. F. Alberts, to recover possession of certain saw-logs. In the spring of 1887, one Kimball was engaged in cutting and putting into one of the streams emptying into the Columbia river saw-logs from timber growing upon the land of the defendant Kerron. At that time plaintiff was furnishing supplies and money to Kimball to carry on such logging operations, in consideration of which Kimball agreed to deliver to plaintiff all saw-logs manufactured by him at an agreed price. During the whole of the year 1887, there existed a contract between Kimball and defendant Kerron, whereby the latter granted to Kimball the right to cut and remove from said lands all the timber thereon. The plaintiff continued to furnish money and supplies to Kimball for said logging operations during the year 1887, and Kimball cut from said lands a large number of saw-logs. On the 17th day of October, 1887, Kimball executed the contract set out in the opinion of the court, which contract was duly recorded. On March 12, 1888, Kimball executed and delivered to defendant Kerron a promissory note due one day after date, and secured by a chattel mortgage on the logs in controversy, which mortgage was duly recorded. When said note became due, Kerron proceeded to foreclose his mortgage, and directed the defendant Alberts, as sheriff of Wahkiakum county, to seize and sell said saw-logs. Plaintiff thereupon brought suit for possession of the logs, and damages for detention of the same by defendants. Verdict and judgment for plaintiff, and defendants appeal.

*Seneca Smith*, and *Stott, Boise & Stott*, for appellants.

*Thomas N. Strong*, and *Doolittle, Pritchard & Stevens*, for appellee.

The opinion of the court was delivered by

HOYT, J. — This action was brought to secure the possession of certain saw-logs, alleged to have been unlawfully detained by the defendants. In its complaint the plaintiff alleged that it was the owner of the logs in question. Defendants denied the ownership, and set up that they were in possession by authority of one J. F. Kimball, who cut and put into the water the logs. Plaintiff, to prove its ownership, put in evidence a bill of sale, made by said Kimball, in words and figures as follows, to wit:

"Know all men by these presents: That I, James F. Kimball, of Cathlamet, Washington Territory, the party of the first part, for and in consideration of the sum of one dollar and other good considerations to me in hand paid by the North Pacific Lumbering and Manufacturing Company, a corporation, the party of the second part, the receipt whereof is hereby acknowledged, do by these presents, grant, bargain, sell and convey unto the said party of the second part, its successors and assigns, all of the following described personal property, to wit: All of the saw-logs manufactured or purchased by me, and now in or near the waters of the Columbia and Elokomon rivers, in Wahkiakum county, Territory of Washington, being all the saw-logs now on hand and owned by me in said county of Wahkiakum; and I do also sell to said corporation all the logs now in the process of manufacture, or that I may cut into saw-logs during the year 1887, all marked as follows: A stamp mark or brand in the end, a "T," and a sap mark, a crow's foot. To have and to hold the same to the said party of the second part, its successors and assigns forever, and I do for myself, my heirs, executors and administrators covenant and agree to and with the said party, its successors and assigns, to warrant and defend the sale of said property, goods and chattels hereby made with the said party of the second part, its successors and assigns, against

all and every person or persons whomsoever lawfully claiming or to claim the same.

"In witness whereof I have hereunto set my hand and seal the 17th day of October, in the year of our Lord, 1887."

Defendants offered to prove certain facts tending to show that said bill of sale was given simply as a security, and was, therefore, in fact, only a mortgage. The court excluded this proof. Defendants excepted and have assigned error thereon; and this ruling we will proceed to examine. The plaintiff concedes, in its brief, that the said ruling was erroneous, if the fact that it was only a mortgage and not the owner would, under the pleadings in the cause, have been of any avail to the defendants, but argues upon two grounds that proof of such a fact would not have aided them: First, for the reason that, as mortgagee, it would have had a special property in the logs, and have been entitled to maintain its action by virtue of the provisions of section 108 of the code; and second, that before the defendants could avail themselves of such a defense they must have pleaded it in their answer.

As to the first proposition above stated, it is only necessary to say that this court, at its last term, held in a case like this, where the plaintiff claimed as owner and proved only that he was a mortgagee, that he could not recover. And, as we are satisfied with that decision and the reasoning therein, it is conclusive of this question. See *Silsby v. Aldridge, ante*, p. 117.

If the plaintiff, in its complaint, had set out the bill of sale in question, and alleged ownership thereunder, it would, undoubtedly, have been necessary for the defendants to have pleaded that it was only a mortgage, to have entitled them to introduce proof to show such fact; but as it contented itself with the allegation of ownership without showing how it was acquired, and thus entitled itself to establish such ownership by any competent proof, it must follow that when such proof was introduced, the defendants were

entitled to meet the case made by plaintiff's evidence by any competent proof that tended to show that such evidence was untrue; and that the bill of sale introduced was not, in fact, a conveyance of the property, but was only a mortgage thereon, as fully and completely as though the matters in defense had been fully set out in their answer. The proof offered by the defendants was wrongfully excluded, and the error thereon assigned was well taken.

Error was also assigned upon various rulings growing out of the instructions to the jury, but the record seems to be imperfect, and as it is impossible to determine therefrom just what the judge did instruct the jury, we shall not discuss these errors further than to say that, excepting as to the instruction that the intent of the parties must be gathered solely from the bill of sale, which, for the reason hereinbefore stated, we hold to be error, we are of the opinion that the instructions fairly interpret the law of the case.

The judgment of the lower court must be reversed, and the cause remanded for a new trial.

ANDERS, C. J., and STILES and SCOTT, JJ., concur.

DUNBAR, J., not sitting.

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[No. 3. Decided May 28, 1890.]

## B. F. BURCH v. W. H. TAYLOR.

CORPORATIONS — STOCKHOLDERS — UNPAID SUBSCRIPTIONS.

A creditor of a corporation, who was himself a stockholder therein, obtained a judgment against it, and thereupon brought an action before a justice of the peace against another stockholder who had not paid up his subscription, and sought to enforce the collection of same and its application on his judgment against the corporation. *Held*, That unpaid stock subscriptions are a trust fund for the benefit of all the creditors, and that to enforce a right to participate therein requires a proceeding in equity.

Where a creditor obtained judgment against a corporation and other persons, and brought suit against a stockholder of the corporation to enforce payment of his unpaid subscription, a complaint alleging that the corporation had no assets except its unpaid subscriptions, but which fails to show that the judgment could not have been made out of the property of the other judgment debtors, does not state a cause of action.

*Error to District Court, Spokane County.*

Action commenced before a justice of the peace, wherein plaintiff sought to recover from defendant the sum of $275 as the balance due upon his stock in the Spokane Falls and Cœur d' Alene Transportation Company, which was indebted to plaintiff in the sum of $616, which had been reduced to judgment. Judgment was entered against defendant, and he appealed to the district court. Plaintiff's amended complaint in the district court recites that on November 27, 1886, he obtained judgment against the transportation company and C. C. McCoy, M. R. Brown and George McCabe for $695.06; that no part of said judgment has ever been paid, but there is now due plaintiff the sum of $616.16, less the sum of $25, the amount due from plaintiff as a stockholder in said transportation company; that defendant is a stockholder in said company, and indebted thereto in the sum of $275; that said transportation company has no other assets than its unpaid subscriptions to capital stock. Defendant demurred to the complaint on the grounds that the complaint does not state facts sufficient to constitute a cause of action; that plaintiff has no legal capacity to maintain the suit; and that the court has no jurisdiction of the subject-matter of the action. The demurrer was sustained, the plaintiff refused to plead further and appealed to the supreme court.

*Turner, Forster & Turner*, for plaintiff in error.

*Griffitts, Moore & Feighan*, and *Frank H. Graves*, for defendant in error.

The opinion of the court was delivered by

STILES, J. — Plaintiff in error was a subscriber to the capital stock of the Spokane Falls and Cœur d' Alene Transportation Company, who had not fully paid his subscription, the sum of twenty-five dollars still being due from him; though, for aught that appears, the balance had not been called in by the corporation. Being such a stockholder, he sued out and obtained a judgment against the corporation, C. C. McCoy, M. R. Brown and Geo. McCabe for something over six hundred dollars, which judgment is unpaid. The defendant in error was another subscriber to the stock of the same company, whose unpaid subscription amounted to two hundred and seventy-five dollars, and plaintiff brought suit against him in a justice's court for that amount, less the sum of twenty-five dollars due from himself to the corporation. There was a judgment for plaintiff in the justice's court as prayed for, from which an appeal was taken to the district court, which district court sustained defendant's demurrer to the complaint as amended therein, and entered judgment for defendant's costs. Error is assigned thereon.

The main question involved in this case is: Does § 2434 of the Code of Washington authorize an action at law by a creditor of a corporation against a stock subscriber? This inquiry, if determined in the negative, would oust the justice's court of jurisdiction. The second clause of § 2434 is as follows: "Each and every stockholder shall be personally liable to the creditors of the company to the amount of what remains unpaid upon his subscription to the capital stock, and not otherwise," which is simply a declaration of the American doctrine of the common law of corporations as held, almost without exception, in the decisions of the courts. Thomp. Liab. Stockh., §§ 25–37; Cook, Stocks, § 199, and note 1; *Sawyer v. Hoag*, 17 Wall. 610.

In the discussion of this case, both sides seem to have entirely lost sight of this fact, and have cited us to numerous authorities, which are, in nearly every instance, discussions of what is known as the "*statutory liability*" of stockholders, which is a liability created by statute in addition to unpaid subscriptions, and which, being construed to be a contract liability between the stockholders and the creditor, without any privity with the corporation, is subject to many rules different from those applicable in cases like this, the one great distinction between these two classes of liability being, that stock subscriptions are held to be a trust fund for the payment of creditors, while the additional statutory liability produces a fund without any trust features, as has been held in some states.

To enforce a right to participate in a trust fund requires proceedings in equity, unless there be peculiar and explicit statutory provisions to the contrary. So in this class of cases the action must be in equity where the creditor desires himself to be the actor in the proceedings to collect and apply subscriptions. Therefore, in the case at bar, the justice had no jurisdiction of the subject-matter of the action, and the judgment must be affirmed.

There were several other interesting questions suggested by the record in this case, but we shall allude to only one of them, which, it seems to us, would have defeated plaintiff's action upon either theory as to a stockholder's liability. Plaintiff's judgment was against the corporation, McCoy, Brown and McCabe. The complaint showed that the corporation had no assets but its unpaid stock subscriptions, which we presume was intended to be equivalent to an allegation of insolvency to excuse the issuance of an execution against it, and a return of *nulla bona;* but it contained no showing whatever that the plaintiff could not have made his judgment out of the property of the other judgment debtors, McCoy, Brown or McCabe. Where so simple a process as an execution might have satisfied plaintiff's de-

mand, the defendant should not have been attacked until it had been resorted to and failed, and the failure should have been shown.

The judgment of the court below is affirmed, with costs to the defendant in error.

HOYT, J., concurs.

SCOTT, J., concurs in the result.

DUNBAR, J., not sitting.

ANDERS, C. J. — I concur in the result; but I cannot agree with the majority of the court in holding that a stockholder, who is himself a creditor of the corporation, cannot maintain an action at law directly against another stockholder who has not paid up his subscription. See *Smith v. Londoner*, 5 Col. 365.

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[No. 4. Decided May 28, 1890.]

## B. F. BURCH v. F. R. MOORE.

*Error to District Court, Spokane County.*

*Turner, Forster & Turner*, for plaintiff in error.

*Griffitts, Moore & Feighan*, and *Frank H. Graves*, for defendant in error.

The opinion of the court was delivered by

STILES, J. — This cause presents precisely the same state of facts as that of *Burch v. Taylor, ante*, p. 245, and for the reasons given in that case the judgment below is affirmed.

HOYT, J., concurs.

ANDERS, C. J., and SCOTT, J., concur in the result.

DUNBAR, J., not sitting.

[No. 5. Decided May 28, 1890.]

## B. F. BURCH v. JAMES N. GLOVER.

*Error to District Court, Spokane County.*

*Turner, Forster & Turner*, for plaintiff in error.

*Griffitts, Moore & Feighan*, and *Frank H. Graves*, for defendant in error.

The opinion of the court was delivered by

STILES, J. — This cause presents precisely the same state of facts as that of *Burch v. Taylor*, *ante*, p. 245, and for the reasons given in that case the judgment of the court below is affirmed.

HOYT, J., concurs.

ANDERS, C. J., and SCOTT, J., concur in the result.

DUNBAR, J., not sitting.

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[No. 20. Decided May 28, 1890.]

## CHARLES LANGERT v. FRANK C. ROSS and JAMES M. ASHTON.

VENDOR AND VENDEE — CONSTRUCTION OF CONTRACT — PAROL EVIDENCE.

A vendor gave his vendee the following memorandum in writing: "*Tacoma, W. T., March* 16, 1888. Received of L. $5 as part payment for lots No. 1 and 2, in block No. 1806; conditions as follows: $2,495 to be paid on or about the 20th day of March, 1888, and balance of $1,500 to run on time to suit L.'s convenience," and agreeing to furnish a warranty deed upon the payment of the $2,495. *Held*, That such a memorandum is a full contract for the sale of said lots, and, as time is not of the essence of the contract, the vendee could tender performance and demand his deed at any time before put in default by offer of tender on the part of defendant.

For the purpose of explaining the terms of the contract and the situation of the parties, oral evidence is admissible to show that the lots described are in the city of Tacoma, and that the $1,500 was to be kept back for the purpose of paying off a mortgage on the lots when it became due.

*Appeal from District Court, Pierce County.*

Suit by Charles Langert against Frank C. Ross and James M. Ashton for the specific performance of an agreement to convey real estate, or, in case specific performance cannot be decreed, for damages. On the 16th day of March, 1888, the defendant, Frank C. Ross, offered to sell lots one and two, in block eighteen hundred and six, in the city of Tacoma, to plaintiff for the sum of $4,000, $2,500 of which was to be paid on or about the 20th day of March, 1888, and the balance of $1,500 was to be paid by the plaintiff in the future, there being a mortgage then on the property of $1,500, which plaintiff was to assume as part of the consideration. The plaintiff accepted this offer, and thereupon defendant Ross delivered to him the memorandum set out in the opinion. On the 21st day of March, 1888, the defendant James M. Ashton applied to defendant Ross to purchase this same property, and Ross informed him that the plaintiff had an option on the property, which had expired, but out of good faith to the plaintiff he would not sell the property at that time, but give plaintiff until about noon of the next day, the 22d of March, to fulfill the agreement. On the 22d day of March, 1888, between the hours of ten and twelve in the forenoon, plaintiff found defendant Ross and demanded a deed of the premises, stating his readiness to pay the consideration. Ross informed plaintiff that he was too late; that the property was already sold. Afterwards, between the hours of twelve and one of the same day, the defendant Ross executed a deed of said premises to the defendant Ashton. The action was tried upon testimony taken before a referee, and decree entered in favor of defendants, from which decree plaintiff appeals.

*Judson, Sharpstein & Sullivan*, for appellant.

*F. Campbell*, for appellee Frank C. Ross; and *Mitchell, Ashton & Chapman*, for appellee James M. Ashton.

The opinion of the court was delivered by

HOYT, J. — The rights of the parties to this action must be determined by the construction to be given to the memorandum in writing made by the defendant to the plaintiff in words and figures as follows:

"*Tacoma, W. T., March* 16, 1888. Received of Chas. Langert $5 as part payment for lots No. 1 and 2, in block 1806, conditions as follows: $2,495 to be paid on or about the 20th day of March, 1888, and balance of $1,500 to run on time to suit said C. Langert's convenience. I also agree to furnish said C. Langert a warranty deed upon the payment of the $2,495, and a clear title. Frank C. Ross. Witness: J. W. Summers."

Was it simply an option giving the right to the plaintiff to purchase the property in question, which terminated by the terms of the memorandum itself on the 20th day of March, named therein, or was it a contract for the sale of said property, with dependent conditions making it the duty of either party to tender performance on his part before he could declare the contract forfeited by the other party? The court below evidently found the legal effect of said memorandum was as first stated, as with this construction the evidence might warrant the conclusions of fact and law as found by said court; while the giving to the said contract the other construction would have made the findings of fact by the lower court impossible, upon any fair and reasonable construction of the evidence introduced upon the trial of the cause.

The material question then is as to the construction of said contract. Plaintiff contends that it is a full contract for the sale of the real estate in question, with all the elements of such contracts, and that as it does not appear

therefrom that time was of the essence thereof, it entitled the plaintiff to tender performance on his part and demand his deed at any time before he was put in default by a proper tender of performance by defendant. If the first part of plaintiff's contention is true, we think the latter is also, as we deem the doctrine of equity, that time will not be held to be of the essence of contracts of this nature, unless the intent of the parties thereto that it should be clearly appears therefrom, is too well established by authority to be open to question, or to make it proper to cite authorities in support thereof. Defendant, however, argues that the first part of said contention is not true, for the reason that said memorandum is too indefinite and uncertain to be capable of enforcement in a court of equity.

We agree with the contention of the defendant that the memorandum in question cannot be construed as contended for by plaintiff unless all the terms of the sale reasonably appear therefrom, or may, under the rules applicable to the introduction of oral evidence in aid of such contracts, be made to appear. Investigating the contract in question by the rule thus invoked by the defendant, we see but two provisions thereof that are at all open to criticism. The first is as to the description of the property. But as the property is described with definiteness, so far as the particular lots and blocks are concerned, and is only faulty in not showing that the block named is in Tacoma, we think the omission is one that could be supplied by oral proof. The other is as to the time of payment of the fifteen hundred dollars that was not to be paid on the delivery of the deed; and as to this, we think oral proof to explain the situation of the contracting parties was admissible, not for the purpose of changing the contract, but to show that there was a mortgage of $1,500 on the property in question, and that the keeping back of the $1,500 was for the purpose of paying off the said mortgage when it became due; and this having been made to appear, the time of pay-

ment of said $1,500 becomes certain, as that is certain which may be made certain, as this could have been by referring to said mortgage, or the record thereof. The contract relied upon by plaintiff entitled him to relief as against the maker of said contract; but the proof showed that it was not in the power of said maker to specifically perform, and, therefore, it was the duty of the court to have given the plaintiff damages for the violation of the contract.

The proof of damages was not satisfactory, and it is doubtful whether thereon a judgment of more than nominal damages should have been rendered. And in view of the unsatisfactory state of the proof upon this question, we think equity demands that there should be a rehearing in the court below. The cause will, therefore, be remanded, with instructions to set aside the judgment in favor of defendant, and proceed to a rehearing of the cause against defendant Ross in accordance with this opinion.

ANDERS, C. J., and SCOTT, and STILES, JJ., concur.

DUNBAR, J., not sitting.

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[No. 45. Decided May 28, 1890.]

## CHARLES Q. MARTIN v. WHITMAN COUNTY.

CONTRACT — CONSTRUCTION — COLLECTION OF DELINQUENT TAXES.

Where plaintiff contracted with a county to "make a tax list of all taxes delinquent" in the county, for which he was to receive "five per cent. on the total amount of said tax list, to be paid out of the tax due the county on said tax list as it is collected," plaintiff is entitled to receive five per cent of the total amount of the delinquent list out of the taxes first collected, and not merely five per cent. of the amount collected.

*Appeal from District Court, Whitman County.*

The facts are fully stated in the opinion.

*P. C. Sullivan, Frank H. Brown* and *D. J. Crowley*, for appellant.

*W. C. Jones*, Attorney General, for appellee.

The opinion of the court was delivered by

STILES, J.—Appellant brought suit against Whitman county upon a contract made with him by the board of county commissioners by an order spread upon its minutes in the following words: "It is hereby ordered that C. Q. Martin make a tax list of all taxes delinquent in Whitman county, and that he receive therefor five per cent. on the total amount of said tax list. That said five per cent. is to be paid out of the tax due Whitman county on said tax list as it is collected." The supreme court of the territory in *Martin v. Whitman County*, 20 Pac. Rep. 599, held the making of this contract to have been within the power of the board of commissioners. This, therefore, is the law of the case. See *O. R. & N. Co. v. Dacres*, *ante*, p. 195. The cause was tried upon its merits, in accordance with that opinion, upon a complaint alleging the list to have been made by plaintiff, showing $68,576.25 delinquent taxes due the county, and the sum of $2,000 thereof actually collected. The truth of these allegations, and others showing the refusal of the board to allow more than five per cent. of the money collected, was admitted. The answer of the defendant alleged that the list prepared by the plaintiff was so carelessly and negligently prepared that it was useless for the purpose for which it was designed, viz.: the collection of the taxes delinquent; but no proof seems to have been offered to sustain these averments, and the case was submitted to the jury, after a refusal of the court to direct a verdict for the plaintiff for $2,000, and upon the court's direction to find for plaintiff for $100 and costs.

The request to charge necessarily involved a construction of the terms of the contract by the court on the question

whether the services of the plaintiff were to be compensated by the payment of an amount equal to five per cent. of the total amount of delinquent taxes discovered and listed by him, out of the first money derived from that source, or five per cent. of the money collected without regard to the gross delinquency. The court, as has been observed, instructed that only five per cent. of the amount collected had been stipulated for, and plaintiff appealed. We are well satisfied that the construction given to the contract was wrong. Indeed, as we view it, it was not subject to construction at all, but was plainly such an agreement as the plaintiff contends it to be. Upon a retrial of the case, therefore, unless the defendant can show the truth of the matters alleged in its answer, judgment must be entered for plaintiff for the amount collected up to five per cent. of $68,576.25. Upon so plain a case it would be within the power, and it would ordinarily be the inclination of this court, without ordering a new trial, to amend the judgment of the court below; but in the case at bar the contract made, in view of the short time occupied by the plaintiff in the performance of the work (barely three months), seems to have been so recklessly improvident and unbusinesslike a transaction on the part of the commissioners, that we think that justice requires that the county have an opportunity to avail itself of the alleged worthlessness of plaintiff's work, as shown in its answer.

The judgment is reversed, and a new trial ordered in accordance herewith.

ANDERS, C. J., and SCOTT, J., concur.

DUNBAR, J., not sitting.

HOYT, J. (*dissenting*). — I am unable to agree with the majority of the court in their conclusions as to this case. The order relied upon as a contract was made by a body representing the county, which is a necessary part of the government of the state, and, therefore, in the strictest sense,

a public body. The rule is well settled that any and all acts of such a public body, when alleged as the foundation of a claim by a private person against such body, must be construed in favor of the public and against such private person. It follows that if the order in question is capable of two constructions, that one must be given it that will best protect the rights of the public. I think the order in question might well be construed as it has been by the majority of the court; but I also think it capable of the construction contended for by the defendant; that the compensation of five per cent. attached to the entire amount of the tax list, but became due and payable only upon such portion of said amount as was, from time to time, collected; and this construction, being in the interest of the public and being also reasonable and just as between the parties, while the other construction makes it unreasonable and oppressive to the public, and I think it ought to be adopted by the court.

In my opinion the judgment appealed from should be affirmed.

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[No. 54. Decided May 28, 1890.]

## EDWARD E. HICKMAN v. ELLEN A. HICKMAN.

DIVORCE — CHRONIC DEMENTIA — CONSTITUTIONAL LAW.

Under the organic act providing that the legislative power of every territory shall extend to all rightful subjects of legislation, an act of the legislature of Washington Territory, making incurable chronic mania or dementia existing for ten years or more a ground of divorce, is valid and within the power of the territorial legislature.

*Appeal from Superior Court, Jefferson County.*

Action brought in the superior court of Jefferson county for divorce upon the ground of incurable chronic mania or dementia of the defendant, existing for more than ten years

prior to the commencement of the action. There was a general demurrer to the complaint interposed by defendant. An order was entered sustaining the demurrer, from which order plaintiff appealed.

*Hays & Plumley*, for appellant.

The opinion of the court was delivered by

SCOTT, J. — Appellant brought this suit in the superior court of Jefferson county to obtain a divorce, upon the ground of incurable chronic mania or dementia of the defendant, existing for more than ten years prior to the commencement of the action. The defendant, by her guardian *ad litem*, interposed a general demurrer to the complaint.

The sole question presented to us in the case is, as to the validity of the act of the territorial legislature approved December 22d, 1885, making such incurable chronic mania or dementia one of the grounds upon which divorces might be granted, where the affliction had existed for ten years or more. The judge of the superior court before whom the cause was tried held that the act was contrary to public policy, and was, therefore, unconstitutional. No other objection was urged here, nor is there any apparent defect in the act; however it may be regarded as a measure of public policy, the power of our territorial egislature, under the organic act, extended to all rightful subjects of legislation. The reasons for which divorces might be granted have always been recognized as one of them, under our system of government. In fact, our territorial supreme court held that the legislature could itself grant a divorce by a special act; *Maynard v. Valentine*, 2 Wash. T. 3; and this was subsequently affirmed by the supreme court of the United States. *Maynard v. Hill*, 125 U. S. 190. It follows that the legislature could authorize the granting of divorces by the courts, for any causes that the legislature

deemed sufficient, and whether the same should be due to misfortune or misbehavior, could not affect the validity of such laws.

The judgment of the lower court is reversed.

ANDERS, C. J., and HOYT, DUNBAR and STILES, JJ., concur.

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[No. 546. Decided May 28, 1890.

C. P. CHAMBERLIN v. OCIE WINN.

*Appeal from District Court, Whitman County.*

*P. C. Sullivan*, for appellant.

*Thomas H. Brents*, for appellee.

The opinion of the court was delivered by

SCOTT, J. — Upon the re-argument of this cause, which was allowed by the territorial supreme court, a constitutional majority of this court have not become satisfied that the judgment heretofore last rendered, reversing the lower court, is wrong.

It is, therefore, allowed to stand, and a remittitur is directed.

STILES and HOYT, JJ., concur.

ANDERS, C. J., and DUNBAR, J., not sitting.

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[No. 30. Decided May 31, 1890.]

CHARLES G. JOHNSTONE, WILLIAM OLSEN and HERMAN METZGER v. CHARLES EISENBEIS.

APPEAL — FINAL ORDER — INJUNCTION.

In an action for injunction, where defendant moves to dissolve the temporary injunction granted plaintiff, and also for an injunc-

tion against plaintiff, an order denying both branches of the motion without adjudicating upon plaintiff's prayer for a a permanent injunction, is not a final judgment, from which appeal will lie to the supreme court.

*Appeal from District Court, Jefferson County.*

*Wm. T. Muir*, for appellants.

*Calhoun & Coleman*, for appellee.

The opinion of the court was delivered by

HOYT, J.—The plaintiff herein filed his complaint in the lower court asking that defendants be perpetually enjoined from doing certain acts therein complained of, and obtained from the court a temporary restraining order pending the hearing of the cause. Defendants filed their answer, in which they set forth certain affirmative allegations, and, based thereon, asked an injunction against the plaintiff. Upon the record thus made up, and upon other papers and affidavits filed in the cause, defendants served notice upon the other party that they would move the court to dissolve the restraining order that had been granted to plaintiff, and to grant unto said defendants an injunction restraining the plaintiff from doing certain acts set out therein. Upon the hearing of the motions the court made an order simply denying both branches of said motion, and making no other adjudication as to the rights of the parties. Was this order such that an appeal therefrom would lie to this court? If it was not a *final* judgment or order, then (under numerous decisions of this court) an appeal therefrom would not lie. And we think it was not. There was no final disposition of the cause. The plaintiff is still in court asking for the permanent injunction, and his right thereto has never been adjudicated; there was no judgment that finally foreclosed the rights of either party, nor was there any order as to costs. The order, we think, was interlocutory and not final.

The appeal must be dismissed, and it is so ordered.

ANDERS, C. J., and STILES, DUNBAR and SCOTT, JJ., concur.

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[No. 38. Decided May 31, 1890.]

## HANS NELSON, A. CHILDBERG AND J. JOHNSON v. THOMAS H. CAMPBELL.

JUSTICE OF THE PEACE — JURISDICTION — APPEARANCE — CONTINUANCE.

Under § 1769 Code Wash. T., a justice of the peace loses jurisdiction of the case when he grants a continuance thereof for more than sixty days.

A complaint coming into the possession of a justice of the peace by reason of his succession to the office cannot be presumed to have been filed by him on any other date than the day of his succession to office, though marked filed by him as of a later date; and defendant must be cited to appear within twenty days from the date of filing.

Where a defendant cited to appear in an action before a justice of the peace comes in and asks for a continuance for one day, and on the next day appears specially to object to the jurisdiction for certain irregularities, it is not such an appearance as would confer jurisdiction on the justice. (SCOTT, J., and ANDERS, C. J., dissent.)

*Error to District Court, King County.*

Thomas H. Campbell commenced an action against Hans Nelson, one of the appellants, in the justice's court of H. F. Jones, justice of the peace in the Seattle precinct, King county, for $100 commission on sale of real estate. A change of venue was had to the justice's court of N. Soderberg, justice of the peace in the same precinct. December 28, 1888, the case was tried before Justice Soderberg and a jury. The jury failed to agree, and were discharged. The court adjourned, continuing the case to March 6, 1889. March 4, 1889, Justice Soderberg's term of office expired. On that day, Claudius M. Rivers, a newly elected justice

of the peace in that precinct, qualified and took charge of the records of Justice Soderberg's court. No action was taken in the case on March 6. April 8, 1889, Justice Rivers issued a notice attached to the original complaint, requiring defendant to appear and answer on April 18, 1889. On that day defendant's attorney appeared and asked for a continuance of one day, which was granted. On the next day defendant appeared specially and objected to the jurisdiction of the court, which objection was overruled, and judgment rendered for $100 and costs, including the costs before Justices Jones and Soderberg. Nelson sued out a writ of *certiorari* from the district court, with A. Chilberg and J. Johnson as sureties on his *certiorari* bond. The district court affirmed the judgment of Justice Rivers, and rendered judgment against Nelson and his sureties, which it refused to set aside on rehearing; and they appeal.

*John Arthur*, and *N. Soderberg*, for plaintiffs in error.

*A. E. Isham*, for defendant in error.

The opinion of the court was delivered by

DUNBAR, J. — If the appellee, in support of his judgment, relies upon the commencement of the action before Justice Jones, and which was tried before Justice Soderberg on the 28th day of December, 1888, (and the case has evidently been tried upon that theory, from the fact that the costs in Justice Jones' and Soderberg's courts are incorporated in the judgment rendered by Justice Rivers), his case must fail; for the period from December 28, 1888, to March 6, 1889, the date to which the case was continued, is more than sixty days; and under § 1769 of the code, a justice of the peace has no authority to continue a case for more than sixty days; and upon such a continuance the court lost jurisdiction of the case; for the rule of liberal construction applied to proceedings in a justice's court does not extend to jurisdictional questions.

If, on the other hand, it is contended that it is a new case, commenced at the time of the filing of the complaint by Justice Rivers, we are confronted by § 1712 of the code, which provides that, in the commencement of civil actions before a justice of the peace, either by service of a summons or by service of a copy of the complaint and notice, the defendant must be cited to appear at a time which shall not be more than twenty days from the date of filing the complaint. If Justice Rivers had any authority at all to file the old complaint, it was by reason of his succession to the office of Justice Soderberg on the 4th day of March, 1889, at which date the complaint would come into his possession, and would be presumed to be filed, if at all. The mere fact that he did not place the file mark on it until March 25th, cuts no figure whatever. More than twenty days, then, having elapsed between the filing of the complaint, March 4, 1889, and April 18, 1889, the notice was in conflict with the requirements of the statutes.

On either supposition, the court was without jurisdiction and the judgment was void. We do not think that the appearance made by the defendant (appellant) was such an appearance as would give the court jurisdiction of the case.

The judgment of the court below is reversed.

HOYT and STILES, JJ., concur.

SCOTT, J. (*dissenting*). — I do not agree with the opinion rendered in this case. Section 1769 of the code only applies to a continuance upon the application of one of the parties. A cause may be continued by a justice of the peace for a longer period than sixty days with the consent of both parties. The record is silent as to why the continuance was granted, or at whose request, but as both parties were present in court, it must be presumed, in the absence of any objection thereto by the party complaining, that the adjournment from December 28, 1888, to March 6, 1889, was with the consent of both parties. After jurisdiction is once

shown to have been obtained, the same presumptions in favor of the regularity of the subsequent proceedings apply to justices' courts as to courts of record. The fact that the justice who continued the cause was succeeded in office by another justice, prior to said March 6th, would not affect the proceeding. Section 1704 makes provision for such cases.

The court lost jurisdiction, however, by a failure to make some sufficient disposition of the cause on March 6th, at the hour to which it had previously been adjourned. Nor could the second notice have operated to revive the suit, had the defendant failed to appear, or had he specially appeared and objected thereto. The record shows, however, that the defendant did appear on April 18th, in response to the notice. The plaintiff also appeared, whereupon, the record states, "defendant's attorney files a motion for continuance; motion granted, and cause continued to April 19, 1889, at 1 o'clock P. M. Subpœna issued for one witness," etc. This appearance of the defendant and asking for an adjournment was a general appearance, and waived all prior irregularities. The errors complained of only went to the jurisdiction of the person of the defendant, and not to the subject-matter of the action. The defendant's appearance revived the suit, and it was treated by the court and parties as a continuation thereof. The objection, that the court had lost jurisdiction, and special appearance to urge the same, April 19th, came too late. It should have been made in the first instance. As to the effect of a general appearance in an action, see *Shaffer v. Trimble*, 2 Greene (Iowa), 464; *Bazzo v. Wallace*, 16 Neb. 290; *Christal v. Kelly*, 88 N. Y. 285; *Toland v. Sprague*, 12 Pet. 300, 329; *Orear v. Clough*, 52 Mo. 55; *Handy v. Insurance Co.*, 37 Ohio St. 366. Section 1712 of the code provides that a suit may be commenced by the voluntary appearance and agreement of the parties, etc.

The judgment of the district court, sustaining the judgment rendered by the justice, should have been affirmed.

ANDERS, C. J., concurs in dissenting opinion.

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[No. 46. Decided May 31, 1890.]

## BENJAMIN BLANTON v. THE STATE OF WASHINGTON.

MURDER — INDICTMENT — EVIDENCE — RES GESTÆ — GRAND JURY — VENIRE.

Under Code Wash. T., making murder a purely statutory crime, an indictment for murder which alleges that the defendant did, purposely and of his deliberate and premeditated malice, assault the deceased, and that the defendant, of his premeditated malice, fired the shot which killed the deceased, but does not allege that the defendant, purposely and of his deliberate and premeditated malice, killed the deceased, is fatally defective as charging murder in either the first or second degree; nor is the indictment aided by the concluding part, that the said defendant "so in the manner and by means aforesaid, feloniously, purposely and of his deliberate and premeditated malice, did kill and murder" the deceased. An objection as to the sufficiency of such an indictment may be made for the first time in the supreme court. (HOYT, J., dissents.)

Such an indictment, though insufficient to sustain a conviction of murder in the first or second degree, does sufficiently charge the crime of manslaughter, and is, therefore, valid to that extent.

Where the crime, for which the defendant was in custody, was committed shortly after the discharge of the regularly empanneled grand jury of the county, it is competent for the court, then in session, to re-summon the grand jury to inquire into the matter; and the defendant being present when the grand jury was empanneled, and given an opportunity to challenge either the entire panel, or the individual jurors, and declines so to do, he cannot afterwards question the legality of the empanneling of the grand jury by a motion to quash the indictment.

In a prosecution for murder it is not error for the court to allow a witness to testify that, at the time of the commission of the homicide, the deceased and two other persons were walking together on the sidewalk, and that, as they were passing the defendant, he sud-

denly drew a revolver from his pocket and shot the deceased, and almost immediately turned and fired at the two persons with him, such evidence being admissible as part of the *res gestæ*.

It is a mere irregularity, not at all prejudicial to the rights of the defendant, for the court to order a venire for additional jurors before the regular panel was exhausted, especially where the record shows that none of the additional jurors or talesmen were drawn as trial jurors until the original panel was entirely exhausted.

*Appeal from Superior Court, Whitman County.*

Indictment for murder against Benjamin Blanton. The facts sufficiently appear in the opinion.

*Moses Bull*, and *C. M. Kincaid*, for appellant.

*L. H. Plattor*, Prosecuting Attorney, and *W. C. Jones*, Attorney General, for The State.

The opinion of the court was delivered by

ANDERS, C. J.—On the 16th day of December, 1889, the appellant, Benjamin Blanton, killed one Thomas C. Click, in Whitman county, in this state, by shooting him with a pistol. Upon the plea of not guilty, and the defense of insanity, or *delirium tremens*, resulting from long continued use of intoxicating liquors, he was tried, convicted of murder in the first degree, and sentenced to be hanged. The defendant brings the cause to this court for review, and claims a reversal of the judgment of the court below for errors alleged to have been committed on the trial.

Although the indictment was not attacked in the trial court, either by motion to quash or by demurrer, or even by motion in arrest of judgment, it was insisted on the argument in this court, by appellant's counsel, that it does not state facts sufficient to constitute murder either in the first or second degree, under our statute, and is insufficient to sustain the judgment of the superior court. And while it is to be regretted that the question was not raised at an earlier stage of the proceedings, and presented in the brief of counsel, still we are of the opinion that it is a matter

which the defendant should not be deemed to have waived by his failure to urge it in the court below. The indictment, omitting the venue, is as follows:

"Benjamin Blanton is accused by the grand jury of the State of Washington, for the county of Whitman, by this indictment, of the crime of murder in the first degree, committed as follows: That he, the said Benjamin Blanton, on the 16th day of December, 1889, at the county of Whitman, in the State of Washington, in and upon the body of one Thomas C. Click, then and there being, feloniously, purposely, and of his deliberate and premeditated malice, did make an assault, and that he, the said Benjamin Blanton, with a certain revolving pistol, then and there charged with gunpowder and leaden bullets, which said revolving pistol he, the said Benjamin Blanton, then and there had and held, and then and there feloniously, purposely, and of his deliberate and premeditated malice, did discharge and shoot off, to, at, against and upon, the said Thomas C. Click, and that the said Benjamin Blanton, with one of the leaden bullets aforesaid, out of the revolving pistol aforesaid, then and there by force of the gunpowder aforesaid, by the said Benjamin Blanton discharged and shot off as aforesaid, then and there feloniously, purposely, and of his deliberate and premeditated malice, did strike, penetrate and wound him, the said Thomas C. Click, in and upon the body of him, the said Thomas C. Click, giving to him, the said Thomas C. Click, one mortal wound, of which said mortal wound he, the said Thomas C. Click, then and there instantly did die; and so the grand jury aforesaid do say that the said Benjamin Blanton, him, the said Thomas C. Click, in the manner and by the means aforesaid, feloniously, purposely and of his deliberate and premeditated malice, did kill and murder, contrary to the form of the statutes in such cases made and provided, and against the peace and dignity of the State of Washington. Dated at Colfax, in said county of Whitman, the 19th day of December, A. D. 1889."

At common law murder was defined as the unlawful killing of a human being under the king's peace, with malice prepense or aforethought, either express or implied by law. Russ. Crimes, 482; 4 Black. Com. 198. And there was no classification of crime into degrees, but all malicious

homicides were of the same grade and subject to the same penalty. It being manifestly unjust to punish him who kills another with only that degree of malice which is implied by law, with the same severity as him who deliberately and premeditatedly takes the life of a fellow-being, the legislature of several of our states have changed the common law relating to murder, not only by dividing it into distinct degrees, but by specifically defining its grades and prescribing corresponding penalties. Our statute defines murder in the first degree as follows: "Every person who shall purposely, and of deliberate and premeditated malice, or in the perpetration or attempt to perpetrate any rape, arson, robbery or burglary, or by administering poison, or causing the same to be done, kill another, every such person shall be deemed guilty of murder in the first degree, and upon conviction thereof shall suffer death. Code Wash. T., § 786. And "every person who shall purposely and maliciously, but without deliberation and premeditation, kill another, every such person shall be deemed guilty of murder in the second degree." Code, § 790. Murder, therefore, with us, is now a purely statutory, and not a common-law, crime, and must be so considered by the courts. And in order to constitute murder in either degree, it is necessary that there must have been a specific intent or purpose to kill. Under our statute this is evident. But the difficulty, in given cases, is to determine whether or not this intent has been sufficiently expressed in the indictment.

And the question now before us is, has this been done in the indictment now under consideration? It is insisted that the indictment nowhere charges that the defendant purposely and of his deliberate and premeditated malice killed the deceased, and that without such a direct and positive allegation, it is fatally defective. The objection is well taken, and must be sustained. The indictment does allege that the defendant did, purposely and of his deliberate and pre-

meditated malice, assault the deceased, and that he, purposely and of his deliberate and premeditated malice, fired the fatal shot; but it does not allege that it was thus fired with the intent to kill, or that the killing was thus done. All of the averments of this indictment may be true and yet the defendant may not be guilty of murder.

But it has been suggested that the concluding part of the indictment, beginning with the words "and so," does contain all the averments necessary to make it conform to the requirements of the statute. But is this a concise statement of a fact descriptive of the crime, or is it a mere conclusion of law drawn from antecedent averments of facts? The adverb "so" is defined by Webster as meaning "in the same manner; as has been stated; in this or that condition or state; under these circumstances; in this way; with reflex reference to something just asserted." This is the ordinary way the word is understood, and it must be taken to mean the same thing when used in an indictment.

Under our statute an indictment must be direct and certain as to the party charged, the crime charged, and the circumstances of the crime, when necessary to constitute a complete crime, and the act or omission charged as the crime must be clearly and distinctly stated in plain and concise language, so that a person of ordinary understanding may know what is intended; and conclusions of law need not be stated. At common law the indictment would be good, as it was not necessary to allege a purpose or design to kill in an indictment for murder; and the concluding part was deemed only a conclusion of law without which an indictment, as such, would be sufficient. *Rex v. Nicholas*, 32 Eng. C. L. 620; *Fouts v. State*, 8 Ohio St. 98, and authorities cited.

If this were a new question, and presented for the first time; if pleaders and courts were not familiar with the form in which this indictment is drawn, and accustomed to look upon it as the established and long-sanctioned prece-

dent of an indictment, would we hesitate to say that it does not consist with the essential requirements of our statutes? We think not. And as we have no common-law crime of murder in this state, we are constrained to look solely to our statute for the definition of the crime. And it will not do for the grand jury to charge an assault or a shooting in the language of the statute, and then conclude that "so" the deceased was killed. The following cases are in point. See *Fouts v. State*, 8 Ohio St. 98; *Kain v. State*, 8 Ohio St. 306; *State v. McCormick*, 27 Iowa, 402; *Schaffer v. State*, 22 Neb. 557; 3 Am. St. Rep. 274; *Leonard v. Territory*, 2 Wash. T. 381.

In the case of *Leonard v. Territory*, *supra*, the indictment was identical in its language with the one now before us. And our late territorial supreme court held it insufficient to charge murder in the first degree, for the reason that it failed to allege that the killing therein described was done purposely and of deliberate and premeditated malice. And the majority of the court are satisfied both with the reasoning and the conclusion reached in the opinion of the learned judge in that case. But while we are constrained to hold that the indictment in this case is insufficient to sustain a conviction of murder in either the first or second degree, we are clearly of the opinion that it sufficiently charges manslaughter, and is therefore valid to that extent.

Turning from the indictment, we will now direct our attention to the errors alleged to have been committed on the trial of the cause in the court below.

The first assignment is, that the court erred in overruling defendant's motion to set aside the indictment, for the alleged reason that the grand jury which found the indictment was ordered, summoned, empanneled and sworn without authority of law. A grand jury had been summoned for the regular term of the district court of the territory, and has been discharged by the court on the 6th day of

the session. Afterwards the defendant, while the court was in session and without a grand jury, committed the crime with which he is charged. The court ordered the grand jury to be re-summoned to inquire into the matter. The defendant was then in the custody of an officer, upon complaint duly made, was present when the grand jury was empanneled, and though given an opportunity to challenge either the entire panel or the individual jurors, declined so to do, but afterwards interposed a motion to set aside the indictment for the reasons above stated. The court very properly overruled the motion. After waiving his right to object to the jury the defendant had no right to raise the objection by motion to quash the indictment. Besides, the statute provides that no motion to set aside the indictment on the ground specified shall be allowed to a defendant held to answer before indictment. Code Wash. T., § 1047. The defendant was in substantially the position contemplated by that section of the code, and he cannot be heard to urge any objections to the grand jury.

It is next urged that the court erred in ordering a venire for thirty-six additional trial jurors before the regular panel of twenty-three jurors was exhausted. But the record shows that none of the additional jurors or talesmen were drawn as trial jurors until the original panel was entirely exhausted. This at most was but an irregularity, and we fail to see any error therein that could have been prejudicial to the defendant.

On the third day of the trial defendant moved for a continuance on the ground of newly discovered evidence. The motion was overruled and exception taken and error assigned. The affidavit was insufficient, and we cannot say the court abused its discretion in denying the motion.

Objection is also made to the refusal of the court to exclude from the jury the evidence of one Mattock as to the shooting of Bennett and Doble, on the ground of irrelevancy. The facts disclosed by the record are these: At the time of

the commission of the homicide, Click the deceased, and Bennett and Doble, were walking together on the sidewalk, in Colfax. As they were passing by the defendant, he suddenly drew a revolver from his pocket and shot Click, and almost immediately turned and fired at the other two persons, Bennett and Doble. Mattock testified to these facts, and his evidence was objected to as irrelevant, and as tending to show the commission, by defendant, of other distinct crimes. The testimony was properly admitted. It was a part of what the defendant did at the time — a part of his acts. All the *res gestae* may be shown, though the transaction is a continuing one. 1 Bish. Crim. Proc. (3d ed.), § 1125.

During the trial one John Tobin was called as a witness for defendant. After stating to the court and jury how the defendant acted and talked, especially on the day of the homicide, he was asked by defendant's counsel to "state whether or not he talked like a sane or an insane man during the night." The question was objected to by the prosecution, and the objection sustained, and the ruling of the court duly excepted to and assigned for error. The question might have been permitted without prejudice to the state; and, on the other hand, we fail to perceive wherein the defendant could have been, in any degree, injured or prejudiced by its exclusion. It is true that expert witnesses may give their opinions as to the insanity of an individual, after having first testified as to his actions, declarations, general demeanor and peculiarities; but we fail to see that this rule was violated in this particular instance.

It is further claimed that the court unduly abridged the right of the defendant to testify in his own behalf, but we think the objection is not well taken.

The defendant also assigns several errors which he alleges were committed by the court in charging the jury, as well as in refusing to charge as requested by his counsel. We have carefully examined the instructions and have come to

the conclusion that the law, as applicable to the facts of the case, was fully and fairly given to the jury, and that the defendant could not have been prejudiced by the refusal of the court to instruct as requested.

Holding, as we do, that the indictment sufficiently charges manslaughter, the cause must be remanded to the court below, with instructions to set aside the judgment heretofore entered, and to pass sentence upon the defendant for manslaughter, upon the verdict of guilty, and it is so ordered.

SCOTT and STILES, JJ., concur.

DUNBAR, J., not sitting.

HOYT, J. (*dissenting*). — I concede that the weight of authority is with the majority of the court; but I cannot bring my judgment to a concurrence therewith, and hence I am compelled to dissent.

The reasoning of the cases relied upon to sustain the position of the majority as to the sufficiency of the indictment seems to me to be overtechnical and unsatisfactory to the common understanding. I agree with the majority that the specific intent to kill must appear, but, unlike them, I am of the opinion that it does appear in the indictment in question. I think that the reasoning of the minority of the court in the two Ohio cases, cited by Chief Justice ANDERS, is more satisfactory than that of the majority, and should be inclined to follow the same and hold this indictment good without the aid of our statute as to the sufficiency of indictments. And, when aided by such statute, it seems to me clear that the position taken by the majority of the court is untenable.

It is true that one section of our statute requires that the allegations of the indictment must be direct and certain; but this section must be interpreted in the light of the subsequent sections, which provide in substance that an indictment shall be sufficient if a man of common understanding

can determine therefrom with what he is charged. Interpreting these sections together, and I can give them all force only by holding that the legislature meant to state in said first section what a perfect indictment should contain, and how it should be stated; and that the subsequent sections were enacted for the purpose of preventing a person charged with crime from availing himself of a want of a technical compliance with said first section by the prosecution. In other words, the legislature has said every indictment ought to be direct and positive as to all its allegations, but if it is not, the defendant can take no advantage of such fact, provided certain things can be gathered therefrom by a man of common understanding.

If this construction of these sections of the statute is correct, the material inquiry in this case is this: Can a man of common understanding see from the indictment in question what crime is intended to be charged, together with certain other necessary allegations as to which no question is made? In my opinion there can be but one answer to this question, and that an affirmative one. Let any man of common understanding read the said indictment, and he cannot possibly fail to see that the prosecution intended to charge the defendant with murder in the first degree. And, if this is so, I think that under our statute the indictment is good as against the objections urged against it.

Not only do I think the indictment good, but even if it were bad, I do not think the defendant was in a position to avail himself of its insufficiency as a cause for reversal by this court. For while it is doubtless true that the objection, that the indictment does not state facts constituting the crime of which the defendant was convicted, can be raised for the first time in this court, yet in my opinion, it must be regularly raised by the assignment of errors in the case, or at least by the briefs of one or both of the parties to the appeal. In this case the sufficiency of the indictment is not attacked in the least degree, either in the assignment of errors or in the

briefs, and was first suggested by the oral argument on the part of the plaintiff in error. To hold that such a question can thus be raised and made available by a defendant is to practically nullify the requirement of an assignment of errors, either in the brief or elsewhere, and throw open the doors to such a course of practice as will practically deprive this court of the benefit of an argument by the defendant in error as to the vital question upon which the case may turn in this court, and also in many cases as to the final determination of the cause.

I think that the judgment and sentence of the court below should be affirmed: First, because the indictment is sufficient; and second, because the error upon which the majority of the court founds the reversal was not properly before the court for determination.

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[No. 42. Decided May 31, 1890.]

STATE OF WASHINGTON v. SO HO GE.

*Error to Superior Court, Walla Walla County.*

*Wellington M. Clark, Thomas H. Brents,* and *W. C. Jones,* Attorney General, for The State.

The opinion of the court was delivered by

Scott, J.—Defendant was convicted of murder in the second degree, upon an indictment failing to charge a purpose to kill. A motion by defendant in arrest of judgment was sustained. The state appeals.

In *Leonard v. Territory,* 2 Wash. T. 381, the court decided that it was necessary to allege a *purpose to kill* in order to sustain a conviction for murder under our

statutes. We have followed that case in *Blanton v. State, ante*, p. 265.

The indictment in this case is sufficient to charge manslaughter. These matters having been discussed in the last case cited, it is unnecessary to review here. Allowance of the motion in arrest of judgment was, therefore, error, and the same is reversed. The cause is remanded, with instructions to the court below to sentence the defendant for manslaughter upon the conviction already had.

Stiles, J., concurs.

Hoyt, J., concurs in the result in this case, but not in the reasoning in the two cases, above referred to.

Anders, C. J., and Dunbar, J., not sitting.

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[No. 43. Decided May 31, 1890.]

State of Washington v. So Ho Me.

*Error to Superior Court, Walla Walla County.*

*Wellington M. Clark, Thomas H. Brents*, and *W. C. Jones*, Attorney General, for The State.

The opinion of the court was delivered by

Scott, J. — This case is in the same condition as *State v. So Ho Ge*, just decided.

The order sustaining the motion in arrest of judgment is reversed, and the court below is directed to sentence the defendant for manslaughter.

Stiles, J., concurs.

Hoyt, J., concurs in the result.

Anders, C. J., and Dunbar, J., not sitting.

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[No. 48. Decided May 31, 1890.]

## J. E. TERRY v. THE STATE OF WASHINGTON.

INDICTMENT — EMBEZZLEMENT — CONSTRUCTION OF STATUTE.

An indictment for embezzlement by an agent which does not allege that the defendant was an agent for hire, is fatally defective under the provisions of Code Wash. T., § 835, as the words "for hire," in said section, qualify each of the classes of persons enumerated therein.

*Error to Superior Court, King County.*

Indictment against J. E. Terry for larceny. The facts sufficiently appear in the opinion.

*Ronald, Piles & Relfe*, for plaintiff in error.

The omission to charge in the indictment that the defendant was an agent "for hire" is fatal. The court below held that the words "for hire" did not apply to "any officer, agent, clerk or servant," but only any one included in the word "person," and that the word "person" as used in that statute meant any person other than an officer, agent, clerk or servant, and that the words "for hire" only applied to such persons. The familiar rule of *ejusdem generis* not only settles this, but that the word "person" used in such a connection can only include those of the class described in preceding clause. Endlich, Interp. St., §§ 405–7; *Barbour v. Louisville*, 83 Ky. 95; *State v. Grisham*, 90 Mo. 163.

*W. C. Jones*, Attorney General, and *W. D. Fenton*, for The State.

The opinion of the court was delivered by

DUNBAR, J.—The indictment under which the appellant was convicted of larceny was under § 835 of the code, and, omitting the formal parts, was as follows:

"The said J. E. Terry, on the 25th day of May, A. D.

1889, in the county of King, in the district aforesaid, then and there being the agent of one W. H. Gleason for sale of a certain horse, then and there the personal property of said W. H. Gleason, did then and there sell the said horse to one F. E. Scott for the sum and price of one hundred and ninety dollars, and did then and there by virtue of said employment receive from said F. E. Scott as the purchase price of said horse, and as the personal property of said Gleason, the sum of one hundred and fifty dollars lawful money of the United States, and the promissory note of said Scott for forty dollars; and did then and there willfully, fraudulently and feloniously take and secrete the whole of said money with the intent thereby to embezzle and fraudulently convert the same to his own use. Contrary to the form of the statute," etc.

Several points are raised by the appellant, but the one to which the court will address itself as being decisive of the case is, "that the omission to charge in the indictment that the defendant was an agent for hire" is fatal. The court below held that the words "for hire" did not apply to "any officer, agent, clerk or servant," but only to any one included in the word person, and that the word "person" as used in that statute meant any person other than an officer, agent, clerk, or servant, and that the words "for hire" only applied to such other persons. This construction of § 835, as an independent section, is not in harmony with the rule of *ejusdem generis*, that, in the construction of statutes, contracts and other instruments, where an enumeration of specific things is followed by a general word or phrase, the latter is held to refer to things of the same kind as those specified. But outside of this rule of construction, the enactment of § 836, which must be construed in connection with § 835, by its terms included in the proviso, expressly covers cases of embezzlement by the same classes of persons mentioned in § 835, "without hire," showing conclusively that in the legislative mind the words "for hire" were intended to apply to all persons mentioned

in § 835. On any other theory the proviso would be meaningless.

We are, therefore, of the opinion that the omission to charge in the indictment, that the defendant was an agent for hire, is fatal. The legislature not having provided any punishment for crimes specified in the proviso in § 836, that portion of the law is inoperative.

The cause will be remanded to the court below with instructions to discharge the defendant, appellant.

ANDERS, C. J., and HOYT, SCOTT and STILES, JJ., concur.

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[No. 7. Decided June 2, 1890.]

## WILLIAM M. WHITE v. THE TERRITORY OF WASHINGTON.

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FORGERY — INDICTMENT — JUROR — EVIDENCE — INSTRUCTIONS.

An indictment for forgery which correctly sets forth a copy of the forged draft, with the exception of the figures cut therein, is not defective, the figures cut in the draft, in a legal sense, being no part of the instrument.

An indictment charging that defendant uttered and published as true a certain false and forged writing, which is set out in full in the indictment, is sufficient to warrant proof of the alteration of an instrument originally genuine.

Where a juror states that he has impressions as to the merits of the cause about to be tried, it is not error to exclude his answer to the question, whether or not such impressions are favorable to defendant.

Where the defense, in the examination of a witness, has called out part of a conversation, the prosecution may call either party to it in order to prove the entire conversation.

Although there may be isolated sentences in an instruction which, in themselves, are objectionable, and the instructions probably intimate to the jury the opinion of the trial judge as to the value of some portions of the evidence, yet if the instructions

clearly give the jury to understand that the facts are exclusively for them, and, taken as a whole, fairly state the law applicable to the evidence introduced, the judgment will not be reversed.

*Appeal from District Court, King County.*

Indictment for forgery against William M. White, verdict of guilty, and defendant sentenced to fourteen years in the penitentiary. Defendant appeals. The facts are stated in the opinion.

*James Hamilton Lewis*, and *W. Lair Hill*, for appellant.

In an indictment for forgery, or for uttering a forged instrument, the instrument must be set forth exactly as it is, and proved exactly as set forth. Whart. Crim. Pl. and Pr., § 167; *Brown v. People*, 1 Am. Cr. Rep. 229; *Luttrell v. State*, 4 Am. State Rep. 764; *State v. Street*, 1 Am. Dec. 589.

The draft introduced in evidence contained important matters not shown upon the draft as set forth in the indictment, namely: The figures which were cut out by the machine or instrument ordinarily used by banks, and which is an important part of such drafts. This was a substantial variance. *Luttrell v. State*, 4 Am. State Rep. 763–4; *United States v. Fissler*, 12 Myer's Fed. Dec. 625c.

The indictment charged generally the drawing of a forged draft. The evidence of the prosecution, as appears by the record, went simply to the fact that the draft offered in evidence was a genuine draft originally; that the signatures were genuine, but that there had been an alteration in the body of it. The defendant was not notified by the indictment that he was to be put upon his trial for the uttering of a draft originally genuine, but afterwards altered in the body of it, without any change in the signatures. This was an error prejudicial to him. Code Wash. T. §§ 1002–7; Whart. Crim. Pl. and Pr., §§ 153–5; *United States v. Hess*, 124 U. S. 516, 483; *United States v. Cruikshank*,

92 U. S. 542; *Hurland v. Territory*, 3 Wash. T. 131; *People v. Taylor*, 3 Denio, 94; *People v. Thoms*, 3 Park. Cr. Cas. 256; *State v. Henry*, 59 Iowa, 391; *State v. Parker*, 6 Am. Dec. 735; *State v. Flye*, 26 Me. 312; 1 Whart. Crim. Law (9th ed.), §§ 735–40.

*W. C. Jones*, Attorney General, and *Stratton & Fenton*, for The Territory.

The draft proven is in words and figures the same as pleaded, excepting that the perforations made in the paper upon which the draft is printed, are not made in the indictment. We do not concede that it was necessary to perforate the indictment or lithograph the draft therein, in order to come within the rule as to variance. The number of a bank bill and marginal figures indicating its amount need not be set out in the indictment. *Com. v. Bailey*, 1 Mass. 62; *Com. v. Stevens*, 1 Mass. 203; *Griffin v. State*, 14 Ohio St. 55; *State v. Calendine*, 8 Iowa, 288; *State v. Briggs*, 34 Vt. 501; *Com. v. Adams*, 7 Metc. 50; *Miller v. People*, 42 N. Y. 304; 11 Am. Rep. 706; *People v. Phillips*, 70 Cal. 61.

Proof of uttering an altered draft will support an indictment charging the uttering of a false and forged draft. The draft is both false and forged, when altered in the body thereof, in a material matter, and is as much false and forged as if the body had not been changed, but the signature forged. *Stoughton v. State*, 2 Ohio St. 566; *Mackey v. State*, 3 Ohio St. 362; *Bailey v. State*, 4 Ohio St. 440; *People v. Frank*, 28 Cal. 513; *Bittings v. State*, 56 Ind. 101; *State v. Marvels*, 2 Harr. 527.

The opinion of the court was delivered by

HOYT, J. — Defendant was convicted of the crime of forgery in the district court for the Third judicial district, holding terms at Seattle. Numerous exceptions were taken to the ruling of the court during the progress of the cause,

and errors thereon have been duly assigned, and the case brought here for review. Nearly all of the errors assigned have been relied upon here as cause for reversal, and have been argued by counsel with great diligence and ability. We do not, however, feel called upon to discuss the questions arising upon each of said alleged errors separately, and shall content ourselves with the examination of four principal questions, as we think that the mind of the court as to the other errors assigned will be sufficiently indicated by such discussion.

The questions which we shall notice are as follows: 1. As to the sufficiency of the indictment; 2. As to the challenge of the juror McRedmond; 3. As to the testimony of the witness Morrisett; 4. As to the instructions to the jury. The following is a copy of the indictment:

"Wm. M. White is accused by the grand jury of the Territory of Washington, for the county of King, in the Third judicial district of said territory, by this indictment, of the crime of forgery, committed as follows: The said Wm. M. White, on the 25th day of May, A. D. 1889, in the county of King, in the district aforesaid, then and there being, did, then and there, willfully, knowingly, falsely, fraudulently, unlawfully and feloniously utter and publish as true, to the Puget Sound National Bank of Seattle, the same being a body corporate under the banking laws of the United States, a certain false and forged writing on paper of the tenor following:

" 'The Commercial National Bank, No. 16743, Portland, Oregon, May 13, 1889. At sight of this first exchange, second and third unpaid, pay to the order of J. C. Smith ($2,500.00) twenty-five hundred dollars, value received, and charge the same to the account of R. L. Durham, cashier. To the National Bank of the Republic, New York City,' with the words 'J. C. Smith' and 'Wm. M. White' written on the back of said paper; he, the said Wm. M. White, then and there well knowing the said instrument of writing to be false and forged, with intent then and there to injure and defraud the Puget Sound National Bank, and other persons to the jurors unknown, contrary to the form of the statute in such case made and provided,

and against the peace and dignity of the Territory of Washington."

The act allowed to be proved under said indictment was the uttering by the defendant of a draft, originally genuine, for $25.00, which had been altered to $2500.00. The indictment correctly sets out the altered draft with the exception that in the draft itself there appeared the figures "$2500" cut therein, which did not appear in the copy in the indictment; and it was claimed that such omission made the draft inadmissible in evidence. We think, however, that such figures so cut in the draft were no part of the contract contained therein. Such figures were no more a part of the instrument, in a legal sense, than are the marginal figures on a bank note, or the lathe work, or any other device thereon, to prevent counterfeiting, and, as it has never been held necessary to set these out in the indictment, we think the same rule should apply to the figures in question. See Whart. Crim. Pl. and Pr., § 167; *State v. Flye*, 26 Me. 312; 1 Whart. Crim. Law, § 731.

It is further claimed that the draft introduced, having been originally a genuine one, and the forgery consisting of an alteration and not of an original false making, the indictment did not sufficiently state the facts to warrant proof of such alteration. We cannot agree with this contention. The offense of forgery under our statute may consist in the uttering of a forged instrument. The draft set out, if altered from twenty-five dollars to twenty-five hundred dollars, was as much a forged instrument as though the signature of the maker had been falsely written thereto; and we see no more reason for alleging that the draft was made a forged one by a material alteration thereof, than there would be in a proper case in stating that the forged writing was made such by the false signing of the same. In either case we think the facts are sufficiently stated when, in addition to the other averments contained in this indictment, the instrument alleged to have been

forged is set out in full, and that under such indictment the forgery of the instrument may be shown as well by proof of a material alteration as by proof of an original false making. Archb. Crim. Pl. and Pr., § 1569; 1 Whart. Crim. Law, § 735; 2 Bish. Crim. Law, § 535; *State v. Flye, supra.*

The juror McRedmond having stated that he had impressions as to the merits of the cause, was asked by counsel for defendant whether or not such impressions were favorable to defendant. The answer of the juror was excluded, and we think such exclusion was correct. That such a question would have been improper under the old rule as to the examination of jurors is conceded. It is claimed, however, that the statute, which provides that opinions shall not disqualify if the court finds certain facts, has changed the rule, and several authorities are cited which sustain this proposition. We, however, are not well enough satisfied with the reasoning of these cases to justify us in reversing the long-standing practice of the courts of this territory and state. And we think that it is not necessary to add another to the numerous side issues that have to be examined in the trial of a cause.

The testimony elicited from the witness Morrisett was called for by the course of the defense in calling out the conversation as to which he testified, and a part of the conversation being in, the jury were entitled to the whole of it; and on principle, it is immaterial which one of the parties to the conversation is called to prove it.

The instructions were voluminous, and defendant alleges error as to several parts of the same. That part of the instructions most relied upon by defendant as ground for reversal, and which we think most likely to have been prejudicial to defendant, is as follows:

"You are to consider the testimony in regard to all these different writings that have been offered here as simply a circumstance, which you are to judge of in the light of your

own experience as business men and as men of affairs, for whatever weight you consider it entitled to as being decisive or otherwise in this case. The mere uttering of a forged instrument is of itself a circumstance from which knowledge of its falsity may be presumed. I mean by that, if you find from the testimony that this particular draft described in the indictment was forged, that is, falsified, and that it was uttered, that is, passed, by the defendant, you have got a right to presume from these facts that he knew that it was forged at the time of passing it; but that presumption is not conclusive, it is not binding as against other testimony in the case. If these facts stand alone, without being met by other testimony in the case, you could rest upon that presumption; but, as I have said, it is not conclusive. It is open to the defendant to contradict or explain the fact of his having guilty knowledge."

We shall examine only this one, as our reasoning as to this will apply with greater force to the other instructions given. If the above quoted instruction stood alone it might be open to objection, as, thus construed, it is possible that the jury would have been justified in believing that a *prima facie* case having been made out by the prosecution they could only look to the defendant's testimony to rebut the case so made by the prosecution; but when this instruction is examined in the light of all the others given, we are not satisfied that the jury could have been misled by it. The instruction, taken as a whole, we think fairly states the law applicable to the evidence introduced at the trial. It is doubtless true that there are isolated sentences in several parts of the charge which in themselves are objectionable, and it is probable that the instructions taken as a whole intimated to the jury the opinion of the trial judge as to the value of some portions of the evidence, yet as it clearly and fully gave the jury to understand that the facts were exclusively for them, we do not think that such intimation alone would justify a reversal of the judgment.

The instruction above quoted, when interpreted in the light of all, as above stated, could mean nothing more than

that if the jury were satisfied that defendant had uttered the draft in question, and that it was forged as claimed, such utterance would be a circumstance in the case from which the jury would be warranted in finding a guilty knowledge, if, in fact, their minds were convinced beyond a reasonable doubt by such circumstance, and that being so convinced they would be warranted in convicting the defendant, provided that, when they examined such circumstance in the light of all the proofs, such conviction beyond a reasonable doubt still existed in their minds; and thus construed, we think it correctly stated the law; for while it is true that the cases are not numerous where the bare possession of a single forged instrument has been held to warrant a presumption of guilty knowledge, yet the cases are numerous where the possession of three or four bank bills has been held sufficient to justify such presumption, and it is clear to any person of common understanding that it would be more reasonable to require an explanation of the possession of a single draft like the one in question than it would of three or four or even ten bank bills of ordinary size; for while even a prudent man who handles large sums of money might be utterly unable to show where any one of ten, or even an hundred, five-dollar bills came from, there are very few men whose transactions are such that a $2,500.00 draft passes through their hands without their being able to show conclusively from whom they received it.

The instructions as to what constitutes a reasonable doubt were more favorable to defendant than the law required, and from the whole case, as presented by the record, we are of the opinion that the defendant had a fair trial, and that no substantial error to his prejudice has been made to appear.

The judgment and sentence of the lower court must be affirmed, and the cause remanded for further proceedings.

ANDERS, C. J., and SCOTT, STILES and DUNBAR, JJ., concur.

[No. 69. Decided June 2, 1890.]

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*In the matter of the application of* A. C. CAMPBELL *and others for a writ of Mandate to the Board of County Commissioners of Pierce County.*

MUNICIPAL INCORPORATIONS — RE-INCORPORATION — CONSTRUCTION OF STATUTES.

A town incorporated under the void act of February 2, 1888 (Laws Wash. T., 1887, p. 221), entitled "An act for the incorporation of towns and villages in the Territory of Washington," may incorporate under §§ 1-3 of the act approved March 27, 1890 (Laws Wash. 1889-90, p. 131), entitled "An act providing for the organization, classification, incorporation and government of municipal corporations, and declaring an emergency."

Towns which attempted to incorporate under the void act of February 2, 1888, may incorporate under the act of March 27, 1890, with a larger territory than that included in the original boundaries.

*Certified from the Superior Court, Pierce County.*

This is a proceeding for what is termed in the statutes a writ of mandate. In 1888 the inhabitants of the town of Puyallup, Pierce county, instituted proceedings under the act of February 2, of that year, for the incorporation of that town. That act having been declared void by this court (*ante*, p. 98), the present petitioners made application to the respondents, the board of county commissioners, under the provisions of the act of March 27, 1890. The petition was presented to the county commissioners, who declined to act. The petitioners thereupon applied for a writ to compel them to proceed, and the court issued an alternative writ of mandate, which on the final hearing was made peremptory. The court being of the opinion that the case involved the determination of questions of law concerning the true and proper construction of the statutes of the state in relation to the incorporation of towns and cities and the enlarging of the boundaries thereof, and that it was desirable to have the opinion of the supreme court upon certain questions which are set out

in the opinion, certified the case to the supreme court under the provisions of § 453, Code Wash. T.

*Galusha Parsons*, and *B. F. Jacobs*, for petitioners.

*W. C. Jones*, Attorney General, for respondent.

The opinion of the court was delivered by

HOYT, J. — This cause comes to this court upon the certificate of the judge of the superior court, that it is desirable to have the opinion of this court upon the questions presented, and upon the order of said superior court that the proceedings be brought here for the determination of four questions, as follows:

"1. Can a city incorporated under the act of February 2, 1888, Laws of 1887, page 221, entitled 'An act for the incorporation of towns and villages in the Territory of Washington,' incorporate under §§ 1, 2 and 3, of an act entitled 'An act providing for the organization, classification, incorporation and government of municipal corporations, and declaring an emergency,' approved March 27, 1890, Laws 1890, page 131?

"2. Can a city incorporated under the act of February 2, 1888, incorporate under §§ 1, 2 and 3 of the act of March 27, 1890, with a larger territory than that included in the original boundaries?

"3. Should not a city incorporated under the act of February 2, 1888, re-incorporate under §§ 4, 5 and 6 of the act of March 27, 1890?

"4. Must not cities incorporated under the act of February 2, 1888, enlarge their boundaries under § 9 of the act of March 27, 1890, or under an act entitled 'An act to provide for extending and enlarging the corporate limits of any city, town or village in this state, and for consolidating and uniting cities, towns and villages, and declaring an emergency,' approved February 26, 1890?"

The first two of these questions are clearly pertinent to the controversy between the parties, and their rights cannot be determined without a finding which must substantially answer said questions. We, therefore, think them properly before us for decision. An answer to the other

two questions is not necessary to the determination of this action, and for that reason we do not feel called upon to answer them. We, however, fully appreciate the fact that they relate to matters of grave public interest, and that the object of the lower court in sending them here was a most worthy one, and had the case been as fully presented by counsel affirming the right of cities to re-incorporate under §§ 4, 5 and 6 of the act in question as it has by those inclined to a contrary view, we should perhaps feel at liberty to enter upon the investigation thereof, but as this has not been done we must decline to examine these questions, and content ourselves with a decision of the first two, as above stated.

If the proviso in § 1 of the act in question had been omitted from said section, and § 6 from said act, it would be clear that the territory included within that part of a county in which a void attempt at incorporation had been made was as fully covered by the act as any other. All attempts to incorporate under the act of February 2, 1888, were absolutely void, and such attempts (unless legalized by legislation) did not, and could not, change the *status* of the inhabitants included in the territory so attempted to be incorporated, and §§ 1, 2 and 3 of the act in question apply to all such territory the same as to any other.

It follows that the only inquiry necessary is as to the effect upon the question before us of said proviso to § 1, and said § 6. It has been suggested upon the argument that said portions of the act were absolutely void. That it was not competent for the legislature to thus indirectly vivify and give force to acts of attempted incorporation, but as we see our way clear to decide this cause without determining as to the soundness of such argument, for the reasons hereinbefore stated, we shall decline so to do.

We are of the opinion that even if such portions of said act are valid, they are not exclusive. That the most that can be claimed thereunder is, that by virtue thereof it was

competent for such attempted incorporation, by taking steps thereunder to become legal incorporations. Assuming that it was within the power of the legislature to have legalized all such attempted incorporations, it cannot be contended, that by the passing of the act in question, it has done so. That is, it cannot be claimed that at the time this law took effect it then and there transformed all these attempted incorporations into real ones. Until by some act of the so-called corporations or of their board of officers, the territory and the inhabitants therein were as much a part of the body of the county as any other part of the same. And if a part of the county at large, then such inhabitants, either by themselves or with others of the county, could avail themselves of the provisions of said §§ 1, 2 and 3, and become incorporated as a body politic.

Let it be certified to the court below that this court answers the first two questions submitted in the affirmative, and that it declines to answer the others. And that the judgment of the superior court in this cause is affirmed, and the same remanded to said court for further proceedings thereon.

ANDERS, C. J., and STILES, SCOTT and DUNBAR, JJ., concur.

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[No. 70. Decided June 2, 1890.]

FRED. GASCH, JOHN WOODING AND W. H. TAYLOR, *the Board of County Commissioners of King County*, v. GRIFFITH DAVIES AND WILLIAM D. WOOD.

*CONSTITUTIONAL LAW — REPEAL OF ACT BY IMPLICATION — TITLE OF STATUTE — EXTENSION OF CORPORATE LIMITS.*

The act of the legislature approved February 26, 1890 (Laws Wash. 1889-90, p. 227), entitled "An act to provide for extending and enlarging the corporate limits of any city, town or village in this

state, and for consolidating and uniting cities, towns and villages, and declaring an emergency," is repealed by implication by the act approved March 27, 1890 (Laws 1889-90, p. 131), on the same subject, entitled "An act providing for the organization, classification, incorporation and government of municipal corporations, and declaring an emergency." (HOYT, J. dissents.)

Where there is a conflict in the statutes on the same subject passed by the legislature at the same session, and the result of action under the one would be substantially different from what it would be under the other, the statute last enacted will prevail, and the prior statute will be considered as having been repealed by implication.

The title of the act approved March 27, 1890, in relation to the incorporation of cities and towns is broad enough to include the sections in the act providing for their enlargement and consolidation.

*Appeal from Superior Court, King County.*

*E. M. Carr*, Prosecuting Attorney, *J. C. Haines*, and *H. R. Harris*, for appellants.

*Junius B. Rochester*, for appellees.

The opinion of the court was delivered by

STILES, J. — Plaintiffs in error constituted the board of county commissioners of King county, to whom in the month of May, 1890, a resolution of the city council of Seattle was addressed, requesting the board to submit to the qualified electors of the city and of certain territory adjacent to the city, the question of extending the corporate limits of the city over the adjacent territory therein described. Twenty-five residents and freeholders of the adjacent territory joined in preferring the request. The board refused the request, and for the purpose of obtaining a judicial construction of the law of the case, joined with the defendants in error in a friendly action in the superior court of King county, substantially in the form of a petition for a writ of mandate against the board to require it to proceed in accordance with the request, under the provisions of the act of the legislature approved February

26, 1890, entitled "An act to provide for extending and enlarging the corporate limits of any city, town or village in this state, and for consolidating and uniting cities, towns and villages, and declaring an emergency." It was agreed that the terms of the act had been complied with in all formal requirements of it, and the defense of the board was based upon two grounds, viz.: 1. That the territory proposed to be annexed was in two widely separate tracts. 2. That the act of February 26th was repealed by implication by an act approved March 27, 1890, entitled "An act providing for the organization, classification, incorporation and government of municipal corporations, and declaring an emergency." The court below held against the board, and this writ of error is to obtain a review of its decision.

The first objection raised by the board would furnish matter for serious discussion owing to the peculiar situation of the territory proposed to be included within the city limits; but as we shall hold that the second objection is well taken, it will not be necessary that we discuss or decide the first.

The act of February 26th provided three methods by which outside territory might be brought within the corporate limits of an existing city, town or village. By the first method, a petition of a majority of the legal voters of the territory proposed to be annexed, addressed to the legislative authority of the municipal incorporation, was sufficient authority for the passage of an ordinance declaring the annexation. By the second method, if the owner of land adjacent to a municipal incorporation lays it off as an addition to the city, town or village, the whole tract thereafter becomes a part of the incorporation, *ipso facto*, for all purposes. By neither of the above methods is any record of the new corporate boundaries made with the board of county commissioners or the secretary of state. But under the third method, however, the element of consent on the part of the outside parties, being neither present nor pre-

sumed, an entirely different course is prescribed. The council or board of trustees must first, by ordinance, request the board of county commissioners to call an election, and twenty-five residents and freeholders (not necessarily electors) of the territory proposed to be annexed must join in preferring the request, which, although it is thus mildly denominated, by the terms of the act, operates as a command which the board cannot refuse to obey. But the commissioners, from that point in the proceedings, take entire charge of the matter; a majority of the whole number of the votes cast of qualified electors within and without the municipality determines the question of annexation; the county pays the expenses of the election; and thus a record of the new boundaries is made with the commissioners, but not with the secretary of state. Section 10 of the act would seem to make it applicable only to cities having a population of ten thousand or upwards. Thus stood the law until March 27th, when the second act, the title of which has been given, was approved, and under its emergency clause went into immediate effect. Section 9 of this latter act commences with these words: "The boundaries of *any* municipal corporation may be altered and new territory included therein, after proceedings had as required in this section," and follows with a complete method of proceeding on that subject. It is to be regretted, however, that the legislature did not add to the above quoted sentence the words "and not otherwise," or other equivalent words, so that what we believe to have been its real intent might have been fully and exactly expressed.

Without quoting from the act, we note the following points of difference between it and the former act, which are so radical as that, in our view, they seem to create a new system for extending boundaries, which precludes the existence of any other in the legislative mind. In this act there is no restrictive operation to cities of ten thousand; the moving cause of action in the premises is a petition of

one-fifth or more of the electors of the municipality, which being received, the counsel must submit the question of annexation to electors within and without; the votes must be canvassed separately by the council, and there must be a majority of each body of electors for the annexation to carry it; an abstract of the vote must be transmitted to the secretary of state, where all other matters pertaining to incorporations, both public and private, are filed of record; and last, but by no means least of all, the newly annexed territory can never be charged with any of the indebtedness of the old corporation.

It was suggested in argument that inasmuch as no mention is made in the title of this act of the enlargement or consolidation of municipal corporations, §§ 9 and 10 are void, by § 19, article 2, of the constitution. But we think that the term "incorporation," which is used, is certainly broad enough to include these proceedings, which are analogous to the supplemental articles of a private corporation increasing its capital stock. See the discussion of the subject of titles of statutes, under similar constitutional limitations, in Cooley, Const. Lim. (5th ed.). p. 170, *et seq.*

Likewise we cannot agree that this act was not intended to affect municipal incorporations existing at the time of its approval. Under its express terms certain corporations attempted to be organized under the void act of February 2, 1888, are mentioned and provided for, and it is the law of all existing corporations in so far as they are given the authority to adopt its provisions as to government and classification. One thing is certain, that if the act of February 26th is the only law authorizing the extension of corporate limits, and if its operation is limited to cities of ten thousand and upwards, then there are only three cities in the state at this time which can enlarge their boundaries unless they first become re-incorporated under the act of March 27th, since there are only three which have a population of ten thousand.

The principal contention, however, on the part of the applicants for the writ was, that the two acts at most embrace the same subject-matter, and, being so and having been passed at the same session of the legislature, they ought to be construed as parts of one act, so that both might stand. And if the circumstances were such as to admit of following that course, we should certainly follow it, for the rules of construction in cases of this kind are too well known not to be observed. But two statutes thus placed must not necessarily conflict, and if they do, the latter one must prevail; and whenever the latter statute is so framed as that its provisions would or might, in a given case, make the result of action under it substantially different from the result of action under a former statute on the same subject, the latter and the former are in conflict, and the latter will be taken to prescribe the only rule which is to be accepted as governing the case provided for, and to repeal the earlier law by implication. Endlich, Interp. St., § 200.

We have noted the difference in the procedure under these two acts; now the practical difference in the result of action under each may be thus illustrated. Suppose that the commissioners in this instance had not declined to act, but had proceeded to call the election as requested, and suppose that the electors of the city, five thousand in number, had voted unanimously for the annexation, and the electors of the outside territory, two thousand in number, had voted against it; a majority of the seven thousand electors would have carried the proposition for annexation. But had the election been held under the act of March 27th, with precisely the same vote cast, annexation would have been defeated for want of a majority of the outside electors favoring it. In the one case the vote of the outside elector would count for nothing, while in the other his vote would have equal weight as that of his inside neighbor. Or, suppose that while the election ordered by the commissioners was pending, enemies of the annexation proposition resid-

ing within the city, to the number of one-fifth or more of the electors, believing that although annexation would be carried under the first act, it would be defeated under the second, because a majority of both city and suburban voters could not be had, had presented their petition to the council for an election under the second act; the requirement of § 9, that the council proceed according to the prayer of the petition, seems to be mandatory, and it must call, provide for, and hold the election as demanded, and the consequent confusion may be better imagined than described. These possibilities confirm us in our view, taken coldly from the bare legal aspect of these two laws, that they cannot stand together, and we therefore hold that the action of the commissioners in refusing to act was their proper course.

The judgment of the court below is reversed, with directions to dismiss the application for the writ of mandate. Costs to plaintiff in error.

ANDERS, C. J., and DUNBAR and SCOTT, JJ., concur.

HOYT, J. (*dissenting*). — As the judgment of this court is final, and as the particular questions presented are not of general interest, except as to the holding of this court as to the particular statute in question, it would be profitless for me to enter into a lengthy discussion of the reasons that compel me to dissent from the conclusion of the majority of the court in this cause. I shall, therefore, content myself with saying, that, as the two acts in question were passed at the same session of the legislature, and therefore should be construed as a single act, I think that they can stand together. In the first act the legislature had provided three distinct methods for enlarging the boundaries of cities, and I think it consistent to hold that in the other act they intended to provide a fourth method of accomplishing the same purpose.

[No. 76. Decided August 8, 1890.]

# JAMES B. METCALFE v. THE CITY OF SEATTLE, AND ROBERT MORAN, D. A. MCKENZIE, THOMAS E. JONES AND D. E. DURIE.

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CONSTITUTIONAL LAW — MUNICIPAL INDEBTEDNESS — CONSTRUCTION.

Article 8, § 6, of the constitution of the State of Washington, provides that no city shall for any purpose, become indebted in any manner exceeding 1½ per cent. of the taxable property in such city, without the assent of three-fifths of the voters therein, voting at an election to be held for that purpose, nor shall the total indebtedness thus assented to at any time exceed 5 per cent. on the value of the taxable property therein; but "any city or town, with such assent, may be allowed to become indebted to a larger amount, not exceeding 5 per cent. additional, for supplying such city or town with water, artificial light, and sewers, when the works for supplying such water, light, and sewers, shall be owned and controlled by the municipality." *Held*, That a municipal corporation may become indebted, for the purpose of providing a water and sewerage system, in any sum, provided the total municipal indebtedness does not exceed ten per cent. of its last assessment roll.

The majority of three-fifths of the voters necessary to carry an election for the increase of municipal indebtedness above 1½ per cent. of the assessment roll, is three-fifths of those persons who actually vote at the election, and not three-fifths of all those who may have the right to vote thereat.

*Appeal from Superior Court, King County.*

Injunction against defendants, as mayor and finance committee of the common council of the city of Seattle, to restrain them from selling or otherwise disposing of bonds theretofore issued, in the sum of $955,000, under ordinance No. 1343, of said city, for the purchase of water-works, and the construction of a sewerage system. In pursuance of notice, a special election was held in the city of Seattle, on the 4th day of June, 1890, for the purpose of voting upon the proposed issuance of bonds for that purpose. The whole number of voters who voted at the election was 721, and the number who voted in favor of issuing the

bonds was 705, said number not being three-fifths of the qualified voters in said city, nor three-fifths of the persons entitled to vote at said election. The total value of the taxable property of the city of Seattle, according to the last assessment for city purposes, was $16,016,900.00. The existing indebtedness of the city amounted to about the sum of $400,000. The additional indebtedness proposed to be incurred was more than five per cent. of the total valuation of taxable property. Judgment for defendants, and plaintiff appeals.

*J. C. Haines* and *Charles F. Fishback*, for appellant.

*S. H. Piles*, (*Thomas R. Shepard*, of counsel), for appellees.

The opinion of the court was delivered by

STILES, J. — This was an amicable suit brought to obtain the court's construction of § 6, article 8 of the constitution, and the legislation had thereunder, resulting in the act of February 26, 1890 (Session Laws, p. 225), and the act of March 26, 1890 (Session Laws, p. 520), as applied to the city of Seattle, which was proposing to issue certain bonds for a water and sewerage system, amounting to $955,000. The controversy, however, was a real one, and under the pleadings fairly brought to this court two questions for answer, viz.: 1. Can a municipal corporation become indebted for water-works, sewers and artificial light works in any sum greater than *five* per cent. of its last assessment roll? 2. To carry an election, where the question is that of increasing municipal indebtedness above one and one-half per cent. of the assessment roll, must the majority of three-fifths required be three-fifths of all the persons entitled to vote at the election, or three-fifths of those who do vote thereat?

The circumstances which caused the presentation of the first question seem to have been a dispute as to whether,

under the terms of the constitution and the acts referred to, the matter of providing water, sewers and light for the inhabitants of a city is a "municipal purpose," or a "strictly municipal purpose." It is a fundamental principle in the law of municipal incorporations that, although they are usually given a large discretion in the matter of raising and expending money, no money can be raised or expended for any but a "strictly municipal purpose," and that limitation is just as much laid upon the cities of this state with regard to the first one and one-half per cent. of indebtedness as it is upon the additional three and one-half per cent. which must be authorized by a vote, although, in the latter case, the framers of the constitution saw fit to express the limitation. But in our view, there is nothing in the constitution which forbids the idea that works of the character of those under discussion are those of a strictly municipal character, and therefore, proper works for a municipality to undertake and maintain, either out of the current revenue, or the first five per cent. of indebtedness. The limitation declared by the constitution is, that whenever the indebtedness has reached five per cent. it must stop, unless more money is needed for water or light works, or sewers. And, in this connection, we may say, in response to argument at the hearing, that we regard the language of the constitutional provision as reading in the disjunctive, as though it were "water, artificial light *or* sewers." The city of Seattle was authorized by its charter (Act of 1886, pp. 240, 241, 244) to build, own, and operate such works, and to levy taxes therefor. It lacked only the power to incur indebtedness. This power it did not receive from the chapter of the constitution on municipal indebtedness, it is true; for that chapter contains no grant of power to these incorporations. It leaves them entirely to the legislature; but, deeming it certain that future legislatures would permit such indebtedness, it prescribed the limitations under which the power, when granted, must be exer-

cised, and beyond which it must not go. The power was conferred upon the city of Seattle by the acts of the legislature referred to, we conceive, in very clear terms, though the appellant suggested a doubt on that point even.

These two acts are entitled to be construed together, they having been passed at the same session; and we see no necessity to hold that the act of March 26th repealed that of February 26th. On the contrary, the latter act seems to form a fitting complement to §§ 2 and 3 of its predecessor, elaborating the machinery by which they are to be operated, and leaving no room for hasty, careless or underhand proceedings. By the last act the legislative body of the city must first express, by ordinance, the intention of the city to avail itself of its power to inaugurate and maintain such works, specifying a distinct plan or system to be followed, with the estimated cost thereof, and the question of the adoption of the plan proposed must be submitted to the voters of the city. Clearly the intention was, that whereas such works are likely to demand large and unusual expenditures, the wisdom of which, in some cases, may be doubtful, the people who would have to furnish the means should be fully apprised of the whole scheme, and that there should be a definite, well-considered, and practicable scheme presented for their rejection or adoption. If no authority to incur indebtedness beyond the current revenue is asked for, the proposition may be carried by a majority vote. But, if it is intended that the city shall incur a debt for these costly works, the majority to carry the proposition must be three-fifths, and the indebtedness must be created by the *issuance of bonds* to run not exceeding twenty years, at a rate of interest not exceeding six per cent. The three-fifths majority having been obtained, there is no further obstacle to the issuance of such bonds, although they amount to more than five per cent. of the taxable property of the city, providing that with their issuance the

total indebtedness of the city is not increased to more than ten per cent. of such property.

In response to the second question, we have not the least hesitation in answering that the three-fifths majority required to carry an election in favor of increasing municipal indebtedness, is three-fifths of those persons who actually vote at the election, and not three-fifths of all those who may have the right to vote thereat. The language of the constitution is, that no municipal corporation shall become indebted beyond one and one-half per cent. of its taxable property "without the assent of three-fifths of the voters therein voting at an election to be held for that purpose." How could words be plainer? It is three-fifths of the *voters voting*, not of all persons who might vote, but may or may not do so. The word "therein" placed between "voters" and "voting" merely qualifies the persons who might vote, not the body of voters who must vote to constitute a lawful majority. At certain elections many persons residing outside of a city have their voting places assigned within the city limits; but, at these particular elections, it is only the voters "therein" — residing therein — who can vote. Perhaps, a longer phrase might have served to remove all doubt from every mind, but, to us, the interpretation seems clear as it is.

In every other instance, we believe, where the constitution prescribes the majority required to carry a particular proposition submitted to the electors, it is a majority of those who vote upon that proposition. See art. 8, § 3, authorizing the state to contract debts; art. 11, § 2, of the removal of county seats; art. 11, § 10, of the adoption of charters by cities; art. 15, §§ 1, 2, of the location of the seat of government; art. 23, § 1, of amendments to the constitution, and § 2, of the calling of constitutional conventions. Against this it may be said that, in each of the instances mentioned, the majority required is only a majority of those voting on the question submitted; but when

we observe that in all these cases the questions are to be submitted at general elections, where the whole number of votes cast may far exceed those cast for and against the particular proposition, the general policy of the constitution becomes clear in no case to require an absolute majority of all those who vote at a general election to carry a special proposition, but only a majority of those who see fit to express themselves upon the proposition; and this policy being so, why, in this case of municipal indebtedness, should we, without any special or apparent reason, argue plain words out of their ordinary meaning, and conclude that a departure was intended from the otherwise steady policy of the constitution simply because precisely the same form of words is not used? These elections are hedged about with all the precautions to secure fairness and a full vote that general elections have. Being purely special elections, they are free from the political influences and the vice of trading which often unjustly sway and control the vote on such matters at general elections. Every elector has full constructive notice, and it would be strange, indeed, if he did not have actual notice, of the pending question, and cannot complain if the result, without his vote, is not according to his desire.

This question of majorities has been discussed by several of our courts of last resort, in cases similar to this. In North Carolina (*Southerland v. Goldsboro*, 96 N. C. 49, and *Duke v. Brown*, 96 N. C. 127), in Georgia (*Bell v. Americus*, 79 Ga. 152), and in Mississippi (*Hawkins v. Carroll County*, 50 Miss. 735), the supreme courts of those states held that no less than a majority of all the persons qualified to vote was sufficient to carry the several propositions submitted. But in *Carroll County v. Smith*, 111 U. S. 556, the supreme court of the United States reviewed the case of *Hawkins v. Carroll County*, and dissented from and overruled it. The consti-

tution of Mississippi contained a provision that the legislature should authorize no county to aid any railroad company "unless two-thirds of the qualified voters of such county . . at a special election or regular election to be held therein, shall assent thereto;" and this language the court, in *Carroll County v. Smith*, held to mean two-thirds of the qualified voters present and voting at the election in favor of the proposition as determined by the official return of the result, saying: "In that connection a voter is one who votes; not one who, although qualified to vote, does not vote." This decision of the supreme court but followed its earlier decisions in similar cases, viz.: *St. Joseph Township v. Rogers*, 16 Wall. 644, and *County of Cass v. Johnston*, 95 U. S. 360. In the last-named case the constitution of Missouri prohibited townships from aiding railroad companies "unless two-thirds of the qualified voters of the . . town, at a regular or special election to be held therein, shall assent thereto," which is identically the same language, slightly transposed, as that of the Mississippi constitution, above quoted. But what was known as the "Township Aid Act" of Missouri, approved March 23, 1868, authorized townships to subscribe to the capital stock of railroad companies "whenever two-thirds of the qualified voters of the township, *voting* at an election called for that purpose, shall vote in favor of the subscription;" and it will be noted that the language of this "Township Aid Act," "voters of the township voting," is precisely the same as that of our constitution, "voters therein voting." In that case the parties and the court agreed in construing the meaning of the legislative provision to be what we hold it to be here, that the majority meant was a majority of those who voted; but the defendant in error contended that the constitutional provision required a majority of all the qualified voters of the township, but not successfully, for the court construed the constitution and the act to mean the same thing, and said that any other construc-

tion would be productive of the greatest inconvenience, and ought not to be adopted, unless the legislative will to that effect were clearly expressed. In McCrary on Elections, (3d ed.), § 173, the general rule is laid down thus: "Where a statute requires a question to be decided . . by the votes of the 'majority of the voters of a county,' this does not require that a majority of all persons in the county, entitled to vote, shall actually vote affirmatively, but only that the result shall be decided by a majority of the votes."

The plaintiff, by two insufficient paragraphs of his complaint, attempted to set forth a second cause of action, alleging that the city of Seattle was indebted in about the sum of $400,000, which was $159,746.50 in excess of the indebtedness allowed to be incurred by law, and which excess was contracted since the act of February 26, 1890, validating certain municipal indebtedness, without the assent of three-fifths of the voters of the city. And he further alleged that the city was attempting to fund the said excess without a vote, and that it would do so unless restrained. His application for an injunction upon this statement of facts was refused, and we think rightly. The complaint was too vague, containing, as it did, no statement of any act on the part of the city's representatives threatening the alleged funding. At the hearing in this court, the parties, by agreement, sought to amend the pleading and obtain a construction of the statute above mentioned; but we must decline to permit the amendment, as, in our view, it does not come within the rules which allow amendments in this court. We have looked into the proposed pleading, however, and find it open to the same objection as its original, viz.: That it shows no acts going to constitute an invasion of the limits set up by the funding act, or a threat to invade the same. In short, it discloses no real controversy such as appears in the first cause of action. The things feared may be done, or attempted, and they may never be. When some step in their direction is taken, it will be time

enough to appeal to the courts. Upon all grounds, therefore, the action of the court below in snstaining the demurrer to the complaint should be sustained, and its judgment affirmed; and it is so ordered. Costs to the appellee.

ANDERS, C. J., and HOYT, DUNBAR and SCOTT, JJ., concur.

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[No. 77. Decided August 8, 1890.]

STATE OF WASHINGTON, *on the relation of* D. B. BAKER, v. J. A. SNODGRASS, MATT. BROWN, DAVID HARRIS, R. T. COWAN AND LUTHER DAVIS.

*Appeal from Superior Court, Clarke County.*

Action by D. B. Baker to enjoin the defendants and appellees, who were the auditor, treasurer and county commissioners, respectively, of Clarke county, State of Washington, from issuing county bonds. In pursuance of an election duly held, there being more than three-fifths of the votes cast in favor of the issuance of forty thousand dollars in county bonds, the appellees were about to negotiate said bonds to raise money for the building of a court house and jail in said county, when the appellant procured a restraining order to prevent the sale of said bonds. At the hearing for a perpetual injunction, the demurrer to the bill was sustained, and final judgment rendered against the appellant. From this judgment the plaintiff appeals to this court.

There were 792 votes cast at said election, while there were at the date of said election 2,000 duly qualified voters residing within Clarke county. The county was already indebted in the sum of fifty-five thousand dollars, and the assessed value of all real and personal property in the

county amounted to the sum of two million six hundred and fifty thousand dollars.

*D. P. Ballard*, and *J. W. Metcalf*, for appellant.

*A. L. Miller*, for appellees.

The opinion of the court was delivered by

STILES, J.—The matter at issue in this case was the same as that in *Metcalfe v. Seattle*, *ante*, p. 297, there being but one question to be passed upon, however, viz.: That whether the majority required to authorize the officials of a county to issue bonds to build a court-house must be three-fifths of all the voters of the county, or three-fifths of those voting. The action of the court below was the same as that of the superior court of King county, and the judgment here must be the same as in *Metcalfe v. Seattle*, for the reasons fully given in that case.

Judgment affirmed, with costs to appellee.

ANDERS, C. J., and SCOTT, DUNBAR and HOYT, JJ., concur.

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[No. 79. Decided August 8, 1890.]

## B. C. VAN HOUTEN v. E. A. ROUTHE, G. B. DENNIS, J. B. SARGEANT, THEODORE REED AND E. H. BARTLETT.

CONSTITUTIONAL LAW — TITLE OF ACTS.

The act, approved March 28, 1890 (Laws of Wash. 1889-90, p. 51), amending § 1 of "An act allowing school districts to borrow money, and issue bonds, for the building and furnishing of school-houses; to permit the funding of school district bonds heretofore or hereafter to be issued, legalizing the same, and declaring an emergency," provides for extending the issuing of bonds by any school district in the state, regardless of population, to five per cent. of its taxable property, which, in case of incorporated cities, shall be taken from the last assessment for city purposes. *Held*, That the title embraced but one subject, and such provisions were within the title, and valid, though the remainder of the act might be unconstitutional.

*Appeal from Superior Court, Spokane County.*

The facts are stated in the opinion.

*W. C. Jones*, for appellant.

*H. E. Houghton*, for appellees.

The opinion of the court was delivered by

SCOTT, J. — Plaintiff brought this action to enjoin the defendants, who were directors of school district 81, comprising the city of Spokane Falls, from negotiating certain school district bonds, amounting to $250,000, which had been authorized by a vote of the district. The amount exceeds two and one-half per cent. of the taxable property therein. The defendants demurred generally to the complaint. The court sustained the demurrer, and the plaintiff appealed to this court.

The only question in the case is, as to the validity of an act, approved March 28, 1890, purporting to amend § 1 of an act, approved March 19, 1890, relating to the issuance of such bonds, both of said acts having been passed by the last legislative assembly. See Session Laws 1889–90, pp. 45 and 51. The act first approved limited the issuing of bonds by school districts containing a population of 10,000 or more to an amount not exceeding two and one-half per cent. of the taxable property therein. The population of this district exceeds 10,000. The latter act, if valid, extends the limit to five per cent. in all cases. It is urged by appellant that it is void in consequence of its containing more than one subject, and that the matters contained in the act are not sufficiently expressed in the title. See § 19, art. 2, of the state constitution. We are of the opinion that the latter act is valid, at least, in so far as it extends the limit to five per cent. of the taxable property, regardless of population; and in incorporated cities making the last preceding assessment for city purposes the basis for

determining the maximum amount. The title thereto embraces but one subject, and the act so far being clearly within the title, and relating to but one subject, it should be sustained in any event. See Cooley, Const. Lim. (5th ed.), p. 178, § 5. As to the validity of the remainder of the act, we are not called upon to decide here. It being admitted that the amount so voted for is within the five per cent. limit, the bonds were accordingly authorized. The judgment of the court below is affirmed.

ANDERS, C. J., and HOYT, DUNBAR and STILES, JJ., concur.

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[No. 87. Decided September 17, 1890.]

## H. L. YESLER *et al.* v. CITY OF SEATTLE *et al.*

MUNICIPAL CORPORATIONS — WATER WORKS AND SEWERS — BONDS — DATE OF ISSUE — ELECTIONS — ORDINANCES.

Although the charter of the city of Seattle (Laws Wash. 1886, p. 224) granting said city power to erect and maintain water-works, provided that no such works should be erected "until a majority of the voters of the city, at a general election of the city, shall vote upon the same," which clause is unrepealed by any later law, yet by the acts of February 26, and March 26, 1890 (Laws 1889-90, pp. 225, 520), authorizing cities to extend their indebtedness and construct, purchase and maintain water-works with the proceeds of long-time bonds, a new power is conferred upon said city, and the question of issuing bonds for such improvements may be submitted at a special election held for that purpose.

The act of March 26, 1890, entitled "An act authorizing cities and towns to construct internal improvements, and to issue bonds therefor, and declaring an emergency," under which the legislature empowers cities to construct and maintain water, light and sewerage systems, is not invalid on the ground that the subject of the act is not expressed in the title, as required by art. 2, § 19 of the constitution.

The act of March 26, 1890, authorizing the city council or board of trustees of any city or town to provide by ordinance for submitting to vote of the people plans for "either or both such water-works,

or system of sewerage, or plant or works for lighting purposes," is a general law applicable to all incorporated cities and towns, and clearly authorizes ordinances on this subject to be either single, double or triple; and accordingly suspends the restrictive clause in § 78 of the charter of the city of Seattle, that "no ordinance shall contain more than one subject, which shall be clearly expressed in the title."

The record of an ordinance was made by the city clerk from a correctly printed copy, the original having been lost. Subsequently the city attorney undertook to prepare a substitute for the original, but by mistake he worded it differently in some particulars. This substituted copy was signed by the mayor and clerk, and placed on file in the latter's office. Afterwards an assistant clerk, without authority from any one, erased and interlined the recorded ordinance to make it conform to the substituted copy. *Held*, That showing these facts was not the impeachment of a record, and that the ordinance, as originally recorded by the clerk, before the erasures and interlineations were made, was the true ordinance.

Where an ordinance provides that "if three-fifths of the voters of said city of Seattle shall at said election vote in favor of authorizing," etc., it does not require, in order to carry the proposition, that three-fifths of all those who may be entitled to a vote, should vote in favor thereof, but only a three-fifths majority of those actually voting.

Where the statute provided that, if the voters of a city duly assented thereto, the city might issue bonds to cover the cost of water, sewer and light systems, the bonds to run for not more than twenty years, with interest at not less than six per cent. per annum, principal and interest to be payable at such place as may be designated, and an ordinance of the city of Seattle submitting such a proposition to the voters thereof, provided that the bonds should be sold at par, bear five per cent. interest, and be payable at the office of the city treasurer, and the proposition was assented to by the voters of the said city in that form, the city council of said city may subsequently, in the absence of fraud, without again submitting the proposition to the people, provide by another ordinance that the bonds shall be sold at a discount, bear a greater rate of interest, provided the same does not exceed six per cent., and be made payable at a different place from that fixed in the original ordinance.

Where the statute requires that such bonds "shall bear the date of their issue," it is not a violation thereof for the bonds to be prepared and dated July 1st, 1890, and not negotiated until several months thereafter.

Where a statute required bonds to be signed by the mayor of the city, the person holding that office when the occasion arrived for

executing them would be the proper party to affix the official signature of the mayor, though the bonds bore date prior to his entry into office.

*Appeal from Superior Court, King County.*

The facts are fully stated in the opinion.

*Preston, Albertson & Donworth,* for appellants.

*Thomas R. Shepard,* for appellees.

The opinion of the court was delivered by

STILES, J.—In this appeal the matter of the issuance of the same bonds which were the subject-matter of the recent case of *Metcalf v. Seattle, ante,* p. 297, was again in controversy, the appellants seeking to enjoin the sale of the bonds to purchasers approved by the city council of the city of Seattle, upon the several grounds which will be stated and discussed in order.

1. Appellants maintain that, inasmuch as § 12 of the act incorporating the city of Seattle (Acts of 1886, p. 244) grants power to that city to erect and maintain water-works, provided that no such works should be erected "until a majority of the voters of the city at a general election of the city shall vote upon the same," the special election of June 4, 1890, was an invalid election, their contention being that, since the act of February 26, 1890, contains no authority to erect water-works, and the act of March 26, 1890, has no clause repealing conflicting laws, this requirement of submission at a general election still stands as the law of that corporation. But even were we to hold that there had not been a repeal of the quoted part of § 12 of the act of 1886, by reason of the rule that special acts of this class are not to be taken as repealed by general acts unless the intent to repeal is plainly apparent, it is equally apparent that the act of 1886 did not provide for the erection of water-works and the construction of sewers with the proceeds of long-time bonds, which the acts

of February 26, and March 26, 1890, do. Thus a new and distinct power is conferred by a method, the main and most beneficial feature of which is the relief of the present generation of taxpayers from excessive assessments, to pay cash for such public improvements; and whenever that feature is sought to be availed of, as it was in this instance, all the safeguards accompanying it must be adopted. One of these is the special election, and there was, therefore, no error in the proceedings on that score.

2. It is objected that the act of March 26th is invalid because the subject is not expressed in the title. Constitution, art. 2, § 19. The title is: "An act authorizing cities and towns to construct *internal improvements*, and to issue bonds therefor, and declaring an emergency," and the criticism is, that although there is a subject expressed, it is not the subject treated of in the body of the act, since water-works, sewers and artificial light plants are not "internal improvements" within the ordinary meaning of the phrase. Perhaps this is an original use of the term "internal improvements." It has, certainly, not been commonly applied to the improvements supposed to be made by cities for the benefit of their inhabitants, but has been employed more grandiloquently in reference to the improvement of highways and channels of travel and commerce, in the statutes of congress and the state legislatures. And yet, when under it our legislature particularizes water-works, sewers and light plants, which certainly are, in fact, internal improvements, relatively to the cities of the state, we do not deem the verbal criticism of sufficient weight to set aside the act. The cases cited, *Union Pacific Railroad v. Colfax Co.*, 4 Neb. 450, and *Dawson Co. v. McNamar*, 10 Neb. 276, are not in point, since these were instances of the issuance of bonds for purposes not particularized in the statute, which was a general one authorizing counties to issue bonds in aid of railroad and other internal improvements.

3. The act of 1886, § 78, contains the usual restriction that "no ordinance shall contain more than one subject which shall be clearly expressed in its title;" wherefore it is asserted that ordinance No. 1343 was void because both in its title and in the subject treated of it was double, in that it provided for both water-works and sewers. And, in so far as the double subject is concerned, our judgment is with the appellants; for both in the constitution and the statute water-works and sewers are distinct things; and it would probably be better that in all cases, propositions for either of these improvements, as well as for lighting systems, should be submitted either at separate elections, or separately at the same election, so that the voters might be free to adopt one system without being forced thereby to adopt the other, or to reject one without losing the other. But the restrictive clause of § 78 of the act of 1886 has no effect upon that portion of the act of March 26, 1890, which provides for submitting propositions to the voters of cities, since the latter act, by its own terms, contained in § 2, suspends the restriction. Section 2 says: "Whenever the city council, or board of trustees, of any such city or town shall deem it advisable that the city or town of which they are such officers shall exercise the authority hereby conferred upon them in relation to *either or both* such water-works, or system of sewerage, or plant or works for lighting purposes, the corporation shall provide therefor by ordinance," etc. This is a general law applicable to all incorporated cities and towns, and is to be executed in the same manner wherever it is made use of. It has become a part of the charter of each city and town; and on this subject clearly authorizes ordinances to be either single, double or triple.

4. The next proposition in the case embraces questions of mixed law and fact. The complaint alleged that the ordinance had never been published as required by § 79 of the charter (act of 1886); but it was admitted at the hearing that a publication had been made, excepting that, whereas

§ 6 of the ordinance adopted by the council and approved by the mayor, as appeared from the clerk's official record, had provided that the proposed works should be entered upon, "if three-fifths of the *qualified* voters of said city of Seattle *voting* at said election vote in favor of authorizing" the same; on the other hand, the attempted publication had represented § 6 as conditioned that "if three-fifths of the voters of said city of Seattle *shall* at said election vote in favor of authorizing" the same.

The answer alleged, and the court below, over appellant's objection, permitted the appellee to show that the ordinance was passed and approved in the words of § 6, as admitted to have been published, but that, through haste in procuring publication, the city clerk had permitted the printer to take the original sheets of the ordinance to be used as copy for the newspaper type-setters, before the ordinance had been copied into the record book; that the printer had separated the sheets, perhaps cut them up, and ultimately lost them; that the clerk had preserved one of the newspaper copies, as officially published, and from that made his copy in the ordinance record book; that some time after this, through the frequency of calls for the original ordinance by third persons, the attention of the mayor and city attorney was drawn to the fact that it had been lost, and the city attorney undertook to make a substitute original copy, which was to be signed by the mayor and clerk, dated and filed as of the date of the original, and to be to all appearances, the original itself; that the city attorney mistook a prepared draft for an ordinance which he had in his office, for a verbatim copy of the one adopted, and prepared his substitute copy from that, instead of from a printed copy; that this substitute, containing the variations noted, was signed by the mayor and clerk, and dated and filed as proposed, and was for some time treated as the true original; and that an assistant in the office of the clerk, after the substitute copy had been deposited in the files of the clerk's office, noticed

the discrepancy between it and the recorded ordinance, and without authority or instruction from any one, interlined in the record the word "qualified," and erased the word "shall" and interlined the word "voting" in its place. The appellant's objection to proof of these facts was on the ground that the record of the ordinance could not be collaterally impeached. Dill. Mun. Corp., §§ 297–299. But we hold that this was not a case of the impeachment of a record, but merely to determine what was the record. The substitute copy made by the city attorney was certainly not a record; and no more were the interlineations and the erasure made by the unauthorized assistant clerk a part of a record. The testimony went to show these facts, and to establish what was the true record, viz.: the ordinance as copied into the record book by the clerk, from the printed copy, before the erasure and interlineations were made; and this, in our judgment, was entirely competent. This leaves the ordinance reading: "If three-fifths of the voters of said city of Seattle shall at said election vote in favor of authorizing," etc., which, it will be observed, is not the language of it as presented in *Metcalfe v. Seattle*. Appellants, therefore, confidently claim that, since it is admitted that there were over four thousand persons in Seattle entitled to vote on the 4th day of June, 1890, and less than eight hundred did, in fact, vote, the authority to bond the city for water works and sewers was not granted. But, under our construction of the word "voter" in *Metcalfe v. Seattle*, and the authorities there cited, we see no difference whatever in meaning, between "if three-fifths of the voters shall vote," and "if three-fifths of the qualified voters voting vote." The word "qualified" adds nothing. Every voter is a "qualified" voter. And if a voter is one who votes, then, at an election, he is a "voter voting." It was competent for the city of Seattle to be more particular than the statute and provide that, before the proposition for public water works and sewers pass, it should be authorized by the affirmative

vote of a majority of all the persons entitled to vote; but unless it has done so in clear and indisputable language it should be taken to have accepted the act of March 26th, as the legislature enacted it; and, in view of the eagerness with which the legislative body of the city have pursued the matter, we deem it not likely that it would seek to make the way to the issuance of these bonds more difficult than was necessary under the law.

5. The ordinance, in addition to the systems of water works and sewers set forth, declared the probable cost, and proposed the issue of bonds for $955,000. This was required by § 2 of the act of March 26th. But the ordinance went much further, and enacted many other things not necessary to it as a complete ordinance for submission. The place of payment was fixed at the office of the city treasurer; the rate of interest was made five per cent.; and it was ordered that the bonds be disposed of at not less than par. Now, it is contended by appellants that every feature of the ordinance, by its submission to the voters, became a condition precedent to the lawful issue of the bonds, under the authority conferred by the result of the election. Were this point held good, it will be seen that the whole scheme would be very effectually blocked, for the present at least. It appears that in accordance with the authority contained in the ordinance, the mayor and the finance committee of the council, as soon as the election of June 4th had ratified the action of the council, prepared to have the bonds lithographed, and advertised them for sale as bonds of date July 1, 1890, running twenty years, at five per cent., interest on the first coupon from July 1st to delivery to be deducted. The time set for receiving bids was July 8, 1890; but neither at that time nor at any subsequent date could any person be found to take the bonds on the terms offered, the rate of interest being lower than the market commanded for that class of securities. On the 19th of August, however, one N. W. Halsey, who was in the employ of the firm of N. W.

Harris & Co., offered, on behalf of Harris & Co., to purchase the whole issue of bonds, providing that terms could be made so that, in effect, the rate of interest could be raised to about five and one-third per cent. The experience of the mayor and finance committee had convinced them and the council that a five per cent. bond could not be negotiated at par, and they were willing to accept the offer of Harris & Co. But both parties to the transaction were fearful that the provisions of the ordinance were binding upon all action taken in furtherance of the issue of these bonds, and they therefore resorted to a series of clumsy fictions to avoid the effect of the requirements as to the rate of interest and selling at par, the excuse on the part of the city officials being the pressing need of the people for a larger supply of water and better sewerage, the delay and expense of another election, and the fact that the credit of the city had already been pledged to a large amount for water machinery on the faith that the proceeds of these bonds would be immediately available. Harris & Co. offered to take the entire issue of $955,000, paying $350,000 cash; $50,000 October 1st, $50,000 November 1st, and $505,000 after January 1, 1891, in installments of not less than $10,000 nor more than $50,000, as the funds should be actually needed by the city, in paying for water and sewerage work, on estimates to be furnished by the engineers in charge, with fifteen days' notice of a call for each installment; all interest coupons from the date of the bonds, July 1, 1890, to remain attached to the bonds uncanceled. They further required that a commission of two per cent. of $955,000 be forthwith paid to Halsey, in a warrant on the general fund of the city, and that a warrant of the city of Seattle for $19,100 be accepted as part of the first payment of $350,000 to be made by them. The place of payment was to be changed to some national bank in the city of New York.

We agree with the appellants that all of this maneuvering was simply a scheme to give the bonds to Harris & Co.

at a discount, and the appellee substantially concedes such to be the fact. In the first place the commission to Halsey, who was the authorized agent of Harris & Co., was a rebate to the purchasers of $19,100 from the face of the first $350,000; and secondly, the retention of all coupons was an advance payment of interest to the extent of some $43,000, for a period during which Harris & Co. would still retain the purchase money and have the full use of it; so that the effect would be that the city of Seattle, in twenty years, would pay about $62,000 more for the use of the money than it would had the bonds been sold in strict accord with the terms of the ordinance. This, doubtless, was the moving cause of the appellants' suit, and is the most strongly urged of all their grounds of complaint. The council, by ordinance, to the formality of which no objection is raised, accepted the proposition of Harris & Co., caused a warrant for $19,100 to be drawn on the general fund in favor of Halsey (which was immediately endorsed to Harris & Co,, and by them, through Halsey, turned in on their first payment), and were proceeding to the execution of the bonds when this action delayed all further steps. Unless we hold that this change of plan by the council was not expressly or implicitly forbidden by the law governing their action, the injunction asked should be granted. We observe, at the outset of this part of the case, that no fraud whatever is alleged against the council, or any of its members; nor was there any attempt to avoid the effect of any part of the statute, unless it be what is claimed to be its unwritten part, binding the council to every provision of ordinance No. 1343.

Municipal corporations are almost invariably invested with the power to borrow money. Very eminent jurists have maintained that this power was inherent with the idea of a corporation, and needed not to be granted specially. But the rule is settled otherwise, and now, aside from constitutional and statutory limitations, courts demand some

charter provisions on this subject before they will recognize indebtedness of this kind. The power to become indebted being made apparent, however, courts are liberal in their construction of statutes and constitutional provisions couched in general language, so long as the purposes for which indebtedness is created are clearly seen to be municipal in their character. The standard for a county is, however, measured by the objects of its incorporation; that of a school district by an entirely different set of objects; and that of a city or town by the peculiar and infinitely varied needs of their inhabitants, circumscribed by reasonable bounds. Usually the wisdom of incurring debt by these corporations is delegated to the legislative authority of each, though there have been exceptions, in which corporations have been required by the legislature to issue bonds for purposes foreign to their organization, and there is a numerous class of instances in which it is common to submit propositions to the electors of the corporation, and thus delegate to the body of the people the power to say whether a debt shall be incurred or not. This latter class, however, is generally limited to cases where the object to be promoted is not within the purview of legitimate corporate purposes, though it is of a *quasi* public nature. Our constitution, in the most positive terms, has cut off from every municipal corporation every subject of expense and indebtedness excepting those which are within the legitimate intendment of its organization; and so far as cities are concerned, it has gone to the extreme of restriction, by fixing the one and one-half per cent. limit, beyond which the legislative bodies of those corporations cannot incur valid indebtedness without the assent of their constituents. The act of February 26, 1890, undertakes to confer upon existing cities the power to become indebted up to the limit prescribed by § 6, art. 8, of the constitution; and, upon examination, we find that until the five per cent. limit is reached the council have delegated to them the whole matter of how, and for

how long, and at what rate of interest loans shall be negotiated, and all of the details; and this is with reason, since these are business corporations, acting, as a general rule, only through their legislative head, and it is not practicable to submit details to the body of voting inhabitants. True, when one and one-half per cent. has been reached, the people must be consulted as to further borrowing of money or contracting indebtedness, but the method and other details are entirely left to the council, unless water-works, sewers or light plants are contemplated, when the act of March 26th makes some modifications.

Now the power is thus delegated to the municipal legislature, with the assent given, to proceed and "borrow money" or "contract indebtedness," it being the sole judge of the proper method, whether by bonds, or warrants, or open account, confidence being reposed in the wisdom and honor of its members that they will act for the best interest of the community. No citizen or taxpayer can question, in the courts, the uncorrupted action of his city council in these particulars, as no stockholder can dispute the doings of the board of directors of a private corporation of which he holds stock, in the absence of fraud. Nor does the law permit the council of a city to delegate to the popular vote the determination of any matter before it, unless the right to so delegate it has been expressly conferred or enjoined by statute. Ministerial agents, with certain limited discretion, it may appoint, but that is all. Now turning to the act of March 26th, we find that the legislature saw fit to enlarge somewhat on the requirement that the assent of voters should be secured to the proposition to borrow money or become indebted for water-works, sewers or light plants, and prescribed that before the vote should be taken the plan of operation should be adopted and the probable cost estimated and certified to by the council, in the form of an ordinance. Here is a mandatory delegation to the popular voice by the legislature itself. It is not in

the discretion of the council to submit the question to vote or not; the council is merely the medium by which the wish of the people in the matter is recorded. Therefore, we conclude that the council could lawfully submit to vote only those matters directed to be submitted by its superior authority, the legislature.

Appellants urge that to be consistent with our decision in *Metcalfe v. Seattle* we must hold with them, since in that case we said, in reference to the act of March 26th: "The intention of the act was, that the people who would have to furnish the means should be fully apprised of the whole scheme, and that there should be a definite, well considered and practicable scheme presented for their rejection or adoption," they maintaining that the "scheme" submitted was to borrow $955,000, net, running at five per cent. interest. But in using the word "scheme" in the former opinion we had no reference to any matter connected with the bonds themselves. Nothing of the kind was involved in the case, and our use of the term was as a synonym for the phrase, "system or plan" employed in § 2 of the act, and related wholly to the physical features of the proposition, not to the financial means of accomplishing them. Touching that point, the people have a guaranty in the further provisions of the statute that bonds must be payable in not more than twenty years, and bear interest not exceeding six per cent.

It follows that we hold the rate per cent., the sale at par, and the place of payment not to have been necessary to the ordinance; but the question remains whether having been placed there, they must remain as the unchangeable rule of the council's action. We are cited to a number of cases which are presented as sustaining the affirmative. *State of Illinois v. Delafield*, 8 Paige, 527, held that a sale of bonds, nominally at par, but allowing accrued interest to the purchaser, was not really a sale at par, where the statute expressly required the par value to be realized. We

have held that the plan here proposed would not be a sale at par. *Cowdrey v. Caneadea*, 16 Fed. Rep. 532, fairly represents the other cases cited, all of which, without exception, are cases growing out of the issue of municipal bonds in aid of railroad or other *quasi* public corporations; and the judge in that case clearly states the ground of difference in the treatment of bonds of that class, and those issued for purely municipal purposes. He says: "The authority of a majority of the tax-payers of a town to incumber the property of a minority against their will, in aid of a railroad or other corporation, receives no countenance from the principles of the common law. Every step, therefore, required by the statute must be in strict conformity therewith." In *Lawson v. Schnellen*, 33 Wis. 288, the statute required the written proposition of the railroad company to be submitted to a vote of the people, and the court held that if the proposition was assented to it became a contract which could not be altered by county commissioners. *Douglas Co. v. Walbridge*, 38 Wis. 179, was of the same character. *Jackson Co. v. Brush*, 77 Ill. 59, held that railroad aid bonds should not be delivered until the conditions precedent, which had been made a part of the contract between the county and the company, had been fully complied with.

The remarks of High on Injunctions, vol. 2, § 1289, and of Dillon on Municipal Corporations, § 91, and Dillon on Municipal Bonds, §§ 6, *et seq.*, are all directed to this class of corporation aid bonds, the latter volume being entirely devoted to them; and the gist of these cases and authorities so far as they have any bearing here, is, that if a railroad or other company is aided by such bonds, the propositions submitted to the vote of the people, whether originating in the statute or with the municipal agents, or from the corporation, became a part of the contract between the two corporations, and follow the bonds as the law of their issuance. But here we have no element of con-

tract whatever, and the authority of a majority of the voters to encumber the property of the minority, even against their will, in furtherance of municipal objects and improvements, receives the broadest countenance from the principles of the common law. There is no reason, which commends itself to our judgment, for holding that those parts of ordinance 1343 referring to the details of the negotiation should be inviolate, and not subject to amendment in the manner adopted when it was found that no one would take five per cent. bonds at par. We still have to consider the alleged post-dating of the bonds; but, aside from that, it is conceded that the motive of those engaged in the transaction was fair, and the actual result to the city of Seattle was a rate of interest higher by about one-third of one per cent. per annum, and two-thirds of one per cent. less than the rate recognized by the statute. It would certainly have been far better had the council, seeing their dilemma, met the fact that five per cent. bonds could not be marketed at par with a new ordinance authorizing their negotiation at the best rate obtainable under six per cent. They would have been subjected to far less criticism, and the record here would have been much less involved.

6. The statute requires that such bonds shall "bear the date of their issue," and it has become a question in this case what the date of issue is, since the bonds were prepared with the date July 1, 1890, and the contract with Harris & Co. requires that the coupons remain intact from that date, although none of the bonds have been delivered, and some of them will not be delivered for many months. In financial parlance the term "issue" seems to have two phases of meaning. "Date of issue," when applied to notes, bonds, etc., of a series, usually means the arbitrary date fixed as the beginning of the term for which they run, without reference to the precise time when convenience or the state of the market may permit of their sale or delivery,

and we see no reason why the act of March 26, 1890, should not have that interpretation. When the bonds are delivered to the purchaser, they will be "issued" to him, which is the other meaning of the term. Usually the question of interest from the date of issue to the time of sale of bonds is adjusted by payment of the face and interest by the purchaser, or the removal of coupons. But here the contract stipulates that the coupons shall remain uncanceled; it was a fair contract, and there can be no wrong done if the term of some of the bonds in the hands of purchasers is something less than twenty years. No officer has sought to evade any statute affecting these bonds which came into operation since the date of issue, as was the case in *Anthony v. County of Jasper*, 101 U. S. 693; nor did a person, not an officer of the corporation at the time of signing, affix his name to the bonds, as an officer, to avoid the refusal of the acting officer to sign, as occurred in *Coler v. Cleburne*, 131 U. S. 162. Under the circumstances, the date July 1st was not an unreasonable date, and complied with the law in that respect.

7. The act of March 26th, among other formalities, required the bonds to be signed by the mayor of the city; but pending the disposal of bonds a municipal election was held July 14th, at which Harry White was elected mayor. As he was not the mayor July 1st, appellants maintain that he cannot consistently sign them under that date of issue. But if the bonds are valid, although not executed and delivered at the precise date of issue, it follows that the officer in office when the occasion arrived for executing them would be the proper party to affix the official signature of the mayor. In *Weyauwega v. Ayling*, 99 U. S. 112, the bonds of a town bore date June 1st, and were signed by the chairman of the board of supervisors, and by the town clerk; but the person signing as clerk did not sign until July 13th, at which date he had ceased to be town clerk. Still the supreme court held the bonds good, presuming that

the bonds were delivered with the assent of the then clerk; certainly a far more extreme case than that under consideration. *Coler v. Cleburne*, 131 U. S. 162, seems to be, in some of its features at least, on all fours with this case. The city of Cleburne, Texas, in September, 1883, contracted to pay city bonds for the erection of water-works, the bonds to bear date January 1, 1884. The works were not ready for acceptance until July 3, 1884, when the person who had been the mayor on January 1st, had gone out of office, and his successor was acting. The statute of Texas required such bonds to be signed by the mayor; but the city council argued that the mayor at the date of the bonds should sign them, even though he had gone out of office, and they passed a resolution requesting him to sign them, with which he complied. An innocent holder had brought suit upon unpaid coupons of these bonds; but the supreme court held, without dissent, that no person but the mayor of the city could lawfully sign the bonds, although thus formally requested to do so by the council, and that they were therefore void. The court, however, nowhere hints that, because the term of the mayor in office January 1st, had expired in April, no bonds bearing date January 1st, could be issued by the city of Cleburne, and we have found no authority sustaining such a proposition.

Upon all this branch of the case, we can frame no better reason for our judgment for the appellee than is contained in § 6 of the act of March 26th, in the words, "such bonds shall be sold in such manner as the corporate authorities shall deem for the best interest of the city or town."

The judgment of the superior court is affirmed, with costs to appellee.

HOYT, SCOTT and DUNBAR, JJ., concur.

ANDERS, C. J., not sitting.

# REPORTS OF CASES

DECIDED IN

# THE SUPREME COURT

OF THE

## STATE OF WASHINGTON,

AT THE

# OCTOBER TERM, 1890.

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[No. 39. Decided October 23, 1890.]

MARY E. COFFER *alias* MOLLIE ROSENCRANS v. THE TERRITORY OF WASHINGTON.

NUISANCE — HOUSE OF ILL-FAME — ABATEMENT.

The lessee of certain premises indicted for maintaining a nuisance thereon by keeping a house of ill-fame, pleaded guilty thereto, and an order was issued to the sheriff to abate the same. Before the sheriff attempted to execute the order, the lessee surrendered possession of the premises to the owner, the plaintiff in error herein. About five months after the order was issued, the sheriff placed a keeper in charge of the premises, and after keeping him there for some time at an alleged expense of five dollars per day, the sheriff made an affidavit alleging that on investigation he had discovered that the nuisance was being continued by plaintiff in error, and that he had been obliged to place a keeper in charge, and asking that an order be issued against her to show cause why an execution should not issue against her property to pay the costs and charges so incurred. The plaintiff in error demurred to said affidavit, the demurrer was overruled, and judgment given against her for said expenses. *Held*, That the keeping of a house of ill-fame on the premises by plaintiff in error was not a continuance of the nuisance for which her lessee had been indicted, and she could not be held responsible without a regular proceeding against her.

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*Error to District Court, Pierce County.*

The facts are fully stated in the opinion.

*Struve, Haines & McMicken,* for plaintiff in error.

*W. H. Snell,* Prosecuting Attorney, for The Territory.

The opinion of the court was delivered by

ANDERS, C. J. — This case is *sui generis*. It appears from the record that some time prior to October 10, 1888, the plaintiff in error being the owner of certain premises known as Number 1130 C street, in the city of Tacoma, in Pierce county, leased the same to one Nettie Parnell, who, on said date, was indicted for maintaining a nuisance on the premises by keeping a house of ill-fame. To this indictment the defendant, Nettie Parnell, pleaded guilty, and thereafter on the 19th day of October, 1888, an order was made by the court, directed to the sheriff of Pierce county, to abate said nuisance. The plaintiff in error was not made a party to the action. Whether she resided in Tacoma or elsewhere, at the time, is not shown by the record. Soon after the issuance of said order, Nettie Parnell vacated the premises and turned the same over to her lessor, the plaintiff in error, who went into possession and continued to reside therein up to the rendition of the judgment by the court below in this proceeding. It nowhere appears in the record, that the order to the sheriff of October 19, 1888, to abate the nuisance for the maintaining of which Nettie Parnell was indicted, was ever executed by the sheriff; but it does appear that on the 4th day of March, 1889, and long after the defendant had ceased to occupy or control the premises, he placed a keeper in the house without the consent and against the will of the owner thereof, the plaintiff in error, and so continued him there until the 23d day of April following, at an alleged expense of five dollars per day. Up to this time the plaintiff in error had been charged with no violation of law, in

any manner pointed out by our statutes. On the 7th day of May, 1889, however, the said sheriff filed with the clerk of the district court, holding terms at Tacoma, an affidavit setting forth the issuing of the order of October 19, 1888, above mentioned, for the abatement of the nuisance, and alleging that, on investigation he had discovered that the nuisance was being continued by the plaintiff in error, and in consequence thereof he had been obliged to place a keeper in charge of the premises during the period above specified, at an expense of five dollars per day, and that he would be obliged, on account of the continuance of such nuisance, to retain such keeper therein, and concluding with a prayer that an order be issued to the plaintiff in error to show cause why an execution should not issue against her property to satisfy the costs and charges so incurred. Upon motion of the prosecuting attorney, based upon this affidavit, the court made and entered an order citing her to appear on the 10th of May, 1889, and show cause why an execution should not issue against her property, as prayed for in the affidavit. On that day the defendant appeared and demurred to the affidavit. Her demurrer was overruled, and exception duly taken and allowed by the court. The hearing then proceeded by the examination of witneses, after which judgment was rendered against the defendant for the sum of $514.60, being the costs and expenses of abating said nuisance, and execution ordered thereon. From this judgment defendant appeals to this court, and assigns for error the making of the order to show cause; the overruling of the demurrer to the affidavit; the entering of judgment against the defendant, and ordering execution.

The only charge attempted to be made against the defendant in the court below was that contained in the affidavit of the sheriff, and that was manifestly insufficient in law to warrant the subsequent action of the court. The evident object of the affidavit was, not to charge the plaintiff in error with the commission of an offense against the

law, but to obtain an order from the court to enable the sheriff to collect from her the expenses of abating a nuisance carried on or maintained by a third party, and which, as we have before stated, was never abated at all by him. It is true, the house itself in which the nuisance had been maintained by Nettie Parnell, was taken charge of by the sheriff's deputy for a considerable length of time, and, as it seems, at no inconsiderable expense; but that was in no sense an execution of the order of the court. No such methods are sanctioned either by custom or the law. Under the circumstances of this case, this keeper had no more right to invade or take possession of the premises of the plaintiff in error than any other stranger. And in so doing he was a mere trespasser, whatever may have been her character or reputation.

If she was guilty of contriving or maintaining a public nuisance at the place indicated by the affidavit, or elsewhere, a formal complaint should have been made against her, before a committing magistrate, or the grand jury, charging her with the commission of the crime. She could then legally have been held to appear before the district court to answer the accusation. Had this been done, and had she been indicted and convicted of the offense charged, it would then have been properly in the discretion of the court before whom the action was tried to issue a warrant for the abatement of the nuisance, at the cost of the defendant. See Code, §§ 1248-9. Under no other circumstances would the court be authorized to issue such an order. Indeed, even after conviction, the court should not in all cases issue a warrant or order of abatement. The judgment should be adapted to the nature and circumstances of the case. Where the building or structure complained of is itself a nuisance, the court will, if necessary, order its removal or destruction. But where the use of the building constitutes a nuisance whose effects are merely immoral and intangible, such nuisance can only be abated by the administration of

such punishment as will be likely to cause the guilty party to desist. Wood, Nuis. (2d ed.), pp. 43–45. Under our statutes especially, the judgment of the court after conviction would almost certainly result in the abatement of a nuisance of a character growing out of the conduct of the defendant. Upon conviction, the judgment of the court should be, in effect, that the defendant pay a fine of ——— dollars and the costs of prosecution, and (when expedient or necessary) forthwith abate the nuisance at his own costs, and stand committed to the custody of the sheriff until the fine and costs be paid or secured, as provided by law. Code, §§ 1119, 1247–9; Wood, Nuis., p. 992–3. And should any defendant, ordered into custody of the sheriff, fail to pay or secure the payment of the fine and costs adjudged against him, before the final adjournment of the court, he may then be imprisoned in the county jail until such fine and costs are paid or secured, until he has been imprisoned one day for every three dollars of such fine and costs. Code, § 1125.

If the plaintiff in error had been indicted, tried, convicted and sentenced, according to law, it seems hardly probable that it would have become necessary, even if proper, to place her under the surveillance of a deputy sheriff, or any other person, in order to abate the nuisance complained of. The fundamental error committed by the learned judge in this proceeding consisted in his assuming that the conduct of the plaintiff in error at Number 1130 C street, Tacoma, being of like character with that of Nettie Parnell at the same place, amounted to the continuance of the nuisance for the maintaining of which the latter was indicted. The acts and conduct of Mary E. Coffer were not the acts or conduct of Nettie Parnell, though they may have been of like character. Nor was the one in any manner whatever responsible for the acts of the other. The former may, in fact, have been guilty of a violation of the law concerning nuisances, but that could only be legally determined by the verdict of a jury, a jury not having been waived, or on her

plea of guilty. The fact is, she had a hearing before the court, but no formal and legal trial. She appeared by counsel, who demurred and objected to the whole proceeding. The demurrer should have been sustained, and no judgment should have been entered against the plaintiff in error.

For the foregoing reasons, the judgment of the court below must be reversed, and the cause dismissd with costs, and it is so ordered.

HOYT, SCOTT, DUNBAR and STILES, JJ., concur.

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[No. 55. Decided October 27, 1890.]

## THE SKAGIT RAILWAY AND LUMBER COMPANY v. H. D. COLE.

APPEALS — PRACTICE — RULES OF COURT.

As the constitution of this state provides that the supreme court shall always be open for the transaction of business, except on non-judicial days, there are no terms of the supreme court in the sense in which they were formerly held, but only a division of its sittings into sessions. Hence, § 460, Code Wash. T., requiring causes to be filed in this court fifteen days before the first day of the next succeeding term, no longer applies in such cases.

There being no statute prescribing the time within which the transcript on appeal must be filed in the supreme court, reference must be had to the rules of this court to determine the time within which the transcript should be prepared and filed.

If sufficient cause is shown for the failure of appellant to file his briefs, as required by the rules of this court, the court will deny a motion to affirm the judgment, and will grant appellant an extension of time within which to file briefs.

*Appeal from Superior Court, Skagit County.*

Motion by appellee to affirm the judgment of the superior court. The facts sufficiently appear in the opinion.

*J. C. Haines*, for appellant.

*Ronald & Piles*, for appellee.

The opinion of the court was delivered by

SCOTT, J.—Appellee moves to affirm the judgment for the following reasons: That the appellant failed to cause a transcript to be prepared; and also failed to file its briefs within the required time; and he alleges that the same was due to the negligence of appellant. Judgment was rendered in the court below December 19, 1889, and on the same day appellant gave notice of appeal to this court under the act passed in 1883.

Although the motion purports to be based solely upon the rules of this court, counsel for appellee, in his argument, cites us to § 460 of the code, which required causes te be filed fifteen days before the first day of the next succeeding term, etc., and also to the case of *Haas v. Gaddis*, *ante*, p. 89, decided by us regarding the same. Since that case was appealed, our constitution has been adopted, which provides that the supreme court shall always be open for the transaction of business except on non-judicial days. Consequently there are no terms of the supreme court, in the sense in which they were formerly held, but only a division of our sittings into sessions to facilitate the orderly arrangement and dispatch of business for the convenience of all concerned, and the authority cited no longer applies. This being so, we can look only to our rules for guidance in this matter.

It appears by the record that the statement of facts was settled March 12, 1890, and the cause was filed in this court on May 16th, following. Prior thereto, on May 9th, appellee filed his motion aforesaid. Rules 6 and 9 of this court, which went into effect March 1st last, are the only ones bearing upon this subject. The motion was not called up for hearing by either party until the present ses-

sion, and now appellee, as an additional reason for granting it, calls our attention to the fact that appellant has not as yet filed a brief nor made any application to be allowed to file one until this hearing. We are all of the opinion that the motion must be determined by the *status* of the case at the time the motion was filed, and, as a matter of practice, we think appellant could well wait the hearing, and make its application at such time for permission to file its briefs, based upon such a showing by way of excuse for the failure to file within time as it could make. The statute (Session Laws 1889–90, p. 323, § 12) authorizes this court to make such rules as shall be deemed most conducive to the administration of justice, except as otherwise provided by law, and, as at said time there was no law relating to such proceedings in this particular, rules 6 and 9 were accordingly duly authorized, and, doubtless, could have been adopted in the absence of any express power conferred by the legislature. The same have not been abrogated by statute, or otherwise, but, if anything, have been confirmed by subsequent legislation. See the act to be found at page 333 of the same session laws, more particularly § 7. Section 2 of this act, however, makes some changes in the giving of the notice of appeal, and § 3 in effect requires the transcript to be certified when made; as to these matters rule 6 should now be read in the light of those sections, in cases appealed since June 26th last, the act having gone into effect June 27th. Rule 9 contains the following provision: "In cases appealed to this court since the last term of the supreme court of Washington Territory, and in which no transcripts or briefs have been filed, parties shall have the time fixed by rule 6 in which to cause transcripts to be prepared, and in which to serve and file briefs." This would extend the time for filing appellant's brief in this case thirty days from March 17th, the time when the rules went into effect. The appellee would have twenty days thereafter within which to file his briefs; and

the appellant ten days more to file a reply brief, making in all sixty days from March 17th. Rule 6 further provides that the transcript shall remain on file in the office of the clerk of the superior court until all the briefs are filed. No briefs having been filed in the superior court clerk's office, said clerk sent the record to this court, and it was filed here on the last day within which to file briefs. It was sent somewhat in advance of the time prescribed by rule 6, as in this instance it should have remained on file in the lower court for the full period of sixty days after March 17th. Where no bill of exceptions or statement of facts is settled, the time would be ten days less, and, except as to those cases where the clause in rule 9, quoted, applies, the time would run from the giving of the notice of appeal, or the settlement of a bill of exceptions or a statement of facts in those cases where the same are settled.

As to the time of the preparation of the transcript at which the motion was directed, no proof has been submitted to us. The only law in force at that time relating thereto is found in § 1 at page 59 of the Session Laws of 1883, which, in effect, requires the clerk to make the transcript within a reasonable time after the giving of the notice of appeal, and to cause the same to be filed with the clerk of the supreme court within the time allowed by law. As said in *Haas v. Gaddis*, § 460 of the code is the only place where the time of filing was prescribed, and that is not applicable to this case, owing to the fact that terms had previously been abolished. This court has at all times recognized the uncertainty of the state of the practice existing during the period of transition from a territorial to a state government, and, owing to the consequent embarrassment attorneys and litigants were placed under, has been as lenient in each particular case as the circumstances thereof would permit, and also had the same in view when the rules of practice referred to were adopted, notably the clause mentioned of rule 9. It is evidently within the pur-

view of the laws relating to the practice, and is also the opinion of the court, that technical omissions or imperfections in the procedure should not be allowed to defeat the ends of justice or prevent a hearing upon the merits, yet a due regard must be had to the requirements of the statutes and rules relating thereto, and flagrant or willful violations should not be allowed to go unnoticed. Under the 1883 act the statement could have been settled at any time within a reasonable time after judgment, upon giving ten days' notice thereof, said act only having required notice of such settlement to have been given within thirty days after the rendition of judgment, and not prescribing the time within which settlement should be made. Under the law as it now exists (see § 4, p. 334, Session Laws 1889–90), the time of settlement is fixed and limited, and can only be extended by the superior court or judge for sufficient reason, or by consent of parties. This law was not in force when this appeal was taken. No point is made in the motion, however, that the statement was not settled within a reasonable time, and we allude to these matters only to aid in arriving at an understanding of the practice. The rule requires the transcript to be prepared within thirty days after the giving of the notice of appeal, but does not require it to be filed in this court until after the time for filing briefs has expired.

We must presume in this case, in the absence of any showing to the contrary, that the transcript was prepared within the time allowed by rule 6, as aided by rule 9, in this instance, that is, within thirty days after March 17th. The clerk's certificate thereto, made May 13th, is not any evidence of the time when the transcript was actually prepared, as at that time he could make and append his certificate any time before the cause should be transmitted to this court, rule 6 only relating to the time of making the transcript, and no rule or statute then in force fixed the particular time when the certificate should be made. We

should be loth to affirm the judgment, however, or to dismiss an appeal for that reason, even if it did appear that the transcript was not prepared within the thirty days allowed therefor, where no delay was occasioned thereby, and certainly would not do so where a sufficient reason is shown for the failure. In fact, the only reason appearing to us for requiring the transcript to be prepared in advance of the settlement of the statement of facts, or the time allowed therefor, is to promote the dispatch of such business and for the convenience of the court below and the parties in settling the statement or bill of exceptions, and of the parties in preparing briefs. Section 3 of the act last cited requires the superior court clerk to make and certify the transcript as soon as may be in the due course of business, after the notice of appeal is given or filed, but does not otherwise fix the time, and the same sanction requires such clerk to cause the transcript to be filed with the clerk of the supreme court within the time provided by law. There is no statute prescribing the time within which the transcript must be filed in this court, and reference must still be had to rule 6 to determine the time within which the transcript should be prepared and subsequently filed here.

As to the failure of appellant to file a brief, and by way of excuse therefor, it makes a showing by its present attorney that the failure was due to a disagreement between appellant and one of its former attorneys, who seems to have had at that time personal supervision of the case, and to the refusal of said attorney to act in the premises, which, without giving the details thereof, we deem a sufficient showing. The motion to affirm is therefore denied.

To determine this matter we have been required to examine into a voluminous record, which, in direct violation of rule 4 of this court, is not indexed, and its pages are not designated by numbers. These omissions have seriously inconvenienced the court, and unless supplied will further

embarrass us and the appellee upon final hearing. As a condition precedent to any further proceedings in the cause by appellant, we shall require it to pay to appellee fifty dollars within twelve days from this time, after which payment and within said time appellant may serve and file its brief. Appellee shall have eight days thereafter within which to serve and file his brief, the appellant five days more to serve and file a reply brief. Appellant shall also within twenty-five days herefrom prepare a proper index to said record and cause its pages to be numbered.

ANDERS, C. J., and HOYT, and STILES JJ., concur.

DUNBAR, J., not sitting.

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[No. 75. Decided October 28, 1890.]

## JOHN LINBECK v. THE STATE OF WASHINGTON.

BURGLARY — INFORMATION — INSTRUCTIONS — CHARGING JURY IN DEFENDANT'S ABSENCE.

An information which charges that the defendant in the nighttime did unlawfully break and unlawfully enter the dwelling-house of another . . . "with an intent then and there to commit a misdemeanor therein," is sufficient as charging the crime of burglary, as, under § 828 (Code Wash. T.) the burden of showing with what intent he entered the house is cast upon the defendant. (ANDERS, C. J., dissents.)

Where the defendant in a prosecution for burglary was not sworn as a witness in his own behalf, it was error for the court not to instruct the jury that from such fact no inference of guilt should be drawn against the defendant; and the fact that the defendant remained silent does not amount to a waiver of such right.

It is error for the court in a criminal case, upon the request of the jury but in the absence of the defendant, to repeat to the jury certain of the instructions given and orally explain the meaning thereof, although the defendant's attorney was present and made no objection.

*Error to Superior Court, Chehalis County.*

The facts are fully stated in the opinion.

*Austin E. Griffiths*, for plaintiff in error.

*George J. Moody*, Prosecuting Attorney, for the State.

The opinion of the court was delivered by

HOYT, J.—This action was commenced in the superior court of Chehalis county by the filing of an information therein in substance as follows:

"George J. Moody, prosecuting attorney of the State of Washington for the district comprising the counties of Wahkiakum, Chehalis and Pacific, in said state, on oath accuse John Linbeck by this information of the crime of burglary, committed as follows, to wit: The said John Linbeck, on the 28th day of February, A. D. one thousand eight hundred and ninety, and within one year next preceding the date hereof, in the county of Chehalis, aforesaid, in the State of Washington, did then and there in the night time of said day, unlawfully break and unlawfully enter the dwelling house of one James Arland, there situated, with the intent then and there to commit a misdemeanor therein, contrary to the form of the statute in such case made and provided, and against the peace and dignity of the State of Washington."

Defendant pleaded thereto "not guilty." Trial was had, a verdict of guilty rendered, and judgment and sentence imposed. Whereupon defendant has brought the case to this court for review.

The first ground of reversal relied upon is, that the information does not state facts constituting a public offense. The contention in this regard being, that it is not only necessary to charge that the entering was with an intent to commit a misdemeanor, but that the particular misdemeanor which he intended to commit must be set out. This contention is borne out by numerous authorities which the diligence of counsel has gathered for the information of

this court; and we believe it to be the law in most of the states, and that it would clearly be the law here were it not for § 828 of our code. Said section is as follows: "Sec. 828. Every person who shall be guilty of any such unlawful entry or unlawful breaking and entry as described in the next preceding section, shall be deemed to have made such entry or breaking and entry with intent to commit a misdemeanor or a felony, unless such entry or breaking and entry shall be explained by testimony satisfactory to the jury trying the case to have been made for some purpose without criminal intent;" and by virtue of its provisions the prosecution is no longer compelled to prove with what intent the defendant enters, but on the contrary, the unlawful entering having been proved, the intent to commit a crime or misdemeanor is presumed; and this being so, we are unable to see how the accuracy required before such section was enacted can now aid the defendant. The burden of showing the intent with which he entered is, by said section, cast upon him, and he can show such an intent to have been an innocent one as well without the details as to his specific intent as with it. Aided by the section above quoted the information was sufficient.

The defendant was not sworn as a witness in his own behalf, and the court failed to instruct the jury as required by statute that from such fact no inference of guilt should be drawn. We think this was error. The statute in question makes it the duty of the court to give such instruction, irrespective of the action of the defendant in relation thereto, and while we do not now hold that the right to have this instruction given may not be waived by some express act of the defendant to that end, we do hold that the simple fact that he remained silent did not amount to such waiver.

The court, upon the request of the jury, and in the absence of the defendant (he being then confined in jail), repeated certain of the instructions which he had given to

the jury, and orally explained the meaning thereof, and we think this was error. And we do not think this error was cured by the fact that defendant's attorney was present and made no objection. Some other errors are founded upon the manner in which the instructions were given. But as these errors, if errors they were, are not likely to occur on a retrial of the cause, we do not think it necessary to discuss them.

The judgment and sentence of the lower court must be reversed and a new trial granted; and it will be so ordered.

SCOTT and STILES, JJ., concur.

DUNBAR, J., not sitting.

ANDERS, C. J.—I fully concur in the opinion of my associates that the judgment of the court below, in this case, should be reversed; but I am unable to concede that the information is sufficient to sustain the judgment pronounced against the defendant.

The substance of our statute defining burglary is as follows: "Every person who shall unlawfully enter in the night time, or shall unlawfully break or enter in the day time, any dwelling house . . . within the body of any county, with intent to commit a misdemeanor or a felony, shall be deemed guilty of burglary." And it will be observed that the only difference, so far as the interest of the party charged is concerned, between the definition of the crime as above set forth and that at common law, is, that the former makes it burglary to enter or break a house with intent to commit a misdemeanor as well as a felony. Now the word misdemeanor comprehends and includes, in this state, all crimes not punishable by imprisonment in the penitentiary. It specifies no particular crime, but a class of crimes. And to charge one with having intended to commit a misdemeanor is simply to charge him with having intended some one of the many offenses included in the term, without specifying which, and without

stating any facts from which any particular intent can even be inferred. At common law no indictment for burglary was sufficient which failed to state the facts necessary to show the particular felony intended to be committed, and the same rule should obtain under our statute. The defendant in this case had a right to be informed of the very nature and cause of the accusation against him, and not to be left wholly in the dark as to the particular facts he would be called upon to meet at the trial.

And it seems to me that this information does not state any fact whatever, as to his intent, but only a conclusion of law. Under our statute, which has gone, perhaps, as far as any in eliminating and discarding the useless forms and technicalities found in common law indictments, the indictment or information must still be direct and certain as to the particular facts and circumstances constituting the crime charged; and these facts and circumstances must be clearly and distinctly set forth in ordinary and concise language, so that a person of ordinary understanding may know what is intended. Tested by this rule, this information is radically deficient. Nor am I able to understand how § 828 of the code can, in any way, supply the want of allegations in the information which would otherwise be necessary. It only purports to change or modify the rules of evidence, and not those of pleading. But in that respect it certainly goes to the very verge of legislative power, if not beyond it. It not only overrides the presumption of innocence, which has hitherto been supposed to accompany the defendant through every stage of the trial, but it may also, under certain circumstances, completely nullify that provision of the statute which requires the trial judge to charge the jury not to draw any inference of guilt from the fact that the defendant may have failed or refused to testify in his own behalf. The court below neglected to so charge the jury, and that was one of the grounds on which the judgment was reversed. Of what avail could such a charge

have been to the defendant, if he was "deemed" guilty because he did not testify, or show to the "satisfaction of the jury that he entered the house for a lawful purpose?"

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[No. 78. Decided October 28, 1890.]

## J. S. STEWART v. J. THEO. LOHR.

PROBATE COURT—JURISDICTION—APPEAL—REVERSAL OF VOID JUDGMENT.

The probate court has no jurisdiction to try the title to real estate as between the representatives of an estate and the husband of the decedent, where the latter claims an interest adverse thereto.

Where a probate court had no jurisdiction of the subject-matter of an action, the higher courts could get no jurisdiction on appeal.

Where the judgment of a lower court, which was absolutely void for want of jurisdiction over the subject-matter of the action, has been removed to the supreme court, the supreme court, on a motion to dismiss the appeal, will, for the purpose of clearing the record, order the judgment of the lower court reversed.

*Appeal from Superior Court, Skagit County.*

The appellant, J. S. Stewart, made his homestead filing upon the southeast quarter of section 26, township 35 north, range 5 east, under the homestead laws of the United States, on the 5th day of January, 1880. He was unmarried, and lived on the land, improved it by clearing five to eight acres of land, set out a small orchard, built a board dwelling house 16x20 feet, and a barn, the value of the improvements on the 19th day of February, 1883, being eight hundred dollars. He married the decedent on the last named day. Thereafter they lived on the farm, and he continued to improve the same. Final proof was made February 7, 1885, and patent issued to J. S. Stewart, October 14, 1887. Augusta A. Stewart died on the 8th day

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of April, 1888. Thos. S. Conmey was executor under the will, and presented his inventory on the 2d of June, 1888. He included in the real estate inventory the following: "One homestead ranch, described as follows, to wit: The southeast quarter of section 26, township 35 north, of range 5 east, consisting of 160 acres, more or less, valued at $1,000." The appraisers appraised this land at $500, apparently as community land. April 26, 1889, John S. Stewart filed his motion to strike from the inventory the above described tract of land on the ground that it was his separate property. On the 27th day of May, 1889, the motion was granted, and the said real estate ordered stricken from the inventory of the estate of the deceased. Appeal from this decision was taken on June 19, 1889, by J. Theo. Lohr, claiming to be the son and heir of the deceased, and a person interested in the estate of the deceased, to the district court for Skagit county, and was heard and determined by its successor, the superior court of that county, on the 21st day of May, 1890. The superior court found and held that the land was community property, but that the improvements up to the date of the marriage were the separate property of J. S. Stewart, and decreed him a lien on the half of the land assigned to the heirs for the sum of $400. From this decree an appeal has been taken to the supreme court.

*McBride, Preston, Carr & Preston,* and *W. S. Bush,* for appellant.

*Ronald & Piles,* for appellee.

The opinion of the court was delivered by

HOYT, J.—Upon the motion to dismiss the appeal in this cause, it was made to appear to this court that the action was instituted in the probate court, and was there a contest between the executor of an estate and one claiming adversely, as to whether or not certain real estate should

be included in the inventory of the property of said estate. When this fact appeared, suggestion was made to counsel that the question of the jurisdiction of the probate court to hear and determine such a controversy was the material inquiry which the court would enter upon in deciding the motion to dismiss; and upon such suggestion argument was had and authorities cited, and we shall, therefore, examine the question.

It is conceded that if the probate court had no authority to institute the action, by reason of want of jurisdiction of the subject-matter, then the superior court and this court could get no jurisdiction by way of appeal therefrom. That the probate court is without jurisdiction to try the title to property as between the representatives of an estate and strangers thereto is too well established by the authorities to require argument. See Schouler, Executors and Administrators, § 236; *Lynch v. Divan*, Ex'r, 66 Wis. 490; *Budd v. Hiler*, 27 N. J. Law, 43; *Snodgrass v. Andrews*, 30 Miss. 472; 64 Am. Dec. 169; *Theller v. Such*, 57 Cal. 447.

In the case at bar, the person claiming adversely to the estate was the husband of the deceased party, and it appears that this fact was thought to affect the question. We, however, do not think so. For while it is true that the probate court has jurisdiction to determine the claims to property as between those interested in the estate, this authority only goes to the extent of determining their relative interests as derived from the estate, and not to an interest claimed adversely thereto. In the case before us the husband, though interested in the estate of his deceased wife, was, so far as the claim he was attempting to assert, an entire stranger thereto. See *Budd v. Hiler*, above cited. The probate court had no jurisdiction of the subject-matter of the action, from which it follows that the higher courts could get no jurisdiction on appeal.

It only remains to determine the character of the order

to be entered. In the appellate courts of some of the states it is the practice, in cases like this, to simply dismiss the appeal and leave the judgment of the court below to stand in form as a judgment in force. These say that as the judgments are upon their face absolutely void, they will not take jurisdiction even to reverse them. Other appellate courts, however, take the ground that as they have the power to clear their own records of objectionable entries, even though as standing thereon they are absolutely void, they have like power to set aside like void entries in the inferior courts when the form of removing such void entries to such appellate courts has been complied with. We think the latter practice the better one. See *Lynch v. Divan*, Ex'r, above cited. A judgment, unreversed, though void upon its face, may seriously embarrass the person against whom it is in form rendered, though it can, of course, be of no benefit to the person who has secured it. This being so, such judgment should not be allowed to stand.

The appeal in this case must be dismissed, and the judgments in the superior court and in the probate court reversed; and such probate court must proceed in the administration of the estate in question in accordance with law. The appellant will recover costs of this court, and the appellee the costs in the superior court.

ANDERS, C. J., and SCOTT and STILES, JJ., concur.

DUNBAR, J., not sitting.

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[No. 575. Decided October 29, 1890.]

# ANGUS McCLAINE v. THE TERRITORY OF WASHINGTON.

ARSON—MURDER—INSTRUCTIONS.

Under § 823, Code of Wash. T., as amended by Laws 1885-6, p. 77, it is unnecessary in charging the crime of arson, to allege that the dwelling house set fire to was used and occupied as a place of abode by any person or persons.

In an indictment for murder, the allegation "that by means of said setting fire to, and the burning of said dwelling house as aforesaid, one Harry Connor, who was then and there known by said Angus McClaine to be occupying one of the rooms in said dwelling house, and known by said Angus McClaine to be present in said room," etc., is sufficiently direct and certain to charge the defendant with knowledge of the presence of deceased on the premises at the time they were set fire to by defendant.

Under § 823, Code of Wash. T., defining the crime of arson, and providing, among other things, that "should the death of any person ensue therefrom known to be occupying or present in said premises at the time such premises are willfully set fire to, the offender . . . shall be deemed guilty of murder in the first degree," an instruction to the jury, in a prosecution thereunder for murder in the first degree, that "you must find from the evidence that the deceased was in the house at the time of the fire; that the defendant knew he was there, and that the deceased came to his death in said house by reason of the burning of the house," is erroneous, as under such an instruction the jury might have convicted the defendant, if the deceased was present in the house at any time during the fire, without regard to the fact as to whether defendant knew he was present in the house at the time it was fired.

The court, upon the trial, gave the following instruction: "The prosecution must make out its case beyond a reasonable doubt. That is to say, must prove the house of five dollars at least in value, was burned at or about the date charged; that the defendant did this purposely; that the deceased was in the house when he purposely set fire to it. And if about any of these essential facts there is any reasonable doubt you must acquit." *Held*, That the instruction had a tendency to mislead the jury, as all the essential elements of the crime are not given therein.

*Error to District Court, Thurston County.*

The facts are fully stated in the opinion.

*Ballard & Metcalf* (*Eddy & Gordon*, of counsel), for plaintiff in error.

*W. C. Jones*, Attorney General, for The Territory.

The opinion of the court was delivered by

DUNBAR, J.—The record discloses that at a regular term of the district court of the counties of Thurston and Mason, held at the city of Olympia, at the December term of said court, an indictment was returned against the plaintiff in error, which indictment, omitting the entitling of the cause, reads as follows:

"Angus McClaine is accused by the grand jury of the Territory of Washington, for the counties of Mason and Thurston, of the crime of murder in the first degree, committed as follows: The said Angus McClaine, at the county of Mason, Territory of Washington, on the 10th day of November, 1887, feloniously, willfully and maliciously did set fire to a certain dwelling house, the property of one W. H. Kneeland, of the value of six thousand dollars, and used and occupied as a hotel by the said Angus McClaine and his family, and then and there feloniously, willfully and maliciously burned said dwelling house. That by means of said setting fire to, and burning of said dwelling house as aforesaid, one Harry Connor, who was then and there known by the said Angus McClaine to be occupying one of the rooms in said dwelling house, and known by said McClaine to be present in said room, was then and there in said room, within said dwelling house, burned and consumed, and of the burning and consuming then and there died. And the grand jury aforesaid, by force of the statute in such cases made and provided, say that said Angus McClaine, in manner and form aforesaid, did feloniously, willfully and of his malice aforethought, at said county and territory kill and murder Harry Connor." (Properly signed and dated.)

The defendant having entered his plea of not guilty to said indictment, the trial of said cause was begun on the 9th day of December, 1887, and resulted in a verdict of guilty as charged in the indictment; and on the 5th day of

January, 1888, the plaintiff in error was sentenced by the court to suffer the death penalty. A stay of proceedings and writ of error were thereafter granted by the supreme court of the Territory of Washington. Many errors were alleged in the assignment, but all the points mentioned in the supplemental brief of plaintiff in error, or presented to the court by his counsel, were the following: 1st. That the indictment in this case does not state facts sufficient to constitute the crime of murder or any felony. 2d. That it was error to permit the introduction of any evidence under the indictment. 3d. That the court erred in giving the instructions asked by the prosecuting attorney. 4th. That the court erred in instructing the jury upon its own motion.

The indictment is based upon § 823 of the code, as amended by the Session Laws of 1885 and 1886, on page 77, which reads as follows:

"Every person who shall willfully and maliciously set fire to the dwelling house [tent, cabin or any structure, no matter of what material constructed, used and occupied as a place of abode by any person or persons], any barn, stable, out-house, ship, steamboat, or other vessel, or any watercraft, milk house, banking house, distillery, manufactory, mechanics' or artificers' shop, storehouse, building or room occupied as a shop or an office for professional business, or printing office of another, any public bridge, court house, jail, market house, seminary or college, edifice or building thereto belonging, or other public buildings, of the value of five dollars [or any stack of grain, hay or straw of another, of the value of five dollars], shall be deemed guilty of arson, and upon conviction thereof shall be imprisoned in the penitentiary not more than ten years nor less than one year, or in the county jail not more than six months nor less than one month, and be fined in any sum not exceeding one thousand dollars; and should the death of any person ensue therefrom, *known to be occupying, or present on said premises* at the time such premises are willfully and maliciously set fire to, the offender, on conviction thereof shall be deemed guilty of murder in the first degree."

The words within the brackets being the amendments made in 1885–6 to § 823 of the code.

It is contended by plaintiff in error that the indictment in this case nowhere states that the dwelling house burned was used and occupied as a place of abode by anybody; and that the allegation that it was used and occupied as a hotel by the said Angus McClaine and his family is not sufficient under this statute. That it is the kind of occupancy contemplated by the statute where the building burned is alleged to be a "dwelling house." That so far as the indictment alleging that the dwelling house was the property of one W. H. Kneeland is concerned, the word "property" is not used in the statute in connection with the burning of a dwelling house. That it is not the burning of a dwelling house the *property* of another that is included in the statute; but that it is the burning of the *dwelling house* of another that the statute defines as arson. That our statute in reference to the burning of a dwelling house is substantially the same as arson at the common law. Were we to concede this last proposition we should be compelled to pronounce the indictment insufficient; for at common law arson was the malicious and willful burning of the dwelling house of another. The gist of the offense being the danger to the life of persons who were dwelling in the house. It was an offense against the habitation and regarded the possession rather than the property. And when the burning of any other house than a dwelling house was included within the offense, as the burning of barns and other out-houses, it was on the theory that the flames would extend to the dwelling and endanger the habitation. Hence the burning of many structures, which is arson under our statutes, was simply a misdemeanor at the common law. At the common law there was no question of value. It mattered not whether the house burned was worth thousands of dollars or but a few shillings; whether it was a palace

or a hovel. It was the safety of the inhabitants of the structure that the law sought to protect.

But a careful reading of our statute leads us to the conclusion that the legislature had in contemplation the protection of property as well as the preservation of life; for in every instance, including even a dwelling house, a moneyed value is attached, and to secure a conviction for arson under the statute value would have to be alleged and proven. The statutory crime and the common law crime are radically different. And we can but adopt the view of the attorney general, that the legislature intended to define and punish the crime of arson upon an entirely different principle from that in which the common law made it belong; that they have intended to define a new crime, and the common law definition cannot be resorted to, even for the purpose of aiding in the construction of this law, because it is manifest that the legislature used words in an entirely different sense from the sense in which they were used at common law.

From the number of buildings and structures made the subject of arson in § 823 of the code, the burning of many of which could in nowise ordinarily endanger life, it is evident that the main idea of the legislature was the protection of property; and this is confirmed by the fact that the legislature afterwards added "any stack of grain, hay or straw of another, of the value of five dollars," thereby carrying the provisions of the statute beyond the realm of habitation, although the question of valuation is never lost sight of. Under the provisions of § 823, it would not have been arson to have burned a stack of grain, hay or straw of another; but the experience of the people soon after that enactment taught them that this was a class of property which needed protection from incendiaries, and the legislature, doubtless in response to their demands, incorporated this further protection of property under this section. The qualifying words "of another" are evidently used in the

sense of ownership or property. A stack of grain of another, or a stack of straw of another, means nothing more nor less than a stack of grain or straw belonging to another, or the property of another. And as the words "of another" are used in reference to a dwelling house in the same sense, and qualify it in the same manner as they do all the succeeding words to which they apply, we must conclude by all admissible rules of construction that it is there to be construed to mean, a dwelling house the *property* of another, and not a dwelling house *inhabited* by another.

It is urged again that the indictment is defective, because it does not charge that the dwelling house was used and occupied as a place of abode by any person or persons. Whether the allegation that "the dwelling house was used and occupied as a hotel by the said Angus McClaine and his family" is a sufficient allegation, where an allegation of occupancy as a place of abode is required by the statute, we will not now discuss, for we are clearly of the opinion that under our statute no such an allegation is necessary, as the words "used and occupied as a place of abode by any person" were not intended to qualify the words "dwelling house," "tent or cabin." These words are not found in § 823, although the word "dwelling house" is in said section; the word "dwelling house" being unqualified excepting by the words "of another." Afterwards, during the session of 1885–6, the words "tent or cabin" were added, because it was questioned whether the word "dwelling house" was comprehensive enough to include these mean habitations; and, so that there might be no question about any manner of dwelling being included in the statute, after the words "tent or cabin" were added the words "or any other structure, no matter of what material constructed, used and occupied as a place of abode by any person or persons;" the words "used and occupied as a place of abode by any person or persons"

plainly qualifying the words "or any structure, no matter of what material constructed." Any other construction of this sentence would force us to conclude that the legislature intended to punish, under the provisions of this chapter, the malicious burning of a water craft, though it may not have been used for months, and yet not punish the malicious burning of a dwelling house, unless it was used and occupied as a place of abode. We do not think that such is a fair or sensible construction of the statute. The plain intention of the legislature, gathered from the act and the history of its amendments, was to punish the malicious burning of any property mentioned in the act.

We do not think there is any force in the objection that the indictment does not charge, by direct statement, that the plaintiff in error knew that Connor, the deceased, was occupying or present in said premises at the time they were fired, but that it only appeared by way of recital. The language of the indictment is, "That by means of said setting fire to, and the burning of said dwelling house, as aforesaid, one Harry Connor, who was then and there known by said Angus McClaine to be occupying one of the rooms in said dwelling house, and known by said Angus McClaine to be present in said room," etc. We cannot understand how an averment could be more directly stated than this. It would make it no stronger and no more direct to transpose the words and say, "The said McClaine did know," etc. It is simply a choice of expression and arrangement of words. We are of the opinion that the indictment contains every averment necessary to charge the statutory crime of arson.

We now pass to the third and fourth grounds of objection urged by plaintiff in error; objections which are more serious, in our opinion, and which are fatal to the prosecution in this case. At the instance of the prosecuting attorney the court gave the jury the following instruction: "You must find from the evidence that Harry Connor was

in the house at the time of the fire; that the defendant knew that he was there; and that said Connor came to his death in said house by reason of the burning of the house," and in no other part of the charge is the subject of the defendant's knowledge of Connor's presence at the time of the fire mentioned. It will be observed that the court here does not instruct the jury that they must find that the defendant knew that Connor was in the house at the time he set fire to it, but "at the time of the fire." This would embrace any time between the setting of the fire and the entire destruction of the house. Under such an instruction, if it had been proven that Connor was not there at the time of the setting of the fire, but that he afterwards came, and defendant knew of his being there, and in attempting to extinguish the flames, or through any accident, he lost his life in the flames, the jury would have been justified in convicting McClaine of murder. The language of the statute is: "And should the death of any person ensue therefrom, known to be occupying or present on said premises at the time such premises are willfully set fire to," etc. Were this instruction cured or explained by any other instruction, it might possibly be overlooked; but the following instruction given by the court on its own motion lays down a still looser rule for the guidance of the jury. The court says: "The prosecution must make out its case beyond a reasonable doubt. That is to say, must prove the house, of $5.00 at least in value, was burned at or about the date charged; that the defendant did this purposely; that Connor, or Connors, was in the house when he purposely set fire to it. And, if about any of these essential facts there is any reasonable doubt, you must acquit."

Here it is not even hinted at that the defendant need have any knowledge whatever of Connor's whereabouts at the time the fire was set, or any time during the fire; but the jury is charged in substance that the essential facts are,

that the house burned was of the value of $5.00; that defendant burned it purposely, and that Connor was in the house at the time it was purposely set fire to; and that, if these essential facts are proven beyond a reasonable doubt, they must convict. It is too obvious to admit of discussion that all the elements of the crime necessary to be proven were not presented to the jury in this instruction; and the question now to be considered is, whether this particular instruction was so segregated from the rest of the charge and made so distinct and impressive that it would be likely to mislead the jury as to what were the essential elements of the crime. It is urged by the attorney general that "the omission to state all the law in a particular paragraph, if the law is correctly stated in the charge as a whole, is not error." We think the authorities uniformly hold that if, in defining the crime, any of the essential elements of the crime be omitted, or any legal defense to which the defendant is entitled, such omission cannot be cured by reason of any other portion of the charge correctly stating the law. In the case of the *People v. Wong Ah Ngow*, 54 Cal. 151, 35 Am. Dec. 69, where it was alleged that the court, in one paragraph, had wrongfully instructed the jury on the law governing the subject of flight, the court in reversing the judgment says: "But it is claimed, on behalf of the prosecution, that the charge, *as a whole*, is correct; and therefore the judgment should stand. There is no doubt that in one part of the charge the law on this subject (flight) was correctly given to the jury; but the charge was contradictory, and that which was bad cannot be aided by that which was good;" and the court cited, as in point, the case of *People v. Valencia*, 43 Cal. 552, and that case is certainly in point here. In that case the court said: "It is not doubted that that part of the charge is erroneous, as it omits from the definition of murder in the first degree the essential qualities of deliberation and premeditation; but it is contended by the prosecution, that as the court had correctly

defined murder in the first degree, and as the jury would consider together all the parts or propositions of the charge, the error in the part above cited is cured by the correct definition which had already been given. The two parts of the charge are contradictory, and the jury would not be able to say that the court intended that the former rather than the latter should be received by them as the correct definition of murder in the first degree." In the *People v. Bush*, 65 Cal. 129, the court says: "It is no answer to the objection that an erroneous instruction was given, for the prosecution to show that in another part of the charge another instruction was given in which the law was correctly stated." So to the same effect, *Rice v. Commonwealth*, 100 Pa. St. 28; *People v. Anderson*, 44 Cal. 65; *State v. Ferguson*, 9 Nev. 106; *Holmes v. State*, 23 Ala. 17. In *People v. Campbell*, 30 Cal. 313, where the court in its general charge omitted one of the grounds of self-defense, but afterwards gave the instruction at the request of the defendant, the supreme court held that the instruction was somewhat mollified by the portion of the charge before given, and the judgment was reversed.

It seems to us that the case at bar is a much more extreme case than any above cited; for the instruction of the court on its own motion, to which the objection is raised, was evidently an attempt to group the essential elements of the crime together and present them, thus condensed, for the consideration of the jury. And the jury, always anxious to ascertain the opinion of the court, are more inclined to give consideration to its voluntary instructions than to instructions given by request of either the prosecution or defense, and would be liable, if indeed not actually justified in this case, in concluding that the essential facts necessary to be proven to ensure a conviction, were the identical essential facts mentioned by the court on its own motion. And even if all the instructions in this case were considered together, without misleading or causing any embarrass-

ment by omissions from any particular paragraph of the instructions, the law is not correctly stated, and the rights of the defendant were not wholly protected. This is a capital case; the defendant's life is at stake, and he had a right to have the law governing his case plainly, explicitly and correctly stated. This was not done. It follows that the judgment must be reversed, and the case remanded for a new trial. And it is so ordered.

SCOTT, STILES and HOYT, JJ., concur.

ANDERS, C. J.—I concur in the judgment, but not entirely in the view of my brothers as to the construction of the statute defining arson.

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[No. 81. Decided November 13, 1890.]

## DAVID WILKIE v. A. CHANDON.

PROMISSORY NOTE — INDORSEMENT — CONSIDERATION — DEMAND — WAIVER.

Where one becomes a party to a note as an indorser thereof before delivery, he identifies himself with the maker; and the settlement of a pre-existing debt, owing from the maker to the indorsee, is sufficient consideration to uphold the contract of indorsement.

A waiver of protest on a promissory note executed and indorsed in California waives presentment and notice, under the laws of that state, and in a suit thereon in this state it is unnecessary to prove a demand.

Where no demand is necessary to bind the indorser, it is not error for the court to exclude an interrogatory to the jury as to whether plaintiff demanded payment of the maker of a promissory note before the commencement of suit.

An interrogatory to the jury asking whether defendant "signed the note as maker, surety or indorser" was properly refused, where the undisputed proof showed that he signed the same as indorser; and also for the reason that the jury might answer in which of said capacities he signed, or might answer "yes" or "no" as to the entire question.

*Appeal from Superior Court, Chehalis County.*

Action commenced in the district court for Chehalis county, Washington Territory, December 24, 1888, by the appellee, A. Chandon, against David Wilkie, the appellant, upon a promissory note made by one John Wilkie to David Wilkie and by David Wilkie indorsed, with protest waived, and delivered to appellee. The note was made at Marysville, California, on February 1, 1884, and was payable one year after date at the banking house of Decker & Jewett, of that place, for the principal sum of $1,100, being a pre-existing debt due the appellee from John Wilkie, the maker of the note. The action was commenced against the appellant as indorser of the note. The action was tried before a jury, who returned a verdict in favor of the appellee, upon which judgment was rendered against appellant, from which he appeals.

*Bignold & Stinson*, for appellant.

*O. V. Linn*, for appellee.

The opinion of the court was delivered by

HOYT, J.—Defendant was sued as an indorser of a certain promissory note. Judgment was rendered against him, to reverse which he has brought the case here. Several errors are assigned as cause for reversal, but of these it is only necessary that we should examine two, as all the others depend upon, and must be controlled by, the decision of those two. 1st. That the court erred in overruling appellant's motion for non-suit. 2d. That the court erred in refusing to submit certain questions, requiring a special finding of fact, to the jury.

Plaintiff, to maintain his action, introduced proof tending to show that the note in question was given in settlement of an account due him from one John Wilkie, a brother of defendant, and that said note was signed by said John Wilkie as maker, and was payable to the defendant, who,

before its delivery to plaintiff, indorsed it, first causing to be written above his name as such indorser the words: "I hereby waive protest on within;" that plaintiff received the note, and the promised payment of $35.00 in cash, as a settlement of his said account against said John Wilkie, and that said note had not been paid. There was proof upon some other points, but the statement thereof is not necessary for the discussion of the questions raised on this appeal. When plaintiff rested, defendant moved the court for a judgment of nonsuit, and urges here two reasons why such motion should have been granted. 1st. That the proof failed to show any consideration for the note sufficient to charge this defendant. 2d. That no demand of payment upon the maker had been proved.

That the settlement and satisfaction of a pre-existent debt is sufficient consideration for a note given in such settlement, is too well settled to require argument at this day, and we do not understand that appellant contends to the contrary so far as the original debtor, as the maker of the note, is concerned. He does, however, contend that as no consideration actually passed from the original creditor, that is, that he parted with nothing of value at the time of the transaction, there was no such consideration as would sustain his contract as indorser, as he was a stranger to the original indebtedness. We think, however, that by consenting to become a party to the note, and an indorser thereof before delivery, he identified himself with the maker and became a party to the consideration, and that as there was a good consideration for the making, there was also, under the circumstances disclosed by this case, a good consideration for the indorsement.

Where the language of the waiver, as in this case, was only of the protest, it would be a question of some importance to determine whether or not in the absence of a statute upon the subject it could by intendment be so extended as to be a waiver of demand of the maker. But that case is not now

presented, as this note was executed in California where there is legislation upon this subject. Section 3160 of the Civil Code of California is as follows: "A waiver of protest on any negotiable instrument, other than a foreign bill of exchange, waives presentment and notice;" and aided by this, the waiver on the note in question was a waiver of demand, and therefore it was not necessary to prove one.

The defendant asked the court to submit two questions to the jury. The first was as follows, to wit: "Did the plaintiff in this action ever present the note to the maker thereof or demand payment of the same from the maker, John Wilkie, before the commencement of this suit?" We have already seen that there was absolutely no proof as to demand, and that under the law of the case no demand was necessary, and hence it would have been worse than idle to have submitted such question, and the court did only its duty in refusing so to do.

The second question was: "Did the defendant, David Wilkie, sign the note as maker, surety or indorser?" The court properly refused to submit this question for the reason that the undisputed proofs show that he signed the same as indorser, as not only the plaintiff's proofs showed this to be the fact, but the same was testified to by defendant himself. Besides, the question was not in such form that the court could properly require the jury to answer it. The jury from it might feel called upon to answer in which of said capacities he signed, and equally as well might feel called upon to answer "yes" or "no" as to the entire question. Questions submitted to a jury for a special finding should be carefully drawn, and call for a direct answer, and should be such that all minds would understand them alike; and if not so framed, the court should refuse to submit them.

On the whole record we see no error, and the judgment must be affirmed, with costs; and it is so ordered.

SCOTT and STILES, JJ., concur.

ANDERS, C. J., and DUNBAR, J., not sitting.

[No. 102. Decided November 13, 1890.]

## W. P. McELWAIN v. R. J. HUSTON.

*Appeal from Superior Court, King County.*

*Ovid A. Byers*, for appellant.

*Thompson, Edsen & Humphries*, for appellee.

The opinion of the court was delivered by

STILES, J.—An order of the superior court striking out a portion of the defendant's answer is not an appealable order, therefore, the appeal must be dismissed, and it is so ordered.

HOYT, SCOTT and DUNBAR, JJ., concur.

ANDERS, C. J., not sitting.

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[No. 57. Decided November 14, 1890.]

## THOMAS CARSTENS v. LEVRETT McREAVY.

REAL ESTATE BROKERS—AUTHORITY TO SELL—APPEAL—STATEMENT OF FACTS.

The supreme court will not pass upon the sufficiency of evidence to sustain the findings of fact, nor its admissibility concerning certain matters, where the statement of facts does not include the testimony in so far as it touches the objectionable findings, and does not contain any question or answer, nor any objection, ruling or exception.

Under a verbal authority to sell land, a real estate agent or broker has no power to enter into a contract of conveyance binding upon his principal.

*Appeal from District Court, King County.*

Action to compel a specific performance of an alleged agreement to sell and convey certain real estate in the city

of Seattle, King county, State of Washington. The trial court found the following facts:

"First: The appellant owned two lots in Burke's second addition to the city of Seattle, which, by parol order, he placed in the hands of real estate brokers for sale, and himself removed to Los Angeles, California; afterwards, by letter, he directed said brokers to sell said real estate upon terms in substance the same as those upon which they finally negotiated a sale. Second: In pursuance of such authority, said brokers negotiated a sale to the appellee, and executed a written contract of sale, which is set forth in the amended complaint, and thereupon demanded of appellant a conveyance to the appellee; this he refused to make, refused to accept the money which they had received from appellee, and has since steadily refused, though conveyance was demanded of him by appellee, and the balance of the purchase price tendered, and the tender ever since made good."

The receipt and contract of sale referred to in the findings is as follows:

"Seattle, Wash. Ter., Feb'y 25, 1888. Received this date of L. McReavy, of King county, Wash., the sum of three hundred dollars, being deposit as earnest money to bind the bargain for purchase by him of the following described real estate, to wit: Lots 13, 14, block 15, Burke's addition to the city of Seattle, the purchase price of which agreed upon is the sum of six hundred dollars, to be paid in gold coin, as follows, viz.: Cash, three hundred dollars, bal. on or before May 2, 1888. Ten days are allowed to the purchaser herein named for search of title to said real estate, which it is agreed shall be promptly made, and if such title is found imperfect and cannot be perfected within —— days, then, and in that case only, said earnest money so deposited to be returned. $300.00. Eshelman, Llewellyn & Co., agents."

Judgment was rendered in said action for plaintiff, and defendant appeals.

*Thompson, Edsen & Humphries*, and *Rochester, Lewis & Gilman*, for appellant.

*Preston, Albertson & Donworth*, for appellee.

The opinion of the court was delivered by

STILES, J.—A so-called statement of facts is brought up with the record in this case, which is merely a slight enlargement of the findings of fact filed by the judge who tried the cause. Presumably this statement was intended to respond to the first and third grounds urged on the motion for a new trial, viz.: That the evidence was insufficient to justify the findings, and that the court erred in permitting the agents of the appellant to testify concerning certain matters. When this court is called upon to say whether the evidence fails to sustain any or all of the findings of fact below, the testimony, at least in so far as it touches the objectionable findings, must be included in the statement. And if objections to the admission of testimony are relied on, the questions asked, the answers returned, and the documents admitted, if any must appear with such other of the testimony as may be necessary to explain the connection of the objectionable matter with the case. In this instance the statement does not contain the name of a single witness, or the statement of any witness, nor any question or answer, nor any objection, ruling or exception; and it very decidedly sustains the findings in every particular, as might be expected. Therefore it is useless for the purposes for which it was prepared, and we must confine any examination of the case to the other question raised, which is whether the conclusions of law and the judgment were warranted by the findings, which were in almost the same language as that of the complaint.

The appellant was the owner of certain real property in the city of Seattle, and the court found that at a certain date agents named, who were real estate agents in Seattle, "were the agents of defendant for the sale of the aforesaid real estate, and were then and there duly authorized and empowered by the defendant, by writing under the defendant's hand, to make and negotiate a sale of said real

estate." The agents thus authorized, executed and delivered to the appellee a contract for the sale of the appellant's property, without his knowledge, and in his absence from the state, and received a portion of the purchase money. Appellant refused to recognize the contract thus made, claiming that the authority by him given to "*sell*" did not include the authority to execute a contract, or anything more than to find a purchaser. This was the vital point in the case, upon which the court held with the appellee, and directed that the contract thus made be performed.

The statute of frauds may be satisfied by the execution of a contract for the sale of lands by the hand of another person than the party to be charged, if that person be thereunto lawfully authorized, and it is well settled that such third person may be thus lawfully authorized orally, by written direction not under seal, and, even, by a course of conduct amounting to an estoppel. It, therefore, only remains to determine whether the ordinary real estate agent or broker, authorized to *sell* land, is thereby empowered to enter into a contract binding upon his principal in an action for specific performance. A real estate agent is a person who is, generally speaking, engaged in the business of procuring purchases or sales of lands for third persons upon a commission contingent upon success. He owes no affirmative duty to his client, is not liable to him for negligence or failure, and may recede from his employment at will, without notice. On the other hand, courts almost unanimously unite in holding that in case of an ordinary employment to sell, once he has procured a party able and willing to buy, upon the terms demanded by his principal, and has notified him of the purchaser's readiness to buy, the agent's work is ended and he is entitled to his commission. It is not his duty to procure a contract or make one, and he is not in default if he fails to do either. Therefore, to our mind, it seems clear that ordinarily it is not within the contemplation of the owner and agent, where property of

this character is placed in the hands of the latter for sale, that he shall, without consultation with his client, execute a contract. We are aware that courts have held to this extent, basing their decisions upon a distinction between an authority to sell and an authority to find a purchaser, and upon the well known rule that an authority to an agent to do a thing is presumed to include all the necessary and usual means of executing it with effect. But such holdings do not commend themselves to our judgment, and, as this is a new question in this state, and we are satisfied that it is not the general practice of agents to make such contracts, we do not hesitate to dissent from the decisions above mentioned, especially as there is no lack of authority for the position we take. We cannot shut our eyes to the obvious defect in the argument that authority to sell, in this instance, necessarily implies authority to execute a contract. A sale of land, "executed with effect," includes the execution of a deed and the delivery of possession, neither of which the agent can do, unless his authority to sell is supplemented by the delivery of possession to him and a power of attorney to convey. So that he does not, although in possession of the authority to *sell*, have all the necessary means of executing that authority with final effect. He stops short somewhere, and when we are inquiring where the probable and proper place of his stoppage is, the evils that would attend the extension of his actual authority beyond the finding of a purchaser, furnish ample reason for fixing his limit there. An agency of this kind may be created by the slightest form of words, without any writing, leaving it to litigation to determine whether the substance of the authority is "to sell" or "to find a purchaser," wherein the unscrupulous and dishonest agent would be at once arrayed as the principal witness against his client, with every advantage, from some note, "made at the time," of what the instruction was. Perjury would go at a premium in such cases, and the confiding and un-

lettered would be its victims. Scarcely any man, when listing his property with a real estate agent, stops to give details either as to the property itself or as to the arrangements he desires to make, yet no one would sell upon equal terms to a first class business man and to an habitual drunkard, or well known insolvent; and the ordinary owner would not sell at all to a person whose very occupancy would tinge the neighborhood with a bad repute. These are good reasons, and are, probably, some of the reasons why custom and the law have made it not necessary that real estate agents should actually procure contracts in order to earn their compensation; and why, in this connection, the common understanding of the phrase "authority to sell" means only authority to find a purchaser, whether the authority be given orally or by written request.

In considering this case we have examined the numerous authorities cited by both sides, as well as many others, and find the position we take fully sustained by *Morris v. Ruddy*, 20 N. J. Eq. 236; *Milne v. Kleb*, 44 N. J. Eq. 378; *Duffy v. Hobson*, 40 Cal. 240; *Armstrong v. Lowe*, 76 Cal. 616; Mechem on Agency, § 966; Warvelle on Vendors, 213; 2 Am. and Eng. Ency. Law, p. 573, note 2. The earlier cases in New York were to the same effect, notably: *Coleman v. Garrigues*, 18 Barb. 60, and *Glentworth v. Luther*, 21 Barb. 145; but they were overthrown by *Haydock v. Stow*, 40 N. Y. 363; without sufficient reason, as it seems to us. We note that in nearly if not all the states where the courts at any time held agents to sell real estate authorized to execute contracts of sale, especially in New York and Illinois, the legislatures very soon after amended the statutes of frauds so as to require the agent's authority to contract to be in writing.

*Lyon v. Pollock*, 99 U. S. 668, presents a state of facts not found, to any extent whatever, in the case at bar, and is, therefore, not applicable, and the same may be remarked

of *Rutenberg v. Main*, 47 Cal. 213. What a broker must do to "complete a sale" is well defined in *McGavock v. Woodlief*, 20 How. 221, thus: "The broker must *complete the sale;* that is, he must find a purchaser in a situation and ready and willing to complete the purchase on the terms agreed on, before he is entitled to his commission." *Per contra*, if the broker has "completed the sale" so as to be entitled to his commissions, by finding a purchaser, without a contract, his duty is thereby performed and his authority exhausted.

The judgment of the court below must be reversed, and the action dismissed. Costs to the appellant.

ANDERS, C. J., and HOYT, DUNBAR and SCOTT, JJ., concur.

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[No. 83. Decided November 14, 1890.]

## GEORGE W. PENTER v. STAIGHT & BEAVERS.

DEMURRER — MISJOINDER OF CAUSES — APPEAL — JURISDICTION OF SUPREME COURT — PLEADING.

Where two causes of action are improperly joined, the failure of the court to pass upon a demurrer on that ground is not cured by sustaining a demurrer to one of the paragraphs for want of sufficient facts to state a cause of action.

Where the first paragraph of a complaint contained an allegation of $200 damages against defendant, for which demand had been made before suit, and the second paragraph alleged damages at $500, the sustaining of a demurrer to the latter paragraph does not reduce the amount in controversy to $200, there being no amendment reducing the demand below $700; and the supreme court has jurisdiction thereof on appeal, under article 4, § 4, of the constitution, restricting jurisdiction to cases where the original amount in controversy is above $200.

Where appellees were not present when the statement of facts was settled, nor had any notice thereof, the supreme court will disregard the statement.

A complaint in an action for the recovery of commissions on the sale of real estate, which alleges that the property was placed in the hands of plaintiffs, and that they found a purchaser at the price named, and completed the bargain with the purchaser for the sale of the same, but which does not allege that they communicated knowledge of their action to the defendant, or that he carried out the arrangement made for the sale, or refused to carry it out, after such notice, is defective for want of sufficient facts.

An answer denying "generally each and every allegation" of the complaint, is good as a general denial, and it is error for the court to refuse to allow the defendant to introduce evidence competent under such a plea.

*Appeal from Superior Court, Whatcom County.*

Action by M. R. Staight and C. A. Beavers, copartners under the firm name of Staight & Beavers, against George W. Penter, to recover the sum of $700. The complaint was in two paragraphs; the first alleged money to be due on a contract to pay commissions as broker in making a sale of real estate; the second was for damages for injuring the good name and business standing of the plaintiffs. The facts are sufficiently stated in the opinion.

*S. M. Bruce*, for appellant.

*Dorr & Finch*, for appellees.

The opinion of the court was delivered by

STILES, J.—The complaint contained the separate statement of two improperly joined causes of action, in the first of which two hundred dollars was demanded, and in the second five hundred. Demurrers were interposed on the ground, first, that two causes of action had been improperly joined; and, secondly, that the complaint did not state a cause of action. The court below, on the hearing of these demurrers, disregarded the first ground of demurrer, but ruled on the second to the effect that the first cause of action, as pleaded, was sufficient, but that the second was not. We presume that the failure to pass upon the demurrer for misjoinder was upon the theory that as the facts stated in

the second cause of action were not sufficient to constitute a ground of complaint, there was no misjoinder, and it was, therefore, not necessary to rule upon that point. This was clear error. The demurrer upon this ground should have been sustained, and the plaintiffs allowed to amend by selecting which of the causes of action they would stand upon, and dismissing as to the other.

The error thus committed would not be very material in this case were it not that the court's action has opened the way to a motion to dismiss this appeal, on the ground that this court has no jurisdiction under that clause of the constitution (Art. 4, § 4) which restricts it to cases of this class where the original amount in controversy is above two hundred dollars. In this instance the "original amount in controversy" was the amount demanded, seven hundred dollars. But the appellee contends that inasmuch as the second cause of action contained an allegation of damage in the sum of five hundred dollars, and the first cause of action a like allegation of damage in two hundred dollars, the act of the court in sustaining the demurrer to the second cause, *ipso facto*, reduced the amount in controversy to exactly two hundred dollars. The demand, however, remained seven hundred dollars, and there was no amendment making it less. Inasmuch as the allegations of the first cause of action tended to show a right in the plaintiffs to compensation for services rendered of the value of two hundred dollars, for which demand had been made before suit, the proper judgment would have been two hundred dollars with interest thereon from the date of the demand until the judgment, something more than two hundred dollars; therefore it was proper that the prayer of the complaint on that cause of action should be more than the bare principal, which would have given this court jurisdiction.

There is another and an equally important ground, however, upon which we must sustain this appeal. It is claimed in the brief of the appellees, that upon the demurrer to the

second cause of action being sustained, that cause of action was abandoned and no longer formed a part of the controversy. Were that so, and had an amended complaint been filed demanding only two hundred dollars, we should hold with the appellee. But on referring to the record we find that not only was there no abandonment, but that the order sustaining the demurrer distinctly shows the plaintiffs excepting to the ruling of the court, thus preserving to the plaintiffs the right to appeal from that judgment. True, the trial went on upon the first cause of action, and plaintiffs were apparently satisfied with their recovery; but, had the judgment been against them, it was quite in their power to appeal to this court, giving it jurisdiction of the whole amount of seven hundred dollars on account of the alleged error of the court in sustaining the demurrer. If there would be jurisdiction for one side there must be jurisdiction for the opposite side.

The notice of appeal was given in open court, and was in accordance with the act of 1883. No notice whatever appears to have been given to the plaintiffs of the settlement of the statement of facts, nor do they or their attorneys appear to have been present when it was settled or certified; upon the objection of the appellees we must therefore disregard it. *Taylor v. Osborn*, *ante*, p. 189. The appeal is, therefore, before us upon the judgment roll, upon the following points: 1. Error of the court in not sustaining the defendant's demurrer to the first cause of action. 2. For want of findings of fact and conclusions of law. 3. Error in striking out portions of the answer.

This was an action for a real estate agent's commission, and the complaint alleged that certain property was placed in the hands of plaintiffs by defendant for sale at a certain price, and the plaintiffs undertook to use their best efforts to find a purchaser at the price named, for which, they being successful, they were to receive the usual commission, alleged to be five per cent.; and to charge the defendant,

the complaint also alleged that plaintiffs had found a purchaser at the price named, and completed the bargain with the purchaser for the sale of the same. But there was no allegation that the plaintiffs had ever communicated knowledge of their action to the defendant, or that he had carried out the arrangement they had made for the sale, or had refused to carry it out after notice of the arrangement; and in these particulars, at least, it was fatally wanting. Mechem on Agency, § 612; *Love v. Miller*, 53 Ind. 294; 21 Am. Rep. 192.

A motion for a new trial was made upon several grounds, none of which we can notice, with the exception of the fifth, for the reason that they are dependent upon the statement of facts, which is out of the case. The fifth ground was, that the decision was against law, and is argued by reference to the insufficiency of the facts to support the judgment. No findings, whatever, were filed, the only allusion to the subject being found in the judgment which recites that the court "finds for the plaintiffs." We have discussed this matter of findings at large in *Bard v. Kleeb*, *post*, p. 370, decided at this session of the court.

The court below, on motion, struck out all of the defendant's answer, excepting the first clause, in these words: "First. He denies generally each and every allegation thereof," that is, of the complaint, which defendant assigns as error. But, although we do not consider all of the matter stricken out as sham, frivolous or irrelevant, the error was harmless to the defendant, as everything material was in the nature of evidence which could have been introduced under the general denial. We note, however, in the judgment that the court seems to have held the first denial above quoted not to be a general denial, and refused to allow the defendant to introduce any testimony under it, although it is recited that "the defendant offered evidence tending to deny the allegations of the complaint." We are at a loss to understand how a better general denial

could have been framed. *Gammon v. Dyke*, 2 Wash. T. 266, and *Dillon v. Spokane County*, 3 Wash. T. 498, did not hold otherwise, or even touch the question. Assuming that the plaintiffs had proven facts sustaining every allegation of their complaint, it was then certainly competent for the defendant, under his restricted pleading, to disprove those facts if he could.

The judgment must be reversed and a new trial granted, with instructions to the court below to sustain the demurrer of the defendant on the ground of the misjoinder of causes of action, and also his demurrer to the first cause of action, with leave to the plaintiffs to elect which cause of action they will proceed upon, and to file an amended complaint thereon, after which defendant will have leave to answer the amended pleading. And it is so ordered, with costs to the appellant.

ANDERS, C. J., and HOYT, DUNBAR and SCOTT, JJ., concur.

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[No. 47. Decided November 18, 1890.]

## FRANK M. BARD, H. C. PATRICK AND JOHNSON STOUT v. JOHN W. KLEEB.

### FINDINGS OF FACT.

A recital in a judgment that "the court finds the matters and things set forth in the complaint are true" is not a sufficient finding of facts, as required by § 246, Code Wash. T.; especially when the reply admits that one of the allegations of the complaint is untrue.

*Appeal from District Court, Pierce County.*

The facts are set out in the opinion.

*Town & Likens*, for appellants.

*Applegate & Titlow*, for appellee.

The opinion of the court was delivered by

STILES, J.—This was a bill in equity filed to compel the specific performance of a contract for the sale of standing timber, and numerous articles of personal property, the performance involving the payment of the sum of $302.75 in money, the execution and delivery of certain promissory notes secured by a mortgage, and the procurement of a policy of insurance. An injunction to restrain the sale of the contracted property, and the appointment of a receiver, were asked, pending the litigation. The cause was tried by the court, and a judgment for $2,199.65 and costs was rendered against the defendants. A motion for a new trial was denied and the cause appealed to this court. One of the grounds for a reversal urged by the appellants is, that no findings of fact or law were filed by the court as required by § 246 of the code, and as we consider the objection well taken, we shall confine our decision to that point, in the main. Section 246 is as follows: "Upon the trial of an issue of fact by the court, its decision shall be given in writing and filed with the clerk. In giving the decision, the facts found and the conclusions of law shall be separately stated. Judgment upon the decision shall be entered accordingly." This language is almost precisely the same as that of §§ 632–3 of the Code of Civil Procedure of California. No findings of fact whatever were made or filed in this case, it is conceded. But the appellee points out that in the judgment there occurs the following: "The court finds the matters and things set forth in the complaint are true, and that upon the cause of action therein set forth, said defendants, Bard and Patrick, are indebted to the plaintiff in the sum of three hundred and two dollars and twenty-five cents ($302.25), with interest thereon at the rate of ten per cent. per annum from October 8, 1888, and the further sum of two thousand dollars ($2,000.00), with interest thereon at the rate of eight per cent. per annum from

the 20th day of October, A. D. 1888, and the further sum of ten dollars ($10.00) for his attorney fee herein; and that on account of the matters set up in the answer, defendants are entitled to recover, by way of set-off against plaintiff's demand, the sum of two hundred and fifty dollars ($250.00), to be deducted as of the date October 20, 1888." This we are urged to accept as a compliance with the statute, inasmuch as it is there stated that the court "finds the matters and things set forth in the complaint are true," and several cases from the California reports are cited to sustain this view, or to avoid the effect of the omission, should we not agree with the appellee. So far as we are aware, from the Washington Territory reports, this is the first time this issue has been squarely raised here, and we shall therefore allude to a number of California cases on the subject. In *McEwen v. Johnson*, 7 Cal. 258, is the first instance where findings of fact made by reference to the pleadings were sustained, but there the findings were: "That the facts stated in the plaintiff's complaint are true," and "That the facts stated in the defendant's answer are not true," and the court said: "Under these provisions, we think that the finding may well refer to the pleadings for a specification of the facts found, and not found; provided, such reference is sufficiently distinct to make it intelligible, and the facts are sufficiently stated in the pleadings. In this case there was a very clear and simple statement of the facts, in both the complaint and answer." In *Pralus v. Mining Co.*, 35 Cal. 30, the decision says: "The *special findings* of fact by the court, as found in the record, cover the *material* issues in the case, and the general finding that 'all the allegations and averments in plaintiff's complaint are true, and that all in the answer are untrue,' is sufficient and conclusive of all the issues made by the pleading," citing *McEwen v. Johnson*. In *Williams v. Hill*, 54 Cal. 390, the statement is: "The objections that the findings do not support the judgment, in

that the court did not find as to the alleged mistake, is fully answered by the finding of the court 'that all the facts set forth in the complaint are true,' and by the fourth finding." *Carey v. Brown*, 58 Cal. 180, sustains the finding: "That all the allegations of the complaint are true, and all the allegations of the answer are untrue," on the authority of *Pralus v. Mining Co.* Likewise in *Davis v. Drew*, 58 Cal. 152, certain findings of the court were objected to, one of them being in the following form: "4. And all and singular the allegations contained in paragraphs 1, 2, 3 and 4 of defendant's answer are true." But the supreme court sustained the finding, with this exclamation of regret: "This mode of finding facts by reference to the answer, or portions of it, is not to be commended. It imposes greater labor in this court, both on counsel and court. But our predecessors have accepted such findings as proper and sufficient, and therefore we do not feel disposed to adopt a different course." There are many other cases in the California reports on this subject, but we do not find a single one in which a total absence of findings was sustained, except for reasons hereafter mentioned, or one in which the recitals of a judgment were taken as a compliance with the law. In every one of the cases mentioned above, findings were *filed*, and in all but the first there were special as well as general findings. We now stand where the supreme court of California stood in 1857, when it passed upon the case of *McEwen v. Johnson*, and we deem it better, as we have the opportunity, to shape the practice in this state so that our successors may not have to repeat the helpless plaint of the California supreme court, when deciding *Davis v. Drew*, in 1881. The cases in California, however, hold that unless it appears affirmatively, by the record, that findings of fact were not waived in the court below, it will be taken that there was a waiver, and therefore no error, and appellees urge a like practice here. But § 634 of the California Code of Civil Procedure expressly provides three

methods by which findings of fact may be waived, and the case of *Mulcahy v. Glazier*, 51 Cal. 626, clearly explains the theory upon which the supreme court of that state holds as it does as to waivers. It is enough to say that we have no statutory provision of this sort whatever, and therefore nothing to base such ruling upon. *Eakin v. McCraith*, 2 Wash. T. 112, is cited to sustain the proposition that if the findings are general, the aggrieved party must move in the court below, to have them made more specific. But that was not a case where there were no findings; on the contrary, the findings made and filed are quoted in the opinion, and we do not observe that any point was made in the argument as reported, against the findings, but even if there were, we do not dissent from the decision of our predecessors under the circumstances stated in their decision.

The case under consideration is, therefore, not parallel with any of the cases cited or discussed above. The complaint was long and much involved. The answer, in addition to general denials of almost everything in the complaint, alleged fraudulent misrepresentations, payment, compliance with the contract, and failure of the plaintiff to comply, and his want of ability to comply, besides a paragraph in the nature of a counterclaim for damages, and the reply admitted one very material allegation of the complaint, viz.: the ownership of certain timber contracted to be sold, to be untrue. Therefore, were we to admit that the recital in the judgment that "the court finds the matters and things set forth in the complaint are true," to be a finding, within the statute, we must hold it to be entirely insufficient. Indeed, the court could not find the allegations of the complaint to be true in the face of the admission of the reply as to the ownership of the timber. Again, this "finding" makes no disposition whatever of the allegations of the answer, except that it awards $250.00 to the defendants, but whether as damages or on account of payments

alleged, does not appear. And the judgment itself, being for $2,199.65 in favor of the plaintiff, negatives the idea that the allegations of the complaint were found to be true, since under its allegations the judgment prayed for would have been the only proper judgment, and not a judgment for money. True, we are informed in the course of argument by counsel, that the time for the payment of the notes for $2,000.00 had expired at the time of the trial, and for that reason the money judgment was entered; but that could not be done without the filing of a supplemental complaint, under code, § 114, when the cause of action would change from that of specific performance to one of money demand on contract, with, perhaps, a foreclosure of the promised mortgage.

Under these circumstances it is unnecessary for us to revert to or pass upon the numerous errors assigned by the appellants, upon the court's refusal to admit certain testimony of the defendant, and to exclude certain testimony of the plaintiffs, except that we may say that there are twenty-seven of these alleged errors, requiring the minute examination of the whole mass of shorthand testimony, and the retrial of the entire case, all of which serves to emphasize the necessity of proper findings in this instance. These alleged errors were nearly all connected with the introduction of a certain written contract, which was the basis of the action, and if we had here the view of the trial court, expressed in the findings concerning that contract, there would have been little or no propriety in bringing up the voluminous testimony, as the appeal would, in all probability, have been based upon the proposition that the conclusions of law and the judgment were not warranted by the facts found, a pure question of law, not requiring any statement of facts or the great expense necessary to its preparation and settlement.

As we regard it, § 246 is for the protection of court and parties. To the court it gives an opportunity to place

upon record its view of the facts and the law in definite written form, sufficiently at large that there may be no mistake. To parties it furnishes the means of having their causes reviewed, in many instances without great expense. The findings of fact are deemed a verdict, and are subject to the same rule as a verdict; and that they be found, is a substantial right, as inviolate, under the statute, as that of trial by jury under the constitution, without express waiver.

While we are upon this subject, and touching the requisites of proper findings, we cite *Breeze v. Doyle*, 19 Cal. 102, and *Hidden v. Jordan*, 28 Cal. 302, as authorities. The judgment of the court below must be reversed, and a new trial granted, with leave to the plaintiff to file a supplemental complaint, and with further proceedings in accordance with this opinion. And it is so ordered; costs to appellants.

ANDERS, C. J., and HOYT and SCOTT, JJ., concur.

DUNBAR, J., not sitting.

ON PETITION FOR REHEARING.

STILES, J.—In this case, a petition for rehearing having been filed, in denying the petition, we deem it proper to add to the opinion on file something by way of enlargement and explanation, as it appears the opinion may be misunderstood.

In the first place, the statement in the opinion that this was a case in equity, goes no further than that the form of the complaint made it appear so. The cause, for the reason that the sums alleged to be due had become due before the trial, was treated by the court and parties as an action at law for money due, and the judgment was for money. Under this view of it, the right to a trial by a jury existed, and when the court tried the case without, its proceeding was controlled by § 246, requiring the findings of facts and conclusions of law. Whether, in a purely equitable action,

findings are necessary, it is not necessary to hold; but it would seem not, as such cases come up on appeal from final judgment upon the entire record and testimony for a new trial in this court. It is urged that § 451 of the code practically does away with § 246; but we view the former section as only applying to equity causes, and as to be read in connection with that part of § 464 which refers to actions by equitable proceedings. Moreover, were the appellee's position as to § 451 admitted, its terms were not complied with. The evidence was not certified as required in that section, but in the form of a statement under the act of 1883; and not being so certified, the plain inference would be, that this obstacle to the objection that there were findings had no existence.

ANDERS, C. J., and SCOTT, HOYT and DUNBAR, JJ., concur.

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[No. 52. Decided November 18, 1890.]

## J. C. McCARTY v. THE STATE OF WASHINGTON.

CONSTITUTIONAL LAW—INDICTMENT AND INFORMATION—LARCENY.

A person accused of grand larceny, committed prior to the admission of this state into the Union, is entitled to the guaranty of the United States constitution of presentment by a grand jury; and cannot be prosecuted therefor by information, under the provisions of the state constitution and the legislative act in pursuance thereof, authorizing proceedings by information.

An information charging defendant with taking and stealing "ninety-three railroad tickets of the aggregate value of one hundred and twenty dollars," without alleging the value of each ticket taken, and showing that they were stamped, dated and signed, does not state facts sufficient to constitute the crime of larceny.

*Appeal from Superior Court, Pierce County.*

Proceeding by information on the charge of grand larceny for the stealing of ninety-three railroad passenger tickets of the aggregate value of $120, of the chattels and property of the Northern Pacific Railroad Company. A trial was had before a jury, and a verdict returned finding defendant guilty as charged. From the judgment and sentence rendered defendant appeals to this court.

*Town & Likens*, for appellant.

These railroad tickets not having been delivered or stamped, or sold, were not of any value as railroad tickets, and consequently not a subject of larceny. As the information does not charge the stealing of a piece of paper, and even if it did it would have no intrinsic value, the demurrer should have been sustained. *People v. Loomis*, 4 Denio, 380; *Payne v. People*, 6 Johns. 103; *People v. Wiley*, 3 Hill, 194; 1 Whart. Crim. Law, § 880.

The price and value of each of the tickets should have been stated. 2 Bish. Crim. Proc., §§ 712, 732–5; Whart. Crim. Pl. & Pr., § 206; Whart. Crim. Ev., §§ 121–6; *People v. Littlefield*, 5 Cal. 355; *People v. Coon*, 45 Cal. 672; 2 Hale P. C. 182–3.

When the alleged offense was committed defendant could only be tried by indictment, and if limited to indictment he could not be tried on information. 1 Bish. Crim. Proc., § 144; *Com. v. Cheney*, 6 Mass. 347; *Twitchell v. Com.*, 7 Wall. 321; *People v. Campbell*, 2 Parker Cr. Cas. 386. Where the statute requiring an indictment is repealed, an information will not lie for an offense committed before the repeal. Rapalje, Crim. Proc., § 110; *People v. Tisdale*, 57 Cal. 104; Bish. St. Cr., § 194.

*W. H. Snell*, Prosecuting Attorney, *Charles Bedford*, and *C. E. Claypool*, for The State.

The United States guarantee an indictment by grand jury in certain cases. But this is true only so far as it applies to offenses against the United States or in trials by United States courts, and is not applicable to the state courts; and the territorial courts when trying an offense of this nature, under territorial laws, were not United States courts. *State v. Keyes*, 30 Am. Dec. 450; *Barron v. Baltimore*, 7 Pet. 243; Pom. Const. Law (Bennett Ed.), §§ 231–4; *Good v. Martin*, 95 U. S. 90; *American Ins. Co. v. Canter*, 1 Pet. 511; *Benner v. Porter*, 9 How. 235; *Clinton v. Englebrecht*, 13 Wall. 434; *Hornbuckle v. Toombs*, 18 Wall. 648; *Reynolds v. United States*, 95 U. S. 145.

A change from presentment by indictment to presentment by information is only a change in the form of procedure, and cannot come within any of the definitions of an *ex post facto* law as enunciated in *Calder v. Bull*, 3 Dall. 386. See *Kring v. State*, 107 U. S. 221, and cases cited; *Hopt v. Utah*, 110 U. S. 574; Cooley, Const. Lim., p. 272.

The opinion of the court was delivered by

DUNBAR, J.—This is a proceeding by information, on a charge of grand larceny for the stealing of ninety-three alleged railroad passenger tickets. The information alleged that "the said J. C. McCarty, on the fifteenth day of October, eighteen hundred and eighty-nine (1889), at the county of Pierce and State of Washington, and within three years prior to the filing of this information, ninety-three railroad passenger tickets of the aggregate value of one hundred and twenty dollars, of the chattels and property of the Northern Pacific Railroad Company, a corporation organized and existing under the laws of the State of New York, and doing business in the State of Washington under and by virtue of the laws of said State of Washington, a more particular description of which said railroad

passenger tickets is to the said prosecuting attorney unknown, feloniously did steal, take and carry away, contrary to the form of the statute," etc. To this information the defendant interposed a demurrer, that the information did not state facts sufficient to constitute any offense, and that there was no authority for proceeding by information.

This crime is alleged in the information to have been committed on the 15th day of October, eighteen hundred and eighty-nine. Article 1, § 25, of the constitution of the State of Washington, provides for proceedings by information. The act of the legislature authorizing proceedings by information was passed January 29, 1890. The constitution, by act of congress, as well as by its own terms, did not become operative until the presidential proclamation, which was not made until November 11, 1889, so that the date of the alleged commission of the crime antedates not only the enactment of the legislature, but also the vivifying of the constitution by the presidential proclamation. The defendant would have been entitled to the United States constitutional guaranty of presentment by a grand jury on the 15th day of October, 1889. Having the right at that time, it could not be taken from him by any retroactive enactment of the state, even had it been the intention of the legislature to make the act retroactive in its operations. When a statute requiring an indictment is repealed, an information will not lie for an offense committed before the repeal. *People v. Tisdale*, 57 Cal. 104; Bishop, Statutory Crimes, 194. As tersely stated by Mr. Bishop, "The rule for the construction of penal statutes is, that they are to reach no further than their words; no person can be made subject to them by implication; and all doubts concerning their interpretation are to preponderate in favor of the accused." The effect of the adoption of the constitution, or admission into the union of states under that constitution, and the legislative enactment of January 29, 1890, was to repeal the law which guaranteed prosecution

for criminal offenses exclusively by indictment. The right to be presented by a grand jury is not a mere change in the proceedings of the court, which does not affect the substantial rights of the accused, and to which he cannot object; it is a constitutional guaranty which rests upon a basis more secure than acts of the legislature which relate to mere matters of procedure. We do not think the defendant can be held to answer this charge unless on presentment of a grand jury.

We are also of the opinion that the information failed to state facts sufficient to constitute the crime of larceny. It is not sufficient to charge the taking of "ninety-three railroad tickets," of an aggregate value. Especially is this true when the degree of crime and the degree of punishment is determined by the value of the property stolen. In this instance, if the proof should show that only a portion of the number of tickets alleged to have been stolen were actually stolen, it would be impossible for the court or jury to determine what degree of larceny the defendant was guilty of. The value of each ticket should have been alleged, and the information should have shown that they were genuine, effective railroad tickets, as an unstamped, undated and unsigned railroad ticket is not the subject of larceny. 1 Whart. Crim. Law, § 879; *People v. Loomis*, 4 Denio, 380. Without these qualifications the so-called railroad tickets had no more value than the intrinsic value of the paper on which they are printed, with the cost of preparing them. As this information did not charge the value of the paper it could not be proven.

It follows that the judgment must be reversed, and the case remanded to the lower court with instructions to sustain the demurrer. And it is so ordered.

ANDERS, C. J., and HOYT, STILES and SCOTT, JJ., concur.

ON PETITION FOR REHEARING.

DUNBAR, J.—The petition for rehearing in this case is not allowed; but the court desires to say, that in view of the public importance of some of the questions raised, and in view of the fact that the case was submitted without oral argument on the part of the state, that in cases arising hereafter it will not be bound by the opinion rendered in this case, on the constitutional questions involved.

ANDERS, C. J., and SCOTT, HOYT and STILES, JJ., concur.

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[No. 93. Decided November 18, 1890.]

## *In the matter of the petition of* JAMES RAFFERTY *for a writ of Habeas Corpus.*

HABEAS CORPUS—JURISDICTION OF SUPREME COURT—PRACTICE—CONSTITUTIONAL LAW.

Under § 24 of the Enabling Act, and the legislative act of December 13, 1889 (Sess. Laws 1889-90, p. 94), continuing all laws in force applicable to the state form of government, the provisions of chapter 58, Code Wash. T., in regard to *habeas corpus*, are applicable to the supreme court.

Section 4, article 4, of the state constitution, giving the supreme court original jurisdiction in *habeas corpus*, is self-executing; and in the absence of legislation on the subject, the supreme court has authority to establish rules defining the course to be pursued in issuing the writ.

Under the authority of the supreme court to issue writs of *habeas corpus*, the court, or one of its judges, can grant an order *nisi* to show cause why the writ should not issue. In such case the writ should be issued by the clerk of the supreme court.

The supreme court has original jurisdiction in *habeas corpus* to issue the writ or make the order *nisi*, in all cases, and the provisions of § 4, article 4, of the state constitution do not confine its jurisdiction to state officers.

The provision of the state constitution, article 1, § 2, that "the constitution of the United States is the supreme law of the land,"

only relates to those matters wherein the general government assumes to control the individual states, and the requirement of a presentment by a grand jury is not one of them.

Where the title of an act relates only to proceedings by information, a section of the act dispensing with grand juries, unless ordered by the judge, is properly within the title, and does not bring another subject into the act.

Where an act containing a clause repealing a former law is declared void, the former law remains in force.

Under § 677, Code of Wash. T., prohibiting inquiry into the legality of any commitment issued on a final judgment of a court of competent jurisdiction, defendant is restricted to his remedy by appeal; and the writ of *habeas corpus* will only lie where the court had no competent jurisdiction in the premises.

*Original Proceeding in Habeas Corpus.*

*Lueders & Laffoon*, for petitioner.

*W. C. Jones*, Attorney General, for The State.

The opinion of the court was delivered by

SCOTT, J.—Defendant was convicted in the superior court of Pierce county of the crime of an attempt to commit rape, and upon June 24, 1890, was sentenced to imprisonment in the penitentiary for a term of fourteen years. After his incarceration application was made to the Honorable Theodore L. Stiles, one of the judges of this court, for a writ of *habeas corpus*, whereupon an order *nisi* was made by said judge, requiring the warden of the penitentiary to show cause to this court why the writ should not issue.

This being the first proceeding of the kind before us, the question arises as to the jurisdiction of the court in such matters, and it necessitates a construction of § 4, article 4, of the state constitution, as to its purport, and as to whether it is self-executing in this particular, and if not, whether an act passed by the last legislature (see Session Laws 1889-90, p. 321) reënacting said section *verbatim*, vivifies the same, no way having been pointed out as to the manner of procedure in such cases. Also, as to whether the provisions

of the code found in chapter 58 apply to this court, by virtue of § 24 of the enabling act and an act of the legislature approved December 13, 1889 (see Session Laws 1889–90, p. 94), continuing all laws in force applicable to our present system of government, and substituting the word "state" for "territory," etc. It is contended that the provisions of the code are not applicable to us, because it would result in compelling this court, or its several members, virtually to sit as committing magistrates, under code § 678, to inquire into the sufficiency of causes where persons are held for trial upon criminal charges, and that no such state of affairs could have been intended, in view of its consequential inconveniences and expense. It is further contended that the provision referred to of the constitution is not of force until legislation is had pointing out the manner of carrying the same into effect, and providing some means of preserving the records in such cases, particularly when such a proceeding is had before one of the individual judges of this court; and if this is true, then the literal reenactment of said section by the legislature does not help this out, and the constitutional provision is dormant.

In the light of all the law submitted to us bearing upon the subject, we are forced to the conclusion that notwithstanding the awkward results that might occasionally be brought about in cases where this court should be called upon to review the proceedings of committing magistrates, which would practically amount to an appeal therefrom, and be a rehearing thereof, that the provisions of the code mentioned do apply to this court until the same are changed by legislative enactment.

We are also of the opinion the constitutional provision in question is within those denominated or recognized as self-executing, especially when considered with the general powers of the court to regulate its proceedings. It can hardly be supposed it was contemplated or intended so important a right as this should be suspended as far as the

jurisdiction of this court is involved, until such uncertain time as it should be called into life by legislation pointing out the method of procedure. In the absence of such legislation this court could establish rules defining the course to be pursued, if necessary to enforce it. It is apparent, however, by § 687 of the code, that in all cases where the writ is directed by the supreme court or a judge thereof, or an order *nisi* made, the same should be issued by the clerk of this court. Where the same is made returnable before a superior court or judge the subsequent proceedings would be had in such court.

An objection was urged that there was no authority for granting an order to show cause at all; that as the laws cited speak only of the writ, it must be the writ, if anything. It is the practice in the United States courts to grant an order *nisi*, and § 755 of the revised statutes is more imperative than our own in relation to the speedy issuance of the writ. It was also the established practice at the common law to grant a rule *nisi* in the first instance. See Whart. Crim. Pl. & Pr., § 986. Therefore, in view of the lesser expense and greater simplicity of the proceeding in not requiring the presence of the prisoner, we think it is the better practice and authorized here.

It is further contended that our constitution only gives the supreme court authority to issue the writ as to state officers, although it gives each one of the judges of said court power to issue on behalf of any person held in custody, and at the option of such judge to make the writ or order returnable before the supreme court. The language of that part of the section is as follows: "The supreme court shall have original jurisdiction in *habeas corpus* and *quo warranto* and *mandamus* as to all state officers." And while, perhaps, a literal grammatical construction of this clause, as contended, might not give the court jurisdiction, and might prevent its exercise, except as to where state officers are concerned, yet, if so, the language must yield

somewhat to prevent what would apparently approach a legal absurdity. See Potter's Dwarris, pp. 143 to 146, as to American rules of construction; 1 Story, Constitution, § 400. It cannot well be supposed that it was intended to confer greater powers upon the several judges of this court than upon the court itself, and especially to give the single judges power to compel the court to hear and determine such matters in all cases, by making the process returnable before the court. No reason has been pointed out for such a grant, and reliance is had solely upon what is contended to be the correct interpretation of the clause quoted. We are of the opinion that the fair meaning of the whole section gives the court original jurisdiction to issue the writ or make the order *nisi* in all cases.

It is also contended that the lower court had no jurisdiction in this case because the defendant was tried upon an information. In support of this, petitioner argues that as § 2, article 1, of the state constitution reads, "the constitution of the United States is the supreme law of the land," and as the constitution provides no person shall be held to answer for a capital or otherwise infamous crime unless on a presentment or indictment of a grand jury, that there is no authority to try persons in this state for such offenses upon information, claiming that the provisions in our constitution relating to prosecutions by information, and to dispensing with grand juries, are of lesser force and must yield to § 2, quoted. In further support of this position he cites to § 4 of the enabling act, requiring the constitutional convention to declare on behalf of the people that they adopted the constitution of the United States. It is manifest, however, that § 2 only relates to those matters wherein the general government assumes to control the individual states, and the requirement of a presentment by a grand jury is not one of them. That it was not intended to carry the principle further than this in our constitution is apparent in the light of its other pro-

visions. Nor can it be supposed that congress undertook or intended to impose upon the newer states any restrictions additional to those placed upon the older ones. In fact, § 8 of the enabling act expressly declares that they should be admitted to the Union on an equal footing with the original states. As to construction, see Story on the Constitution, vol. 1, §§ 402–5; Cooley, Const. Lim. (5th ed.), p. 26. *Walker v. Sauvinet*, 92 U. S. 90; *Twitchell v. Commonwealth*, 7 Wall. 321.

Petitioner further contends that § 7 of the act found at page 100, Session Laws 1889–90, dispensing with grand juries unless ordered by the judge, is void, as not being within the title to the act, which only relates to proceedings by information, and he also claims it is another and distinct subject. To support this our attention is called to § 19, article 2 of our state constitution, which provides: "No bill shall embrace more than one subject and that shall be expressed in the title," and to *Harland v. Territory*, 3 Wash. T. 131; but we are all of the opinion the section of the act referred to is within the title, as in providing for proceedings by information the necessity for a grand jury was dispensed with, and the same act, consequently, could very well provide grand jurors should not be summoned, except in the contingency there mentioned. Nor does it bring another subject into the act in the sense contemplated by the constitutional provision referred to, it not being within the spirit or reason of the prohibition. The subject being in relation to prosecutions for crimes, the matters there legislated upon were all properly included in the act.

It is further urged that the crime of rape is not a statutory offense in this state. That code § 812 was repealed by a subsequent law enacted in 1886, see Session Laws 1885–6, page 84, § 1, which, under the decision of the territorial supreme court in *Harland v. Territory*, is void, it having been entitled only as an act to amend § 812 of the

code, but that § 2 of said act, which contains the repealing clause, is valid, as it being in favor of defendants in criminal prosecutions it is entitled to a more liberal holding. The weight of authority is entirely against the petitioner. If the act is void as claimed, it is invalid for all purposes, and code § 812 is still in force. Even if there was no statute upon the subject, rape would still be an offense at common law.

Petitioner claims if the code provisions relating to *habeas corpus* do apply to this court, that we are not prevented from issuing the writ in this case by subdivision 1 of § 677, which prohibits inquiry into the legality of any commitment issued on a final judgment of a court of competent jurisdiction. He claims the lower court, by reason of alleged errors, lost jurisdiction of defendant's person, and that the writ can issue in all cases where such jurisdiction is wanting. But we are of the opinion said provision does not mean that the writ will lie where the court did not have and maintain such jurisdiction by regular process and proceedings, but means a court competent to exercise jurisdiction in the premises. In such cases, defendants must be left to the remedy by appeal. *Ex parte* Williams, 1 Wash. T. 240.

Here the superior court had jurisdiction of the offense charged, and, for that matter, it appears of defendant's person as well. Were any irregularities found in its proceedings we could not review them in this way. The authorities cited by petitioner, where a different rule prevails, were founded upon statutory provisions essentially differing from our own.

The writ is denied.

ANDERS, C. J., and HOYT, STILES and DUNBAR, JJ., concur.

[No. 101. Decided November 19, 1890.]

## FABIEN S. POTVIN v. JOHN E. MCCORVEY.

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*Appeal from Superior Court, King County.*

*Palmer & Easly*, for appellant.

*Neagle De Steiguer & Ryan*, for appellee.

The opinion of the court was delivered by

DUNBAR, J.—The record in this case shows that there was no judgment rendered in the court below, and that the appeal was taken from the order of the court sustaining the demurrer to the intervenor's complaint. An appeal cannot be taken to this court from such an order. The appeal will be dismissed, with costs to appellee.

SCOTT, STILES and HOYT, JJ., concur.

ANDERS, C. J., not sitting.

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[No. 51. Decided November 21, 1890.]

## THE CITY OF OLYMPIA v. C. B. MANN.

MUNICIPAL CORPORATIONS—FIRE LIMITS—ORDINANCES.

Where the charter of a city confers "power to make regulations for the prevention of accidents by fire," and "to prevent, by all possible and proper means, danger or risk of injury or damages by fire arising from carelessness, negligence or otherwise," said city is authorized to establish fire limits, and prevent the erection of wooden buildings therein.

An ordinance establishing fire limits, and providing that no wooden buildings shall be constructed therein, except a permit therefor be granted by the city council, is not unreasonable nor unduly oppressive, as its burdens are cast alike upon all persons within the limits of the district prescribed by it. (STILES, J., dissents.)

*Appeal from District Court, Thurston County.*

The facts are fully stated in the opinion.

*C. H. Ayer*, City Attorney, and *B. F. Dennison*, for appellant.

In the case of a municipal ordinance, the question is, whether it is within the powers granted in the charter, or necessary, as an implied power, to the exercise of the powers expressly granted. The propriety and mode of exercising the power is a question solely for the legislative body exercising it. It is a legislative and not a judicial question. *Knoxville v. Bird*, 47 Am. Rep. 326; *State v. Mott*, 48 Am. Rep. 105.

Courts will not investigate the reasonableness of an ordinance, unless the same is plainly and clearly unreasonable on its face. Horr and Bemis, Mun. Ord., §§ 127–129. Nor the exercise of legislative discretion, except in cases of gross abuse. *Van Baalen v. People*, 40 Mich. 258; *Ex parte Delaney*, 43 Cal. 478; *Ex parte Smith*, 38 Cal. 709; Dill. Mun. Corp. 94–5.

A municipal corporation has inherent power, independent of any legislative grant, to prohibit the erection of wooden buildings in the densely built-up parts of a city. *Monroe v. Hoffman*, 29 Am. Rep. 345; Horr and Bem. Mun. Ord., §§ 221–2; *Barbier v. Connolly*, 113 U. S. 27; Dill. Mun. Corp., § 89, and note.

*J. W. Robinson*, and *Cavanaugh & Fitch*, for appellee.

Where the territorial legislature expressly granted the power to create fire limits and the methods of procedure to the larger towns and cities, it thereby declared that an express grant was necessary, and that municipalities have not the inherent powers to create "fire limits." *Collins v. Hatch*, 18 Ohio, 525; *Com. v. Voorhies*, 12 Mon. (B.) 361; *Millerstown v. Bell*, 123 Pa. St. 151; *Des Moines v. Gilchrist*, 67 Iowa, 210; Horr and Bem. Mun. Ord., §§ 222, 211.

A special grant of power is necessary to support this or-

dinance. It is not a power that can be implied. *Keokuk v. Scroggs*, 39 Iowa, 447; *Pye v. Peterson*, 45 Tex. 312; *Kneedler v. Norristown*, 100 Pa. St. 368; 45 Am. Rep. 384, and cases there cited; *Champaign v. Harmon*, 98 Ill. 491; *Hudson v. Thorne*, 7 Paige, 261.

The opinion of the court was delivered by

ANDERS, C. J.—Appellee being the owner of a vacant lot on Fourth street in Olympia, described as lot 1 in block 24, of the town (now city) of Olympia, and being desirous of erecting thereon a two-story frame building, to be used as store rooms and offices, applied to the city council of said city, in accordance with § 8 of ordinance No. 304 of said city, entitled: "An ordinance defining the fire limits and to protect property from fire," approved April 24, 1889, for a permit to erect said building. The said lot being within the fire limits, as established by said ordinance, the city council refused permission to erect the proposed building, and notified appellee not to undertake the erection of the same. Appellee thereupon brought this action to perpetually enjoin and restrain the city and its officers from in any manner enforcing or attempting to enforce said ordinance against him or his employes laboring upon said building. In his complaint he alleges substantially, in addition to the facts above mentioned, that the boundaries of said fire limits as fixed by said ordinance are unreasonable, injurious and inequitable, and the same was passed with a desire to force brick and stone buildings on Fourth and Main streets and increase the value of neighboring property at the expense of those intending to improve, and that since the passage of said ordinance and the rejection of plaintiff's application for a permit, the said city has granted permits for the erection of wooden buildings within said fire limits, but not on Main or Fourth streets, whereby the danger of conflagration has been much more increased than would be by the erection of plaintiff's

desired building. That said ordinance is null and void; that the said city had and has no authority to create or maintain fire limits; that the ordinance is void also for want of conformity to the city charter and general laws; even if the city had such power, that a court of equity should prohibit its enforcement; that the city has no authority to declare anything a nuisance, and only has authority to abate such nuisances as are known and defined by statute. The complaint further sets forth the penalty prescribed by said ordinance for its violation, and avers that the defendant, the city of Olympia, through its marshal, threatens to arrest plaintiff and all those who may be found at work on said building; that he has a large number of men employed and ready to commence work on said building, and that unless the city and its officers are restrained and prohibited from enforcing said ordinance plaintiff will suffer great and irreparable damage, for which there is no speedy or adequate remedy at law, and that the threatened arrests will create great and vexatious litigation. To this complaint the defendant filed a general demurrer, which was overruled by the court, and, defendant electing to stand upon the demurrer, judgment was rendered for plaintiff, from which defendant appeals to this court.

We are therefore called upon to decide the question, whether the city ordinance complained of is or is not valid, or in other words, whether the city council was legally empowered to pass it. This ordinance, after setting out the boundaries of the fire limits within the city, among other things provides as follows:

"Sec. 7. No wooden building shall be constructed within the fire limits. *Provided*, The city council may grant permits to construct wooden buildings within the fire limits as hereinafter provided.

"Sec. 10. Any person who shall erect or cause to be erected or assist in the erection of any building contrary to the provisions of this ordinance, or shall maintain and re-

fuse to remove any building erected contrary to the provisions of this ordinance for ten days after receiving notice to remove the same from the fire wardens, shall, upon conviction thereof, be deemed guilty of a misdemeanor and be fined in any sum not greater than one hundred dollars, or be imprisoned in the city jail not more than thirty days, or be both fined and imprisoned at the discretion of the court."

This ordinance is assailed by counsel for appellee upon the ground that the city charter did not authorize its passage, and upon the further ground that it is unreasonable, or rather that the boundaries of the fire limits are "unreasonable, injurious and inequitable." Among the powers granted to the city of Olympia by its charter, and which are relied on by appellant to sustain the ordinance in question are these:

"The city of Olympia shall have power to make regulations for the prevention of accidents by fire, to organize and establish a fire department, and make and ordain rules for the government of the same, to provide fire engines and other apparatus, and to levy and collect special taxes for that purpose, . . . to prevent by all possible and proper means danger or risk of injury or damages by fire arising from carelessness, negligence or otherwise; . . to adopt proper ordinances for the government of the city, and to carry into effect the powers given by this act." . . . and "the city of Olympia shall have such other powers and privileges not herein specially enumerated, as are incident to municipal corporations of like character and degree."

The learned counsel for appellee contends with much earnestness that, notwithstanding these legislative grants, the city had no power to enact the ordinance, for the reason that the powers, if any, conferred by the charter are general in their nature, and that a special grant of power is necessary to authorize the establishment of fire limits or the prevention of the erection of wooden buildings within the city. To sustain this position counsel cites, among others, the following cases as especially in

point: *City of Keokuk v. Scroggs*, 39 Iowa, 447; *Pye v. Peterson*, 45 Tex. 312; *Kneedler v. Borough of Norristown*, 100 Pa. St. 368; 45 Am. Rep. 384; *City of Champaign v. Harmon*, 98 Ill. 491; and *Mayor of Hudson v. Thorne*, 7 Paige, 261. In the case of the *City of Keokuk v. Scroggs*, it appears that the original charter conferred a general power upon the city to make such ordinances as shall be necessary to secure the city and its inhabitants from injury by fire. This charter was amended, and the amendment contained full and specific enumeration of the acts which the city might do for the purpose of guarding against calamities by fire. In the enumeration of powers in the amended charter nothing was said about the control of wood or lumber yards. The defendant was prosecuted for the violation of that portion of the city ordinance relating to the location of lumber yards within the fire limits. And the court said: "The power to pass an ordinance requiring the removal of a lumber yard from a specific portion of the city, is not expressly conferred in the charter, nor can it be claimed that it is necessary to make the powers conferred available." And further, that "the general provision contained in the original charter has become absorbed in the particular enumeration in the amendment. . . . Therefore, whatever power is conferred upon the city respecting fires must be found in the amendment to the charter." There being neither a general nor special power in the charter authorizing the city to enact the ordinance as to lumber yards, the court held no such power existed. The case of *Pye v. Peterson*, 45 Tex. 312, was a case involving the validity of a fire ordinance. The charter provided generally that the city might have power to "ordain and establish such acts, laws, regulations and ordinances not inconsistent with the constitution or laws of this state, as shall be needful for the government, interest, welfare and good order of said body politic;" also, "to abate and remove nuisances, and to punish

the authors thereof by penalties, fine and imprisonment, and to define and declare what shall be nuisances." And the court said that "without an express grant a city cannot establish fire limits, declare wooden buildings erected therein to be nuisances, and to provide for the removal of such buildings, and the punishment of those erecting them." And in this case the court also said: "The form of the ordinance indicates that it was framed under this latter clause." And the point really decided was, that the council had no power to declare wooden buildings to be nuisances. In the case of *Kneedler v. Borough of Norristown*, 100 Pa. St. 368, 45 Am. Rep. 384, the court says: "The charter of the borough of Norristown contains no authority to the council to enact ordinances prohibiting the erection of wooden buildings. Nor is there anything in the grant of general powers conferred upon the borough from which such an authority can be necessarily inferred or to which it is indispensable." But the court was apparently influenced in its decision by the fact that the legislature had previously assumed jurisdiction of the subject, and had expressly enacted that wooden buildings should not be erected on certain streets of the town, which fact was a very strong reason for the conclusion that it had not delegated the power claimed to the borough itself. And further, the court seems to concede, that, if the power to enact the ordinance had been conferred by the charter of the borough, or could necessarily be implied from any of the provisions thereof, it would have been valid. The controversy in the case of the *City of Champaign v. Harmon*, 98 Ill. 491, arose out of a claim made by the city to certain real estate purchased by it at a tax sale. And the court very properly held that, while the city had the power to purchase and hold real estate necessary for corporate purposes, it could not do so for purposes of speculation, without special power granted to that end. The case of *Mayor of Hudson v. Thorne*, 7 Paige, 261, seems

to support the position of appellee. Other cases are also cited by counsel bearing more or less directly upon the point. But in view of the provisions of the charter under consideration, and of the decisions of other courts of great learning and ability to the contrary, we do not feel bound by these decisions. In fact, we do not think they are sustained by the better reason, or by the weight of authority.

Judge Dillon defines the powers possessed by municipal corporations to be: (1) Those granted in express words; (2) those necessarily or fairly implied in or incident to the powers expressly granted; and (3) those essential to the declared objects and purposes of the corporation. 1 Dill. Mun. Cor. (4th ed.), § 89. And taking this to be a correct statement of the law, it follows that if the charter of Olympia, either expressly or by necessary or fair implication, gave the city council authority to enact the fire ordinance, or if such power is essential to the declared objects and purposes of the municipality, then the ordinance ought to be sustained. The power to do a particular thing may be, and often is, delegated to a municipal corporation in general terms, and these general terms may be quite as broad and comprehensive as if expressed in specific language. In the case before us, the city charter confers upon the city power to make regulations for the prevention of accidents by fire and to prevent, *by all possible and proper* means, danger or risk of injury or damages by fire arising from carelessness, negligence *or otherwise.* And if these expressions of the legislature did not expressly authorize the council to establish fire limits within the city and to prevent the erection of wooden buildings therein, such power is certainly fairly implied in what is expressed, provided the means employed are proper or necessary "to prevent accidents or danger or risk of injury or damage by fire." The propriety or necessity of the methods to be pursued to accomplish the object sought, was left to the discretion of the council, who are the representatives of the people

themselves, and who are the sole legislative body of the corporation. The council having by its acts declared the ordinance to be a proper one, we are of the opinion that this court is not warranted in setting it aside as invalid. In fact, it is held by learned courts and text writers that municipalities have inherent power to pass ordinances for the protection of their citizens from fire, without express legislative authority. In a recent work upon the subject of municipal police ordinances we find this language: "The power to take all measures necessary to prevent fires and their spread is of prime importance to the citizens of every community. It belongs to that class of powers exercised for self-preservation, which are inherent in every municipality, and which do not need the authorization of an express grant. Every precaution possible should be taken to prevent the destruction to property, and the danger to life, incident to conflagration, and for this purpose as great a degree of interference with personal rights is permitted as under any other power. Private interests are entirely subservient to the public safety.

"The first preventive step taken is usually to prescribe fire limits; that is, territorial limits within which it shall be unlawful to erect certain classes of buildings. This is always permissible. Owing to the extreme importance of such regulations and their vital interest to the community, one would hardly think that the power of erecting fire limits in a thickly built-up district would ever be denied; still, it is surprising to note that two courts have insisted that express authority must exist for such regulations. It seems that their regard for personal rights had been carried to an unwarranted extent in view of the importance of preventing the destruction of property by fire, and great as our regard must be for their reasoning and conclusions, the rule above enunciated seems to be the true one, and the great majority of the well-advised decisions tends to its support." Horr & Bemis, Mun. Pol. Ord., §§ 221–2. In

the case of *Wadleigh v. Gilman*, 12 Me. 403; 28 Am. Dec. 188, the court held that an ordinance of the city government of Bangor prohibiting the erection of wooden buildings in the city within certain limits was within the authority conferred, under authority in the charter "to ordain and establish such acts, laws, and regulations, not inconsistent with the constitution and laws of this state, as shall be needful to the good order of said body politic." In *Alexander v. Town of Greenville*, 54 Miss. 659, the court held that a power "to provide for the prevention and extinguishment of fires," implies a right to establish fire limits. In *Mayor and Council of Monroe v. Hoffman*, 29 La. Ann. 651 (29 Am. Rep. 345) it was decided that a municipal corporation has inherent power, independent of legislative grant, to forbid the erection and compel the removal of buildings formed of combustible materials, within the densely built-up parts of a town. And in *Baumgartner v. Hasty*, 100 Ind. 575; 50 Am. Rep. 830, after citing authorities sustaining the proposition that municipal corporations possess inherent power to prohibit the erection of wooden buildings within prescribed limits and to cause their removal, at page 580 the court says: "These cases rest on solid principle, for the rule has always been that a municipal corporation has the inherent power to enact ordinances for the protection of the property of its citizens against fire." And the court says further: "A legislative act granting authority to take precautions against fire, and ordinances passed under such an act authorizing the removal of wooden structures erected within forbidden limits, are little more than express declarations of the existence of powers which existed at common law, and are necessarily implied in the grant of a charter to a city." (p. 581.) See also 1 Dill. Mun. Corp. (4th ed.), § 405. We will not now stop to notice other cases cited by counsel to the same effect, as many of them are commented on and approved in the cases already mentioned by us.

It is further contended by counsel for appellee that the ordinance is unreasonable and therefore void for that reason if for no other. This is a proper question for the court to determine. The city council, as the legislative body of the municipality, must of necessity be vested with more or less discretion as to the reasonableness of the means necessary to effectuate lawful objects. They are in a better position than the court to judge of the best course to pursue, as well as of the methods best calculated to effect desired results, and the courts should not set aside or review their acts unless, upon their face, they are manifestly unreasonable or based upon fraud, or passed in wanton disregard of private rights or are in excess of the power of the council. The motives of the council cannot be inquired into, but must be presumed to have been to accomplish the natural and reasonable result of their act. We see nothing unreasonable in the ordinance, viewed in the light of all the facts before us. Its burdens, if any, are cast alike upon all persons within the limits of the district prescribed by it, and the city council had lawful authority to pass it. We cannot see that it is unduly oppressive or that it discriminates against any particular individual, or that it was passed in a spirit of wanton disregard of proprietary rights.

For the foregoing reasons the judgment of the court below will be reversed and the cause remanded for further proceedings in accordance with this opinion. So ordered.

HOYT, J. concurs.

SCOTT, J. (*concurring*).—I concur in all that is said in regard to the power of the city of Olympia to establish fire limits, and concur in the result reached, because it appears to me the question as to the invalidity of the ordinance upon the ground of its unreasonableness is not properly before us in this case.

I do not think, however, the city has the power, or

can have it even by express legislative enactment, to grant or refuse permission at its pleasure to erect wooden buildings within the fire limit district, where the same are prohibited by the ordinance, although an attempt is made therein to except cases where the city council should see fit to grant a special permit, unless certain rules, regulations or conditions are laid down by ordinance which apply to all persons alike and are conclusive in themselves; that it cannot exercise the arbitrary power to grant such a permission to one person and refuse it to another under like conditions and circumstances. As to whether any of the provisions of this ordinance have this effect or might be so applied, and if so, whether the entire ordinance is thereby invalidated or rendered void only in so far as it relates to the granting of such special permits, and be otherwise valid, which would prohibit the erection of all wooden buildings within the prescribed district without exception. I desire not to express an opinion in the absence of an argument of the particular questions. Powers granted to a city must be reasonably and fairly exercised, and its laws made applicable to all alike. The attempted enforcement of power, and the unreasonableness and injustice of ordinances whereby a different result could be brought about or this principle violated, can be inquired into, to this extent at least. There was no attempt to attack the ordinance upon this ground in the complaint, but it is alleged to be void because the boundaries of the fire limit district as fixed therein are unreasonable, without stating the facts wherein such unreasonableness consists.

STILES, J. (*dissenting*).—I dissent. No objection was made upon the argument here, to the discussion of the question as to the equality and fairness of §§ 7, 8 and 9 of the ordinance, which it was assumed was raised by paragraph 7 of the complaint; and to my mind those sections set up such a system of arbitrary control of buildings in

the city of Olympia, by the council, as is not entitled to be termed reasonable.

The establishment of fire limits means the designation of a territory within which wooden buildings must not be erected. But this ordinance, while it designates limits, and says that no wooden buildings shall be constructed therein, clearly shows by its context that that was not its real purpose. The true purpose of it was to compel every person desiring to erect a wooden building to go before the council, which retained within itself the power to say whether he should erect it or not; not according to any fixed rules of determination, under which all applicants would be treated alike, but without rules or regulations, whereby favoritism or influence, or other motives not proper to the determination of such a question, might enter into and actually determine it. If there were to be exceptions to the ordinance, the exceptions should have been declared, and regulations made under which they could be availed of. If there was territory embraced in the ordinance, within which it was not expected to enforce the ordinance, by reason of its unsettled condition, it was unreasonable to so embrace it, and the limits should not have been extended over it until such time as the conditions were proper for such extension.

I concur in holding that the city of Olympia has the power to ordain fire limits implied in its charter, but I cannot agree that *such* an ordinance was ever contemplated by the legislature, and, therefore, hold the court's action in overruling the demurrer to have been eminently right.

DUNBAR, J., not sitting.

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[No. 84. Decided November 21, 1890.]

## E. B. CADE v. ROBERT BROWN.

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VENDOR AND VENDEE—BREACH OF CONTRACT—DAMAGES.

Where plaintiff, under a parol agreement to convey land, takes possession thereof, makes improvements, and purchases lumber for

the purpose of erecting a house thereon, and the defendant subsequently conveys the land to another, the measure of damages in an action for breach of the contract is the value of the land at the time of the breach, less the price the plaintiff was to pay therefor, together with any special damages the plaintiff might prove in purchasing lumber to erect buildings on the premises.

Where an action for specific performance of contract cannot be had because of the inability of the defendant to convey, he having parted with the title, and the action cannot be maintained against his vendee, the plaintiff may maintain an action at law against defendant for damages for breach of the contract.

*Appeal from Superior Court, King County.*

Action for damages for breach of contract to convey certain lands, together with the amount expended by plaintiff in making improvements thereon. The jury returned a verdict for plaintiff for the sum of $175, being the value of plaintiff's improvements only. From the judgment on the verdict, plaintiff appeals to this court.

*Ronald & Piles*, for appellant.

*Jacobs & Jenner*, and *Lewis & Gilman*, for appellee.

The opinion of the court was delivered by

SCOTT, J.—Plaintiff claims he entered into a parol agreement with defendant for the purchase of a tract of land, being part of a larger tract owned by defendant. He also claims the defendant took him upon the premises, traced the boundaries of the land in question, and placed him in the possession thereof. That in pursuance of the agreement plaintiff kept possession of the premises and made valuable improvements thereon, with the knowledge and consent of defendant, and also purchased and placed upon the land certain lumber to be used by him in erecting a building thereon, which lumber subsequently became valueless to him through the breach of the defendant; and further, that he tendered full compliance with the contract upon his part. That the defendant refused to comply

therewith, and sold the land to another person. Whereupon plaintiff brought this action at law to recover his damages. Upon the trial, plaintiff asked the court to instruct the jury that the measure of damages he was entitled to was the value of the land at the date of defendant's breach of the contract, together with the amount expended by plaintiff in making said improvements, less the purchase price plaintiff was to pay for the land. The court refused to give the instructions, but directed the jury, if they found for the plaintiff, to assess as his damages an amount equal to the reasonable value of the improvements made by him, to which plaintiff excepted.

It fairly appears from the whole case that the proof tended to show the land had greatly increased in value, and while the instructions asked by plaintiff were not correct in asking pay for his improvements in addition to the value of the land at the time of the defendant's breach, as the value of the land at that time would include the improvements made thereon, and would have resulted in giving plaintiff pay twice for his improvements, which was properly refused, yet the instruction given by the court was also erroneous. The measure of the damages was the value of the land at the time of the breach, less the price plaintiff was to pay therefor, together with any special damages plaintiff might prove in purchasing lumber to erect a building upon the premises, which could not be considered an improvement before its erection.

It is urged by appellee that an action at law will not lie in such a case. That the plaintiff's remedy, if he had any, was an action for specific performance of the contract, it not having been put in writing, and the purchase price not having been actually paid, but only tendered by plaintiff and refused by defendant; and that where a specific performance cannot be had because of the inability of the defendant to convey, he having previously parted with the title, and where the action cannot be maintained

against the vendee by reason of his not having had actual notice of plaintiff's rights, or where the possession of plaintiff was not sufficiently open and notorious to be held a constructive notice, that the plaintiff would be without a remedy, although a specific enforcement in consequence of a part performance by plaintiff might have been decreed against the defendant had he retained the title. We think otherwise, and hold that in such a case an action at law for damages can be maintained.

The judgment is reversed, and the cause remanded.

STILES, HOYT and DUNBAR, JJ., concur.

ANDERS, C. J., not sitting.

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[No. 8. Decided December 3, 1890.]

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THE COUNTY OF KING v. GEORGE D. HILL, JOHN LEARY, JOSEPH F. MCNAUGHT, GEORGE W. HARRIS, E. P. FERRY, SUTCLIFFE BAXTER, AND G. C. PHINNEY.

FINDINGS OF FACT—SUFFICIENCY.

Upon the trial of an issue of fact by the court, an order of the court reciting that it is its decision "that there is not sufficient evidence to support the allegations of plaintiff's complaint in this action, and that the defendant's allegations are true," is not a sufficient finding of facts, as required by Code Wash. T., §§ 246, 256, where some of the material allegations of the complaint are not denied by the answer, and many of plaintiff's most important allegations are contained in its reply.

*Error to District Court, King County.*

The facts are sufficiently stated in the opinion.

*Ronald & Piles*, and *W. S. Bush*, for plaintiff in error.

*C. H. Hanford, Thomas Burke, Eben Smith* and *Struve, Haines & McMicken*, for defendants in error.

The opinion of the court was delivered by

STILES, J.—This cause involves the examination of the accounts of the appellee Hill, as treasurer of King county, for a considerable period, and was referred by stipulation to a referee, under § 248 of the code, to be tried upon questions of fact and law. The referee reported his findings of fact and conclusions of law in admirable form, together with the testimony and exhibits, and the cause then came before the court upon exceptions to the report filed by both parties. The plaintiff merely objected to the conclusions of law which resulted in a smaller judgment in its favor than it deemed itself entitled to. But the defendants, by their objections, attacked the findings of fact as well, and sought to set aside the entire report and findings, including the testimony. The court after argument overruled the motion of the plaintiff, and at the same time, by an order, sustained certain of the exceptions of the defendants. The language of the order was: "The court sustains each and all of the exceptions" (of the defendants); but farther along it ordered, "that the findings and conclusions of said referee be and the same are set aside," which, we take it, left the testimony intact, inasmuch as the subsequent decision of the court purported to be based on the evidence, for which there was no other resort than the testimony reported. This left the cause before the court for disposition under § 256 of the code, either to again refer or to "find the facts and determine the law itself, and give judgment accordingly." The latter course was chosen, and instantly acted upon, the same order which set aside the referee's report concluding with the following: "And it is the decision of the court that there is not sufficient evidence to support the allegations of the plaintiff's complaint in this action, and that the defendants' allegations are true, and the judgment should be rendered in favor of the defendants for their costs and

disbursements herein." Then followed a judgment for defendants.

The case was brought here upon several grounds, which were disposed of under the order of this court heretofore made striking out appellant's statement. The single ground now to be decided is, whether the court erred in rendering a judgment against the plaintiff without finding the facts and determining the law thereon, appellant maintaining that the order of the court, reciting that it is its decision "that there is not sufficient evidence to support the allegations of the plaintiff's complaint in this action, and that the defendants' allegations are true," is not a finding of facts at all, and that, therefore, there was no trial as required by the statute. With this view we are entirely in accord. The sections of the statute cited, taken together with § 246, are perfectly clear as to the duty of the court in such cases. We are not prepared to say that where the pleadings make clear and simple issues the allegations of the complaint and answer may not be referred to as findings, if the facts are found to be as laid in the one or the other, with the concise statement that the facts in each are true or untrue, as the case may be. But no such thing presents itself here, at least as to the complaint, of which it is said "there is not sufficient evidence to support the allegations." We know as a fact that some of the important allegations of the complaint were not denied by the answer; and many of the most important of the plaintiff's allegations were contained in its reply, wherein certain settlements alleged in the answer to have been made by defendant Hill with the county commissioners, were shown to have been made under a mistake of facts; and these are not touched by the court's decision. From the language the court used, one reading its decision would be unable to say whether it found any particular controverted allegation sustained, and some others not; or whether all but one of the material allegations of the com-

plaint may not have been fully sustained, and one equally material totally unsupported; or whether there was simply a general weakness of proof all along the line. If any fact material to the plaintiff's case was proven, it had a right to have it found, as though the cause had been submitted to a jury upon special issues. There was no waiver of findings. Even were there a statute similar to that providing for the waiver of a jury, mere silence would not constitute a waiver. *Meeker v. Gilbert*, 3 Wash. T. 369.

The judgment is reversed, and the cause remanded to the superior court of King county, to be disposed of under § 256 of the code.

ANDERS, C. J., and SCOTT and DUNBAR, JJ., concur.

HOYT, J., not sitting.

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[No. 80. Decided December 3, 1890.]

## M. V. KELLOGG, MICHAEL PHILLIPS, GEORGE MISENER, AND HARRIET MISENER v. LITTELL & SMYTHE MANUFACTURING COMPANY.

MECHANICS' LIENS—DESCRIPTION OF LAND—FORECLOSURE.

A notice of claim of mechanics' lien, which describes the land as "being seventy feet on Pike street, and on the southerly line thereof, by seventy-five feet front on Fourth street, and on the westerly line thereof, excepting a space of twenty-two feet more or less wide on Pike street by about twenty-five feet deep," is so indefinite and uncertain as to the tract excepted that a decree of foreclosure cannot be based thereon.

Under the laws of this state, a mechanics' lien cannot be maintained upon a building separate from any interest in the land upon which it is situated.

*Appeal from Superior Court, King County.*

Action by the Littell & Smythe Manufacturing Company to foreclose a mechanics' lien upon the building of defendant, Phillips, and upon his leasehold interest in certain

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land, and against the defendants, George and Harriet Misener, as owners of the fee in the land, and against M. V. Kellogg, as the contractor who erected the buildings. Judgment for plaintiffs, and defendants appeal.

*P. P. Carroll*, for appellants.

*Smith & Littell*, for appellee.

The opinion of the court was delivered by

HOYT, J.—The objections to the appeal herein urged by the appellee are as to irregularities not going to the jurisdiction of the court, and in view of the uncertainty existing at the time the appeal was taken, growing out of the change of the rules of this court and the unsettled practice thereunder, we do not think that they are such as should deprive the appellants of the right to be heard. The motion to dismiss the appeal is therefore denied.

Appellee sought to obtain judgment for material furnished by it for the erection of a certain frame building, and to foreclose a lien thereon for the material so furnished. Many questions have been argued here by counsel for the respective parties, but the view we take of the law of the case makes it unnecessary for us to consider more than one.

The notice of the claim of lien was introduced in evidence, and from such notice it appeared that the description of the land upon which the lien was claimed, was "all that certain plat of land situated at the southwesterly corner of Pike and Fourth streets, in the city of Seattle, King county, and State of Washington, being seventy feet on Pike street and on the southerly line thereof, by seventy-five feet front on Fourth street and on the westerly line thereof, excepting a space of twenty-two feet more or less wide on Pike street by about twenty-five feet deep; the same being a part of said lots 2 and 3 of said block 21, A. A. Denny's addition aforesaid," and was, in our opinion, so indefinite and

uncertain that a decree of foreclosure could not be founded thereon. It is true that the large piece first described is definite and certain, and if the effect of the continuance of the description had been to except therefrom any certain portion, then the description as a whole would have been good; but such is not the effect of the remainder of the description; on the contrary, its effect is to except from such larger piece a smaller one, the location of which is entirely uncertain. It is true that the area of such smaller piece may be taken as definitely set out by striking from such description the words "more or less," and also the word "about;" and for the purpose of sustaining the lien we should not hesitate to treat such words as surplusage. The fact that the area is certain will not, however, aid the description so long as its location in the larger tract is uncertain. The area in question might be a strip eleven feet wide and twenty-five feet long on either side of a line drawn at any point from Pike street not less than eleven feet nor more than fifty-nine feet from Fourth street. The description, as a whole, is just as uncertain as to the land covered thereby as would be one covering an entire section of land excepting one quarter thereof, without in any way pointing out which quarter section was so excepted. The question is not here presented as to the effect of such notice, if the proofs had been such as to make certain the description intended, and the decree had corresponded to the amended description made by such proofs; for in this case the description in the notice is in no way aided. It follows that there could be no foreclosure of any interest in the land upon which the building was erected because of such insufficient description.

The notice of the lien described the building into which the material went so that it could probably be identified; and if a lien can be maintained upon a building, as such, separate from any interest in the land upon which it is situated, then the decree of foreclosure in this case might be

sustained so far as it relates to the building, and would only have to be modified so as to cover that and nothing more. Such a lien can only be maintained when the statute in express terms so provides. Every case which we have been able to find holds that there can be no such lien without a statute expressly providing for a lien on the building separate from the land. *Babbitt v. Condon*, 27 N. J. Law, 154; *Coddington v. Dry Dock Co.*, 31 N. J. Law, 477; *Tracy v. Rogers*, 69 Ill. 662. In Missouri and Iowa, and perhaps other states, a lien upon the building alone can be maintained, but there, as elsewhere, the courts say that it can only be allowed by force of the positive provision of the statute, which, in those states, not only provides for a lien upon the building separate from the land, but further provides that the purchaser of such building shall have a reasonable time in which to remove the same from the land upon which it is situated. *Jodd v. Duncan*, 9 Mo. App. 417. Our statute would be capable of such a construction had it provided any way by which a lien established upon a building alone could be made of value to a lienor, but it has not done so, and we are, therefore, forced to the conclusion that the lien upon the building was only intended to be enforced in connection with some interest or right to the land upon which it was situated.

Something has been said about the duty of courts to give a liberal interpretation to our statutes. And that such is the duty of all courts, made so by the statute itself, is very plain. But the most that a liberal interpretation can allow a court to do, is to look with leniency upon the language used, and determine, without regard to technical accuracy of language, what the legislature intended. When the intention of the legislature has been thus ascertained, it is beyond the power of a court to dispense with any of the steps prescribed. To hold that a lien could attach without a full compliance with the statute, as thus interpreted, would be contrary to the act itself, as well as to the consti-

tution of our state, which provides that no property can be taken without due process of law.

Under the circumstances of this case there can be no lien, and the cause will be remanded with instructions to set aside the judgment and decree, and enter a new judgment against defendant Phillips for the amount found due and unpaid for the material furnished, with interest thereon to date of judgment. Appellants will recover costs of this court.

ANDERS, C. J., and STILES, DUNBAR and SCOTT, JJ., concur.

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[No. 90. Decided December 3, 1890.]

## J. H. FOSTER v. THE TERRITORY OF WASHINGTON.

GAMING—FARO—INDICTMENT—JUDGMENT—EXCESSIVE FINE.

As §§ 1253 and 1258, Code Wash. T., are sufficiently explicit to enable the court, with reasonable certainty, to determine what the legislature intended, and as they describe the offense of dealing faro, or permitting the same to be done on one's premises, with sufficient certainty, they cannot be held void for uncertainty and ambiguity.

As the gravamen of the offense consists in permitting the game of faro to be dealt in prohibited places, an indictment is sufficient, without specifying with whom the game was played, or in what particular manner it was conducted.

Under § 1258 of the code, imposing a fine not exceeding five hundred dollars on conviction, and providing that defendant shall stand committed until the same is paid, but making no provision for costs, a judgment for five hundred dollars and costs is not void for the reasons that it exceeds the limitations of the statute, and does not fix a definite period of imprisonment in the event of non-payment of the fine, as said section should be construed in connection with § 2105, providing that on conviction the defendant shall be liable to pay costs in all cases, and § 1125, providing that in default of payment or security of fine and costs, a warrant shall be issued for defendant's commitment, specifying that he be imprisoned one day for every two dollars of such fine and costs.

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*Appeal from District Court, King County.*

The facts are fully stated in the opinion.

*Robinson & Farwell*, for appellant.

*E. M. Carr*, Prosecuting Attorney, for The Territory.

The opinion of the court was delivered by

ANDERS, C. J.—The grand jury of King county returned an indictment into the district court charging appellant with the crime of permitting the game of faro to be dealt upon his premises, the body of which is as follows:

"J. H. Foster is accused, by the grand jury of the Territory of Washington, for the county of King, in the Third judicial district of said territory, by this indictment, of the crime of permitting faro to be dealt on his premises, committed as follows: The said J. H. Foster, on the 12th day of January, 1889, in the county of King, in the district aforesaid, then and there being in the lawful possession of a certain room then and there situate and being in a certain building known as the "Grotto" then and there situate and being on the south side of Yesler avenue street, between Commercial and South Second street, in the city of Seattle, in said King county, unlawfully, knowingly and willfully did permit one J. Bachelor then and there and therein to unlawfully, knowingly and willfully deal a game of faro then and there played with cards for money."

To this indictment appellant caused a plea of guilty to be entered, and subsequently filed a motion in arrest of judgment, on the ground that the indictment did not state facts sufficient to constitute a crime. The motion was denied, and the defendant was sentenced by the court to pay a fine of five hundred dollars and costs amounting to twenty dollars, and stand committed to the county jail of King county until said fine and costs should be paid or the defendant discharged according to law, and the court remanded the defendant into the custody of the sheriff to carry the sentence into effect. The defendant appeals and

asks this court to reverse the judgment of the court below for the following reasons: 1st. That § 1258 of the code is void for uncertainty, and because it does not describe the offense. 2d. That § 1253 is also void. 3d. That even if the statute is valid the indictment does not state facts constituting an offense. 4th. That the judgment and sentence of the court is void, because it exceeds the limitations of the statute and the jurisdiction of the court.

The objection to the validity of the statute is not tenable. The language is sufficiently explicit to enable the court, with reasonable certainty, to discover what the legislature intended, and the statute cannot, therefore, be held void for ambiguity or uncertainty. Mere inaccuracies of expression, or faulty arrangement of words and phrases, if the meaning is intelligible, are insufficient to warrant the court in declaring a statute void. Bish. St. Crimes (2d ed.), § 41. And we are of the opinion that the objection that the sections of the code above mentioned do not describe an offense, is equally untenable. Counsel claims that the statute does not explicitly point out or describe the acts constituting the crime, but we think otherwise. It states clearly enough, as we read it, that the act of dealing faro or suffering or permitting the same to be done on one's premises is a crime. Similar statutes exist elsewhere and, so far as we are advised, have seldom been questioned. *People v. Beatty*, 14 Cal. 567; *People v. Sam Lung*, 70 Cal. 515.

The indictment is sufficient. The gravamen of the offense consists in permitting the game to be dealt in prohibited places, and it was not necessary to specify with whom the game was played, or in what particular manner it was conducted. The definition itself sets forth the constituent elements of the crime, and the indictment being in substantially the same language fulfills all the requirements of the law. *People v. Saviers*, 14 Cal. 29; *Rice v. State*, 3 Kan. 141; Bishop St. Crimes (2d ed.), §§ 890, 891;

*Romp v. State*, 3 G. Greene (Iowa), 276; *People v. Carroll*, 80 Cal. 153.

That the judgment in this case exceeds the limitations of the statute or the jurisdiction of the court, we cannot concede. Section 1258 of the code imposes a fine not exceeding five hundred dollars, upon conviction, and provides that the defendant shall stand committed until the same is paid, but is silent as to costs; and it is therefore claimed that the court had no right or authority to include the costs in its sentence, and thereby really impose a fine of five hundred and twenty dollars. It is also contended that the judgment is void for the further reason that the court did not fix a definite period of imprisonment in the event of the non-payment of the fine. But we think these objections cannot be sustained. This section ought, in our opinion, to be construed in connection with the general provisions of the code upon the subject of costs in criminal cases, and of imprisonment for non-payment of fines. Section 2105 provides that on conviction the defendant shall be liable to pay the costs in all cases, and § 1125 (amended in Laws of 1883, p. 38) provides that when a defendant is sentenced to pay a fine and costs, and is remanded into the custody of the sheriff, the clerk of the court, in default of payment or security of payment, shall issue a warrant for his commitment, specifying that the defendant shall be imprisoned one day for every two dollars of such fine and costs. We see no error in the judgment and sentence of the court in this action. The only exception to the general rule that the defendant on conviction must pay the costs, of which we are aware, is found in § 1104 of the code, which provides that, if the court or jury trying the cause expressly finds otherwise, the defendant shall not be liable.

For the foregoing reasons, the judgment of the court below must be sustained.

DUNBAR, HOYT, SCOTT and STILES, JJ., concur.

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[No. 91. Decided December 3, 1890.]

## EUGENE W. WAY v. THE TERRITORY OF WASHINGTON.

GAMING—DESTRUCTION OF GAMBLING APPARATUS—PRESUMPTIONS.

Under a statute permitting the destruction of gambling apparatus seized and held as evidence upon the trial, where the record is silent as to how the apparatus came into the possession of the sheriff, the court cannot presume that such possession was wrongfully obtained, or that the recitals and order of the court directing the destruction were unauthorized.

*Appeal from District Court, King County.*

Indictment against E. W. Way for the crime of permitting faro to be dealt upon his premises. Plea of guilty, motion in arrest of judgment denied, and defendant sentenced to pay a fine of $500 and costs amounting to twenty dollars. The court also ordered the destruction of certain gaming apparatus which was seized in the possession of defendant. Defendant appeals.

*Robinson & Farwell*, for appellant.

*E. M. Carr*, Prosecuting Attorney, for The Territory.

The opinion of the court was delivered by

ANDERS, C. J.—The facts in this case are similar in all respects to those of the case of *Foster v. Territory, ante*, p. 411, just decided by this court, except that in this action the court ordered the destruction by the sheriff, of certain gambling apparatus which was seized in the possession of the defendant and held as evidence upon the trial. Appellant claims that the statute permits the destruction of such gambling implements only as have been seized under the authority of a search warrant and retained as evidence, and that the property destroyed was not so obtained. It is difficult to see how the method of obtaining the possession of things liable to destruction on ac-

count of their character and the purposes for which they are used could affect the power of the court over them. But it is not necessary to determine that question in this instance, for the reason that the record is silent upon the question of how this "gambling apparatus" came into the possession of the sheriff, and we cannot presume that such possession was wrongfully obtained, or that the recitals and order of the court were unauthorized. And, besides, the record fails to show that any objection or exception was made or taken to the order, and the assignment of errors fails to mention it.

For the foregoing reasons, and those given in the case of *Foster v. Territory*, above mentioned, the judgment of the court below must be sustained.

DUNBAR, HOYT, SCOTT and STILES, JJ., concur.

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[No. 100. Decided December 3, 1890.]

## W. H. COWIE AND CHARLES ROBERTS v. HANS AHRENSTEDT AND OTTO GRANSTROM.

MECHANICS' LIENS—DESCRIPTION OF PREMISES—PLEADING—EVIDENCE—PARTNERSHIP—APPEAL.

Where no motion to strike an improperly settled statement of facts was made and filed, as required by the rules of this court, objection thereto is waived, although objection was made at the time of its settlement, and also in the brief of appellee filed in this court.

In an action to charge two persons as partners for the price of brick used in the construction of a certain building, the partnership is not established by evidence that the defendant denying partnership was working with his co-defendant, that he wrote an acknowledgement of the receipt of the brick and of the amount still due thereon, which was not signed by him but by his co-defendant alone, and that he had said something about his being as much a contractor on the building as anyone.

In an action to foreclose a mechanic's lien, a denial by defendant, on information and belief, of the recording of the notice of lien is sufficient to require plaintiff to prove that the notice has been recorded as required by law.

Where the claim of lien was upon the whole of a certain lot, but the proof showed that it was only upon a part of it, thirty-six feet in width, nearer the center than either side of the lot, which was sixty by one hundred and twenty feet, the description was not sufficiently definite to sustain a judgment; nor is the judgment aided by adding to such description the name of the building on the land.

Where defendant holds under written lease the premises upon which a lien is claimed, his interest therein cannot be shown by oral testimony.

*Appeal from Superior Court, King County.*

The facts are stated in the opinion.

*Richard Osborn*, for appellants.

*N. Soderberg*, for appellees.

The opinion of the court was delivered by

HOYT, J.—Plaintiffs obtained a judgment against C. Kavanaugh and Charles Roberts for certain brick alleged to have been sold and delivered to them, and also obtained a decree of foreclosure of a lien alleged to have been claimed and filed upon the leasehold interest of the defendant, W. H. Cowie, in a certain brick building in the construction of which, it was alleged, said bricks were used. From the judgment and decree thus entered defendants Cowie and Roberts have appealed, and the case is before us on a transcript of the record and a statement of facts settled therein. As to this statement of facts, the record shows that the appellees objected to its settlement, and in their brief filed here they say it should be stricken from the record because not properly settled. But, as no motion to strike the statement was made and filed, as required by the rules of this court, we must consider the point made in the brief waived, and cannot enter upon an examination thereof.

Plaintiff introduced evidence tending to show a sale of the brick to defendant Kavanaugh alone, and the only evidence tending to show that defendant Roberts had any connection with the sale, either as a partner of Kavanaugh or otherwise, was the fact that he was at work with Kavanaugh on the building into which the brick went, and the further fact that he wrote an acknowledgment of the receipt of the brick and of the amount still due thereon; but as this paper, though written out by Roberts, was signed by Kavanaugh only, in his own name, and not by Roberts at all, neither the fact of his writing it out, nor the fact that he was working with Kavanaugh, would establish even *prima facie* the partnership alleged. It is true that, in addition to the above circumstances, one of plaintiffs' witnesses testified that defendant Roberts said something about his being as much a contractor on the building as any one; but this alleged conversation was too indefinite to prove anything, and could not aid the plaintiffs.

A notice of lien was introduced in evidence, but there was no proof tending to show that it had been recorded, as required by law. Not even the file marks of the auditor appear upon the copy of the lien contained in the transcript. That the lien notice must be filed before the lien attaches, so that there can be a foreclosure thereof, is too plain for argument. And we do not understand that counsel for appellees contend to the contrary. The appellees, however, claim that there was no sufficient denial of such filing in the answer of defendant Cowie, and that for that reason they were not required to prove such fact. The language of the denial of the paragraph alleging the recording of the lien is as follows: "Defendant denies any knowledge or information sufficient to form a belief, and therefore denies each and every allegation contained therein," and it is not claimed that it is not sufficient in form. It is, however, contended that a denial of knowledge or information as to a fact, the truth or falsity of

which can be ascertained by reference to a public record of which every person has constructive notice, is sham and frivolous, and of no effect. We think the rule thus stated is too broad. To hold that a defendant must at his peril obtain positive knowledge of every fact shown by the public records, of which he by law is required to take notice, would be contrary to the provisions of our code, as it has been interpreted by a uniform course of practice for a series of years. It would likewise be against the weight of authority. See *Vassault v. Austin*, 32 Cal. 597; also, *Brown v. Scott*, 25 Cal. 190. The true rule we believe to be, that as to all facts that are presumptively in the actual, personal knowledge of the defendant, or as to which it is his duty to have or obtain such personal, actual knowledge, he must answer positively, or by direct averments show why he cannot so answer, and that as to all other facts he may answer that he has no knowledge or information sufficient to form a belief. From the fact that the law makes a record constructive notice it does not follow that every one has any actual, personal knowledge of such record, nor does it impose upon them the duty of acquiring such knowledge.

The claim of lien was upon the whole of lot 3 in a certain block in Seattle, whereas the proof tended to show that a portion of said lot was not only not owned or leased by the defendant, but was in the actual and open possession of other owners or lessees, and upon such proof plaintiffs sought a foreclosure on a portion only of said lot. Whether or not such a course could be sustained in any case we shall not now decide, as in this case the particular part of the lot upon which it was claimed that the lien could be maintained, was not made sufficiently definite and certain to sustain a judgment. The proofs showed that it was a part of said lot 3, thirty-six feet wide, nearer the center than either side of said lot, and that said lot was sixty by one hundred and twenty feet. In the judgment there is an attempt to improve upon the proofs by adding

to such description an allegation that the building thereon situated was known as the Cowie block, but this addition was unwarranted by the proofs, and even when thus aided we think the description so indefinite that a sale thereof could not be intelligently had. It is an easy matter to have these descriptions accurate, and fair dealing, as well as public policy, requires that they shall be in substance so complete and certain that an officer charged with the sale of the property would have no doubt as to just what he is called upon to sell.

Plaintiffs were allowed to show by oral testimony facts in regard to the ownership of the lot in question, and as to defendant's interest therein as lessee of said owner though it affirmatively appeared that the lease in question was in writing and within the convenient reach of the parties. This was error, and should be corrected on a retrial of the cause.

The court found that $60.00 was a reasonable attorney's fee in the proceeding, for which finding we are unable to find any warrant in the proofs.

The judgment and decree must be reversed as to defendants Cowie and Roberts, and a retrial had in accordance with this opinion.

DUNBAR, SCOTT and STILES, JJ., concur.

ANDERS, C. J., not sitting.

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[No. 111. Decided December 3, 1890.]

## WILLIAM WADHAMS v. ALFRED PAGE AND JOSEPH GREEN.

PARTNERSHIP—LIABILITY OF RETIRING PARTNER—NOVATION—PREPONDERANCE OF EVIDENCE.

An agreement between two partners upon the dissolution of partnership that the debts of the firm shall be assumed and paid

by one of them, is of no effect as against a creditor of the firm, although notified of such arrangement, unless the creditor assents thereto; and mere silence on the part of the creditor, or delay in making demand, is not evidence of such assent.

In an action by a creditor against a retiring partner to recover a partnership debt, an answer alleging that the creditor had agreed to look to the other partner for its payment, is an affirmative defense, and, as such, must be proved by a preponderance of the evidence, and it is error to instruct the jury that "it is not necessary that he prove it by more testimony than against it."

*Appeal from Superior Court, King County.*

Action by William Wadhams, doing business under the firm name and style of Wadhams & Co., against Alfred Page and Joseph Green, partners doing business under the firm name of Page & Green, to recover a balance upon an account for goods, wares and merchandise sold and delivered by Wadhams & Elliott to defendants. Prior to trial, the firm of Wadhams & Elliott assigned in writing all their accounts and claims to William Wadhams, the appellant herein. The facts appear in the opinion.

*Thomas Burke* (*Andrew Woods*, of counsel), for appellant.

*Lewis & Gilman*, for appellees.

The opinion of the court was delivered by

DUNBAR, J.—This was an action by plaintiff and appellant to recover a balance alleged to be due from defendants and appellees on account amounting to $203.43, with interest thereon at the rate of ten per cent. per annum from the 3d day of April, A. D. 1884. Service of summons was had only on defendant Joseph Green. The defendant Green, for an affirmative defense, alleged that on the 23d day of February, A. D. 1884, he and one Alfred Page were doing business under the firm name of Page & Green; that on about the 3d day of April, 1884, they dissolved partnership; that at said time there was due Wadhams & Elliott

about the sum of $203.00; that the said Page continued to run and manage the said business of the said partnership; that the said Page was to pay the said Wadhams & Elliott the said amount due said firm; that Wadhams & Elliott were notified of said dissolution; that they accepted the said Alfred Page for the said indebtedness due them from said firm of Page & Green, and transferred the account of Page & Green to the said Alfred Page, and held the said Page only for the said amount of indebtedness, and did then and there release the defendant Green from any obligation or indebtedness due to plaintiffs by the said firm of Page & Green. The affirmative matter in defendant's answer was denied in plaintiff's reply. Payment of the said indebtedness was also alleged in the answer, but no attempt was made to prove the payment on the trial, except as stated in the affirmative answer. The jury found a verdict in favor of defendant; judgment was rendered in accordance therewith, and from said judgment plaintiff appeals to this court, also alleging certain errors in the instruction of the court.

While a "novation" was pleaded as an affirmative defense in this action, there was no proof tending to show that Wadhams & Elliott had ever, by express or implied contract, agreed to extinguish defendant Green's liability by substituting or accepting Page as the payer of the debt incurred by the partnership of Page & Green. It is true that the testimony of Green showed that it was agreed between Page and Green that Page should assume this debt and that Green should be discharged; and that Wadhams & Elliott were notified of the dissolution and of the agreement between Page and Green. But the promise of one partner to pay the debt of another for which he is already bound is no consideration for an agreement to release the other partner. *Early v. Burt*, 68 Iowa, 716; *Wildes v. Fessenden*, 4 Metc. 12.

In order to give any weight to an agreement whereby

liabilities are extinguished, it is essential that all parties in interest should be parties to the agreement. It would certainly be a loose and unjust law that would allow obligations to be thrown off or transferred at the will of the obligor. Such is not the law. If one partner transfers his liability to another and the creditor does not assent to the transfer, his rights are not affected. As stated by Mr. Lindley, in his excellent work on Partnership, p. 240: "It cannot be too often repeated that, merely by retiring, a partner gets rid of no liabilities as to past transactions, unless there is some statutory enactment applicable to his case; and the same observation applies to a total dissolution. To use the words of Mr. Justice HEATH, 'when a partnership is dissolved, it is not dissolved with regard to things past, but only with regard to things future. With regard to things past the partnership continues.'" Indeed, so improbable was the idea that a creditor would release a part of his security and rely on one debtor when he before had two, without taking any other security, that some of the early English courts held that where a partnership had been dissolved, one member retiring and the other continuing the business, and agreeing to pay the debts of the old firm, where the creditors knew of the arrangement and consented to it, and transferred the debt to the new firm, and where there was strong testimony outside of this fact showing that the creditors had agreed to discharge the defendant and look to the other partner, that the retiring partner was liable; and the fact that no person had become liable to the defendant, who was not so originally, was relied upon by the court as showing that there was no consideration for the alleged discharge. The most noted cases holding this doctrine were *Lodge v. Dicas*, 3 Barn. & Ald. 611, and *David v. Ellice*, 5 Barn & C. 196. But while this doctrine has been modified by the later decisions and authorities, no court that we know of has gone so far as to hold that the simple agreement between the partners that

one of them should be discharged, and notice to the creditors of said agreement, will affect the rights of the creditors, or be construed as any implied promise on the part of the creditor to discharge either partner. But the opposite doctrine has been enunciated by many courts. *Chase v. Vaughan*, 30 Me. 412; *Umbarger v. Plume*, 26 Barb. 461; *Coleman v. Pearce*, 26 Minn. 123; *Aiken v. Thompson*, 43 Iowa, 506, and cases cited; *Blew v. Wyatt*, 5 Car. & Payne, 397; *Harris v. Lindsay*, 4 Wash. C. C. 98; *Heberton v. Jepherson*, 10 Pa. St. 124; *Payne v. State*, 39 Barb. 634; *Offutt v. Scott*, 47 Ala. 104.

It is urged by counsel for appellee that the fact of silence and the long delay in making any demand is of itself evidence of acceptance of the agreement of the partners in this case. Even if the testimony bore out this assumption, silence alone on the part of the creditor is no evidence of a "novation." The failure of a creditor to demand payment for any period of time within the statute of limitations will not discharge the retiring partner. *Harris v. Lindsay*, 4 Wash. C. C. 98; *Jenness v. Lane*, 26 Me. 475; *Hall v. Jones*, 56 Ala. 493. But the testimony does not show silence on the part of Wadhams & Elliott. On the contrary, the defendant Green himself testified that after he had notified Wadhams & Elliott of the dissolution, and of his arrangement with Page, for Page to pay the debts, that Wadhams & Elliott expressly insisted that he, Green, should sign a note with Page for the payment of said debt, and that he refused to so sign. This was also sworn to by plaintiff. This, instead of indicating an acceptance of Page by Wadhams & Elliott, was a direct avowal by them that they would *not* discharge Green, and that they desired to have their account settled by the joint note of both partners, as is usual in such cases. The testimony of Wadhams also was, that he wrote several letters to Green demanding the payment of this account; and the exhibits show that for some time prior to August, 1886, he had placed the account in the hands of

attorneys for collection; and it can easily be gathered from the correspondence that the bill had been presented and payment thereof refused by the defendant. Neither was there any testimony tending to show that the account of Page & Green had been transferred to the account of Page. The only testimony on this point was the testimony of Wadhams who testified positively that all the payments that had been made on the account of Page & Green were credited on the account of Page & Green; and that the said account of Page & Green had *not* been transferred to the account of Page. In fact, we are unable to find any testimony in the case tending to show, in the least, any consent, expressed or implied, on the part of Wadhams & Elliott to discharge the defendant from his obligations. This being the case, and the amount claimed by the complaint to be due having been proven by the plaintiff to be due, and the correctness of the claim not having been denied by the defendant in his testimony, the verdict was unwarranted, and the judgment must be reversed.

It is also claimed by appellant that the court erred in instructing the jury, as follows: "It is not necessary that the defendant Green proves to you beyond a reasonable doubt that the creditors or these plaintiffs accepted Page, nor need he prove the fact by an overwhelming weight of evidence. It is not necessary that *he proves it by more testimony than against it.*" This instruction we think was error. It is almost too elementary to need repeating here, that every affirmative allegation must be proven by a preponderance of testimony. This is a general proposition; but the law especially provides that the *onus* of showing an extinguishment lies upon those who allege it. *Estate of Davis & Desauque,* 5 Whart. 530; 34 Am. Dec. 574, and cases cited; *Hall v. Jones,* 56 Ala. 493. It is urged by the appellees that the charge as a whole was correct, and the jury would not be misled; but we think this particular statement, " it is not necessary that he proves it by

more testimony than against it," couched as it was, in words which could be plainly understood by an unprofessional mind, and a proposition that the jury would probably segregate and remember, would be liable to mislead them as to the amount of testimony necessary to establish an affirmative allegation.

The judgment is reversed, and the case remanded to the lower court with instructions to grant a new trial. And it is so ordered.

ANDERS, C. J., and STILES, HOYT and SCOTT, JJ., concur.

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[No. 126. Decided December 8, 1890.]

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T. M. REED, Jr., *Administrator of the Estate of Julia S. Israel, deceased,* v. MARY M. MILLER.

DECEDENT'S ESTATES—MORTGAGE—PRESENTATION OF CLAIM—INTEREST—ATTORNEY'S FEES.

The failure to present a claim secured by mortgage upon a decedent's land to the administrator of the estate within one year after notice of his appointment, will not prevent a foreclosure of the mortgage where no recovery is sought beyond the proceeds of the mortgaged lands.

An agreement in a mortgage to pay interest semi-annually at the rate of 1½ per cent. per month, which, if not so paid, is to be added to the principal and draw like interest, and further providing for 10 per cent. attorney's fees upon principal and interest, in case of foreclosure, is valid under the laws of this state.

In a suit for foreclosure of a mortgage on real estate, where the mortgagor dies pending the suit, it is not necessary, in order to recover costs and attorney's fees, that the claim should have been presented to the administrator of the mortgagor's estate within one year after his appointment.

*Appeal from Superior Court, Thurston County.*

The facts are fully stated in the opinion.

*James Kiefer*, for appellant.

*Allen & Ayer*, for appellee.

The opinion of the court was delivered by

SCOTT, J.—The record in this case shows that on August 14, 1884, the defendant, Julia S. Israel, with her husband, George C. Israel, executed a note to the plaintiff, the principal sum being $1,000.00, due one year from its date, and bearing interest from date at the rate of 1½ per cent. per month until paid, the interest payable semi-annually, and if not so paid to be added to the principal and draw like interest, and at the same time secured the payment thereof by a mortgage upon certain lands in said county. On the 28th day of October, 1885, the note being unpaid, plaintiff instituted a suit in the territorial district court for said county to foreclose the mortgage, and on October 21, 1886, during its pendency, said Julia S. Israel died intestate.

It is conceded that on December 6, 1886, T. M. Reed, Jr., was appointed administrator of her estate, and duly qualified as such, and on the same day caused the usual notice to be published requiring all creditors of said deceased to present their claims to him within one year thereafter, and that the claim in question was not so presented. June 11, 1888, the administration being still pending, said administrator was substituted as defendant in the action in place of deceased.

At the trial the court found $2,449.00 to be due the plaintiff upon the note; and in arriving thereat, computed interest upon the principal sum, less a small payment which had been made, at the rate of 1½ per cent. per month, and compounded the same semi-annually. The court also found the additional sum of $244.90 to be due as attorney's fees in said action, and on April 29, 1890, decreed a sale of the mortgaged lands, and directed the proceeds to be applied in payment of the amounts so found to be due the plaintiff, together with the other costs and expenses. No judgment for any deficiency over was rendered.

The mortgage provided, in case of a foreclosure, that the plaintiff might have her counsel fees to the amount of ten per cent. upon the principal and interest found to be due, paid out of the moneys arising from the sale of the land.

The defendant appealed the cause to this court. He alleges that the plaintiff's claim was barred by reason of a failure to present the same to the administrator in the probate proceedings. That it was error to compound the interest, and that the plaintiff could not recover her costs and attorney's fees without having presented such a claim to the administrator.

The first point is disposed of in the case of *Scammon v. Ward, ante*, p. 179, wherein this court decided that a failure to present such a claim would not prevent a foreclosure of the mortgage where no recovery is sought beyond the proceeds of the mortgaged lands.

The findings of the court as to interest and attorney's fees is in entire accord with the terms of the note and mortgage. Neither of these instruments is attacked upon the ground of being unconscionable, nor is the amount of the attorney's fees claimed to have been unreasonable. There is no law in this state prescribing a different rate of interest in case of the death of a party, from that provided by the contract, and was none at the time the same was entered into. The objections urged in this case cannot be allowed to prevail, whatever opinion the court might entertain as to the advisability of a different rule. The code provides, § 2369, that "any rate of interest agreed upon by the parties to a contract, specifying the same in writing, shall be valid and legal," and this is the law until changed by legislative enactment, excepting cases where contracts should be set aside upon some of the recognized grounds for which the same may be annulled.

The judgment is affirmed.

ANDERS, C. J., and DUNBAR, STILES and HOYT, JJ., concur.

[No. 58. Decided December 10, 1890.]

# WILLIAM RITCHIE v. J. R. GRIFFITHS AND EDWARD METCALFE.

REGISTRATION OF DEEDS—INDEXING—CONSTRUCTIVE NOTICE.

Under the registry law of this state (Session Laws 1869, p. 313), the depositing of a deed for record in the office of the county auditor does not operate as constructive notice to the public; it is necessary that the deed be duly recorded in the proper record, and properly indexed, the index being an essential part of the record.

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*Appeal from Superior Court, Clallam County.*

Action by J. R. Griffiths and Edward Metcalfe against William Ritchie for the possession of certain land in Port Angeles, Clallam county, State of Washington. The court made the following finding of facts and conclusions of law: *First:* That the deed from Norman R. Smith to Nellie Meagher, dated September 30, 1881, under which plaintiff's claim was filed for record and recorded on the 10th day of October, 1881, in book F of the records of deeds in the office of the auditor of Clallam county, Washington Territory. *Second:* That the said deed was not indexed in the general index for deeds kept by the auditor. As a conclusion of law from the foregoing, the court finds that the defendant, as a subsequent purchaser from Norman R. Smith, is charged with notice of said deed, and that the plaintiffs are the owners in fee and entitled to judgment for the land claimed in their complaint, for the possession of the same, etc. Judgment was given for plaintiffs, and defendant appealed.

*Bush & Noyes*, for appellant.

*Johnson & Moody*, for appellees.

The opinion of the court was delivered by

DUNBAR, J.—The first question to be decided in the consideration of this case is, does a grantee who deposits his deed for record in the auditor's office, where it is received

by that officer, discharge his duty of notice to the public, so that his title can not be prejudiced through the fault or negligence of the auditor in not recording said deed in accordance with the requirements of the registry laws? If it is concluded that he does so discharge his duty, and that constructive notice is thus given, it will be conclusive of this case; and it will not be necessary to enter into the question of whether or not the index is an essential part of the record. It will be seen that important questions arise here affecting valuable rights, and that, whichever way they are decided, a hardship will be imposed upon an innocent party. In one instance, the first grantee relies on the officer, who is a creature of the law, to do his duty; and in the other, the purchaser, reposing faith and confidence in the correctness of the record, acts upon it. Shall the deed prevail, or the record of it? On the first question there is a somewhat perplexing conflict of authority. Some courts holding that a deed is recorded in contemplation of law, when it is entitled to registration, and is deposited with the recorder in his office for that purpose; and if, through any fraud, or neglect, or mistake of the recording officer, the proper notice is not conveyed to a subsequent purchaser or incumbrancer, that the misfortune will fall upon the subsequent purchaser. While other courts hold the opposite doctrine, that the *onus* is on the grantee who deposits his deed with the recorder, to see that every step is taken, and every act done, that is prescribed by the registry laws. For collated authorities on this question, see *Mangold v. Barlow*, 61 Miss. 593, 48 Am. Rep. 84; and Wade, Notice, pp. 70–3. In many of the cases, however, that are cited as holding the doctrine claimed by plaintiff, the courts, on a careful investigation, are found to have based their opinions on statutes materially different from ours; and others on the peculiar circumstances of the case.

The enunciation by the supreme court of the United States, in *Lytle v. Arkansas*, 9 How. 314, that "it is a well

established fact, that where an individual in the prosecution of a right does everything which the law requires him to do, and he fails to obtain his right, by the misconduct or neglect of a public officer, the law will protect him," has been largely relied upon by the plaintiff, and has been quoted by a majority of the cases reported, that hold the plaintiff's view; but in none of these cases, that we have seen, have the circumstances of that case, which called forth the opinion, been reported. To get the full scope and meaning of this expression, we must not regard it as a segregated proposition, independent of the case under consideration, and applicable to all cases. For judges in rendering opinions use expressions with reference to the application of principles involved in the case under consideration; and the language employed must be construed, and its meaning gathered from an examination of the questions involved, the circumstances surrounding, and the argument that leads up to the utterance; or, in homely phrase, it is necessary to know what the court was talking about. Of course, there are certain underlying or basic principles of law, from the true deductions of which are constructed legal maxims which may be stated as independent propositions and which will admit of no modification; but the examination of the case cited shows that the quoted utterance of the eminent judge has no application to the principles involved in, and the circumstances surrounding this case. That was a case where a preëmption claimant tried through a succession of years to obtain title to some fractional subdivisions of land, and was prevented, not by any negligence of the register and receiver in the land office, but on account of their construction of the law and circular instructions from the general land office. Afterwards, by act of congress granting a thousand acres of land to the state of Arkansas for the purpose of building a court house, the governor selected and sold the land in controversy to one Russell, under whom

the defendants held. Of course many interesting questions were raised during the trial of this case, but the particular circumstances of the case which called out the quoted utterance, and the intended application of the principles therein enunciated, can probably be gathered from the balance of the paragraph following the quotation, which is as follows: "In this case the preëmptive right of Cloyes having been proved, and an offer to pay the money for the land claimed by him, under the act of 1830, nothing more could be done by him, and nothing more could be required of him under that act. And subsequently, when he paid the money to the receiver, under subsequent acts, the surveys being returned, he could do nothing more than offer to enter the fractions, which the register would not permit him to do." Thus it will be seen that none of the principles involved in the case at bar, were involved in that case; and it shows the misleading tendency of quoting detached sentences from the opinions of courts. In that case the action of Cloyes was at every step a matter of public record and of official report; and the whole circumstances of the case show that the defendants had *actual* notice of his claim; though some of them denied such a notice in the answer, while others admitted that they had heard of his claim, but believed it to be fraudulent; but the court spoke with reference to the acts of an officer acting in a judicial capacity, and deciding questions of law; decisions and acts over which the plaintiff could not possibly exercise any supervision or control. It will certainly not be hard to see that a very different rule might obtain when the act required by the applicant was purely ministerial, and which he had a right to see was done in the manner prescribed by law. It is doubtful if the judge who rendered that opinion would have concluded that the grantee *had* done everything which the law required him to do, when he contented himself with simply handing his deed to the auditor without exhibiting any further concern about it. In our judgment the scope and meaning of this

opinion has been entirely misconstrued when applied to this character of cases. In *Mangold v. Barlow*, 61 Miss. 593; 48 Am. Rep. 84, one of the best argued cases sustaining the doctrine that the *onus* is on the purchaser, and a case which is also largely quoted, the court bases its opinion on the peculiar language of the Mississippi statute, which declares that certain instruments "shall be void as to all creditors and subsequent purchasers for valuable consideration, without notice, unless they shall be acknowledged or proved, and lodged with the clerk of the chancery court of the proper county to be recorded." Here the statute seems by express terms to make the lodging of the properly proved instrument with the clerk, the proof of constructive notice.

And thus it is with a great majority of cases cited in favor of plaintiff's theory. A close examination of them will show that the opinion is based upon some express language of the statute which would justify the conclusion reached; but on the general proposition, however, the decided weight of authority seems to be in favor of the view that the record can be relied upon by subsequent purchasers without actual notice; and that constructive notice cannot be given by an *attempt* to comply with the registry laws. And this view we think is supported by right reasoning, and founded on principles of equity and justice. As is most admirably stated by Mr. Jones in his work on mortgages: "Registry laws are intended to furnish the best and most easily accessible evidence of the title to real estate; to the end that those designing to purchase may be fully informed of instruments of prior date affecting the subject of their contemplated purchase, and also that having availed themselves of this means of knowledge they may rest there, and purchase in absolute security; provided they do so without knowledge, information, or such suggestion from other facts, as would be gross negligence to ignore, of some antecedent conveyance or equitable claim."

The recorder cannot be considered the agent of the purchaser, as is asserted by some of the authorities. It is a much fairer construction of the law, and more in harmony with the law of agency generally, to consider him the agent of the party who has the business transaction with him; who gets him to do the work; and to him he should be responsible for any damage flowing from his refusal or neglect to do the work according to the contract between them; and that contract is, either express or implied, that the instrument shall be recorded according to law. That is what the grantee pays him to do, and he must see to it that his work is done right, or accept the consequences as between himself and third parties who are misled. It can not be said that the purchaser is alone subject to damages from the non-recording of the instrument; the very object in having it recorded is to give constructive notice to innocent purchasers, and to protect the grantee's title against said purchasers. The law imposes upon him the duty of having his deed recorded. It is not the *attempt* to record a deed that the law requires, but it is the *recording* of the deed. It would be an empty benefit, indeed, that would accrue to the buying public if the attempt to record were held to take the place of the record. The obligation rests upon the grantee to give the notice required by the law. He controls the deed; he can put it on record or not, as he pleases. He has the right and the opportunity to see that the work is done as he directs it to be done—in legal manner; no one else has this opportunity, and, if from any cause he fails to give the notice required by law, the consequences must fall on him. It may be a hardship, but where one of two innocent persons must suffer, the rule is that the misfortune must rest on the person in whose business and under whose control it happened, and who had it in his power to avert it. Any other rule would be abhorrent to our natural ideas of right, and would render perilous every business enterprise.

The fact that the recorder gives to the grantee a certificate that the deed is properly recorded does not relieve him of the responsibility of seeing that it is actually so recorded. The certificate binds no one but the recorder, and cannot possibly, under any known rule of law or ethics, affect the rights of an innocent purchaser who cannot be bound by a transaction to which he is in no sense a party, of which he has no knowledge, and for which he is in no way responsible. As we before intimated, it might aid the grantee in recovering damages from the auditor, but could do no more than that.

The record is the essence of the law; the recorder is only a convenient instrument for the use of those whose duty it is to make the record. If, under the law, a public record were kept where every grantee was required to come and record his deed, he could certainly not plead his own mistakes or negligence, and the only reason why every man is not allowed to record his own instruments is simply that the record may be kept in a legible, orderly and presentable manner; and the law provides one man to do the work for the many, or, in other words, makes the one man the agent of the many, and who does the work at their instance and under their pay and control. It is true that in another department of his work he may be said to be the agent of the purchaser, or searcher of the records, or the law also makes him the custodian of the record books. Every man has a right to see the records, and the law, for the purpose of preserving the records and assisting the searcher of the records, constitutes the recorder their keeper, who, at certain hours fou[illegible] by the law [illegible] reasonable, must exhibit them to all [illegible] wish to see them, and must also certify to what the record shows, when requested so to do and paid for said services; and if, in the exercise of either of these duties, [illegible] either in misrepresenting the books by exhibiting [illegible] for blind records, or in making a false certificate, [illegible] through fraud or negligence, the

person for whom the service was rendered must suffer the damage if any flow from the negligent or fraudulent act, and his only remedy is against the recorder for damages. A. employed the recorder to search the records, and the recorder certified to A. that the record title to a certain tract of land stopped with and rested in B.; upon the strength of which A. purchased of B., for a valuable consideration, said land, and it afterwards eventuated that C. had a good deed on record for the same land, which the recorder overlooked; no well regulated court would, we think, hold that the title of C. would be jeopardized by the mistaken certificate of the recorder. We cannot conceive how the inconsistency or injustice would be diminished by holding that the innocent purchaser did not have a right to rely on the true record, or that the grantee would be protected by the false or mistaken certificate of the recorder.

With this view of the case it becomes necessary to investigate the next question involved, viz: Is the index an essential part of the record, under the registration laws of this state? On this proposition also there is conflict of authority, though the conflict in many cases is more seeming than real, for, as with the first question discussed, a great many of the decisions which are cited as in point on the abstract principle, prove, upon close investigation, to have been decided upon statutory provisions differing materially from ours. And as constructive notice by means of recorded instruments depends wholly upon statutory provisions, we will first examine the statute in force at that time. The statutes in force at the time of the alleged constructive notice will be found in the Session Laws of 1869, on pages 313, 314 and 315, and the sections to be construed in this case are as follows:

"Sec. 18. The auditor of each county in this territory shall record in a fair and legible hand-writing, in books to be by him provided for that purpose, at the expense of the county, all deeds, mortgages [illegible] other instruments of writing required by law to be recorded which shall be

presented to him for that purpose, and the same shall be recorded in regular succession, according to the priority of their presentation; and if a mortgage, the precise time of the day in which the same was presented shall also be recorded.

"Sec. 19. Upon the presentation of any deed or other instrument of writing for record, the auditor shall endorse thereon the date of its presentation, . . . and when such deed or other instrument of writing shall be recorded, the recorder shall endorse thereon the time when recorded, and the number or letter, and page or pages of the book in which the same is recorded."

Sec. 20 prescribes the penalty for failing to record when fees are tendered.

Sec. 21 provides for keeping a seal and making copies of records.

Sec. 22 directs the turning over the records to successor in office.

"Sec. 23. Each auditor shall, upon the written demand of any person, make out a statement in writing, certified under his hand and the seal of his office, of all mortgages, liens and incumbrances of any kind of record in his office, upon any real or personal property in relation to which the demand shall be made; and if said statement shall be incorrect, he and the sureties upon his official bond shall be liable to the person aggrieved for all damages sustained by him in consequence of such incorrect statement, to be recovered in a civil action.

"Sec. 24. Each county auditor shall keep a general index, direct and inverted. The index direct shall be divided into seven columns with heads to the respective columns as follows:

| *Time of reception.* | *Grantor.* | *Grantee.* | *Nature of instrument.* | *Volume and page where recorded.* | *Remarks.* | *Description of property.* |
|---|---|---|---|---|---|---|

"He shall correctly enter in such index every instrument concerning or affecting real estate, the names of the grantors being in alphabetical order. The inverted index shall be divided into seven columns, precisely similar, only that the names of the grantees shall be alphabetically arranged, and occupy the second column.

"Sec. 25. Whenever any mortgage, bond, lien or instrument incumbering real estate, has been satisfied, released or discharged from record, whether by written release across the record, or upon the margin thereof, or by the recording of an instrument of release, or acknowledgment of satisfaction, the auditor shall immediately note in both the indices in the column headed remarks, opposite to the appropriate entry, that such instrument, lien or incumbrance, has been satisfied." . . .

These different sections were not only all passed at the same session of the legislature, but are all incorporated in one act, and must therefore be construed together, and construing them as a whole, we conclude that §§ 18, 19 and 24 intended to provide a system for the registration of deeds and other instruments affecting real estate, the compliance with which would be constructive notice to strangers. The act points out several successive steps to be taken by the auditor when the instrument comes into his possession, before his duty with reference to it is accomplished. 1st. He must file it for record, noting the time when it was presented for record. 2d. Record it in a fair, legible hand, in a book provided by the county for that purpose. 3d. Correctly enter it into an index book, provided for that purpose, showing the time of reception, name of the grantor and grantee, nature of the instrument, volume and page where recorded, and description of the property. And all three of these successive steps must be taken before the record is complete. The other sections, which we have quoted, are simply directory to the auditor, or affect simply the auditor and the person with whom he is dealing; but the three requirements specified above are for the direct and only purpose of giving notice to the public. They are vital provisions, essential to constitute constructive notice.

The appellees' counsel cite § 4 of the act of November 9, 1877 (Laws 1877, p. 312), which is as follows: "All deeds and mortgages shall be recorded in the office of the

county auditor of the county where the land is situated, and shall be valid as against *bona fide* purchasers, from the date of their filing or recording in said office, and when so filed or recorded shall be notice to all the world," and argue from that that legal notice is given simply by *filing* the deed with the county auditor, and that no other notice is necessary. If that view could be entertained, it would practically render the provision in regard to recording a nullity, for the notice would be complete when the instrument was filed, and no man would go to the unnecessary expense of recording; and the record would soon become a voluminous and unapproachable mass of loose papers. There was evidently no such contemplation by the statutes. The auditor has twenty days within which to record the deed, after it is filed; and it is the evident meaning of the law, that it would be notice, by virtue of the filing, only during the *interim* of twenty days, at the expiration of which time, it is presumed to be recorded, and the deed can be withdrawn when the record becomes the notice. Or, as is more elegantly stated by Judge DILLON in *Barney v. McCarty*, 15 Iowa, 510; 83 Am. Dec. 427, in construing a similar statute: "As the filing is but one step in a series of steps, this language presupposes, and is, in fact, based upon the assumption that the other, and in the order of time, the subsequent requirements of the law, will be observed." The Iowa statute was substantially as ours, except that the recorder was required to keep a "fair book" in which he entered every deed, giving date, parties and description of land, in addition to an index with about the same requirements as ours. So that there was really more chance for an innocent purchaser to be put on his guard, under their registration laws, in the absence of the index, than under ours. And yet the supreme court of that state has uniformly held, that the index was necessary to give constructive notice.

We are strengthened in our opinion that the index is an

essential part of the record, necessary to give notice, by the provisions of § 25, which require that the satisfaction of instruments affecting real estate shall be noted in the index. The legislature, recognizing the importance of the index, and the universal custom of depending upon the index in searching the record, required that every step taken, both as to conveying, incumbering and releasing real estate, should be made to appear briefly on the index.

It is asserted by plaintiffs "that the general construction placed upon statutes similar to ours is, that the index constitutes no part of the record; and that a grantee cannot suffer from any error or omission in it," and in defense of this proposition cites *Musgrove v. Bonser*, 5 Or. 313; 20 Am. Rep. 737; *Bishop v. Schneider*, 46 Mo. 472; 2 Am. Rep. 533; *Chatham v. Bradford*, 50 Ga. 327; 15 Am. Rep. 692; *Curtis v. Lyman*, 24 Vt. 338; 58 Am. Dec. 174; and 1 Devlin on Deeds, §§ 695-7.

In the first case cited (*Musgrove v. Bonser*), the court decided (1) that a deed, which had been acknowledged in Washington Territory by an officer, other than a commissioner of deeds for Oregon, where the deed did not have the certificate of a certifying officer of a court of record under seal, that the acknowledging officer was such officer as he represented himself to be at the time of said acknowledgment, was not entitled to record under the statute, and, therefore, did not give notice; (2) that the recording acts of Oregon only protect persons who act in good faith; and (3) cited a case of *Hastings v. Cutler*, 4 Fost. 481, holding that where a defective deed has been recorded, while it did not operate as constructive notice of the conveyance, it might operate as actual notice, and the court in the case above cited said: "But if by means of that registration of the defective deed, the defendants had actual notice of the plaintiff's title, they are charged with the notice as in other cases. The defendants, when they found the copy of the plaintiff's deed on record, must have

understood that the intended record was to give information that such a deed had been made, and that plaintiff claimed the land under it. This must be regarded as actual notice, such as every reasonable and honest man would feel bound to act upon." There is no suggestion of an index in the case; but it is plain that on the other proposition, which we have already considered, the plaintiffs' case does not fall within the reason upon which this conclusion is based. In that case, it might be urged, with some degree of justice, that there was enough revealed by the record to put the purchaser on his guard; and once being notified of the conveyance, it would be his duty to investigate; and if, from such investigation, the will of the grantor could be gathered he would not be an innocent purchaser if he purchased contrary to such revealed will. But in the case at bar the very instrument by which this notice is given is wanting, and the avenues of knowledge are closed up. In *Bishop v. Schneider* the court holds that the index is no part of the record, asserting that the proper office of the index is what its name imports, to point out the record, that "the grantee has no control over the official acts of the recorder, and when he delivers his deed to the officer he has performed all the duty within his power." But the court states that this decision is based alone on the construction of the statutes of that state, and they are materially different from ours, both with regard to the definiteness of the index concerning deeds, and the absence of the requirements to note the satisfaction of mortgages, and other instruments affecting real estate, in the index. Altogether their statute does not make the index so important a part of the system of registration as ours does. Their statute also provides that when an instrument is filed with the recorder, it shall be considered as recorded from the time it is delivered. The opinion in this case quotes approvingly the case of *Sawyer v. Adams*, 8 Vt. 172; 30 Am. Dec. 459. There the town

clerk copied a deed, delivered to him for record, on a book which had ceased to be a book for recording for a number of years; and for the purpose of concealment and fraud, did not insert the names in the index or alphabet. It was held that the deed was not recorded, and was not notice to after purchasers. This is endorsed by the Missouri case on account of the fraud that was perpetrated. But it seems to us that it makes little difference, so far as the equities of the innocent purchasers are concerned, whether the obscurity of the record was the result of fraud or negligence on the part of the recorder. Certainly there is no logical basis for such a discrimination. The rights of the purchaser must depend upon something more tangible and more easily ascertained than the motive of the officer. Evidently the idea upon which the decision in this case was based was, that the searcher of title had been misled by the state of the record. But, as a practical fact, he would have been no more liable to have been misled by reason of the deed being recorded in an unused book, than if it had been recorded in the proper book and not indexed. The recording in the unused book was an unnecessary act of caution on the part of the recorder in his attempt to deceive. In *Chatham v. Bradford*, 50 Ga. 327; 15 Am. Rep. 692, while the court to a certain extent argues the general proposition, insisting that an index is only a means of access to the record, and that ease of access is wholly a question of degree, it says that many of the records of that state have no index, that their acts for the recording of deeds do not any of them require the clerk to keep an index, and states in conclusion that they put their decision mainly on their own statutes, and on the condition of the records and the uniform practice of that state. They also approvingly cite *Sawyer v. Adams. Curtis v. Lyman*, 24 Vt. 338; 58 Am. Dec. 174, cited by plaintiffs on this point, we have been unable to obtain; but from reference to it in other cases, we conclude that

their statute is different from ours in reference to indexing. Considering the difference in the statutes, we think that none of the cases cited are directly in point.

While it is true that Devlin, in his work on deeds, § 696, seems to imply that an index is not necessary to give constructive notice, yet he evidently bases the idea not so much on the theory that the index is not a part of the record, as from his general conclusion that the obligation of the grantee as to notice ceases when he has filed his deed for record. And he qualifies this general statement by saying, "unless the language of the statute necessarily leads to a different conclusion," a qualification it seems to us which renders meaningless the general statement; for as constructive notice is purely statutory, it must necessarily follow that it is the "language of the statute" that leads to one or the other of the conclusions. He cites *Barney v. Little*, 15 Iowa, 527, but says that "the decision in that case was founded upon the express language of the statute of that state," intimating that in consideration of the statute, the conclusion of the court was correct; and inasmuch as our statutes make the index a more important factor in the system of registration than does the Iowa statute, we may fairly conclude that under a statute like ours this learned author would consider the index an essential part of the record. Indeed, upon painstaking investigation, not only of all the cases cited by plaintiffs (except the Vermont case, above referred to), but of many others, we have been unable to find a case reported which decides that an index is not an essential part of the record, upon a statute substantially like the registry laws of 1869. It is true that in numerous cases it has been decided that where an instrument affecting realty was not indexed as required by law, that the title of the grantee should not be disturbed. The greater part of such decisions, however, will be found on examination not to be based on the theory that the index is not a part

of the record, but upon the broad principle that the recording officer is the agent of the subsequent purchaser; and that the grantee is acquitted, when he places his deed for record in the hands of the proper officer. A position which, we think, is untenable for the reasons above given. It is urged by the court in *Schell v. Stein*, 76 Pa. St. 398, 18 Am. Rep. 416, in deciding the case adversely to the interest of the purchaser, that the provision for indexing the records is of comparatively modern origin; and that such provisions did not exist in the early registry laws. This, we think, is a good argument, but the application by the learned judge was, in our judgment, bad. The law was no doubt suggested by the necessity of some such provisions, as the records accumulated, and at the present day, considering the accumulations of deeds, mortgages and liens of all kinds, affecting real estate, and the rapidity with which titles are changing every day, if we give the effect of constructive notice to the record at all, the only practical way by which the public can obtain the benefit of that notice is through the medium of the index. Laws are enacted for the benefit of the citizen, not only in theory but in practice. They are not intended as pit-falls for the feet of the unwary. The state provides in express terms for the keeping of this index, and its mandate to the auditor is to enter in said index, in alphabetical order, the names of the grantors and grantees. This law the citizen is aware of; he has a right to presume that the law has been obeyed. If there was *no* such law, and he had abundance of time, and untold patience, he might devote himself to the task of examining the vast accumulations of records page by page; but with the law in effect, and the universal custom recognized of examining the record through the index, if the instrument is not indexed the law instead of aiding and protecting the citizen becomes a delusion and a snare, and a ready vehicle for collusion and fraud. It would

be a policy worthy of the consideration of the ancient tyrant, who wrote his laws in small characters and posted them so high that his subjects could not read them, while at the same time he held them accountable for their strict observance. In this connection we cannot refrain from quoting the language of the court in *Barney v. McCarty*, "that a deed might as well be buried in the earth as in a mass of records without a clue to its whereabouts." In *Speer v. Evans*, 47 Pa. St. 141, the court says: "As a guide to enquirers, the index is an indispensable part of the recording, and without it, the record affects no party with notice." This we think is the better view of the law.

In this case there is no question of actual notice, and applying the law as we have found it to be, to the case at bar, it follows that the judgment of the lower court must be reversed. The case is remanded to the lower court with instructions to reverse the judgment.

ANDERS, C. J., and SCOTT, HOYT and STILES, JJ., concur.

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[No. 60. Decided December 10, 1890.]

## A. J. ANDRESSEN v. J. W. GRIFFITHS AND EDWARD METCALFE.

*Appeal from Superior Court, Clallam County.*

*Bush & Noyes*, for appellant.

*Johnson & Moody*, for appellees.

The opinion of the court was delivered by

DUNBAR, J.—For the reasons given in the case of *William Ritchie v. J. W. Griffiths and Edward Metcalfe, ante*, p. 429, the judgment of the lower court is reversed, and the cause is remanded to said court with instructions to proceed in accordance with this opinion.

ANDERS, C. J., and SCOTT, HOYT and STILES, JJ., concur.

[No. 61. Decided December 10, 1890.]

## E. L. DERRICKSON v. J. W. GRIFFITHS AND EDWARD METCALFE.

*Appeal from Superior Court, Clallam County.*

*Bush & Noyes*, for appellant.

*Johnson & Moody*, for appellees.

The opinion of the court was delivered by

DUNBAR, J.—For the reasons given in the case of *William Ritchie v. J. W. Griffiths and Edward Metcalfe, ante*, p. 429, the judgment of the lower court is reversed, and the case is remanded to said court with instructions to proceed in accordance with this opinion.

ANDERS, C. J., and SCOTT, HOYT and STILES, JJ., concur.

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[No. 92. Decided December 10, 1890.]

## THE ILWACO RAILWAY & NAVIGATION COMPANY v. GIDEON T. HEDRICK, *Administrator of the estate of Franklin G. Hedrick, deceased.*

NEGLIGENCE — PERSONAL INJURIES — EVIDENCE — CUSTOM.

In an action against a railway company for the death of a child, caused by the negligence of the company in leaving a turn-table unfastened, where the attending physician had testified that the child, who was frail and weak, died from injuries received at the turn-table, it was not error for the court to exclude a question to such witness as to "whether or not, if the child had been a healthy child, it would have survived the injury."

Evidence of the custom of railways to keep turn-tables unfastened at all times, whether in actual use or not, and whether enclosed or in an open public place, is inadmissible in an action against a railway company to recover for the death of a child of tender years, injured by reason of the company's unlocked turn-table.

In an action against a railway company for negligence in not properly securing a turn-table, whereby a child six years of age received injuries causing death, the fact that, prior to the accident, an agent of the company tied the turn-table with a rope so that it could not be revolved unless the rope were cut or untied, does not relieve the company from liability for its negligence in not adopting securer fastenings, where it is shown that the agent knew children were attracted to the machine, and were in the habit of playing upon it, and that the method of securing it had in the past proved insufficient.

*Appeal from Superior Court, Pacific County.*

The facts are fully stated in the opinion.

*Fulton Bros.*, for appellant.

*Watson, Hume & Watson*, for appellee.

The opinion of the court was delivered by

ANDERS, C. J.—This was an action by appellee, as administrator to recover damages for the death of his son, a child between five and six years of age, alleged to have been caused by the negligence of appellant in not properly securing a turn-table situated upon its own premises, in an open area, near one of the principal streets and close to the business portion of the town of Ilwaco, in this state. It appears that the turn-table had been constructed but a short time previous to the accident to the child, and that up to that time it had not been used by appellant for the purpose for which it was designed. A considerable number of the children of the town had been in the habit of playing upon and revolving it previous to the accident to deceased. It was tied to a stake the day before with a piece of rope by one Hoffman, not in the employ of the railroad company, but was soon after untied by one of the children, and play resumed upon it. The managing agent of appellant, whose office and place of business was in close proximity to the turn-table, testified, in substance, that he also tied it, or caused it to be tied, with a rope two

days before the boy was injured; that the next day he noticed it was unfastened, and tied it with the same rope and in the same place; that it remained tied all that day; that he saw the children again on the table the evening before the accident; that they had untied it and were revolving it and riding on it; that he drove them away and told the men working on the track to keep them away from the turn-table, and that he tied it four times in all with the same piece of rope. But that the table was ever tied or fastened at all except by Hoffman, is disputed by other testimony in the case. The deceased child had never been to this turn-table before the time he was injured, but on that day he was sent by his mother on an errand to the store, about three hundred yards distant from his home and close to the turn-table. Returning from the store he was attracted by the children at play upon the turn-table, and stopped and sat down to watch them on the abutment, on or near the rails of the track connecting with the turn-table, in such a manner that his feet hung down on the side next to the turn-table. While in that position the children turned the table so that his legs were caught between it and the abutment and so injured that the flesh of both legs, from his knees down was mangled and torn from the bones, from the effects of which he died three days afterwards. Upon the trial in the court below the jury returned a verdict in favor of the plaintiff for the sum of two thousand dollars. Judgment was entered upon the verdict, from which defendant appeals, and assigns the rulings of the court below in excluding certain testimony offered by defendant, and the refusal of the court to charge the jury as requested by it as error.

To prove the character of the injury and that the death of deceased was caused thereby, the plaintiff called as a witness a physician and surgeon, who having stated, among other things, that he attended the child from the time of the accident until his death, and that he died from the in-

juries received at the turn-table, further testified, but whether on direct or cross examination is not clear, that the child was a frail, weak child. On cross examination counsel for defendant asked the witness this question: "State whether or not, in your judgment, if the child had been a healthy child, it would have survived the injury?" This question was objected to by counsel for plaintiff, on the ground that it was irrevelant and immaterial, and the objection was sustained by the court, and this ruling, appellant contends, was erroneous and prejudicial. It is claimed that the evidence sought to be elicited by the question was material in aiding the jury in arriving at plaintiff's damage. And in support of the proposition, it is argued that a child so weak or feeble that he could not survive an injury that a healthy child would have survived, has a less expectancy of life than the ordinary child, and could not be expected to accumulate so much for his estate, and that an estate would be less damaged by the death of a weak child than by that of a healthy one. It is true that the measure of plaintiff's damage is the loss occasioned by the death of deceased, and that his health, mental and physical condition, and his expectancy of life, were proper subjects to be submitted to the jury for their consideration in estimating the amount of the damage sustained by the estate. But it does not follow that defendant should have been permitted to show that, in the opinion of the witness, deceased would not have died from the effects of the frightful injury he received, if he had been as strong and healthy as some other boy, or even if he himself had been more vigorous. There was no controversy as to the cause of the child's death, and the question then before the jury was not what amount of injury, of the character suffered by him, he could or would have survived under other circumstances, but what was, in fact, his health and physical condition at the time of the injury; and that the witness had already stated. We see no error of the court in excluding the question.

It is next contended that the court erred in excluding the testimony offered by appellant to show that it is not the custom of railroad companies, or those operating such turn-tables, to have or keep the same locked or fastened at any time, but, on the contrary, that the custom and practice of all such companies is, and always has been, to have and keep them unfastened and unlocked at all times, whether in actual use or not, and whether enclosed or in an open public place. We think this evidence was clearly immaterial and was rightly excluded by the court. The question at issue was whether the defendant secured the turn-table as careful and prudent men would ordinarily do under like circumstances. What would be clearly negligent in one case and under some circumstances might be ordinary care under other and different circumstances; and whether there is negligence in any particular case must generally be determined by the facts and circumstances of that case and not by any general custom or practice. *Koester v. Ottumwa*, 34 Iowa, 41; *Koons v. St. Louis, etc., R. R. Co.*, 65 Mo. 592; see also Deering, Neg. § 9, and cases cited. Besides, the custom proposed to be shown is manifestly unreasonable and negligent, and was not relied upon by appellant as a defense in the cause, for it claimed and still claims immunity from liability on the ground that it secured its turn-table properly.

The next assignment of error is the refusal of the court to give without modification the following instructions asked by defendant:

"1st. If you shall find that the turn-table was tied on the day of the accident and injury complained of, in such manner as to prevent its being revolved without untying or cutting the rope by which it was tied, and that on that day, without the knowledge or consent of the defendant, the rope was cut or untied by a person or persons not in the defendant's employ, and that the accident producing the death of the child, Franklin G. Hedrick, occurred before the fact that the rope had been cut or unfastened be-

came known to the defendant or its officers, then I charge you that the defendant is not liable in this action.

"2d. If the defendant so fastened the turn-table that it could not be revolved so as to injure a person or a child, and in the absence of the officers of defendant some person wrongfully cut or untied the fastenings so that the turn-table could be revolved, and thereby the deceased received the injury that caused his death, I charge you that the defendant is not liable, and your verdict should be in favor of defendant."

The court modified the first of these instructions by adding thereto "unless there was want of ordinary care in the method or manner in which the company undertook to secure the turn-table, and you believe that this method was the proximate and controlling cause of the injury," and the second, by adding the words "if you do not further find that the accident or injury was the result of want of ordinary care in the manner in which the company undertook to secure the turn-table, and that such want of ordinary care was the proximate and controlling cause of the injury." As so modified the court gave both instructions. Whether this action of the court was erroneous or not must depend upon the measure of duty which appellant owed to the deceased under the circumstances. It had erected this alluring and dangerous machine in an open, public place, and its agent and manager not only knew that young children were instinctively attracted by it, and were in the habit of playing upon and around it, but that the method adopted, if any, to prevent them from so doing was wholly insufficient. It certainly would not have been a matter of very great inconvenience to have securely fastened or locked this unused turn-table before the deceased was injured, as was done immediately afterwards. And we think it was the duty of appellant to so secure it as to prevent injury to those who, by reason of their tender years, were incapable of comprehending its dangerous character, either by locking it, or in some other way preventing access to it;

and a failure to take such precaution was negligence on the part of appellant. *Gulf, Colorado & Santa Fe Ry. Co. v. Styron*, 66 Tex. 421; *Pittsburg, Allegheny & Manchester Pass. Ry. Co. v. Caldwell*, 74 Pa. St. 421; *Nagel v. Missouri Pacific Ry. Co.*, 75 Mo. 653; 42 Am. Rep. 418; *East Saginaw City Ry. Co. v. Bohn*, 27 Mich. 503; *Hydraulic Works Co. v. Orr*, 83 Pa. St. 332; 2 Rorer on Railroads, pp. 1121, 1122. The instruction asked by appellant, in effect, requested the court to charge the jury, as matter of law, that if they found that appellant took the precautions and used the means claimed by it to secure the turn-table, it would not be liable in this action. And we are of the opinion that the court committed no error in refusing to give the instruction as requested. The question, whether or not appellant, under all the facts and circumstances of the case, was guilty of negligence was for the jury, and was fairly submitted by the instructions given by the court. *Railroad Company v. Stout*, 17 Wall. 657; *Hoye, Admr., v. Chicago, etc., Ry. Co.*, 62 Wis. 666; *Hydraulic Works Co. v. Orr*, 83 Pa. St. 332.

There appearing no error in the record, the judgment of the court below must be affirmed.

DUNBAR, SCOTT and STILES, JJ., concur.

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1 452
11 157
25* 331
39* 383

[No. 96. Decided December 10, 1890.]

## CASCADE FIRE & MARINE INSURANCE COMPANY v. JOURNAL PUBLISHING COMPANY.

FIRE INSURANCE—RIGHT OF ACTION—CONDITIONS OF POLICY—WAIVER—EVIDENCE OF VALUE.

Under an insurance policy which provides that any loss incurred shall not be payable until sixty days after notice and satisfactory proof thereof, a suit brought against the insurance company before

the expiration of sixty days after proof and notice is unwarranted, unless there has been an unqualified refusal on the part of the company to pay the loss.

A declaration by a trustee of an insurance company, showing hostility to the payment of a certain loss under a policy of insurance, will not be regarded as the refusal of the company to pay, unless he is specially charged by the board of trustees with the duty of communicating such decision to the policy holder.

In an action on an insurance policy, where there is no other evidence of the value of the property destroyed by fire than the proof of loss made by the claimant, as required by the terms of the policy, the plaintiff should be non-suited.

Where an insurance policy is conditioned to be void if assigned in case of sale, unless the assignment is approved by the president or secretary, the policy becomes forfeited on sale and transfer of the property without such approval, unless there is waiver thereof.

Where a policy of fire insurance is made payable in case of loss to the agents of the insurance company to secure advances made by them to the insured, the consent of the agents to an assignment of such policy does not amount to a waiver of the condition as to assignment, as the agents are beneficiaries under the policy, and can not bind the company by their acts.

*Appeal from Superior Court, King County.*

The facts are fully stated in the opinion.

*Preston, Albertson & Donworth*, for appellant.

*Lewis & Gilman*, for appellee.

The opinion of the court was delivered by

STILES, J.—In this case it clearly appears that proof of the loss was made July 10, 1889, and the terms of the policy were that the loss should not be payable until sixty days thereafter. The action was commenced September 6, 1889, on the fifty-eighth day after proof of loss was made. Under the letter of the policy, therefore, the suit was premature. But it was agreed by both sides, and we believe correctly, as matter of law, that under such contracts as this, as the limitation is solely for the benefit of the insurer for the purpose of enabling him to examine

into the circumstances of the loss, and satisfy himself of the justness of the claim, and prepare himself for payment, so, if at any time before the expiration of the time limited the insurer has so satisfied himself, and thereupon communicates to the insured his unqualified refusal to pay the loss, all further claim to indulgence under the stipulation is waived, and suit may be forthwith commenced. Accordingly in this case the complaint alleged a demand and a positive refusal to pay, which laid upon the plaintiff the burden of proving such a refusal as the law requires, and, upon the defendant's motion for a non-suit, made it incumbent upon the court to say whether or not any evidence had been produced tending to show a refusal. The court found against the defendant on this proposition, and its exception to this ruling requires that we examine the testimony on that point. The substance of the evidence in the record is, that one of the officers of the plaintiff corporation, after making the proof of loss, called several times upon the secretary of the insurance company and inquired as to the intentions of the latter company with regard to the policy in question. The secretary suggested as a possible objection that the transfer of the policy from the original insured had not been approved, and mentioned the probability that the matter would be referred to a committee of trustees to report. Several other visits of the appellee's agent resulted in nothing more definite, except that a committee had been constituted to consider the policy, which committee, it was rumored to the appellee, had reported favorably to the payment of the loss. No attempt was made to establish the truth of this rumor, however, and it is material only as it shows the information chargeable to the plaintiff and under which the suit was brought. Thus far the testimony was nothing more than what might have been expected as introductory to some positive declaration, and, being unsupported, was of no force whatever. Finally, however, the same agent of the plaintiff met one

of the insurance company's trustees upon the street, and got into conversation with him upon the subject of the company's probable action, whereupon the trustee, who was apparently in some passion over certain remarks made by the president of the Journal Company derogatory to home insurance companies, remarked that "he guessed he would see what they would do about this matter," and there the subject was dropped. The introduction of this remark of the trustee was allowed by the court over objection, and is assigned as error.

Regarding the trustee of the corporation as in some sense its agent, as he undoubtedly was, he would not, unless specially charged by the board of which he was a member with the duty of communicating its decision to the policy holder, be authorized to bind it by his declaration, and still less could his mere street talk be taken as the expression of his principal. An agent's declaration binds his principal only when he is intrusted with the conduct of the particular matter in hand, and while he is engaged about the performance of the duty assigned to him. In this instance, the witness was asked what reason the trustee gave for not paying the demand, from which the court probably gathered that some formal declaration would be shown, as really coming from the company. But the witness' answer was not responsive, and did not touch the point of inquiry. This left the case with no showing of a refusal to pay, and, therefore, no warrant for the commencement of the action on the 6th day of September.

2. The proof of loss made by the claimant under the policy was no evidence, at the trial, of the property lost in the fire, or of its value. It was admitted, if at all, upon the cross examination of plaintiff's witness, and at the request of the defendant, to show by the *jurat* attached to it, the precise date on which it was made—July 10th. The insurance was on "office furniture and library, $200; stones, press and tables, $300; type, $500." By the proof

of loss it is alleged that the furniture and library had a sound value of $500, and the loss was $264.60; the sound value of the stones, press and tables was $256, and the loss was the same, while the types were worth $2,000, and the loss was $846.55. The total sound value was $2,856; the loss, $1,467.15, and the policy was $1,000. The seventh paragraph of the complaint alleged the loss to have exceeded $1,000, and it was for the plaintiff to sustain that allegation with competent proof. We doubt whether the proof of loss was intended to be proof of value, when it was introduced, and even if it had been it could have served no such purpose. The proof of value having been omitted there was no case for the jury.

3. The points discussed previously affect merely the plaintiff's recovery in this action; the remaining point goes to the right of the plaintiff to maintain any action at all. The policy in question was in the usual form of insurance contracts against loss by fire, being a printed blank, one of many like it, with the signatures of the president and secretary already affixed, and only requiring the signature of the local agent and its delivery to make it a contract in full force as the obligation of the company. As originally issued, December 31, 1888, it insured the firm of Begg & Meany, who were then the owners of the property, "loss, if any, payable to G. E. Miller & Co., as their interest may appear." This firm of G. E. Miller & Co. were the local agents for the issuance of policies of the Cascade Company, and they had some kind of a lien upon the goods of Begg & Meany for money advances. Thus, in the beginning, this policy was issued by Miller & Co. to themselves, to secure their claim for advances, and it remained in their possession for several months, during which the property was sold and transferred, first to one Kittenger, and secondly to the Journal Publishing Company. The premium was paid to the insurance company at once by Miller & Co., and charged up on their books as an additional claim against

Begg & Meany. Miller & Co. notified the insurance company of the issuance of the policy, thereby, of course, conveying to it information of their relation to the policy and to the property insured, and the company made no objection that its agents had thus insured themselves. The policy was voidable at the option of the company within a reasonable time, upon return of the premium; but the company did not elect to cancel it, and we hold the policy good under the circumstances. But on the other hand, agents of an insurance company, who place themselves in such a relation to a policy certainly very greatly endanger the insured in case of loss, since all the rulings of the courts as to waiver of the terms of a policy, through knowledge of the insurer's agents of subsequent facts warranting a cancellation, are rendered of no avail when the agent is himself one of the parties to the contract. In such a case knowledge of the agent is not knowledge of the principal; but to withhold knowledge of any material fact becomes a fraud on the principal, sufficient to void the policy. In such cases the general rules of agency, and those particular rules which pertain to matters of insurance, forbid that the agent should occupy any place other than that of an interested third party, neither whose acts nor whose knowledge are imputed to the principal. Begg & Meany were chargeable with notice of this state of things; so was Kittenger, and so was the Journal Publishing Company, and each of them was bound to know that so long as Miller & Co. remained the beneficiaries of the policy no subsequent knowledge of theirs concerning the property covered by this policy, or concerning the policy itself, would be of any force whatever against the insurance company, unless actually communicated to its officers. Miller & Co. retained the policy in their possession until after the property had passed into the possession of the publishing company. Then they sought out Begg & Meany and got their signature to an assignment printed in blank form on the back of their

policy, as follows: "For value received we hereby transfer to the Journal Publishing Co. all our title and interest in this policy of insurance," and again the policy was returned to Miller & Co.'s safe, for Begg & Meany had not paid the premium and Miller & Co. still had their lien. But an arrangement was made by which the publishing company agreed to pay the amount advanced by Miller & Co. for the premium, and, upon that, the policy was delivered to the publishing company.

Now in the body of this policy there is a clause as follows: "Whenever this policy may have become void from any cause it shall not be revived or reinstated in any way, except by a special contract for such reinstating, in writing thereon, or by the issue of a new policy," and on the back of the contract, as a part of the blank assignment, there was printed as a heading to it "Assignment of policy in case of sale. Not good except approved by the president or secretary of this company." This is the blank to which Begg & Meany's signature was affixed but which was never approved by the president or secretary of the Cascade Company, or presented for their approval. The sale of the insured property and its transfer to third persons rendered the policy void, and the purpose of the blank assignment was to provide an acceptable form of reinstatement under the clause of the policy first quoted. Perhaps the approval of the assignment in this manner was not the only way in which a reinstatement could be accomplished. The plaintiff endeavored to show a course of dealing which might, in case of another policy, tend to support a revival of the policy upon the approval of the agents who issued it, under some of the decisions of courts on the subject of waivers. But in this case, aside from the fact that the agent did not sign the approval, we have held above that, as to this policy Miller & Co. were not agents, but principals. Possibly under some of the decisions, if Miller & Co. or the publishing company had communicated the fact of the trans-

fer to the latter with a request for reinstatement, mere failure to announce its unwillingness would be held sufficient to charge the insurer, if the insured were prevented from getting other insurance, by its delay in acting. But such is not this case. Miller & Co. kept a policy book, and made a daily report of business to the company. But very curiously the policy book showed no entry whatever of the assignment of Begg & Meany, and it did not appear that the insurance company ever knew of the assignment or of the transfer of the property until after the fire. This neglect was not the neglect of the company, but of the insured and their assignee, who knew Miller & Co.'s position with regard to the policy, and had under their very eyes the notice that an express approval was required. The head office of the company was in the city of Seattle, only a short distance from the publishing company's office, where the matter could have been settled in a few minutes. It was the right of the insurer to know the individual holding its policy, which was not a floating promise to pay into the hands of any holder with no other condition than loss of the property. Moreover, although this policy was issued in December, 1888, and the assignment of Begg & Meany was dated April 13, 1889, not even then nor until after the fire, June 6, 1889, was there any offer to pay the premium. Miller & Co., as was mentioned, had advanced the premium to the company and charged Begg & Meany. Later they charged the publishing company, and after the fire the latter paid the debt. This we regard as making no change in the *status* of affairs. It was not in any sense an acceptance of the premium by the insurance company, which had been fully paid months before. Miller & Co. at that time had actually ceased to be the agents of the Cascade Company for any purpose. But they were not at any time agents to bind the company by any act or statement of theirs in connection with this policy.

This aspect of the case makes it unnecessary for us to

refer to many other features of it, involving numerous rulings of the court, and the charge to the jury. The testimony of plaintiff was uncontradicted, so that defendant's motion for a non-suit raised a question for the court as to whether any material allegation was unsupported, the answer to which must have been that no renewal, revival or reinstatement of the policy had been shown after the sale of the insured property by Begg & Meany, based on the admission that Miller & Co. were the real insured to an indefinite extent, as expressed in the policy. This would have sustained the motion, and the non-suit should have been allowed.

In considering this case, although the industry of counsel presented an immense array of cases, we have not seen it to be necessary to found our decision, so far as the last point is concerned, upon any of the so-called principles of insurance law waivers. Cases, we find, can be cited for the waiving of nearly or quite every possible clause of a policy, but upon examination it will be discovered that almost every case of this kind rests upon some peculiar state of facts of its own. The enforcement or non-enforcement of a policy of insurance, although a purely legal matter in form, is rarely without its equitable features, and so, in spite of the strongest prohibitions contained in the express language of policies against many things on the part of the insured, if the agent of the insurer gets knowledge of them there must be a prompt cancellation or the policy will be held to stand, on account of the waiver. But here is rather a case of agency than of insurance. The policy, by reason of the knowledge of the secretary of the company that it had been issued, and to whom, and for whose benefit, was good for want of objection; but, by the assignment and transfer of the property, it became suspended and of no effect, until application was made to revive in the hands of the assignee and purchaser; not an application to the co-party insured, Miller & Co., but to the company's

proper officer. For want of any such application the policy never revived, and there was no right of action upon it.

The judgment is reversed, with direction to the court below to sustain the motion for non-suit. Costs to the appellant.

SCOTT, HOYT and DUNBAR, JJ., concur.

ANDERS, C. J., not sitting.

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[No. 53. Decided December 19, 1890.]

## A. M. HANSEN AND J. B. HANSEN, *Co-partners*, v. M. J. DOHERTY.

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2 151
2 154

ATTACHMENT—DISCHARGE—AFFIDAVITS—ORAL TESTIMONY.

Where an affidavit in attachment alleges that the "defendant is about to assign, secrete and dispose of his property with intent to delay and defraud his creditors," an affidavit in support of a motion to discharge the attachment, averring that the defendant is not "about to assign, secrete and dispose of his property with intent to delay and defraud his creditors," raises no issue, as it, in effect, admits that the defendant is about to do any one of the acts mentioned, but not all of them conjointly.

Under the statutes of this state (Laws 1885-6, p. 45, § 32), where a defendant in attachment has made a motion to discharge the attachment upon affidavit, he has no right to depart from that mode of proof, and introduce oral testimony in support of the motion.

*Appeal from Superior Court, Pierce County.*

The facts are fully stated in the opinion.

*Town & Likens*, for appellants.

*A. A. Knight*, for appellee.

The opinion of the court was delivered by

ANDERS, C. J.—This action was brought by appellants against appellee to recover a balance alleged to be due on account of goods, wares and merchandise sold and deliv-

ered by the former to the latter. An affidavit and bond were duly filed, and a writ of attachment was issued on the following statutory grounds set forth in the affidavit: "That the defendant is about to convert his property into money for the purpose of placing it beyond the reach of his creditors. The said defendant is about to assign, secrete and dispose of his property with intent to delay and defraud his creditors."

The defendant applied to the court to discharge the attachment for the alleged reason that the same was improperly issued, and, in support of his motion, filed his own affidavit which contains this allegation: "And says he is not about to convert his property into money for the purpose of placing it beyond the reach of his creditors; neither is he about to assign, secrete and dispose of his property with intent to delay and defraud his creditors, as alleged in said affidavit of J. J. Hansen." In addition to the above affidavit, the defendant was permitted, over plaintiff's objection, to introduce oral testimony on the hearing of the motion. Having heard the testimony of the witnesses produced on both sides, the court made an order discharging the attachment, whereupon plaintiffs filed a motion for a new trial. The motion was overruled and exception duly taken. From the order discharging the attachment the plaintiffs appeal to this court.

Counsel for appellants claim that the truth of the allegations of the affidavit for attachment was not controverted or put in issue by the motion or affidavit of defendant, and that the attachment should therefore have been sustained. In this we think counsel are correct. The denials of the traversing affidavit should be as direct and positive as if the affidavit were an answer to a complaint in an ordinary action, and must be tested by the same rules of pleading. To allege that the defendant is not about to assign, secrete and dispose of his property with intent to delay and defraud his creditors, is, in effect, to admit that he is about

to do any one of the acts mentioned, but not all of them conjointly. Such a denial raised no issue, and the attachment should have been sustained on the grounds set forth in that portion of plaintiff's affidavit thus attempted to be traversed.

We are of the opinion that no oral testimony should have been admitted on the part of defendant, for the reason that there was no issue to be tried, and for the further reason that defendant, having made his motion to discharge upon affidavit, had no right to depart from that mode of proof. We do not think our statute contemplates that the defendant in attachment may support his motion to discharge both by affidavits and oral testimony. Laws 1885–6, p. 45, § 32. When the motion is made upon affidavits, the hearing should be had upon affidavits and counter affidavits. And such is the usual practice. But it would seem that the above is not the only course open to the defendant. Should he not desire to use affidavits on the hearing, we see no reason why he may not set forth specifically in his notice and motion the facts showing wherein the attachment was improperly issued, and prove the same by the testimony of witnesses before the court. The plaintiff would then be at liberty to support his original affidavit in like manner.

The order of the court below discharging the attachment is reversed, and the attachnent proceedings remanded for further proceedings in accordance with this opinion.

HOYT, DUNBAR, STILES and SCOTT, JJ., concur.

1 464
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39* 275

[No. 59. Decided December 19, 1890.]

## H. E. MORGAN v. FRANK MORLEY.

NEGLIGENCE—DEFECTIVE ROADWAY—WHARVES.

In an action for damages for injuries resulting from the negligent construction and maintenance of a wharf, where the complaint alleged that the right and privilege to construct and maintain said wharf "in and upon Tyler street," had been given by an ordinance of the city of Port Townsend, and also contained allegations showing that where the wharf was built, and the plaintiff injured, was not "in and upon Tyler street," but about one hundred feet from the land of Tyler street and out over the water, the complaint states facts sufficient to charge the defendant, and not the city, with the duty of maintaining the wharf in proper condition for travel.

Plaintiff brought an action to recover damages for injuries alleged to have been sustained by reason of the negligent construction and maintenance of a wharf in a certain street. The special findings of fact showed that the said street was 73 feet wide; that by an ordinance of the city the defendant's grantor had been given the right to erect and maintain a wharf for a distance of 15 feet on each side of the center of said street; that the defendant's grantor when building the roadway for said wharf, extended the planks to 16⅔ *feet from the center of said street, except one plank, which was* 4 inches shorter, and put a guard rail alongside of the roadway; that subsequently the persons who were in possession of the land on each side of said street, removed the railing and planked over the intervening space on each side of said roadway, except at the point where the plank was short, thus leaving a small opening in the roadway or street, which was 16⅓ feet from the center line of said street; that plaintiff while walking along said roadway, in the exercise of due care, was injured by stepping into said opening. *Held*, that the negligence, if any, in leaving the hole, was not the negligence of defendant or his grantor.

*Appeal from Superior Court, Jefferson County.*

Action by Frank Morley against H. E. Morgan, for damages for injuries due to defendant's negligence in constructing, maintaining and operating a certain wharf in and upon Tyler street, in the city of Port Townsend, State of Washington. The trial court found the facts substantially as follows: That Tyler street, in the center of which

said wharf is located, is 73 feet wide, and the ordinance of the city of Port Townsend granting to defendant's grantor the right to erect and maintain said wharf, limited said right or franchise to a distance of 15 feet on each side of the center of said street; that the hole or crack where plaintiff was injured is 16⅜ feet from the center of said Tyler street; that the roadway of said wharf, at the point where plaintiff was injured, was closely and substantially planked more than thirty feet wide; that defendant's grantor, when he built the roadway, extended the planking out 16⅜ feet, instead of 15 feet, on each side of the center of the street; that one of the planks in said roadway was about 4 inches shorter than the others; that subsequently the persons who were in possession of the land on each side of the street, planked the intervening space on each side of said roadway, joining the planking on said roadway, except at the point where the plank was short, and removed the guard rail along said roadway; and that plaintiff was injured, without fault on his part, by stepping into said hole between the planks on said wharf. Judgment for plaintiff, and defendant appeals.

*Calhoun & Coleman*, for appellant.

*Hays & Plumley*, for appellee.

The opinion of the court was delivered by

STILES, J.—Appellant's objection to the sufficiency of the complaint is not well taken. It is true that the second paragraph of the complaint alleges that the "right and privilege to construct and maintain said wharf *in and upon* said Tyler street" had been given by ordinance, etc., but the allegations which show where the wharf was actually built and where the accident happened make it clear so far as the complaint is concerned that the part of the wharf where the plaintiff was injured was not "in and upon Tyler street," but about one hundred feet from the

land of Tyler street, and out over the water. If the facts exactly corresponded to the complaint, therefore, perhaps this judgment might stand. But it seems from the testimony and the findings that, in fact, the wharf was "in and upon" Tyler street, at the point where the hole which caused the injury was, and this cast upon the city of Port Townsend the duty of seeing that it was maintained in proper condition for travel. 2 Dill. Mun. Corp. (4th ed.), § 1012; *Fowler v. Strawberry Hill*, 74 Iowa, 644; *Hutchinson v. Olympia*, 2 Wash. T. 314; Charter of Port Townsend (Laws 1881, p. 134, § 93).

Perhaps, if this structure had been maintained merely as an approach to the wharf in the condition in which it was originally built, thirty-two feet wide, the defendant might have been held liable for the injury. But he did not construct the wharf. Eisenbeis constructed it; and at the time of its construction, even though it were two feet and over wider than the ordinance permitted, it had a sufficient guard rail which would have prevented this accident. But Tyler street was seventy-three feet wide, and soon after the wharf was built people began to build upon and occupy the property along the street and wharf. The front of the buildings so erected was over twenty feet from the outer edge of the wharf, and the owners planked out over the intervening space on the wharf level and removed the guard rail, so that a solid roadway was made from side to side of the seventy-three foot street, and the whole came thus to be used as a public street. It was as a public street that plaintiff was passing over it; otherwise, he would have had no right there, unless business connected with the wharf gave him a license to walk upon it, which was not alleged or proven. Morgan acquired the wharf from Eisenbeis, presumably after the planking by abutting owners, the removal of the guard rail, and the use of that part of the wharf as a public street. Taking it at that time and under those circumstances he acquired nothing but the thirty feet

granted by the ordinance, which did not include the hole at all and he was under no duty to look after it at all. The city, either by positive requirement or permissive license, had caused the abutting property owners to plank out to the wharf, and the negligence, if any, in leaving the hole was thus not the negligence of either Eisenbeis or Morgan.

Sundry items of damage seem to have been allowed by the court, which were unsupported by evidence, but it is not necessary to pass upon them.

The judgment must be reversed, with instructions to the court below to dismiss the action, and it is so ordered. Costs to the appellant.

ANDERS, C. J., and HOYT, DUNBAR and SCOTT, JJ., concur.

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1 467
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[No. 82. Decided December 19, 1890.]

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8 590
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36* 492

## INSTALLMENT BUILDING AND LOAN COMPANY v. J. W. WENTWORTH.

MECHANICS' LIEN—NOTICE—FORECLOSURE—JURY TRIAL.

In a suit to foreclose a mechanics' lien against the "Installment Building and Loan Company," for material furnished the corporation itself, it is an immaterial variance where the notice of claim of lien offered in evidence described the corporation as the "Installment Building and Loan Association."

The foreclosure of a mechanics' lien being a proceeding properly cognizable in a court of equity, the defendant in such a suit cannot, by setting up a claim for damages for breach of contract, demand a trial by jury, although the statutes of this state give him the right to interpose such legal defense.

*Appeal from Superior Court, Clarke County.*

Action by John W. Wentworth against the Installment Building & Loan Company to foreclose a mechanics' lien. Defendant answered by general denial, s[illegible]'ing up also the

insufficiency of the lien notice, and plaintiff's failure to complete his contract, and setting out its counter claim for damages. Plaintiff filed his reply, admitting the contract substantially as alleged in defendant's answer, but denying generally all other allegations. On this issue thus joined defendant demanded a jury trial, which was denied. Trial by the court and judgment against defendant, from which judgment defendant appeals.

*Green & King*, for appellant.

*Coovert & Miller*, for appellee.

A misnomer will not prevent a recovery against a corporation in its true name, provided its identity with that intended by the parties be assured in the pleadings and apparent in the proof. *Souhegan Factory v. McConihe*, 7 N. H. 309; *Dutchess Cotton Mfg. Co. v. Davis*, 14 Johns. 238; 7 Am. Dec. 459; *Hammond v. Shepherd*, 29 How. Pr. 188; Phillips, Mech. Liens, § 346.

A party is not entitled as a matter of right to a trial by jury of an action to foreclose a mechanics' lien, it being a proceeding in equity; and the granting or refusing of a jury trial in such cases being entirely within the discretion of the court. *Curnow v. Mining Co.*, 68 Cal. 262; *Societe Francaise v. Selheimer*, 57 Cal. 623.

When a court of equity once acquires jurisdiction of a cause for any purpose, it retains it for all purposes, and proceeds to final determination of all matters in issue, 1 Pom. Eq., §§ 181, 183, 231–242; *Oelrich v. Spain*, 15 Wall. 211; *Hamilton v. Cummings*, 1 Johns. Ch. 517; *Hawley v. Cramer*, 4 Cow. 717; *Rathbone v. Warren*, 10 Johns. 587; *Bradley v. Bosley*, 1 Barb. Ch. 125; *Keeton v. Spradling*, 13 Mo. 321; *Mays v. Taylor*, 7 Ga. 238; *Martin v. Tidwell*, 36 Ga. 332.

The opinion of the court was delivered by

HOYT, J.—Plaintiff sought to foreclose a lien for mate-

rial furnished and labor done for defendant in the construction of a dwelling house on the land of the defendant. Defendant in its answer, among other things, set up a claim for damages for breach of the contract by the plaintiff.

In the notice of claim of lien the defendant corporation was described as "Installment Building and Loan Association," whereas, in fact, its true name was "Installment Building and Loan Company." The notice of claim of lien is attacked on the ground of this variance between it and the pleadings and proofs. We do not think that the variance was material. The corporation itself was making the improvement and could not have been misled by the slight error in stating its name. The case might be different if the property of the corporation was sought to be charged for an improvement for which it had not contracted.

The defendant demanded a trial by jury upon the issues raised by its answer and the reply thereto. This was refused by the court, and its action in so doing is relied upon as cause of reversal. That the foreclosure of a mechanics' lien is properly cognizable in a court of equity is not denied, but it is contended that as the defendant had a right under our statute to interpose a legal defense, that all rights incident to such legal defense and the issues made thereon went with it, including that of a trial by jury. With this contention we cannot agree. A court of equity having once obtained jurisdiction of the cause will retain it until final determination. 1 Pom. Eq. Jur., §§ 181, 183; *Rathbone v. Warren*, 10 Johns. 587; *Martin v. Tidwell*, 36 Ga. 332. The circumstance that in the progress of the cause an issue of fact was made that would ordinarily be triable by a jury cannot change this rule. It is true, as claimed by the appellant, that a plaintiff cannot, by joining a legal with an equitable cause of acton, deprive a defendant of his right to a jury trial. But that does not aid the appellant in his

contention; on the contrary, from like reasoning it would seem to follow that a defendant, by voluntarily bringing a law question into the case, could not prevent a plaintiff from having his equitable cause proceed to a determination according to the rules applicable to such cases. Defendant in the case at bar could have maintained a separate action for its alleged damages, and if instead of doing so it saw fit to plead them in a cause in equity, it could not thereby change the rule of procedure applicable to such cause.

The transcript presents other questions that might be material and worthy of consideration on this appeal, but as they do not go to the jurisdiction of the court, and have not been raised or argued by counsel, we do not feel called upon to discuss them.

The judgment and decree of the superior court must be affirmed, and it will be so ordered.

ANDERS, C. J., and DUNBAR, STILES and SCOTT, JJ., concur.

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[No. 113. Decided December 19, 1890.]

## FREDERICK G. GATES v. CHARLES R. BROWN, ISAAC PERCIVAL, GUSTAVE WINEHILL AND HENRIETTA WINEHILL.

MECHANICS' LIENS—NOTICE—VERIFICATION.

Under § 1961, Code Wash. T., providing that the notice of mechanic's lien shall contain a statement of the demand after deducting all just credits and offsets, and also a statement of the terms and conditions of the contract, a lien notice is defective which states that the work was performed and the material furnished under a subcontract, but which does not purport to contain a statement of the terms and conditions of the contract.

In certifying the verification of a lien notice the notary must impress his official seal thereon, as such notice is not primarily intended for use in court, and is therefore not within the exception provided by § 5, Session Laws 1889-90, p. 474.

*Appeal from Superior Court, King County.*

Action to foreclose a mechanic's lien claimed by plaintiff upon a certain building in the city of Seattle, State of Washington, known as the Winehill building. The plaintiff was a subcontractor under the defendants Charles R. Brown and Isaac Percival, who were contractors with Gustave Winehill and Henrietta Winehill, the owners of said building, for the erection thereof. To the amended complaint in this action Gustave and Henrietta Winehill interposed separate demurrers, which were sustained, and plaintiff declining to plead further, judgments were rendered in favor of the defendants Gustave and Henrietta Winehill for their costs. Plaintiff appeals to this court.

*Chas. F. Fishback*, for appellant.

*Lewis & Gilman*, for Gustave and Henrietta Winehill, appellees.

The opinion of the court was delivered by

SCOTT, J.—This was an action to foreclose a mechanic's lien. The defendants demurred to the complaint on the ground that it did not state facts sufficient to constitute a cause of action. The question was as to the sufficiency of the lien notice, which the lower court held to be invalid, and sustained the demurrer. The plaintiff appeals to this court. The notice, a copy of which was set forth in the complaint, is as follows:

"State of Washington, county of King—ss. Fred. G. Gates, claimant, vs. Isaac Percival and Charles Brown, debtors, and Gustave Winehill, owner. Claim for lien. Notice is hereby given that Fred. G. Gates performed work and labor for the debtors above named, in the construction of a certain building located on the southwest corner of South Third and Main streets, upon a plat of the town [now city] of Seattle, in King county, Washington, known as the 'Winehill Building,' and furnished material to be

used, and which was used, in the construction of said building; that at the time said work and labor was performed, the said Isaac Percival and Charles Brown were in the employ of Gustave Winehill, owner above named, in the capacity of contractors in and about the construction of said building; that the said Fred. G. Gates commenced to perform said labor and to furnish said material on said building on or about September 30, 1889, and labored continuously up to January 5, 1890, and that claimant ceased to perform said labor thereon, and to furnish said material, on January 5, 1890; that in the performance of said labor the claimant acted as subcontractor under the said Isaac Percival and Charles Brown, and was to receive, and the said Percival and Brown agreed to pay the claimant, for the labor done and furnished upon said building and material furnished by and used in the construction of said building, the sum of fifteen hundred and ninety-seven dollars; that after deducting all just credits and offsets there remained due and owing to the claimant, for and on account of said labor performed and furnished and the material used and furnished in the construction of the said building, the sum of fifteen hundred and ninety-seven dollars, for which amount the said Fred. G. Gates claims a lien upon the building aforesaid. F. G. GATES, Claimant.

"State of Washington, county of King—ss. Fred. G. Gates, being first duly sworn, deposes and says that he has read the above and foregoing claim for a lien, knows the contents thereof, and that he believes the same to be just. FRED. G. GATES. Subscribed and sworn to before me this 11th day of March, 1890. VINCE H. FABEN, Notary Public in and for Washington; residing at Seattle, Wash."

It appears by the complaint that the plaintiff's subcontract, upon which his lien was founded, was to perform all the mason and brick work on the building, and furnish all the materials therefor, for the sum of $10,500; that he furnished the materials and performed the labor accordingly, and was paid thereon $8,903, leaving a balance due him of $1,597, for which he filed the lien in question. Code, § 1961, provides that the lien notice shall contain a statement of the demand after deducting all just credits and off-

sets, and also a statement of the terms and conditions of the contract, if any. Appellant urges that the notice aforesaid is a sufficient compliance with the statute; that it is only necessary to set out the amount which is claimed to be due. He cites us to *Ainslie v. Kohn*, 16 Or. 363, where the Oregon court decided that it was not necessary to set forth an itemized statement, but only the amount remaining unpaid. This decision was founded upon a statute, however, which did not contain the provision that the terms and conditions of the contract should be stated in the notice, and consequently has but little, if any, bearing here. Appellees contend that the notice should not only contain the full amount of contract price and the sum claim to be unpaid, but that it should also set out an itemized statement of the account, and he cites us to *McWilliams v. Allan*, 45 Mo. 573, which appears to have been founded upon a statute requiring a "just and true account of the demand due after all just credits had been given" to be stated in the lien notice. Our statute uses the word "statement" where the Missouri statute uses the word "account." Appellees maintain that these words express the same thing, and the case cited seems to treat them as synonymous. The notice should certainly contain a statement of the terms and conditions of the contract, if founded upon an express contract, and if upon an implied one then a statement of the full amount, and what for; if for different things, such as labor and materials, then the amount claimed for each, and in all cases a statement of what has been paid to the claimant thereon. We do not decide that it is necessary to give an itemized statement in the notice where the contract or claim can be fairly understood without it. It would be a better and safer practice so to do, however, especially where the lien is claimed by any one other than the original contractor. The lien notice in this case is clearly defective, as it does not purport to contain a statement of the terms and conditions of the

contract, while it does state that the work was performed and material furnished under a subcontract. It appears by the complaint that the contract was, in fact, a very different one from that which would be inferred from the notice. Instead of giving any correct intimation of what the claimant's contract really was, the notice was in effect misleading.

Appellees also claim that the notice is invalid for other reasons; but as the determination of the above disposes of the action, it is unnecessary to discuss them. The court deems it advisable, however, to decide one additional matter, and that it is with reference to the omission of the notary to attest the verification of the notice by the impression of his official seal thereon. Appellant argues that the notary was not required to use his seal in certifying to such a verification; that it is within the exception provided by § 5 of the act to be found at page 474, Session Laws 1889–90. But it appears to us otherwise. The notice was not primarily intended for use in court or in any judicial proceeding, but to obtain and preserve the lien. The fact that it might be used in court, or was so used, subsequently, would not bring it within the exception any more than it would a deed or a mortgage, and consequently the seal should have been impressed, to have given the certification of the oath required any validity. We agree with appellant's contention that the lien laws should receive a liberal construction, and be aided by every reasonable intendment to carry out the purposes for which they were designed; but this rule of construction or interpretation will not justify a court in going to the extent of nullifying plain provisions of the statutes, which presumably the legislature held to be essential, or they would not have been incorporated in the laws. The judgment is affirmed.

ANDERS, C. J., and STILES, HOYT and DUNBAR, JJ., concur.

[No. 117. Decided December 19, 1890.]

JOHN F. TERRY AND J. B. ALEXANDER, JR., v. HARRISON CLOTHIER AND J. E. SMITH, *Administrators, et al.*

DECEDENT'S ESTATE—SETTING ASIDE SALE—PARTIES.

Objections to the confirmation of sale of a decendent's real estate can be made only by parties interested in the estate.

*Appeal from Superior Court, Skagit County.*

This was an action originally brought by Caroline Ball, personally, and as guardian of her infant children, together with J. F. Terry and J. B. Alexander, Jr., as co-plaintiffs, against Harrison Clothier and J. E. Smith, administrators of the estate of Jesse B. Ball, deceased, the husband of said Caroline, and J. E. Millett and Charles von Pressentin, as defendants, to set aside and vacate the sale of the land of said intestate, made under the order of the probate court by the said Clothier and Smith, administrators, as fraudulent and void. After said original complaint was filed, Caroline Ball directed that her name and that of her wards be dropped from the suit; whereupon the other plaintiffs, J. F. Terry and J. B. Alexander, filed an amended complaint, making Caroline Ball and her wards co-defendants with those previously joined. The amended complaint alleged that the attorneys of plaintiffs attended at the probate court, within the time limited by law for the purpose of putting on an increased bid of ten per cent., exclusive of expenses of a new sale, upon the price bid at the fraudulent sale of the land, and for the purpose of objecting to the confirmation of said sale, and were prevented from so doing by the probate judge purposely absenting himself from his office, to prevent such objection to the fraudulent sale being made; and that plaintiffs were able, ready and willing at the time last mentioned to pay said increased sum for said land. Demurrer to the amended complaint sustained, and

plaintiffs electing to stand upon the complaint, the court gave judgment dismissing the action, from which judgment plaintiffs appeal.

*Sinclair, Waugh & Payne*, and *Strudwick, Peters & Collins*, for appellants.

*Ronald & Piles*, for appellees.

The opinion of the court was delivered by

DUNBAR, J.—It appears from the complaint in this case that the plaintiffs were not parties interested in the estate. No one else has a right to object to a confirmation of sale. This being true, the complaint did not state facts to constitute a cause of action, and the demurrer was properly sustained. Other questions were raised in the case, but as the judgment of this court sustaining the demurrer on this point disposes of the case, it is not necessary to enter into their discussion.

The judgment of the court below is affirmed, with costs.

ANDERS, C. J., and HOYT, STILES and SCOTT, JJ., concur.

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[No. 128. Decided December 19, 1890.]

## THADDEUS HANFORD, FRANK HANFORD AND ANNIE HANFORD v. GRIFFITH DAVIES.

PROBATE COURTS—JURISDICTION—SALE OF REAL ESTATE.

Under the Code Wash. T., § 1444, the probate court had jurisdiction to grant administration upon a decedent's estate, though the petition therefor showed that there was no personal property in the territory, and no creditors of the estate, and that the decedent's estate was in course of administration in another state; and, where there was no personal property, it was proper to order sale of the real estate to pay the expenses of administration and taxes assessed against the real estate after the death of the decedent, although no other debts were proved.

*Appeal from Superior Court, King County.*

Action by Griffith Davies against the defendants to have a deed from the Territory of Washington to Thaddeus Hanford adjudged not to affect the title of certain premises, and to have a deed from Thaddeus Hanford to Frank Hanford covering said premises decreed void, and that defendants be enjoined from setting up any claim of title under said deeds. The trial court made the following findings of facts:

"1. That on or about the 3d day of August, 1873, in the city and county of San Francisco, California, Lumley Franklin died, leaving a last will and testament. Said will was duly probated in the probate court in the city and county of San Francisco, California. That said Lumley Franklin died seized of the lands described in plaintiff's complaint in paragraph two, to wit: 'Commencing at a stake in the south boundary line of E. Hanford's donation claim one hundred and sixty rods east of the southeast corner of said donation claim, thence east eighty rods, thence north forty rods, thence west eighty rods, thence south forty rods to the place of beginning, containing twenty acres.' That on the 8th day of August, 1887, W. Finley Hall was duly appointed by the probate court of King county, State of Washington (then Territory of Washington), administrator with the will annexed.

"2. That on the 26th day of March, 1888, said probate court of King county duly ordered sale of said lands to pay the expenses of administration and the taxes due upon the estate of said Lumley Franklin. And that at said sale Griffith Davies, the plaintiff herein, became the purchaser thereof for the sum of $2,650, and the said W. Finley Hall, administrator, etc., duly executed and delivered his deed, bearing date the 28th day of May, 1888, to said Griffith Davies for said land, which said deed is duly recorded in the office of the county auditor in and for King county, on the 31st day of May, 1888, in volume 51 of deeds, page 323. And that thereupon the said Griffith Davies entered into peaceable possession of said land, and since then and now is the owner of and in possession of said land.

"3. That on the 14th day of October, 1878, George D. Hill, treasurer of King county, State of Washington (then Territory of Washington), executed and delivered to Thaddeus Hanford, one of the above named defendants, a tax deed *inter alia* the following described real estate: 'In Hanford's claim, twenty acres,' for taxes assessed on said twenty acres for the year 1875, and assessed to 'Lumley Franklin.' The said deed was duly recorded in the office of the auditor of King county on the 25th day of November, 1878, in volume 16 of deeds, page 271. That on the 17th day of December, 1885, said Thaddeus Hanford, by his deed, duly conveyed to Frank Hanford, one of the above named defendants, 'twenty acres in the E. Hanford donation land claim,' described in said deed to said twenty acres by metes and bounds. That said deed was duly recorded in the office of the auditor of King county on the 13th day of March, 1886, in volume 36 of deeds, page 794.

"4. That said tract of land was and is an unbroken body of land, never laid off in lots or blocks, and never improved or cultivated, except as herein found. That said Thaddeus Hanford did a small amount of slashing on said land, and after the sale thereof to Griffith Davies, the plaintiff herein as above found, said Frank Hanford caused a small cabin to be erected thereon, which said cabin was unoccupied. That on the delivery of the deed of W. Finley Hall to Griffith Davies, as above stated, the said Griffith Davies entered upon said land and took possession of said vacant cabin and placed a man therein, and has since then and now has said cabin occupied. And said Griffith Davies also from said time has improved said land."

Judgment was rendered thereon for plaintiff, and defendants appeal to this court.

*Howe & Corson,* for appellants.

*Thomas Burke,* and *Junius Rochester* (*Andrew Woods,* of counsel), for appellee.

The opinion of the court was delivered by

HOYT, J.—Plaintiff, for his cause of action, alleged, among other things, that he was the owner and in possession of a certain described piece of real estate. That de-

fendants had caused to be recorded certain deeds purporting to cover the same, and were asserting rights thereunder, and thereby injuring plaintiff's title. In the progress of the trial, plaintiff put in evidence a record of certain proceedings had in the probate court of King county, culminating in a sale of the land in question to the plaintiff. These proceedings were attacked by the defendants, and the rulings of the court in regard thereto are relied upon by the appellants as cause for reversal.

The proceedings objected to were commenced in the probate court by the filing of a petition therein by one W. Finley Hall. The facts set up in said petition, so far as it is necessary for our purpose, may be stated as follows: That one Lumley Franklin was dead; that he died seized of the land in question; that he left a will which had been duly admitted to probate in the county of San Francisco, California, and that Philip Roach, public administrator, was then administering the estate of said decedent, under the provisions of said will and the orders of said probate court; that to the knowledge of the petitioner there was no personal property in this territory belonging to said estate, and that to his knowledge there were no creditors. Under this state of facts appellants contend that there was no authority in the probate court of King county to administer said estate, and that all of its proceedings therein were void for want of jurisdiction.

There has been some discussion as to the nature of our courts of probate. It being contended on the one hand that in matters relating to the sale of lands of deceased persons they have only a special and limited jurisdiction, while on the other it is claimed that in these matters, as in all others relating to the estates of deceased persons, their jurisdiction is general, if not exclusive. However this may be is not important in this case, as it affirmatively appears just what facts were shown to the probate court upon which it assumed jurisdiction, and if they were sufficient for that

purpose, that would end the inquiry even in a court of special jurisdiction, and, if they were insufficient, the presumption in favor of a court of general jurisdiction would be negatived. The material question here then, in either case, is as to the sufficiency of the facts alleged in said petition. This must depend upon the relation which the personal representatives of a deceased person hold to the real estate of which he died seized. Have such representatives, during administration, any duty to perform as to such real estate irrespective of the question as to whether or not it is needed to pay debts? This question must be determined largely by the statutes of the state in which the land is situated. In this state the administrator has a right to the immediate possession of all real estate, and may receive the rents and profits of the same until the estate shall be settled or delivered over by order of the probate court to the heirs or devisees, and shall keep in repair all houses, etc. Code 1881, § 1444.

From this provision it seems clear that, whenever an administrator is appointed in this state, it is his duty to take possession not only of the personal property but also of the real estate. It would seem to follow that though the heirs may at once take title to the real estate, yet that title is not perfect, as it is subject to the right of the administrator to take possession thereof and retain the same until the probate court shall have judicially determined who the heirs or devisees are, and made its order thereon. How, then, can the heir's title be made perfect and his right to the title and possession of the real estate be assured? We know of no other way than by administration, and the judgment of the probate court of the jurisdiction in which the real estate is situated. And as it is the policy of the law that titles to real estate should be certain and assured, every jurisdiction in which the deceased left real estate must have the right to have administration thereof, that it may be judicially determined who the heirs or devisees are,

and that there are no debts which can affect the title or possession which shall be awarded them. It follows that administration is proper outside of the domicile of the deceased, even although the application therefor shows that there are no debts to the knowledge of the applicant, as his want of knowledge cannot take the place of a judicial determination.

And further, that the facts set forth in the petition are sufficient to give the court jurisdiction irrespective of administration elsewhere; *a fortiori* would they be sufficient to authorize administration auxiliary to that conceded to be regular, then in progress and unsettled in another state.

If the administration was proper there must be some way to pay the expenses thereof, and where there is no personal property the real estate must be sold even although no debts are proven. In this case the petition for the order of sale shows that certain taxes assessed against the real estate in question were due and unpaid, and although it may have appeared that these taxes accrued after the death of the testator, yet under our statute they were charges against the estate, and among the claims which the administrator must provide for. He is entitled to the possession of the real estate and to the rents and profits derived therefrom, and it would not do to say that he has nothing to do with the taxes accruing during administration.

The proceedings in other regards are conceded to be regular and the record was properly admitted in evidence. This disposes of the case and makes it unnecessary for us to determine the other question involved therein.

The case of the *Territory v. Klee, ante*, p. 183, decided by this court at its last session, has been cited by appellants, and it is urged that the language used by the Chief Justice in that case is applicable to this. We cannot agree with this contention. In that case administration of the estate was in progress in King county, and that which was

sought to be sustained had been commenced in Pierce county, pending such administration. Under these circumstances, and under the provisions of chapter 98 of the code, the court might well say that the administration in Pierce county was "unnecessary, if not illegal."

The judgment and decree must be affirmed, and it is so ordered.

ANDERS, C. J., and DUNBAR, STILES and SCOTT, JJ., concur.

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[No. 139. Decided December 19, 1890.]

## THE TACOMA LAND COMPANY v. THE BOARD OF COUNTY COMMISSIONERS OF PIERCE COUNTY.

MUNICIPAL CORPORATIONS—ROAD TAXES—GENERAL LAWS.

Section 3 of the act approved February 4, 1886, incorporating the city of Tacoma, which provides that the county commissioners of Pierce county shall have no jurisdiction to assess, levy or collect any road property or road poll tax upon the property or inhabitants of said city, is not repealed or affected in any way by the general act approved March 28, 1890, providing "for the assessment and collection of taxes in the State of Washington," nor by the act of March 7, 1890, "to provide for keeping highways in repair."

A special act incorporating a municipality, and conferring upon it unusual powers and duties, is not impliedly repealed by a subsequent general statute treating at large of the whole subject of which the special statute treats in part, although the general statute may contain words repealing all acts and parts of acts in conflict with its provisions. Such subsequent general legislation must be clearly applicable to the provisions of the charter, in order to modify or abrogate them.

The prohibition of the state constitution against special legislation incorporating cities and towns is prospective in its operation, and does not affect existing special charters.

*Certified from Superior Court, Pierce County.*

*L. D. Campbell*, for appellant.

*W. H. Snell*, County Attorney, for appellee.

The opinion of the court was delivered by

STILES, J.—This cause was submitted to the court below upon an agreed case, in pursuance of chapter 26 of the code, and it comes here under certification from that court, under § 453.

It appears, from the record certified thus, that § 3 of chapter 1 of the act of the legislature approved February 4, 1888, which was a special act incorporating the city of Tacoma in Pierce county, contained the following provisions:

"SEC. 3. The corporate city limits aforesaid shall not be included within any road district, nor shall the county commissions of Pierce county have any jurisdiction to assess, levy or collect any road property or road poll tax upon the property or inhabitants therein; and so much of any county public road as lies within said corporate limits, shall be kept in repair by the council of said city. But the said council may, by ordinance, vacate any such road or parts thereof, and conform the same to opened and established streets. Said city shall be a separate and independent road district under the exclusive control of the said city corporation. All road taxes, whether road poll or road property taxes, levied, assessed or collected within the corporate limits of said city, shall belong to said city, and be expended therein under the authority and direction of the city council thereof, upon county roads or parts thereof lying within said city limits, and upon the streets, highways and alleys of said city. The city may appropriate from its general municipal fund money to aid in the opening of streets, or work upon roads or bridges, or the construction or repair of wharves, docks, piers or landing places within the city limits, but the said city shall not be entitled to receive from the county of Pierce any appropriation of county funds in aid of roads or bridges within the corporate limits of said city."

Since the passage of the foregoing act, therefore, the city of Tacoma has constituted an independent road district within the county of Pierce, burdened with the duty of keeping in repair the public roads within its corporate limits from funds levied and collected under its own authority.

No road or poll taxes have been, in the meantime, levied by the county of Pierce upon the property or the citizens of Tacoma, but the jurisdiction for such purposes has been conceded to be in the municipal authorities. But in this year the commissioners of that county, claiming authority under the act of March 28, 1890, have levied and are proceeding to collect a road property tax and poll taxes from property and persons in the city of Tacoma, of which complaint is made; and the propositions we have submitted here are accordingly as follows:

1. Does the said act repeal the special act incorporating the city of Tacoma?

2. Should the said tax be levied upon the property within the limits of the city of Tacoma?

3. Should it be levied upon the property within the corporate limits of other incorporated towns within the county of Pierce?

4. What disposition should the board of county commissioners make of taxes so levied?

These queries were presented to this court hastily, and out of the usual order, and without briefs, but on account of their public importance we have considered them in this somewhat unsatisfactory way, and as the result of this consideration we are constrained to answer the several propositions thus:

1. Neither the act of March 28, 1890: "An act to provide for the assessment and collection of taxes in the State of Washington," nor the act of March 7, 1890: "An act to provide for keeping highways in repair," etc. (Acts of 1890, pp. 530 and 617), repeal or affect § 3 of chapter 1 of the act of February 4, 1886, for the incorporation of the city of Tacoma.

2. The said levy of taxes for road purposes should not have been levied upon property or persons within the limits of the city of Tacoma.

3. The question proposed as to other incorporated towns in Pierce county is scarcely material under the case sub-

mitted; suffice it to say, therefore, that the same principles which govern in this instance would naturally govern in the case of any other incorporated town having a charter in substance like that of Tacoma.

4. The board of county commissioners of Pierce county, should, to avoid litigation, expense and a multiplicity of suits, so far as in its power lies, recall and rescind its action in levying said taxes, and in causing the treasurer of said county to collect the same.

The principle upon which we rest our decision in this case is, that a special act incorporating a municipal corporation, or conferring upon it unusual powers and duties, is not impliedly repealed by a subsequent general statute which treats at large of the whole subject of which the special statute treats of a part, although the general statute contains words repealing all acts and parts of acts in conflict with its provisions. Endlich, Interp. St., § 228; *City of Harrisburg v. Sheck*, 104 Pa. St. 53.

It is only when the two acts are so glaringly repugnant to, and radically irreconcilable with, each other as to render it impossible that both can stand, that this rule ceases to be applicable. Endlich, Interp. St. § 230. But such is not the case here. The general law for the raising of revenue and the maintenance of roads is substantially the same as it was before the acts of 1890 were passed. True, § 2970 of the code contained an express exception from the operation of the chapter on roads of all cities and towns, whose charters vested in them the sole power to provide for and control the matter of roads within their limits. But this special law would have had full force without that exception thus declared, and it still has full force, although the exception was omitted from the act of March 7, 1890.

The constitutional prohibition against special legislation to incorporate any town or village, or to amend the charter thereof, has no bearing upon this matter. Such constitutional enactments are purely prospective. They do not

affect existing special charters. The city of Tacoma continued, and would continue, to hold its special charter, in all its features not necessarily repugnant to other constitutional provisions, until subsequent general legislation, clearly applicable to it, should modify or sweep away its charter. And we hold that there has been no such applicable legislation.

It appears by the case before us that in November last the inhabitants of Tacoma, under article 11, § 10, of the constitution, and the act of March 24, 1890, adopted a municipal charter of their own, whereby the act of 1886, and all acts amendatory thereof, and special laws inconsistent with the new charter, were superseded, and this is urged as operating as a repeal of the special road district feature of that city. But whatever may be the relations of the city of Tacoma, under its new charter, to the general laws of the state, and whether it has now forfeited the powers and been relieved of the duties imposed by the act of 1886, and whether the commissioners of Pierce county would now have the jurisdiction claimed, are not matters material to this inquiry. These taxes were levied in August, 1890, when the board did not have jurisdiction, and no subsequent change in the charter of the city of Tacoma could cause any jurisdiction which they would now have, to revert to a time when the law forbade the exercise of any such authority.

For these reasons the cause is remanded to the court below, with instructions to enter a decree restraining the board of commissioners of Pierce county from collecting, or attempting to collect, the said taxes, and commanding them to strike said taxes from the tax levy of Pierce county, as to all property and persons taxable within the city of Tacoma.

Costs to the appellant.

ANDERS, C. J., and HOYT and DUNBAR, JJ., concur.

SCOTT, J., not sitting.

# REPORTS OF CASES

DECIDED IN

# THE SUPREME COURT

OF THE

## TERRITORY OF WASHINGTON,

AT THE

# JANUARY TERM, 1889.

[No. 525. Decided January 25, 1889.]

## ELMON SCOTT AND JOHN L. VINSON, *Sheriff of Asotin County*, v. B. F. PATTERSON.

EXECUTION — SALE — REDEMPTION — NOTICE.

Under Code Wash. T., 1881, § 375, subdivision 1, providing that a person seeking to redeem from a sheriff's sale shall give the purchaser two days' notice of his intention to apply to the sheriff for that purpose, a notice given on the 4th of the month of an intention to apply on the 6th is sufficient.

As it is not necessary that the holder of the certificate of purchase should be present, the notice need not state the hour of the day when the application will be made.

Service of such notice may be proved by the testimony of the person who served it, without any return or affidavit of service thereon.

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REPORTER'S NOTE.—The decisions of the Supreme Court of Washington Territory for the year 1889 have been inserted in this volume for the purpose of continuing and completing the series of Washington Territory Reports. As all the territorial decisions reported herein were rendered more than a year prior to the appointment of the present Reporter, he has, with the consent of the West Publishing Co., taken the reports of those cases from the Paicfic Reporter, and inserted them here with but little change.

*Appeal from District Court, Asotin County.*

*Allen & Gose*, for appellants.

*B. L. & J. L. Sharpstein*, for appellee.

The opinion of the court was delivered by

ALLYN, J.—On January 24, 1885, certain real estate owned by one D. F. West and wife, in Asotin county, was sold to Elmon Scott by the sheriff, under execution. On the 18th day of February following, the sale to Scott was confirmed, and later, in pursuance of such sale and confirmation, a deed was made by the sheriff to Scott. On July 9, 1885, D. F. West and wife transferred to B. F. Patterson their equity of redemption in said realty. In August following, Patterson, then holding the equity of redemption, attempted to redeem the land from this execution sale, and served a notice of such intention on the 4th day of August, 1885, proposing to redeem on the 6th, and on said day, about noon, under this notice, paid Vinson, the sheriff, $180.50 for the purpose of redeeming said land; Scott, the purchaser, not being present. This action was brought for the purpose of setting aside the deed to Scott, and to compel the execution of a deed to Patterson as holder of the equity, in accordance with his redemption made August 6, 1885. The decree below was in accordance with this prayer, and Patterson was decreed a deed, and further, that the deed to Scott be set aside. From this action of the court an appeal is taken here.

Appellant contends that the notice of August 4th to redeem on the 6th was short, and was also defective in not giving notice of the hour, and further, in having upon it no return or affidavit of service, and was not, therefore, legally proven. The statute provides (§ 375, subd. 1): "The person seeking to redeem shall give the purchaser or redemptioner, as the case may be, two days' notice of his

intention to apply to the sheriff for that purpose. At the time and place specified in said notice, such person may redeem by paying to the sheriff the sum required The sheriff shall give the person redeeming a certificate as in case of sale on execution, adding therein the sum paid on redemption, from whom redeemed, and the date thereof. A party seeking to redeem shall submit to the sheriff the evidence of his right thereto, as follows." Then follows the proof necessary to be made of the party's right to redeem, etc. It is admitted that this notice was actually given and received by the purchaser of this intention of the holder of the equity to redeem upon August 6th, and that the amount was paid in accordance therewith on that day, and the usual certificate of redemption issued; and it further appears that on the trial in the court below proof was made that such notice was actually served.

There is to our mind but little force in the contention of appellant, who relies upon the principle that redemption is a statutory creation, and must be strictly pursued. While this is true, it is also equally true that such statutory provisions are somewhat allied to those of exemption, and the same liberal rule of construction, for analogous reasons, should be applied to both. They are of a benevolent character, and in each the main object is the prevention of oppression or sacrifice of an unfortunate debtor. There is no good reason why the hour of the day should be named. The holder of the certificate of purchase need not personally attend unless he chooses to. He may notify the sheriff of any objections he may have to the redemption; he may furnish him with a statement of the amount he claims, or present any objections or reasons which he may have, equally as well in writing as in person. If he chooses to voluntarily inconvenience himself by attending to it merely for the purpose of a personal objection or the like, he may do so, but it is certainly immaterial to the rights of the parties. *Scharfenburg v. Bishop*, 35

Iowa, 60. Code Wash. T., 1881, § 759, not only allows, but requires, a liberal construction, which is evidently intended for just such instances as this. By the well known rule of computation of time, service on the 4th day, which is excluded, leaves two clear days, for the 6th day, under the law, is to be included, no matter at what time on that day the redemption is made. Code, § 743; *Magnusson v. Williams*, 111 Ill. 450. We think, also, that the evidence on the trial below, under oath, of service made of this notice of redemption was entirely sufficient to save the want of a return upon it. It proved the service, and that was the material matter. And, moreover, it is nowhere denied, but is in the case here admitted, that the notice was actually received, and promptly.

The slight difference of eight cents, a possible error of computation, is inconsequential, and is in fact so treated on presentation of the case here. The same may be said of so much as relates to the equally slight error in tender made for tax paid. The only real and substantial objection relied upon or contended for is the service of notice by the sheriff, and the time and the want of a return. We see no objection to the service having been made by the sheriff in a case like this. The remaining questions have already been passed upon. In our view there was a substantial compliance with the statute in such case, and the very slight omissions, if any, are inconsequential, considering the very good reasons existing for treating such cases with liberality, where good faith and an honest effort to comply fully with the terms of the statute are shown, as in this case.

The decree of the court below is therefore affirmed.

BURKE, C. J., and NASH, J., concur.

[No. 529. Decided January 29, 1889.]

# THORNTON W. OWSLEY v. OREGON RAILWAY & NAVIGATION COMPANY.

COSTS—RIGHT TO COSTS IN CONDEMNATION PROCEEDINGS.

Defendant constructed its railroad on plaintiff's land without any proceedings to acquire title. Plaintiff procured the appointment of householders, who appraised his damages at $1,425. Defendant elected to have the case tried, which was done, a verdict being returned for $1,000. On appeal, a new trial was ordered, on which a verdict for $1,000 was again rendered. Defendant then moved for judgment for costs and disbursements, amounting to $306. No offer to compensate plaintiff or to pay either of the awards was ever made. Code Wash. T., § 2475, provides that costs are to be taxed against the corporation only when the verdict and judgment are for a larger amount than the householders awarded, or the case has been tried at the instance of the corporation to reduce the award, and it is not reduced; otherwise costs shall be taxed against the land owner. On the particular facts of the case, *held*, that plaintiff was entitled to costs and disbursements, including $15 attorney's fees.

*Appeal from District Court, Garfield County.*

*Anders, Brents & Clark*, for appellant.

*Allen & Gose*, and *D. J. Crowley*, for appellee.

The opinion of the court was delivered by

NASH, J.—During the summer and fall of 1885, the appellee, the Oregon Railway & Navigation Company, a foreign corporation, entered upon the lands of appellant, located and constructed part of its line of railroad between Starbuck and Pomeroy, and without taking the required statutory proceedings therefor, or making or offering any compensation, actually appropriated to its own use a strip fifty feet wide on each side of its track. Some time thereafter Thornton W. Owsley, plaintiff below and appellant here, presented to a justice of the county his petition for compensation for the land thus taken and appropriated,

under § 2473 of the code, entitled "Mode of proceeding to appropriate lands by private corporations." In pursuance thereof the justice appointed and swore three disinterested householders, who appraised his damages at $1,425, which was duly reported to the district court, and the cause placed on the calendar of the next term. The Oregon Railway & Navigation Company, one of the parties herein, appeared, objected to the confirmation of the report, and signified its election to have the case tried. The court ordered pleadings to be filed by the parties, as in ordinary civil actions, and issue made for a proper determination of the rights of the parties, as provided in § 2475 of the code, which was accordingly done. Upon the trial of the issue thus joined the jury found a verdict for said plaintiff Owsley in the sum of $1,000, and thereupon judgment was rendered for that amount. Owing to some irregularity during the proceedings of said trial, exception was taken, and a new trial asked and refused. An appeal was taken to this court, and a new trial ordered and the case remanded. 3 Wash. T. 38. The trial anew in the court below resulted in a verdict by the jury for $1,000, the same as before. Thereupon, and before judgment, the defendant, the Oregon Railway & Navigation Company, moved the court for judgment for costs and disbursements, amounting to $306.63, and for a judgment and decree of appropriation upon the payment of $1,000. After argument the motion was overruled and denied, so far as the same asked for disbursements, and it was ordered that defendant have judgment for costs to the extent of $15, the statutory attorney's fee, and for no other amount. Defendant excepted to this ruling and order, and exception was allowed. Judgment was thereupon entered in favor of plaintiff for $1,000, and a decree appropriating the strip of land sought to be condemned as a right-of-way upon the payment of said $1,000, and defendant was allowed judgment for $15 costs. On March 31, 1887, after the entry

of said judgment, defendant and plaintiff each filed a duly verified bill of costs and disbursements, and afterwards each party filed a motion to strike out the cost bill of the other. The court allowed the motion to strike out and disallowed the cost bill of plaintiff, to which ruling plaintiff excepted. The court also allowed the motion, and struck out and disallowed the cost bill of defendant, except as to the $15 statutory fees, to which ruling and order defendant excepted, and the exception was allowed. Each party appeals.

The contention in this case involves the construction of chapter 188, entitled "Mode of proceeding to appropriate lands by private corporations," commencing with § 2473, and ending with § 2477; and more especially the question of costs to the prevailing party, as contained in § 2475 of said act. The defendant in the court below contends that, inasmuch as the defendant succeeded in reducing the damages awarded by the householders, as it sought to do by the trial in the district court, it is entitled to costs, in pursuance of the following provisions of § 2475, viz.: "And the issues thus formed shall be tried as in other civil cases, the costs to be taxed against the corporation only when the verdict and judgment is for a larger amount than was awarded by the householders, or the cause has been tried at the instance of such corporation for the purpose of reducing the amount of damages, and the damages are not so reduced; otherwise the costs shall be taxed against the owner of the land." It is further claimed by the defendant that the word "costs" is this section is used in its broad and popular signification, as more generally employed in the code, including all expenses, disbursements, etc., allowed to the prevailing party in all ordinary suits in our courts. The plaintiff also admits this view to be the better one, and acquiesces in such construction. The court fully concur in this view of it, and so far all are happily agreed.

It was evidently the object of the legislature in said act

to provide a cheap, easy and convenient mode of redress for all who might suffer by the accomplishment of a great public object, and for the taking and destruction of the property of another. Judge Cooley, in his work on Constitutional Limitations, p. 562, says:

"Where, however, the property is not taken by the state, or by a municipality, but by a private corporation which, though for this purpose to be regarded as a public agent, appropriates it for the benefit and profit of its members, and which may or may not be sufficiently responsible to make secure and certain the payment, in all cases, of the compensation which shall be assessed, it is certainly proper, and it has sometimes been questioned whether it was not absolutely essential, that payment be actually made before the owner could be divested of his freehold. Chancellor Kent has expressed the opinion that compensation and appropriation should be concurrent. 'The settled and fundamental doctrine is, that government has no right to take private property for public purposes without giving just compensation; and it seems to be necessarily implied that the indemnity should, in cases which will admit of it, be previously and equitably ascertained, and be ready for reception, concurrently in point of time, with the actual exercise of the right of eminent domain.' And while this is not an inflexible rule, unless in terms established by the constitution, it is so just and reasonable that statutory provisions for taking private property very generally make payment precede or accompany the appropriation, and by several of the state constitutions this is expressly required. And on general principles it is essential that an adequate fund be provided from which the owner of the property can certainly obtain compensation; it is not competent to deprive him of his property, and turn him over to an action at law against a corporation which may or may not prove responsible, and to a judgment of uncertain efficacy. For the consequence would be, in some cases, that the party might lose his estate without redress, in violation of the inflexible maxim upon which the right is based. What the tribunal shall be, which is to assess the compensation, must be determined either by the constitution or by the statute which provides for the appropriation. The case is not one where, as a matter of right, the party is entitled to a trial

by jury, unless the constitution has provided that tribunal for the purpose. Nevertheless, the proceeding is judicial in its character, and the party in interest is entitled to have an impartial tribunal, and the usual rights and privileges which attend judicial investigations."

And further on the same learned author says:

"An inflexible rule should govern them all, that the interest and exclusive right of the owner is to be regarded and protected so far as may be consistent with a recognition of the public necessity. While the owner is not to be disseized until compensation is provided, neither, on the other hand, when the public authorities have taken such steps as finally to settle upon the appropriation, ought he to be left in a state of uncertainty, and compelled to wait for compensation until some future time, when they may see fit to use his land. The land should either be his, or he should be paid for it."

So far as we are informed, no effort or offer was made by the defendant to compensate this man at any time for taking his property; no offer was made to compensate him before the initiatory step of appointing the three householders was taken; and, after they had found he was damaged in the sum of $1,425, no offer was made to tender him this or any other sum in satisfaction of the amount that he may have been injured. When the parties appeared in the district court, no offer was made to pay him any sum whatever for the injury sustained. After trial was had in the first instance, and the jury had rendered a verdict in his favor for $1,000, no offer was then made to pay him $1,000 or any other sum. And after appeal taken to the supreme court, new trial granted, remanded for new trial to the district court, no offer was then made on the part of the defendant to pay him $1,000, or any other sum whatever. And now, at the end of this litigation, it is proposed to tax the cost up to him, which will very much, indeed, decrease the amount of compensation actually due him for the property taken; and it can be readily seen that cases might arise under this statute where the party might lose

his entire estate, and be mulcted in damages besides, if the view taken by the appellee in regard to costs should prevail. The act in controversy is very inartificially drawn, and defective in many particulars, and is now fortunately repealed. The statutory remedy, however, was exclusive of all other remedies, and appellant Owsley pursued it honestly and earnestly, as affording him the only means to recover damages for taking his property; and we think it would be grossly unjust, in view of the circumstances surrounding the case, to adjudge him to pay the costs. All proceedings up to the time when the parties appeared in the district court were to be regarded as of a more amicable than legal character, and for the purpose of bringing about some amicable and complete adjustment without the necessity of prolonged litigation, and failing in this, to bring the parties into court, where all their differences could be definitely, properly and legally determined. And certain it is that the parties did appear, in pursuance of this act or otherwise, in the district court of Garfield county, there acquiesced or submitted to its jurisdiction by filing proper pleadings touching the matter in controversy, and then and there had a trial according to the course of legal procedure in ordinary actions before a jury, and their controversy fully and legally settled; that the said suit was like any other suit in court, and that the plaintiff then and there recovered $1,000 for his damages; and that he was entitled to his costs in this behalf expended, like any other ordinary suitor who has been successful in his litigation; and that the court below erred in not rendering a judgment for costs as in ordinary cases, including the statutory attorney's fee, to the prevailing party. This view of the question of costs is fully sustained in a well considered case. *In re New York, etc., Ry. Co.*, 94 N. Y. 287. This being our view, it follows that the appellant here is entitled to his costs and disbursements, which also include $15 attorney's fee. We will further add, our decision upon the question presented

is limited to the facts stated herein. Let the case be remanded, with the direction to the court below to render judgment in conformity with this opinion.

BURKE, C. J., and ALLYN, J., concur.

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[No. 534. Decided January 29, 1889.]

## E. S. BROWN, *Receiver of the Northwestern Manufacturing & Car Company*, v. JOHN W. RAUCH.

RECEIVERS — LEAVE TO SUE — WAIVER.

A receiver cannot be sued except upon leave of the court appointing him, first obtained.

Leave to sue a receiver is jurisdictional, and cannot be waived by him, and under Code Wash. T., § 81, the question may be raised at any stage of the case in the district or supreme court.

*Appeal from District Court, Garfield County.*

*Elmon Scott, and Allen, Gose & Crowley*, for appellant.
*Cosgrove & Godman*, for appellee.

The opinion of the court was delivered by

BURKE, C. J.—This was an action brought by John W. Rauch, the appellee, against E. S. Brown, the appellant, as receiver of the Northwestern Manufacturing & Car Company. The object of the action was to recover the sum of $436 for services claimed to have been rendered to the receiver as such. The plaintiff set forth in his complaint that the Northwestern Manufacturing & Car Company was a corporation duly incorporated under the laws of the State of Minnesota; that it was authorized by its charter to transact business in Washington Territory; that it had complied with the laws of Washington Territory respecting foreign

corporations, so as to entitle it to do business within the territory; that a court of competent jurisdiction in the State of Minnesota had duly and regularly appointed E. S. Brown receiver of this company; and that E. S. Brown had accepted the appointment, and had duly qualified as such receiver, and thereupon had entered upon the discharge of his duties as such receiver, and has ever since been, and is now, the receiver of the Northwestern Manufacturing & Car Company. The plaintiff further set forth in his complaint that about April 13, 1886, in Garfield county, Washington Territory, he entered into an oral contract with the receiver, by the terms of which plaintiff undertook to sell and to assist in selling certain machinery belonging to the Northwestern Manufacturing & Car Company upon a commission of ten per cent., and that he subsequently, in pursuance of this employment, sold and assisted in selling, in Garfield county, Washington Territory, machinery to the amount of $4,230. The complaint contains a second cause of action for $13 for services as a mechanic, rendered by one D. C. Gardner, which claim was assigned to the appellee (plaintiff in the court below). To this complaint the defendant—that is, the receiver—answered, admitting the organization of the company, and the appointment of defendant as receiver, his acceptance and qualification. The case was tried before a jury, and a verdict was rendered for the plaintiff in the sum of $326, and judgment was given accordingly. From this judgment an appeal was taken to this court. The appellant, who is the receiver, asks for a reversal of the judgment of the court below upon two grounds, viz.: (1) That the court below had no jurisdiction over the receiver, inasmuch as leave to bring the action was not obtained from the court by which the receiver was appointed; (2) that there is no evidence to sustain the verdict.

The general rule was not questioned in argument that before an action can be brought against a receiver leave of

the court appointing him must be obtained, but it was contended on behalf of the appellee that this question cannot be raised in this court for the first time; that by appearing, answering and going to trial in the court below the receiver waived his right to raise this question; that after submitting himself to the jurisdiction of the trial court, and taking his chances of success upon the trial there, he should not now be heard to question the jurisdiction of that court. If it were competent for the receiver to waive the objection to the jurisdiction of the court, under such circumstances, undoubtedly the contention of the appellee would be sound; for, while it is a familiar principle that consent cannot confer jurisdiction, yet it has always been held that in a certain sense jurisdiction of the person may be conferred where, for example, personal service being defective or irregular, the party, by appearing and submitting himself to the jurisdiction of the court waives the question of personal service, and to that extent confers jurisdiction. *Brown v. Webber*, 6 Cush. 560. But a receiver cannot do this, and for reasons arising out of the nature of his office. "The receiver is appointed upon a principle of justice, for the benefit of all concerned. . . . He is virtually a representative of the court, and of all the parties in interest in the litigation wherein he is appointed. . . . Money or property in his hands is *in custodia legis*. He has only such power and authority as are given him by the court, and must not exceed the prescribed limits. The court will not allow him to be sued touching the property in his charge, nor for any malfeasance as to the parties, or others, without its consent; nor will it permit his possession to be disturbed by force, nor violence to be offered to his person while in the discharge of his official duties." *Davis v. Gray*, 16 Wall. 203. If a receiver could be sued in any court without the consent of the court by which he was appointed, the latter court would be without control of the trust property. The property might at any time be taken

out of the hands of the court and receiver, and it would be impossible for the court to discharge its duty to preserve the property and distribute the proceeds among those entitled to it according to their priorities. *Barton v. Barbour*, 104 U. S. 126.

The receiver, as we have seen, is but the representative of the court; and the power to grant leave to bring suit against the receiver belongs, not to the receiver, but to the court which appoints him. The receiver cannot do indirectly what he has not the power to do directly. He has no right to take a step or do an act the result of which would be to defeat the object of his appointment, or embarass the court in the administration of the trust property. The very object of the rule in question is to enable the court to keep the trust property at all times within its control. This it could not do if the receiver might be sued without its leave, or, perhaps, without its knowledge, in any other court or jurisdiction. On the other hand, no harm can come from the strict observance of this rule. All parties dealing with a receiver are bound to take notice of the limitations of his power; and no one can therefore complain of having been misled by him when he goes beyond his prescribed powers. The leave to prosecute a receiver is a jurisdictional fact, and cannot be waived by any action of the receiver; and this question of jurisdiction can be raised at any stage of the case, either in the district or supreme court. Code Wash. T., § 81. That the leave to prosecute an action against a receiver is a jurisdictional fact has been definitely settled, so far as this court is concerned, by the decision of the supreme court of the United States in the recent case of *Barton v. Barbour*, 104 U. S. 126. A different rule is followed by the courts of some of the states of the Union; but, as this court is bound by the decisions of the supreme court of the United States, a discussion of cases holding a different doctrine would serve no useful purpose.

The decision of this question renders it unnecessary for us to consider the other question in the case. Judgment of the court below will be reversed, and the case remanded, with instructions to dismiss the action.

ALLYN and NASH, JJ., concur.

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[No. 546. Decided January 29, 1889.]

## C. P. CHAMBERLIN v. OCIE WINN.

REPLEVIN—GENERAL DENIAL—OWNERSHIP IN THIRD PARTY—INSTRUCTIONS—RIGHTS UNDER BILL OF SALE.

In an action to recover the possession of specific personal property the defendant may, under the general denial, prove ownership or the right of possession of the property in controversy in a third person.

An instruction to the jury that "the plaintiff claims that the defendant detains her property, fifty head of neat cattle. . . . The defendant denies that he detains any of said property; so as to the cattle, the issue is clear and positive," is misleading, because it ignores the question of ownership, or right of possession of the property.

Where there was evidence to show that a bill of sale under which defendant claimed had been given in compromise of a disputed claim, it is error to instruct the jury that such bill of sale conveys no right to the property in question.

*Appeal from District Court, Whitman County.*

*Sullivan, Wolford & Sullivan,* and *C. S. Voorhees,* for appellant.

*Allen & Crowley,* and *Anders, Brents & Clark,* for appellee.

The opinion of the court was delivered by

BURKE, C. J.—This is an action brought by Ocie Winn against C. P. Chamberlin to recover certain personal prop-

erty. The essential allegations of the complaint are as follows: (1) That on the 21st day of October, 1886, the plaintiff was the owner and in possession of fifty head of cattle branded O W, and of the value of $2,000; (2) that on said date, and while she was the owner and in possession of the cattle, the defendant wrongfully, by means of threats, compulsion and duress, forced, compelled and induced her, against her will, and without any valuable or other consideration therefor, to deliver the possession of said cattle to him, and to sign and deliver to him a certain paper in the form of, and purporting to be, a bill of sale to said cattle, although, in fact, no sale whatever was made by her to him, or any consideration paid or given, or agreed to be paid or given, by him to her therefor; (3) that plaintiff is still the owner of said cattle, and is entitled to their possession; (4) that before the commencement of this action she demanded the return of said paper and of said cattle of said defendant; (5) that defendant then and there refused, and has ever since refused, to so return and deliver them to her, and has ever since wrongfully detained, and still so detains, the same from her, at Whitman county, Washington Territory, to her damage in the sum of $500. Then follows the usual prayer in such cases for possession of the property or its value.

To this complaint the defendant answered, pleading a general denial of each and every allegation thereof. On the complaint and answer the cause was tried before a jury, verdict was found for the plaintiff for part of the property (eighteen head of cattle), and judgment rendered accordingly. The defendant appeals the case to this court, alleging numerous errors.

In the course of the trial, the plaintiff being called as a witness in her own behalf, the defendant sought by cross-examination to prove that a third person was the owner, and entitled to the possession of the personal property in controversy. To the question put for that purpose objec-

tion was made by the plaintiff and sustained by the court, on the ground that the defendant could not prove property in a third person under the general denial.

The ruling of the court upon this question was erroneous. In an action like this, brought to recover possession of specific personal property, the defendant may, under the general denial, prove ownership or the right of possession in a third person. Pom. Rem. (2d ed.), § 678; *Caldwell v. Bruggerman*, 4 Minn. 270 (Gil. 190); *Woodworth v. Knowlton*, 22 Cal. 164; *Schulenberg v. Harriman*, 21 Wall. 44; *Sparks v. Heritage*, 45 Ind. 66; *Timp v. Dockham*, 32 Wis. 146; *Rockwell v. Saunders*, 19 Barb. 473. The authorities cited by counsel for the appellee in support of the ruling of the court below are not in point in this case. They simply show that a different rule from that here adopted obtains in cases of trover and trespass *de bonis asportatis*.

The next assignment of error relates to the charge of the court to the jury. Upon the trial the court gave this instruction to the jury:

"The plaintiff claims that the defendant detains her property, fifty head of neat cattle, branded as in the complaint described. The defendant denies that he detains any of said property; so, as to the cattle, the issue is clear and positive."

The instruction was clearly misleading, because it presents the case to the jury as if the only issue upon the trial was the mere detention of property in dispute by the defendant. So far as the jury could see from this instruction they had nothing whatever to do with the question of the plaintiff's ownership or right of possession of the property in controversy, and yet these were controlling issues in the case. This instruction was repeated in effect once or twice in the course of the learned judge's charge, so that it was calculated to give the jury the impression that the issue to be tried in nowise in-

volved the question of the ownership and the right of possession of the property in dispute.

The court gave the following instruction to the jury:

"The defendant claims that if plaintiff had any cattle upon the range, she, by a certain bill of sale introduced herein, sold them to plaintiff. The court instructs you that, under the evidence herein, said bill of sale conveys no right to any property therein mentioned to the defendant."

There was evidence before the jury, as disclosed in the record, tending to prove that the bill of sale in question was given as a compromise of disputed claims between Chamberlin and Winn, the plaintiff's husband. Under the evidence in the case it became a question of fact for the jury to determine whether the bill of sale was given as a compromise of a doubtful claim, fairly made. The above instruction excludes the consideration of the question of fact from the jury, and, for that reason, is erroneous. A compromise of a doubtful claim is a good consideration for a promise. 1 Pars. Cont. (7th ed.), 467; *Wehrum v. Kuhn*, 61 N. Y., 623; *Hoge v. Hoge*, 1 Watts, 163 (26 Am. Dec. 52).

The decision of the court upon these points renders it unnecessary to consider the other assignments of error in the case.

The judgment of the court below will be reversed, and the cause remanded for a new trial.

ALLYN and NASH, JJ., concur.

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[No. 580. Decided January 29, 1889.]

## A. L. McCOY AND CON O'BRIEN v. WILLIAM C. BELL.

APPEARANCE—WHAT CONSTITUTES—NOTICE—JUSTICES OF THE PEACE—JUDGMENT—ENTRY—PARTIES NOT SERVED.

Code Wash. T., § 1755, provides that the parties to an action in a justice's court shall be entitled to one hour in which to appear, after the time mentioned in the notice for appearance. Section 72 pro-

vides that "a defendant appears in an action when he answers, demurs or gives the plaintiff written notice of his appearance, or when an attorney gives notice of an appearance for him." *Held*, that a defendant must, in person or by attorney, give notice of his appearance within an hour of the time set for trial, and a mere corporal presence of defendant or his agent at the place of trial, within the hour, is not sufficient.

Code Wash T., § 1781, provides that when a defendant who has been served with a true copy of the complaint and notice fails to appear and plead within the time specified in the notice, or within an hour thereafter, in an action in a justice's court, judgment shall be given without further evidence. *Held*, that where, on the expiration of an hour from the time set for trial, no appearance having been entered for defendant, plaintiff demands judgment, and shortly afterwards persons present object, as agents for defendant, but the justice says, "I will have to render judgment," and refers such agents to § 1781, judgment is entered for plaintiff, which cannot be modified or changed, though after plaintiff and his attorney depart the justice grants defendant a continuance, but enters up the judgment for plaintiff several hours thereafter.

Where only one of two defendants is served with process, it is error to render personal judgment against both, though they are alleged in the complaint to be partners.

*Error to District Court, Whitman County.*

Action before a justice of the peace by William C. Bell against A. L. McCoy and Con O'Brien, copartners doing business under the firm name of McCoy & O'Brien. The justice rendered judgment for plaintiff, which was affirmed by the district court, on *certiorari*. Defendants bring error.

*Doolittle & Pritchard*, for plaintiffs in error.

*E. R. Pickrell*, and *Mark A. Fullerton*, for defendant in error.

The opinion of the court was delivered by

NASH, J.—From the complaint of plaintiff and the statement of account included in answer of defendants it appears that the defendants were copartners doing business in Whitman county, Washington Territory, under the firm name

and style of McCoy & O'Brien. The complaint further alleges that these defendants were copartners jointly indebted to plaintiff in the sum of $39.90. The record shows that service of the complaint was made upon defendants by leaving a copy of the complaint and notice with Con O'Brien, one of said defendants, in Whitman county, Washington Territory, on the 18th day of August, 1887. No other service was made. The time fixed for trial in said notice is the 25th day of August, 1887, at the hour of 10 o'clock A. M. On the return day specified in the notice the plaintiff herein went to the justice's office, and, after waiting for one hour after the time the defendants were cited to appear, and finding that they had failed to appear and plead, demanded judgment against them. To this certain parties who were present and claimed to be the agents of the defendants made objection to judgment being rendered at that time. It fully appears by the record in this case that a full hour had elapsed from the time the parties were required to appear by said notice, and that no pleading of any kind or character had been filed by the defendants in said cause; that the plaintiff at that time demanded judgment, when some colloquy between the parties claiming to be the agents of the defendants ensued in regard to a continuance of said cause; to which, however, the justice answered that he would have to render judgment for the plaintiff therein, and the plaintiff's attorneys thereupon left the office of the justice; that immediately thereafter these parties claiming to be the agents of the defendants prevailed upon the justice, after filing their answer and an affidavit for continuance, to continue said cause; that the papers above mentioned were filed about 15 minutes past 11 o'clock, and, as claimed, the order for continuance was shortly thereafter granted, and the defendants left the justice's court; that about 4 o'clock in the afternoon of the same day the plaintiff's attorney returned, and prevailed upon the justice to

enter up the judgment he had formerly announced that he would render, which judgment is as follows:

"Upon request of plaintiff, judgment is rendered in favor of plaintiff and against defendants for the sum of $39.90, at 11 o'clock in the forenoon on the 25th day of August, A. D. 1887, with costs and disbursements of suit, it having appeared to the court that a true copy of complaint and notice had been served upon Con O'Brien, one of the defendants in said action, at least five days before the time mentioned in the notice for defendants to appear and answer the complaint in this action in Whitman county, Washington Territory. And, said defendant or defendants not having filed an answer or other pleadings or other paper or papers in said action, or appeared in said court in any way up to the hour of 11 o'clock in the forenoon of the 25th day of August, A. D. 1887, it is hereby ordered and adjudged by said court that default be duly entered, and judgment rendered as aforesaid against said defendants."

Execution was issued thereon on the 25th day of August, 1887, writ of *certiorari* prosecuted to the district court, and the following errors assigned in the court below:

"(1) In failing to enter on your docket the fact of the defendant Con O'Brien's appearance in said action and the time thereof.

"(2) In failing to enter on your docket the order of continuance of said action until the 24th day of September, 1887, which order was duly made and announced by you at the time of the appearance of the parties in said action, and in the presence and hearing of the agents of said defendants.

"(3) You erred in rendering a judgment against defendants in said action after you had made an order continuing said action until the 24th day of September, 1887, and after the agents of said defendants had departed from your said court, relying on your said order of continuance.

"(4) You erred in not entering upon your docket the true time of entering said judgment, in this, to wit, that said judgment was given about 4 o'clock P. M. on said 25th day of August, 1887, in fact, and you have entered it in your said docket as having been given at 11 o'clock of said day.

"(5) You erred in entering said judgment without any evidence or proof of plaintiff's claim.

"(6) You erred in rendering any judgment against both of said defendants when said defendant Con O'Brien alone had been served or notified."

And the justice before whom said cause was tried, in obedience to the writ of *certiorari*, returned the following in answer to the allegations of the affidavit therein:

"As to the first ground of error, it is true that I did not enter upon my docket the appearance of Con O'Brien, and it is also true that Con O'Brien did not at any time appear in person, and the agents representing both of the defendants did not appear until 15 minutes past 11 o'clock of said appearance day, at which time they filed the statement returned herewith.

"As to the second ground of error alleged in this affidavit, it is true that I did not enter in my docket the order of continuance of said cause until the 24th day of September, 1887. And it is true that I made such order, and announced the same, but not until after the appearance of the defendants, and after 11 o'clock of said day as above set forth, and after plaintiff had left the court room, and said order was made in the presence and hearing of said defendants' agents. And I will further add that said agents were present before me prior to 11 o'clock of said day, and prior to the time of plaintiff's departure, but did not file any papers in said case until 15 minutes past 11, and I did not know who they were until said time.

"As to the third ground of error alleged in said affidavit the facts are these: At 11 o'clock plaintiff's attorney, finding no papers on file for defendants, arose before me and said: 'I now demand judgment.' To this, shortly afterwards, the said agents, though not known to me at the time to be such, made some objection, and I then said I would have to render judgment, and said agents said they did not think I had grounds for doing so, and then plaintiff and his attorney departed; and then I again said, 'I will have to render judgment,' and referred said agents to § 1781 of the Code of Washington Territory; and the agents made some objection, and then filed and swore to said statement of account. The said agents also about this time read to me certain sections of the law, and requested me to order the case continued until the 24th day of September, 1887, and

for the purpose of obtaining such continuance they stated to me that defendant McCoy was a very material witness on his own behalf, and could not possibly be present until said date, and in support of said statement filed a telegram and affidavit with me, which are transmitted herewith. I then said, 'I do not know but what I can grant a continuance,' and finally I told them that I would allow a continuance as requested, and marked the envelope containing the papers of the case, 'Continued until September 24, 1887, at 10 o'clock A. M.,' and then said agents departed. About 4 o'clock P. M. of said day the plaintiff's attorney returned to my office and demanded execution, and I told him what had been done in his absence. Said attorney insisted that he had a valid judgment, and told me to consult a disinterested attorney, which I did, and then concluded upon such advice that it was my imperative duty, under § 1781 of the Code of Washington Territory, to render judgment as of the time of 11 o'clock of said day, and then made up my docket entries as shown.

"As to the alleged grounds of error, it is true that I had no evidence of plaintiff's claim other than the complaint.

"As to the sixth ground of error, it is true said judgment is against both of said defendants, and that Con O'Brien alone was served."

These errors are for our consideration in this court. It is conceded that a justice of the peace is a creature of the statute, and the court one of limited jurisdiction. Section 1755 of the code provides: "The parties shall be entitled to one hour in which to make their appearance after the time mentioned in the notice for appearance, but shall not be required to remain longer than that time unless both parties appear; and the justice being present, is actually engaged in the trial of another action or proceeding; in such case he may postpone the time of appearance until the close of such trial." Section 72 of the code thus defines an appearance: "A defendant appears in an action when he answers, demurs or gives the plaintiff written notice of his appearance, or when an attorney gives notice of appearance for him." It will be seen from the foregoing that a mere corporal presence of the defendant or his

agent at the place of trial is no appearance of the defendant. Some act must be performed. He must answer, demur or give the plaintiff written notice; or if attorney appears, he must give notice of appearance. *Steinbach v. Leese*, 27 Cal. 295. Pleadings, however, can be made either orally or in writing, except in certain cases. (Code, § 1757.) But the statute is imperative. He must appear, as heretofore defined, within the hour. And when a defendant who has been served with a true copy of the complaint and notice fails to appear and plead within the time specified in the notice, or within an hour thereafter, it is the duty of the court to enter up judgment without further proof or evidence. The court has no discretion or alternative. It is a duty enjoined by the statute, and the plaintiff can demand it as a matter of right. Code, § 1781; *Wilcox v. Clement*, 4 Denio, 160. And we hold that the justice in this case simply performed his duty, and did render a judgment in this case upon the expiration of the hour. There being no appearance of the defendants, and no pleadings on file in the case, and the plaintiff then and there demanding judgment, no proof was necessary. The demand of the plaintiff stood confessed.

The justice, in his return to the writ, says: "As to the third ground of error alleged in said affidavit the facts are these: At 11 o'clock, plaintiff's attorney, finding no papers on file for defendants, arose before me and said: 'I now demand judgment.' To this, shortly afterwards, the said agents, though not known to me at the time to be such, made some objection, and I then said I would have to render judgment, and the said agents said they did not think I had grounds for doing so, and then plaintiff and his attorney departed, and then I again said, 'I will have to render judgment,' and referred said agents to § 1781 of the Code of Washington Territory." This court holds that this was a rendering of a judgment by the justice, and that he was simply doing what he was required to do by law.

Having performed this duty, he at once lost all control over said judgment. He could neither open it up, change, or modify it. His judicial acts and power over said judgment were exhausted forever the moment he rendered the judgment, and all his acts thenceforward in regard to said judgment were and could only be ministerial. It follows, therefore, that all acts of the justice thereafter in regard to continuing the case, etc., were mere nullities. After he had rendered judgment—as we have held he did do upon the demand of plaintiff—he should proceed within the next three days to enter the same. Code Wash. T., § 1781–1783; *Griffin v. Pitman*, 8 Or. 342; *Dunnagan v. Shaffer*, 48 Ark. 476; Hawes, Jur., § 32. And we find that this was done the same afternoon.

In entering up said judgment, however, the justice committed an error. The defendants are alleged in the complaint to be partners, but only one of them, Con O'Brien, was served. Judgment (personal) was rendered against both defendants. This was error. Judgment could only be rendered against the defendant served. Section 68 of the code provides, however, that where the action is against two or more defendants and the summons is served on one or more, but not on all of them, the plaintiff may proceed as follows: "(1) If the action be against the defendants jointly indebted upon a contract, he may proceed against the defendants served, unless the court otherwise direct, and if he recover judgment, it may be entered against all the defendants thus jointly indebted, so far only as that it may be enforced against the joint property of all, and the separate property of the defendants served." For error in entering up the judgment only, as here set forth, this case is remanded to the district court, with direction to enter up judgment in accordance with this opinion; all costs, however, to be taxed against the defendants (plaintiffs in error here) in this case.

BURKE, C. J., and ALLYN, J., concur.

[No. 583. Decided January 29, 1889.]

## JOHN B. STANDLEY v. DAVID MARSH.

SHERIFFS AND CONSTABLES—WRONGFUL LEVY—INDEMNITY FROM EXECUTION CREDITOR.

A sheriff who, under express directions of a creditor, attaches property pointed out to him by the latter, and does not know or have notice that it is the property of another than the debtor, may recover indemnity of the attaching creditor after judgment against the sheriff for the wrongful levy.

*Appeal from District Court, Whitman County.*

Action by David Marsh against John B. Standley to recover indemnity for a judgment obtained against plaintiff as sheriff. Judgment for plaintiff, and defendant appeals.

*Allen & Crowley*, for appellant.

*Doolittle, Pritchard & Lehman*, for appellee.

The opinion of the court was delivered by

ALLYN, J.—David Marsh, as sheriff of Whitman county, September 15, 1884, attached 270 sacks of wheat at the instance of John B. Standley, plaintiff in the suit of *Standley v. George W. Landes*. October, 1885, one Seat began an action for the unlawful detention of, and damage to, the wheat while thus attached and held by the sheriff, and on December 20, 1886, secured a judgment for $25 and costs; the whole amounting to $383.25. This amount the sheriff now seeks to recover from Standley, the attaching creditor. Judgment was had for the sheriff, Marsh, and the defendant appeals.

The pleadings are not all in the record; and while the argument of appellant is largely upon the theory that the sheriff was guilty of negligence, and was therefore alone liable, from what is before us of the record, and the amount of the judgment, etc., we are fairly satisfied that the judgment against the sheriff was a nominal one, and was not given

for any negligence proven. Looking at the case in this view, there is but one question we need consider; and that is, whether a sheriff taking property under a writ of attachment at the direction of a creditor, and guilty of no negligence or want of care himself, may call upon the attaching creditor for indemnity after a judgment has been given against him for such wrongful levy; *i. e.*, whether or not a promise of indemnity will be implied from the direction of the creditor to levy upon certain property pointed out by him. It is undeniably true that if the sheriff knows the property he is directed to levy upon belongs to another, or if notice is given him of such claim, it is his duty to secure indemnity before levying, or he should refuse to act. He would be held to voluntarily assume the risk if, under such circumstances, he neglects to call for indemnity, and equally would he be alone liable for willful neglect in caring for property after he had taken it. But from the record before us we do not consider this case to have embraced in it any of these essentials. On the contrary, as we view it, the sheriff under express directions of the creditor, attached property pointed out to him by the creditor, and did not himself know or have notice that it was the property of another than the debtor. Having been guilty of no willful neglect or wrong, should he alone suffer, and not be allowed relief against the creditor, whose directions to him caused the damage, and which directions he is bound to follow in the absence of knowledge of their wrongfulness?

Freem. Ex'ns (2d ed.), 894, says: "If the sheriff follows plaintiff's directions in doing an act, not known to him to be unlawful, and is thereafter compelled to respond in damages because of the act, he may recover from the plaintiff the amount so recovered from him;" citing a number of authorities, as *Humphrys v. Pratt*, 2 Dow & C. 288, 5 Bligh (N. S.), 154; *Sanders v. Hamilton*, 3 Dana, 550; *Stoyel v. Cady*, 4 Day, 222, 226. There can be no doubt but that, a writ being given a sheriff with special directions,

he is bound to serve it, and follow such directions. See *Ranlett v. Blodgett*, 17 N. H. 298 (43 Am. Dec. 603). And equally, that from the directions given to serve it in a particular manner, a promise will be implied in law from the creditor to the sheriff to hold the latter harmless of the natural results of obeying such directions. *Bond v. Ward*, 7 Mass. 123, 5 Am. Dec. 28, and note, with cases cited; *Gower v. Emery*, 18 Me. 79. Also, *Ball v. Badger*, 6 N. H. 405, and *Marshall v. Hosmer*, 4 Mass. 60, 63.

We are agreed that in this case the sheriff acted carefully and properly, and from the specific directions given him a promise of indemnity is implied sufficient to sustain the action brought by him in this case. We may further add that the evidence satisfies us that the defense made by the sheriff to the suit for damages by Seat was made through attorneys whom he did not employ, but who were self-evidently employed by and acting for Marsh. In fact Marsh made all the contest that was made; and the judgment of $25 and costs referred to was entered by consent of Marsh (and his attorneys), who, though not known to the record, was the actual party in interest throughout. The judgment below is correct, under the principle above announced, and is clearly just.

Let the judgment be affirmed.

BURKE, C. J., and NASH, J., concur.

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[No. 584. Decided January 29, 1889.]

WALTER J. BOGGAN AND IDA J. BOGGAN v. WILLIAM REID.

PUBLIC LANDS — HOMESTEAD ENTRY — POWER TO MORTGAGE.

Section 4 of the act of congress granting homesteads to actual settlers on public lands (Rev. St. U. S., § 2296), providing "that no

lands acquired under the provisions of this act shall in any event become liable to the satisfaction of any debt or debts contracted prior to the issuing of the patent therefor," does not prevent the settler from making a valid mortgage upon the land after receiving his certificate of entry, but before he receives a patent.

*Appeal from District Court, Asotin County.*

*James W. Reid*, for appellants.

*E. O'Neill*, for appellee.

The opinion of the court was delivered by

NASH, J. — This was a civil action brought by the plaintiff in the court below, appellee here, William Reid, against the defendants, Walter J. Boggan and his wife, appellants here, to recover the amount of two promissory notes — one note for $600, dated May 1, 1883, due October 1, 1886; and the other note for $72, dated May 1, 1883, and due October 1, 1886 — and to foreclose a mortgage executed on homestead entry of defendant Walter J. Boggan, acquired under act of congress to provide homes for actual settlers on the public domain, approved May 20, 1862, to secure said notes; the said notes having been executed prior to the issuance of patent for said entry by the government, and the consideration being for debts contracted prior thereto. The plaintiff in the court below filed his complaint for the recovery of the amount of said notes and the foreclosure of said mortgage. Defendants answered, admitting the execution of the said notes, and that they had not been fully paid; but averred that the land included in said mortgage was the homestead entry of defendant Walter J. Boggan, and that the said notes executed as aforesaid, and secured by said mortgage, were for debts contracted prior to the issuing of the patent to said defendant on November 20, 1883, by the government of the United States, and that the said land is not liable for the payment of the said debts contracted as aforesaid. Plain-

tiff moved to strike out defendant's answer on the ground that it was not verified, and was sham and frivolous, and contained no defense. The objection to the verification being withdrawn, the motion was overruled. Plaintiff then demurred to the answer on the ground that the same does not state facts sufficient to constitute a defense, and that the answer does not constitute a defense. The court sustained the demurrer, and defendants excepted and declined to file further answer, whereupon there was judgment for the plaintiff, and the defendants appealed to this court.

The execution of the notes and mortgage by appellants, and amount due and conditions alleged in the mortgage, are all admitted in this case by the pleadings. The only issue raised is that the land embraced in the mortgage was acquired by them under the act of congress of May 20, 1862, providing homesteads for actual settlers upon the public domain, and that patent for the land had not issued at the time of the execution of the notes and mortgage, and that the land is exempt from sale by § 2296, Rev. St. U. S.

There is no allegation in the answer that final proof had not been made, and in the consideration of this case we take it that final proof had been made at the time of the execution of the notes and mortgage, and that the parties were simply waiting for the patent to be issued in its regular order from the land office. The decision of the court below was not only right on principle, but is sustained by authority, both federal and state, and is also in harmony with the rulings of the department of the interior.

Section 4 of the act of congress granting homesteads to actual settlers on public lands, providing "that no lands acquired under the provisions of this act shall in any event become liable to the satisfaction of any debt or debts contracted prior to the issuing of the patent therefor," was not designed to restrict the right of the settler, or to disable him from mortgaging or otherwise conveying his interest before the issuing of the patent. *Nycum v. McAllister*,

33 Iowa, 374. BECK, C. J., who delivered the opinion, says: "The provision is intended as a shield for his protection, and is not a weapon for the destruction of any of his rights. In the case before us defendants did not desire to invoke its protection, but exercised their right to convey the land by the mortgage, thus creating a lien thereon. This lien, as it was lawfully imposed, must be enforced." To hold otherwise would not only be bad in law, but reprehensible in morals. *Lewis v. Wetherell*, 36 Minn. 386; 1 Am. St. Rep. 674; *Cheney v. White*, 5 Neb. 261; 25 Am. Rep. 487; *Jones v. Yoakam*, 5 Neb. 265; *Goddard v. Railway Co.*, 54 Wis. 548.

In the pre-emption law of the United States, after prescribing the manner in which the proof of settlement and improvement shall be made before the land is entered, is this proviso: "And all assignments and transfers of the right hereby secured, prior to the issuing of the patent, shall be null and void." In the case of *Myers v. Croft*, 13 Wall. 291, Justice DAVIS, in delivering the opinion of the court upon the question of patent, says:

"The object of Congress was attained when the pre-emptor went, with clean hands, to the land office, and paid the government for his land. Restriction upon the power of alienation after this would injure the pre-emptor, and could serve no important purpose of public policy. It is well known that patents do not issue in the usual course of business in the general land office until several years after the certificate of entry is given, and equally well known that nearly all the valuable lands in the new states, admitted since 1841, have been taken up under the pre-emption laws, and the right to sell them freely exercised after the claim was proved up, the land paid for, and the certificate of entry received."

This reasoning is equally applicable to homestead entries. *Smith v. Ewing*, 23 Fed. Rep. 741.

The decision of the court below in sustaining the demurrer is fully approved, and it is so ordered.

BURKE, C. J., and ALLYN, J., concur.

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[No. 588. Decided January 29, 1889.]

## VAN BUREN CLARK v. LINCOLN COUNTY.

COUNTIES — LIABILITIES — DEFECTIVE SIDEWALKS.

A county is not liable for personal injuries caused by a defective sidewalk under its control.

*Appeal from District Court, Walla Walla County.*

Action by Van Buren Clark against Lincoln County for personal injuries sustained by stepping upon an alleged defective sidewalk. A demurrer to the complaint was sustained, and plaintiff appeals.

*Allen & Crowley*, for appellant.

*N. T. Caton*, for appellee.

The opinion of the court was delivered by

NASH, J. — This action was brought by appellant to recover from defendant the sum of $15,100 for damages suffered by him from injuries received as alleged in the complaint. Defendant demurred to the complaint, the demurrer was sustained, and exception taken. Plaintiff declining to amend, the action was dismissed. Plaintiff appeals, assigning as errors the order sustaining the demurrer and the order dismissing the action. The questions raised by demurrer were, (1) that no cause of action can be maintained against a county of this kind and character; (2) that, even if an action does exist, the claimant, before bringing suit or action, must make out his claim of demand and present the same to the board of county commissioners for their allowance or rejection, and that suit must be brought within three months thereafter.

There is some conflict of authority at common law as to whether a county is ever liable in this class of cases; but the decided weight — we might add, the overwhelming

weight — of authority is against this right. See 1 Thomp. Neg. 616, and notes following, and a great number of cases there cited, including decisions from most of our states.

Judge Dillon, in his work on Municipal Corporations, says: "It is almost universally considered that they [meaning *quasi* municipal corporations, such as counties, etc.] are not liable to a civil action for damages occasioned by defective roads and bridges under their control as public agents, unless so declared by statute." Dill. Mun. Corp. (2d ed.), 785. And Judge Cooley, in his work on Torts, p. 622, makes a much broader statement when he says: "It is well settled that at common law a municipal corporation is not liable to an individual for neglect to keep a highway in repair, whereby he suffers an injury in using it." We think, however, that this is too broad as applied to a municipal corporation, but not too broad as applied to a county. It may, however, be broadly stated that American courts have agreed that counties are not liable to a private action for damages sustained by any one in consequence of failing to keep in repair their highways and bridges. *Larkin v. Saginaw Co.*, 11 Mich. 88; 82 Am. Dec. 63; *Hedges v. Madison Co.*, 1 Gilman, 567; *Huffman v. San Joaquin Co.*, 21 Cal. 426; *Reardon v. St. Louis Co.*, 36 Mo. 555; *Swineford v. Franklin Co.*, 6 Cent. Law J. 434; *Brabham v. Hinds Co.*, 54 Miss. 363; 28 Am. Dec. 352; *Covington Co. v. Kinney*, 45 Ala. 176; *Sims v. Butler Co.*, 49 Ala. 110; *Scales v. Chattahoochee Co.*, 41 Ga. 225.

In New England, towns and cities, which includes villages, are charged with the duty of repairing both highways and bridges, but are not held liable at common law to pay damages to individuals injured by their negligence in not keeping their highways and bridges in repair. *Brown v. Fairhaven*, 47 Vt. 386; *Com. v. Newburyport*, 103 Mass. 129; *Com. v. Charlestown*, 1 Pick. 179; 11 Am. Dec. 161. Michigan holds the same. *Leoni v. Taylor*, 20 Mich. 148. Counties partake of the immunities of states, and are not subject to liabilities of this character. *Browning v. City of Spring-*

*field*, 17 Ill. 143; 63 Am. Dec. 345, and note; *Town of Waltham v. Kemper*, 55 Ill. 346; 8 Am. Rep. 653; *Hill v. Boston*, 122 Mass. 344–351; 23 Am. Rep. 332; *White v. Commissioners*, 90 N. C. 437; 47 Am. Rep. 534; *Detroit v. Blackeby*, 21 Mich. 84; 4 Am. Rep. 450; *Hollenbeck v. Winnebago County*, 95 Ill. 148; 35 Am. Rep. 151; *Askew v. Hale County*, 54 Ala. 639; 25 Am. Rep. 730; *Dosdall v. Olmsted County*, 30 Minn. 96; 44 Am. Rep. 185. This last-named case is strikingly like the one now under consideration, and it was held that an action like this would not lie.

The rights of the individual are held to yield to the public benefit, and his losses are *damnum absque injuria*. To permit suits of this kind to be brought against counties would be productive of frequent, vexatious, and interminable litigation; and, while this should not stand in the way of anyone's legal right, it ought not to be permitted, unless clearly warranted by law expressly provided by statute. While some courts in this country seem inclined to hold the right to bring suits of this character, the courts in England are wholly against the right, and the great majority of our states having similar provisions in their statutes to our own are against it. In harmony with the great weight of authority in this country, this court holds that the action cannot be maintained.

It is wholly unnecessary to pass upon the remaining point raised by the demurrer. Judgment of the court below is affirmed.

BURKE, C. J., and ALLYN, J., concur.

[No. 598. Decided January 29, 1889.]

## DANIEL STEWART v. WALLA WALLA PRINTING & PUBLISHING COMPANY.

CORPORATIONS — ASSIGNMENT OF STOCK — LIABILITY ON SUBSCRIPTION — ESTOPPEL — VERDICT — SPECIAL FINDINGS.

A subscriber to the capital stock of a corporation who has, in good faith, transferred his shares to another, which transfer has been accepted by the corporation, before an assessment is made, is not liable for the unpaid subscription.

Though the by-laws of a corporation require the entry of transfers of shares on a stock ledger, if none is kept and such a transfer is entered according to the custom of the company on the subscription list, and an assignment is indorsed on the shares themselves, and a new certificate is issued to the purchaser by the company, the latter cannot deny the validity of the transfer.

Where, in an action against an original subscriber for unpaid installments of his subscription, his defense being that he has transferred his shares in the manner mentioned, the general verdict is for plaintiff, but the jury find specially that defendant sold the shares by indorsement on the back thereof, which transfer was entered on plaintiff's book, and that a new certificate was issued in lieu of the one assigned, the judgment should be entered for defendant on the special findings, they being inconsistent with the general verdict.

*Appeal from District Court, Walla Walla County.*

Action by the Walla Walla Printing & Publishing Company against Daniel Stewart to recover unpaid installments on subscriptions to capital stock. Verdict and judgment for plaintiff, and defendant appeals.

*B. L. & J. L. Sharpstein*, for appellant.

*A. E. Isham*, for appellee.

The opinion of the court was delivered by

ALLYN, J. — This is an action to recover an assessment upon an unpaid subscription to thirty-three shares of the stock of the defendant corporation. The defense is, that

appellant had transferred and sold, in good faith, his stock to one Tracy long before suit was brought. This is denied. The terms "calls" on unpaid subscriptions and "assessments" are used interchangeably by our statute, and the contention on the part of appellee that, under our statutes, "calls" means something different from "assessments," is unfounded. The act relating to the transfer and assignment of stock certificates, etc., must control the rights of the parties. There was a general verdict found under direction of the court in favor of the plaintiff — the appellee. Special findings were also made that these "shares were sold to Tracy" by "indorsement on the back thereof," and the same was "entered in book B, p. 13, April 13, 1883, as follows: Sold to John Tracy, thirty-three shares," and a new certificate issued in place of the one assigned, and "was properly signed by J. L. Sharpstein, Secretary, and W. G. Langford, President." They failed to answer the question whether Stewart ever delivered the certificate to Tracy, although the evidence shows conclusively that this was done and a new one issued, and although the jury had just answered that the stock was sold by indorsement and entry made in book B. Motion for judgment on special findings, for a new trial, etc., all being overruled, defendant Stewart appeals.

The special findings of the jury control when they are inconsistent with the general verdict. Code Wash. T., § 243. We have quoted sufficient above to show that by the special findings the stock was indorsed and transferred, and proper entry made by the company, and also a new certificate regularly issued. This being so, the court should have entered judgment accordingly; instead of which the general verdict was allowed to control.

It is urged here that the entry on the book of the company was not in full and exact compliance with the by-laws attached to the articles, as these required such entries to be made upon a stock ledger. But no such stock ledger was

kept, and all other transfers and like entries are made as this one upon the records of the company in the subscription list. It was the fault of the company in failing to keep such book, and it can claim no advantage thereby. The entry and the memorandum of assignment as made were adopted by it as proper, and such entry is entirely sufficient. *Webster v. Upton*, 91 U. S. 65.

A transfer of stock, even if irregular, accepted and acquiesced in by the corporation, is binding upon it. Or, if a particular method of transfer has been adopted by the company through custom or use, or by general acquiescence of the shareholders, the company would be equally bound. This is beyond controversy. See 1 Mor. Priv. Corp. (2d ed.) § 222; and 2 Mor. Priv. Corp., § 743, with authorities cited; also, *Isham v. Buckingham*, 49 N. Y., 216–222; *Cutting v. Damerel*, 88 N.Y. 410; *Johnson v. Laflin*, 5 Dill. 65. Although it would seem almost unnecessary to cite authorities on this proposition, which is merely another phase of the well known principle that one cannot take advantage of his own fault or wrong.

The main proposition in the case, and the only one entitled to serious consideration, is the contention by appellee in the effort to hold the original subscriber for calls or assessments upon stock he has transferred, and to hold him liable for this, although he had in good faith transferred his stock to another before thus called upon. We use the term "in good faith," because this test, in our judgment, practically determines the question. Had he made this transfer in fraud, or the like, or after the call or assessment had been made, and to escape it, the case would be different; but the square issue is presented in the claim that one having taken stock in a company remains subject to the obligations thereby incurred, regardless of a sale of his stock. The contrary of this is true. In Ang. & A. Corp., § 534, quoted by appellant, is the following: "When an original subscriber to the stock of an incorporated com-

pany, who is so bound to pay the installments on his subscription from time to time as they are called in by the company, transfers his stock to another person, such other person is substituted not only to the rights but to the obligations of the original subscriber, and he is bound to pay up the installments called for after the transfer to him. The liability to pay up installments is shifted from the outgoing to the incoming shareholder. A privity is created between the two by the assignment of the one and the acceptance of the other, and also between them and the corporation; for it would be absurd to say, upon general reasoning, that if the original subscribers have the power of assigning their shares, they should, after disposing of them, be liable to the burdens which are thrown upon the owners of the stock." And in *Webster v. Upton*, 91 U. S. 65–70, Mr. Justice STRONG, in delivering the opinion, says: "But if the law implies a promise by the original holders or subscribers to pay the full par value when it may be called, it follows that an assignee of the stock, when he has come into privity with the company by having stock transferred to him on the company's books, is equally liable. The same reasons exist for implying a promise by him as exist for raising up a promise by his assignor. And such is the law as laid down by the text writers generally and by many decisions of the courts;" citing, also, a number of authorities, and then quoting approvingly the text from Angell & Ames as given by us above.

It is, therefore, a settled rule of law, established by the highest authority, that the vendee of stock in a corporation assumes all the burdens and obligations of an original holder, including either calls or assessments, whichever they may be called. See, also, 1 Mor. Priv. Corp., §§ 159, 161, and authorities already cited above; and also *Chouteau Spring Co. v. Harris*, 20 Mo. 382, and *Miller v. Great Republic Ins. Co.*, 50 Mo. 55.

The question of good faith, or *bona fides*, is always im-

portant, as we have already said, and when this is determined in the affirmative, the transferee of stock steps into the place of the original holder in all particulars, and the vendor is relieved of all liability. Whether the corporation may or may not limit and control these results by imposing conditions and restrictions upon subscribers and transfers and the like, it is not necessary now to decide, as nothing of the kind was done in the case at bar; and as the jury having found this to be a *bona fide* transfer, and having specially found acceptance of the transferee by the company by an entry upon its books, which, though it may have been irregular, was the voluntary act of the company through its officers, and having also found the issuing of a new certificate, the company, under the principles above announced, fully accepted the transfer and accepted the new holder for all the liabilities that the certificate could carry with it. All was done that could be done to transfer the liability from the original holder, the appellant herein, to his purchaser.

The court below should have entered judgment in accordance with these special findings of the jury. For these reasons the judgment of the court below will be reversed.

BURKE, C. J., and NASH, J., concur.

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[No. 599. Decided January 29, 1889.]

## GEORGE DACRES v. OREGON RAILWAY & NAVIGATION COMPANY.

RAILROAD COMPANIES — KILLING STOCK — CONSTITUTIONAL LAW — RIGHT TO JURY — TITLE OF ACT — FAILURE TO FENCE — EVIDENCE OF NEGLIGENCE.

Act Wash. T., 1883, §§ 2–7, providing that when stock is killed on a railroad the value shall be ascertained by appraisers in a pre-

scribed manner, and the amount shall thereupon become due and payable, are unconstitutional as denying the right of jury trial.

Sections 1 and 8 of the act making the railroad company liable for all stock killed on the track, unless it is fenced, are constitutional, and are not so connected with the rest of the act as to become invalid therewith.

Section 1 of the act which makes the railroad company liable for stock killed on the railroad is not merely declaratory of the common law, but, as shown by § 8, which removes the liability if proper fence is maintained, the statute makes failure to fence evidence of negligence.

The title of the act being "An act to secure to the owners of live stock payment of the full value of all animals killed or maimed by railroad trains," sections 1 and 8 are not invalid, as embracing more than one object not sufficiently expressed in the title.

*Appeal from District Court, Walla Walla County.*

Action by George Dacres against the Oregon Railway & Navigation Company for damages for the killing of stock. Judgment for defendant, and plaintiff appeals.

*B. L. & J. L. Sharpstein*, for appellant.

*Dolph, Bellinger, Mallory & Simon*, for appellee.

The opinion of the court was delivered by

BURKE, C. J. — This was an action brought by the appellant against the appellee to recover damages for the killing of an animal by a train of cars on appellee's railway. It appeared upon the trial that the plaintiff was the owner of a farm in Walla Walla county; that the defendant had constructed and was operating its railway through this farm; that defendant's railway was not fenced on either side along its right-of-way; that the plaintiff was the owner of the animal in question; that the animal entered upon the railway track from the farm, and was killed by a passing train. It was in proof that the value of the animal was from $350 to $500. There was no proof of negligence on the part of the railway company, apart from the fact that

the railway was not fenced. The defendant moved for a nonsuit, which the court granted, and after overruling a motion for a new trial, which was made by the plaintiff, judgment was given for the defendant, from which plaintiff appeals to this court.

The principal question involved in this case is, the constitutionality of what is known as the "railway fence law" of 1883. The plaintiff's action must stand or fall with this law; for if his rights are to be determined by the rules of the common law, he has not made out a case against the company, because he neither proved, nor attempted to prove, any negligence or want of ordinary care on the part of the company or its agents. At common law railway companies were under no obligations to fence their tracks; nor were they liable to an action for damages for the killing of stock, except in cases where the stock being rightfully on adjoining premises, entered upon the railway track, and while there were killed through the negligence of the railway company or its agents. 1 Rorer, R. R., 614, 615; *Corwin v. New York & Erie R. R. Co.*, 13 N. Y. 42, 45; 3 Wood, Ry. Law, 1543. But in view of the great extension and multiplication of railways, it was long since found necessary to change the common law in this respect, and it has accordingly been changed by statute in most, if not all, the states of the Union, and even in England. The statute on the subject passed in this territory, and the one now in question here, is as follows:

"AN ACT to secure to the owners of live stock payment of the full value of all animals killed or maimed by railroad trains."

"*Be it enacted by the Legislative Assembly of Washington Territory:*

"SECTION 1. That all railroad companies owning or operating lines of railway within the Territory of Washington shall be liable to the owners of all live stock for the full value of all such live stock killed or maimed by their passing trains.

"SEC. 2. The value of all animals killed or maimed by railroad companies shall be ascertained and fixed by appraisement as follows to wit: The owners of the stock so killed or maimed shall be entitled to the appointment of one appraiser, and the railroad com-

pany to the appointment of one appraiser, and if the two so appointed shall not agree, they shall select the third appraiser, and the three appraisers shall fix the value: *Provided*, That in ascertaining and fixing the value of said stock, the appraisers herein provided for shall consider the real market value of such stock, whether for breeding or other purposes.

"SEC. 3. Whenever any live stock is killed or maimed by the passing locomotive or train of any railroad company, it shall be the duty of the owner of such stock to report the same to the company, and ask the appointment of an appraiser, which appraiser shall be appointed and required to act in making such appraisement within ten days after such notice is given; and if said company fail or refuse to appoint said appraiser, or said appraiser shall fail from any cause to act within ten days from said notice, then the owner of such stock shall appoint an appraiser on his own behalf, and shall report the same to the county auditor, who shall, thereupon, act as such second appraiser, and in case the two cannot agree as to the value of the animal, or animals, killed or maimed, then they shall appoint a third appraiser, and the value assessed by a majority shall be the value of said animal, or animals, or value of damage done thereto.

"SEC. 4. The notice required in the preceding section shall be given upon the superintendent of such company, for the particular division in which the killing occurred, or to a local business manager, or agent thereof. Such notice shall be in writing and shall contain the date, as near as can be, and the place at or near which said stock was killed or maimed, together with the number and kind of the same.

SEC. 5. As soon as the value of such animals, or the amount of damage done thereto, shall be ascertained, as hereinbefore provided, the amount of such assessment shall thereupon become due and payable, with interest from date of said assessment at the rate of one per cent. per month, and said amount, together with interest and costs, including attorney's fees, now allowed as costs in the district court, may be recovered by suit, in any court having jurisdiction thereof.

SEC. 6. The appraisers, provided for in this act, shall be entitled for their services to the sum of two dollars per day, and mileage at the rate of ten cents per mile, which said costs shall be borne equally by both parties.

"SEC. 7. All acts and parts of acts inconsistent with the provisions of this act are hereby repealed.

"SEC. 8. No railroad company shall be liable for stock killed upon their roads when the same is fenced by such company with a good, lawful fence.

"SEC. 9. This act shall take effect and be in force from and after its approval.

"Approved Nov. 28, 1883."

It is conceded in the brief filed by appellant's counsel in this cause, and also by counsel in argument before this court, that §§ 2, 3, 4, 5, 6, and 7 of this act are unconstitutional because they deny the right of trial by jury; and of this there can be no question. The territorial legislature has no power to deprive any person or corporation of the right of trial by jury in a common-law action, where the amount involved exceeds $20. 7th Amend. Const. U. S.; *Parsons v. Bedford*, 3 Pet. 433; *Thomas v. Hilton*, 3 Wash. T. 365. Nevertheless this is clearly what the legislature attempted to do by the system of procedure provided in §§ 2, 3, 4, 5, 6, and 7 of this act. The question then arises: Is the whole act void by reason of the unconstitutionality of the sections named? Questions of this character have been much discussed by the courts of this country, and the proper rule of statutory construction in such cases seems now to be well settled. This rule is nowhere more clearly or more concisely expressed than in Judge Cooley's work on Constitutional Limitations, in which it is laid down as follows:

"Where, therefore, a part of a statute is unconstitutional, that fact does not authorize courts to declare the remainder void also, unless all the provisions are connected in subject-matter depending on each other, operating together for the same purpose, or otherwise so connected together in meaning, that it cannot be presumed the legislature would have passed the one without the other. . . If, when the unconstitutional portion is stricken out, that which remains is complete in itself, and capable of being executed in accordance with the apparent legislative intent, wholly independent of that which was rejected, it must be sustained." Cooley, Const. Lim. (5th ed.), 212; star page 178.

Turning, now, to an examination of the statute under discussion, it is plain to be seen that the general object

which the legislature had in view in its passage was to enlarge and extend the rights of owners of live stock as against railway companies, in cases where such stock should be killed or maimed by passing railway trains. The means employed by the legislature in this act to attain this object were two-fold: *First*, by making railway companies liable for the killing or maiming of live stock so long as the railways are not properly fenced; *second*, by providing a cheap, simply and prompt remedy for the enforcement of the rights thus conferred. It is conceded upon all hands, as we have seen, that this second provision is unconstitutional, and, under the rule of construction above mentioned, if these two provisions are so connected in subject-matter or in meaning that it cannot be presumed that the legislature would have passed the one without the other, then both provisions must fall together. This is not, however, our view of the statute. It seems to us that these two provisions are easily separable; that they are not depending upon each other, and are not so intimately connected that one may not exist without the other. Under any fair reading of this statute it must appear that after striking out the unconstitutional portions, that is, §§ 2, 3, 4, 5, 6 and 7, "that which remains is complete in itself, and is capable of being executed in accordance with the apparent legislative intent, wholly independent of that which was rejected." Counsel for appellee strongly urged in argument that the two parts of this statute are so "mutually connected with and dependent on each other, as conditions, considerations or compensations for each other, as to warrant the belief that the legislature intended them as a whole, and if all could not be carried into effect the legislature would not pass the residue independently." But we see no good reason to suppose that if the unconstitutionality of the sections relating to the proposed remedy had been known to the legislature, they would therefore refuse to pass the section conferring enlarged rights upon the persons for whose bene-

fit the other portions of the statute were framed. On the contrary, there is the more reason to believe that the legislature, finding themselves unable to extend the relief intended by the void sections, would be the more inclined to enact the law embodied in §§ 1 and 8. These two sections make a sensible and reasonable law; a law essentially the same as that which may now be found upon the statute books of many of the states of the Union. And it may not be out of place here to observe that legislation of this kind has been commended in the strongest terms of some of the highest courts in this country. *Corwin v. Railroad Co.*, 13 N. Y. 42; *Railway Co. v. Humes*, 115 U. S. 512. Of course it goes without saying that courts have nothing to do with the policy or impolicy of a law; that belongs to the province of another department. But where, as in the case at bar, it becomes important to inquire whether the legislature would have passed one part of a statute without the other, then it is proper, as a means of arriving at the legislative intent, to consider the law in all its bearings.

It was contended upon the argument that the construction of § 1, standing alone, would be necessarily different from that which would be given to it in its proper connection with the other sections of the act, taken as a whole; that, for instance, reading § 1 out of its present connection, it would seem as if it provided that if an animal was injured, however slightly, by a passing train, the company would be liable, not for the amount of damage done to the animal, but for its full value; whereas if the section is to be read in connection with the other sections of the act, it becomes apparent at once that the legislature never intended any such construction. A careful reading of this statute will readily show that this argument is not well founded; and that, whether standing with § 8, or in connection with the other sections of the act, § 1 is fairly open to but one construction, and that is this: Where an animal being lawfully upon

adjoining land, thence escapes upon a railway track at a place which is not fenced, but which the company may properly and lawfully fence, and the animal is killed by a passing train, the company is liable for the value of the animal, if killed; and if injured, but not killed, for the amount of damages caused by the injury.

Our attention has been called to the case of *Timm v. Northern Pacific R. R. Co.*, a case decided by this court at the January term, 1887, and reported in 3 Wash. T. 299; and it is insisted that this statute was necessarily passed upon in that case, and held to be void. The court below based its rulings in this case on *Timm v. Northern Pacific R. R. Co.* We have looked into the record of that case, and we find the statute was never referred to, either in the briefs of counsel or in the opinion of the court. The statute was not passed upon in that case, for it was entirely overlooked.

It was contended in argument that even if § 1 is to stand, it must be construed to be simply declaratory of the common law, and in that case the judgment of the court below would have to be affirmed. We cannot agree with counsel in this construction of the statute. No doubt the rule is that statutes in derogation of the common law must be strictly construed; but this rule, like all others, must have a reasonable application; and to hold that § 1 is simply declaratory of the common law would not be a reasonable application, but a perversion of the rule, because it would result in plainly defeating the manifest object of the legislature. It is evident upon the face of this statute that the legislature intended to make the neglect or failure of railway companies to fence their railways evidence of negligence. This is made clear by § 8, which exempts companies from liability for the killing of live stock where the railways are properly fenced. Indeed, in view of § 8, the construction sought to be put upon § 1 by the appellee would result in

giving us a law almost the reverse of that evidently intended by the legislature.

Upon the argument of the case before the court it was suggested rather than argued that §§ 1 and 8 were invalid under our organic act (§ 1924, Rev. St. U. S.), which provides that "every law shall embrace but one object, and that shall be expressed in the title." This objection is not well taken. This act has but one object, and that is sufficiently expressed in the title. Besides, the rule is that such a constitutional provision is to be liberally construed. Cooley, Const. Lim. (5th ed.), 176, star p. 146; *State v. Newark*, 34 N. J. Law. 264; *Gifford v. New Jersey R. R. Co.*, 10 N. J. Eq. 171; *Kurtz v. People*, 33 Mich. 279; *Allegheny County Home's Case*, 77 Pa. St. 77; *In re Metropolitan Gas Light Co.*, 85 N. Y. 528.

Our conclusion upon the whole case is, that §§ 2, 3, 4, 5, 6 and 7 of the act of 1883 entitled "An act to secure to the owners of live stock payment of the full value of all animals killed or maimed by railroad trains" are unconstitutional and void, and that §§ 1 and 8 are valid and binding, and should stand. For these reasons the judgment of the court below will be reversed, and the cause remanded for a new trial; and upon the new trial leave should be granted to amend the complaint to conform to the proofs.

ALLYN and NASH, JJ., concur.

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[No. 605. Decided January 29, 1889.]

1 533
627 634

CHARLES Q. MARTIN v. WHITMAN COUNTY.

COUNTIES — COUNTY COMMISSIONERS — EXPENSES OF TAX LIST — CONTRACT — CAUSE OF ACTION.

Code Wash. T., § 2673, subds. 5, 6, authorizes the county commissioners to allow accounts chargeable against the county not

otherwise provided for, and to have the care of county property and management of county funds and business. *Held*, that they could make a contract to pay five per cent. for making a tax list of all delinquent taxes in a county.

The contract being to pay five per cent. on the total amount of the tax-list, and the list being made and presented, and the board having made an order that five per cent. of the delinquent taxes be paid on the contract as collected, a cause of action arises immediately against the county, under Code Wash. T., § 2695, such order being a substantial disallowance of plaintiff's claims.

*Appeal from District Court, Whitman County.*

Action by Charles Q. Martin against Whitman county, to recover for making a tax list. A demurrer to the complaint was sustained, and plaintiff appeals.

*P. C. Sullivan*, *Frank H. Brown* and *D. J. Crowley*, for appellant.

*Mark A. Fullerton*, for appellee.

The opinion of the court was delivered by

BURKE, C. J.—This case comes before us by appeal from the judgment of the court below sustaining a demurrer to the plaintiff's complaint. It appears from the complaint in the action, that in August, 1886, at a regular session of the board of county commissioners of Whitman county, held at Colfax, the county seat, the following order was made by the board, and regularly entered in their proceedings:

"It is hereby ordered that C. Q. Martin make a tax list of all taxes delinquent in Whitman county, and that he receive therefor five per cent. on the total amount of said tax-list; that said five per cent. is to be paid out of the tax due Whitman county on said tax-list, as it is collected."

The plaintiff, acting under and upon the faith of this order, made a tax-list of all taxes delinquent in Whitman county, and delivered the same to the board of county commissioners at a subsequent term, in open session, and the

board formally accepted the list thus made, by the following order:

"And now comes C. Q. Martin, and presents his bill for compiling a delinquent tax-list, according to an agreement and by order of the commissioners, made at the August, 1886, term, and the county commissioners hereby order that the said Martin be paid five per cent. of all the moneys collected as such delinquent tax, as it is collected; that said order was made before any money was collected on said delinquent tax-list."

At the regular session of the board held in May, 1887, the plaintiff presented the following bill to the board:

COLFAX, WASHINGTON TERRITORY, May 4th, 1887.

"*Whitman County, to C. Q. Martin, Dr.*

"To making delinquent tax-list of Whitman County, Washington Territory (as per contract made with Whitman county, W. T.) at their August, 1886, term of said commissioners' court..... $3,428.81.

"I hereby certify that the above bill is correct.

"[Signed] C. Q. MARTIN."

Upon the presentation of this bill, the board made the following order in relation thereto:

"And now comes C. Q. Martin, and presents to the board his bill for compiling a delinquent tax-list, according to an agreement and by order of the board of county commissioners of Whitman county, W. T., made at their regular August, 1886, term; and it is hereby ordered that said C. Q. Martin be paid five per cent. of all the money collected from said delinquent tax roll, as it is collected, in accordance with all former orders of commissioners in this matter."

It appears, further, from the complaint that the total amount of the delinquent taxes of Whitman county was $68,576.25, and that, since the delivery of plaintiff's list to the county, $2,000 of the delinquent taxes has been paid to the county. The court below sustained the demurrer to the complaint, on the ground that the board of county commissioners had no power to make the contract set forth in the complaint, and the counsel for the appellee urges this view upon us here with earnestness and ability.

It is a familiar principle that a board of county commissioners can exercise no powers which are not in express terms or by fair implication conferred upon it by law, and whenever the board ventures beyond the scope of its powers its acts are void, and not binding upon the county. *Hodges v. City of Buffalo*, 2 Denio, 110; *Thomas v. Lee County*, 3 Wall 327; *Wells. v. Supervisors*, 102 U. S. 625; *Turnpike Co. v. Commissioners*, 72 Ind. 226.

Turning to the statutes of the territory, we find that among the powers conferred upon the boards of county commissioners are the following:

Sec. 2673. The several boards of county commissioners are authorized and required: . . . *(5)* To allow all accounts legally chargeable against such county not otherwise provided for, and to audit the accounts of all officers having the care, management, collection or disbursement of any money belonging to the county, or appropriated to its benefit. *(6)* To have the care of the county property and the management of the county funds and business, and in the name of the county to prosecute and defend all actions for and against the county, and such other powers as are or may be conferred by law."

By this section, taken in connection with other provisions of the statute not necessary to cite here, the board of county commissioners are given a sort of supervisory power over the affairs of the county. They are made the business agents, so to speak, of the county. They have the care and management of the county funds and county business. And while they have no direct authority over, or power to interfere with, the several county officers in the discharge of their respective duties, yet they have the power, and it is made their duty, to care for the county property, and manage the county funds and business, and in the exercise of such powers they may, if they see fit, employ experts to examine the books of county officers; they may employ private counsel to assist the district attorney in defending the county against suits brought against it, or in prosecut-

ing suits in behalf of the county against others; and, as in the case at bar, they may employ persons to make compilations or transcripts from any of the county records whenever, in their judgment, the interests of the county may require it. In this case there was a very large amount of delinquent taxes, extending over a period of several years. It was important to the county to secure the collection of these delinquent taxes, and it was plainly the duty of that body having the care and management of the county business to employ such persons, and take such measures as, in their judgment, would best accomplish that end. *Wilhelm v. Cedar County*, 50 Iowa, 254; *Hornblower v. Duden*, 35 Cal. 664; *Smith v. Mayor of Sacramento*, 13 Cal. 531; *Tatlock v. Louisa County*, 46 Iowa, 138; *Hawk v. Marion County*, 48 Iowa, 472.

It is further urged in behalf of the county that, even if the contract sued upon is valid, the complaint does not state facts sufficient to constitute a cause of action against the county; that by the orders which they made the county commissioners had done all they could do; that the remedy of plaintiff, if he has any, is against the auditor personally; and that, even if this should not be so, the action is premature, because plaintiff's claim is payable out of the delinquent taxes as collected, and sufficient had not been collected at the time of the commencement of suit to pay the amount he claimed.

We are not called upon in this case to decide upon the proper construction of the contract in question, and expressly refrain from doing so. But, whatever may be the true construction of this contract, we think it clear that the plaintiff has stated a good cause of action against the county. Nor has he brought his action prematurely. He presented his claim to the board of county commissioners, and they made an order which amounted to a disallowance of it, and he was then entitled under our statutes to bring his action. Code Wash. T., § 2695.

The judgment of the district court is reversed, with costs, and the cause remanded for trial.

ALLYN and NASH, JJ., concur.

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[No. 537. Decided January 31, 1889.

## DAVID MARSH v. F. M. WADE.

CHATTEL MORTGAGES — REQUISITES — RIGHTS OF MORTGAGEE IN POSSESSION — EVIDENCE — BEST AND SECONDARY.

A chattel mortgage is valid without words purporting to grant, sell, convey, etc.; the word "mortgage" includes all these.

In an action of replevin by a mortgagee to recover the mortgaged property which had been attached while in his possession by creditors of the mortgagor, it was error for the court, after excluding the mortgage by reason of invalidity, to treat the transaction brought about by the mortgage as a pledge, and admit oral testimony to establish the relation of pledgeor and pledgee.

A mortgagee in possession of the mortgaged property, the mortgage being valid between the parties, and made in good faith, has the right of possession against all the world, and he cannot be deprived of that possession until the debt for which the mortgage is executed has been satisfied.

*Error to District Court, Whitman County.*

Replevin brought by F. M. Wade against David Marsh to recover possession of a stock of goods. Judgment for plaintiff, and defendant brings error.

*Doolittle & Pritchard*, and *Cox, Smith & Teal*, for plaintiff in error.

*Sullivan, Wolford & Sullivan*, and *Allen & Crowley*, for defendant in error.

The opinion of the court was delivered by

NASH, J. — This was an action of replevin brought by the defendant in error in the court below to recover pos-

session of a stock of goods. He alleges in his complaint that he has a special property in said goods by virtue of a chattel mortgage from one J. L. Heatherly, given to secure certain notes which were held by the defendant in error as agent of the owners, and which he was authorized to secure; that, by the terms of said mortgage, the defendant in error was authorized to, and, in pursuance thereof, did, take immediate and exclusive possession of said goods; and that afterwards the plaintiff in error wrongfully took said goods from his possession.

The answer contains three separate defenses. The first is a denial of the possession, or right of possession, in the said plaintiff, a denial of the chattel mortgage claimed by him, and a denial that the seizure by the defendant was wrongful. The second defense, admitting plaintiff's possession and rights under his chattel mortgage, alleges that he has no other rights, and justifies defendant's seizure under certain writs of attachment against J. L. Heatherly, the mortgagor, which he held for execution, as sheriff of said county. The third defense justifies defendant's seizure under said writs of attachment, as sheriff; alleges that the said mortgage and transfer by Heatherly to Wade was fraudulent and void as against Heatherly's creditors, and that the same was fraudulent in fact, because made with intent to hinder, delay, and defraud creditors, as shown by facts and circumstances fully set forth, and which were well known to said Wade, and fraudulent in law upon its face, by reason of its terms and provisions, and because not acknowledged or recorded as required by law.

The reply denies the validity of said writs of attachment and most of the facts and circumstances charging fraud, but admits that Wade's only claim to said goods and possession thereunder is based upon said chattel mortgage; denying that the same is a "pretended" or "alleged" chattel mortgage.

As will be seen, the pleadings admit that Heatherly was

the general owner of the goods in controversy; the plaintiff claiming right of possession under a chattel mortgage from Heatherly, and the defendant under certain writs of attachment against Heatherly.

The plaintiff in the court below replevied the stock of goods from the sheriff, who had them in possession by virtue of writs of attachment which it is not denied were legally sued out. The plaintiff, in his complaint and reply and evidence, and in every other way so far as we are able to ascertain, claims the rights to the goods by virtue of a mortgage executed to him, and that, immediately upon the execution of the mortgage by Heatherly, the mortgagor, he went into possession of said stock by virtue thereof, and not otherwise, and was in such possession by virtue thereof alone when the sheriff, who had writs of attachment against Heatherly, the mortgagor, levied upon said stock.

Upon the trial of said cause, the plaintiff, to prove his right to said stock of goods, offered in evidence this same mortgage upon which he relies to establish his case. To the introduction of this the defendant objected on the grounds: 1. Because the offer was of the original and not an exemplification of the recorded mortgage. 2. Because the indorsement shows that it was recorded before it was acknowledged. 3. Because it is immaterial and irrelevant, being upon its face and by its terms illegal, fraudulent, and void. Said mortgage was excluded by the court. Plaintiff then offered an exemplified copy of the record of said mortgage, viz., Exhibit I, which, being objected to on the last two grounds above set forth, was also excluded. Sufficient to say that again the said mortgage was offered in evidence, and again objected to by defendant, for the reasons heretofore given, and the objection sustained, the mortgage ruled out, and exception taken and allowed. The mortgage, in fact, never did get to the jury in this case. The plaintiff made no effort to amend his pleading at any

time during the trial, and the court required no amendment to said pleadings.

We gather, however, from subsequent proceedings had in the case, that the court permitted the plaintiff to treat his right to the possession of the goods in the nature of a pledge, and permitted oral evidence only to prove the same, at all times expressly ruling out the mortgage, or paper writing, to all of which the defendant objected. The objection was overruled, and exception taken by the defendant and allowed, and this is one of the errors assigned for our consideration here, which, occurring at the very threshold of the case, may be decisive of it, and we will at once consider it. But, before doing so, we will make some general observations concerning pleadings and proofs under the code.

The rule that the *allegata* and the *probata* should correspond prevails under the code as well as at common law. Indeed, if this salutary principle was not reasonably adhered to under any system of pleadings, utter confusion would ensue, and the whole theory of pleading would only be a "delusion and a snare," and the prime object of every pleader would be to so frame his allegations as to most effectually conceal his true cause of action and deceive his adversary. The rule at common law was said to be not only sound in principle, thoroughly established by precedent, but absolutely essential to the administration of justice; and this was carried so far at common law as to hold that immaterial averments — that is, averments which were not actually impertinent as surplusage — must, if laid in the declaration, be proved.

The rule is stated by Mr. Chitty to be, that every allegation in an inducement which is material and not impertinent and foreign to the cause must be proved as alleged, and particularly as applied to written instruments, and failure to make such proof was regarded as a material variance. The code does not go to this extent, and has wisely restricted

the application of the principle to material averments or allegations only; and, as thus explained, the rule is as sound, salutary and essential to the administration of justice under the code as at common law.

A very clear and able writer on this question, and one thoroughly imbued with the enlightened principles which the code system was intended to inculcate, says: "The very object and design of all pleading by the plaintiff, and of all pleading of new matter by the defendant, is that the adverse party may be informed of the real cause of action or defense relied upon by the pleader, and may thus have an opportunity of meeting and defeating it if possible at the trial. Unless the petition or complaint on the one hand, and the answer on the other, fully and fairly accomplishes this purpose, the pleading would be a useless ceremony, productive only of delay, and the parties might better be permitted to state their demands orally before the court at the time of the trial. The requirement, therefore, that the cause of action or the affirmative defense must be stated as it actually is, and that the proofs must establish it as stated, is involved in the very theory of pleading. Pom. Rem. & Rem. Rights (2d ed.), § 554.

It may be stated in passing, also, that a cardinal principle of evidence, unchanged and unchanging, is that parol, contemporaneous evidence is inadmissible to contradict or vary the terms of a valid written instrument; and that when the terms or contents of a written instrument are the subject of inquiry, the instrument itself, if in existence and capable of being produced, is the only proper evidence. This is elementary.

The plaintiff in the court below claimed in his pleadings, not only in the complaint, but in his reply, to be entitled to recovery in the action by virtue of a chattel mortgage. He rested his whole claim upon it. The denials of the defendant put not only the existence of the said mortgage at issue, but its validity, and, hence, it was incumbent upon the

plaintiff to prove not only the existence of the mortgage, but its validity; and this could only be done by the instrument itself, it being in existence, and in the possession of the plaintiff. This, we have seen, was offered by the plaintiff, objected to by the defendant, and ruled out by the court, not by reason of defects of a clerical character, but because the said instrument was not a mortgage in law, but was absolutely void.

This having been done by the court, the plaintiff had no evidence whatever to sustain the issue on his part. It was not a variance, material or immaterial; it was a failure of proof (see code, § 107), and it follows as a matter of course that, if the ruling of the court was correct, the plaintiff had utterly failed to make out a case, and the court should have so ruled, and given judgment for the defendant.

The mortgage in question, however, appears in the record in this case, and we presume is here for our consideration and inspection.

We understand from the record that the mortgage was held invalid, not, as before remarked, on account of clerical errors and defects in its execution, but upon the broad ground that there were no words in said instrument purporting to grant, sell, convey, etc., usually found in mortgages. Such words are entirely unnecessary. The word "mortgages" covers the whole ground. It has not only a well-defined meaning in this territory, as generally understood, but it is clearly defined by statute. The rule at common law, certainly unchanged by the code, is that words are generally taken in their ordinary sense, and the terms of every written instrument are to be understood in their plain, ordinary, and popular sense, unless they have generally, in respect to the subject-matter, acquired a special sense. The word "mortgages" has only one signification in this territory, popular or otherwise, — "security for debt or obligation;" and we find by inspection that the mortgage on its face was in all respects a valid one. Jones,

Chat. Mortg., § 178, says: "If a mortgagee takes possession of the mortgaged chattels before any other right or lien attaches, his title under the mortgage is good against everybody, if it was previously valid between the parties, although it be not acknowledged and recorded, or the record be ineffectual by reason of any irregularity." *Chipron v. Feikert*, 68 Ill. 284; *Frank v. Miner*, 50 Ill. 444; *McTaggart v. Rose*, 14 Ind. 230; *Brown v. Webb*, 20 Ohio, 389; *Chase v. Denny*, 130 Mass. 566; *Parsell v. Thayer*, 39 Mich. 467; *Eastman v. Water Power Co.*, 24 Minn. 437; *Clute v. Steele*, 6 Nev. 339; *Moresi v. Swift*, 15 Nev. 215; *Field v. Baker*, 12 Blatchf. 438; *Brown v. Platt*, 8 Bosw. 324; *Cameron v. Marvin*, 26 Kan. 612; *Hauselt v. Harrison*, 105 U. S. 401, 405; *Wood v. Weimar*, 104 U. S. 786; *Hamlin v. Jerrard*, 72 Me. 62, 79; *Baldwin v. Flash*, 58 Miss. 593; *Greeley v. Reading*, 74 Mo. 309. The subsequent delivery cures all such defects, and it also cures any defect there may be through an insufficient description of the property. The taking of possession is an identification and appropriation of the specific property to the mortgage. If there be two mortgages of the same property, and both be void as to creditors and purchasers by reason of not being acknowledged before the proper officer, if the junior mortgagee first obtains possession, he will hold it as against the prior mortgagee; and in some states the fact that he had notice of the prior mortgage would make no difference, while in others actual notice would be equivalent to constructive notice by record. Delivery of possession under a mortgage before rights have been acquired by others will cure any invalidity there may be in the instrument, whether arising from an insufficient description of the property, an insufficient execution of the instrument, the omission to record it, or from its containing a provision which makes it void except as between the parties."

The court ruled, however, that the plaintiff might treat the transaction brought about by this mortgage as a pledge,

and that oral or verbal testimony would be admitted to establish the relation of pledgee and pledgeor. This was no less error than the former ruling; for the instrument above set forth was in every respect a perfect pledge, and contains all the provisions of a pledge, and being the instrument containing the agreed stipulations of the parties, and especially the rights of the plaintiff, was the only competent evidence in the case to prove anything; and here again was an entire failure of proof, because the only competent proof—to wit, the instrument above set forth—was not allowed in evidence.

It has been suggested, however, by appellee's counsel, that § 105 of the code in regard to variance here applies. The definition of "variance" is anything but definite, and the application of this provision of the code has ever been a fruitful source of trouble and disagreement among jurists, some claiming with much force that its principal mission is to provide for a quarrel between court and counsel. We think, however, that this section of the code cannot be invoked in this case; but it is clearly a case of failure of proof. Section 107 of the code reads as follows: "When, however, the allegation of the cause of action or defense to which the proof is directed is not proved, not in some particular or particulars only, but in its entire scope and meaning, it shall not be deemed a case of variance within the last two sections, but a failure of proof."

The error of the court below was evidently caused by making a distinction under our law between a mortgage and a pledge. A mortgagee in possession, under our statutes, and the pledgee are practically, if not identically, the same. The same rights are secured by the one as the other. No legal title passes in either case, but merely the right of actual possession of the property for the purposes of security. The difference between a mortgage and a pledge, independent of our statute, was, that a mortgage transferred the title to the mortgagee, to be revested by the perform-

ance of the condition, while, by a pledge, the pledgeor retains the title in himself, and parts with the possession for a special purpose. By a mortgage the title is transferred; by a pledge the possession. Jones, Chat. Mortg., § 4; and Jones, Pledges, § 9.

Our statute, however, as we have seen, makes a mortgagee in possession and a pledgee occupy a very similar, if not identical, position, governed by the same rules in regard to their effects (see code, c. 141, §§ 1986, 1987; *Byrd v. Forbes*, 3 Wash. T. 318, 324; and this brings us to a review and modification of the doctrine announced in that decision relative to attaching property in the possession of the mortgagee. The learned chief justice, in delivering the opinion of the court, says: "It is not disputed but that under the statutes of this territory the interest of a mortgagor in mortgaged personal property is subject to attachment. Liability of his interest to be attached exists even in states where the mortgage operates to pass to the mortgagee the title to the goods. *Hull v. Carnley*, 11 N. Y. 501. *A fortiori*, such liability obtains under our statutes, which clearly will not consist with any other doctrine than that a chattel mortgage is a mere security under which no title can possibly pass except by foreclosure and sale. Such a mortgage is defined as to its nature and effect by the provisions of chapter 141, §§ 1986-1999, of the code, being therein spoken of and treated as gining a lien only and serving for a security, and as needing foreclosure to divest the title of the mortgagor. Sections 618 and 619 of the code speak of such mortgages as instruments 'creating liens,' provide for their foreclosure, class them with mortgages of real property, and assimilate the foreclosure of them to that of mortgages on real property, which have been determined by this court to be under our statutes mere securities. *Parker v. D'Acres*, 2 Wash. T. 439. As a general rule, any interest that may be sold on execution is subject also to process of

attachment, and it is expressly provided in § 1990 that a mortgagor's interest in goods may be taken in execution. Under our law of attachment, there exists no other way of making the attachment levy upon chattels capable of manual delivery than to take them into custody. Code, § 179. Section 1990 contemplates such a taking when it provides that the officer who executes the process shall mail to the mortgagee, 'or to his agent, if their post-office is known, a notification of the intended sale at the time such mortgaged property is seized under said process, or within five days thereafter,' and that said 'property shall not be sold within thirty days after its seizure,' and that he shall post notices at the time of 'the seizure under said process.' The provisions of § 1990 are inconsistent with the idea that, after levy by the sheriff, the mortgagee can demand and take possession. So, too, are all those provisions of statute which compel us to regard a chattel mortgage as a mere security. The theory upon which, at common law, and in some states of this Union, the mortgagee can take possession, and even dispossess the sheriff, is, that the mortgagee is owner, and the sheriff a trespasser. *Hall v. Sampson*, 35 N. Y. 274; 91 Am. Dec. 56. An express stipulation in a chattel mortgage, that the mortgagee may take possession upon a certain contingency, may be good as between the parties to the instrument, so as to allow the mortgagee to take possession from the mortgagor; but it cannot, in face of our statutes, be held to authorize a taking or retaining the possession as against creditors of the mortgagor seeking to attach his interest, or subject it to execution. Under our statutes, an unforeclosed mortgage is a mortgage still, regardless where the possession lies."

The doctrine is here announced that, under our statute, whether a mortgagee be in possession or out of possession of the mortgaged property, a subsequent or lagging creditor may, by process of attachment, take possession of the mortgaged property. We have no doubt that the property, if

in the hands of the mortgagor, could be taken possession of by process of attachment, and the property taken into actual custody by the sheriff. We further hold that the mortgagee in the possession of the mortgaged property, the mortgage being valid between the parties and made in good faith, has the right of possession against all the world, nor can he be deprived of that possession until his debt or obligation for which the mortgage is executed has been fully paid or satisfied; and to hold otherwise would be to disregard plain provisions of contract, and, to this extent, the decision in the case of *Byrd v. Forbes* on this point was merely *obiter*, and is modified in accordance with the view expressed in this opinion.

We hold the law to be that any interest that the mortgagor may have in the mortgaged property in the hands of the mortgagee can be reached by the process of garnishment; in other words, the mortgagee can be garnished for any interest that may exist after his mortgage is satisfied, but the possession of the honest mortgagee cannot be disturbed; and this, being the rule, with a court of equity ever keeping watch and eternal guard over the management of the mortgaged property, ready to step in and give relief if improperly diverted, fully subserves the interests of all the parties, and is in accordance with reason and sustained by authority.

We think it is useless to review the other errors assigned in this case. The court committed error at the very threshold in disregarding the paper writing called the mortgage, and not permitting the plaintiff to introduce the same in evidence as the foundation of his right, and the only foundation of his right as mortgagee or pledgee, and we have seen their rights are the same; and hence all the proceedings thereafter were tinged with and partook of this error, as it permeated the whole of the proceedings, and they were all nugatory and void.

It is claimed, however, that the vital question involved in

this case was the actual fraud in executing the mortgage, and fraud in fact; and that the question was fully passed upon by the jury. It is not the province of this court to determine whether it was fully passed upon or not. We do not know what the jury would have determined had competent evidence been before them. We only know what they determined from incompetent evidence, and, having no proper evidence upon which to base their verdict, the jury could render no verdict that should be sustained in law. It may be that the jury has rendered a proper verdict on incompetent, or, rather, no evidence whatever. This court cannot and will not determine what a jury will do on competent evidence. The error that we are called to pass upon at the very threshold of this case was the improper rejection of the mortgage, or paper writing which was called a mortgage, from the jury, which is the only proper evidence to establish the claim of the plaintiff, and which wholly fails without it under the pleadings.

Let the case be remanded, with the direction to the court below to admit the mortgage or paper writing in evidence, and then let the case proceed as in ordinary trials in cases of this character.

BURKE, C. J., concurs.

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[No. 578. Decided January 31, 1889.]

## LEVI ANKENY v. VAN BUREN CLARK.

ASSUMPSIT — PLEADING — COMMON COUNTS — REPLICATION — AMENDMENT — VENDOR AND VENDEE — VALIDITY OF TITLE — RESCISSION — APPEAL — MODIFICATION OF JUDGMENT.

Where plaintiff, under a contract by which defendant was to execute to him a conveyance of certain land on delivery of a quantity of wheat, evidenced by "wheat notes," delivered the wheat, and afterwards rescinded the contract on account of failure of title, the

correct form of pleading, under the code, in an action to recover the value of the wheat, is the common count for goods sold and delivered, omitting all reference to the actual contract.

Where the answer sets up that the wheat in question was delivered in payment of certain wheat notes, a reply setting up the contract for sale of the land, defendant's want of title, etc., is not inconsistent with, nor a departure from the complaint.

The omission to plead in the reply a rescission of the contract, which does not mislead defendant, nor affect his substantial rights, may be cured by amendment at any stage of the proceedings.

A contract to sell and convey land cannot be satisfied where the title is in the United States, and the vendor has merely an equity. The vendee is entitled to a good legal title.

A bond for deed being, under Code Wash. T., § 2311, an incumbrance on the land, the vendor has a right on possession of the contract by the vendee, to have the bond canceled.

Under code Wash. T., § 475, on appeal from a judgment in favor of the vendee in an action to recover the purchase price on rescission of the contract, the court may modify the judgment by requiring the vendee, before issuance of execution, to execute a release and cancellation of the bond for deed.

On rescission of a contract of sale of land by the vendee, who has been in possession, the just and reasonable rule is to offset the vendor's claim for rent against the vendee's claim for interest on the purchase price paid.

*Error to District Court, Lincoln County.*

*B. L. & J. L. Sharpstein*, for plaintiff in error.

*Allen & Crowley*, for defendant in error.

The opinion of the court was delivered by

BURKE, C. J. — It appears from the record in this case that on October 20, 1882, at Walla Walla, in Washington Territory, Levi Ankeny, the plaintiff in error, entered into a contract with Van Buren Clark, the defendant in error, by which Ankeny ageed to sell and convey to Clark two quarter sections of land in Walla Walla county, in consideration of 12,000 bushels of wheat, to be delivered in three annual installments of 4,000 bushels each, and of the as-

sumption by Clark of a mortgage of $3,000 then on the land. This contract was evidenced by three written instruments, as follows:

1. A bond from Ankeny to Clark in the penal sum of $10,000 conditioned to convey the land to Clark upon his paying the consideration according to agreement.

2. A "wheat note" from Clark to Ankeny, which reads as follows:

"WALLA WALLA, W. T., Oct. 20, 1882.

"For value received, I promise to pay to Levi Ankeny or order, twelve thousand (12,000) bushels of good merchantable wheat, said wheat to be delivered to the owner of this note at any railroad station in Walla Walla county, Washington Ty., and payments to be made as follows: On or before Oct. 15th, 1883, four thousand (4,000) bushels; on or before Oct. 15th, 1884, four thousand (4,000) bushels; and on or before Oct. 15th, 1885, four thousand (4,000) bushels—the owner of this note to furnish sacks for said wheat."

3. A chattel mortgage from Clark to Ankeny to secure the payment of the wheat note.

Under this agreement Clark entered into possession of the land, and continued in possession of it until the fall of 1886. In performance of this contract, Clark, in December, 1883, delivered to Ankeny 4,167 bushels of wheat; and in September, 1885, he delivered 8,600 bushels, making 767 bushels more than the contract called for. Ankeny accepted this wheat in fulfillment of the contract.

After the delivery of the wheat to Ankeny, Clark demanded a deed for the land. This Ankeny neglected to give, putting Clark off from time to time, upon one pretext or another, until Clark, becoming impatient, finally insisted either upon a deed to the land or payment for his wheat. Clark was then referred by Ankeny to the latter's attorneys, who informed him that he could have a warranty deed to the quarter on the even section, and a quitclaim deed to a quarter on the odd section, or the "railroad

land," as it was called; and they further informed him that if the Northern Pacific Railroad Company should not get title to the odd section, and he should be obliged to procure title from the government, Ankeny would pay the necessary expenses of obtaining title in that way. This does not seem to have satisfied Clark, and on November 16, 1886, he served upon Ankeny the following notice:

WALLA WALLA, W. T., Nov. 16, 1886.

"*Levi Ankeny, Esq., Walla Walla, W. T.*—DEAR SIR: I have performed my part of the contract in the purchase of the land described in your bond to me. I have learned that you have no title to one hundred and sixty acres of it. You have refused to give me anything more than a quit-claim deed to this part of the land. I cannot accept such a deed. It was not what the contract called for. Unless within five days from this date you convey a perfect title to me to the whole of the land described in the bond, by a good and sufficient conveyance, I will at the end of that time, abandon this land, and surrender the possession to you, and look to you for such compensation as the law allows me on account of your violation of the contract.

"Respectfully, V. B. CLARK."

Ankeny seems to have paid no attention to this notice, and Clark, several days thereafter, taking a witness with him, went to Ankeny's bank and formally surrendered possession of the land to Ankeny. Clark then abandoned possession of the land, and has not occupied it since.

Subsequent to all this, and on the 19th day of March, 1887, Clark brought this action in the district court of the First district, to recover from Ankeny the value of the 12,767 bushels of wheat delivered under the contract. The case was tried before a jury, who, upon the direction of the court, brought in a verdict for the plaintiff, and judgment was given upon the verdict. The defendant brought the case to this court under the act of 1883.

Plaintiff in error insisted that the court erred in overruling his objection to the admission of the testimony offered by defendant in error to support his action upon the trial;

that under the complaint in the action the evidence was wholly inadmissible; that defendant in error had misconceived his remedy, if he ever had one; and that, in view of the conceded facts in the case, he cannot possibly recover under his pleadings.

In view of the earnestness and confidence with which this view of the case has been pressed upon us by counsel for plaintiff in error, we shall proceed to notice the pleadings at greater length than we otherwise should have done.

The complaint in this case simply alleges the sale and delivery to the defendant of 12,767⅓ bushels of wheat; "that the same was and is reasonably worth the sum of fifty cents a bushel, or, in all, $6,383.41⅔ lawful money of the United States;" and that defendant has not paid the same, or any part thereof; and prays judgment for this amount, with interest from October 10, 1885.

The defendant answers this complaint, denying each and every allegation thereof; and, "for a further and separate answer and defense," defendant alleges the execution of the "wheat note," and the chattel mortgage to secure it, setting out both *in extenso;* and concludes by alleging that "all the wheat delivered to defendant by plaintiff was delivered and received as payment on said note, and not otherwise." He makes no mention of the bond or of any contract for the sale of land.

The plaintiff, in reply, makes a full statement of the contract for the sale of the land, setting forth the bond *in hæc verba,* and alleging performance on his part, and default on the part of defendant. The concluding paragraph of plaintiff's reply is as follows: "That, after the said plaintiff had so performed said contract in the delivery of said wheat to defendant, he duly demanded of defendant that defendant convey said real estate to plaintiff as by his said bond he had undertaken to do; that said defendant then and there neglected and refused so to do, and has ever since and still does neglect and refuse to grant and convey said premises

to plaintiff by any good and sufficient deed; and that said defendant has no title to the northeast quarter of section 19, in township 8 north, of range 37 east, of said real estate, and since the making of his said contract was not the owner or seized in fee or at all of said land. Plaintiff alleges that the wheat mentioned and described in his complaint, except the excess thereof over the requirements of said bond, is the purchase price of said land advanced and paid by plaintiff to defendant, and that by reason of his said neglect and refusal, and inability to perform the said contract, the said defendant became and is indebted to plaintiff for the reasonable value of said wheat, and that such demand constitutes the cause of action in the complaint pleaded. Whereof plaintiff asks judgment as in the complaint."

We feel no hesitation in holding that the theory upon which plaintiff brought this action was the correct one. Under the old system of pleadings, an action *in assumpsit* would lie to recover back purchase-money paid upon a contract of sale, which has been rescinded. 2 Hil. Vend. 61, 62; *Elliot v. Edwards*, 3 Bos. & P. 181; *Eames v. Savage*, 14 Mass. 425; *Newsome v. Graham*, 10 Barn. & C. 234.

The same rule of pleading prevails in like cases under the code, and there is no good reason why it should not. When a contract is rescinded, it is abrogated and annulled. It is as if it had never existed, and the party seeking to recover back money paid under it proceeds, not upon the contract, for there is none, but upon the implied obligation that exists, on the part of the one who received money under it to pay it back to the one from whom he received it. *Farron v. Sherwood*, 17 N. Y. 227; *McManus v. Ophir Silver Mining Co.*, 4 Nev. 15; *Wilkins v. Stidger*, 22 Cal. 232; 83 Am. Dec. 64; *Seattle & Walla Walla R. R. Co. v. Ah Kow*, 2 Wash. T. 36, 40.

The reply in this case is neither inconsistent with, nor a departure from the complaint. It is a proper replication

to the new matter set up in the answer. It is, however, defective in not pleading a rescission of the contract. This omission, which was an evident oversight, did not mislead or prejudice the appellant, or affect his substantial rights, under the liberal provisions of our code, and was such as may be cured by amendment at any stage of the proceedings.

The next error assigned by plaintiff in error is that defendant in error neither alleged nor proved a rescission of the contract, or facts entitling him to a rescission. The record in this case clearly shows a performance of the contract, by the defendant in error, and a failure to perform by the plaintiff in error. This was not seriously disputed upon the argument. But it is insisted that by his failure to elect seasonably to disaffirm the contract the defendant in error had waived his right so to do; that before defendant in error gave his written notice of his intention to disaffirm, plaintiff in error had tendered performance of the contract by offering a quitclaim deed of the land, which defendant in error refused; and finally before defendant in error's attempted rescission, he did not, as he was bound to do, put plaintiff in error in as good condition as he was before the sale; he did not offer to release or cancel the bond, or to pay rent for the use of the land. The whole controversy between the parties in this case seems to have arisen out of a suspicion, which both parties evidently entertained, of the soundness of the title to the quarter section known as the "railroad land." Fearing this title, the defendant in error was averse to receiving a quitclaim deed, and seemed to think that under his contract, he was entitled to a warranty deed. In this construction of his contract he was mistaken. By the terms of the bond the vendor was bound, it is true, to convey to the vendee a good title to the land, but he was at liberty to convey it by any form of deed effectual for that purpose; and, under the statutes of our territory, a quitclaim deed is just as effectual to convey

the title to real estate as any other form of deed, and a grantee in a quitclaim deed is entitled to the same presumptions as to *bona fides*, and has the same rights, as a grantee in a deed of general warranty. This is undoubtedly true of a quitclaim deed which purports on its face to convey, not merely an interest, but the real estate itself. Laws 1871, p. 195; Code Wash. T., §§ 2311, 2314, 2323, 2726–2737; Laws 1885–86, p. 177.

By the statute of 1885–86, above referred to, it is provided that a quitclaim deed purporting to convey the interest of the grantor shall not be held to operate as a conveyance of an after-acquired title, unless words are added expressing such intention. The operative words of such a deed would in any event probably preclude the idea of its conveying an after-acquired title; but it is believed that under the statutes of this territory relating to deeds, and to their registration, a deed in the form of a quitclaim, which purports on its face to convey the real estate, would operate to convey even an after-acquired title. Such an instrument would be in effect a bargain and sale deed. Laws 1871, p. 195; Code Wash T., §§ 2311, 2314.

The decisions of the supreme court of the United States, to which our attention has been called, are not applicable here, because, as we have seen, this subject is governed in this territory by positive statutory regulation.

But no form of deed is sufficient to convey a title where the grantor has none; and this, we think, is the situation of the plaintiff in error with respect to the quarter section known as the "railroad land." The evidence introduced by plaintiff in error proves that the United States had the legal title to this section; that it was included within the grant of land to the Northern Pacific Railroad Company; that the railroad company conveyed it to one Huff, and Huff to plaintiff in error; but the proof leaves the legal title still in the government. Granting everything that is claimed for the title, the utmost the Northern Pacific Rail-

road Company ever had was an equitable interest; for it is well settled that the legal title does not pass to the company until the issuance of the patent, and, so far as the record shows, no patent has issued for this land. *Railway Co. v. Prescott*, 16 Wall. 603; *Railway Co. v. McShane*, 22 Wall. 444, 462; *Northern Pacific R. R. Co. v. Traill Co.*, 115 U. S. 600, 606.

By the terms of the bond in this case, plaintiff in error agreed to sell and convey this land to defendant in error. This he could not do, because he had, at best, but an equitable title, and defendant in error was entitled to a good legal title. "The legal effect of a covenant to sell," says the United States supreme court in 1 Black, 450, "is that the land shall be conveyed by a deed from one who has a good title, or full power to convey a good title." *Washington v. Ogden*, 1 Black, 450; *Bank of Columbia v. Hagner*, 1 Pet. 455; *Turner v. McDonald*, 76 Cal. 177; 9 Am. St. Rep. 189.

But it is contended that, in any event, upon a rescission of the contract of defendant in error, plaintiff in error was entitled to have a release or cancellation of the bond which he had given for the land. In this contention plaintiff in error is right. A bond like the one in this case is, under § 2311 of the code, an incumbrance upon real estate; and, if plaintiff in error is to be put in as good condition as he was before the sale, the bond must be canceled. We think, however, that an affirmance of the judgment of the district court would operate to extinguish whatever right or title under the bond remained in defendant in error, and in effect cancel the bond. *Pence v. Langdon*, 99 U. S. 578; *American Wine Co. v. Brasher*, 13 Fed. Rep. 595.

Besides, under § 475 of the Code of Washington, the court has power to reverse, affirm, or modify the judgment of the court below; and, to prevent the possibility of harm to the plaintiff in error from this bond, the court will order the judgment below modified so as to require defendant in

error, before an execution shall issue upon the judgment, to make and execute a proper and sufficient release or cancellation of the bond, and deposit the same with the clerk of the court for the use of plaintiff in error. It should be observed here that the record nowhere shows that plaintiff in error ever made any complaint of the failure to release or cancel this bond before coming to this court, and there can be no doubt, upon the evidence, that the failure to cancel it was unintentional on the part of the defendant in error.

The only remaining question relates to the claim of plaintiff in error for rents during the time that defendant in error had possession of the land under the contract of purchase. The authorities do not seem to be agreed upon the question as to the right of the vendor to rents upon a rescission of the contract of sale. But we think the more just and reasonable rule is to offset the claim for rent against the claim for interest. *Talbot v. Sebree's Heirs*, 1 Dana, 56; *Shields v. Bogliolo*, 7 Mo. 134; *Patrick v. Roach*, 21 Tex. 251; *White v. Tucker*, 52 Miss. 145; *Cook v. Doggett*, 2 Allen, 441; *Bardsley's Appeal*, 10 Atl. Rep. 39.

The fairness and justice of this rule are well illustrated in this case. The vendor was the party in fault throughout. He received the full purchase price for the land according to the terms of his contract. He failed to perform the contract on his part. He has never, to this day, formally tendered a deed to defendant in error; and, if defendant in error's statements that he would not accept a quitclaim deed be held to excuse plaintiff in error for not tendering a deed before this action was begun, it certainly did not excuse his failure to make a tender of a deed of some kind in his answer, or to bring a deed into court upon the trial. Yet he did neither the one nor the other. The defendant in error claims interest only from the time when he delivered up possession of the land to plaintiff in error, and that he is justly entitled to.

The cause will be remanded to the court below, with instructions to modify the judgment in accordance with this opinion; that is to say, the judgment will be modified only so far as to suspend the issuance of execution until the defendant in error shall execute a proper and sufficient release or cancellation of the bond mentioned in this case, and deposit such release or cancellation with the clerk of the district court for the use of the plaintiff in error.

ALLYN and NASH, JJ., concur.

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[No. 581. Decided January 31, 1889.]

## P. LAURENDEAU v. PETER FUGELLI.

PUBLIC LANDS — ENTRIES — REPLEVIN.

An entry upon inclosed and improved land occupied and claimed under a certificate from a railroad company is not authorized by 23 U. S. St. at Large, 321, forbidding the fencing of public land, or preventing settlement thereon, but the person so entering is a naked trespasser.

In replevin for hay which plaintiff claims by reason of his alleged ownership of the land on which it was grown, and of which defendant has possession, the title to the land may be inquired into.

*Appeal from District Court, Kittitas County.*

Replevin by P. Laurendeau against Peter Fugelli. Plaintiff appeals.

*Allen, Whitson & Gilliam*, for appellant.

*Daniel Gaby*, for appellee.

The opinion of the court was delivered by

ALLYN, J. — This action was brought by appellant in the district court of Kittitas county to recover possession of seventy-five tons of hay of the value of $500; the plaintiff

claiming to be the owner of the soil, and, by virtue of this, of the hay. It appears that prior to 1883 the land upon which this crop was grown had been contracted by the Northern Pacific Railroad Company to one Wilcox, who sold it to one Amlin. The latter, in 1883, conveyed it to appellant (plaintiff). The land was seeded to grass, fenced and otherwise improved. In May, 1885, appellee broke down a portion of the fence, entered upon the land, and took possession — presumably on a claim of pre-emption, although there is no evidence as to such claim. Appellant now sues for the hay cut in 1887, or its value, as stated. In the court below, upon the close of plaintiff's case, a motion being made for a nonsuit, the same was granted, and from this and the overruling of a motion for a new trial plaintiff appeals. It is urged by the appellee that this is, in fact, a trial of title to the land, and that this question cannot be considered in an action of replevin. Also, that the appellant was within the prohibition of the act of Congress forbidding the fencing of public lands, or preventing settlement thereon. 23 U. S. St. at Large, Feb. 25, 1885, p. 321. The contention of appellee that the title to realty should not be tried in a replevin suit is correct in the abstract; but the title may certainly be looked into to determine the rights of the parties, and incidentally tried in a transitory action when necessary to establish the title to personal property severed from the realty. Wells, Rep., §§ 79, 80. See, also, *Atherton v. Fowler*, 96 U. S. 513 — an action in replevin, in which the title to realty is practically determined — a case so like the one at bar that it will be referred to later *in extenso*.

In relation to the contention of appellee, viz., reliance upon the act of congress above referred to, our attention is called to a late decision from the department of the interior, dated October 2, 1888, reported in Copp's Land Owner, vol. 15, No. 15 (*Stoddard v. Neigel*), the syllabus of which is: "A settlement made without violence, within

the unlawful and unauthorized inclosure of another, is valid," etc. The facts of that case would appear sufficient to sustain the conclusions arrived at; but it will not do to say broadly that parties may judge for themselves as to the lawful or unlawful inclosure of others, and enter such, with or without violence, and acquire rights. The announcement of such a principle as this is sufficient to refute itself. It is shocking to the moral sense, and would encourage trespass and violence, leading to the gravest of crimes. As suggested, the facts of that case may have justified the decision which was arrived at, but such a rule, announced for general application, cannot now, and never will, be followed. In any event, it is merely a ruling of the interior department, and is no precedent to control our judgment here. As is well known from the circular of April 5, 1885, the entry, countenanced by *bona fide* settlers upon unlawfully inclosed lands, was where large areas of public and unoccupied lands had been inclosed without a shadow of claim or right by stockmen; and to place such persons and such cases outside of the general rule was necessary, right, and proper. They were no more entitled to protection than any other offender against the law. To invoke the act of 1885 as a license to opposing claimants, preëmptors, and the like, of a law unto themselves, that either may break down the inclosure of the other and lawfully enter, is to use a rule made for desperate cases, requiring desperate remedy, and in itself exceptional; to overturn the law; to bring chaos instead of social order; to make the court a useless formality, and the law an object of contempt. This question has been passed upon in 96 U. S. 513-520, by Justice MILLER, in *Atherton v. Fowler*, a case of replevin for hay cut under circumstances quite similar to this. The question of title was there looked into, as here, and the results of the cases are alike generally, as they are in the facts. The learned judge, whose reputation is not limited by the boundaries of our own country, says,

p. 516: "It is not to be presumed that congress intended, in the remote regions where these settlements are made, to invite forcible invasion of the premises of another in order to confer the gratuitous right of preference of purchase on the invaders. In the parts of the country where these preëmptions are usually made, the protection of the law to rights of person and property is generally but imperfect under the best of circumstances. It cannot, therefore, be believed, without the strongest evidence, that congress has extended a standing invitation to the strong, the daring, and the unscrupulous to dispossess by force the weak and the timid from actual improvements on the public land, in order that the intentional trespasser may secure by these means the preferred right to buy the land of the government."

In the case at bar appellant was in peaceable possession by purchase from the holder of a certificate from the railroad company. He and his grantors had for some years plowed and seeded it to grass, inclosed it with a fence, and made other improvements thereon. To allow such an occupation and possession to be disturbed by one who breaks down a fence, and violently seizes it, we cannot consent to. In the case in 96 U. S., from which we have just quoted, the learned judge, under almost exactly parallel facts, says: "Unless some reason is shown, these were the persons (those who had settled on it, improved and cultivated it) entitled to make preëmption, and no one else. But suppose they were not. Does the policy of the preëmption law authorize a stranger to thrust these men out of their houses, seize their improvements, and settle exactly where they were settled, and by these acts acquire the initiatory right of preëmption? The generosity by which congress gave the settler the right of preëmption was not intended to give him the benefit of another man's labor, and authorize him to turn that man and his family out of their home. It did not propose to give its bounty to set-

tlements obtained by violence at the expense of others. The right to make a settlement was to be exercised on unsettled land; to make improvements on unimproved land. To erect a dwelling-house did not mean to seize some other man's dwelling. It had reference to vacant land, to unimproved land; and it would have shocked the moral sense of the men who passed these laws, if they had supposed that they had extended an invitation to the pioneer population to acquire inchoate rights to the public lands by trespass, by violence, by robbery, by acts leading to homicides, and other crimes of less moral turpitude." We quoted largely from Justice MILLER, as that case is a clear precedent for this, and also because it is based on a similar state of facts. The powerful and convincing reasoning of the learned justice, breathing as it does a just indignation against outrage and oppression, thoroughly commends itself to us, and, as concluded in that case, so in this. It follows that the defendant could not have made any lawful entry on the land where the hay was cut. No law exists which gave him any right to such entry. He was a naked trespasser, making an unwarranted entry upon the inclosure of another; an inclosure and occupation of years, upon which time, labor, and money had been expended. In such wrongful attempt to seize the fruits of another man's labors there could be no *bona fide* claim of right whatever. The action of the court below in granting a nonsuit to the defendant was error, and the judgment must therefore be reversed.

BURKE, C. J., and LANGFORD, J., concur.

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[No. 585. Decided January 31, 1889.]

## THOMAS JOHNSON v. FRED LEONHARD.

PUBLIC LANDS—ENTRY ON COAL LANDS—PUBLIC POLICY—PLEADINGS—CURED BY VERDICT.

When a person has entered as much coal land as the statutes of the United States permit, a contract whereby another person is to enter additional coal land, obtain the title, and then convey it to the first, is contrary to public policy.

After verdict, when no motion has been made to make more definite and certain, the pleadings will be liberally construed to sustain the judgment.

*Error to District Court, Kittitas County.*

*Reavis, Mires & Graves*, for plaintiff in error.

*E. P. Cadwell*, and *Pruyn & Ready*, for defendant in error.

The opinion of the court was delivered by

LANGFORD, J.—This is a case wherein the plaintiff in error, Thomas Johnson, brought an action in the district court against Fred Leonhard for $4,000 for the breach of a certain contract to convey the title to certain coal land. The answer set up that said contract was one link in the chain whereby a conspiracy was effected that one Imbrie should in his own name enter certain coal lands, and obtain title thereto as the agent, and for the use and benefit, of a corporation named the "Northern Pacific Coal Company," the said company at the time having entered in its own name, and holding more coal land than the statutes of the United States permitted it to enter or hold; and, in order to procure more land than the statutes permitted the company to enter and hold in its own name, this contract was made so that the company, though the actual person for whom the entry was to be made, should make the entry in the name of another, that the same might be held and

owned for the sole use and benefit of the company. Upon these issues the jury found a verdict for the defendant, judgment was entered thereon, and plaintiff assigned error.

No evidence or instructions are brought to this court, so the sole question before this court is, whether the pleadings will support the verdict and judgment. The jury found specially and generally as follows: "Did the plaintiff, at any time before the 1st day of May, 1887, inform defendant that he was ready to pay the contract price of the land described in the contract sued on and to receive deed to the same, and did defendant then notify plaintiff that he considered said contract void and that he would not carry out the same? Yes. At the time the contract sued on was made, was the land, the subject of said contract, public lands of the United States? It was. Was said land coal land? Yes. Did one James Imbrie have a coal-land filing on said land? Yes. In making the contract sued on, was the plaintiff acting for himself or as the agent of the Northern Pacific Coal Company? We find that he was acting as agent for Logan M. Bullitt, of the Northern Pacific Coal Company. If you answer that plaintiff was acting as agent for the Northern Pacific Coal Company, was said contract a part of a scheme known to and concurred in by plaintiff and defendant to induce James Imbrie to enter said land for the benefit of the said Northern Pacific Coal Company? Yes." The jury also found a general verdict for the defendant.

The plaintiff in error claims that the special findings conflict with the general findings. We find there is no such conflict. The answer is somewhat indefinite, but after verdict, when no motion has been made to make more definite and certain, the pleadings will be liberally construed to sustain the judgment. The plaintiff in error insists that it is not contrary to public policy for one in possession with right to enter to sell such right to another, so that the other may enter the land in his own name. This may be con-

ceded, but the contract in this case is not to that effect, but the allegation is that the fee obtained in Imbrie's name is to be obtained for, and for the benefit of, the Northern Pacific Coal Company. The statutes of the United States limit the amount of land which any person or company may enter or hold. The Northern Pacific Coal Company, having exhausted their right, could not acquire more. Such contracts are against public policy, not because they are for the purchase of a right to enter coal lands, but because they attempt to, in fact, enter land which the statutes prohibit them from entering or holding, while they conceal the illegal design under the name of another.

The pleadings sustain the verdict, and the verdict sustains the judgment. Let the judgment be affirmed.

BURKE, C. J., and ALLYN, J., concur.

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[No. 586. Decided January 31, 1889.]

F. M. THORPE, JOHN E. HALE, AND ANTOINE BERTRAM, GEORGE SPLAWN, C. A. SPLAWN, AND F. M. THORPE, *Executors of the will of Margaret Thorpe, deceased,* v. THE TENEM DITCH COMPANY.

IRRIGATION — APPROPRIATION OF WATER — RIGHTS OF PATENTEE — CUSTOM — ASSIGNMENT OF RIGHT TO CORPORATION — ENFORCEMENT.

The prior appropriator of the flow of any water over the public lands of the United States has, by a local custom which is recognized by the United States, a vested right therein, which cannot be defeated by one who, having consented to such appropriation, subsequently files a homestead entry and obtains a patent for the land.

Conceding that the statutes of Washington Territory of 1873 do not extend the right to appropriate water to any except land owners, they are not intended to restrict the right of prior appropriation as it existed by the local customs and under decisions of the courts, by which it was immaterial whether the appropriator was a land owner or not.

Where proprietors of a ditch have transferred the right to control the water for their individual use to a corporation created for and engaged in the business of farming and irrigation, the corporation is a trustee of an express trust, and may sue as such to enforce the rights of such proprietors to the water appropriated.

*Appeal from District Court, Kittitas County.*

*Burke & Haller*, and *Richard Gowan*, for appellants.

*D. Gaby*, and *Turner, Forster & Turner*, for appellee.

The opinion of the court was delivered by

LANGFORD, J.—This is a case where the beneficiaries of the plaintiff claim to have appropriated two-thirds of the waters of Tenem creek in 1873. The property is situated in Yakima county, Wash. T. The neighborhood where the ditch is said to have been located and the water appropriated consisted, at the time of the commencement of the ditch, of no more than eight or nine persons. The land was unsurveyed land of the United States. All of these parties in the neighborhood, except Thorpe and Hale, composed a company for the purpose of appropriating the water, partly for the benefit of the land already taken by one or two of its members, and partly for the purpose of being used at some future time by other settlers locating upon the land which was to be watered by the ditch. The defendant Thorpe did not become a member of the company, but claimed land below where the ditch tapped the creek. He was fully aware of the formation of the company, and its purposes, and made no objection whatsoever to the parties taking the water as the ditch and the survey indicated. Afterwards, in 1874, when the ditch company attempted to dig the ditch across Thorpe's land, he objected to their digging the ditch at that particular place on his land, but consented to their digging it at some other place. The company thereupon had a consultation with Thorpe and his wife as to digging the ditch at the place where Thorpe objected to having it dug, and finally Thorpe signed an

agreement of arbitration; his wife being present and consenting thereto. The head gate and the part of the ditch constructed was sufficient to take two-thirds of the water of Tenem creek into the ditch, and the survey showed that it was the intention of the parties to continue the ditch at that size—enough to draw off that amount of water. The company continued work on the ditch until it was completed, in 1875, and after it was completed appear to have taken all of the water in the dry season into the ditch, leaving Thorpe and the other parties without any water whatsoever. Thereupon Thorpe dug another ditch, tapping the creek above the mouth of the plaintiff's ditch, whereby he drew off nearly if not all of the water of the creek, diverting it from the plaintiff's ditch; whereupon the plaintiff brought suit for damages and injunction, and the court adjudicated that the ditch company was entitled to two-thirds of the water, and defendants Thorpe and Hale to one-third.

Thorpe was a person who had the qualifications which would entitle him, when the lands became subject thereto, to make a homestead entry of the land, but he had made no actual appropriation of the water except by a number of ditches which were indefinite in size and extent, but which were sufficient, when filled, to use all the water in the dry season out of the creek; but these ditches, so constructed, were made after the plaintiff's appropriation in 1873. The land was surveyed in 1873, and Thorpe made a homestead entry or filing in 1874. The plaintiff claims, according to the local custom of the country and the decisions of courts and the act of 1873 of the legislature of Washington Territory, it was the first appropriator; that the first appropriator of water upon the public lands of the United States obtains a vested right to the water so appropriated; and that no subsequent entry of the land could divest this vested right. The defendant claims that, by virtue of his settlement upon the unsurveyed public lands

with intent to take them as a homestead, the inchoate and equitable title was vested in him to that land, and, as an incident thereto, the natural flow of the stream over it. It is the opinion of the court that the prior appropriator of the flow of any water over the public lands of the United States has a vested right therein; that, so far as the right of prior appropriation exists, it exists by virtue of the laws of the United States and the proprietorship of the United States; that the local custom itself forms a law which is recognized by the United States as giving the right to the first appropriator, and that, so long as these laws of the United States control the public lands, this right of prior appropriation exists as the law of the land; that, when the United States loses control over the land, and the control thereof is left to the states or territories, then the right of prior appropriation, under the laws of the United States, ceases, and not till then. This rule would cause the right of appropriation to exist as against Thorpe and Hale until they obtained a title to the land and a vested right from the United States which could be held independent of the proprietorship of the United States. In other words, it existed until the United States had made a primary disposal of the soil. The government of the United States never made primary disposal of this soil to Thorpe or Hale until long after the appropriation of the water by the ditch company. The government of the United States cannot be said to have disposed of land under the preëmption law until final proof and payment, and not under the homestead law until final proof of the homesteader, which entitles him to a patent. The defendant claims that having obtained a patent to the land in 1880, by virtue thereof the title to the land gives him the right to the natural flow of the water thereon from his time of filing, notwithstanding the water had been previously appropriated by others with his consent. The doctrine of relation is a fiction of law which is applied for the purpose of the furtherance of justice, but

never is invoked and enforced for the purpose or to the effect of violating private agreement or to work injustice to others. The right of prior appropriation is said to be a vested right, and certainly the agreement of all the neighbors that water can be and is appropriated by the first settlers of that locality in a certain way is such a custom as the act of congress of 1866 designates as vesting a right. Local customs of appropriating water may be established by miners' meetings, or by common agreement of all the people in the locality, which latter was its manner of adoption in this case, and the defendant cannot claim that the doctrine of relation shall be given effect against this local custom, to which they agreed in common with all the people then in that locality. These principles, when applied to this case, sustain the decision of the district court as to all the defendants and all the intervenors, for the other defendants and the intervenors are later in the initiation of their rights than the defendant Thorpe. Indeed, many, if not all, of the intervenors fail to show any actual appropriation or riparian proprietorship.

It has been claimed that the statutes of the Territory of Washington of 1873 do not extend the right to appropriate water to any except land owners. If this were true, such act of the territorial assembly could not restrict the right of prior appropriation as it existed by the local laws and customs and the decisions of the courts, and certainly the legislature did not intend to limit or destroy those rights. The local laws and customs extended the right not only to proprietors of mines and land, but to any others who, for the purpose of any sort of business or trade, or even the sale of water, actually made the appropriation. If this be true, it is entirely immaterial whether the members of the company or the company itself were the proprietors of the land.

The defendant also objects to the plaintiff recovering in this instance for the want of corporate power to bring suit

—*First*, because the corporation is not authorized to hold lands; and, *second*, because the members of the ditch company have not conveyed title to the corporation by regularly executed deeds. It appears that the original company which appropriated this water was not at first incorporated. All held a common interest in the ditch, which each was to use for his individual farm. The use of the water was individual, though the taking and appropriation were joint. A corporation could be formed under the act to provide for the formation of corporations. St. 1873, § 1, p. 398. This power to incorporate was not limited by the statute of the same session on page 520, § 1. A corporation could exist under the first cited act, and could own or use land for any purposes mentioned therein, one of which is farming purposes. A corporation thus existing could exist for farming purposes. This corporation existed for farming purposes by any fair construction of that term. Until this land was transferred to them they would not have the title to the land merely because the stockholders were proprietors, but they could exist for the purpose of farming, although they did not own the land; and farming included the power to irrigate. Then the original organization was valid for the purposes of farming and irrigation. The right of the original proprietors is quite another question, but it is not claimed here that the corporation made any prior appropriation whatsoever, but that it simply holds by virtue of the transfer to the company of the power to control the water by the individuals of the company who had previously acquired the right. Before this action was brought, the individuals who were the proprietors of the land incorporated themselves formally, and in a written instrument transferred the right to control the water for their individual use to the corporation. This certainty would make the corporation a trustee of an express trust, and the transfer of the control and the ditch in actual possession of that

corporation would be sufficient to create a title by which the corporation could sue as trustees of an express trust.

As the briefs of the respective parties refer to the authorities which have been examined, it is not deemed necessary to cite them in this opinion. The opinion is the result of the authorities so cited.

ALLYN, J., concurs.

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[No. 600. Decided January 31, 1889.]

TOWNSEN T. ELLIS AND MARTHA ELLIS v. POMEROY IMPROVEMENT COMPANY.

WATER-COURSES — APPROPRIATION — ESTOPPEL — PUBLIC LANDS.

Water-courses on the public lands of the United States are subject to appropriation by use in accordance with local customs and laws; and vested rights so acquired can not be divested by relation back of a patent granted to one who had preëmpted the land through which the water-course passes, and who did not make final proof until after such appropriation had been made.

One who is present and aids in the appropriation of a water-course, and afterwards sells his interest in the water-rights so acquired, is estopped from asserting any claim to such water-rights under a patent afterwards obtained by him as a preëmptor of the land through which the water-course passes.

*Appeal from District Court, Garfield County.*

Action by the Pomeroy Improvement Company against Townsen T. Ellis and Martha E. Ellis. Judgment for plaintiff, and defendants appeal.

*W. A. George*, for appellants.

*M. F. Gose, Elmon Scott*, and *Allen & Crowley*, for appellee.

The opinion of the court was delivered by

ALLYN, J.—Appellants insist that this is a suit to quiet title to a certain water-right and right-of-way for a water ditch across the north half of the south half of section 32, township 10, north of range 42 east, in Garfield county, and that, possession not being unqualifiedly asserted, the action must abate. In this action an injunction is also prayed to restrain the defendants (appellants) from obstructing or interfering with plaintiff in the full use and enjoyment of such ditch and water-right claimed by plaintiff, and from interfering with plaintiff and its agents from going upon the right-of-way, and repairing such ditch, etc., and for further relief. The findings of the court below were all favorable to plaintiff, from which the defendants appeal. The action, while partaking somewhat of the character of one to quiet title, is merely an ordinary application addressed to a court of equity to prevent, by injunction, continuous wrongs in the nature of nuisances, and interference with the vested rights of another. It appears that in the spring of 1878 the land above referred to was public and unoccupied lands of the United States. On May 28, of the same year, Ellis filed upon this land, and began a building, and shortly thereafter took up his residence thereon. He made final proof on April 3, 1880. Patent was issued to him November 10, 1882. The patent has the usual exemption of "vested and accrued water-rights and rights to ditches and reservoirs used in connection therewith, as recognized by local customs, laws, decisions," etc., provided for in act of congress July 16, 1886. Defendant Ellis, with Ritter and Steen, in 1878 organized a company or partnership in a planing-mill, etc., to be located near Pomeroy. The water-power for same, by which it was to be operated, was to be taken from Pataha creek, which runs through a corner of this land, thence to be carried by ditch across said land, and they thereupon ordered machinery for

said mill, built a ditch across said lands from Pataha creek to the mill-site, and also a dam in Pataha creek to turn the water into said ditch, at an expense of about $300. Ellis, appellant, was an active agent in selecting the mill-site, arranging the course of the ditch, water-right, etc., and about this time was making his own preëmption, as above stated. In August, 1878, Ellis joined Ritter and Steen in a sale to one B. B. Day, as trustee for several others, by which the work done on the ditch, the machinery ordered, the tools purchased, and all debts incurred, in all amounting to about $3,200, were turned over to said Day, with all the rights that said company had acquired in such ditch, mill-site, etc. This sale to Day subsequently results in the title which is now held by the Pomeroy Improvement Company, appellee, and under this transfer an amount of something like $4,500 was subsequently expended in all, and the mill, as now constructed, was completed and begun operations about September 10, 1878. Later, and after said sale to Day, the defendant Ellis set up a claim to said ditch by reason of his preëmption, etc., and was paid a price for such claim. Again, and when the then owners were completing the ditch, Ellis gave a second notice of a claim based upon his preëmption, but, through fear of possible trouble and complications arising about his patent, not then issued, withdrew this claim, and the work was completed as heretofore stated, Ellis apparently acquiescing. There were occasional contentions between Ellis and the company, and a protest on the part of the former against the change of a few rods in the position of the dam, whereby the head of the ditch was moved up the creek a short distance, but no active nor material steps were taken by Ellis, and the mill was operated and run by said ditch and water-power from the last date above given, September, 1878, until the year 1887, when this suit was brought.

In the foregoing statement we have suggested that this is not merely an action to quiet title, and but little need be

said in disposing of that proposition and the argument presented by appellants, based on the want of allegation and proof of possession by appellee, to sustain an action to quiet title. However, if consideration of the case in that particular is at all necessary, the statement and showing made by appellee that it is in possession and operating said mill by the use of this water-ditch is a sufficient showing of possession of the ditch to meet fully the objection made, while the statement of defendant Ellis of forcibly preventing appellee from going along said ditch and keeping it in repair, and using such water-way, by which the mill is operated—if it has the right to use the same—clearly shows a condition of things which, from their very nature, a court of equity can alone correct by injunction. To the further contention of want of explicitness in the acts asked to be enjoined, a motion at the proper time might have reached this, but such objection now made comes too late. Neither do we consider the change made in the head of the ditch as material or affecting the results. It in no way changed the course or general nature of the ditch, the amount or flow of water—a slight change was made necessary through washouts at the head, not at all changing the general results, as we have stated—nor affecting materially the rights of the parties. If such taking and use by appellee was right, the slight change in the dam necessitated may properly be considered as an incident of such use, as, when a right is acquired, all things necessary to a complete enjoyment of that right go with it. From the conduct of said appellant, as shown in the above statement of facts, sufficient appears to justify affirming the judgment of the court below on the ground of estoppel alone, viz.: Ellis making his preëmption filing, and, contemporaneous therewith, associating himself with Steen and Ritter in constructing the mill (of which this water-ditch was as necessary and essential a part as the machinery of the mill itself), Ellis being, in fact, the active agent of this company, thereafter selling

his interest in the same, and then standing passively by and tacitly acquiescing while large sums are being expended and valuable rights acquired, to attempt, at this late day, and after all this, to claim superior rights under his patent of November, 1882 (final proof made 1880), claiming relationship back to his declaratory statement of May, 1878, is to ignore the commonest principles of equitable estoppel. The fact that he files upon this land, and, simultaneously therewith, he and others in company assert and appropriate this water-right, under an apparently amicable arrangement, estops him; his subsequent sale to others of these rights estops him; and, finally, his tacit consent to it all, by standing by and seeing valuable interests accumulating here, all estop him. As said in *Kirk v. Hamilton*, 102 U. S. 68, 79; "He remained silent while the other expended large sums in improvement, and, in effect, disclaimed title in himself. He was silent when good faith required him to put the other on guard. He should not now be heard to say that that is not true which his conduct had unmistakably declared was true, and upon the faith of which others acted." The doctrine of relation of rights back of the patent we will refer to later. This doctrine may be invoked when it is necessary to do exact justice, but it will not be invoked to do injustice. As is said, "The doctrine of relation is a fiction of law adopted by the courts solely for the purposes of justice." *Gibson v. Chouteau*, 13 Wall. 92, 101; *Hill v. Lenormand*, 16 Pac. Rep. 266; *Frisbie v. Whitney*, 9 Wall. 187; *Farley v. Irrigating Co.*, 58 Cal. 142; *Osgood v. Mining Co.*, 56 Cal. 571. It could not be invoked to avoid an equitable estoppel so clearly right as here. The patent issued to Ellis, and on which he relies, excepts, under the act of congress of 1866, "water-rights, ditches and rights-of-way for such, vested or recognized by local customs, laws," etc. Appellee's rights were vested in it in 1878 by the unquestioned appropriation of this water, the building of the mill, ditch, dam, etc.

These rights were fully recognized by the local customs which existed at that time of taking water over the public lands, as here. The exception in the patent of Ellis recognizes this. The rights of appellee, being recognized by custom, were excepted from the patent, and the appropriation of the water by appellee's grantors simultaneously with Ellis' filing on the land; for the company (Ellis, Ritter and Steen) had quite as much right, through recognized custom, to take the water-right, as had Ellis to take the land. These two being, as stated, exercised together, the company could acquire as complete a right to the water as Ellis did to the land.

But in fact Ellis had no vested right which he could assert against the company's water-right prior to April 13, 1880, that being the time when he made final proof, while they acquired a vested right prior to this (spring of 1878), by exercising an actual appropriation of this water. A mere entry upon the public lands gives no vested rights against the government until final proof. It makes a prior right of preëmption, and establishes a privilege as against other claimants, subject until final proof, etc., to the absolute dispossessing power of congress. 9 Wall., p. 195. Land thus occupied is subject to the acquisition of prior water-rights, under local customs and appropriations. It would also be subject to such acquisition up to the time of final proof, when, and only when, such privilege becomes a vested right. It is up to such time, therefore, subject to water-rights being acquired therein by others, unless such settler or preëmptor promptly exercises his water-right, and makes his appropriation. While, therefore, Ellis, at the time of filing, might have also appropriated the water, and thus acquired water-rights by taking steps sufficient to assert his claim to these (if no prior appropriation had occurred), the mere taking up of the land did not work itself a prior appropriation, nor even indicate any purpose so to do; but his not doing so, on the contrary, left such rights

subject to appropriation, until he made final proof and thereby acquired a vested right, by any one who complied with the law or local custom in an appropriation of such water-right. Appropriation, as herein used, may be defined as the intent to take, accompanied by some open, physical demonstration of such intent, and for some valuable use. It is proper to add that such intent or demonstration must be followed up with reasonable diligence, and consummated without unnecessary delay. As we have stated, from the time of his filing and up to the time of final proof (April 30, 1880), Ellis' rights were all uncertain. He might have abandoned or failed to perfect his claim; the government might have withdrawn the land from sale, or through other causes he might have been defeated; the government might have sold or granted the land to another. Until final proof, then, he had no vested right and his patent could not, therefore, relate back, under any circumstances, to his original filing, and back of this final proof, while long prior to this, by the actual appropriation in 1878, the company (of which he was one) had acquired a positive, certain, and vested right. Therefore, regardless of Ellis' subsequent acts and his estoppel, which we have first referred to, we have no hesitancy in saying that on the principle alone of prior appropriation we concur in holding that appellee's right was superior, being prior in point of time. It is, however, a satisfaction to know, in this case, that such prior legal right is so completely supported and fortified by the question of the estoppel of Ellis, through his active interest in said company, and his subsequent acts, referred to, which alone would be ample to base like results upon. The decree of the lower court should be affirmed.

BURKE, C. J., and NASH, J., concur in the result.

[No. 609. Decided January 31, 1889.]

# H. M. McCARTNEY, H. D. SANBORN AND L. H. BURTON v. WILLIAM GLASSFORD.

CONTRACTS—PART PERFORMANCE—ACTION ON CONTRACT—PLEADING—CONSTRUCTION OF CONTRACT—MUTUALITY.

Plaintiff agreed to freight certain produce to a certain point at so much per pound, and defendants agreed to pay the full amount of the freight charges at the specified rates on delivery of the shipping receipts. Plaintiff alleged in his complaint part performance of the contract, and that defendants refused to permit him to complete it, or to perform on their part, and asked damages for the breach. *Held*, that, there being no mention in the complaint of payment had on the part performed, it would be assumed that the suit was brought for that as well as for that unperformed, and hence a demurrer was properly overruled. If any part of a complaint is good it will stand against a general demurrer.

In the absence of a fixed time for the performance of the agreement, a reasonable time would be presumed to have been intended by the parties.

Plaintiff having contracted to carry, and defendants to pay so much per pound, there was a corresponding obligation on the part of defendants to furnish the produce for carrying.

*Error to District Court, Spokane County.*

Action by William Glassford against H. M. McCartney, H. D. Sanborn, and L. H. Burton, copartners, to recover damages for alleged breach of a written contract. Plaintiff obtained a verdict and judgment. Defendants bring error.

*Griffitts, Moore & Feighan*, for plaintiffs in error.

*Nash, Kinnaird & Murray*, for defendant in error.

The opinion of the court was delivered by

ALLYN, J.—A contract was made February 26, 1885, between William Glassford, of the first part, and H. McCartney & Co., of the second part, by which Glassford agreed to freight one hundred tons of produce to the Little Dalles, at the rate of one and one-half cents per pound,

—one-half by April 16, and the other half May 20, 1885. The second party agreed to pay the full amount of the freight charges, at above rates, on delivery of the shipping receipts, duly certified to as correct by their clerk. Upon this contract the suit is based, and it is made a part of the complaint.

The complaint states: 1. The contract. 2. That later the parties mutually agreed that the dates for delivery should be disregarded; otherwise the contract to remain as before. 3. "That under and pursuant to said contract the plaintiff hauled sixty-two tons and three hundred and twelve pounds of freight from Spokane Falls to the Little Dalles aforesaid, and remained at all times willing to complete said contract upon his part, and to haul the remainder of said one hundred tons. 4. That the defendants, though requested so to do, refused to permit plaintiff to complete said contract, and to haul the balance of said one hundred tons, and refused further to perform said contract on their part, by reason of which the plaintiff suffered damage in the sum of $1,133.82. Wherefore the plaintiff prays judgment" for that sum, with interest and costs. To this a general demurrer was interposed, which the court overruled. The defendant preserved his exception, and later a trial was had on issue joined. Action overruling said demurrer is now to be reviewed.

The contract, it will be observed from the complaint, was partly performed. As no mention is made in the complaint of payment had on the part performed, we think it may quite as well be assumed that the amount for which this suit is pressed is for that as well as for that unperformed. Of course, if this is so, the demurrer would not lie. It is said a mathematical calculation will show that the result of the unperformed part, at the contract price, compared with the aggregate claim, will show the suit to be for the breach. This may be a satisfactory mode for the defendants to arrive at the meaning, but we take the plain reading of the com-

plaint; and it will be seen, from that quoted above as three and four, there is first an allegation of sixty-two tons and three hundred pounds hauled, and readiness to perform the remainder, and a claim, by reason of this, of damages. As there is no statement of anything having been paid for the sixty-two tons hauled, and no clear allegation that this suit is for the breach above, it is quite clear that the demurrer was properly overruled; for, if any part of the complaint is good, it must stand. From what we have just said, it is by no means certain but this is a claim for the part performed, or some portion of it.

The real contention of the appellee, however, seems to be that the contract is wanting in mutuality, binding only the appellee to carry the freight, and not requiring appellant to furnish any; or, even if he is so required, that by the subsequent waiver of time, he is relieved from any time for performance. The rule that, if no time is fixed for the performance of an agreement otherwise regular, a reasonable time will be presumed to have been intended by the parties, we think settles the claim of want of time.

The remaining question is whether appellant is equally bound by the contract set out above. It is evident that the consideration of appellee's assuming to carry said produce and incurring such liability was the implied promise of appellant to furnish it; and we believe the law will just as clearly and conclusively presume or imply such a promise on his part as if it had been set out in express words. To take any other view of a contract such as this would permit, in our judgment, a fraud and overreaching. There was a contract on the one part to carry, and on the other a contract to pay so much per pound; and there was from this just as clearly a corresponding and correlative obligation to furnish for carrying.

In Sedgwick's Leading Cases on Damages, p. 382, is the case of *Black v. Woodrow*, 39 Md. 194, which seems to us decisive of this case, if the first objection herein made is not

sufficient. It is there said: "If the act to be done by the party binding himself can only be done upon a corresponding act being done or allowed by the other party, an obligation by the latter to do or allow to be done the act or things necessary for the completion of the contract will be necessarily implied," with numerous authorities commented on and reviewed, all leading to the conclusion at which we have arrived herein.

The action of the court below was correct, and it is therefore affirmed.

BURKE, C. J., and LANGFORD, J., concur.

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[No. 616. Decided January 31, 1889.]

## L. S. DARLAND, MARY J. SAVAGE, J. L. SPERRY AND W. J. FURNISH v. E. A. LEVINS AND J. E. DRENNAN.

CHATTEL MORTGAGE—RECORDING—PURCHASER WITH NOTICE.

The sole purpose of the statute of Washington Territory requiring a chattel mortgage to be recorded is to give notice by the record to subsequent purchasers or mortgagees of the property; and such subsequent purchaser or mortgagee, with full knowledge of the first mortgage, cannot resist its foreclosure on the ground that it does not properly describe the mortgaged property, or that it was not recorded at the proper place and within the time required by the statute.

*Appeal from District Court, Yakima County.*

*Allen, Whitson, Gilliam & Parker,* for appellants Sperry and Furnish; *H. J. Snively,* for appellants Darland and Savage.

*R. O. Dunbar,* and *Sol. Smith,* for appellees.

The opinion of the court was delivered by

LANGFORD, J.—This is a case wherein the plaintiff E. A. Levins has sued Drennan and others for the foreclosure of

a certain mortgage on a flock of sheep; Drennan being the mortgagor, and Levins the mortgagee. Drennan makes no defense, but J. L. Sperry and W. J. Furnish, partners, defend as mortgagees of Drennan. L. S. Darland and M. J. Savage defend as purchasers of the sheep. Each of these defendants, in their respective rights, dispute the validity of the mortgage from Drennan to Levins upon the ground that the mortgage does not sufficiently describe the sheep, and was not recorded in the proper county, and within the time prescribed by law. Levins sold 1,275 sheep to Drennan. Drennan gave a mortgage back, describing the sheep mortgaged as "1,275 head of sheep, their wool and increase," and nothing further. By agreement between the parties the description was afterwards amended by adding: "The sheep known as the Levins band of sheep, branded 5, and general ear-mark, a slit in the right ear, and a crop off the left ear." The contention is, that under the statutes of this territory relating to chattel mortgages, said mortgage is void for want of description, and because not recorded in the county in which the sheep were. We think the statute was made for the purpose of protecting creditors and subsequent purchasers and subsequent mortgagees by giving them notice by the records of the recorder's office. The limitations and provisions of the statute are all exclusively for that purpose, and did not intend to change the previous law as between the mortgagor and the mortgagee. The mortgage, without record, or without any other description than what was inserted in it, is certainly a good mortgage, so far as the mortgagor and the mortgagee are concerned. The mortgage of Sperry & Furnish was taken with full knowledge and agreement that the prior mortgage of Levins was good, and that it was held as a security for the payment of the purchase price of the sheep; and it was taken only to secure Sperry & Furnish out of the residue of the proceeds of the sheep after the first mortgage had been satisfied. That is all that was intended by Drennan

when he mortgaged the sheep to Sperry & Furnish, and all that Sperry & Furnish expected to get was a lien on the residue of the sheep after Levins' mortgage was paid; and hence the decree, in so far as it orders that the sheep shall be sold, and the proceeds applied to the payment, first, of Levins, and next of Sperry & Furnish, is strictly in accordance with the contract of the parties. After these two mortgages had been executed, Drennan pretended to sell the same sheep to Darland and M. J. Savage. They had full knowledge of the two previous mortgages when they pretended to purchase; and if they ever paid anything to Drennan upon this pretended sale it was after they had full knowledge of these two previous claims or mortgages. Indeed, the circumstances, as shown by the evidence, indicate very strongly that Darland and Savage never agreed upon any particular price that should be paid for the flock of sheep, nor how many were in the flock of sheep, and they never made any actual payment which would show that they purchased the sheep at all in good faith. The decree, therefore, of the district court is affirmed.

BURKE, C. J., and ALLYN, J., concur.

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[No. 617. Decided January 31, 1889.]

## JOHN KLEHN v. THE TERRITORY OF WASHINGTON.

### HOMICIDE—DYING DECLARATIONS—CHARACTER.

When, in a trial for murder, the dying declarations of the deceased are offered in evidence, and a preliminary examination is made to determine whether such declarations were made by the deceased in view of speedy death, the extent of such preliminary hearing is within the discretion of the trial court, and reviewable only when it appears that such discretion has been abused.

Evidence of the good character of the defendant is always admis-

sible in a criminal case; and, if it is sufficient to raise a reasonable doubt in the minds of the jury as to the guilt of the accused, it is their duty to acquit.

*Appeal from District Court, Spokane County.*

*Turner, Forster & Turner*, for appellant.

*J. B. Metcalfe*, Attorney General, and *W. C. Jones*, for The Territory.

The opinion of the court was delivered by

BURKE, C. J.—John Klehn, the appellant, was indicted for the crime of murder in the first degree. He was tried upon that indictment, convicted of manslaughter, and judgment was given against him. He appeals to this court. Upon the trial, the territory offered proof of the dying declarations of the deceased. Before admitting this evidence, the court properly instituted a preliminary examination as to whether the alleged declarations were made by the deceased under a sense of speedy death. This examination was not conducted in the presence of the jury; the court, on motion of the defendant, having previously ordered the jury to retire. The examination made by the court seems to have been very full and thorough, the testimony on this issue covering six pages of the record. The witness was cross-examined by counsel for defendant, and the court, being satisfied that the declarations were made by the deceased under a sense of impending dissolution, ruled that they should be admitted in evidence. The defendant thereupon offered "to prove by other witnesses, before the testimony of this witness should go to the jury, the nature of the wound; that the intestines were not cut, and that the wound was not necessarily fatal; that nothing was said on the part of the attendants or physicians that would give rise to the belief in the mind of the deceased that he was going to die, but, on the contrary, expressions were indulged in by his physicians that he would recover,

and that he expressed the belief that he might possibly recover." The court refused to hear this testimony, and appellant insists that this refusal was error. When the admissibility of dying declarations is brought in question, it is the duty of the court to determine, as a preliminary issue, whether the alleged declarations were made by the deceased in view of speedy death. The extent of such preliminary examination is a matter within the judicial discretion, and reviewable here only when it appears that such discretion has been abused. There was no abuse of discretion in this case. The trial court seems to have conducted this preliminary inquiry properly, and with a tender consideration for the rights of the defendant. The court had a right, in the exercise of a sound judicial discretion, to say how far the examination should extend, "in order to ascertain with accuracy and reasonable certainty the mental condition and belief of the declarant." *People v. Smith*, 104 N. Y. 491 (10 N. E. Rep. 873.) It may be added here that subsequently the defendant introduced on his own behalf evidence of the dying declarations of the deceased.

The second assignment of error relates to the refusal of the court to give the instructions asked for by the defendant, on the right of a person in defendant's situation, at the time of the killing, to act on appearances as they presented themselves to him. We think the charge of the court fully covered this point, and was in fact more favorable to the accused than the instructions asked for by his own counsel, and refused by the court. Upon the trial evidence was given as to the defendant's good character, and the instructions given by the court to the jury on that subject, and the refusal of the court to give the instructions asked for by the defendant, are assigned here as error. Evidence of the good character of the defendant is always admissible in a criminal case, and the correct rule as to the weight to be attached to this class of evidence was laid down by the supreme court of Iowa in the case of *State v. Northrup*, 48

Iowa, 583, where the court says: "Good character, like all other facts in the case, should be considered by the jury, and if therefrom a reasonable doubt is generated in the mind of the jury as to the guilt of the accused, it is their duty to acquit." *Com. v. Leonard*, 140 Mass. 473 (4 N. E. Rep. 96). The charge of the court to the jury in this case comes within the rule. It is true that in the hurry of the trial the court may not have used the most apt and felicitous words in which to state the law on this subject, but, upon any fair construction of the whole charge, it must appear that the law was given correctly. Indeed, the charge of the court throughout was most strongly in favor of the defendant,—far more favorable to him than the instructions asked for by his own able counsel. There certainly was nothing in the charge, from beginning to end, to which the defendant could properly except. The exceptions to the refusal of the court to grant a continuance and to grant a new trial are not well taken. The showing in each case falls short of the requirements of the law, and the court properly denied both motions. We find no error in the record, and the judgment of the court below will therefore be affirmed.

ALLYN and NASH, JJ., concur.

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[No. 582. Decided March 6, 1889.]

## S. R. GEDDIS v. GEORGE W. PARRISH.

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WATER RIGHTS—APPROPRIATION—PUBLIC LANDS.

To maintain a water-course the water must usually flow therein in a certain direction, and in a regular channel, having banks. The stream must have a substantial existence, but the fact that its source is a flowing spring does not change its nature, or exempt the water from appropriation.

Where one has appropriated the waters of a stream flowing across public lands, by erecting on his own land a ditch, one acquiring title from the United States takes subject to such appropriation, and he cannot, by obstructions on his own land, divert the water from the ditch of the prior appropriator.

The fact that the owner of the lower land acquired title through purchase of possessory rights merely, and not by deed, does not affect his title to the water-rights, as they passed as appurtenant to the land, a complete title to which was obtained through the sale and possession thereunder of the possessory rights.

*Appeal from District Court, Kittitas County.*

Action by George W. Parrish against S. R. Geddis to enjoin the obstruction of an irrigating ditch. Judgment for plaintiff, and defendant appeals.

*Allen, Whitson & Gilliam*, and *A. Mires*, for appellant.

*Daniel Gaby*, for appellee.

The opinion of the court was delivered by

ALLYN, J.—Parrish, appellee, seeks to establish his title to an irrigating ditch having its flow from a spring upon the land of appellant, and across which it flows to the property and ditch of appellee (plaintiff). Appellant contends that the original flow from this spring was slight, and at times scarcely at all, and the flow, now large and valuable, is from the seepage of irrigation above; that the spring is not a flowing one; and also denies prior appropriation to appellant's title. The evidence of a large number of witnesses, who testified to knowledge during the last ten to seventeen years of this particular locality, satisfies us that there was a flowing spring, from which a natural watercourse of considerable size had its origin, which this evidence traces in its course for more than a mile, and was, to some extent at least, known by the name of "Indian creek." It is also reasonably clear that Johnson, who sold to Mehan and Mehan to Parrish, settled upon this land now owned by Parrish in 1876, and shortly thereafter, in the same

year, appropriated the stream referred to for the use of his stock, and irrigating in a small way his land. It also appears that appellant derives title from one Schleif, who entered the land upon which the spring is situated January 7, 1877, and the following year secured a patent. Schleif sold to appellant the same year.

For the purpose of this case, we may consider as established that in the spring of 1876, appellee, through his grantors, appropriated the water then flowing from and across public land of the United States by causing it to take a different channel, a ditch across this land, which the appellant later settled upon, and since acquired title, and that this flow of water continued until obstructed by defendant, in May, 1884. The appellant, having subsequently acquired title to such public lands through his grantor, subsequent, in point of time, to appellee's grantors, in May, 1884, by a dam upon his own land, so obstructed and changed the course of this water that it fails to flow over the land of appellee at all, and causes him to lose the entire use of same. To maintain the right to a water-course, it must appear that the water usually flows therein in a certain direction, and in a regular channel with banks and sides. It may not flow continuously, and it may at times be dry. It must have, however, a substantial existence. That such a stream or water-course may have its head or source from a flowing spring, as we find in this case, in no way changes its nature. The water from such spring is the subject of appropriation as certainly as the water of a river. Ang. Water-Courses, 138, 149; Gould, Waters, § 285. That one may lawfully appropriate a stream of water flowing upon or across the public lands of the United States and divert it to his own use, acquiring thereby a vested right in such stream which a subsequent grantee of such public lands of the United States cannot materially interfere with or destroy, we think indisputable, and have endeavored to plainly pronounce as a precedent in *Ellis v. Improvement*

*Co.*, *ante*, p. 572, the general principles of which may well be applied to this case. There is an evident distinction between the rights of littoral proprietors who acquire title to the land, and thereby water-rights, with no question of appropriations conflicting either above or below, and who thereafter use the water. Each, in such case, must so use as not to interfere, unnecessarily, with the other, as each has an equal right. The same general principle prevails where titles have been acquired to lands over which water flows with no question of prior appropriation preceding such title. Each may use, in a reasonable way, but must not unnecessarily injure the other. But an appropriator of water may acquire rights superior to a fee subsequently acquired from the government, as is recognized by act of congress of July 26, 1866, although the water runs over or along the lands thus subsequently acquired. In such cases, the subsequently acquired title must be considered as taken with notice of the prior appropriation. A vested right, having been acquired in land, or a complete title, carries with it a right to the water as above stated, unless a prior appropriation of the water or right upon or over such land has taken precedence of such vested right or title, as illustrated fully in *Ellis v. Improvement Co.*, *ante*, p. 572. Such use must be had by the owner upon whose lands water runs, where a right by prior appropriation has vested, as not to materially affect the prior appropriator below him. He takes subject to such right, and with notice of it. While, therefore, a reasonable use of the water by him would be sustained, if the water is thereafter allowed to flow into the head of the prior appropriator's ditch, yet, under the cloak of such use, or even for actual irrigation, he cannot hold or materially divert the water-course so as to deprive or injure others below him, who were prior in point of use. As was said in 60 Cal. 408 (*Ditch Co. v. Canal Co.*): "The right of plaintiff to have the water flow in the river to the head of its

ditch, is an incorporeal hereditament, appertaining to its water-course" (that is, its ditch). "Granting that plaintiff does not own the *corpus* of the water until it shall enter its ditch, yet the right to have it flow into the ditch appertains to the ditch." See, also, *Hill v. Lenormand*, 16 Pac. Rep. 266; *Atchison v. Peterson*, 20 Wall. 507; *Basey v. Gallagher*, 20 Wall. 670; Gould, Waters, § 228; *Himes v. Johnson*, 61 Cal. 259; *Canal Co. v. Canal Co.*, 53 Cal. 563; *Reynolds v. Hosmer*, 51 Cal. 205; *Gregory v. Nelson*, 41 Cal. 278; *Clark v. Willett*, 35 Cal. 534, and others; also, *Mining Co. v. Carpenter*, 4 Nev. 534; *Barnes v. Sabron*, 10 Nev. 217; *Strait v. Brown*, 16 Nev. 317. Applying these principles to the facts as we have found them, the question seems easy of solution. But we should notice, in passing, the claim by appellant of loss by Parrish of the water-right, as obtained through Johnson and Mehan, because the title to the land was acquired by Parrish through purchase of possessory rights merely, and not by deed, it being claimed that the water-right was thereby lost and abandoned, as no deed of conveyance of it was made. We consider the sale of these possessory rights as passing a complete title, possession having been taken under them, and now held by such purchaser, a means of conveyance not unfrequently adopted in such cases. The water-right as an appurtenant to the land passed with it, and by sale of Johnson and Mehan, and possession taken and now held by Parrish under them, all water-rights passed with the land as the land itself passed. Gould, Waters, §§ 305-307; Pom. Rip. Rights, § 58; Ang. Water-Courses, and other authorities cited by appellee. Returning to the main question, in the light of the principles above announced, it follows that Geddis would have the right to use the water from the spring upon his own land, and the right to the reasonable use of the water as it descends over his land; but such use of the stream is subject to the use of Parrish below, who, through his grantors, has first used it, and of which use

Geddis, through his grantor, had notice, and, holding and using entirely subject to such prior appropriation, Geddis could not materially interfere with the natural flow of the stream; and it is almost unnecessary to add that he could by no means, as here, obstruct and divert the water from Parrish, the first appropriator, merely because Parrish was below him, and because this could be done by placing an obstruction upon his own land. He would have no more right to place such obstruction in the water-course upon his own land than he would have upon the land of another. The obstruction of the course, and the diversion of the stream, is thus wrong, and it matters little where or upon whose land it occurs. Let the decree of the court be affirmed.

LANGFORD, J., concurs.

NASH, J., concurs in result.

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[No. 603. Decided March 7, 1889.]

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## CORPORATION OF THE CATHOLIC BISHOP OF NESQUALLY v. JOHN GIBBON, T. M. ANDERSON, R. T. YEATMAN, AND THE UNITED STATES OF AMERICA.

EJECTMENT—PUBLIC LAND GRANTS—ALIENS.

Where plaintiff is not, and defendant is, in possession of land claimed by the former, the proper form of remedy is ejectment.

Organic act Or., § 1, provided "that the title to the land, not exceeding 640 acres, now occupied as missionary stations among the Indian tribes of said territory, together with the improvements thereon, be confirmed and established in the several religious societies to which said missionary stations, respectively, belong." *Held*, That the grant was confined to land occupied as a mission station, and to not exceeding 640 acres, including improvements. If, in any case, there was no land so occupied, no land was granted; if less than 640 acres was so occupied, then only the less quantity was granted.

The purpose of the grant, as shown by the history of the time, was to encourage settlement in that territory by American settlers, and to reward them for overcoming British occupation, and not to grant land to British subjects, nor to foreigners, nor to those acting under the Hudson Bay Company.

*Appeal from District Court, Clarke County.*

Bill filed by the "Corporation of the Catholic Bishop of Nesqually" against John Gibbon, and others. Decree for defendant, and plaintiff appeals.

*Whalley, Bronaugh & Northup*, for appellant.

*W. H. White*, U. S. District Attorney, for appellee.

The opinion of the court was delivered by

LANGFORD, J.—The complainant in this case claims title under the first section of the organic act of the Territory of Oregon, which reads as follows: "That the title to the land, not exceeding six hundred and forty acres, now occupied as missionary stations among the Indian tribes of said territory, together with the improvements thereon, be confirmed and established in the several religious societies to which said missionary stations, respectively, belong." The wrongs complained of are, that the military officers of the United States, in May, 1849, took possession of all the 640 acres claimed by the plaintiff under said act except such as was inclosed by the Hudson Bay Company, and afterwards, in October, 1853, the United States reserved for a military reservation 430 acres of the 640 acres. It appears that of the 430 acres aforesaid it has all been in possession of the United States since May, 1849, except the small portion thereof occupied by the church buildings, and a tract of about five acres fenced by the plaintiff, and that shortly before this action was brought defendant entered upon and tore down fences, and cut down trees, upon these five acres, which is the additional wrong complained of. With the exception of said entry on the five acres there appear to

have been no entry upon any of the land claimed since May, 1849. The action was brought and tried upon the equity side of the court, without any jury trial having been claimed or waived in writing, as the statute provides. The wrong complained of, then, and shown to exist, if it be a wrong, is: *First*, A claim upon the part of the defendant of title to all the land except the small portion upon which the church stands. *Second*, Trespass; threatened ouster from the five acres. As to wrong to the five acres, there was a complete remedy at law, in trespass, to try title, and perhaps an auxiliary remedy of injunction to stay trespass and waste during the pending of said action below. Hence, for this wrong, a bill will not lie. As to the claim of title to that portion exclusive of the five acres it does not appear that defendant was ever in actual possession, or was ever ousted any further than if plaintiff claims title. So does defendant, and defendant has been in the actual possession since 1849, and plaintiff not in possession. The wrong, if any, is that the United States has claimed title and been in possession of the land which is plaintiff's property. If this is true, the wrong is a legal wrong, and, as to the proper remedy, it is in the nature of ejectment under our statute. Perhaps the plaintiff, as to the five acres, may waive his case of trespass, and, under § — of our statute, which provides that one in possession of land may sue in equity any one claiming title thereto, and have the title declared by the court, bring this action. There are two wrongs complained of in this case as to the five acres: *First*, trespass; *second*, claim of title of land possessed by plaintiff. So, on the latter claim, we will proceed to examine the title and declare it. As to the other portion, we think that it is not before the court, for the defendant does not claim the land upon which the church buildings stand, nor has any trespass been committed or threatened thereto; and as to all the remainder, except the five acres, the plaintiff is not possessed, and hence has his action of eject-

ment only. As to the title, there is no act of congress except the one cited. No provision is made for any ministerial officer to survey or adjudicate it. When congress grants land not described in the act of grant, the same is void for want of description until the same is located by some person authorized by congress to locate it. If a grant is made of land within certain specified boundaries, and no provision is made as to the precise boundaries of the land granted, it may be that the act itself empowers the grantee, by implication, to select the particular tract. We take it that the grant of land, in this instance, is of the latter class. It is to not exceed 640 acres of land, including improvements, now occupied as mission stations. "Now occupied" is a description of the land, but if more than 640 acres of land was thus occupied, then not exceeding 640 acres of that thus occupied was granted. This would appear to imply that the grantee might abandon all previously occupied, except 640 acres, and select the remainder out of any of the occupied land. This power is, however, again limited to include mission improvements. Then the power to select in the grantee was confined to land occupied as a mission station, and not to exceed 640 acres; which must include the improvements. If, in any case, there was no land occupied as a mission station, then no land was granted, and hence no selection of 640 acres could be made. If less than 640 acres of land was so occupied, then 640 acres were not granted, but only the less quantity which was so occupied. The words are of present grant, and no ministerial officer was authorized to locate it, nor pass upon it. The question of title, then, is a judicial question, exclusively, and the court will determine whether the land claimed is of the description granted, and, the question being judicial, the decisions of ministerial officers are not in the least binding, whether as to fact or law. The opinions of ministerial officers on such a question ought to have no more effect than the opinion of a private lawyer equally

well learned would have in a like case. Except by the way of argument, all these decisions must be disregarded by the court. Is, then, the land claimed that described in the act of grant, to wit, land occupied as a mission station, August 14, 1848, or prior thereto?

What is the meaning of the words "occupied as a mission station among the Indian tribes?" The word "occupied" is synonymous with "possessed." Possession of particular land cannot exist except by a claim to dominion thereover, as evidenced by acts. Now, on August 14, 1848, and previous to that time, the missionaries did not claim dominion over any of this land, as evidenced by their words or acts; but the Hudson Bay Company claimed and exercised exclusive dominion over it. To occupy as a mission station is to exercise dominion and control of it, by the missionaries, for missionary purposes. The mere going upon the property possessed by another, by his permission, and there exercising religious rites, is not to occupy as a mission station. The Hudson Bay Company occupied this land exclusively until long after August 14, 1848, and the missionaries, as well as this land, were under that company's dominion and control. As the brief well says, the missionaries could do nothing towards making a claim or exercising dominion over the land, as a station or otherwise, because the Hudson Bay Company would not permit its possession to be infringed. Then the land, not being occupied as a mission station, is not the land described in the act, and hence was not granted. The grantees mentioned in the act are "the several religious societies to which the stations, respectively, belong." The grantee must then have, on August 14, 1848, been in existence. The present plaintiff claims to be an incorporation created long after the grant was made. He was not, at the time of the grant, a religious society, and hence could not take as original grantee under the act. The plaintiff claims that the missionaries were sent by the bishop of Quebec. Then

was the bishop of Quebec the original grantee? It is not so claimed. The plaintiff does not claim that he has title himself, but says he is trustee for the Catholic church. He does not claim that he is such trustee by virtue of any law of the United States or of this territory, but by virtue only of the laws of his church. Certainly he cannot claim that he holds the legal title for the use of his church, for the legal title can exist only by virtue of positive secular law. A legal title cannot be created by the laws of any church. Suppose that this court should attempt to declare the title in the Roman Catholic Church. It would be no better than a deed to that church. None but a legal person can take as grantee, and a church, composed of millions of members, is not a natural nor an artificial person. The grant cannot go to the members, and the church is not a corporation. What has been written refers to the words of the act only, the text itself. The subject-matter to which congress meant to apply it is the history of Oregon, and its occupation. We know that the government of Great Britain and the United States, under a treaty, were each attempting to occupy Oregon by their respective citizens; each striving to have its citizens occupy, to exclusion of the citizens of the other nation, so far as this could be done without breach of the peace. As an instrumentality to effect this purpose, the Hudson Bay Company acted for Great Britain, and through this company British subjects were imported, who acted under the dominion of that company. To offset this British occupation, the United States encouraged an American fur company to act in the same country. The American company was ousted by the Hudson Bay Company. Incorporated American missionary societies were then licensed by the United States to act in peopling the country with their missionaries. The missionaries established mission stations, formed a nucleus, and induced immigration. There was much excitement as to which nation should prevail. Congress introduced bills donating to each

settler six hundred and forty acres of land which, though they did not pass, encouraged immigration. The Americans became the most numerous. They established a provisional government, making provisions to the effect that each individual should have six hundred and forty acres of land, and missionaries, as pioneers, more than that. By this prevailing American settlement, the United States acquired the territory by treaty. This treaty stipulated that the possessory rights of the Hudson Bay Company and other British subjects should be respected. The first act to reward the pioneer was the act of 1848, and it cut down the missionaries to six hundred and forty acres, and granted that. The United States then, by purchase, extinguished the possessions of the Hudson Bay Company, and other British companies. In 1850 it passed the donation act, granting to each married American six hundred and forty acres, and to each single man three hundred and twenty acres; still recognizing the provisional government action. The possessory right to this very land was purchased by the United States from the Hudson Bay Company to extinguish British interest. The act of 1848 applies exactly to societies who sent missionaries capable, as incorporated bodies, to take a grant; capable as a society of sending missionaries, and whose missionaries had established stations among the Indian tribes, and claimed more than six hundred and forty acres of land, and dominion over it; the history of the American mission occupancy; the terms of the provisional government; and the antagonism of British subjects, which had been overcome by American pioneers. The words of the act exactly apply to the American mission societies, and to their occupation, and are not applicable to the conditions and situation and anti-American occupation of British subjects acting under the Hudson Bay Company. The word "society" applied not to a bishop or a church at large, but to those incorporated societies, who, as a person, could send missionaries, and could take

land as grantees. The whole legislation of congress shows that it intended to grant land to American subjects only, and to extinguish all claims of British subjects. The subject-matter to which the act applies, the history of the country, the statutes, and treaties all show it was the intent of congress to reward the American pioneer for opposing and overcoming British occupation. We conclude, therefore, that the act of August, 1848, did not grant, or intend to grant, land to British subjects, nor to foreigners, nor to those acting under the Hudson Bay Company, and hence in opposition to American interest. We think the so-called "missionaries" were of this latter class, and no grant was intended to be made to them.

BURKE, C. J., and NASH, J., concur in so far as to affirm the judgment of the court below.

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[No. 604. Decided March 7, 1889.]

## NORTHERN PACIFIC RAILROAD COMPANY v. DAVID O'BRIEN.

MASTER AND SERVANT—NEGLIGENCE—PLEADING—EVIDENCE.

The plaintiff, with others, was employed as a laborer by the defendant in "surfacing" defendant's track. While being taken to his work by a gravel train furnished for that purpose by defendant, the plaintiff was injured by a collision with a "wild train" in charge of defendant's servants. The gravel train was on its regular time, and the "wild train" had orders to flag it. The rules of the defendant company required the person flagging to be three-fourths of a mile ahead of the flagging train, but the "wild train" followed within four hundred feet of its flagman, whose signal, by reason of a curve in the road, could not be seen by the gravel train till upon it. The engine of the wild train was so disabled that it could not be quickly started or stopped. These facts being undisputed, an instruction to the jury that it was gross negligence for the wild train to be where it was when the collision occurred, was not error,

as the facts, undisputed, are such as to enable the court to say, as a matter of law, that they constitute negligence. (ALLYN, J., dissenting.)

Under the facts stated, the conductor and engineer of the wild train were not fellow-servants of the workman on the gravel train, or engaged in the same common employment.

The burden of proving contributory negligence rests upon the defendant.

Evidence of the defects of the engine was admissible, under the complaint, which alleged, generally, that the collision was caused by defendant's gross negligence, and though the allegations were not broad enough to cover it, its admission would be no ground of exception under Code Wash. T., § 105.

Under the allegations that plaintiff was permanently disabled to follow his occupation, and rendered unable to earn a livelihood, evidence of his prior occupation and wages is admissible, and, though such allegations were not broad enough, the admission of the evidence would not be ground of exception under § 105 of the code.

*Error to District Court, Yakima County.*

Action by David O'Brien against the Northern Pacific Railroad Company for injuries sustained by the collision of defendant's gravel train, which was in charge of O. C. Hulett, with a "wild train." The complaint alleged "that while plaintiff was being so conveyed to his work by the defendant, and about two and a half miles from said station of Cle-Elum, in said Kittitas county, a collision occurred on the said railroad, and between said work train, on which plaintiff was being so conveyed, and a locomotive and tender coming from an opposite direction, under authority and direction of defendant, and meeting the said work train, which collision was caused by the gross negligence and carelessness of the defendant and its servants, and the plaintiff was thereby greatly injured. That his ribs were broken, his shoulders broken, his head and spine were bruised and fractured, and other parts of his body were bruised and fractured, from which injuries he suffered intense and long continued pain, and still suffers great pain, and will always continue

to suffer great pain, and was permanently disabled from following his occupation, and rendered unable to earn a livelihood for himself." Defendant brings error.

*McNaught & Mitchell*, and *N. T. Caton*, for plaintiff in error.

*Reavis, Mires & Graves*, for defendant in error.

The opinion of the court was delivered by

BURKE, C. J.—From the undisputed evidence in the record before us in this case, it appears that in April, 1887, David O'Brien, the defendant in error, was employed by the Northern Pacific Railroad Company, the plaintiff in error, as a common laborer in the work of "surfacing" its track between Cle-Elum and Martin, in Kittitas county, Wash. T. On the 21st of April, 1887, and for some days before that, this "surface gang" were engaged at work near a point on the Northern Pacific Railroad about six miles west of Cle-Elum, known as "Nelson's Siding." For some time previous to the 21st of April, the "surface gang" were taken to their work every morning from Cle-Elum on a gravel train provided for that purpose by the company; were brought back to Cle-Elum at noon for their dinner; after dinner, usually about 12:45 P. M., they were taken to their work again on the gravel train; and at night the same train brought them back to Cle-Elum. On the 20th of April, 1887, the conductor of the gravel train received his usual orders for the next day's work, directing him to work between Cle-Elum and Nelson's siding, and to look out for trains going east. On the 21st of April, another train, belonging to the same company, and consisting of a large, heavy engine, intended for mountain work, a tender, and box car, was sent out from Easton as a "wild train," with orders to flag against the gravel train working between Cle-Elum and Nelson's siding. The engine of the wild train was out of repair, and so badly disabled that it

could neither start up nor stop with anything like the promptness of such an engine in good order, and at the time in question was on its way to the company's repair shops at Ellensburgh. The engine was reversing; the tender being in front. By the rules of the company "flagging against other trains" was required to be done by sending a man ahead of the flagging train three-quarters of a mile with danger signals; and the person giving the signals was required to locate himself so as to be plainly seen, and to make the signals in such a manner as to be plainly understood. The conductor of the wild train sent a flag-man ahead, but, instead of keeping the train three-quarters of a mile behind him, the train followed the flag-man so closely that there were not to exceed 300 to 500 feet between them. About midway between Cle-Elum and Nelson's siding there is a 10-degree curve, on one side of which is the Yakima river, and on the other a rocky bluff of considerable height. As the flag-man turned the western end of this curve, his own train being not more than 300 or 400 feet behind him, he saw the gravel train from Cle-Elum approaching; but owing to obstructions on the side of the track, which intercepted the view between the engineer of the approaching train and the flag-man, the signal could not be seen until the train was upon the flag-man, and the result was a fatal collision between the two trains. The gravel train consisted of a flat car, which was in front, an engine, and a caboose car. There were about 30 laborers, including defendant in error, upon the flat car. This flat car was driven by the force of the collision into the tender of the engine of the other train. Seven men were killed outright, and many others more or less seriously injured. The defendant in error was hurled from the car by the shock of the collision, falling upon his head on the rock of the bank of the river, some 15 or 20 feet from the track. When found, he was unconscious. His head was badly cut, one of his teeth was knocked out,

his right clavicle was broken, and he was badly bruised and lacerated on other parts of his body. The collision occurred between 12:50 and 1 o'clock in the afternoon of the 21st. So far there is no dispute as to the facts. The evidence as to the rate of speed at which the gravel train was running at the time of the collision was somewhat conflicting; some of the witnesses putting it as high as 35 miles an hour, and some as low as 12 miles an hour. To our mind the evidence warrants the belief that the train was running at about 18 miles an hour, the highest rate of speed allowed by the rules of the company. The evidence, moreover, clearly shows that the flat car was designed for the laborers to ride on to and from their work, and that the caboose was reserved for the use of the train men.

That this disastrous collision was caused by the gross negligence of the conductor and engineer of the train going down to Ellensburgh, that is, the "wild train," there can be no doubt whatever. It would be difficult to conceive of a case of more wanton, inexcusable negligence than that of which the conductor and engineer of that train were guilty. They must have known from the time that they left Nelson's siding that the gravel train was then on its way from Cle-Elum, carrying the laborers to their afternoon work, and that the two trains must inevitably meet somewhere on that six-mile stretch; yet with this knowledge, and in direct violation of the rules of the company and of ordinary prudence, they ran their train to one of the sharpest curves on the line, leaving the flagman only three hundred feet ahead of them to warn the approaching train of the danger.

Exception has been taken to the instructions of the court below upon this head; and, as counsel for the plaintiff in error has laid great stress upon this exception, we give the instructions complained of: "The train with which Hulett's train collided, and which had orders to flag against Hulett's train, had no business to be where it was at the time of the collision. It should have remained at the point where the

flagman was put off and sent forward, until he had proceeded a sufficient distance forward to guard against accident; but, instead of that, the train followed behind the flagman only a few hundred feet, and was thereby placed in a position where it was impossible to prevent a collision with the train which came dashing around the curve, with its load of human freight, ignorant of the impending danger." "This was gross negligence on the part of those in charge of said train, and, the facts being undisputed, it is the duty of the court to tell you so, and not to confuse you with abstract definitions of negligence which you may not understand alike, and may therefore have difficulty in applying." We think these instructions correctly stated the law applicable to the facts of this case. Negligence is a question of mingled law and fact, and, where there is any conflict in the evidence, the question is submitted to the jury under proper instructions; but whether a given state of facts constitute negligence in any case is a question of law for the court. In this case, as we have seen, the facts which are alleged to constitute the negligence were established by undisputed evidence. In such a case it becomes the duty of the court to declare, as a matter of law, whether the facts thus proved do constitute negligence. 1 Shear. & R. Neg., §§ 52, 53, 56; *Dascomb v. Buffalo, etc., R. R. Co.* 27 Barb. 221; *Catawissa R. R. Co. v. Armstrong*, 52 Pa. St. 282; *Carter v. Towne*, 103 Mass. 507. This the court did, in language to which, indeed, exception has been taken, but which, though open to criticism, does not furnish ground for the reversal of the judgment below. The court, in subsequent parts of the charge, qualified and restrained the force of his words in this instruction, and particularly cautioned the jury against prejudice or passion in making up their verdict.

But, admitting that the collision was caused by the gross negligence of the conductor and engineer of the "wild train," it is contended on behalf of the plaintiff in error

that under the rule which exempts the master from liability to a servant for injuries caused by the negligence of a fellow-servant, in the same common employment, the railroad company cannot be held responsible to the defendant in error in this case. This, it seems to us, presents the only question of real difficulty in this case. If the conductor and engineer were fellow-servants of the laborers working on the track, and engaged in the same common employment, then the company is not liable to the defendant in error for the injuries he received in the collision. The general rule of law on this subject is well settled; but as it was interpreted in the Farwell case, 4 Metc. 49, and in the other cases following the Farwell case, its injustice long ago became so manifest, and was so frequently dwelt upon, both by text-writers and courts, that in recent years the courts have shown a strong tendency to graft important limitations upon the general doctrine. In some of the states the legislatures have abolished the rule altogether; and in England the rule was carried to such an extent that in 1880 parliament felt called upon to interfere, and the result was the "employers' liability act." It is not, however, our purpose to review the authorities upon this rule, or to discuss it at any length, for we think the recent decisions of the supreme court of the United States upon this subject are decisive of this case; and as the amount involved is large enough to bring the case within the jurisdiction of that court, if we err in our decision, we have no doubt the losing party will take the case to the supreme court for review and correction.

In our view, then, of the law, the conductor and engineer of the "wild train" were not fellow-servants of the laborer O'Brien, the defendant in error in this case, or engaged in the same common employment with him. One of the rules of the Northern Pacific Railroad Company expressly provided that "trains are to be run under the direction of the conductor, except when such direction

conflicts with these rules, or involves risk or hazard, in which case the engineer will be held equally responsible." These men were not only engaged in totally different departments of work, but they stood in a different relation to their common principal. The conductor and engineer were agents of the corporation, clothed with the control and management of a distinct department of the business of the company. They had, on this occasion, the entire control and management of the train, and were to all intents and purposes the personal representatives of the company, for whose negligence it is and ought to be responsible to the defendant in error, and other subordinates similarly employed. On page 394, the court, in *Chicago, etc., Ry. Co. v. Ross*, used this language: "The conductor of a railway train who commands its movements, directs when it shall start, at what stations it shall stop, at what speed it shall run, and has the general management of it, and control over the persons employed upon it, represents the company, and therefore that, for injuries resulting from his negligent acts, the company is responsible. If such a conductor does not represent the company, then the train is operated without any representative of its owner." *Chicago, etc., Ry. Co. v. Ross*, 112 U. S. 377 (5 Sup. Ct. Rep. 184). The case, then, stands the same as it would if the president of the company or the board of directors were on the train, commanding and directing its movements, and committing the acts of gross negligence here imputed to the conductor and engineer. No one questions that, where the master himself is guilty of negligence resulting in an injury to one of his servants, the master is responsible for such injury. An attempt has been made here to distinguish the case at bar from *Chicago, etc., Ry. Co. v. Ross*, by the circumstances that in the latter case the injury was caused by the conductor of the train on which the injured person was employed at the time, whereas in the case at bar the person whose negligence caused the injury was con-

ductor of another train, and not of the train on which the injured person was riding. We can see no difference in principle between the cases. In each case the party guilty of negligence stood as vice-principal. He represented the company, he was engaged in a totally different department of labor from that in which defendant in error was employed, and he stood in a very different relation to their common principal. *Northern Pacific R. R. Co. v. Herbert*, 116 U. S. 642 (6 Sup. Ct. Rep. 590); *Cunard Steamship Co. v. Carey*, 119 U. S. 245 (7 Sup. Ct. Rep. 1360).

We will now briefly notice the other exceptions relied upon by plaintiff in error to reverse the judgment of the court below.

The court below charged the jury that the burden of proof as to contributory negligence rested upon defendant. To this the defendant excepted. We think the charge of the court on this point was a correct statement of the law. It is true that in some states a different doctrine prevails; but in our view the better reason, as well as the weight of authority, is with the courts holding that the burden of proof is upon the defendant to show contributory negligence upon the part of the plaintiff in cases of this character. 1 Shear. & R. Neg. (4th ed.), §§ 108, 109; *Hough v. Railway Co.*, 100 U. S. 213; *Northern Pacific R. R. Co. v. Mares*, 123 U. S. 710, 721 (8 Sup. Ct. Rep. 321); *Indianapolis, etc., R. R. Co. v. Horst*, 93 U. S. 291; *Railroad Co. v. Gladmon*, 15 Wall. 401.

Exception was taken by the plaintiff in error to the admission of evidence, under the complaint, tending to show defects in the engine; and also to the admission of evidence introduced to show what defendant in error had been "working at prior to the collision, and what wages he had generally received." The object of this latter testimony was to furnish some basis for the estimation of the damages which defendant in error claimed to have suffered. We do not think the exceptions were well taken in either case.

The allegations in the complaint were broad enough to cover such testimony; and, even if they were not, this would furnish no ground of exception, in view of § 105 of our code.

We find no error in the record, and the judgment of the district court is therefore affirmed.

LANGFORD, J., concurs.

ALLYN, J., (*dissenting*).—I do not concur in the opinion filed herein. While the result may be justified by the facts of the particular case, I cannot approve of certain of the instructions as set out in the opinion. I doubt greatly the propriety of the court assuming to take the question of negligence from the jury. The case should be very exceptional where this may be done at all. And in this case the result of this was to ignore all explanation offered and excuse presented as insufficient, on the sufficiency of which I feel the jury may much more safely pass than the court. But the language and manner of the instructions (being the instructions first quoted in the opinion) are certainly subject to criticism. In this class of cases (personal injury) jurors are, ordinarily, ready enough to see these features, and need no graphic picture of the scene in the charge. The court cannot too carefully avoid language which may imply to the jury possible feeling, or, in the most remote way (though not intended), influence them. The tendency of courts to refer to and comment on the evidence, and thus take from the jury that which is exclusively given to their keeping, cannot be too carefully avoided, or too strongly guarded against. In my judgment the choice of terms by the lower court was (that to which I have reference), unfortunate, and properly subject to criticism; while I am equally satisfied they were not so intended, and merely the result of oversight, incident to a necessarily hasty consideration, at the trial, of a very large number of instructions, as may not unfrequently happen.

[No. 622. Decided March 7, 1889.]

## SPOKANE MANUFACTURING & LUMBER COMPANY v. J. McCHESNEY, W. R. STEELE, AND PETER DUEBER.

CONSTITUTIONAL LAW — MECHANICS' LIENS — CONSTRUCTION OF STATUTES.

A statute giving a lien to material-men or laborers, notwithstanding payment to the main contractor, is constitutional as to future transactions.

Code Wash T., § 1957, provides that every person performing labor upon, or furnishing material to be used in, the construction of a building, has a lien therefor, whether furnished at the instance of the owner or his agent, and that, for the purpose of the act, every contractor, etc., shall be held to be the owner's agent. By § 1965 the owner may avoid a lien by posting a notice as therein directed. *Held*, That the material-man or laborer has a lien, notwithstanding payment to the contractor.

Decisions of another state construing a statute contrary to its plain import will not be followed in construing a similar statute subsequently enacted here, especially where such statute has been adopted in other states, and has been there construed according to its terms before its adoption here.

*Appeal from District Court, Spokane County.*

Action by the Spokane Manufacturing & Lumber Company against J. McChesney, W. R. Steele, and Peter Dueber. Plaintiff appeals.

*S. C. Hyde*, and *James B. Jones*, for appellant.

The statute is remedial, and is to be liberally interpreted. 2 Jones, Liens, § 1556; *Gale v. Blaikie*, 129 Mass. 206; *Heckmann v. Pinkney*, 81 N. Y. 211; Code Wash T., § 1981. The amount of a lien given directly to a subcontractor in no way depends on the state of account between owner and contractor. 2 Jones, Liens, § 1304, and cases cited. The lien continues for sixty days after ceasing to furnish materials. Code Wash. T., § 1961; *Lonkey v. Cook*, 15 Nev. 58; *Hunter v. Truckee Lodge*, 14 Nev. 24; *Association v.*

*Miller*, 16 Nev. 327; *Andis v. Davis*, 63 Ind. 17; *Clough v. McDonald*, 18 Kan. 114; *Laird v. Moonan*, 32 Minn. 358, 362; *Parker v. Bell*, 7 Gray, 429, 432. The material-man is presumed to rely upon his lien. 2 Jones, Liens, § 1284. The material was sold for the building and consequently to its owner. *White v. Miller*, 18 Pa. St. 54. The owner, to protect himself, must see the material-men and others are paid. 2 Jones, Liens, §§ 1290, 1305; Code Wash. T., § 1966; *Laird v. Moonan*, 32 Minn. 358, 362; *Ballou v. Black*, 21 Nev. 131. Defendant "is in privity of contract, by force of the statute," with the material-man. *Hobbs v. Spiegelberg*, 3 N. Mex. 222; *Barker v. Buell*, 35 Ind. 297. Though the statute was borrowed from California, and at the time it was transcribed had received in that state a certain and settled construction, the courts of this territory are not bound by such construction, because it is absurd, and is not in harmony with the spirit and policy of the general legislation of the territory. *Hunter v. Lodge*, 14 Nev. 36; Code Wash. T., § 1981. The statute stands on the same footing, and is subject to the same rules of construction as any other legislative enactment. End. Interp. St., § 371. The constitutionality of a similar statute was affirmed in *Shellabarger v. Thayer*, 15 Kan. 619; *Laird v. Moonan*, 32 Minn. 358, 362; *Bohn v. McCarthy*, 29 Minn. 23; *O'Neil v. St. Olaf's School*, 26 Minn. 329.

*Griffitts, Moore & Feighan*, for appellee Dueber.

The statute, at the time of its adoption here, had received a uniform, settled and established construction. *Renton v. Conley*, 49 Cal. 188; *Wells v. Cahn*, 51 Cal. 423; *Bowen v. Aubrey*, 22 Cal. 571; *McAlpin v. Duncan*, 16 Cal. 127; *Knowles v. Joost*, 13 Cal. 621; *Wiggins v. Bridge*, 70 Cal. 437; *McCants v. Bush*, 70 Cal. 125; *Todd v. De La Mott*,

9 Colo. 222; *Doggett v. Bellows*, Cal., Mar. 26, 1885, 6 Pac. Rep. 421; *Whittier v. Hollister*, 64 Cal. 283; *Whittier v. Wilbur*, 48 Cal. 175; *Rosenkranz v. Wagner*, 62 Cal. 151. And this construction is approved in Phil. Mech. Liens, § 62*b*; *McKnight v. Washington*, 8 W. Va., 666; *Jensen v. Brown*, 2 Colo. 694; *McIntire v. Barnes*, 4 Colo. 288; *Stewart v. Wright*, 52 Iowa, 335; *Hooker v. New Haven, etc., Co.*, 14 Conn. 146; *Parrish v. Christopher* (Ky., March 24, 1887), 3 S. W. Rep. 603; *Shields v. Morrow*, 51 Tex. 393; *Horan v. Frank*, Id. 401; *Loonie v. Frank*, Id. 406; *Schultz v. Hay*, 62 Ill. 157; *Rothgerber v. Dupuy*, 64 Ill. 452; *Pike v. Irwin*, 1 Sandf. 14; *Lumber Co. v. Osborn*, 72 Iowa, 472; *Pennock v. Dialogue*, by STORY, J., 2 Pet. 1; *Cathcart v. Robinson*, by MARSHALL, C. J., 5 Pet. 264; *Bank v. U. S.*, STRONG, J., 19 Wall. 227; *McDonald v. Hovey*, BRADLEY, J., 110 U. S. 619; *Com. v. Hartnett*, 3 Gray, 450; *Bemis v. Becker*, 1 Kan. 226; *Poertner v. Russel*, 33 Wis. 193; *Eldridge v. Kuehl*, 27 Iowa, 160; *Pangborn v. Westlake*, 36 Iowa, 546; *Streeter v. People*, 69 Ill. 595; *Gage v. Smith*, 79 Ill. 219; *Martin v. Judd*, 81 Ill. 488; *Attorney General v. Brunst*, 3 Wis. 689; *Campbell v. Quinlin*, 3 Scam. 288; *Rigg v. Wilton*, 13 Ill. 16; *State v. Rowley*, 12 Conn. 101; *Adams v. Field*, 21 Vt. 265.

The Minnesota cases are distinguishable. *Bardwell v. Anderson*, Minn., Jan. 3, 1880, 4 N. W. Rep. 47. A statute is presumed to be framed and passed in view of settled rules of construction, which form a part of it. End. Interp. St., §§ 8, 371; notes, 1–3. This statute is to be strictly construed. Phil. Mech. Liens, §§ 17, 18; *Rupe v. Association*, 3 N. Mex. 312.

The opinion of the court was delivered by

LANGFORD, J. — This is an action wherein the plaintiff seeks to foreclose a lien upon the building of Dueber for materials furnished by said plaintiff in the construction of

said building, at the instance of McChesney and Steele, the main contractors with Dueber. The point to be decided arises upon a general demurrer to the complaint by Dueber. The complaint is admitted to be perfect and sufficient in all respects, unless it is insufficient by reason of its not stating that Dueber had not paid said main contractors. If this is a material fact in the case, is it necessary that this negative shall appear affirmatively in the complaint, or, if true, must this be pleaded in the answer? It is too well settled to be a proper rule of pleading, that a defendant who relies upon payment as a defense must plead it in the answer, to require argument or authority. The amount of business which a district court has to perform in a short time deprives it of an opportunity to deliberate, but it must decide a case immediately, as it is presented in argument. Judging by the argument here, we presume that the point whether the payment or non-payment by the owner to the main contractor arose upon the demurrer to the complaint was not considered. The arguments and briefs here assume that the owner paid the main contractor, and the parties insist that this court shall decide the case as if this question arose upon the demurrer to the complaint, and no doubt this is the only point of law deemed material by the parties. We will proceed to decide it.

The point is made that a statute which would give a lien to a laborer or material-man, notwithstanding that payment had been made to the main contractor, is unconstitutional. We think such a statute is constitutional, as to all transactions occurring after the statute is passed, for the reason that it does not impair the obligations of existing contracts, but merely declares the effect of future contracts. Do the words of this act clearly express the legislative intent that a material-man or laborer shall have such lien notwithstanding the main contractor has been paid? The act to be considered is that of 1881, found in the code, and embraced in the code from § 1939 to § 1985, inclusive.

Omitting the words which include other than this class of claimants, we have these words: Every person performing labor upon, or furnishing materials to be used in, the construction of a building, has a lien upon the same for the work or labor done, or for material furnished, by each, respectively, whether furnished at the instance of the owner or his agent; and for the purpose of this act every contractor, subcontractor, architect, builder or person having charge of the construction, shall be held to be the agent of the owner. Sec. 1957. Such liens are superior to any which may attach subsequent to the time when the work was commenced to be done or material commenced to be furnished. Sec. 1960. Should the owner desire to prevent the lien attaching, as herein provided for, in cases where he or they have not themselves contracted for the construction, he may do so by posting a notice on the land in some conspicuous place on the land or improvement, which must be posted within ten days after the owner has knowledge of the making the improvement. Sec. 1965. The liens provided for may be enforced in the same manner and under the same proceedings as govern in the foreclosure of mortgages upon real estate. Sec. 1971. The contractor may recover upon a claim only such amount as may be due him after deducting all claims of other parties for work done or materials furnished; and, in case of a judgment against the owner by the main contractor, the owner may deduct any claim of material-men and laborers. Sec. 1966. It would be difficult to use more definite and clear language to express an intent than is used here. If it was the intention to declare that the material-man or laborer shall have a lien in plain words, not limited by the context, you have it here. If plain, positive words are not sufficient, the legislature has said that whether the materials were furnished at the instance of the owner or contractor the lien attaches. Then still to add force it says that the contractor is made the agent of the owner for the purpose of making the lien good.

This word "agent" has an accepted legal and popular meaning, and makes all contracts, notices and knowledge of the main contractor that of the owner himself. The owner is bound by the acts of his agents. It makes the owner privy with both contractor and subcontractor. To make the intent still more emphatic, the legislature has made an exception to this liability of the owner, by providing that in one way he may escape this responsibility, to wit, by posting a notice on the premises. Here we have not only the most appropriate affirmative words to express a certain intent, but we have one exception to the liability also expressed.

If these words do not express the intent of the legislature, that laborers and material-men have a lien, notwithstanding the owner may have, by contract and payment to another, attempted to defeat it, no words can express that intent. To hold to the contrary would be to hold that English words had not an English meaning; that technical words have not their legal meaning; that exceptions mentioned do not include all the exceptions intended; in short, that such an intent cannot be expressed by any language. For a court to find that statutes thus explicit do not express the legislative intent is simply for the court to deny that the legislature has legislative power, and, instead of enforcing statutes, to destroy them at pleasure upon any pretext, no matter how absurd.

We are asked to do this, because it is said that a similar statute of the State of California was construed out of existence by one or two decisions of that state; that as a matter of law our legislature is conclusively presumed to have incorporated the California decision into the act. If this is true, then it is clear that our legislature did not intend what it expressed in plain, unambiguous language. Such a presumption is not conclusive. Those cases cited, which hold the presumption conclusive, refer to English statutes, and decisions under them, imported from England as a part

of the common law, and afterwards expressly re-enacted. They stand upon the presumption that every man knows the law to which he is subject. Decisions of foreign states upon foreign statutes, which are never the law of the land, stand upon quite another principle. In this latter case no man is presumed to know them, except in so far as they become so incorporated into the history of the country that to suppose them unknown would be unreasonable. The legislature of Washington is no more presumed to have known these California decisions than the court is presumed to know the decision of every state court upon each statute of each state. We think that the presumption that the legislature knew the plain import of the language they used is much stronger than the presumption that they knew of one or two decisions of the supreme court of California. The act now being considered was passed in 1881, and at that time the same statute had been adopted in Nevada and New Mexico. The supreme court of that state, and also of that territory, had, at that time, enforced the statute according to its words; so the presumption would be that the legislature, when it passed this act, supposed that the courts of this territory would enforce this act according to its terms, as the courts of New Mexico and Nevada had done. We conclude, then, that a laborer or material-man has a lien if he complies with the statute, notwithstanding the owner may have made different arrangements with, or has paid, the main contractor.

The judgment of the district court is therefore reversed, and the case remanded to the same court for a new trial according to this opinion.

BURKE, C. J., and ALLYN, J., concur.

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1. *Final Order—Vacating Judgment.* An order of the district court vacating a judgment on the pleadings rendered during the term in plaintiff's favor, and permitting defendant to file an amended answer, is not a final order from which an appeal may be taken to the supreme court.—*Lilienthal v. Wright*..... 1

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fendant, in the absence of any offer to amend the return of service, or make other showing to aid the jurisdiction of the justice, may have the action dismissed without prejudice, under the provisions of § 1780, Code Wash. T. Under the provisions of said § 1780 the defendant may take advantage, on appeal, of any error in overruling its objections, even after a trial upon the merits. — *Knoff v. Co-operative Colony* ..... 57

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22. *Same.* The court will not presume, merely from the fact that one of the defendants is represented specially by a firm one of whose members has the same surname as the attorney signing the stipulation, that the latter is a member of said firm. — *Id* ..... ..... ..... 89

23. *Record — Not Necessary to Attach Statement to Transcript.* Under the appeal act of 1883, it is not essential that the statement of facts should be attached to the transcript, the statute only requiring it to be sent up therewith; and where the certificate of the trial judge describes the statement of facts as having the same number and title as the papers in the transcript, and the statement and transcript were filed together in the supreme court, the statement is sufficiently identified with the transcript to be considered in connection therewith. — *Id* ..... 89

24. *Parties.* Where judgment has been rendered against three defendants in the district court, and two of them sue out a writ of error, and, in lieu of serving notice thereof on the third defendant,

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as required by the code, file their affidavit that the defendant not joining in the writ is not within the Territory of Washington, and that diligent endeavor has been made to serve him with a copy of said notice, the appeal will be dismissed. — *Nelson v. Territory*... 125

25. *Talesman Summoned by United States Marshal — Error not Prejudicial.* Where the court orders the United States marshal to summon a talesman from the bystanders to fill an exhausted panel, the sheriff being present, and, so far as the record shows, not disqualified, and the defendant objects but does not interpose any challenge to the juror, and it does not appear that the juror was in any way unfit to try the case, there is no error prejudicial to the defendant. — *Meeker v. Gardella* ..... 139

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27. *Defective Brief — Rules of Court.* It is within the discretion of the court to grant or refuse a motion to strike appellant's brief, for the reason that it does not contain the pleadings and an abstract of the case, as required by the rules of the supreme court, as such matter is required purely for the convenient reference and information of the court. — *Sheehan v. Levy*..... 149

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29. *Denying Continuance — No Prejudicial Error.* The ruling of a trial court denying a motion for a continuance will not be disturbed on appeal, where it appears that defendant did not use due diligence in endeavoring to secure the attendance or depositions of absent witnesses. — *O. R. & N. Co. v. Dacres*..... 195

30. *Final Order — Injunction.* In an action for injunction, where defendant moves to dissolve the temporary injunction granted plaintiff, and also for an injunction against plaintiff, an order denying both branches of the motion without adjudicating upon plaintiff's prayer for a permanent injunction, is not a final judgment, from which appeal will lie to the supreme court. — *Johnstone v. Eisenbeis*..... 259

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jury the opinion of the trial judge as to the value of some portions of the evidence, yet, if the instructions clearly give the jury to understand that the facts are exclusively for them, and, taken as a whole, fairly state the law applicable to the evidence introduced, the judgment will not be reversed. — *White v. Territory* ..... 279

32. *Time of Filing Causes.* As the constitution of this state provides that the supreme court shall always be open for the transaction of business, except on non-judicial days, there are no terms of the supreme court in the sense in which they were formerly held, but only a division of its sittings into sessions. Hence, § 460, Code Wash. T., requiring causes to be filed in this court fifteen days before the first day of the next succeeding term, no longer applies in such cases. — *Skagit, etc., Lumber Co. v. Cole* ..... 330

33. *Same — Rules of Court.* There being no statute prescribing the time within which the transcript on appeal must be filed in the supreme court, reference must be had to the rules of this court to determine the time within which the transcript should be prepared and filed. — *Id* ..... 330

34. *Filing Briefs — Extending Time.* If sufficient cause is shown for the failure of appellant to file his briefs, as required by the rules of this court, the court will deny a motion to affirm the judgment, and will grant appellant an extension of time within which to file briefs. — *Id* ..... 330

35. *Reversing Void Judgment.* Where the judgment of a lower court, which was absolutely void for want of jurisdiction over the subject-matter of the action, has been removed to the supreme court, the supreme court, on a motion to dismiss the appeal, will, for the purpose of clearing the record, order the judgment of the lower court reversed. — *Stewart v. Lohr* ..... 341

36. *Sufficiency of Evidence — Testimony not in Statement of Facts.* The supreme court will not pass upon the sufficiency of evidence to sustain the findings of fact, nor its admissibility concerning certain matters, where the statement of facts does not include the testimony in so far as it touches the objectionable findings, and does not contain any question or answer, nor any objection, ruling or exception. — *Carstens v. McReavy* ..... 359

37. *Jurisdiction — Amount in Controversy.* Where the first paragraph of a complaint contained an allegation of $200 damages against defendant, for which demand had been made before suit, and the second paragraph alleged damages at $500, the sustaining of a demurrer to the latter paragraph does not reduce the amount in controversy to $200, there being no amendment reducing the demand below $700; and the supreme court has jurisdiction thereof on ap-

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38. *Statement of Facts — Notice.* Where appellees were not present when the statement of facts was settled, nor had any notice thereof, the supreme court will disregard the statement. — *Id.* ..... 365

39. *Statement of Facts — Improperly Settled — Objection Waived.* Where no motion to strike an improperly settled statement of facts was made and filed, as required by the rules of this court, objection thereto is waived, although objection was made at the time of its settlement, and also in the brief of appellee filed in this court. — *Cowie v. Ahrenstedt* ..... 416

40. *Modifying Judgment in Supreme Court.* Under Code Wash. T., § 475, on appeal from a judgment in favor of the vendee in an action to recover the purchase price on rescission of the contract, the court may modify the judgment by requiring the vendee, before issuance of execution, to execute a release and cancellation of the bond for deed. — *Ankeny v. Clark* ..... 549

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APPEARANCE.

1. *Appearance — What Constitutes.* Code Wash. T., § 1755, provides that the parties to an action in a justice's court shall be entitled to one hour in which to appear, after the time mentioned in the notice for appearance. Section 72 provides that "a defendant appears in an action when he answers, demurs or gives the plaintiff written notice of his appearance, or when an attorney gives notice of an appearance for him." *Held,* that a defendant must, in person or by attorney, give notice of his appearance within an hour of the time set for trial, and a mere corporal presence of defendant or his agent at the place of trial, within the hour, is not sufficient. — *McCoy v. Bell* ..... 504

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1. *Dwelling House.* Under § 823, Code of Wash. T., as amended by Laws 1885-86, p. 77, it is unnecessary, in charging the crime of arson, to allege that the dwelling house set fire to was used and occupied as a place of abode by any person or persons. — *McClaine v. Territory* ..... 345

2. *Indictment — Defendant's Knowledge of Deceased's Presence.* In an indictment for murder, the allegation "that by means of said setting fire to, and the burning of said dwelling house as aforesaid, one Harry Connor, who was then and there known by said Angus McClaine to be occupying one of the rooms in said dwelling house, and known by said Angus McClaine to be present in said room," etc., is sufficiently direct and certain to charge the defendant with knowledge of the presence of deceased on the premises at the time they were set fire to by defendant. — *Id.* ..... 345

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2. *Motion to Discharge on Affidavit — Oral Testimony Inadmissible.* Under the statutes of this state (Laws 1885-6, p. 45, § 32), where a defendant in attachment has made a motion to discharge the attachment upon affidavit, he has no right to depart from that mode of proof, and introduce oral testimony in support of the motion. — *Id.* ..... 461

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*Compromise as a Consideration.* Where there was evidence to show that a bill of sale under which defendant claimed had been given in compromise of a disputed claim, it is error to instruct the jury that such bill of sale conveys no right to the property in question. — *Chamberlin v. Winn* ..... 501

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1. *Delegating Legislative Functions to Courts.* A statute authorizing the creation of a municipal corporation by a judicial court, upon petition of a majority of the inhabitants of the territory to be incorporated, is unconstitutional, as delegating legislative functions to the court. — *Territory ex rel. Kelly v. Stewart* ..... 98

2. *Due Process of Law — Opium Smoking.* Code Wash. T., § 2073, as amended by acts 1883, p. 30, providing that "any

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person or persons who shall smoke or inhale opium . . . shall be deemed guilty of a misdemeanor," is not unconstitutional on the ground that it involves a deprivation of liberty and property without due process of law. — *Ah Lim v. Territory*..... 156

3. *Due Process of Law — Railroads — Killing Stock — Fences.* The act approved November 28th, 1883 (Laws Wash. T. 1883, p. 51), making railroad companies liable for stock killed by them where their tracks are not fenced, regardless of any questions of negligence on the part of the railroad company, or of contributory negligence on the part of the plaintiff, is void, because it imposes a penalty where no duty to fence is imposed, and would be a taking of property without due process of law. — *O. R. & N. Co. v. Smalley*..... 206

4. *Title of Act — School District Bonds.* The act, approved March 28, 1890 (Laws Wash. 1889-90, p. 51), amending § 1 of "An act allowing school districts to borrow money, and issue bonds, for the building and furnishing of school houses; to permit the funding of school district bonds heretofore or hereafter to be issued, legalizing the same, and declaring an emergency," provides for extending the issuing of bonds by any school district in the state, regardless of population, to five per cent. of its taxable property, which, in case of incorporated cities, shall be taken from the last assessment for city purposes. *Held*, that the title embraced but one subject, and such provisions were within the title, and valid, though the remainder of the act might be unconstitutional. — *Van Houten v. Routhe*..... 306

5. *Title of Act — Internal Improvements.* The act of March 26, 1890, entitled "An act authorizing cities and towns to construct internal improvements, and to issue bonds therefor, and declaring an emergency," under which the legislature empowers cities to construct and maintain water, light and sewerage systems, is not invalid on the ground that the subject of the act is not expressed in the title, as required by art. 2, § 19 of the constitution. — *Yesler v. Seattle*..... 308

6. *Commission of Crime Prior to Admission of State — Prosecution by Information.* A person accused of grand larcency, committed prior to the admission of this state into the Union, is entitled to the guaranty of the United States constitution of presentment by a grand jury; and cannot be prosecuted therefor by information, under the provisions of the state constitution and the legislative act in pursuance thereof, authorizing proceedings by information. *McCarty v. State*..... 377

7. *Constitution of United States — Presentment by Grand Jury.* The provision of the state constitution, article 1, § 2, that "the consti-

CONSTITUTIONAL LAW — CONTINUED.

tution of the United States is the supreme law of the land," only relates to those matters wherein the general government assumes to control the individual states, and the requirement of a presentment by a grand jury is not one of them. — *In re Rafferty*..... 382

8. *Title of Act — Information — Sections Dispensing with Grand Juries.* Where the title of an act relates only to proceedings by information, a section of the act dispensing with grand juries, unless ordered by the judge, is properly within the title, and does not bring another subject into the act. — *Id*..... 382

9. *Constitutional Prohibitions — Prospective Operations.* The prohibition of the state constitution against special legislation incorporating cities and towns is prospective in its operation, and does not affect existing special charters. — *Tacoma Land Co. v. Pierce County*.. 482

10. *Uniform Taxation.* Where an assessor uniformly assessed mortgages, unaccompanied by other evidence of indebtedness, at their par value, and lands and other property at from one-fourth to one-fifth of their cash value, his action was in violation of the organic act (§ 1924, Rev. St. U. S.) providing that all taxes shall be uniform, and that the assessment shall be according to the value of the property. — *Andrews v. King Co*..... 46

See APPEAL AND ERROR, 37; DIVORCE; HABEAS CORPUS, 3, 5; MECHANICS' LIENS, 9; MUNICIPAL CORPORATIONS, 4; STATUTES, 7; TRIAL, 10.

CONTINUANCE.

*Justice of the Peace — Continuance for more than Sixty Days.* Under § 1769, Code Wash T., a justice of the peace loses jurisdiction of the case when he grants a continuance thereof for more than sixty days. — *Nelson v. Campbell*..... 261

See APPEAL AND ERROR, 29; APPEARANCE, 3.

CONTRACTS.

1. *Construction of Contract — Extra Compensation.* Where a contract for the construction of a ditch provided for the payment of eighteen cents per cubic yard for the removal of earth and gravel between certain points, the fact that plaintiff, in excavating between those points, encountered a large amount of "cement gravel," or hard pan, will not entitle him to recover more than the contract price, on the ground that the removal of cement gravel was not contemplated by the parties to the contract. — *Wilkin v. Ellensburgh Water Co*..... 236

2. *Vendor and Vendee — Construction of Contract.* A vendor gave his vendee the following memorandum in writing; "*Tacoma, W. T., March* 16, 1888. Received of L. $5 as part

CONTRACTS — CONTINUED.

payment for lots Nos. 1 and 2, in block No. 1806; conditions as follows: $2,495 to be paid on or about the 20th day of March, 1888, and balance of $1,500 to run on time to suit L.'s convenience," and agreeing to furnish a warranty deed upon the payment of the $2,495. *Held*, that such a memorandum is a full contract for the sale of said lots, and, as time is not of the essence of the contract, the vendee could tender performance and demand his deed at any time before put in default by offer of tender on the part of defendant. — *Langert v. Ross* ..... 250

3. *Oral Evidence to Explain Contract.* For the purpose of explaining the terms of the contract and the situation of the parties, oral evidence is admissible to show that the lots described are in the city of Tacoma, and that the $1,500 was to be kept back for the purpose of paying off a mortgage on the lots when it became due. — *Id.* ..... 250

4. *Collection of Delinquent Taxes — Construction of Contract.* Where plaintiff contracted with a county to "make a tax list of all taxes delinquent" in the county, for which he was to receive "five per cent. on the total amount of said tax list, to be paid out of the tax due the county on said tax list as it is collected," plaintiff is entitled to receive five per cent. of the total amount of the delinquent list out of the taxes first collected, and not merely 5 per cent. of the amount collected. — *Martin v. Whitman Co* ..... 254

5. *Rescission — Set-off.* On rescission of a contract of sale of land by the vendee, who has been in possession, the just and reasonable rule is to offset the vendor's claim for rent against the vendee's claim for interest on the purchase price paid. — *Ankeny v. Clark* ..... 549

6. *Time of Performance.* In the absence of a fixed time for the performance of the agreement, a reasonable time would be presumed to have been intended by the parties. — *McCartney v. Glassford* ..... 579

7. *Mutual Obligations.* Plaintiff having contracted to carry, and defendants to pay so much per pound, there was a corresponding obligation on the part of defendants to furnish the produce for carrying. — *Id.* ..... 579

SEE COMPROMISE; EVIDENCE, 9; PLEADING, 9; PRINCIPAL AND AGENT; PUBLIC LANDS, 3; VENDOR AND VENDEE, 3.

CORPORATIONS.

1. *Action Against Stockholders.* Where a creditor obtained judgment against a corporation and other persons, and brought suit against a stockholder of the corporation to enforce payment for his

CORPORATIONS — CONTINUED.

unpaid subscription, a complaint alleging that the corporation had no assets except its unpaid subscriptions, but which fails to show that the judgment could not have been made out of the property of the other judgment debtors, does not state a cause of action. — *Burch v. Taylor* ..... 245

2. *Unpaid Stock — Subscriptions — Trust Fund.* A creditor of a corporation, who was himself a stockholder therein, obtained a judgment against it, and thereupon brought an action before a justice of the peace against another stockholder who had not paid up his subscription, and sought to enforce the collection of same and its application on his judgment against the corporation. *Held*, that unpaid stock subscriptions are a trust fund for the benefit of all the creditors, and that to enforce a right to participate therein requires a proceeding in equity. — *Id.* ..... 245

3. *Assignment of Stock — Liability on Subscription.* A subscriber to the capital stock of a corporation who has, in good faith, transferred his shares to another, which transfer has been accepted by the corporation, before an assessment is made, is not liable for the unpaid subscription. — *Stewart v. Walla Walla, etc., Pub. Co.* .... 521

4. *Transfer of Shares — Estoppel.* Though the by-laws of a corporation require the entry of transfers of shares on a stock-ledger, if none is kept and such a transfer is entered according to the custom of the company on the subscription list, and an assignment is endorsed on the shares themselves, and a new certificate is issued to the purchaser by the company, the latter cannot deny the validity of the transfer. — *Id.* ..... 521

See ACTIONS; PLEADING, 1, 2.

COSTS AND FEES.

*Right to Costs in Condemnation Proceedings.* Defendant constructed its railroad on plaintiff's land without any proceedings to acquire title. Plaintiff procured the appointment of householders, who appraised his damages at $1,425. Defendant elected to have the case tried, which was done, a verdict being returned for $1,000. On appeal, a new trial was ordered, on which a verdict for $1,000 was again rendered. Defendant then moved for judgment for costs and disbursements, amounting to $306. No offer to compensate plaintiff or to pay either of the awards was ever made. Code Wash. T., § 2475, provides that costs are to be taxed against the corporation only when the verdict and judgment are for a larger amount than the householders awarded, or the case has been tried at the instance of the corporation to reduce the award, and it is not reduced; otherwise costs shall be taxed against the land

COSTS AND FEES — CONTINUED.

owner. On the particular facts of the case, *held*, that plaintiff was entitled to costs and disbursements, including $15 attorney's fee.— *Owsley v. O. R. & N. Co.* ..... 491

See CRIMINAL LAW, 3; LEVY AND SEIZURE, 2; MORTGAGES, 4; NUISANCE.

COUNTIES.

1. *County Commissioners — Expenses of Tax List — Contract.* Code Wash. T., § 2673, subds. 5 and 6, authorizes the county commissioners to allow accounts chargeable against the county not otherwise provided for, and to have the care of county property and management of county funds and business. *Held*, that they could make a contract to pay five per cent. for making a tax-list of all delinquent taxes in a county. — *Martin v. Whitman County* ..... 533

2. *Same — Disallowance of Claim — Cause of Action.* The contract being to pay five per cent. on the total amount of the tax-list, and the list being made and presented, and the board having made an order that five per cent. of the delinquent taxes be paid on the contract as collected, a cause of action arises immediately against the county, under Code Wash. T., § 2695, such order being a substantial disallowance of plaintiff's claim. — *Id.* ..... 533

See CONTRACTS, 4; HIGHWAYS, 2.

COURTS.

1. *Removal of Causes — Federal Question.* The question whether a patent from the United States conveys part of the sea-shore below ordinary high-water mark in front of the land conveyed by the patent, is a "federal question," authorizing the removal of the cause from the state to the United States court. — *Kenyon v. Squire* 9

2. *Probate Court — Jurisdiction.* The probate court has no jurisdiction to try the title to real estate as between the representatives of an estate and the husband of the decedent, where the latter claims an interest adverse thereto. — *Stewart v. Lohr* ..... 341

3. *Same.* Where a probate court had no jurisdiction of the subject-matter of an action, the higher courts could get no jurisdiction on appeal. — *Id.* ..... 341

See APPEAL AND ERROR, 14, 32, 35; CONSTITUTIONAL LAW, 1; EXECUTORS AND ADMINISTRATORS, 5, 7; STATUTES, 8.

CRIMINAL LAW.

1. *Defendant not Sworn — Duty of Court to Instruct — Waiver.* Where the defendant in a prosecution for buglary was not sworn as a witness in his own behalf, it was error for the court not to instruct the jury that from such fact no inference of guilt should be drawn

CRIMINAL LAW — CONTINUED.

against the defendant; and the fact that the defendant remained silent does not amount to a waiver of such right. — *Linbeck v. State* 336

2. *Instructing Jury in Absence of Defendant.* It is error for the court in a criminal case, upon the request of the jury but in the absence of the defendant, to repeat to the jury certain of the instructions given and orally explain the meaning thereof, although the defendant's attorney was present and made no objection. — *Id.* ..... 336

3. *Fine — Costs — Limitation of Statute.* Under § 1258 of the code, imposing a fine not exceeding five hundred dollars on conviction, and providing that defendant shall stand committed until the same is paid, but making no provision for costs, a judgment for five hundred dollars and costs is not void for the reasons that it exceeds the limitations of the statute, and does not fix a definite period of imprisonment in the event of non-payment of the fine, as said section should be construed in connection with §2105, providing that on conviction the defendant shall be liable to pay costs in all cases, and § 1125, providing that in default of payment or security of fine and costs, a warrant shall be issued for defendant's commitment, specifying that he be imprisoned one day for every two dollars of such fine and costs. — *Foster v. Territory* ..... 411

See ARSON; BURGLARY; CONSTITUTIONAL LAW, 2; EVIDENCE, 17; GAMING; HOMICIDE; INDICTMENT; JURY, 2; LARCENY; TRIAL, 11.

CUSTOM. See EVIDENCE, 5; NEGLIGENCE, 5; WATER AND WATER-COURSES, 1, 2, 3.

DAMAGES.

1. *Use and Occupation — Measure of Damages.* In an action for use and occupation the true measure of damages, where defendant holds under color of title adversely to plaintiff, is the fair rental value of the premises, together with interest thereon to the time of the trial, and it is error to permit evidence of the highest market value of the produce of a farm during the year, for the purpose of proving damages. — *Meeker v. Gardella* ..... 139

2. *Illegal Levy by Sheriff.* Where a debtor mortgaged his stock of goods to a creditor, and gave him possession with authority to sell as expeditiously as possible, without sacrifice, and apply the proceeds to the payment of the debt; and the sheriff, with knowledge of this arrangement, seized the goods under attachments of other creditors of the mortgagor, and sold and scattered the goods so that they were lost to plaintiff: *Held*, that in the absence of any allegation of special damage, the mortgagee was entitled to recover

DAMAGES — CONTINUED.

of the sheriff the amount of his debt, and interest thereon, not exceeding the value of the goods at the time of the taking.—*Sheehan v. Levy* ..... 149

See EVIDENCE, 5; LEVY AND SEIZURE, 2, 3; PLEADING, 6, 7; VENDOR AND VENDEE, 1, 2.

DELEGATION OF POWER. See CONSTITUTIONAL LAW, 1.

DEMAND. See NEGOTIABLE INSTRUMENTS, 2; SPECIFIC PERFORMANCE, 2.

DEMURRER. See PLEADING, 8.

DISORDERLY HOUSE. See NUISANCE.

DIVORCE.

*Divorce — Chronic Dementia — Constitutional Law.* Under the organic act providing that the legislative power of every territory shall extend to all rightful subjects of legislation, an act of the legislature of Washington Territory making incurable chronic mania or dementia existing for ten years or more a ground of divorce, is valid and within the power of the territorial legislature.—*Hickman v. Hickman* ..... 257

DUE PROCESS. See CONSTITUTIONAL LAW, 2, 3.

DYING DECLARATIONS. See TRIAL, 11.

EJECTMENT.

*Possession by Defendant.* Where plaintiff is not, and defendant is, in possession of land claimed by the former, the proper form of remedy is ejectment.—*Catholic Bishop of Nesqually v. Gibbon* .... 592

See EVIDENCE, 7; WRIT AND PROCESS.

ELECTIONS AND VOTERS.

*Three-fifths of the Voters — Construction.* Where an ordinance provides that "if three-fifths of the voters of said city of Seattle shall at said election vote in favor of authorizing," etc., it does not require, in order to carry the proposition, that three-fifths of all those who may be entitled to a vote, should vote in favor thereof, but only a three-fifths majority of those actually voting.—*Yelser v. Seattle* ..... 308

See MUNICIPAL CORPORATIONS, 5, 6.

EMBEZZLEMENT. See INDICTMENT, 3.

EMINENT DOMAIN. See COSTS AND FEES.

EQUITY.

*Equity Jurisdiction — Violation of Escrow.* Where the complaint shows that plaintiff and defendant both filed upon the same government land, and by way of compromise each agreed to relinquish a portion of the claim to the other, and that plaintiff executed a deed to defendant for twenty acres of the portion relinquished to plaintiff, and placed the same in escrow to be delivered after final proof under his homestead entry, but that prior thereto defendant wrongfully obtained possession of said deed and placed it of record, a court of equity has power to order the return of the deed to escrow, on the ground that plaintiff has a special interest, beyond any mere pecuniary value attached to the instrument, in having said deed held in escrow, in view of the fact that the land laws of the United States prohibit the conveyance of public lands before final proof.—*Paxton v. Danforth's Adm'r* ..... 120

See CORPORATIONS, 2; INJUNCTION; TRIAL, 13.

ERROR, WRIT OF. See APPEAL AND ERROR, 8.

ESCHEAT.

*Title of Escheat Vests without aid of Court.* Where the owner of lands dies intestate, leaving no husband or wife, or kindred, the lands escheat to the state, under § 3302, Code Wash.T., and the title vests immediately in the state on the death of the owner, without the aid or intervention of the probate court.—*Territory v. Klee* ..... 183

See EXECUTORS AND ADMINISTRATORS, 5.

ESCROW. See EQUITY.

ESTOPPEL.

*Sale of Rights in Water-course — Estops Claim Under Subsequent Patent.* One who is present and aids in the appropriation of a water-course, and afterwards sells his interest in the water-rights so acquired, is estopped from asserting any claim to such water-rights under a patent afterwards obtained by him as a pre-emptor of the land through which the water-course passes. — *Ellis v. Pomeroy Improvement Co* ..... 572

See CORPORATIONS, 4; EVIDENCE, 7.

EVIDENCE.

1. *Variance.* In an action by a servant for injuries received through the negligence of his master, where the complaint alleges that defendant left his work to go to the water-closet, and was injured while on the way there, and the proof shows that he was on his way to his work in the morning, but had not yet commenced work, there is no material variance.—*Sayward v. Carlson* ..... 29

2. *Forcible Entry and Detainer — Payment of Taxes as Proof of Possession.* In such an action, no question of title being involved, there was no error in excluding evidence that defendant had paid taxes on the premises in controversy for two years last past, no other proof of possession or right of possession being offered by defendant. — *Bellingham Bay, etc., R. R. Co. v. Strand* ..... 133

3. *Same — Possession.* It was assigned as error that the court erred in excluding evidence "that during the two years last past, defendant had been in the actual, open and notorious possession of large portions of the said tract of several hundred acres of land which originally included the said land in controversy." *Held*, that such evidence was irrelevant to the issue in an action of forcible entry and detainer. — *Id.* ..... 133

4. *Same — Admissions in Answer.* Where plaintiff proved his quiet and lawful possession for a long time prior to and up to the time of the alleged forcible entry, and defendant offered no evidence of its right of possession, and none in contravention of plaintiff's proof, while its answer admitted it was in possession of the premises at the commencement of the action, the evidence will sustain a verdict in favor of plaintiff. — *Id.* ..... 133

5. *Custom — Gathering Hops Before Ripe.* In an action for damages for the detention of premises on which there was a hop yard, it is error to permit the introduction of evidence to show the custom of farmers of selling hops while growing, and to show the highest market value of hops before they were gathered or ripe. — *Meeker v. Gardella* ..... 139

6. *Deed by Attorney in Fact — Evidence of Title.* A deed purporting to be made by the attorney in fact of the grantor is no evidence of the grantee's title, unless it is also shown that the attorney in fact had authority to make the deed, or that the grantee went into possession under the deed. — *Territory v. Klee* ..... 183

7. *Ejectment — Equitable Estoppel.* In an action of ejectment, defendant may, under a general denial, introduce evidence of equitable estoppel, where the complaint does not state the source of plaintiff's title. — *Parker v. Dacres* ..... 190

8. *Admissions in Original Pleadings.* In an action against a railroad company for killing a bull, defendant's original answer, admitting, in effect, that defendant owned and operated the train that killed

EVIDENCE — CONTINUED.

the bull, is admissible in evidence, and the admission therein is conclusive of the fact admitted, unless shown to have been made under a mistake. — *O. R. & N. Co. v. Dacres*..... 195

9. *Parol Contract —Sale of Real Estate by Agent—Property in Hands of Another Agent.* In an action upon a verbal contract for commission on the sale of real estate, where plaintiff testified that the property was placed in his hands by defendant for sixty days for the purpose of sale, and defendant testified that he told plaintiff the property was in the hands of another real estate agent for either thirty or sixty days, but that if the time had expired he was at liberty to handle it, it was error to exclude evidence that the property was in the hands of the other agent for sale at the time of the conversation between plaintiff and defendant, as such evidence would be relevant as to whether or not a contract was made as alleged. — *Going v. Cook*..... 224

10. *Contract by Agent — Extent of Authority — Relevancy.* Where, in an action for the price of certain logs, the place of delivery of the logs, by the terms of the contract, is in controversy, evidence that the agent making the contract had only a special and limited authority to contract for the purchase of the logs to be delivered at the mill is admissible, as a circumstance to be weighed in connection with the agent's testimony as to what the contract was.—*Western Mill, etc., Co., v. Blanchard*..... 230

11. *Replevin — Title — Bill of Sale as Mortgage.* Where the complaint, in an action of replevin, alleges title generally in plaintiff, without setting forth the source of title, and plaintiff, on the trial, introduces in evidence a bill of sale from a third party to plaintiff, the defendant, under a plea of general denial, may introduce evidence tending to show that such bill of sale was given as security for a debt, and was, in fact, only a mortgage.—*Kerron v. North Pacific, etc., Mfg. Co.*..... 241

12. *Res Gestae.* In a prosecution for murder it is not error for the court to allow a witness to testify that, at the time of the commission of the homicide, the deceased and two other persons were walking together on the sidewalk, and that, as they were passing the defendant, he suddenly drew a revolver from his pocket and shot the deceased, and almost immediately turned and fired at the two persons with him, such evidence being admissible as part of the *res gestae*.—*Blanton v. State*..... 265

13. *Proof of Conversation.* Where the defense, in the examination of a witness, has called out part of a conversation, the prosecution may call either party to it in order to prove the entire conversation.—*White v. Territory*..... 279

EVIDENCE — CONTINUED.

14. *Written Lease — Oral Testimony.* Where defendant holds under written lease the premises upon which a lien is claimed, his interest therein cannot be shown by oral testimony. — *Cowie v. Ahrenstedt* ..... 416

15. *Replevin — General Denial — Ownership in Third Party.* In an action to recover the possession of specific personal property, the defendant may, under the general denial, prove ownership or the right of possession of the property in controversy in a third person. — *Chamberlin v. Winn* ..... 501

16. *Mortgage as Pledge — Oral Testimony.* In an action of replevin by a mortgagee to recover the mortgaged property which had been attached while in his possession by creditors of the mortgagor, it was error for the court, after excluding the mortgage by reason of invalidity, to treat the transaction brought about by the mortgage as a pledge, and admit oral testimony to establish the relation of pledgor and pledgee. — *Marsh v. Wade* ..... 538

17. *Character in Criminal Cases.* Evidence of the good character of the defendant is always admissible in a criminal case; and if it is sufficient to raise a reasonable doubt in the minds of the jury as to the guilt of the accused, it is their duty to acquit. — *Klehn v. Territory* ..... 584

18. *Collision — Defective Engine.* Evidence of the defects of the engine was admissible, under the complaint, which alleged, generally, that the collision was caused by defendant's gross negligence, and though the allegations were not broad enough to cover it, its admission would be no ground of exception under Code Wash. T. § 105. — *Northern Pacific R. R. Co. v. O'Brien* ..... 599

19. *Action for Personal Injuries — Prior Occupation and Wages.* Under the allegations that plaintiff was permanently disabled to follow his occupation, and rendered unable to earn a livelihood, evidence of his prior occupation and wages is admissible, and, though such allegations were not broad enough, the admission of the evidence would not be ground of exception under § 105 of the code. — *Id* ..... 599

20. *Contributory Negligence — Burden of Proof.* The burden of proving contributory negligence rests upon the defendant. — *Id* ..... 599

See ATTACHMENT, 2; CONTRACTS, 3; MECHANICS' LIENS, 3; NEGLIGENCE, 5, 6; PARTNERSHIP, 1, 2, 3; RAILROADS, 5; WITNESS.

EXCEPTIONS. See APPEAL AND ERROR, 18, 26.

EXECUTIONS.

1. *Execution Sale — Redemption — Notice.* Under Code Wash. T., 1881, § 375, subdivision 1, providing that a person seeking to redeem from a sheriff's sale shall give the purchaser two days' notice of his intention to apply to the sheriff for that purpose, a notice given on the 4th of the month of an intention to apply on the 6th is sufficient. — *Scott v. Patterson* ..... 487

2. *Same.* As it is not necessary that the holder of the certificate of purchase should be present, the notice need not state the hour of the day when the application will be made. — *Id* ..... 487

3. *Notice of Redemption — Proof of Service.* Service of such notice may be proved by the testimony of the person who served it, without any return or affidavit of service thereon. — *Id* ..... 487

See LEVY AND SEIZURE, 1.

EXECUTORS AND ADMINISTRATORS.

1. *Decedent's Estate — Claim by Administrator.* Under § 1472, Code Wash. T., when a claim against a decedent's estate is rejected by the judge of the probate court, no appeal lies from the order of the probate court rejecting the claim. The holder's remedy is exclusively by suit, in the proper court, against the executor or administrator. — *Wilkins v. Wilkins* ..... 87

1. *Same — Remedy.* Where a claim held by the administrator himself is disallowed by the probate judge, the administrator's only remedy is to resign his trust, and bring suit as any other creditor of the estate. — *Id* ..... 87

3. *Decedent's Estate — Presentation of Claim Secured by Mortgage.* Failure to present a claim against a decedent's estate, secured by mortgage on his land, within one year after publication of notice to creditors, as provided by Code Wash. T., § 1467, will not bar the mortgagee's rights under the mortgage as to the lands mortgaged, but will only operate to prevent his making any deficiency that remains after exhausting the mortgaged property out of the decedent's other estate. — *Scammon v. Ward* ..... 179

4. *Same.* Where the mortgagee of a decedent's lands applies to the probate court, under Code Wash. T., § 1523, to compel the redemption of land from his mortgage lien, or to have the lands sold, under § 1524, and the proceeds applied upon the mortgage debt, he must apply within the year allowed for the presentation of claims against the estate. — *Id* ..... 179

5. *Administration in Two Counties — Jurisdiction First Acquired Exclusive.* A decree of one probate court escheating property to the territory for the support of public schools, because the owner died intestate, leaving no kindred or wife, is void, where the pro-

EXECUTORS AND ADMINISTRATORS — CONTINUED.

bate court of another county has already granted letters of administration of the estate, the decedent having been a non-resident, and having died outside of the territory, leaving property in both counties. — *Territory v. Klee* ..... 183

6. *Decedent's Estate — Setting Aside Sale — Parties.* Objections to the confirmation of sale of a decedent's real estate can be made only by parties interested in the estate. — *Terry v. Clothier* ..... 475

7. *Probate Courts — Jurisdiction — Sale of Real Estate to pay Expenses of Administration.* Under the Code Wash. T., § 1444, the probate court had jurisdiction to grant administration upon a decedent's estate, though the petition therefor showed that there was no personal property in the territory, and no creditors of the estate, and that the decedent's estate was in course of administration in another state; and, where there was no personal property, it was proper to order sale of the real estate to pay the expenses of administration and taxes assessed against the real estate after the death of the decedent, although no other debts were proved. — *Hanford v. Davies* ..... 476

See COURTS, 2; MORTGAGES, 3, 4.

EXEMPTION. See HOMESTEAD; LEVY AND SEIZURE, 1.

FEDERAL QUESTION. See COURTS, 1.

FELLOW-SERVANTS. See MASTER AND SERVANT, 1, 2, 3.

FENCES. See CONSTITUTIONAL LAW, 3; RAILROADS, 2, 3, 5.

FINAL ORDERS. See APPEAL AND ERROR, 1, 4, 6, 30.

FINES. See CRIMINAL LAW, 3.

FIRES. See NEGLIGENCE, 1; RAILROADS, 4.

FORCIBLE ENTRY AND DETAINER. See EVIDENCE, 2, 3, 4; PLEADING, 4.

FORGERY. See INDICTMENT, 4, 5.

FRAUD.

*Pleading.* Where a complaint alleges a state of facts, which, if proved to be true, would establish fraud as a conclusion of law, it is a sufficient allegation of fraud, without the specific declaration that such acts were fraudulent. — *Andrews v. King County* ..... 46

GAMING.

1. *Faro — Construction of Statute.* As §§ 1253 and 1258, Code Wash. T., are sufficiently explicit to enable the court, with reasonable certainty, to determine what the legislature intended, and as they described the offense of dealing faro, or permitting the same to be done on one's premises, with sufficient certainty, they cannot be held void for uncertainty and ambiguity. — *Foster v. Territory*... 411
2. *Same. — Indictment.* As the gravamen of the offense consists in permitting the game of faro to be dealt in prohibited places, an indictment is sufficient, without specifying with whom the game was played, or in what particular manner it was conducted. — *Id.* 411
3. *Destruction of Gambling Apparatus — Presumptions.* Under a statute permitting the destruction of gambling apparatus seized and held as evidence upon the trial, where the record is silent as to how the apparatus came into possession of the sheriff, the court cannot presume that such possession was wrongfully obtained, or that the recitals and order of the court directing the destruction were unauthorized. — *Way v. Territory* ..... 415

GRAND JURY. See CONSTITUTIONAL LAW, 6, 7, 8; JURY, 2.

HABEAS CORPUS.

1. *When not Proper — Remedy by Appeal.* Under § 677, Code of Wash. T., prohibiting inquiry into the legality of any commitment issued on a final judgment of a court of competent jurisdiction, defendant is restricted to his remedy by appeal; and the writ of *habeas corpus* will only lie where the court had no competent jurisdiction in the premises. — *In re Rafferty*..... 382
2. *Jurisdiction of the Supreme Court — Practice.* Under § 24 of the enabling act, and the legislative act of December 13, 1889 (Sess. Laws 1889-90, p. 94), continuing all laws in force applicable to the state form of government, the provisions of chapter 58, Code Wash. T., in regard to *habeas corpus*, are applicable to the supreme court. — *Id.*..... 382
3. *Same.* Section 4, article 4, of the state constitution, giving the supreme court original jurisdiction in *habeas corpus*, is self-executing; and in the absence of legislation on the subject, the supreme court has authority to establish rules defining the course to be pursued in issuing the writ. — *Id.*..... 382
4. *Same.* Under the authority of the supreme court to issue writs of *habeas corpus*, the court, or one of its judges, can grant an order *nisi* to show cause why the writ should not issue. In such case the writ should be issued by the clerk of the supreme court. — *Id.*..... 382
5. *Same.* The supreme court has original jurisdiction in *habeas*

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*corpus* to issue the writ or make the order *nisi*, in all cases, and the provisions of § 4, article 4, of the state constitution do not confine its jurisdiction to state officers. — *Id.* ..... 382

HIGHWAYS.

1. *Assessments for Street Improvements — Construction of Charter.* The act incorporating the city of Olympia gives the city power, in § 8, "to construct and repair sidewalks, and to curb, pave, grade, gravel and gutter any street, and to levy and collect a special tax or assessment on the lots and parcels of land fronting on such street, sufficient to pay the expense of construction of said sidewalks, and graveling or paving said streets," and further provides that "unless the owners of more than one-half the property subject to assessment for such improvement petition the council to make the same, such improvement shall not be made until two-thirds of all the members of the council, by vote, authorize the making of the same;" and § 96 provides for an assessment of lots and an apportionment of the whole cost of "planking" or "graveling," *pro rata;* § 93 provides that whenever the city council deems it expedient to "establish or order the grade of any street or alley of the city, or to make any improvement thereof, as authorized by §§ 5, 6, 7, 8, 9, and 10 of this act," it shall cause a survey, diagram and estimate of the cost thereof to be made and filed "for the inspection of the persons interested therein;" § 94 provides that under certain circumstances the council is authorized to proceed and "make the improvement;" and other sections speak of the "cost of improvements, and require the council to provide, by ordinance, for its payment as apportioned. *Held*, that all the sections of the charter upon the subject of street improvements must be construed together, and that authority is thereby conferred upon the city of Olympia to levy special assessments to pay for grading streets, as well as for graveling and paving them. — *McNair v. Ostrander* ..... 110

2. *Counties — Defective Sidewalks.* A county is not liable for personal injuries caused by a defective sidewalk under its control. — *Clark v. Lincoln County* ..... 518

See NEGLIGENCE, 7, 8.

HOMESTEAD.

*May be Acquired After Judgment.* Under the laws relating to the selection of homesteads (Code Wash. T., § 1460; Acts 1885–6, p. 170), the obtaining of a general judgment lien does not cut off the subsequent selection of a homestead, at any time before sale to satisfy the judgment. — *McMillan v. Mau* ..... 26

HOMICIDE.

1. *Murder — Arson.* Under § 823, Code of Wash. T., defining the crime of arson, and providing, among other things, that "should the death of any person ensue therefrom, known to be occupying or present in said premises at the time such premises are willfully set fire to, the offender . . . shall be deemed guilty of murder in the first degree," an instruction to the jury, in a prosecution thereunder for murder in the first degree, that "you must find from the evidence that the deceased was in the house at the time of the fire; that the defendant knew he was there, and that the deceased came to his death in said house by reason of the burning of the house," is erroneous, as under such an instruction the jury might have convicted the defendant, if the deceased was present in the house at any time during the fire, without regard to the fact as to whether defendant knew he was present in the house at the time it was fired. — *McClaine v. Territory* ..... 345

2. *Same.* The court, upon the trial, gave the following instructions: "The prosecution must make out its case beyond a reasonable doubt. That is to say, must prove the house, of five dollars at least in value, was burned at or about the date charged; that the defendant did this purposely; that the deceased was in the house when he purposely set fire to it. And if about any of these essential facts there is any reasonable doubt you must acquit." *Held*, that the instruction had a tendency to mislead the jury, as all the essential elements of the crime are not given therein. — *Id.* ..... 345

See EVIDENCE, 12; INDICTMENT, 1, 2.

HUSBAND AND WIFE. See DIVORCE; LEVY AND SEIZURE, 1.

INDICTMENT.

1. *Murder — Failure to Charge Deliberate and Premeditated Malice.* Under Code Wash. T., making murder a purely statutory crime, an indictment for murder which alleges that the defendant did, purposely and of his deliberate and premeditated malice, assault the deceased, and that the defendant of his premeditated malice, fired the shot which killed the deceased, but does not allege that the defendant, purposely and of his deliberate and premeditated malice, killed the deceased, is fatally defective as charging murder in either the first or second degree; nor is the indictment aided by the concluding part, that the said defendant, "so, in the manner and by means aforesaid, feloniously, purposely, and of his deliberate and premeditated malice, did kill and murder" the deceased. An objection as to the sufficiency of such an indictment may be made for the first time in the supreme court. — *Blanton v. State* ..... 265

INDICTMENT — CONTINUED.

2. *Same — Sufficient to Sustain Conviction for Manslaughter.* Such an indictment, though insufficient to sustain a conviction of murder in the first or second degree, does sufficiently charge the crime of manslaughter, and is, therefore, valid to that extent. — *Id.* ..... 265

3. *Embezzlement — Construction of Statute.* An indictment for embezzlement by an agent which does not allege that the defendant was an agent for hire, is fatally defective under the provisions of Code Wash. T., § 835, as the words "for hire," in said section, qualify each of the classes of persons enumerated therein. — *Terry v. State* 277

4. *Forgery — Omission in Indictment of Figures Cut in Draft.* An indictment for forgery which correctly sets forth a copy of the forged draft, with the exception of the figures cut therein, is not defective, the figures cut in the draft, in a legal sense, being no part of the instrument. — *White v. Territory* ..... 279

5. *Same — Alteration of Genuine Instrument.* An indictment charging that defendant uttered and published as true a certain false and forged writing, which is set out in full in the indictment, is sufficient to warrant proof of the alteration of an instrument originally genuine. — *Id.* ..... 279

See ARSON; CONSTITUTIONAL LAW, 6, 7, 8; GAMING, 2.

INFORMATION. See BURGLARY; CONSTITUTIONAL LAW, 6, 7, 8.

INJUNCTION.

*Unequal Taxation.* While equity will not interfere to set aside the judgments of assessors or boards of equalization in relation to values, injunction is the proper remedy where officers fraudulently, capriciously or tyrannically refuse to exercise their judgment, by adopting a rule or system of valuation designed to operate unequally. — *Andrews v. King County* ..... 46

See APPEAL AND ERROR, 4, 30.

INSURANCE.

1. *Premature Action.* Under an insurance policy which provides that any loss incurred shall not be payable until sixty days after notice and satisfactory proof thereof, a suit brought against the insurance company before the expiration of sixty days after proof and notice is unwarranted, unless there has been an unqualified refusal on the part of the company to pay the loss. — *Cascade, etc., Ins. Co. v. Journal Pub. Co.* ..... 452

2. *Refusal of Payment — Declaration of Trustee.* A declaration by a trustee of an insurance company, showing hostility to the payment of a certain loss under a policy of insurance, will not be re-

INSURANCE — CONTINUED.

garded as the refusal of the company to pay, unless he is specially charged by the board of trustees with the duty of communicating such decision to the policy holder. — *Id.* ..... 452

3. *Evidence of Value — Proof of Loss Insufficient.* In an action on an insurance policy, where there is no other evidence of the value of the property destroyed by fire than the proof of loss made by the claimant, as required by the terms of the policy, the plaintiff should be nonsuited. — *Id.* ..... 452

4. *Assignment of Policy — Forfeiture.* Where an insurance policy is conditioned to be void if assigned in case of sale, unless the assignment is approved by the president or secretary the policy becomes forfeited on sale and transfer of the property without such approval, unless there is waiver thereof. — *Id.* ..... 452

5. *Same — Agents as Beneficiaries — Their Consent no Waiver.* Where a policy of fire insurance is made payable in case of loss to to the agents of the insurance company to secure advances made by them to the insured, the consent of the agents to an assignment of such policy does not amount to a waiver of the condition as to assignment, as the agents are beneficiaries under the policy, and cannot bind the company by their acts. — *Id.* ..... 452

INSTRUCTIONS. See APPEAL AND ERROR, 26, 31; CRIMINAL LAW, 1, 2; HOMICIDE, 1, 2; NEGLIGENCE, 2; RAILROADS, 4; TRIAL, 8, 12.

INTEREST.

*Compound Interest — Agreement to Pay Valid.* An agreement in a mortgage to pay interest semi-annually at the rate of 1½ per cent. per month, which, if not so paid, is to be added to the principal and draw like interest, and further providing for ten per cent. attorney's fees upon principal and interest, in case of foreclosure, is valid under the laws of this state. — *Reed v. Miller* ..... 426

See DAMAGES, 1, 2; TRIAL, 1, 2.

JUDGMENT.

1. *Lack of Jurisdiction.* A judgment rendered against a non-resident defendant, no property of the defendant having been brought under the control of the court, without personal service upon him, or his voluntary appearance, is void. — *Paxton v. Daniell* ..... 19

2. *Erroneous Judgment — Remedy.* Where a judgment, erroneous but not void, has been entered against a party, he should either appeal, or apply to the court in the manner and within the time prescribed by law to have it set aside. After the expiration of the time prescribed, the district judge has no power to vacate or modify the judgment. — *Hawks v. Votaw* ..... 70

3. *Justice of the Peace — Default — Judgment.* Code Wash. T.,

JUDGMENT — CONTINUED.

§ 1781, provides that when a defendant who has been served with a true copy of the complaint and notice fails to appear and plead within the time specified in the notice, or within an hour thereafter, in an action in a justice's court, judgment shall be given without further evidence. *Held*, that where, on the expiration of an hour from the time set for trial, no appearance having been entered for defendant, plaintiff demands judgment, and shortly afterwards persons present object, as agents for defendant, but the justice says, "I will have to render judgment," and refers such agents to § 1781, judgment is entered for plaintiff, which cannot be modified or changed, though after plaintiff and his attorney depart the justice grants defendant a continuance, but enters up the judgment for plaintiff several hours thereafter. — *McCoy v. Bell* ..... 504

4. *Judgment against Party not Served.* Where only one of two defendants is served with process, it is error to render personal judgment against both, though they are alleged in the complaint to be partners. — *Id.* ..... 504

See APPEAL AND ERROR, 18, 35, 40; CRIMINAL LAW, 3; HOMESTEAD; LIMITATION OF ACTIONS; MECHANICS' LIENS, 4; PLEADINGS, 1, 2, 3, 12; TRIAL, 1, 2.

JURISDICTION.

*Non-resident — Objections to Jurisdiction — Waiver.* Where judgment by default has been entered against a non-resident defendant, on service by publication and attachment of his property, defendant's objections to the jurisdiction of the court, taken before entry of the default, are waived by his motion to open the default, which was not upon a special appearance, and by the subsequent filing of his answer. — *Sayward v. Carlson* ..... 29

See APPEAL AND ERROR, 2, 7, 10, 11, 35; APPEARANCE, 2, 3; CONTINUANCE; COURTS, 2, 3; EXECUTORS AND ADMINISTRATORS, 5, 7; HABEAS CORPUS, 1, 3, 5; JUDGMENT, 1; RECEIVERS.

JURY.

1. *New Venire before Panel Exhausted.* It is a mere irregularity, not at all prejudicial to the rights of the defendant, for the court to order a venire for additional jurors before the regular panel was exhausted, especially where the record shows that none of the additional jurors or talesmen were drawn as trial jurors until the original panel was entirely exhausted. — *Blanton v. State* ..... 265

2. *Failure to Challenge Grand Jury by Defendant in Custody.* Where the crime, for which the defendant was in custody, was com-

JURY— CONTINUED.

mitted shortly after the discharge of the regularly empanneled grand jury of the county, it is competent for the court, then in session, to re-summon the grand jury to inquire into the matter; and the defendant being present when the grand jury was empanneled, and given an opportunity to challenge either the entire panel, or the individual jurors, and declines so to do, he cannot afterwards question the legality of the empanneling of the grand jury by a motion to quash the indictment. — *Id*..... 265

See APPEAL AND ERROR, 25; CONSTITUTIONAL LAW, 6, 7, 8; TRIAL, 3, 4, 5, 10, 13.

JUSTICE OF THE PEACE.

*Succession to Office — When Complaint Presumed to be Filed — Summons.* A complaint coming into the possession of a justice of the peace by reason of his succession to the office cannot be presumed to have been filed by him on any other date than the day of his succession to office, though marked filed by him as of a later date; and defendant must be cited to appear within twenty days from the date of filing. — *Nelson v. Campbell*..... 261

See APPEAL AND ERROR, 10, 11; APPEARANCE, 1, 3; CONTINUANCE; JUDGMENT, 3; PLEADING, 5.

LANDLORD AND TENANT.

1. *Use and Occupation Pending Appeal — Action for.* Where plaintiff has obtained judgment in an action of ejectment, and defendant appeals, filing bond therefor, in a subsequent action by plaintiff against defendant to recover damages for use and occupation pending the appeal, plaintiff is not bound to sue on the appeal bond. — *Meeker v. Gardella*..... 139

2. *Defective Lease — Specific Performance.* Where a tenant, under the terms of a lease which is invalid because not acknowledged, but is otherwise sufficient, enters into possession of premises, makes improvements thereon and pays rent therefor, he is entitled to specific performance of the terms of the defective lease, as against a subsequent vendee of his lessor, who takes with actual knowledge of such tenant's rights. — *McGlauflin v. Holman*..... 239

LARCENY.

*Information — Railroad Tickets — Value.* An information charging defendant with taking and stealing "ninety-three railroad tickets of the aggregate value of one hundred and twenty dollars," without alleging the value of each ticket taken, and showing that they were stamped, dated and signed, does not state facts sufficient to constitute the crime of larceny. — *McCarty v. State*..... 377

LEVY AND SEIZURE.

1. *Community Property — When Exempt.* Under the laws of this state (Code Wash. T., ch. 183), community real estate is exempt from execution on a judgment rendered against the husband, who, as constable, wrongfully sold mortgaged personal property, under execution. — *Brotton v. Langert* ..... 73

2. *Failure to Levy — Tender of Fees — Damages.* Sections 2772 of the code, providing that no sheriff shall be liable for damages for refusing to serve any civil process unless his legal fees are first tendered him, must be construed in connection with § 2099, providing that no officer shall be required to perform any official act unless his fees are paid when he demands the same, as they are upon the same subject-matter; and in an action against a sheriff for damages for failure to levy an execution, it is no defense for him to allege that his fees were not tendered, where he has made no demand for them in advance of service. — *Haas v. Gaddis* ..... 89

3. *Partnership Property — Attachments for Individual and Partnership Debts — Sale by Sheriff upon Judgment against Individual Partner.* Where partnership property was attached in an action against one of the partners, and subsequently, but prior to judgment against the individual partner, creditors of the partnership attached the same property and obtained judgment in an action against the partnership, the sheriff's refusal to proceed under execution in favor of the judgment creditors of the partnership, and his sale of the property upon the judgment obtained against the individual partner, will not render him liable for damages. — *Id.*. 89

SEE SHERIFFS AND CONSTABLES.

LIENS. See MECHANICS' LIENS.

LIMITATION OF ACTIONS.

*Action on Judgment.* The proceeding prescribed by Code Wash. T., ch. 29, to revive the lien of a judgment, is not the commencement of an action; nor do the provisions of § 27 of the code, limiting to six years the time within which an action may be commenced upon a judgment or decree, apply to judgments rendered by the courts of this state. — *Burns v. Conner* ..... 6

MANSLAUGHTER. See INDICTMENT, 2.

MASTER AND SERVANT.

1. *Action for Damages — Injuries by Fellow-servant.* Where the gist of the complaint is that the master has injured the servant, and the proof shows that plaintiff's injury was caused by the negligence of a fellow-servant, defendant may move for nonsuit without hav-

MASTER AND SERVANT — CONTINUED.

ing pleaded any other defense than the general denial. — *Sayward v. Carlson* ..... 29

2. *Fellow-servants.* A person employed as head carpenter in a saw-mill, to make repairs around the building and on vessels used in connection with the mill business, is the fellow-servant of a sawyer employed in the same mill. — *Id.* ..... 29

3. *Fellow-servants.* Under the facts stated, the conductor and engineer of the wild train were not fellow-servants of the workmen on the gravel train, or engaged in the same common employment. — *Northern Pacific R. R. Co. v. O'Brien* ..... 599

MECHANICS' LIENS.

1. *Notice — Description of Land — Foreclosure.* A notice of claim of mechanics' lien, which describes the land as "being seventy feet on Pike street, and on the southerly line thereof, by seventy-five feet front on Fourth street, and on the westerly line thereof, excepting a space of twenty-two feet more or less wide on Pike street by about twenty-five feet deep," is so indefinite and uncertain as to the tract excepted that a decree of foreclosure cannot be based thereon. — *Kellogg v. Littell & Smythe Mfg. Co.* ..... 407

2. *Lien on Building Separate from Land.* Under the laws of this state a mechanics' lien cannot be maintained upon a building separate from any interest in the land upon which it is situated. — *Id.* ..... 407

3. *Notice of Claim — Proof of Recording.* In an action to foreclose a mechanic's lien, a denial by defendant, on information and belief, of the recording of the notice of lien is sufficient to require plaintiff to prove that the notice has been recorded as required by law. — *Cowie v. Ahrenstedt* ..... 416

4. *Indefinite Description of Land — Attempted Aider by Judgment.* Where the claim of lien was upon the whole of a certain lot, but the proof showed that it was only upon a part of it, thirty-six feet in width, nearer the center than either side of the lot, which was sixty by one hundred and twenty feet, the description was not sufficiently definite to sustain a judgment; nor is the judgment aided by adding to such description the name of the building on the land. — *Id.* ..... 416

5. *Notice — Variance in Name of Corporation.* In a suit to foreclose a mechanic's lien against the "Installment Building and Loan Company," for material furnished the corporation itself, it is an immaterial variance where the notice of claim of lien offered in evidence described the corporation as the "Installment Building and Loan Association." — *Installment, etc., Loan Co. v. Wentworth* .. 467

6. *Defective Notice — Terms and Conditions of Contract.* Under § 1961, Code Wash. T., providing that the notice of mechanic's lien

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shall contain a statement of the demand after deducting all just credits and offsets, and also a statement of the terms and conditions of the contract, a lien notice is defective which states that the work was performed and the material furnished under a subcontract, but which does not purport to contain a statement of the terms and conditions of the contract. — *Gates v. Brown* ..... 470

7. *Lien Notice — Notary's Certificate — Seal.* In certifying the verification of a lien notice the notary must impress his official seal thereon, as such notice is not primarily intended for use in court, and is therefore not within the exception provided by § 5, Session Laws 1889-90, p. 474. — *Id* ..... 470

8. *Payment to Contractor — Lien of Materialmen and Laborers.* Code Wash. T., § 1957, provides that every person performing labor upon, or furnishing material to be used in, the construction of a building, has a lien therefor, whether furnished at the instance of the owner or his agent, and that, for the purpose of the act, every contractor, etc., shall be held to be the owner's agent. By § 1965 the owner may avoid a lien by posting a notice as therein directed. *Held* that the material-man or laborer has a lien, notwithstanding payment to the contractor. — *Spokane Lumber, etc., Co. v. McChesney* ..... 609

9. *Same — Constitutionality.* A statute giving a lien to material-men and laborers, notwithstanding payment to the main contractor, is constitutional as to future transactions. — *Id* ..... 609

See TRIAL, 13.

MORTGAGE.

1. *Mortgaged Personalty — Possession by Mortgagee.* Where, under a chattel mortgage, possession of the mortgaged goods is delivered to the mortgagee with power to sell them at private sale, the mortgagee is, in the absence of fraud, entitled to the undisturbed possession of the goods for disposal according to the terms of the contract, subject to a strict accounting for the proceeds, although the chattel mortgage may not be in the statutory form. — *Sheehan v. Levy* ..... 149

2. *Decree of Foreclosure — Confirmation of Irregular Sale.* Where there are no errors sufficient to oust the court of jurisdiction, an order confirming a sale under decree of foreclosure concludes inquiry into irregularities attending the sale, such as departure from the terms of the decree, and from the course and practice of the court. — *Parker v. Dacres* ..... 190

3. *Decedent's Estates — Presentation of Claim Secured by Mortgage — Foreclosure.* The failure to present a claim secured by mortgage upon a decedent's land to the administrator of the estate within

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one year after notice of his appointment, will not prevent a foreclosure of the mortgage where no recovery is sought beyond the proceeds of the mortgaged lands. — *Reed v. Miller* ..... 426

4. *Same — Costs and Attorney's Fees.* In a suit for foreclosure of a mortgage on real estate, where the mortgagor dies pending the suit, it is not necessary, in order to recover costs and attorney's fees, that the claim should have been presented to the administrator of the mortgagor's estate within one year after his appointment. — *Id.* ..... 426

5. *Chattel Mortgages — Necessary Terms.* A chattel mortgage is valid without words purporting to grant, sell, convey, etc.; the word "mortgage" includes all these. — *Marsh v. Wade* ..... 538

6. *Mortgaged Personalty — Rights of Mortgagee in Possession.* A mortgagee in possession of the mortgaged property, the mortgage being valid between the parties, and made in good faith, has the right of possession against all the world, and he cannot be deprived of that possession until the debt for which the mortgage is executed has been satisfied. — *Id.* ..... 538

7. *Chattel Mortgage — Recording — Purchaser with Notice.* The sole purpose of the statute of Washington Territory requiring a chattel mortgage to be recorded is to give notice by the record to subsequent purchasers or mortgagees of the property; and such subsequent purchaser or mortgagee, with full knowledge of the first mortgage, cannot resist its foreclosure on the ground that it does not properly describe the mortgaged property, or that it was not recorded at the proper place and within the time required by the statute. — *Darland v. Levins* ..... 582

See DAMAGES, 2; EVIDENCE, 11, 16; EXECUTORS AND ADMINISTRATORS, 3, 4.

MUNICIPAL CORPORATIONS.

1. *Re incorporation — Construction of Statutes.* A town incorporated under the void act of February 2, 1888 (Laws Wash. T., 1887, p. 221), entitled "An act for the incorporation of towns and villages in the Territory of Washington," may incorporate under §§ 1–3 of the act approved March 27, 1890 (Laws Wash. 1889-90, p. 131), entitled "An act providing for the organization, classification, incorporation and government of municipal corporations, and declaring an emergency." — *In re Campbell* ..... 287

2. *Same — Territory.* Towns which attempted to incorporate under the void act of February 2, 1888, may incorporate under the act of March 27, 1890, with a larger territory than that included in the original boundaries. — *Id.* ..... 287

3. *Extension of Corporate Limits — Repeal of Act by Implication.* The act of the legislature approved February 26, 1890 (Laws Wash.

MUNICIPAL CORPORATIONS — CONTINUED.

1889-90, p. 227), entitled "An act to provide for extending and enlarging the corporate limits of any city, town or village in this state, and for consolidating and uniting cities, towns and villages, and declaring an emergency," is repealed by implication, by the act approved March 27, 1890 (Laws 1889-90, p. 131), on the same subject, entitled "An act providing for the organization, classification, incorporation and government of municipal corporations, and declaring an emergency." — *Com'rs of King Co. v. Davies* ..... 290

4. *Municipal Indebtedness — Construction.* Article 8, § 6, of the constitution of the State of Washington, provides that no city shall, for any purpose, become indebted in any manner exceeding 1½ per cent. of the taxable property in such city, without the assent of three-fifths of the voters therein, voting at an election to be held for that purpose, nor shall the total indebtedness thus assented to at any time exceed 5 per cent. on the value of the taxable property therein; but "any city or town, with such assent, may be allowed to become indebted to a larger amount, not exceeding 5 per cent. additional, for supplying such city or town with water, artificial light, and sewers, when the works for supplying such water, light, and sewers, shall be owned and controlled by the municipality." *Held*, that a municipal corporation may become indebted, for the purpose of providing a water and sewerage system, in any sum, provided the total municipal indebtedness does not exceed ten per cent. of its last assessment roll. — *Metcalfe v. Seattle* ..... 297

5. *Same — Elections.* The majority of three-fifths of the voters necessary to carry an election for the increase of municipal indebtedness above 1½ per cent. of the assessment roll, is three-fifths of those persons who actually vote at the election, and not three-fifths of all those who may have the right to vote thereat. — *Id.* ..... 297

6. *Charter Restrictions — Corporate Powers Increased by Legislature.* Although the charter of the city of Seattle (Laws Wash. 1886, p. 224) granting said city power to erect and maintain water-works, provided that no such works should be erected "until a majority of the voters of the city, at a general election of the city, shall vote upon the same," which clause is unrepealed by any later law, yet by the acts of February 26, and March 26, 1890 (Laws 1889-90, pp. 225, 520), authorizing cities to extend their indebtedness and construct, purchase and maintain water-works with the proceeds of long-time bonds, a new power is conferred upon said city, and the question of issuing bonds for such improvements may be submitted at a special election held for that purpose. — *Yesler v. Seattle* ..... 308

7. *Same — Ordinances — More than One Subject.* The act of March

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26, 1890, authorizing the city council or board of trustees of any city or town to provide by ordinance for submitting to vote of the people plans for "either or both such water-works, or system of sewerage, or plant or works for lighting purposes," is a general law applicable to all incorporated cities and towns, and clearly authorizes ordinances on this subject to be either single, double or triple; and accordingly suspends the restrictive clause in § 78 of the charter of the city of Seattle, "that no ordinance shall contain more than one subject, which shall be clearly expressed in the title." — *Id.* ..... 308

8. *Ordinances — Record — Correction.* The record of an ordinance was made by the city clerk from a correctly printed copy, the original having been lost. Subsequently the city attorney undertook to prepare a substitute for the original, but by mistake he worded it differently in some particulars. This substituted copy was signed by the mayor and clerk, and placed on file in the latter's office. Afterwards, an assistant clerk, without authority from any one, erased and interlined the recorded ordinance to make it conform to the substituted copy. *Held,* that showing these facts was not the impeachment of a record, and that the ordinance, as originally recorded by the clerk, before the erasures and interlineations were made, was the true ordinance. — *Id.* ..... 308

9. *Water and Sewer Systems—Issuance of Bonds by Assent of Voters —Subsequent Modification of Terms of Bonds by Ordinance of City Council.* Where the statute provided that, if the voters of a city duly assented thereto, the city might issue bonds to cover the cost of water, sewer and light systems, the bonds to run for not more than twenty years, with interest at not less than six per cent. per annum, principal and interest to be payable at such place as may be designated, and an ordinance of the city of Seattle submitting such a proposition to the voters thereof, provided that the bonds should be sold at par, bear five per cent. interest, and be payable at the office of the city treasurer, and the proposition was assented to by the voters of the said city in that form, the city council of said city may subsequently, in the absence of fraud, without again submitting the proposition to the people, provide by another ordinance that the bonds shall be sold at a discount, bear a greater rate of interest, provided the same does not exceed six per cent., and be made payable at a different place from that fixed in the original ordinance. — *Id.* .... 308

10. *Bonds — Date of Issue.* Where the statute requires that such bonds "shall bear the date of their issue," it is not a violation thereof for the bonds to be prepared and dated July 1, 1890, and not negotiated until several months thereafter. — *Id.* ..... 308

MUNICIPAL CORPORATIONS — CONTINUED.

11. *Same — Must be Signed by Mayor in Office at Time of Execution.* Where a statute required bonds to be signed by the mayor of the city, the person holding that office when the occasion arrived for executing them would be the proper party to affix the official signature of the mayor, though the bonds bore date prior to his entry into office. — *Id.* ..... 308

12. *Fire Limits — Wooden Buildings.* Where the charter of a city confers "power to make regulations for the prevention of accidents by fire," and "to prevent, by all possible and proper means, danger or risk of injury or damages by fire arising from carelessness, negligence or otherwise," said city is authorized to establish fire limits, and prevent the erection of wooden buildings therein.— *Olympia v. Mann* ..... 389

13. *Same — Permits — Ordinance.* An ordinance establishing fire limits, and providing that no wooden building shall be constructed therein, except a permit therefor be granted by the city council, is not unreasonable nor unduly oppressive, as its burdens are cast alike upon all persons within the limits of the district prescribed by it. — *Id.* ..... 389

14. *Road Taxes — Tacoma Charter — Effect of Subsequent General Legislation.* Section 3 of the act approved February 4, 1886, incorporating the city of Tacoma, which provides that the county commissioners of Pierce county shall have no jurisdiction to assess, levy or collect any road property or road poll tax upon the property or inhabitants of said city, is not repealed or affected in any way by the general act approved March 28, 1890, providing "for the assessment and collection of taxes in the State of Washington," nor by the act of March 7, 1890, "to provide for keeping highways in repair."— *Tacoma Land Co. v. Pierce County* ..... 482

See CONSTITUTIONAL LAW, 1, 5, 9; HIGHWAYS, 1; NEGLIGENCE, 7, 8; STATUTES, 3, 5.

MURDER. See ARSON, 2; HOMICIDE, 1, 2; INDICTMENT, 1, 2.

NEGLIGENCE.

1. *Setting Out Fire — Contributory Negligence.* In an action for damages for the destruction of logs by fire, negligently set by defendant in opening a street, the fact that plaintiff had cut the logs, upon lands adjoining the street, in the month of February, and had left them upon the ground where cut, lying in the midst of thick brush and weeds, which extended to the limits of said street, until their destruction in August, does not constitute contributory negligence on the part of plaintiff. — *Tacoma Lumber, etc., Mfg. Co. v. Tacoma* ..... 12

2. *Same — Instructions.* Under such circumstances, an instruction

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by the court that it was a question for the jury to decide whether the negligence of plaintiff contributed to the loss, is erroneous. — *Id* ..... 12

3. *Personal Injuries — Contributory Negligence.* The evidence showed that plaintiff was employed in defendant's saw-mill, and had been assigned to begin work at 8 o'clock, on an upper floor; that he arrived early, and went into the engine room across the open space from the mill to talk with the fireman, whence he afterwards went across the yard and alongside the mill, to the water-closet, being injured on the way by a timber thrown from a window of the mill. If he had gone directly to the room in which he was to work, and thence by the usual way to the closet, he would not have been injured. There was no rule prohibiting the men from going into the mill by the route adopted by plaintiff, nor requiring them to reach the second story by the front stairs. *Held*, that plaintiff was not guilty of contributory negligence. — *Sayward v. Carlson*..... 29

4. *Dangerous Premises — Unfastened Turn-table — Injuries to Child.* In an action against a railway company for negligence in not properly securing a turn-table, whereby a child six years of age received injuries causing death, the fact that, prior to the accident, an agent of the company tied the turn-table with a rope so that it could not be revolved unless the rope were cut or untied, does not relieve the company from liability for its negligence in not adopting securer fastenings, where it is shown that the agent knew children were attracted to the machine, and were in the habit of playing upon it, and that the method of securing it had in the past proved insufficient. — *Ilwaco, etc, Nav. Co. v. Hedrick*..... 446

5 *Same — Custom — Inadmissible Evidence.* Evidence of the custom of railways to keep turn-tables unfastened at all times, whether in actual use or not, and whether enclosed or in an open public place, is inadmissible in an action against a railway company to recover for the death of a child of tender years, injured by reason of the company's unlocked turn-table. — *Id*..... 446

6. *Injuries to Child — Question of Survival as affected by its Health Irrelevant.* In an action against a railway company for the death of a child, caused by the negligence of the company in leaving a turn-table unfastened, where the attending physician had testified that the child, who was frail and weak, died from injuries received at the turn-table, it was not error for the court to exclude a question to such witness as to "whether or not, if the child had been a healthy child, it would have survived the injury." — *Id*..... 446

7. *Defective Roadway — Wharves — Pleading.* In an action for damages for injuries resulting from the negligent construction and

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maintenance of a wharf, where the complaint alleged that the right and privilege to construct and maintain said wharf "in and upon Tyler street," had been given by an ordinance of the city of Port Townsend, and also contained allegations showing that where the wharf was built, and the plaintiff injured, was not "in and upon Tyler street," but about one hundred feet from the land of Tyler street and out over the water, the complaint states facts sufficient to charge the defendant, and not the city, with the duty of maintaining the wharf in proper condition for travel. — *Morgan v. Morley* ..... 464

8. *Same — Liability.* Plaintiff brought an action to recover damages for injuries alleged to have been sustained by reason of the negligent construction and maintenance of a wharf in a certain street. The special findings of fact showed that the said street was 73 feet wide; that by an ordinance of the city the defendant's grantor had been given the right to erect and maintain a wharf for a distance of 15 feet on each side of the center of said street, that the defendant's grantor, when building the roadway for said wharf, extended the planks to 16 3-10 feet from the center of said street, except one plank; which was 4 inches shorter, and put a guard rail alongside of the roadway; that subsequently the persons who were in possession of the land on each side of said street, removed the railing and planked over the intervening space on each side of said roadway, except at the point where the plank was short, thus leaving a small opening in the roadway or street, which was 16 3-10 feet from the center line of said street; the plaintiff while walking along said roadway, in the exercise of due care, was injured by stepping into said opening. *Held*, that the negligence, if any, in leaving the hole, was not the negligence of defendant or his grantor. — *Id* ..... 464

See CONSTITUTIONAL LAW, 3; EVIDENCE, 18, 20; HIGHWAYS, 2; MASTER AND SERVANT, 1; RAILROAD, 5; TRIAL, 12.

NEGOTIABLE INSTRUMENTS.

1. *Promissory Note — Indorsement — Consideration.* Where one becomes a party to a note as an indorser thereof before delivery, he identifies himself with the maker; and the settlement of a pre-existing debt, owing from the maker to the indorsee, is sufficient consideration to uphold the contract of indorsement. — *Wilkie v. Chandon* ..... 355

2. *Same — Demand — Waiver.* A waiver of protest on a promissory note executed and indorsed in California waives presentment and notice, under the laws of that state, and in a suit thereon in this state it is unnecessary to prove a demand. — *Id* ..... 355

NEW TRIAL.

*Excessive Verdict.* Where, in such action, the evidence shows the value of all the property covered by the chattel mortgage was about $1,200; that only a portion of such property was converted by the defendant, and that the value of the goods not taken by him was at least $700, plaintiff can only recover the value of the goods converted, not exceeding in amount the balance unpaid upon the mortgage, and a verdict for $1,000 will be set aside as excessive. — *Brotton v. Langert* ..... 227

NON-RESIDENT. See APPEARANCE, 2; JUDGMENT, 1; JURISDICTION.

NOTARY PUBLIC. See MECHANICS' LIENS, 7.

NOTICE. See APPEAL AND ERROR, 8, 9, 13, 24, 28; EXECUTIONS; MECHANICS' LIENS, 1, 3, 5, 6, 7; MORTGAGE, 7.

NOVATION. See PARTNERSHIP, 2, 3.

NUISANCE.

*Judgment Against Lessee — Liability of Lessor.* The lessee of certain premises indicted for maintaining a nuisance thereon by keeping a house of ill-fame, pleaded guilty thereto, and an order was issued to the sheriff to abate the same. Before the sheriff attempted to execute the order, the lessee surrendered possession of the premises to the owner, the plaintiff in error therein. About five months after the order was issued, the sheriff placed a keeper in charge of the premises, and after keeping him there for some time at an alleged expense of five dollars per day, the sheriff made an affidavit alleging that on investigation he had discovered that the nuisance was being continued by plaintiff in error, and that he had been obliged to place a keeper in charge, and asking that an order be issued against her to show cause why an execution should not issue against her property to pay the costs and charges so incurred. The plaintiff in error demurred to said affidavit, the demurrer was overruled, and judgment given against her for said expenses. *Held,* that the keeping of a house of ill-fame on the premises by plaintiff in error was not a continuance of the nuisance for which her lessee had been indicted, and she could not be held responsible without a regular proceeding against her. — *Coffer v. Territory.* 325

OFFICERS. See INJUNCTION; MUNICIPAL CORPORATIONS, 11.

ORDINANCES. See MUNICIPAL CORPORATIONS, 7, 8, 13.

PROCESS. See WRIT AND PROCESS.

PARTIES. See APPEAL AND ERROR, 8, 24.

PARTNERSHIP.

1. *Evidence of Partnership.* In an action to charge two persons as partners for the price of brick used in the construction of a certain building, the partnership is not established by evidence that the defendant denying partnership was working with his co-defendant, that he wrote an acknowledgment of the receipt of the brick and of the amount still due thereon, which was not signed by him but by his co-defendant alone, and that he had said something about his being as much a contractor on the building as anyone. — *Cowie v. Ahrenstedt* ..... 416

2. *Liability of Retiring Partner — Novation.* An agreement between two partners upon the dissolution of partnership that the debts of the firm shall be assumed and paid by one of them, is of no effect as against a creditor of the firm, although notified of such arrangements unless the creditor assents thereto; and mere silence on the part of the creditor, or delay in making demand, is not evidence of such assent. — *Wadhams v. Page* ..... 420

3. *Same — Novation — Preponderance of Evidence.* In an action by a creditor against a retiring partner to recover a partnership debt, an answer alleging that the creditor had agreed to look to the other partner for its payment, is an affirmative defense, and, as such, must be proved by a preponderance of the evidence, and it is error to instruct the jury that "it is not necessary that he prove it by more testimony than against it." — *Id.* ..... 420

See JUDGMENT, 4; LEVY AND SEIZURE, 3.

PLEADING.

1. *Change of Corporate Name — Defects Cured by Judgment — Answer.* A complaint alleged that the plaintiff company was duly incorporated as "The Ilwaco Steam Navigation Company," and afterwards, by order of, and pursuant to, a vote of its stockholders, at a meeting called for that purpose, the name was changed to the "Ilwaco Railway and Navigation Company;" and there was no allegation that supplemental articles were filed, as required by Code Wash. T., § 2422. After answer and reply were filed, judgment was entered on the pleadings in favor of plaintiff. *Held,* all reasonable intendments will be taken in favor of the pleadings to support a judgment, and it will be inferred that such articles were filed. — *King v. Ilwaco, etc., Nav. Co* ..... 127

2. *Same.* Where the attempt to change the corporate name was futile, either because there was no law authorizing it, or because the law was not complied with, and enough appears in the complaint to identify the company under one of two names, the defect will not be held fatal after judgment. — *Id.* ..... 127

3. *No Issue — Judgment on Pleadings.* Where the answer to a complaint fails to deny any material allegation thereof, and the affirm-

PLEADING — CONTINUED.

ative matter pleaded in answer totally fails to constitute any defense, no issue is raised, and there is no error in rendering judgment for plaintiff on the pleadings.—*Id.* ..... 127

4. *Forcible Entry and Detainer.* In an action for forcible entry and detainer, an answer alleging that defendant had been in the quiet possession of the premises for more than one year preceding the filing of the complaint, but which fails to allege that defendant's estate in the premises had not ended, is insufficient under the provisions of § 1836, Code Wash. T.—*Bellingham Bay, etc., Co. v. Strand*..... ..... 133

5. *Reply in Justice's Court.* The failure of plaintiff to reply to the defendant's allegation of quiet possession for more than one year, in an action before a justice of the peace, cannot be regarded as an admission of its truth, as, under § 1757, Code Wash. T., all new matters in the answer constituting a defense, except set-off, are presumed to be denied.—*Id.*..... 133

6. *Wrongful Seizure — Allegation of Value.* In an action against a sheriff for wrongfully seizing and selling goods mortgaged to secure an indebtedness, it is not necessary to plead their value at the time of taking, where no elements of special damage are alleged; but, in order to support a judgment in such case for the amount of the debt, there must be evidence as to the value of the goods seized.—*Sheehan v. Levy*..... ..... 149

7. *Special Damages.* An item of special damage, which, though recoverable, was not alleged in the complaint, cannot be included in the judgment.—*Id.*..... 149

8. *Demurrer — Misjoinder of Causes.* Where two causes of action are improperly joined, the failure of the court to pass upon a demurrer on that ground is not cured by sustaining a demurrer to one of the paragraphs for want of sufficient facts to state a cause of action.—*Penter v. Staight*..... 365

9. *Rescission of Contract — Common Count.* Where plaintiff, under a contract by which defendant was to execute to him a conveyance of certain land on delivery of a quantity of wheat, evidenced by "wheat notes," delivered the wheat, and afterwards rescinded the contract on account of failure of title, the correct form of pleading, under the code, in an action to recover the value of the wheat, is the common count for goods sold and delivered, omitting all reference to the actual contract.—*Ankeny v. Clark*..... 549

10. *Reply — Departure.* Where the answer sets up that the wheat in question was delivered in payment of certain wheat notes, a reply setting up the contract for sale of the land, defendant's want of

PLEADING — CONTINUED.

title, etc., is not inconsistent with, nor a departure from the complaint. — *Id.* .....

11. *Omissions in Reply — Amendment.* The omission to plead in the reply a rescission of the contract, which does not mislead defendant, nor affect his substantial rights, may be cured by amendment at any stage of the proceedings. — *Id.* ..... 549

12. *Construction.* After verdict, when no motion has been made to make more definite and certain, the pleadings will be liberally construed to sustain the judgment. — *Johnson v. Leonhard* ..... 564

13. *General Demurrer — Complaint Good in Part.* Plaintiff agreed to freight certain produce to a certain point at so much per pound, and defendants agreed to pay the full amount of the freight charges at the specified rates on delivery of the shipping receipts. Plaintiff alleged in his complaint part performance of the contract, and that defendants refused to permit him to complete it, or to perform on their part, and asked damages for the breach. *Held*, that, there being no mention in the complaint of payment had on the part performed, it would be assumed that the suit was brought for that as well as for that unperformed, and hence a demurrer was properly overruled. If any part of a complaint is good it will stand against a general demurrer. — *McCartney v. Glassford* ..... 579

See APPEAL AND ERROR, 1, 37; ATTACHMENT, 1; CORPORATIONS, 1; EVIDENCE, 7, 8; FRAUD; MECHANICS' LIENS, 3; PARTNERSHIP, 3; RAILROADS, 3; SPECIFIC PERFORMANCE, 1, 2.

PLEDGE. See EVIDENCE, 16.

POWER OF ATTORNEY. See EVIDENCE, 6.

PRINCIPAL AND AGENT.

*Real Estate Broker — Contract of Conveyance.* Under a verbal authority to sell land, a real-estate agent or broker has no power to enter into a contract of conveyance binding upon his principal. — *Carstens v. McReavy* ..... 359

See EVIDENCE, 10; INDICTMENT, 3; INSURANCE, 5.

PROBATE COURTS. See COURTS, 2, 3; EXECUTORS AND ADMINISTRATORS, 5, 7.

PUBLIC LANDS.

1. *Homestead Entry — Power to Mortgage.* Section 4 of the act of congress granting homesteads to actual settlers on public lands (Rev. St. U. S., § 2296), providing "that no lands acquired under the provisions of this act shall in any event become liable to

PUBLIC LANDS — CONTINUED.

the satisfaction of any debt or debts contracted prior to the issuing of the patent therefor," does not prevent the settler from making a valid mortgage upon the land after receiving his certificate of entry, but before he receives a patent. — *Boggan v. Reid*.. 514

2. *Entries on Railroad Lands — Trespass.* An entry upon inclosed and improved land occupied and claimed under a certificate from a railroad company is not authorized by 23 U. S. St. at Large, 321, forbidding the fencing of public land, or preventing settlement thereon, but the person so entering is a naked trespasser. — *Laurendeau v. Fugelli*..... 559

3. *Entry on Coal Lands — Public Policy.* When a person has entered as much coal land as the statutes of the United States permit, a contract whereby another person is to enter additional coal land, obtain the title, and then convey it to the first, is contrary to public policy. — *Johnson v. Leonhard*..... 564

4. *Land Grant to Missionary Stations in Oregon Territory — Construction.* Organic act Or., § 1, provided "that the title to the land, not exceeding 640 acres, now occupied as missionary stations among the Indian tribes of said territory, together with the improvements thereon, be confirmed and established in the several religious societies to which said missionary stations, respectively, belong." *Held*, that the grant was confined to land occupied as a mission station, and to not exceeding 640 acres, including improvements. If, in any case, there was no land so occupied, no land was granted; if less than 640 acres was so occupied, then only the less quantity was granted. — *Catholic Bishop of Nesqually v. Gibbon*..... 592

5. *Same.* The purpose of the grant, as shown by the history of the time, was to encourage settlement in that territory by American settlers, and to reward them for overcoming British occupation, and not to grant land to British subjects, nor to foreigners, nor to those acting under the Hudson Bay Company. — *Id*..... 592

See EQUITY, VENDOR AND VENDEE, 3; WATERS AND WATERCOURSES, 1, 3, 5.

PUBLIC POLICY. See PUBLIC LANDS.

RAILROADS.

1. *Law of the Case.* Sections 1 and 8 of act of November 28, 1883 (Laws Wash. T. 1883, p. 51), held constitutional, and the remainder of the act invalid, following *Dacres v. O. R. & N. Co.*, which decision is accepted as the law of this case. — *O. R. & N. Co. v. Dacres*..... 195

2. *Killing Live Stock — Liability.* Under the valid sections of the above mentioned act a railroad company is liable for killing live

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stock, unless its track is fenced, whether it owns or operates the railroad; and it is liable as owner, although it may have previously leased the road to some other company or corporation. — *Id*..... 195

3. *Same — Cause of Action.* Where it appears from the complaint that defendant's railroad track crossing plaintiff's farm was unfenced, and that plaintiff's bull went upon the track from said farm, without plaintiff's fault, and was killed, a cause of action is stated. — *Id*..... 195

4. *Negligence — Setting out Fires — Instructions.* In an action against a railroad company for setting fire to the premises of the plaintiff, an instruction that "if an expert testifies that he operated the locomotive at that time with due care and thought, and it was so constructed that it would not set fire as thus operated, and the jury believe from the evidence that it actually did set fire at that time, the jury are to consider which of these proofs they will believe, the former or the latter," is erroneous, because it in effect instructed the jury that the only question in dispute was the setting out the fire, and that if they believed that the fire was set out by the engine, they must find for the plaintiff. — *Columbia, etc., R. R. Co. v. Farrington*..... 202

5. *Failure to Fence — Evidence of Negligence.* Section 1 of the act which makes the railroad company liable for stock killed on the railroad is not merely declaratory of the common law, but, as shown by § 8, which removes the liability, if proper fence is maintained, the statute makes failure to fence evidence of negligence. *Dacres v. O. R. & N. Co.*..... 525

See CONSTITUTIONAL LAW, 3; EVIDENCE, 18; NEGLIGENCE, 4, 5; STATUTES, 6, 7; TRIAL, 12.

REAL PROPERTY.

*Registration of Deeds — Indexing — Constructive Notice.* Under the registry law of this state (Session Laws 1869, p. 313), the depositing of a deed for record in the office of the county auditor does not operate as constructive notice to the public; it is necessary that the deed be duly recorded in the proper record, and properly indexed, the index being an essential part of the record. *Ritchie v. Griffiths*..... 429

RECEIVERS.

*Leave to Sue — Waiver.* A receiver cannot be sued except upon leave of the court appointing him, first obtained. A receiver is jurisdictional, and cannot be waived by him, and under Code Wash. T., § 81, the question may be raised at any stage of the case in the district or supreme court. — *Brown v. Rauch*..... 497

RECORD. See MORTGAGE, 7; MUNICIPAL CORPORATIONS, 8; REAL PROPERTY.

REDEMPTION. See EXECUTIONS; EXECUTORS AND ADMINISTRATORS, 4.

REGISTRATION. See MORTGAGE, 7; REAL PROPERTY.

REMOVAL OF CAUSES. See COURTS, 1.

REPLEVIN.

1. *Allegation of Ownership — Interest as Mortgagee — Fatal Variance.* In an action of replevin, where personal property had been mortgaged to plaintiffs by third parties, and afterwards, but prior to the maturity of the debt, delivered by the mortgagors to defendant, it is a failure of proof, and not a mere variance curable by amendment, to prove the existence of the mortgage in support of the allegation of plaintiff's ownership. — *Silsby v. Aldridge*..... 117
2. *Same—Bill of Sale as Mortgage.* In an action for the possession of personal property, where plaintiff claims as owner under a bill of sale from a third party, and the proof shows that he is merely a mortgagee, he cannot recover. — *Kerron v. North Pacific, etc., Mfg. Co*..... 241
3. *When Title to Land Inquired Into.* In replevin for hay which plaintiff claims by reason of his alleged ownership of the land on which it was grown, and of which defendant has possession, the title to the land may be inquired into. — *Laurendeau v. Fugelli*.. 559

See EVIDENCE, 11, 15, 16; TRIAL, 8.

RESCISSION. See CONTRACT, 5; PLEADING, 9; VENDOR AND VENDEE, 4.

RES GESTAE. See EVIDENCE, 12.

RULES OF COURT. See APPEAL AND ERROR, 27, 33, 34, 39; HABEAS CORPUS, 3.

SALE. See COMPROMISE; CONTRACTS, 2.

SEAL. See MECHANICS' LIENS, 7.

SET-OFF. See CONTRACTS, 5.

SHERIFFS AND CONSTABLES.

*Wrongful Levy — Indemnity from Execution Creditor.* A sheriff who, under express directions of a creditor, attaches property pointed out to him by the latter, and does not know or have notice that

SHERIFFS AND CONSTABLES — CONTINUED.

it is the property of another than the debtor, may recover indemnity of the attaching creditor after judgment against the sheriff for the wrongful levy. — *Standley v. Marsh* ..... 512

See APPEAL AND ERROR, 25; DAMAGES, 2; GAMING, 3; LEVY AND SEIZURE, 1, 2, 3; PLEADING, 6.

SPECIFIC PERFORMANCE.

1. *Pleading — Insufficient Allegations.* In an action against the obligor in a title bond, and a railroad company, as defendants, to enforce plaintiff's right to the deed to certain premises, the complaint alleged that the obligor and the railroad company both claimed the same lands; that the obligor executed a bond to plaintiff to convey to him a certain portion of said lands, whenever he obtained title to the same; that, in compromise of a suit by the obligor against the railroad company, the disputed lands were divided between them, and that the railroad company obtained the tract bonded to this plaintiff, with full knowledge of plaintiff's rights under said bond. There were no proper allegations in the complaint showing the facts constituting the right of the obligor to a conveyance from the railroad company, and there were no allegations of fraud on the part of defendants. *Held,* that the complaint did not state facts sufficient to constitute a cause of action. — *Freytag v. Northern Pacific R. R. Co* ..... 214

2. *Demand.* In such an action, in order to put the railroad company in default, a demand upon it for a conveyance should have been alleged. — *Id.* ..... 214

See LANDLORD AND TENANT, 2.

STATUTES.

1. *Invalid in Part—Interdependent Sections.* Sections 1 and 8 of the above mentioned act are interdependent with §§ 2 to 7 of the same act (heretofore declared unconstitutional), and must fall with them; and the case of *Dacres v. O. R. & N. Co.*, holding that §§ 1 and 8 are capable of being executed in accordance with the apparent legislative intent, wholly independent of §§ 2 to 7, is overruled — *O. R. & N. Co. v. Smalley* ..... 206

2. *Repeal by Implication.* Where there is a conflict in the statutes on the same subject passed by the legislature at the same session, and the result of action under the one would be substantially different from what it would be under the other, the statute last enacted will prevail, and the prior statute will be considered as having been repealed by implication. — *Com'rs of King County v. Davies* ..... 290

3. *Title of Act — Scope.* The title of the act approved March 27, 1890, in relation to the incorporation of cities and towns, is broad

STATUTES — CONTINUED.

enough to include the sections in the act providing for their enlargement and consolidation. — *Id.* ..... 290

4. *Repealing Clause of Void Act.* Where an act containing a clause repealing a former law is declared void, the former law remains in force. — *In re Rafferty* ..... 382

5. *Special Acts — Repeal by Implication.* A special act incorporating a municipality, and conferring upon it unusual powers and duties, is not impliedly repealed by a subsequent general statute treating at large of the whole subject of which the special statute treats in part, although the general statute may contain words repealing all acts and parts of acts in conflict with its provisions. Such subsequent general legislation must be clearly applicable to the provisions of the charter, in order to modify or abrogate them. — *Tacoma Land Co. v. Pierce County* ..... 482

6. *Invalid in Part.* Sections 1 and 8 of the act making the railroad company liable for all stock killed on the track, unless it is fenced, are constitutional, and are not so connected with the rest of the act as to become invalid therewith. — *Dacres v. O. R. & N. Co.* .... 525

7. *Subject Expressed in Title.* The title of the act being "An act to secure to the owners of live stock payment of the full value of all animals killed or maimed by railroad trains," sections 1 and 8 are not invalid, as embracing more than one object not sufficiently expressed in the title. — *Id.* ..... 525

8. *Construction by Other States.* Decisions of another state construing a statute contrary to its plain import will not be followed in construing a similar statute subsequently enacted here especially where such statute has been adopted in other states, and has been there construed according to its terms, before adoption here. — *Spokane Lumber, etc., Co. v. McChesney* ..... 609

See CONSTITUTIONAL LAW, 4, 5, 8; GAMING, 1; MUNICIPAL CORPORATIONS, 1, 2, 3, 6, 7, 9, 10, 14; RAILROADS, 1, 5.

STOCK AND STOCKHOLDERS. See CORPORATIONS.

SUPREME COURT. See HABEAS CORPUS, 2, 3, 4, 5.

SURETIES. See APPEAL AND ERRORS, 7, 8.

TAXES. See INJUNCTION; CONSTITUTIONAL LAW, 10; MUNICIPAL CORPORATIONS, 14.

TIME. See CONTRACTS, 2, 6.

TITLE. See COURTS, 2; ESCHEAT; EVIDENCE, 6; REPLEVIN, 3; VENDOR AND VENDEE, 3; WATERS AND WATERCOURSES, 6.

TRESPASS. See PUBLIC LANDS, 2.

TRIAL.

1. *Uncertain Verdict.* In an action for use and occupation a verdict assessing "damages at $3,050, and legal interest," is bad for uncertainty, and will not sustain a judgment unless the words "and legal interest" be treated as surplusage. — *Meeker v. Gardella*... 139

2. *Excessive Verdict.* Where, by the terms of a contract, payment was to be made within sixty days from the presentation to defendant, at San Francisco, of a draft drawn by its agent in this state, and there was no proof that the draft was ever issued, though payment was demanded of the agent several days after the contract was made, a judgment, including interest from a date sixty days after the making of the contract, was unauthorized. — *Western Mill, etc., Co. v. Blanchard*..... 230

3. *Competency of Juror — Impressions.* Where a juror states that he has impressions as to the merits of the cause about to be tried, it is not error to exclude his answer to the question, whether or not such impressions are favorable to defendant. — *White v. Territory*..... 279

4. *Special Findings by Jury — Exclusion of Interrogatories.* Where no demand is necessary to bind the indorser, it is not error for the court to exclude an interrogatory to the jury as to whether plaintiff demanded payment of the maker of a promissory note before the commencement of suit. — *Wilkie v. Chandon*..... 355

5. *Same.* An interrogatory to the jury asking whether defendant "signed the note as maker, surety or indorser" was properly refused, where the undisputed proof showed that he signed the same as indorser; and also for the reason that the jury might answer in which of said capacities he signed, or might answer "yes" or "no" as to the entire question. — *Id*..... 355

6. *Trial by Court — Findings of Fact.* A recital in a judgment that "the court finds the matters and things set forth in the complaint are true" is not a sufficient finding of facts, as required by § 246, Code Wash. T.; especially when the reply admits that one of the allegations of the complaint is untrue. — *Bard v. Kleeb*..... 370

7. *Same — Findings of Fact — Sufficiency.* Upon the trial of an issue of fact by the court, an order of the court reciting that it is its decision "that there is not sufficient evidence to support the allegations of plaintiff's complaint in this action, and that the defendant's allegations are true," is not a sufficient

TRIAL — CONTINUED.

finding of facts, as required by Code Wash. T., §§ 246, 256, where some of the material allegations of the complaint are not denied by the answer, and many of plaintiff's most important allegations are contained in its reply.— *King County v. Hill*..... 404

8. *Replevin — Misleading Instruction.* An instruction to the jury that "the plaintiff claims that the defendant detains her property, fifty head of neat cattle. . . . . The defendant denies that he detains any of said property; so as to the cattle, the issue is clear and positive," is misleading, because it ignores the question of ownership, or right of possession of the property. — *Chamberlin v. Winn*..... 501

9. *General Verdict Controlled by Special.* Where, in an action against an original subscriber for unpaid installments of his subscription, his defense being that he has transferred his shares in the manner mentioned, the general verdict is for plaintiff, but the jury find specially that defendant sold the shares by indorsement on the back thereof, which transfer was entered on plaintiff's book, and that a new certificate was issued in lieu of the one assigned, the judgment should be entered for defendant on the special findings, they being inconsistent with the general verdict. — *Stewart v. Walla Walla, etc., Pub. Co*..... 521

10. *Right to Jury Trial.* Act Wash. T., 1883, §§ 2-7, providing that when stock is killed on a railroad the value shall be ascertained by appraisers in a prescribed manner, and the amount shall thereupon become due and payable, are unconstitutional as denying the right of jury trial.— *Dacres v. O. R. & N. Co*..... 525

11. *Reception of Dying Declarations — Preliminary Examination.* When, in a trial for murder, the dying declarations of the deceased are offered in evidence, and a preliminary examination is made to determine whether such declarations were made by the deceased in view of speedy death, the extent of such preliminary hearing is within the discretion of the trial court, and reviewable only when it appears that such discretion has been abused. — *Klehn v. Territory*..... 584

12. *Instructions — Negligence.* The plaintiff, with others, was employed as a laborer by the defendant in "surfacing" defendant's track. While being taken to his work by a gravel train furnished for that purpose by defendant, the plaintiff was injured by a collision with a "wild train" in charge of defendant's servants. The gravel train was on its regular time, and the "wild train" had orders to flag it. The rules of the defendant company required the person flagging to be three-fourths of a mile ahead of the flagging train, but the "wild train" followed within four hundred feet of its flagman, whose signal, by reason of a

TRIAL — CONTINUED.

curve in the road, could not be seen by the gravel train till upon it. The engine of the wild train was so disabled that it could not be quickly started or stopped. These facts being undisputed, an instruction to the jury that it was gross negligence for the wild train to be where it was when the collision occurred was not error, as the facts, undisputed, are such as to enable the court to say, as a matter of law, that they constitute negligence. — *Northern Pacific R. R. Co. v. O'Brien* ..... 599

13. *Right to Jury — Foreclosure of a Mechanics' Lien.* The foreclosure of a mechanics' lien being a proceeding properly cognizable in a court of equity, the defendant in such a suit cannot, by setting up a claim for damages for breach of contract, demand a trial by jury, although the statutes of this state give him the right to interpose such legal defense. — *Installment, etc., Loan Co. v. Wentworth* ..... 467

See APPEAL AND ERROR, 5, 10; CRIMINAL LAW, 1, 2; MASTER AND SERVANT, 1.

TRUSTS. See ACTIONS; CORPORATIONS, 2.

USE AND OCCUPATION. See DAMAGES, 1; LANDLORD AND TENANT, 1.

VARIANCE. See MECHANICS' LIENS, 5; REPLEVIN, 1.

VERDICT. See NEW TRIAL; TRIAL, 1, 9.

VENDOR AND VENDEE.

1. *Breach of Contract — Damages.* Where plaintiff, under a parol agreement to convey land, takes possession thereof, makes improvements, and purchases lumber for the purpose of erecting a house thereon, and the defendant subsequently conveys the land to another, the measure of damages in an action for breach of the contract is the value of the land at the time of the breach, less the price the plaintiff was to pay therefor, together with any special damages the plaintiff might prove in purchasing lumber to erect buildings on the premises. — *Cade v. Brown* ..... 401

2. *Same.* Where an action for specific performance of contract cannot be had because of the inability of the defendant to convey, he having parted with the title, and the action cannot be maintained against his vendee, the plaintiff may maintain an action at law against defendant for damages for breach of the contract. — *Id.* .. 401

3. *Contract for Conveyance — Title in United States.* A contract to sell and convey land cannot be satisfied where the title is in the United

VENDOR AND VENDEE — CONTINUED.

States, and the vendor has merely an equity. The vendee is entitled to a good legal title. — *Ankeny v. Clark* ..... 549

3. *Rescission — Bond for Deed — Cancellation.* A bond for deed being under Code Wash. T., § 2311, an incumbrance on the land, the vendor has a right, on rescission of the contract by the vendee, to have the bond canceled. — *Id.* ..... 549

See CONTRACTS, 2; SPECIFIC PERFORMANCE.

WATERS AND WATER-COURSES. See ACTIONS; ESTOPPEL.

1. *Appropriation of Water — Rights of Patentee.* The prior appropriator of the flow of any water over the public lands of the United States has, by a local custom which is recognized by the United States, a vested right therein, which cannot be defeated by one who, having consented to such appropriation, subsequently files a homestead entry and obtains a patent for the land. — *Thorpe v. Tenem Ditch Co* ..... 566

2. *Same — Custom.* Conceding that the statutes of Washington Territory of 1873 do not extend the right to appropriate water to any except land owners, they are not intended to restrict the right of prior appropriation as it existed by the local customs and under decisions of the courts, by which it was immaterial whether the appropriator was a land owner or not. — *Id.* ..... 566

3. *Same — Estoppel — Public Lands.* Water-courses on the public lands of the United States are subject to appropriation by use in accordance with local customs and laws; and vested rights so acquired cannot be divested by relation back of a patent granted to one who had pre-empted the land through which the water-course passes, and who did not make final proof until after such appropriation had been made. — *Ellis v. Pomeroy Improvement Co.* .... 572

4. *Same — Water-course — Spring.* To maintain a water-course the water must usually flow therein in a certain direction and in a regular channel, having banks. The stream must have a substantial existence, but the fact that its source is a flowing spring does not change its nature, or exempt the water from appropriation. — *Geddis v. Parrish* ..... 587

5. *Same — Prior Appropriation.* Where one has appropriated the waters of a stream flowing across public lands, by erecting on his own land a ditch, one acquiring title from the United States takes subject to such appropriation, and he cannot, by obstructions on his own land, divert the water from the ditch of the prior appropriator. — *Id.* ..... 587

6. *Same — Possessory Rights in Land.* The fact that the owner of the lower land acquired title through purchase of possessory

WATERS AND WATER-COURSES — CONTINUED.

rights merely, and not by deed, does not affect his title to the water-rights, as they passed as appurtenant to the land, a complete title to which was obtained through the sale and possession thereunder of the possessory rights. — *Id.* .....

See ACTIONS; ESTOPPEL.

WHARVES. See NEGLIGENCE, 7, 8.

WITNESS.

*Reading Memoranda Prepared by His Clerk.* In an action by a mortgagee to recover damages for the conversion of mortgaged personalty, where the mortgagee testifies that he has received certain sums of money from the mortgagor to be applied on the mortgage debt, but is unable to state the amounts, it is error to permit him to read in evidence from a memorandum prepared by his clerk as to the items of payment made by the mortgagor, when he does not know how the clerk made up such memorandum. — *Brotton v. Langert* ..... 227

See CRIMINAL LAW, 1; EVIDENCE, 13.

WRIT AND PROCESS.

*Ejectment — Service of Process.* Under § 66 of the civil practice act, as amended by laws of 1871, the sheriff was authorized, in ejectment, to serve the subpœna on the defendant to answer the complaint, and his certificate as to the facts of such service was sufficient proof thereof. — *Parker v. Dacres* ..... 190

See EXECUTIONS, 3; HABEAS CORPUS, 3, 4; JUDGMENT, 4.

ERRATUM.

Page 483, eighth line, read 1886 in place of 1888.

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